



Levelling-up and Regeneration Act 2023

2023 CHAPTER 55

An Act to make provision for the setting of levelling-up missions and reporting on progress in delivering them; about local democracy; about town and country planning; about Community Infrastructure Levy; about the imposition of Infrastructure Levy; about environmental outcome reports for certain consents and plans; about nutrient pollution standards; about regeneration; about the compulsory purchase of land; about information and records relating to land, the environment or heritage; about the registration of short-term rental properties; for the provision for pavement licences to be permanent; about governance of the Royal Institution of Chartered Surveyors; about the charging of fees in connection with marine licences; for a body to replace the Health and Safety Executive as the building safety regulator; about the transfer of land for Academy schools; about the review of maps of open country and registered common land; about the regulation of childminding; about qualifying leases under the Building Safety Act 2022; about road user charging schemes in London; about National Parks, areas of outstanding natural beauty and the Broads; and for connected purposes.

[26th October 2023]

BE IT ENACTED by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

PART 1

LEVELLING-UP MISSIONS

Setting missions

1 Statement of levelling-up missions

- (1) A Minister of the Crown must prepare, and lay before each House of Parliament, a statement of levelling-up missions.
- (2) A “statement of levelling-up missions” is a document which sets out—
 - (a) objectives which His Majesty’s Government intends to pursue to reduce geographical disparities in the United Kingdom significantly (“levelling-up missions”), within a period specified in the statement (the “mission period”), and
 - (b) details of how His Majesty’s Government proposes to measure progress in delivering those levelling-up missions (the “mission progress methodology and metrics”).
- (3) In the course of preparing a statement of levelling-up missions, the Minister of the Crown must have regard to—
 - (a) the importance of the levelling-up missions in the statement (taken as a whole) addressing both economic and social disparities in opportunities or outcomes, and
 - (b) the needs of rural areas.
- (4) The mission period for a statement of levelling-up missions must not—
 - (a) begin before the statement has been laid before each House of Parliament, nor
 - (b) be shorter than five years.
- (5) A statement of levelling-up missions must specify a target date for the delivery of each of the levelling-up missions in it, which may be before or at the end of the mission period.
- (6) If different target dates are specified under [subsection \(5\)](#) for different levelling-up missions, the statement of levelling-up missions must give reasons for the different dates.
- (7) The first statement of levelling-up missions must come into effect before the end of the period of one month beginning with the day on which this section comes into force.
- (8) A statement of levelling-up missions comes into effect when—
 - (a) the statement has been laid before each House of Parliament and published by a Minister of the Crown, and
 - (b) the mission period in the statement begins.
- (9) Before the end of the mission period in a statement of levelling-up missions (“the old statement”), a Minister of the Crown must prepare a new statement of levelling-up missions, lay it before each House of Parliament and publish it.
- (10) The mission period in the new statement of levelling-up missions must begin no later than immediately after the end of the mission period in the old statement.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (11) When the new statement of levelling-up missions comes into effect it replaces the old statement, which ceases to have effect.
- (12) References in this Part to the current statement of levelling-up missions are to the statement of levelling-up missions for the time being in effect.

Commencement Information

II [S. 1](#) in force at 26.12.2023, see [s. 255\(1\)\(b\)](#)

2 Statement of levelling-up missions: devolution

- (1) In the course of preparing a statement of levelling-up missions, a Minister of the Crown must—
 - (a) have regard to any role of the devolved legislatures and devolved authorities in connection with the levelling-up missions in the statement, and
 - (b) carry out such consultation as the Minister considers appropriate with the devolved authorities.
- (2) A Minister of the Crown must prepare a document which sets out how the Minister has complied with subsection [\(1\)\(a\)](#).
- (3) A Minister of the Crown must lay the document mentioned in subsection [\(2\)](#) before each House of Parliament, and publish it, at the same time as, or as soon as is reasonably practicable after, the statement of levelling-up missions is so laid and published.

Commencement Information

I2 [S. 2](#) in force at 26.12.2023, see [s. 255\(1\)\(b\)](#)

Reporting on missions

3 Annual etc reports on delivery of levelling-up missions

- (1) A Minister of the Crown must prepare reports on the delivery of the levelling-up missions in the current statement of levelling-up missions, in accordance with this section.
- (2) In the course of preparing each report, the Minister of the Crown must have regard to the needs of rural areas.
- (3) Each report must—
 - (a) include the Minister’s assessment of the progress that has been made, in the period to which the report relates, in delivering each of the levelling-up missions in the current statement of levelling-up missions as it has effect at the end of that period,
 - (b) describe what has been done, in that period, by His Majesty’s Government to deliver each of those levelling-up missions, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) set out what His Majesty's Government plans to do in the future to deliver each of those levelling-up missions.
- (4) The Minister's assessment under [subsection \(3\)\(a\)](#) must be carried out by reference to the mission progress methodology and metrics in the current statement of levelling-up missions as it has effect at the end of the period to which the report relates.
- (5) If His Majesty's Government considers that it is no longer appropriate for it to pursue a levelling-up mission in the current statement of levelling-up missions, the report may state that His Majesty's Government no longer intends to pursue that mission, instead of dealing with the matters mentioned in [subsection \(3\)](#) in relation to that mission.
- (6) If a report contains a statement under [subsection \(5\)](#), it must also set out the reasons for the statement being made.
- (7) In the course of preparing a report on the delivery of the levelling-up missions, a Minister of the Crown must carry out such consultation as the Minister considers appropriate with the devolved authorities.
- (8) The first report in relation to a statement of levelling-up missions must relate to the first 12 months of the mission period in the statement.
- (9) Subsequent reports in relation to a statement of levelling-up missions must relate to—
 - (a) the 12 month period immediately following the 12 month period in relation to which the previous report relating to the statement was prepared, or
 - (b) if shorter, the period—
 - (i) beginning immediately after the 12 month period in relation to which the previous report relating to the statement was prepared, and
 - (ii) ending at the end of the mission period in the statement.

Commencement Information

I3 [S. 3](#) in force at 26.12.2023, see [s. 255\(1\)\(b\)](#)

4 Reports: Parliamentary scrutiny and publication

- (1) A report under [section 3](#) must be laid before each House of Parliament before the end of the period of 120 days beginning immediately after the last day of the period to which the report relates.
- (2) After a report has been laid before Parliament under [subsection \(1\)](#), a Minister of the Crown must publish it as soon as is reasonably practicable.
- (3) In calculating the period of 120 days mentioned in [subsection \(1\)](#), no account is to be taken of any time during which—
 - (a) Parliament is dissolved or prorogued, or
 - (b) either House of Parliament is adjourned for more than 4 days.

Modifications etc. (not altering text)

C1 [S. 4](#) power to modify or disapply conferred (31.3.2024 for W. for specified purposes, 30.4.2024 for E.) by 1961 c. 33, Sch 2A para. 7(2)(b) (as inserted by [Levelling-up and Regeneration Act 2023 \(c. 55\)](#), [ss. 190\(2\)\(c\)](#), [255\(7\)](#) (with [s. 247](#)); [S.I. 2024/92](#), [reg. 4](#) (with [reg. 6\(6\)](#)); [S.I. 2024/389](#), [reg. 2\(l\)](#))

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I4 [S. 4](#) in force at 26.12.2023, see [s. 255\(1\)\(b\)](#)

Revision of methodology and metrics or target dates

5 Changes to mission progress methodology and metrics or target dates

- (1) This section applies if a Minister of the Crown considers that the mission progress methodology and metrics, or the target date for the delivery of a levelling-up mission, in the current statement of levelling-up missions should be changed.
- (2) The Minister—
 - (a) may revise the current statement of levelling-up missions so as to change the mission progress methodology and metrics or (as the case may be) target date, and
 - (b) as soon as is reasonably practicable after doing so, must—
 - (i) publish a statement setting out the reasons for the mission progress methodology and metrics, or target date, being changed, and
 - (ii) lay the revised statement of levelling-up missions before each House of Parliament and then publish it.
- (3) In discharging functions under this section, a Minister of the Crown must have regard to the needs of rural areas.
- (4) The current statement of levelling-up missions has effect with the revisions made under [subsection \(2\)](#) on and after the day on which it is published after being laid before each House of Parliament.
- (5) Before making any revisions under [subsection \(2\)](#), a Minister of the Crown must—
 - (a) have regard to any role of the devolved legislatures and devolved authorities in connection with the levelling-up mission to which the revision relates, and
 - (b) carry out such consultation as the Minister considers appropriate with the devolved authorities.

Commencement Information

I5 [S. 5](#) in force at 26.12.2023, see [s. 255\(1\)\(b\)](#)

Review of missions

6 Reviews of statements of levelling-up missions

- (1) A Minister of the Crown must review the current statement of levelling-up missions, in accordance with this section.
- (2) The first review of the current statement of levelling-up missions must be completed, and a report on that review published, within the period of five years beginning with the first day of the mission period in that statement.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3) Subsequent reviews of the current statement of levelling-up missions must be completed, and the report on the review published, within the period of five years beginning with the day on which the report on the previous review was published.
- (4) But a final review of the current statement of levelling-up missions must be completed, and the report on the review published, before a new statement is laid before each House of Parliament in accordance with [section 1\(9\)](#).
- (5) The purposes of a review under this section are to—
 - (a) consider whether His Majesty’s Government pursuing the levelling-up missions in the current statement of levelling-up missions is effectively contributing to the reduction of geographical disparities in the United Kingdom,
 - (b) conclude whether His Majesty’s Government should continue to pursue those levelling-up missions and, if not, what the levelling-up missions are instead to be, and
 - (c) consider whether there are any additional levelling-up missions which His Majesty’s Government should pursue.
- (6) In the course of carrying out a review under this section, a Minister of the Crown must—
 - (a) have regard to any role of the devolved legislatures and devolved authorities in connection with the levelling-up missions in the statement, and
 - (b) carry out such consultation as the Minister considers appropriate with the devolved authorities.
- (7) As soon as is reasonably practicable after the conclusion of a review under this section, a Minister of the Crown must lay a report on the review before each House of Parliament and then publish it.
- (8) The report on a review under this section must—
 - (a) state whether His Majesty’s Government considers that pursuing the levelling-up missions in the current statement of levelling-up missions is effectively contributing to the reduction of geographical disparities in the United Kingdom,
 - (b) state whether His Majesty’s Government has concluded that it should continue to pursue those levelling-up missions and, if not, what the levelling-up missions are instead to be,
 - (c) state whether there are any additional levelling-up missions which His Majesty’s Government considers it should pursue, and
 - (d) set out reasons for the statements under paragraphs (a) to (c).
- (9) Subsections (10) to (12) do not apply in relation to a report on the final review of the current statement of levelling-up missions.
- (10) If the report states that His Majesty’s Government has concluded that it should not continue to pursue the levelling-up missions in the current statement of levelling-up missions—
 - (a) a Minister of the Crown must revise the statement—
 - (i) so that it instead contains the levelling-up missions that His Majesty’s Government is to pursue for the remaining mission period, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (ii) to make any changes to the mission progress methodology and metrics that the Minister considers appropriate in consequence of doing so, and
 - (b) as soon as is reasonably practicable after revising it, the Minister must lay the revised statement before each House of Parliament and then publish it.
- (11) If the report states that His Majesty’s Government considers that it should pursue an additional levelling-up mission—
 - (a) a Minister of the Crown must revise the current statement of levelling-up missions so as to—
 - (i) add the levelling-up mission, and
 - (ii) make any changes to the mission progress methodology and metrics that the Minister considers appropriate in consequence of doing so, and
 - (b) as soon as is reasonably practicable after revising it, the Minister must lay the revised statement before each House of Parliament and then publish it.
- (12) The current statement of levelling-up missions has effect with the revisions made under [subsection \(10\)\(a\)](#) or [\(11\)\(a\)](#) on and after the day on which the revised statement is published after being laid before each House of Parliament.
- (13) In carrying out functions under this section, a Minister of the Crown must have regard to—
 - (a) the importance of the levelling-up missions in the statement of levelling-up missions (taken as a whole) addressing both economic and social disparities in opportunities or outcomes, and
 - (b) the needs of rural areas.

Commencement Information

I6 [S. 6](#) in force at 26.12.2023, see [s. 255\(1\)\(b\)](#)

Levelling-up funding

7 Levelling Up Fund Round 3

- (1) Before the end of the period of three months beginning with the day on which this Act is passed, a Minister of the Crown must lay before each House of Parliament a statement on Levelling Up Fund Round 3.
- (2) A “statement on Levelling Up Fund Round 3” is a statement about the allocation of a third round of funding from the Levelling Up Fund.
- (3) The “Levelling Up Fund” is the programme run by His Majesty’s Government which is known as the Levelling Up Fund and was announced on 25 November 2020.

Commencement Information

I7 [S. 7](#) in force at Royal Assent, see [s. 255\(1\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

General

8 Interpretation of Part 1

In this Part—

“current statement of levelling-up missions” has the meaning given by [section 1\(12\)](#);

“devolved authorities” means—

- (a) the Scottish Ministers,
- (b) the Welsh Ministers, and
- (c) the Northern Ireland departments;

“devolved legislatures” means—

- (a) the Scottish Parliament,
- (b) Senedd Cymru, and
- (c) the Northern Ireland Assembly;

“geographical disparities” means geographical disparities in economic, social or other opportunities or outcomes;

“His Majesty’s Government” means His Majesty’s Government in the United Kingdom;

“levelling-up mission” has the meaning given by [section 1\(2\)\(a\)](#);

“Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975;

“mission period” has the meaning given by [section 1\(2\)\(a\)](#);

“mission progress methodology and metrics” has the meaning given by [section 1\(2\)\(b\)](#);

“statement of levelling-up missions” has the meaning given by [section 1\(2\)](#).

Commencement Information

18 [S. 8](#) in force at 26.12.2023, see [s. 255\(1\)\(b\)](#)

PART 2

LOCAL DEMOCRACY AND DEVOLUTION

CHAPTER 1

COMBINED COUNTY AUTHORITIES

CCAs and their areas

9 Combined county authorities and their areas

- (1) The Secretary of State may by regulations establish as a body corporate a combined county authority (a “CCA”) for an area that meets the following conditions.
- (2) Condition A is that the area is wholly within England and consists of—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the whole of the area of a two-tier county council, and
- (b) the whole of one or more of—
 - (i) the area of a two-tier county council,
 - (ii) the area of a unitary county council, or
 - (iii) the area of a unitary district council.
- (3) Condition B is that no part of the area forms part of—
 - (a) the area of another CCA,
 - (b) the area of a combined authority, or
 - (c) the integrated transport area of an Integrated Transport Authority.
- (4) Regulations under subsection (1) must specify the name by which the CCA is to be known.
- (5) In this Chapter—
 - “combined authority” means a combined authority established under section 103(1) of the Local Democracy, Economic Development and Construction Act 2009;
 - “economic prosperity board” means an economic prosperity board established under section 88(1) of that Act;
 - “Integrated Transport Authority” means an Integrated Transport Authority for an integrated transport area;
 - “two-tier county council” means a county council whose area includes the areas of district councils;
 - “unitary county council” means a county council whose area does not include the areas of district councils;
 - “unitary district council” means a district council whose area does not form part of the area of a county council.

Commencement Information

I9 [S. 9](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

Constitution of CCAs

10 Constitutional arrangements

- (1) The Secretary of State may by regulations make provision about the constitutional arrangements of a CCA.
- (2) “Constitutional arrangements” in relation to a CCA means—
 - (a) the membership of the CCA (including the number and appointment of members of the CCA and the remuneration of, and pensions or allowances payable to or in respect of, any member of the CCA);
 - (b) the voting powers of members of the CCA (including provision for different weight to be given to the vote of different descriptions of member);
 - (c) the executive arrangements of the CCA;
 - (d) the functions of any executive body of the CCA.
- (3) In subsection (2)(c) “executive arrangements” means—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the appointment of an executive;
 - (b) the functions of the CCA which are the responsibility of an executive;
 - (c) the functions of the CCA which are the responsibility of an executive and which may be discharged by a committee of the CCA or by a body other than the CCA;
 - (d) arrangements relating to the review and scrutiny of the discharge of functions;
 - (e) access to information on the proceedings of an executive of the CCA;
 - (f) the disapplication of section 15 of the Local Government and Housing Act 1989 (duty to allocate seats to political groups) in relation to an executive of the CCA or a committee of such an executive;
 - (g) the keeping of a record of any arrangements relating to the CCA and falling within paragraphs (a) to (f).
- (4) Regulations under subsection (1) which, by virtue of subsection (2)(a), include provision about the number and appointment of members of the CCA must provide—
- (a) for the members of the CCA other than—
 - (i) the mayor (in the case of a mayoral CCA),
 - (ii) the CCA's non-constituent members (see section 11), and
 - (iii) the CCA's associate members (see section 12),
 to be appointed by the CCA's constituent councils, and
 - (b) for each of the constituent councils to appoint at least one of its elected members as a member of the CCA.
- (5) The provision which may be made by regulations under subsection (1) by virtue of subsection (2)(d) includes—
- (a) provision setting up or dissolving an executive body of a CCA, or merging two or more executive bodies of a CCA;
 - (b) provision conferring functions on, or removing functions from, an executive body of a CCA;
 - (c) provision transferring functions of a CCA to an executive body of the CCA, and transferring functions of an executive body of a CCA to the CCA.
- (6) Regulations under subsection (1) may not provide for the budget of a CCA to be agreed otherwise than by the CCA.
- (7) The power to make regulations under subsection (1) is subject to—
- (a) sections 11 and 12 and regulations under section 13(1) (non-constituent and associate members), and
 - (b) sections 14(4) and 25(9) and (12) (procedure for CCA consents).
- (8) Regulations under subsection (1) may be made in relation to [^{F1}an existing CCA] only with the consent of—
- (a) the constituent councils, and
 - (b) ^{F2}... the CCA.
- [^{F3}(8A) Subsection (8) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).]

^{F4}(9)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (10) If the only provision made under subsection (1) in regulations under this Chapter is provision as a result of regulations to which section 31 applies (procedure for direct conferral of general functions on mayor)—
- (a) subsection (8) does not apply to the regulations under this Chapter, and
 - (b) the regulations may be made only with the consent of the mayor for the CCA.
- (11) In this Chapter “constituent council”, in relation to a CCA or proposed CCA, means—
- (a) a county council for an area within the CCA’s area or proposed area, or
 - (b) a unitary district council for an area within the CCA’s area or proposed area.

Textual Amendments

- F1** Words in s. 10(8) substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 23\(a\)\(i\)](#) (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)
- F2** Words in s. 10(8)(b) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 23\(a\)\(ii\)](#) (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)
- F3** S. 10(8A) inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 23\(b\)](#) (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)
- F4** S. 10(9) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 23\(c\)](#) (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)

Commencement Information

- I10** [S. 10](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

11 Non-constituent members of a CCA

- (1) A CCA may designate a body other than a constituent council as a nominating body for the purposes of this Chapter.
- (2) A nominating body may be designated under subsection (1) only if the body consents to the designation.
- (3) A nominating body of a CCA may nominate a representative of the body for appointment by the CCA as a member (a “non-constituent member”).
- (4) The non-constituent members of a CCA are to be non-voting members of that authority unless the voting members resolve otherwise.
- (5) A resolution under subsection (4) does not permit non-constituent members to vote on a decision whether the CCA should consent to the making of regulations under this Chapter.

Commencement Information

- I11** [S. 11](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

12 Associate members of a CCA

- (1) A CCA may appoint an individual to be a member (“an associate member”) of the CCA.
- (2) The associate members of a CCA are to be non-voting members of the CCA.

Commencement Information

I12 S. 12 in force at 26.12.2023, see s. 255(2)(c)

13 Regulations about members

- (1) The Secretary of State may by regulations make provision about—
 - (a) constituent members of a CCA;
 - (b) the mayor for the area of a CCA in the mayor’s capacity as a member of the CCA;
 - (c) nominating bodies of a CCA;
 - (d) non-constituent members of a CCA;
 - (e) associate members of a CCA.
- (2) The provision that may be made by regulations under subsection (1) includes, in particular, provision about—
 - (a) the cases in which a decision of a CCA requires a majority, or a particular kind of majority, of the votes of members of a particular kind [^{F5}(including provision disapplying or modifying the effect of section 13A)];
 - (b) the process for the designation of a nominating body or the removal of such a designation;
 - (c) the number of nominating bodies that may be designated by a CCA;
 - (d) the number of non-constituent members that may be appointed by a nominating body of a CCA;
 - (e) the appointment, disqualification, resignation or removal of a non-constituent member;
 - (f) the appointment of a substitute member to act in place of a non-constituent member;
 - (g) the maximum number of non-constituent members of a CCA;
 - (h) the making by a nominating body of a CCA of payments towards the costs of the CCA;
 - (i) the things which may or may not be done by, or in relation to, a non-constituent member;
 - (j) the appointment, disqualification, resignation or removal of an associate member;
 - (k) the appointment of a substitute member to act in place of an associate member;
 - (l) the maximum number of associate members of a CCA;
 - (m) the things which may or may not be done by, or in relation to, an associate member.
- (3) Regulations under subsection (1) may confer a discretion on a CCA to determine any matter.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) In this section “constituent member”, in relation to a CCA, means a member of the CCA (other than any mayor for the area of the CCA) appointed by a constituent council.

Textual Amendments

- F5** Words in s. 13(2)(a) inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), **ss. 6(3), 108(1)(3)** (with s. 102)

Commencement Information

- I13** [S. 13](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

[^{F6}13A Decision-making

- (1) This section applies to any decision of a CCA.
- (2) A decision of a non-mayoral CCA is to be made by a simple majority of the voting members present and voting on that question at a meeting of the CCA.
- (3) A decision of a mayoral CCA is to be made by a simple majority of the voting members present and voting on that question at a meeting of the CCA; and such a majority must include the mayor, or the deputy mayor acting in place of the mayor.
- (4) But if—
- (a) the office of mayor is vacant, and
 - (b) there is no deputy mayor,
- the decision is to be made by a simple majority of the voting members present and voting on that question at a meeting of the CCA.
- (5) On a decision of any CCA—
- (a) each voting member has one vote;
 - (b) in the case of a tied vote—
 - (i) no person has a casting vote; and
 - (ii) the CCA must be regarded as having disagreed to the question that the decision should be made.
- (6) Subsections (1) to (5) are subject to provision made in any other enactment (whenever passed or made).
- (7) That includes regulations under this Chapter or under Schedule 27 to the English Devolution and Community Empowerment Act 2026.
- (8) In this section “voting member” means—
- (a) in relation to a decision of a non-mayoral CCA—
 - (i) a person appointed by a constituent council to be a member of the CCA (a “constituent member”) or a person acting as a member of the CCA in the absence of the constituent member, and
 - (ii) a non-constituent member (within the meaning of section 11) who is a voting member in relation to the decision by virtue of a resolution under section 11(4) or a person acting as a member of the CCA in the absence of the non-constituent member;

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (b) in relation to a decision of a mayoral CCA—
 - (i) a person appointed by a constituent council to be a member of the CCA (a “constituent member”) or a person acting as a member of the CCA in the absence of the constituent member,
 - (ii) a non-constituent member (within the meaning of section 11) who is a voting member in relation to the decision by virtue of a resolution under section 11(4) or a person acting as a member of the CCA in the absence of the non-constituent member, and
 - (iii) the mayor, or the deputy mayor acting in place of the mayor.

Textual Amendments

F6 Ss. 13A, 13B inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 6(2)**, 108(1)(3) (with s. 102)

13B Validity of proceedings

- (1) The proceedings of a CCA are not invalidated—
 - (a) by any vacancy—
 - (i) among its members or substitute members, or
 - (ii) (in the case of a mayoral CCA) in the office of deputy mayor, or
 - (b) by any defect in the appointment or qualifications of—
 - (i) any member or substitute member, or
 - (ii) (in the case of a mayoral CCA) of the deputy mayor.
- (2) In this section “substitute member” means a person appointed to act as a member in the absence of another member.]

Textual Amendments

F6 Ss. 13A, 13B inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 6(2)**, 108(1)(3) (with s. 102)

14 Review of CCA’s constitutional arrangements

- (1) This section applies if regulations under section 10(1) (constitution of CCA) enable a CCA to make provision about its constitution (“constitutional provision”).
- (2) An appropriate person may carry out a review of the CCA’s constitutional provision if—
 - (a) an appropriate person proposes a review, and
 - (b) the CCA consents to the review.
- (3) If an appropriate person carries out a review under subsection (2), they may propose changes to the CCA’s constitutional provision as a result of the review for agreement by the CCA.
- (4) The question of whether to consent under subsection (2)(b) or to agree to changes proposed under subsection (3) is to be decided at a meeting of the CCA by a simple majority of the voting members of the CCA who are present at the meeting.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (5) In the case of a mayoral CCA—
- (a) a majority in favour of consenting under subsection (2)(b) does not need to include the mayor, but
 - (b) a majority in favour of changes proposed under subsection (3) must include the mayor.
- (6) The reference in subsection (4) to a voting member—
- (a) includes a substitute member who may act in place of a voting member;
 - (b) does not include a non-constituent member.
- (7) In this section “appropriate person”, in relation to a CCA, means—
- (a) a member of the CCA appointed by a constituent council, or
 - (b) the mayor for the area of the CCA, if it is a mayoral CCA (see section 27(8)).

Commencement Information

I14 S. 14 in force at 26.12.2023, see s. 255(2)(c)

15 Overview and scrutiny committees

- (1) Schedule 1 makes provision for CCAs to have overview and scrutiny committees and audit committees.
- (2) Provision made by regulations under section 10(1) is subject to that Schedule.

Commencement Information

I15 S. 15 in force at 26.12.2023, see s. 255(2)(c)

16 Funding

- (1) The Secretary of State may by regulations make provision—
- (a) for the costs of a CCA to be met by its constituent councils, and
 - (b) about the basis on which the amount payable by each constituent council is to be determined.
- (2) Regulations under subsection (1) may be made in relation to [^{F7}an existing CCA] only with the consent of—
- (a) the constituent councils, and
 - (b) ^{F8}... the CCA.

[^{F9}(2A) Subsection (2) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).]

- (3) Subsection (1) is subject to regulations under section 13(1) (CCA membership).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Textual Amendments

- F7** Words in s. 16(2) substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 24\(a\)\(i\)](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F8** Words in s. 16(2)(b) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 24\(a\)\(ii\)](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F9** S. 16(2A) inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 24\(b\)](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)

Commencement Information

- I16** [S. 16](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

17 Change of name

- (1) A CCA may, by a resolution in relation to which the requirements mentioned in subsection (2) are met, change the name by which it is known.
- (2) The requirements are—
 - (a) that the resolution is considered at a meeting of the CCA which is specially convened for the purpose,
 - (b) that particulars of the resolution were included in the notice of the meeting, and
 - (c) that the resolution is passed at the meeting by not less than two-thirds of the members of the CCA who vote on it.
- (3) A CCA which changes its name under this section must—
 - (a) send notice of the change to the Secretary of State, and
 - (b) publish the notice in such manner as the Secretary of State may direct.
- (4) A change of name under this section does not affect the rights or obligations of the CCA concerned or any other person, or render defective any legal proceedings; and any legal proceedings may be commenced or continued as if there had been no change of name.

Commencement Information

- I17** [S. 17](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

[^{F10}17A The functions of CCAs

- A CCA has the functions that are conferred by—
- (a) this Chapter or any regulations under this Chapter,
 - (b) any regulations under Schedule 27 to the English Devolution and Community Empowerment Act 2026, or
 - (c) any other enactment (whenever passed or made).]

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Textual Amendments

- F10** S. 17A inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 5\(1\), 108\(1\)\(3\)](#) (with s. 102)

^{F11}Collaboration

Textual Amendments

- F11** S. 17B and cross-heading inserted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 22\(1\), 108\(1\)\(5\)](#) (with s. 102)

17B Mayoral power to convene meetings with local partners

- (1) The mayor for the area of a CCA may convene meetings with local partners to consider relevant local matters.
- (2) In exercising the function of convening meetings, a mayor must have regard to any guidance issued for this purpose by the Secretary of State.
- (3) If a mayor notifies a local partner that the mayor intends to convene a meeting under this section with that local partner, the local partner must respond to the notification.
- (4) In responding to a notification given by a mayor, a local partner must have regard to any guidance issued for this purpose by the Secretary of State.
- (5) In this section—
 - “local partner” means a person specified, or of a description specified, in regulations made by the Secretary of State;
 - “relevant local matter”, in relation to the mayor for the area of a CCA, means a matter which relates both to—
 - (a) the area of the CCA, and
 - (b) any aspect of any area of competence set out in section 2 of the English Devolution and Community Empowerment Act 2026.]

[^{F12}17C Request to collaborate

- (1) The mayor for the area of a CCA (“mayor A”) may make a request to another elected mayor (“mayor B”) for the mayors to collaborate in relation to a matter relating to any aspect of any area of competence.
- (2) A collaboration request must specify—
 - (a) the matter on which mayor A wants the mayors to collaborate, and
 - (b) the way in which mayor A wants the mayors to collaborate.
- (3) Mayor A may make a collaboration request only if mayor A considers that the requested collaboration would be likely to improve the economic, social or environmental well-being of—
 - (a) some or all of the people who live or work in mayor A’s area, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) some or all of the people who live or work in mayor A's area and some or all of the people who live or work in mayor B's area.
- (4) Mayor A may make a collaboration request only if mayor A's area adjoins mayor B's area.
- (5) A collaboration request must be in writing.
- (6) Mayor A must publish, in such manner as the mayor thinks appropriate, any collaboration request which the mayor makes.
- (7) The mayors for the areas of CCAs must have regard to any guidance issued by the Secretary of State in exercising powers, and complying with duties, under this section.
- (8) Section 17E makes provision about collaboration requests made by, or to, two or more elected mayors.
- (9) In this section, section 17D and section 17E—
 - “area of competence” has the same meaning as in the English Devolution and Community Empowerment Act 2026 (see section 2 of that Act);
 - “collaboration request” means a request made under subsection (1);
 - “elected mayor” means—
 - (a) the mayor for the area of a CCA,
 - (b) the mayor for the area of a combined authority, or
 - (c) the Mayor of London;
 - “mayor A” has the meaning given in subsection (1);
 - “mayor A's area” means the area for which mayor A is the mayor;
 - “mayor B” has the meaning given in subsection (1);
 - “mayor B's area” means the area for which mayor B is the mayor.]

Textual Amendments

F12 Ss. 17C-17E inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), [ss. 23\(1\), 108\(5\)](#) (with s. 102)

[^{F12}17D Responding to a collaboration request

- (1) In a case where a collaboration request is made to mayor B, the mayor must—
 - (a) consider the collaboration request and decide how to respond,
 - (b) set out the response in writing,
 - (c) give the response to mayor A, and
 - (d) publish, in such manner as the mayor thinks appropriate, the response.
- (2) In considering the collaboration request and deciding how to respond, mayor B must have regard to the economic, social and environmental well-being of some or all of the people who live or work in mayor B's area.
- (3) If mayor B decides not to agree to the collaboration request, or any part of it, mayor B must—
 - (a) give the reasons for that decision, and
 - (b) include the reasons in the response to mayor A.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) Mayors to whom collaboration requests are made must have regard to any guidance issued by the Secretary of State in exercising the powers, and complying with the duties, under this section.]

Textual Amendments

F12 Ss. 17C-17E inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 23(1)**, 108(5) (with s. 102)

[^{F12}17E Collaboration requests made by or to several mayors

- (1) Two or more elected mayors (the “requesting mayors”) may make a collaboration request to a single elected mayor (the “potential collaborating mayor”) if—
 - (a) at least one of the requesting mayors is the mayor for the area of a CCA, and
 - (b) each requesting mayor’s area meets the neighbour test.
- (2) For that purpose, a requesting mayor’s area meets the neighbour test if that area—
 - (a) adjoins every other requesting mayor’s area, and
 - (b) adjoins the potential collaborating mayor’s area.
- (3) If two or more elected mayors make a collaboration request to a single elected mayor—
 - (a) sections 17C and 17D apply in relation to each of the requesting mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular requesting mayor, “mayor A” means that mayor.
- (4) A single mayor for the area of a CCA (the “requesting mayor”) may make a collaboration request to two or more elected mayors (the “potential collaborating mayors”) if each potential collaborating mayor’s area meets the neighbour test.
- (5) For that purpose, a potential collaborating mayor’s area meets the neighbour test if that area adjoins the requesting mayor’s area.
- (6) If a single mayor for the area of a CCA makes a collaboration request to two or more elected mayors—
 - (a) sections 17C and 17D apply in relation to each of the potential collaborating mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular potential collaborating mayor, “mayor B” means that mayor.
- (7) Two or more elected mayors (the “requesting mayors”) may make a collaboration request to two or more elected mayors (the “potential collaborating mayors”) if—
 - (a) at least one of the requesting mayors is the mayor for the area of a CCA,
 - (b) each requesting mayor’s area meets the neighbour test, and
 - (c) each potential collaborating mayor’s area meets the neighbour test.
- (8) For the purposes of subsection (7), a requesting mayor’s area meets the neighbour test if that area—
 - (a) adjoins every other requesting mayor’s area, and
 - (b) adjoins every potential collaborating mayor’s area.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (9) For the purposes of subsection (7), a potential collaborating mayor’s area meets the neighbour test if that area adjoins every requesting mayor’s area.
- (10) If two or more elected mayors make a collaboration request to two or more elected mayors—
- (a) sections 17C and 17D apply in relation to each of the requesting mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular requesting mayor, “mayor A” means that mayor;
 - (c) sections 17C and 17D apply in relation to each of the potential collaborating mayors separately, and
 - (d) accordingly, in the application of those sections in relation to a particular potential collaborating mayor, “mayor B” means that mayor.
- (11) In this section—
- “potential collaborating mayor’s area” means the area for which a potential collaborating mayor is the mayor;
 - “requesting mayor’s area” means the area for which a requesting mayor is the mayor.]

Textual Amendments

F12 Ss. 17C-17E inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 23(1)**, 108(5) (with s. 102)

Functions of CCAs

18 Local authority functions

- (1) The Secretary of State may by regulations provide for a function of a county council or a district council that is exercisable in relation to an area which is within a CCA’s area to be exercisable by the CCA in relation to the CCA’s area.
- (2) The Secretary of State may make regulations under subsection (1) only if the Secretary of State considers that the function can appropriately be exercised by the CCA.
- (3) Regulations under subsection (1) may make provision for the function to be exercisable by the CCA either generally or subject to such conditions or limitations as may be specified in the regulations.
- (4) Regulations under subsection (1) which provide for a function of a county council or a unitary district council to be exercisable by a CCA may make provision for the function to be exercisable by the CCA instead of by the county council or unitary district council.
- (5) Regulations under subsection (1) which provide for a function of a county council or a district council to be exercisable by a CCA may make provision—
 - (a) for the function to be exercisable by the CCA concurrently with the county council or district council,
 - (b) for the function to be exercisable by the CCA and the county council or district council jointly, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) for the function to be exercisable by the CCA jointly with the county council or district council but also continue to be exercisable by the council alone.
- (6) Regulations under subsection (1) may be made in relation to [^{F13}an existing CCA] only with the consent of—
 - (a) the constituent councils, and
 - (b) ^{F14}... the CCA.
- [^{F15}(7) Subsection (6) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).]

Textual Amendments

- F13** Words in s. 18(6) substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 25\(a\)\(i\)](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F14** Words in s. 18(6)(b) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 25\(a\)\(ii\)](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F15** S. 18(7) inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 25\(b\)](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)

Commencement Information

- I18** [S. 18](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

19 Other public authority functions

- (1) The Secretary of State may by regulations—
 - (a) make provision for a function of a public authority that is exercisable in relation to a CCA's area to be a function of the CCA;
 - (b) make provision for conferring on a CCA in relation to its area a function corresponding to a function that a public authority has in relation to another area.
- (2) Regulations under subsection (1) may include further provision about the exercise of the function including—
 - (a) provision for the function to be exercisable by the public authority or CCA subject to conditions or limitations specified in the regulations;
 - (b) provision as to joint working arrangements between the CCA and public authority in connection with the function (for example, provision for the function to be exercised by a joint committee).
- (3) The provision that may be included in regulations under subsection (1)(a) includes, in particular, provision—
 - (a) for the CCA to have the function instead of the public authority,
 - (b) for the function to be exercisable by the CCA concurrently with the public authority,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) for the function to be exercisable by the CCA and the public authority jointly, or
 - (d) for the function to be exercisable by the CCA jointly with the public authority but also continue to be exercisable by the public authority alone.
- (4) Regulations under subsection (1)(a) may, in particular, include provision to abolish the public authority in a case where, as a result of the regulations, it will no longer have any functions.
- (5) Regulations under subsection (1) may not provide for a regulatory function that is exercisable by a public authority in relation to the whole of England to be exercisable by a CCA in relation to its area if the regulated function is itself exercisable by the CCA by virtue of regulations under this section.
- (6) Subsection (7) applies where regulations under subsection (1) contain a reference to a document specified or described in the regulations (for example, in imposing a condition by virtue of subsection (2)(a) for an authority to have regard to, or to comply with, a statement of policy or standards set out in the document).
- (7) If it appears to the Secretary of State necessary or expedient for the reference to the document to be construed—
- (a) as a reference to that document as amended from time to time, or
 - (b) as including a reference to a subsequent document that replaces that document,
- the regulations may make express provision to that effect.
- (8) See also section 18 of the Cities and Local Government Devolution Act 2016 (devolving health service functions) which contains further limitations.
- (9) In this section—
- “function” (except in subsection (4)) does not include a power to make regulations or other instruments of a legislative character;
 - “Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975;
 - “public authority”—
 - (a) includes a Minister of the Crown or a government department;
 - (b) does not include a county council or a district council;
 - “regulated function” means the function of carrying out an activity to which a regulatory function relates;
 - “regulatory function” has the meaning given by section 32 of the Legislative and Regulatory Reform Act 2006.

Commencement Information

I19 S. 19 in force at 26.12.2023, see s. 255(2)(c)

20 Section 19 regulations: procedure

[^{F16}(1) The Secretary of State may make regulations under section 19(1) in relation to an existing CCA only if—

- (a) a proposal for the making of the regulations in relation to the CCA has been submitted to the Secretary of State in accordance with section 47, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(b) the appropriate authorities consent.]

^{F17}(2)

(3) The requirements in subsection (1) do not apply where the regulations are made under sections 19(1) and 30(1) in relation to an existing mayoral CCA and provide for a function—

- (a) to be a function of the CCA, and
- (b) to be a function exercisable only by the mayor.

See section 31 in relation to regulations of this kind.

(4) The requirement in subsection (1)(b) for the [^{F18}appropriate authorities to consent] to the making of regulations under section 19(1) does not apply where—

- (a) the regulations revoke (in whole or in part), or otherwise amend, previous regulations under section 19(1), and
- (b) the only purpose of the regulations is to provide for a health service function of a CCA to cease to be exercisable by the CCA.

(5) In subsection (4)(b) “health service function of a CCA” means a function which—

- (a) relates to the health service, as defined by section 275(1) of the National Health Service Act 2006, and
- (b) is exercisable by the CCA by virtue of regulations under section 19(1).

(6) At the same time as laying a draft of a statutory instrument containing regulations under section 19(1) before Parliament, the Secretary of State must lay before Parliament a report explaining the effect of the regulations and why the Secretary of State considers it appropriate to make the regulations.

(7) The report must include—

- (a) a description of any consultation taken into account by the Secretary of State,
- (b) information about any representations considered by the Secretary of State in connection with the regulations, and
- (c) any other evidence or contextual information that the Secretary of State considers it appropriate to include.

(8) For the purposes of this section “the appropriate authorities” are—

- (a) each constituent council, and
- (b) ^{F19}... the CCA.

Textual Amendments

F16 S. 20(1) substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 26(a)** (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)

F17 S. 20(2) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 26(b)** (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)

F18 Words in s. 20(4) substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 26(c)** (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)

F19 Words in s. 20(8)(b) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s.

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

108(1)(3), **Sch. 1 para. 26(d)** (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)

Commencement Information

I20 S. 20 in force at 26.12.2023, see **s. 255(2)(c)**

21 Integrated Transport Authority and Passenger Transport Executive

- (1) The Secretary of State may by regulations transfer functions of an Integrated Transport Authority (an “ITA”) to a CCA.
- (2) Regulations under subsection (1) may only be made in relation to functions exercisable by the ITA in relation to an area that becomes, or becomes part of, the CCA’s area by virtue of regulations under this Chapter.
- (3) The Secretary of State may by regulations provide for any function that is conferred or imposed on a Passenger Transport Executive by any enactment (whenever passed or made) to be exercisable by a CCA or the executive body of a CCA in relation to the CCA’s area.
- (4) Regulations under subsection (3) may make provision for any function that—
 - (a) is conferred or imposed on an ITA by any enactment (whenever passed or made), and
 - (b) relates to the functions of a Passenger Transport Executive, to be exercisable by a CCA in relation to the CCA’s area.
- (5) Regulations under this section may be made in relation to [^{F20}an existing CCA] only with the consent of—
 - (a) the constituent councils, and
 - (b) [^{F21}... the CCA.

[^{F22}(5A) Subsection (5) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).]

Textual Amendments

- F20** Words in s. 21(5) substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by **English Devolution and Community Empowerment Act 2026 (c. 23)**, s. 108(1)(3), **Sch. 1 para. 27(a)(i)** (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)
- F21** Words in s. 21(5)(b) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of **English Devolution and Community Empowerment Act 2026 (c. 23)**, s. 108(1)(3), **Sch. 1 para. 27(a)(ii)** (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)
- F22** S. 21(5A) inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by **English Devolution and Community Empowerment Act 2026 (c. 23)**, s. 108(1)(3), **Sch. 1 para. 27(b)** (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)

Commencement Information

I21 S. 21 in force at 26.12.2023, see **s. 255(2)(c)**

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

22 ^[F23] **Highways and traffic functions: regulations conferring power to give directions]**

^[F24](1) The Secretary of State may by regulations—

- (a) confer on a non-mayoral CCA a power to give a direction about the exercise of an eligible power;
- (b) confer on a mayoral CCA a power to give a direction about the exercise of an eligible power in relation to roads that are not key route network roads (see section 24).]

(2) An “eligible power” means a power of a county council or a unitary district council which the council has—

- (a) as highway authority by virtue of section 1 of the Highways Act 1980, or
- (b) as traffic authority by virtue of section 121A of the Road Traffic Regulation Act 1984.

(3) In this section references to a power do not include a reference to a duty.

(4) A power of direction under this section must relate only to the exercise of an eligible power in—

- (a) the area of the CCA, and
- (b) the area of the authority subject to the direction.

(5) A power of direction under this section must relate only to the exercise of an eligible power in respect of—

- (a) a particular road (whether or not specified in the regulations), or
- (b) a description of road (whether or not specified in the regulations).

^[F25](6) In subsection (5) “road”—

- (a) in the case of a power of direction under subsection (1)(a), has the meaning given by section 142(1) of the Road Traffic Regulation Act 1984;
- (b) in the case of a power of direction under subsection (1)(b), means a road that is not a key route network road;
- (c) in either case, does not include any road which is the subject of a concession agreement under Part 1 of the New Roads and Street Works Act 1991.]

(7) A power of direction under this section must relate only to any one or more of—

- (a) the provision of information about the exercise of an eligible power which the authority subject to the direction has or might reasonably be expected to acquire;
- (b) the imposition on such an authority of requirements relating to procedures to be followed prior to the exercise of an eligible power;
- (c) the imposition on such an authority of requirements relating to the obtaining of consent prior to the exercise of an eligible power;
- (d) the imposition on such an authority of conditions subject to which an eligible power may be exercised (including conditions relating to the times at which, and the manner in which, an eligible power may be exercised);
- (e) a requirement to exercise an eligible power (including a requirement to exercise an eligible power subject to conditions);
- (f) a prohibition on the exercise of an eligible power.

(8) A power of direction under this section may be conferred subject to conditions.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (9) Any direction given by virtue of this section—
- (a) must be given in writing and may be varied or revoked by a further direction in writing, and
 - (b) may make different provision for different cases and different provision for different areas.
- [^{F26}(9A) Before giving a direction under this section, a mayor or CCA must have regard to the following—
- (a) the network management duty imposed by section 16 of the Traffic Management Act 2004;
 - (b) the duty imposed by section 17 of that Act (duty to make arrangements for planning and carrying out action to be taken in performing the network management duty);
 - (c) any guidance issued under section 18 of that Act;
 - (d) any guidance issued under section 55 of this Act.
- (9B) On the day on which a mayor or CCA gives a direction under this section, the mayor or CCA must publish a copy of the direction in such manner as the mayor or CCA considers appropriate.
- (9C) If a mayor of a CCA gives a direction under this section, the mayor must reimburse any costs incurred by a council in complying with the direction (including administrative costs incurred in dealing with the direction).
- In a case where works are carried out in complying with the direction, the costs are those incurred to carry out those works or during the period that ends 12 months after completion of those works.]
- (10) If regulations under subsection (1) make provision for a direction by virtue of subsection (7)(e), the regulations must make provision for the direction not to have effect unless the CCA meets the cost of complying with the direction.
- (11) [^{F27}Regulations under subsection (1) may be made in relation to an existing CCA only with the consent of—];
- (a) the constituent councils, and
 - (b) ^{F28}... the CCA.
- [^{F29}(12) Subsection (11) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).]

Textual Amendments

- F23** S. 22 heading substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 11 para. 3(2)** (with s. 102)
- F24** S. 22(1) substituted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 11 para. 3(3)** (with s. 102)
- F25** S. 22(6) substituted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 11 para. 3(4)** (with s. 102)
- F26** S. 22(9A)-(9C) inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 11 para. 3(5)** (with s. 102)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- F27** Words in s. 22(11) substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 28\(a\)\(i\)](#) (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)
- F28** Words in s. 22(11)(b) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 28\(a\)\(ii\)](#) (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)
- F29** S. 22(12) inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 28\(b\)](#) (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)

Commencement Information

- I22** S. 22 in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

23 Contravention of regulations under section 22

- (1) Regulations under section 22(1) may provide that, if an authority exercises any power in contravention of a direction under such regulations, the CCA may take such steps as it considers appropriate to reverse or modify the effect of the exercise of the power.
- (2) For the purposes of subsection (1), the CCA has power to exercise any power of the authority subject to the direction on behalf of that authority.
- (3) Any reasonable expenses incurred by the CCA in taking any steps under subsection (1) are recoverable from the authority subject to the direction as a civil debt.

Commencement Information

- I23** [S. 23](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

[^{F30}23A Highways and traffic functions: directions by mayors

- (1) A mayoral CCA may give a direction about the exercise of—
 - (a) an eligible power, or
 - (b) a street authority or permit authority power,
 in respect of a particular key route network road or a description of roads which are all key route network roads.
- (2) The power under this section to give a direction is exercisable only by the mayor for the area of a CCA on behalf of the CCA.
- (3) A direction under this section must relate only to the exercise of a relevant power—
 - (a) by a constituent council of the CCA, and
 - (b) in—
 - (i) the area of the CCA, and
 - (ii) the area of the constituent council.
- (4) Any direction given by virtue of this section—
 - (a) must be given in writing and may be varied or revoked by a further direction in writing, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) may make different provision for different cases and different provision for different areas.
- (5) Before giving a direction under this section, a mayor must have regard to the following—
 - (a) the network management duty imposed by section 16 of the Traffic Management Act 2004;
 - (b) the duty imposed by section 17 of that Act (duty to make arrangements for planning and carrying out action to be taken in performing the network management duty);
 - (c) any guidance issued under section 18 of that Act;
 - (d) any guidance issued under section 55 of this Act.
- (6) On the day on which a mayor gives a direction under this section, the mayor must publish a copy of the direction in such manner as the mayor considers appropriate.
- (7) A mayor who gives a direction under this section must reimburse any costs incurred by a council in complying with the direction (including administrative costs incurred in dealing with the direction).
- (8) In a case where works are carried out in complying with the direction, the costs of the works are those incurred—
 - (a) before or while carrying out the works, or
 - (b) during the period that ends 12 months after completion of the works.
- (9) In this section—
 - “eligible power” means a power of a county council or a unitary district council which the council has—
 - (a) as highway authority by virtue of section 1 of the Highways Act 1980, or
 - (b) as traffic authority by virtue of section 121A of the Road Traffic Regulation Act 1984;
 - “power”, in the definition of “eligible power” or street authority or permit authority power, does not include a duty;
 - “relevant power” means—
 - (a) an eligible power, or
 - (b) a street authority or permit authority power;
 - “street authority or permit authority power” means a power of a county council or a unitary district council which the council has—
 - (a) as a street authority by virtue of section 49 of the New Roads and Street Works Act 1991, or
 - (b) under section 33 or 33A of the Traffic Management Act 2004 or under a permit scheme prepared under section 33 of that Act.

Textual Amendments

F30 Ss. 23A, 23B inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), s. 108(1)(3), [Sch. 11 para. 4](#) (with s. 102)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

23B Contraventions of section 23A

- (1) If an authority exercises any power in contravention of a direction under section 23A, the CCA may take such steps as it considers appropriate to reverse or modify the effect of the exercise of the power.
- (2) For the purposes of subsection (1), the CCA has power to exercise any power of the authority subject to the direction on behalf of that authority.
- (3) Any reasonable expenses incurred by the CCA in taking any steps under subsection (1) are recoverable from the authority subject to the direction as a civil debt.]

Textual Amendments

F30 Ss. 23A, 23B inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), s. 108(1)(3), [Sch. 11 para. 4](#) (with s. 102)

24 Designation of key route network roads

- [^{F31}(1) A CCA has the power to—
- (a) designate a highway or proposed highway in its area as a key route network road, or
 - (b) remove its designation as a key route network road.
- (1A) In the case of a mayoral CCA—
- (a) that power is a power of the CCA exercisable only by the mayor on behalf of the CCA;
 - (b) the mayor may not designate a highway or proposed highway unless—
 - (i) the mayor has prepared a proposal to designate it (a “proposed designation”), and
 - (ii) the CCA has passed a resolution approving the proposed designation;
 - (c) if there is no highway or proposed highway in the CCA’s area that is designated as a key route network road, the mayor must prepare a proposed designation in relation to at least one highway or proposed highway.
- (1B) In the case of a non-mayoral CCA, the CCA may only exercise that power with the consent of each constituent council in whose area the highway or proposed highway is.]
- (2) The Secretary of State may designate a highway or proposed highway in the area of a CCA as a key route network road, or remove its designation as a key route network road, if requested to do so by—
- [^{F32}(d) the mayor of a CCA, in the case of a mayoral CCA;
- (e) the CCA or a constituent council, in the case of a non-mayoral CCA.
- (3) A designation or removal under this section must be in writing and must state when it comes into effect.
- (4) The Secretary of State must send a copy of a designation or removal under subsection (2) to the CCA in question at least 7 days before the date on which it comes into effect.

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

[^{F33}(5) A CCA must maintain, and publish on its website, a record of the roads in its area which are key route network roads.]

(6) A CCA that has key route network roads in its area must keep a list or map (or both) accessible to the public showing those roads.

^{F34}(7)

^{F34}(8)

(9) In this section—

^{F35}
 ...

“key route network road” means a highway or proposed highway designated for the time being under this section as a key route network road;

“proposed highway” means land on which, in accordance with plans made by a highway authority, that authority are for the time being constructing or intending to construct a highway shown in the plans.]

Textual Amendments

F31 S. 24(1)-(1B) substituted for s. 24(1) (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 11 para. 1(2)** (with s. 102)

F32 S. 24(2)(d)(e) substituted for s. 24(2)(a)-(c) (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 11 para. 1(3)** (with s. 102)

F33 S. 24(5) substituted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 11 para. 1(4)** (with s. 102)

F34 S. 24(7)(8) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 29(a)**, **Sch. 11 para. 7(1)(a)** (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)

F35 Words in s. 24(9) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 29(b)**, **Sch. 11 para. 7(1)(b)** (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)

Commencement Information

I24 S. 24 in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

[^{F36}**24A Health improvement and health inequalities duty**

(1) When considering whether or how to exercise any of its functions, a CCA must have regard to the need to—

- (a) improve the health of persons in the CCA’s area, and
- (b) reduce health inequalities between persons living in the CCA’s area.

(2) When considering whether or how to exercise any function, the mayor for the area of a CCA must have regard to the considerations set out in subsection (1).

(3) Health inequalities “between persons” living in an area means health inequalities between persons, or persons of different descriptions, living in, or in different parts of, an area.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) “Health inequalities” means inequalities in respect of life expectancy or general state of health which are wholly or partly a result of differences in respect of general health determinants.
- (5) “General health determinants” are—
- (a) standards of housing, transport services or public safety,
 - (b) environmental factors, including air quality and access to green space and bodies of water,
 - (c) employment prospects, earning capacity and any other matters that affect levels of prosperity,
 - (d) the degree of ease or difficulty with which persons have access to public services,
 - (e) the use, or level of use, of tobacco, alcohol or other substances, and any other matters of personal behaviour or lifestyle, that are or may be harmful to health,
- and any other matters that are determinants of life expectancy or the state of health of persons generally, other than genetic or biological factors.
- (6) In subsection (1)(a) above, the reference to improving the health of persons includes a reference to mitigating any detriment to health which would otherwise be occasioned by the exercise of a CCA’s function.
- (7) In subsection (1)(b) above, the reference to reducing health inequalities includes a reference to mitigating any increase in health inequalities which would otherwise be occasioned by the exercise of a CCA’s function.]

Textual Amendments

- F36** S. 24A inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), ss. 45(2), 108(1)(3) (with s. 102)

[^{F37}24B Co-operation with local government pension scheme managers

- (1) This section applies where a scheme manager is responsible for managing and administering part of a scheme for local government workers in England and Wales in relation to a current employee of—
- (a) a constituent council of a CCA, or
 - (b) a district council which is not a constituent council where any part of the area of the council falls within the area of a CCA,
- in connection with that employment.
- (2) The CCA must cooperate with the scheme manager to identify and develop investment opportunities appropriate to the pension fund that the scheme manager maintains for its part of the scheme.
- (3) Where the scheme manager participates in an asset pool company, the CCA may fulfil its duty to co-operate with the scheme manager under subsection (2) by co-operating with—
- (a) the scheme manager,
 - (b) the asset pool company, or
 - (c) both the scheme manager and the asset pool company.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) A scheme manager participates in an asset pool company by—
- (a) being a shareholder of the company,
 - (b) being a shareholder in another company which is the only shareholder of the company, or
 - (c) contracting with the company for it to manage the funds and other assets for which the scheme manager is responsible.

- (5) In this section—

“asset pool company” has the meaning given by section 1(9) of the Pension Schemes Act 2026;

“local government worker” has the meaning given by section 37 of the Public Service Pensions Act 2013;

“scheme” has the meaning given by section 37 of the Public Service Pensions Act 2013;

“scheme manager”, in relation to a scheme for local government workers, means a person who is a scheme manager by virtue of section 4(5) of the Public Service Pensions Act 2013 (being a person responsible for the local administration of pensions and other benefits payable under the scheme who maintains a pension fund for the purposes of providing pensions and other benefits under its part of the scheme).]

Textual Amendments

F37 S. 24B inserted (15.7.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 43\(2\), 108\(6\)](#) (with s. 102); [S.I. 2026/812](#), [reg. 2\(1\)\(a\)](#)

[^{F38}24C Powers not limited by other provision or powers

- (1) This section applies to a power under this Chapter to make subordinate legislation (the “SI-making power”) and a CCA if conditions A and B are met.
- (2) *Condition A*: the SI-making power confers power to make provision about a particular function or other matter (the “relevant function or matter”) in relation to the CCA.
- (3) *Condition B*: provision about the relevant function or matter which relates to the CCA—
 - (a) is made by an enactment (whenever passed or made) that is not subordinate legislation made under this Chapter (the “separate provision”), or
 - (b) could be made under a power conferred by an enactment that is not contained in this Chapter (the “separate power”),
 (whether or not that provision also relates to any other CCAs).
- (4) The separate provision or separate power does not limit the subordinate legislation that may be made under the SI-making power in relation to the CCA.
- (5) In particular, the separate provision or separate power does not prevent subordinate legislation under the SI-making power from—
 - (a) making provision about the relevant function or matter in relation to the CCA which is to apply instead of the separate provision;
 - (b) making modifications or other contrary provision to which the separate provision is to be subject in its application in relation to the CCA.

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (6) Subsection (4) applies to provision made under the SI-making power before or after the coming into force of this section.]

Textual Amendments

F38 S. 24C inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 7\(1\), 108\(1\)\(3\)](#) (with s. 102)

[^{F39}**24D Non-mayoral CCA: consent to budget**

- (1) A non-mayoral CCA may only exercise the following functions with the consent of each constituent council—
- (a) adopt or amend the CCA’s budget;
 - (b) where it is not part of the budget, approve the total sum of the transport levy.
- (2) In this section a reference to the “transport levy” is a reference to any levy issued by the CCA relating to the exercise of its functions relating to transport in accordance with any regulations made from time to time under section 74(2) of the Local Government Finance Act 1988.]

Textual Amendments

F39 S. 24D inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [s. 108\(1\)\(3\)](#), [Sch. 1 para. 30](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), [regs. 1\(2\), 2](#))

[^{F40}**24E Non-mayoral CCA: functions imposing financial liability**

- (1) This section applies where a non-mayoral CCA considers that the exercise of a function by the CCA may result in a financial liability being incurred by one or more constituent councils (each such council being a “relevant constituent council”).
- (2) The function may only be exercised with the consent of each relevant constituent council.
- (3) When deciding whether subsection (1) applies, the CCA must have regard to the “Code of Practice on Local Authority Accounting in the United Kingdom” published by the Chartered Institute of Public Finance and Accountancy, as amended or reissued from time to time.]

Textual Amendments

F40 S. 24E inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [s. 108\(1\)\(3\)](#), [Sch. 1 para. 31](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), [regs. 1\(2\), 2](#))

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Changes to CCAs

25 Changes to boundaries of a CCA's area

- (1) The Secretary of State may by regulations change the boundaries of a CCA's area by—
 - (a) adding a relevant local government area to an existing area of a CCA, or
 - (b) removing a relevant local government area from an existing area of a CCA.
- (2) In this section “relevant local government area” means—
 - (a) the area of a two-tier county council,
 - (b) the area of a unitary county council, or
 - (c) the area of a unitary district council.
- (3) Regulations under subsection (1)(b)—
 - (a) may transfer functions relating to the relevant local government area from the CCA to any other public authority;
 - (b) may provide for any function of the CCA relating to the area to be no longer exercisable in relation to that area.
- (4) In subsection (3)(a) “public authority” includes—
 - (a) a Minister of the Crown within the meaning of the Ministers of the Crown Act 1975,
 - (b) a government department,
 - (c) a county council, and
 - (d) a district council.
- (5) Regulations may be made under subsection (1) only if the area to be created by the regulations meets conditions A and B in section 9.
- ^{F41}(6)
- ^{F41}(7)
- ^{F41}(8)
- ^{F41}(9)
- ^{F41}(10)
- (11) Subsection (12) applies if a CCA has made provision about its constitution under regulations under section 10(1).
- (12) A decision about any change to that provision as a result of regulations under subsection (1) is to be decided at a meeting of the CCA by a simple majority of the voting members of the CCA who are present at the meeting.
- (13) A reference in this section to a voting member—
 - (a) includes a substitute member who may act in place of a voting member;
 - (b) does not include a non-constituent member.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Textual Amendments

- F41** S. 25(6)-(10) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 32](#) (with [s. 102](#)) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)

Commencement Information

- I25** [S. 25](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

[^{F42}25A Designation as an established mayoral strategic authority

- (1) The Secretary of State may, by regulations, designate a mayoral CCA as an established mayoral strategic authority.
- (2) The Secretary of State may not designate a mayoral CCA unless the mayoral CCA has submitted to the Secretary of State a written proposal to be designated (the “designation proposal”).
- (3) The designation proposal must identify—
 - (a) any provision—
 - (i) that applies in relation to the mayoral CCA,
 - (ii) that would not be of general application to the mayoral CCA if designated, and
 - (iii) which the mayoral CCA would like to continue to apply in relation to it if designated;
 - (b) any provision—
 - (i) that does not apply in relation to the mayoral CCA,
 - (ii) that would not be of general application to the mayoral CCA, if designated, and
 - (iii) which the mayoral CCA would like the Secretary of State to make (using a power conferred by this Chapter or otherwise) so as to apply in relation to it, if designated.
- (4) If the Secretary of State decides not to designate the mayoral CCA, the Secretary of State must notify the authority in writing of the reasons for the decision.
- (5) If the Secretary of State decides not to designate the mayoral CCA, that mayoral CCA may not be designated unless another written proposal to be designated is submitted in accordance with this section.
- (6) A Minister of the Crown must not exercise any power to make subordinate legislation (whenever conferred) so as to cause a mayoral CCA to cease to be an established mayoral strategic authority.
- (7) That does not limit the making of provision that is—
 - (a) in consequence of, or
 - (b) otherwise in connection with,the abolition or merger of an established mayoral strategic authority (whether the abolition or merger is provided for in secondary legislation or an Act of Parliament).

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (8) For the purposes of this section provision would be “of general application to a mayoral CCA if designated” if the provision is contained in an enactment and applies in relation to—
- (a) all established mayoral strategic authorities, or
 - (b) a class of established mayoral strategic authorities which would include the mayoral CCA if designated.]

Textual Amendments
F42 S. 25A inserted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by English Devolution and Community Empowerment Act 2026 (c. 23), ss. 8(1), 108(1)(5) (with s. 102)

26 **Dissolution of a CCA’s area**

- (1) The Secretary of State may by regulations—
- (a) dissolve a CCA’s area, and
 - (b) abolish the CCA for that area.
- (2) Regulations under subsection (1)—
- (a) may transfer functions from the CCA to any other public authority;
 - (b) may provide for any function of the CCA to be no longer exercisable in relation to the CCA’s area.
- (3) In subsection (2)(a) “public authority” includes—
- (a) a Minister of the Crown within the meaning of the Ministers of the Crown Act 1975,
 - (b) a government department,
 - (c) a county council, and
 - (d) a district council.

^{F43}(4)

Textual Amendments
F43 S. 26(4) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of English Devolution and Community Empowerment Act 2026 (c. 23), s. 108(1)(3), Sch. 1 para. 33 (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)

Commencement Information
I26 S. 26 in force at 26.12.2023, see s. 255(2)(c)

Mayors for CCA areas

27 **Power to provide for election of mayor**

- (1) The Secretary of State may by regulations provide for there to be a mayor for the area of a CCA.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) A mayor for the area of a CCA is to be elected by the local government electors for that area in accordance with provision made by or under this Chapter.
- (3) In subsection (2) “local government elector” has the meaning given by section 270(1) of the Local Government Act 1972.
- (4) Schedule 2 makes further provision about the election of mayors for areas of CCAs.
- (5) A mayor for the area of a CCA is entitled to the style of “mayor”.
- (6) A mayor for the area of a CCA is by virtue of that office a member of, and the chair of, the CCA.
- (7) Regulations under subsection (1) providing for there to be a mayor for the area of a CCA may not be revoked by making further regulations under subsection (1); but this does not prevent the making of regulations under section 26(1) abolishing the CCA (together with the office of mayor).
- (8) In this Chapter “mayoral CCA” means a CCA for an area for which provision is made in regulations under subsection (1) for there to be a mayor.

Commencement Information

I27 S. 27 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

[^{F44}28 Requirements in connection with regulations under section 27

- (1) The Secretary of State may make regulations under section 27(1) for there to be a mayor for the area of an existing CCA only if the requirements under subsection (2), (3) or (4) are met (and for any further requirements in relation to such regulations see section 48 (requirements in connection with changes to existing CCA)).
- (2) The requirement under this subsection is that a proposal for there to be a mayor for the CCA's area has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).
- (3) The requirements under this subsection are that—
 - (a) the regulations do not confer any additional functions on the CCA, and
 - (b) the regulations have been consented to in writing by each constituent council and the CCA.
- (4) The requirements under this subsection are that the regulations implement a proposal that the Secretary of State is satisfied that the constituent councils and the CCA have consented to in principle.]

Textual Amendments

F44 S. 28 substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [s. 108\(1\)\(3\)](#), [Sch. 1 para. 34](#) (with [s. 102](#)) (with saving and transitional provision in [S.I. 2026/482](#), [regs. 1\(2\), 2](#))

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

29 Deputy mayors etc

- (1) The mayor for the area of a CCA must appoint one of the members of the authority to be the mayor's deputy.
- (2) The deputy mayor holds office until the end of the term of office of the mayor, subject to subsection (3).
- (3) A person ceases to be the deputy mayor if at any time—
 - (a) the mayor removes the person from office,
 - (b) the person resigns as deputy mayor, or
 - (c) the person ceases to be a member of the CCA.
- (4) If a vacancy occurs in the office of deputy mayor, the mayor must appoint another member of the CCA to be deputy mayor.
- (5) The deputy mayor must act in place of the mayor if for any reason—
 - (a) the mayor is unable to act, or
 - (b) the office of mayor is vacant.
- (6) If for any reason—
 - (a) the mayor is unable to act or the office of mayor is vacant, and
 - (b) the deputy mayor is unable to act or the office of deputy mayor is vacant,
 the other members of the CCA must act together in place of the mayor, taking decisions by a simple majority.
- (7) In this Chapter “deputy mayor”, in relation to a mayoral CCA, means the person appointed under this section by the mayor for the authority's area.
- (8) References in this section to a member of a CCA do not include a non-constituent or associate member.

Commencement Information

I28 S. 29 in force at 26.12.2023, see s. 255(2)(c)

[^{F45}29A Appointment of commissioners by the mayor

- (1) The mayor for the area of a CCA may appoint not more than 10 persons—
 - (a) to assist the mayor in the exercise of the mayor's general functions in relation to the areas of competence, and
 - (b) to otherwise assist the mayor in relation to the exercise by the CCA of functions which relate to the areas of competence.
- (2) A person appointed under this section is referred to in this Chapter as a “commissioner”.
- (3) Schedule 2A makes provision about commissioners.
- (4) In this section and Schedule 2A “area of competence” has the meaning given by section 2 of the English Devolution and Community Empowerment Act 2026.]

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Textual Amendments

F45 S. 29A inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), ss. 9(1), 108(1)(3) (with s. 102)

30 Functions of mayors: general

- (1) The Secretary of State may by regulations make provision for any function of a mayoral CCA to be a function exercisable only by the mayor.
- [^{F46}(1A) Any mayoral function is to be taken to be a function of the CCA that is exercisable only by the mayor acting on behalf of the CCA.
- (1B) The members and officers of a mayoral CCA may assist the mayor in the exercise of any mayoral function (and here “members” means the members of the constituent councils who are appointed to be members of the CCA).
- (1C) For the purposes of this section a “mayoral function” is—
- (a) a function which is conferred by an enactment on the mayor for the area of the CCA, or
 - (b) a function which is conferred on the CCA by an enactment if an enactment provides for the function to be exercisable only by the mayor for the area of the CCA.]
- (2) In this Chapter references to “general functions”, in relation to a mayor for the area of a CCA, are to any functions exercisable by the mayor [^{F47}(whether by virtue of regulations under subsection (1) or otherwise)] other than PCC functions (see section 33(3)).
- (3) The mayor may arrange—
- (a) for the deputy mayor to exercise any general function of the mayor,
 - (b) for another member or officer of the CCA to exercise any such function,
 - [^{F48}(ba) for a commissioner appointed under section 29A to exercise any such function, or]
 - (c) so far as authorised by regulations made by the Secretary of State—
 - (i) for a person appointed as the deputy mayor for policing and crime by virtue of regulations under paragraph 3(1) of Schedule 3, or
 - (ii) for a committee of the CCA, consisting of members appointed by the mayor (whether or not members of the CCA),to exercise any such function.
- [^{F49}(3A) Subsection (3) is subject to section 30A.]
- (4) The reference in subsection (3)(b) to a member of a CCA does not include a non-constituent or associate member.
- (5) Regulations under subsection (3)(c)(ii) may include provision—
- (a) about the membership of the committee;
 - (b) about the member of the committee who is to be its chair;
 - (c) about the appointment of members;
 - (d) about the voting powers of members (including provision for different weight to be given to the vote of different descriptions of member);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (e) about information held by the CCA that must, or must not, be disclosed to the committee for purposes connected to the exercise of the committee's functions;
 - (f) applying (with or without modifications) sections 15 to 17 of, and Schedule 1 to, the Local Government and Housing Act 1989 (political balance on local authority committees etc).
- (6) Regulations under subsection (3)(c) must provide that the committee must not consist solely of non-constituent or associate members.
- (7) Provision in regulations under subsection (1) for a function to be exercisable only by the mayor is subject to subsection (3); but the Secretary of State may by regulations provide that arrangements under subsection (3)—
 - (a) may authorise the exercise of general functions only of a description specified in the regulations, or
 - (b) may not authorise the exercise of general functions of a description so specified.
- (8) Any general function exercisable by the mayor for the area of a CCA [^{F50}(whether by virtue of this Act or otherwise)] is to be taken to be a function of the CCA exercisable—
 - (a) by the mayor individually, or
 - (b) in accordance with arrangements made by virtue of this section or section 32 or 34.
- (9) Regulations under this section may—
 - (a) include provision for general functions to be exercisable by the mayor subject to conditions or limitations specified in the regulations (including, for example, a condition for general functions to be exercisable only with the consent of the appropriate authorities (as defined by section 28(4)));
 - (b) provide for members or officers of a mayoral CCA to assist the mayor in the exercise of general functions;
 - (c) confer ancillary powers on the mayor for the purposes of the exercise of general functions;
 - (d) authorise the mayor to appoint one person as the mayor's political adviser;
 - (e) provide for the terms and conditions of any such appointment;
 - (f) provide that functions that the mayoral CCA discharges in accordance with arrangements under section 101(1)(b) of the Local Government Act 1972 (discharge of local authority functions by another authority) are to be treated as general functions exercisable by the mayor (so far as authorised by the arrangements).
- (10) Provision under subsection (9)(c) may include provision conferring power on the mayor that is similar to any power exercisable by the mayoral CCA—
 - (a) under section 49 (general power of CCA), or
 - (b) under regulations made under section 52(1) (general power of competence),
 but the power conferred on the mayor may not include a power to borrow money.
- [^{F51}(11) Regulations under this section may be made in relation to an existing CCA only with the consent of—
 - (a) the constituent councils and the CCA, and
 - (b) in the case of regulations made in relation to a mayoral CCA, the mayor of the CCA.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(11A) The “appropriate authorities” for the purposes of this section—

- (a) in relation to a mayoral CCA means—
 - (i) the constituent councils, and
 - (ii) the mayor;
- (b) in relation to a non-mayoral CCA means—
 - (i) the constituent councils, and
 - (ii) the CCA.]

[^{F52}(12A) The requirement in subsection (11) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).]

(13) The requirement in subsection (11) does not apply where the regulations are made under section 19(1) and subsection (1) of this section in relation to an existing mayoral CCA and provide for a function—

- (a) to be a function of the CCA, and
- (b) to be a function exercisable only by the mayor.

See section 31 in relation to regulations of this kind.

Textual Amendments

- F46** S. 30(1A)-(1C) inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 18(1)**, 108(1)(3) (with s. 102)
- F47** Words in s. 30(2) inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 19(2)**, 108(1)(3) (with s. 102)
- F48** S. 30(3)(ba) inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 9(2)**, 108(1)(3) (with s. 102)
- F49** S. 30(3A) inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), s. 108(5), **Sch. 25 para. 10(2)** (with s. 102)
- F50** Words in s. 30(8) substituted (29.4.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 19(3)**, 108(1)(3) (with s. 102)
- F51** S. 30(11)(11A) substituted for s. 30(11) (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), s. 108(1)(3), **Sch. 1 para. 35(a)** (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)
- F52** S. 30(12A) substituted for s. 30(12) (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), s. 108(1)(3), **Sch. 1 para. 35(b)** (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)

Commencement Information

- I29** S. 30 in force at 26.12.2023, see **s. 255(2)(c)**

[^{F53}30A Limitation on delegation of mayoral functions

- (1) The mayor may not make an arrangement under section 30(3)(a) or (b) for the exercise of any fire and rescue functions of the CCA.
- (2) The power to make an arrangement under section 30(3)(ba) is subject to paragraph 6 of Schedule 2A.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(3) In this section “fire and rescue functions of the CCA” means—

- (a) functions of a fire and rescue authority which the CCA has by virtue of regulations under section 19 (and here “fire and rescue authority” means a fire and rescue authority under the Fire and Rescue Services Act 2004), or
- (b) functions which the CCA has as a fire and rescue authority by virtue of section 1(2)(f) or (g) of the Fire and Rescue Services Act 2004.]

Textual Amendments

F53 S. 30A inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(5), [Sch. 25 para. 10\(3\)](#) (with s. 102)

31 Procedure for direct conferral of general functions on mayor

- (1) This section applies in relation to regulations which are made under sections 19(1) and 30(1) in relation to an existing mayoral CCA and provide for a function—
 - (a) to be a function of the CCA, and
 - (b) to be a function exercisable only by the mayor.
- (2) The Secretary of State may make the regulations only if a request for the making of the regulations has been made to the Secretary of State by the mayor.
- (3) Before submitting a request under this section, the mayor must consult the constituent councils.
- (4) A request under this section must contain—
 - (a) a statement by the mayor that all of the constituent councils agree to the making of the regulations, or
 - (b) if the mayor is unable to make that statement, the reasons why the mayor considers the regulations should be made even though not all of the constituent councils agree to them being made.

Commencement Information

I30 S. 31 in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

32 Joint exercise of general functions

- (1) The Secretary of State may by regulations make provision for, or in connection with, permitting arrangements under section 101(5) of the Local Government Act 1972 to be entered into in relation to general functions of a mayor for the area of a CCA.
- (2) Provision under subsection (1) may include provision—
 - (a) for the mayor for the area of a CCA to be a party to the arrangements in place of, or jointly with, the CCA;
 - (b) about the membership of any joint committee;
 - (c) about the member of the joint committee who is to be its chair;
 - (d) about the appointment of members to a joint committee;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (e) about the voting powers of members of a joint committee (including provision for different weight to be given to the vote of different descriptions of member).
- (3) Provision under subsection (2)(b) to (d) may include provision for the mayor or other persons—
 - (a) to determine the number of members;
 - (b) to have the power to appoint members (whether or not members of the CCA or a local authority that is a party to the arrangements).
- (4) Provision under subsection (2)(d) may include provision as to the circumstances in which appointments to a joint committee need not be made in accordance with sections 15 to 17 of, and Schedule 1 to, the Local Government and Housing Act 1989 (political balance on local authority committees etc).
- (5) In this section references to a joint committee are to a joint committee falling within section 101(5)(a) of the Local Government Act 1972 that is authorised to discharge, by virtue of regulations under this section, general functions of a mayor for the area of a CCA.

Commencement Information

I31 [S. 32](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

^{F54}Mayoral CCAs: local growth plans

Textual Amendments

F54 [Ss. 32A, 32B](#) and cross-heading inserted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [s. 108\(1\)\(5\)](#), [Sch. 22 para. 1\(3\)](#) (with [s. 102](#))

32A Local growth plans

- (1) A mayoral CCA must prepare and publish a local growth plan for its area.
- (2) A local growth plan must—
 - (a) include an overview of the economic conditions of the area (including the main economic characteristics which are likely to influence current and future economic growth),
 - (b) identify priorities for the economic growth of the area that are agreed with the Secretary of State (“shared local growth priorities”), and
 - (c) identify key projects for achieving economic growth in the area through private or public investment.
- (3) A mayoral CCA may revise or replace a local growth plan published under this section.
- (4) The CCA must arrange for any local growth plan that is revised or replaced to be published.
- (5) The requirement under subsection (1) may be met by the publication of a local growth plan before this section comes into force.

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

32B Secretary of State guidance on local growth plans

- (1) The Secretary of State may issue guidance to mayoral CCAs in relation to local growth plans under section 32A.
- (2) A mayoral CCA must have regard to any such guidance in exercising their functions.
- (3) The guidance may include (but is not limited to) guidance about—
 - (a) who the CCA might consult when preparing or revising the plan;
 - (b) information to be included in the plan under section 32A(2) or the plan as revised;
 - (c) the process for agreeing priorities for the economic growth of the area with the Secretary of State for the purposes of section 32A(2)(b);
 - (d) the circumstances in which the CCA may revise or replace the plan;
 - (e) the ways in which the CCA may have regard to the plan when exercising its other functions.]

[^{F55}32C Public authorities: duty to have regard to shared local growth priorities

- (1) A relevant public authority must have regard to a shared local growth priority of a mayoral CCA when—
 - (a) exercising, at the request of the CCA, a function which could reasonably be expected to have an effect on that priority;
 - (b) preparing a bid for public funding for an activity the objectives of which align with that priority;
 - (c) preparing a statutory plan or strategy which relates to the priority.
- (2) Where a relevant public authority carries out activities in England and anywhere else in the United Kingdom, the duty under subsection (1) only applies in relation to activities that the authority carries out in England.
- (3) A “relevant public authority” means a public authority specified in regulations made by the Secretary of State.
- (4) In this section—

“enactment” includes an enactment comprised in subordinate legislation within the meaning of the Interpretation Act 1978;

“Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975;

“public authority” means any public authority other than—

 - (a) the Welsh Ministers;
 - (b) a devolved Welsh authority within the meaning of section 157A of the Government of Wales Act 2006;

“public funding” means funding from a Minister of the Crown or government department;

“shared local growth priorities” has the meaning given by section 32A(2)(b);

“statutory plan or strategy” means a plan or strategy that a public authority is required by an enactment to issue or publish.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (5) References in this section to an enactment or to provision made under an enactment are to an enactment whenever passed or (as the case may be) to provision whenever the instrument containing it is made.]

Textual Amendments

F55 S. 32C inserted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(5), [Sch. 22 para. 1\(4\)](#) (with s. 102)

Police and crime and fire and rescue functions

33 Functions of mayors: policing

- (1) The Secretary of State may by regulations provide for the mayor for the area of a CCA to exercise functions of a police and crime commissioner in relation to that area.
- [^{F56}(1A) The mayor for the area of a CCA is to exercise functions of a police and crime commissioner in relation to that area if the CCA meets the eligibility condition and transfer condition in relation to that area (see section 33A).]
- (2) [^{F57}A reference in this section] to functions of a police and crime commissioner is to any functions conferred on police and crime commissioners by or under—
- (a) Part 1 of the Police Reform and Social Responsibility Act 2011, or
 - (b) any other Act (whenever passed).
- (3) In this Chapter references to “PCC functions”, in relation to a mayor for the area of a CCA, are to the functions of a police and crime commissioner that are exercisable by the mayor by virtue of [^{F58}this section].
- (4) Regulations under subsection (1) may be made in relation to an existing mayoral CCA only with the consent of the mayor of the CCA.
- [^{F59}(4A) For provision about the exercise of functions of a police and crime commissioner by the mayor for the area of a CCA by virtue of subsection (1A), see Schedule 10A to the Police Reform and Social Responsibility Act 2011.]
- (5) If regulations are made under subsection (1) in relation to a CCA’s area—
- (a) the Secretary of State must by regulations provide that there is to be no police and crime commissioner for that area as from a specified date;
 - (b) the Secretary of State may by regulations provide that any election of a police and crime commissioner for that area that would otherwise take place (whether before or after the specified date) by virtue of section 50(1)(b) of the Police Reform and Social Responsibility Act 2011 is not to take place.
- (6) Regulations under subsection (5) may include provision—
- (a) for the term of office of a police and crime commissioner to continue until the date specified in regulations under subsection (5)(a) (in spite of section 50(7)(b) of the Police Reform and Social Responsibility Act 2011);
 - (b) for an election to fill a vacancy in the office of a police and crime commissioner, which otherwise would take place under section 51 of that Act,

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

not to take place if the vacancy occurs within a period of six months ending with the specified date.

- (7) Schedule 3 contains further provision in connection with regulations under this section.
- (8) Any PCC function exercisable by the mayor for the area of a CCA by virtue of this Act is to be taken to be a function of the CCA exercisable—
- (a) by the mayor acting individually, or
 - (b) by a person acting under arrangements with the mayor made in accordance with provision made under Schedule 3 [^{F60}to this Act or Schedule 10A to the Police Reform and Social Responsibility Act 2011].

Textual Amendments

- F56** S. 33(1A) inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), [ss. 46\(4\)\(a\)](#), 108(5) (with s. 102)
- F57** Words in s. 33(2) substituted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), [ss. 46\(4\)\(b\)](#), 108(5) (with s. 102)
- F58** Words in s. 33(3) substituted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), [ss. 46\(4\)\(c\)](#), 108(5) (with s. 102)
- F59** S. 33(4A) inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), [ss. 46\(4\)\(d\)](#), 108(5) (with s. 102)
- F60** Words in s. 33(8)(b) inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), [ss. 46\(4\)\(e\)](#), 108(5) (with s. 102)

Commencement Information

- I32** S. 33 in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

[^{F61}33A The “eligibility” and “transfer” conditions

- (1) This section sets out the “eligibility condition” and “transfer condition” referred to in section 33(1A).
- (2) A CCA meets the eligibility condition in case A or case B.
- (3) *Case A:* the CCA’s area is the same as a single English police area.

In this case, the CCA meets the eligibility condition in relation to the single police area.

- (4) *Case B:* the CCA’s area is the same as two or more English police areas (when those areas are taken together).

In this case, the CCA meets the eligibility condition in relation to each of those police areas.

- (5) A CCA meets the transfer condition in relation to an English police area if—
- (a) the Secretary of State has, by order, specified the time at which the mayor for the area of the CCA is to begin exercising functions of a police and crime commissioner (the “transfer time”), and
 - (b) the transfer time has passed.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (6) If a CCA meets the eligibility condition in relation to two or more English police areas, the Secretary of State may only exercise the power conferred by subsection (5)(a) so as to specify the same transfer time in relation to all of those police areas.
- (7) In this section “English police area” means a police area listed in Schedule 1 to the Police Act 1996 (police areas outside London) that is in England.]

Textual Amendments

F61 S. 33A inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), ss. 46(5), 108(5) (with s. 102)

34 Exercise of fire and rescue functions

- [^{F62}(1) This section applies to a mayor for the area of a CCA who—
- (a) by virtue of—
 - (i) section 30(1), or
 - (ii) section 1(2B) of the Fire and Rescue Services Act 2004,may exercise functions which are conferred on a fire and rescue authority in that name (“fire and rescue functions”), and
 - (b) by virtue of—
 - (i) section 33(1), or
 - (ii) section 33(1A),may exercise functions of a police and crime commissioner.]
- (2) The Secretary of State may by regulations make provision—
- (a) authorising the mayor to arrange for the chief constable of the police force for the police area which corresponds to the area of the CCA to exercise fire and rescue functions exercisable by the mayor;
 - (b) authorising that chief constable to arrange for a person within subsection (4) to exercise the chief constable’s fire and rescue functions.
- (3) Regulations under subsection (2) may provide that arrangements made under the regulations—
- (a) may authorise the exercise of any functions mentioned in that subsection;
 - (b) may authorise the exercise of any functions mentioned in that subsection other than those specified or described in the regulations;
 - (c) may authorise the exercise of such of the functions mentioned in that subsection as are specified or described in the regulations.
- (4) The persons mentioned in subsection (2)(b) are—
- (a) members of the chief constable’s police force;
 - (b) the civilian staff of that police force, as defined by section 102(4) of the Police Reform and Social Responsibility Act 2011;
 - (c) members of staff transferred to the chief constable under a scheme made by virtue of section 36(1);
 - (d) members of staff appointed by the chief constable under section 36(2).

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (5) Provision in regulations under section 30(1) [^{F63}, or in section 1(2B) of the Fire and Rescue Services Act 2004,] for a function to be exercisable only by the mayor for the area of a CCA is subject to provision made by virtue of subsection (2).
- (6) This section is subject to—
- (a) section 35 (section 34 regulations: procedure), and
 - (b) section 37 of the Fire and Rescue Services Act 2004 (prohibition on employment of police in fire-fighting).
- (7) In this section “fire and rescue functions”, in relation to a chief constable, means—
- (a) functions which are exercisable by the chief constable by virtue of provision made under subsection (2)(a), and
 - (b) functions relating to fire and rescue services which are conferred on the chief constable by or by virtue of any enactment.

Textual Amendments

- F62** S. 34(1) substituted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 49(2)(a), 108(5)** (with s. 102)
- F63** Words in s. 34(5) inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 49(2)(b), 108(5)** (with s. 102)

Commencement Information

- I33** S. 34 in force at 26.12.2023, see **s. 255(2)(c)**

35 Section 34 regulations: procedure

- (1) Regulations under section 34(2) may be made in relation to the mayor for the area of a CCA only if the mayor has requested the Secretary of State to make the regulations.
- (2) A request under subsection (1) must be accompanied by a report which contains—
- (a) an assessment of why—
 - (i) it is in the interests of economy, efficiency and effectiveness for the regulations to be made, or
 - (ii) it is in the interests of public safety for the regulations to be made,
 - (b) a description of any public consultation which the mayor has carried out on the proposal for the regulations to be made,
 - (c) a summary of the responses to any such consultation, and
 - (d) a summary of the representations (if any) which the mayor has received about that proposal from the constituent members of the CCA.
- (3) Before making the request the mayor must publish, in such manner as the mayor thinks appropriate, the mayor’s response to the representations made or views expressed in response to any consultations on the proposal.
- (4) Subsections (5) to (7) apply if—
- (a) the mayor for the area of a CCA makes a request under subsection (1) for the Secretary of State to make regulations under section 34(2), and
 - (b) at least two thirds of the constituent members of the CCA have indicated that they disagree with the proposal for the regulations to be made.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (5) The mayor must, in providing the report under subsection (2), provide the Secretary of State with—
 - (a) copies of the representations (if any) made by the constituent members of the CCA about that proposal, and
 - (b) the mayor’s response to those representations and to the responses to any public consultation which the mayor has carried out on that proposal.
- (6) The Secretary of State must—
 - (a) obtain an independent assessment of that proposal, and
 - (b) in deciding whether to make the regulations, have regard to that assessment and to the material provided under subsection (5) (as well as the material provided under subsection (2)).
- (7) The Secretary of State must publish the independent assessment—
 - (a) as soon as is reasonably practicable after making a determination in response to the proposal, and
 - (b) in such manner as the Secretary of State thinks appropriate.
- (8) Regulations under section 34(2) may be made only if it appears to the Secretary of State that—
 - (a) it is in the interests of economy, efficiency and effectiveness for the regulations to be made, or
 - (b) it is in the interests of public safety for the regulations to be made.
- (9) The Secretary of State may not make regulations under section 34(2) in a case within subsection (8)(a) of this section if the Secretary of State thinks that the regulations would have an adverse effect on public safety.
- (10) The Secretary of State may, in making regulations under section 34(2) in relation to the mayor for the area of a CCA, give effect to the mayor’s proposal for the regulations with such modifications as the Secretary of State thinks appropriate.
- (11) Before making regulations which give effect to such a proposal with modifications, the Secretary of State must consult the mayor and the CCA on the modifications.
- (12) In this section “constituent member”, in relation to a CCA, means a member of the CCA appointed by a constituent council (but does not include the mayor for the area of the CCA).

Commencement Information

I34 S. 35 in force at 26.12.2023, see s. 255(2)(c)

36 Section 34 regulations: further provision

- (1) Regulations under section 34(2) may make provision for the making of a scheme to transfer property, rights and liabilities (including criminal liabilities)—
 - (a) from a fire and rescue authority or the CCA to the chief constable, or
 - (b) from the chief constable to the CCA,(including provision corresponding to any provision made by section 17(4) to (6) of the Localism Act 2011).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) A chief constable to whom regulations under section 34(2) apply may appoint staff for the purpose of the exercise of the chief constable’s fire and rescue functions.
- (3) A chief constable to whom regulations under section 34(2) apply may—
 - (a) pay remuneration, allowances and gratuities to members of the chief constable’s fire and rescue staff;
 - (b) pay pensions to, or in respect of, persons who are or have been such members of staff;
 - (c) pay amounts for or towards the provision of pensions to, or in respect of, persons who are or have been such members of staff.
- (4) In subsection (3) “allowances”, in relation to a member of staff, means allowances in respect of expenses incurred by the member of staff in the course of employment as such a member of staff.
- (5) Subject to subsections (6) to (8), a person who is employed pursuant to a transfer by virtue of subsection (1) or an appointment under subsection (2) may not at the same time be employed pursuant to an appointment by a chief constable of the police force for a police area under Schedule 2 to the Police Reform and Social Responsibility Act 2011.
- (6) Where regulations under section 34(2) are in force in relation to the chief constable of the police force for a police area, the person who is for the time being the police force’s chief finance officer is to be responsible for the proper administration of financial affairs relating to the exercise of the chief constable’s fire and rescue functions.
- (7) Subsection (5) does not prevent a person who is employed as a finance officer for fire functions from being at the same time employed as a finance officer for police functions.
- (8) In subsection (7)—
 - “finance officer for fire functions” means a member of a chief constable’s fire and rescue staff who—
 - (a) is not a chief finance officer of the kind mentioned in subsection (6), and
 - (b) is employed to carry out duties relating to the proper administration of financial affairs relating to the exercise of the chief constable’s fire and rescue functions;
 - “finance officer for police functions” means a member of a chief constable’s civilian staff within the meaning of the Police Reform and Social Responsibility Act 2011 who—
 - (a) is not a chief finance officer of the kind mentioned in subsection (6), and
 - (b) is employed to carry out duties relating to the proper administration of a police force’s financial affairs.
- (9) Where regulations under section 34(2) are in force, the CCA to which the regulations apply must pay—
 - (a) any damages or costs awarded against the chief constable to whom the regulations apply in any proceedings brought against the chief constable in respect of the acts or omissions of a member of the chief constable’s fire and rescue staff;
 - (b) any costs incurred by the chief constable in any such proceedings so far as not recovered by the chief constable in the proceedings;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) any sum required in connection with the settlement of any claim made against the chief constable in respect of the acts or omissions of a member of the chief constable's fire and rescue staff, if the settlement is approved by the CCA.
- (10) Where regulations under section 34(2) are in force, the CCA to which the regulations apply may, in such cases and to such extent as appears to the CCA to be appropriate, pay—
 - (a) any damages or costs awarded against a member of the fire and rescue staff of the chief constable to whom the regulations apply in proceedings for any unlawful conduct of that member of staff;
 - (b) costs incurred and not recovered by such a member of staff in such proceedings;
 - (c) sums required in connection with the settlement of a claim that has or might have given rise to such proceedings.
- (11) In this section—
 - “fire and rescue functions” has the same meaning as in section 34;
 - “fire and rescue staff”, in relation to a chief constable to whom regulations under section 34(2) apply, means—
 - (a) staff transferred to the chief constable under a scheme made by virtue of subsection (1);
 - (b) staff appointed by the chief constable under subsection (2).

Commencement Information

I35 [S. 36](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

37 Section 34 regulations: exercise of fire and rescue functions

- (1) This section applies if—
 - (a) regulations under section 34(2) make provision in relation to the area of a CCA, and
 - (b) by virtue of the regulations, fire and rescue functions exercisable by the mayor for the area of the CCA are exercisable by the chief constable of the police force for the police area which corresponds to that area.
- (2) The chief constable must secure that good value for money is obtained in exercising—
 - (a) functions which are exercisable by the chief constable by virtue of the regulations, and
 - (b) functions relating to fire and rescue services which are conferred on the chief constable by or by virtue of any enactment.
- (3) The chief constable must secure that other persons exercising functions by virtue of the regulations obtain good value for money in exercising those functions.
- (4) The mayor must—
 - (a) secure the exercise of the duties which are exercisable by the chief constable or another person by virtue of the regulations,
 - (b) secure the exercise of the duties relating to fire and rescue services which are imposed on the chief constable by or by virtue of any enactment,

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (c) secure that functions which are exercisable by the chief constable or another person by virtue of the regulations are exercised efficiently and effectively, and
 - (d) secure that functions relating to fire and rescue services which are conferred or imposed on the chief constable by or by virtue of any enactment are exercised efficiently and effectively.
- (5) The mayor must hold the chief constable to account for the exercise of such functions.

Commencement Information

I36 [S. 37](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

38 Section 34 regulations: complaints and conduct matters etc

- (1) If regulations are made under section 34(2) that enable arrangements to be made for the exercise of functions by members of a police force or the civilian staff of a police force, the Secretary of State may by regulations amend Part 2 of the Police Reform Act 2002 (persons serving with the police: complaints and conduct matters etc) in consequence of that provision.
- (2) If regulations are made under section 34(2) that enable arrangements to be made for the exercise of functions by members of staff transferred to a chief constable under a scheme made by virtue of section 36(1) or appointed by a chief constable under section 36(2), the Secretary of State may by regulations make provision of the type described in subsection (3) in relation to those members of staff.
- (3) The provision referred to in subsection (2) is—
 - (a) provision corresponding or similar to any provision made by or under Part 2 of the Police Reform Act 2002;
 - (b) provision applying (with or without modifications) any provision made by or under Part 2 of that Act.
- (4) The Secretary of State may by regulations, in consequence of any provision made under subsection (2), amend Part 2 of the Police Reform Act 2002.
- (5) Before making regulations under this section the Secretary of State must consult—
 - (a) the Police Advisory Board for England and Wales,
 - (b) the Director General of the Independent Office for Police Conduct,
 - (c) such persons as appear to the Secretary of State to represent the views of police and crime commissioners,
 - (d) such persons as appear to the Secretary of State to represent the views of fire and rescue authorities, and
 - (e) such other persons as the Secretary of State considers appropriate.

Commencement Information

I37 [S. 38](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

39 Section 34 regulations: application of fire and rescue provisions

- (1) The Secretary of State may by regulations—
- (a) apply (with or without modifications) any provision of a fire and rescue enactment in relation to a person within subsection (2);
 - (b) make, in relation to a person within subsection (2), provision corresponding or similar to any provision of a fire and rescue enactment.
- (2) Those persons are—
- (a) a chief constable of a police force for a police area to whom regulations under section 34(2) apply,
 - (b) a member of staff transferred to such a chief constable under a scheme made by virtue of section 36(1),
 - (c) a member of staff appointed by such a chief constable under section 36(2),
 - (d) a member of such a chief constable's police force by whom functions are exercisable by virtue of section 34(2)(b), and
 - (e) a member of the civilian staff of such a police force (as defined by section 102(4) of the Police Reform and Social Responsibility Act 2011) by whom functions are exercisable by virtue of section 34(2)(b).
- (3) The power conferred by subsection (1)(a) or (b) includes power to apply (with or without modifications) any provision made under a fire and rescue enactment or make provision corresponding or similar to any such provision.
- (4) The Secretary of State may by regulations amend, revoke or repeal a provision of or made under an enactment in consequence of provision made by virtue of subsection (1).
- (5) In this section “fire and rescue enactment” means an enactment relating to a fire and rescue authority (including, in particular, an enactment relating to an employee of such an authority or property of such an authority).
- (6) References in this section to an enactment or to provision made under an enactment are to an enactment whenever passed or (as the case may be) to provision whenever the instrument containing it is made.

Commencement Information

I38 S. 39 in force at 26.12.2023, see s. 255(2)(c)

40 Section 34 regulations: application of local policing provisions

- (1) The Secretary of State may by regulations—
- (a) apply (with or without modifications) any provision of a local policing enactment in relation to a person within subsection (2);
 - (b) make, in relation to such a person, provision corresponding or similar to any provision of a local policing enactment.
- (2) Those persons are—
- (a) a mayor for the area of a CCA to whom regulations under section 34(2) apply,
 - (b) a chief constable to whom such regulations apply, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) a panel established by virtue of regulations under paragraph 4 of Schedule 3 for such an area.
- (3) The power conferred by subsection (1)(a) or (b) includes power to apply (with or without modifications) any provision made under a local policing enactment or make provision corresponding or similar to any such provision.
- (4) The Secretary of State may by regulations amend, revoke or repeal a provision of or made under an enactment in consequence of provision made by virtue of subsection (1).
- (5) In this section “local policing enactment” means an enactment relating to a police and crime commissioner.
- (6) References in this section to an enactment or to provision made under an enactment are to an enactment whenever passed or (as the case may be) to provision whenever the instrument containing it is made.

Commencement Information

I39 S. 40 in force at 26.12.2023, see s. 255(2)(c)

Financial matters relating to mayors

41 Mayors for CCA areas: financial matters

- (1) The Secretary of State may by regulations make provision for the costs of a mayor for the area of a CCA that are incurred in, or in connection with, the exercise of mayoral functions to be met from precepts issued by the CCA under section 40 of the Local Government Finance Act 1992.
- (2) The function of issuing precepts under Chapter 4 of Part 1 of the Local Government Finance Act 1992 in respect of mayoral functions is to be a function exercisable only by the mayor acting on behalf of the CCA.
- (3) The Secretary of State may by regulations modify the application of Chapter 4 or 4ZA of Part 1 of the Local Government Finance Act 1992 so far as applying to cases where the precepting authority in question under that Chapter is a mayoral CCA.
- (4) Where the mayoral functions of a mayor include PCC functions—
 - (a) the provision made by virtue of subsection (3) must include provision to ensure that the council tax requirement calculated under section 42A of the Local Government Finance Act 1992 consists of separate components in respect of the mayor’s PCC functions and the mayor’s general functions, and
 - (b) the function of calculating the component in respect of the mayor’s PCC functions is itself to be treated as a PCC function for the purposes of this Part.
- [^{F64}(4A) Where the mayoral functions of a mayor include PCC functions in relation to more than one police area, the provision made in accordance with subsection (4)(a) which ensures that there is a separate component in respect of the mayor’s PCC functions must include separate components in respect of the mayor’s PCC functions in relation to the different police areas.]
- (5) The Secretary of State may by regulations make provision—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) requiring the mayor to maintain a fund in relation to receipts arising, and liabilities incurred, in the exercise of general functions;
- (b) about the preparation of an annual budget in relation to the exercise of general functions.

(For power to make corresponding provision in relation to PCC functions, see paragraph 7 of Schedule 3.)

- (6) Provision under subsection (5)(b) may in particular include provision for—
 - (a) the mayor to prepare a draft budget;
 - (b) the draft to be scrutinised by—
 - (i) the other members of the CCA, and
 - (ii) a committee of the CCA appointed in accordance with paragraph 1(1) of Schedule 1;
 - (c) the making of changes to the draft as a result of such scrutiny;
 - (d) the approval of the draft by the CCA (including a power to veto the draft in circumstances specified in the regulations and the consequences of any such veto);
 - (e) the basis on which such approval is to be given.
- (7) The reference in subsection (6)(b)(i) to a member of a CCA does not include a non-constituent or associate member.
- (8) In this section “mayoral functions”, in relation to a mayor, means—
 - (a) the mayor’s general functions, and
 - (b) if the mayor exercises PCC functions, the mayor’s PCC functions.

Textual Amendments

F64 S. 41(4A) inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), [ss. 46\(6\), 108\(5\)](#) (with s. 102)

Commencement Information

I40 S. 41 in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

Alternative mayoral titles

42 Alternative mayoral titles

- (1) At the first meeting of a mayoral CCA after regulations made under section 27(1) come into force, the CCA must, by a resolution in accordance with subsection (3)—
 - (a) provide that the mayor for the area of the CCA is to be known by the title of mayor, or
 - (b) change the title by which the mayor for the area of the CCA is to be known to an alternative title mentioned in subsection (2).
- (2) The alternative titles are—
 - (a) county commissioner;
 - (b) county governor;
 - (c) elected leader;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (d) governor;
 - (e) a title that the CCA considers more appropriate than the alternative titles mentioned in paragraphs (a) to (d), having regard to the title of other public office holders in the area of the CCA.
- (3) The following requirements must be met in relation to the resolution mentioned in subsection (1)—
- (a) particulars of the resolution must be included in the notice of the meeting,
 - (b) where the resolution includes a proposed alternative title mentioned in subsection (2)(e), the resolution must specify why the CCA considers that the title is more appropriate than the other alternative titles mentioned in subsection (2), and
 - (c) the resolution must be passed at the meeting by a simple majority of the members of the CCA who vote on it.
- (4) Subsections (5) and (6) apply where under this section a mayoral CCA changes the title by which the mayor for the area of the CCA is to be known to an alternative title.
- (5) The CCA must—
- (a) send notice of the change to the Secretary of State,
 - (b) publish the notice in the area of the CCA in such manner as the CCA considers appropriate, and
 - (c) publish the notice in such other manner as the Secretary of State may direct.
- (6) Where this subsection applies—
- (a) a reference in any enactment (whenever passed or made) to the mayor for the area of the CCA is, unless the context otherwise requires, to be read as a reference to the alternative title by which the mayor is to be known, and
 - (b) references to mayor, mayoral (except in the expression “mayoral CCA”) and deputy mayor are to be construed accordingly.
- (7) A change of title under this section does not affect the rights or obligations of any person or render defective any legal proceedings; and any legal proceedings may be commenced or continued as if there had been no change of title.
- (8) In this section a reference to a member of a CCA does not include a non-constituent member.
- (9) In this section “enactment”—
- (a) includes an enactment comprised in subordinate legislation within the meaning of the Interpretation Act 1978, but
 - (b) does not include this section or section 43.

Commencement Information

I41 S. 42 in force at 26.12.2023, see s. 255(2)(c)

43 Alternative mayoral titles: further changes

- (1) This section applies where a mayoral CCA has—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) by a resolution under section 42 or by a previous resolution under this section, changed the title by which the mayor for the area of the CCA is to be known to an alternative title,
 - (b) by a resolution under section 42, provided that the mayor for the area of the CCA is to be known by the title of mayor, or
 - (c) by a previous resolution under this section, provided that the mayor for the area of the CCA is no longer to be known by an alternative title.
- (2) The CCA may, by a resolution in accordance with this section—
 - (a) in a subsection (1)(a) case—
 - (i) provide that the mayor is no longer to be known by the alternative title, or
 - (ii) change the title by which the mayor is to be known to an alternative title mentioned in subsection (3);
 - (b) in a subsection (1)(b) or (c) case, change the title by which the mayor is to be known to an alternative title mentioned in subsection (3).
- (3) The alternative titles mentioned in subsection (2) are as follows—
 - (a) county commissioner;
 - (b) county governor;
 - (c) elected leader;
 - (d) governor;
 - (e) a title that the CCA considers more appropriate than the alternative titles mentioned in paragraphs (a) to (d), having regard to the title of other public office holders in the area of the CCA.
- (4) The following requirements must be met in relation to the resolution mentioned in subsection (2)—
 - (a) the resolution must be considered at a relevant meeting of the CCA,
 - (b) particulars of the resolution must be included in the notice of the meeting,
 - (c) where the resolution includes a proposed alternative title mentioned in subsection (3)(e), the resolution must specify why the CCA considers that the title is more appropriate than the other alternative titles mentioned in subsection (3), and
 - (d) the resolution must be passed at the meeting by a simple majority of the members of the CCA who vote on it.
- (5) In subsection (4)(a) “relevant meeting” means the first meeting of the CCA held after a qualifying election for the return of the mayor, provided that the election is at least the third qualifying election since the resolution mentioned in subsection (1) was passed.
- (6) Where under this section an authority provides that the mayor for the area of the CCA is no longer to be known by an alternative title, the CCA must—
 - (a) send notice of the change to the Secretary of State,
 - (b) publish the notice in the area of the CCA in such manner as the CCA considers appropriate,
 - (c) publish the notice in such other manner as the Secretary of State may direct.
- (7) Subsections (8) and (9) apply where under this section a CCA changes the title by which the mayor for the area of the CCA is to be known to an alternative title.
- (8) The authority must—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) send notice of the change to the Secretary of State, and
 - (b) publish the notice in the area of the CCA in such manner as the CCA considers appropriate,
 - (c) publish the notice in such other manner as the Secretary of State may direct.
- (9) Where this subsection applies—
- (a) a reference in any enactment (whenever passed or made) to the mayor for the area of the CCA is, unless the context otherwise requires, to be read as a reference to the alternative title by which the mayor is to be known, and
 - (b) references to mayor, mayoral (except in the expression “mayoral CCA”) and deputy mayor are to be construed accordingly.
- (10) A change of title under this section does not affect the rights or obligations of any person, or render defective any legal proceedings; and any legal proceedings may be commenced or continued as if there had been no change of title.
- (11) Where a mayoral CCA to which section 42 applies does not pass a resolution as required by subsection (1) of that section, the authority is to be treated for the purposes of this section as if, at the meeting mentioned in that subsection, it had passed the resolution mentioned in section 42(1)(a) (providing that the mayor is to be known by the title of mayor).
- (12) In this section a reference to a member of a CCA does not include a non-constituent member.
- (13) In this section—
- “enactment” has the same meaning as in section 42;
 - “qualifying election” means an election for the return of the mayor, other than—
 - (a) the first election for the return of the mayor, and
 - (b) an election caused by a vacancy in the office of the mayor occurring before expiry of the mayor’s term of office.

Commencement Information

I42 [S. 43](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

44 Power to amend list of alternative titles

- (1) The Secretary of State may by regulations amend section 42(2) or 43(3) to add, modify or remove a reference to an alternative title or a description of an alternative title.
- (2) In its application to subsection (1), section 252(1)(c) (power for regulations to make consequential etc provision) includes power to make consequential amendments to section 42 or 43.

Commencement Information

I43 [S. 44](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Requirements in connection with regulations about CCAs

45 Proposal for new CCA [^{F65}(locally led)]

- (1) One or more authorities to which this section applies may—
 - (a) prepare a proposal for the establishment of a CCA for an area, and
 - (b) submit the proposal to the Secretary of State.
- (2) This section applies to the following authorities—
 - (a) a county council whose area is within the proposed area;
 - (b) a unitary district council whose area is within the proposed area;
 - (c) an economic prosperity board the whole or any part of whose area is within the proposed area;
 - (d) an Integrated Transport Authority the whole or any part of whose area is within the proposed area;
 - (e) a combined authority the whole or any part of whose area is within the proposed area.
- (3) In this section “the proposed area” means the area for which the CCA is proposed to be established.
- (4) Before submitting a proposal under this section to the Secretary of State, the authority or authorities preparing the proposal must—
 - [^{F66}(a) consult the relevant consultees,]
 - (b) have regard to the results of the consultation in preparing the proposal for submission to the Secretary of State.
- [^{F67}(4A) The “relevant consultees” for the purposes of subsection (4)(a) are—
 - (a) the constituent councils, and
 - (b) any other persons that the authority or authorities preparing the proposal consider it appropriate to consult.]
 - (5) The requirements in subsection (4) may be satisfied by things done before the coming into force of this section.
 - (6) If a proposal under this section is not submitted by all of the authorities to which this section applies, each authority which does not submit the proposal must consent to its submission to the Secretary of State.
 - [^{F68}(7)]
 - (8) The Secretary of State may by regulations—
 - (a) make further provision about the matters which must be addressed by a proposal under this section;
 - (b) make provision about material which must be included in or submitted with a proposal under this section.

Textual Amendments

- F65** Words in s. 45 heading inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 36\(a\)](#) (with s. 102) (with saving and transitional provision in S.I. 2026/482, regs. 1(2), 2)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- F66** S. 45(4)(a) substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\), s. 108\(1\)\(3\), Sch. 1 para. 36\(b\)](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482, regs. 1\(2\), 2](#))
- F67** S. 45(4A) inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\), s. 108\(1\)\(3\), Sch. 1 para. 36\(c\)](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482, regs. 1\(2\), 2](#))
- F68** S. 45(7) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\), s. 108\(1\)\(3\), Sch. 1 para. 36\(d\)](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482, regs. 1\(2\), 2](#))

Commencement Information

- I44** S. 45 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

[^{F69}46 Requirements in connection with establishment of CCA

- (1) The Secretary of State may make regulations establishing a CCA for an area (whether or not including other provision made under this Part) only if the following requirements are met in relation to the regulations.
- (2) The Secretary of State considers that the statutory test is met.
- (3) The regulations must—
 - (a) implement a proposal submitted to the Secretary of State in accordance with section 45 (proposal for new CCA - locally led), with or without modifications, or
 - (b) implement a proposal which the Secretary of State is satisfied that the constituent councils have consented to in principle.
- (4) If the regulations fall under subsection (3)(a) or (b), the consultation requirement must be met.
- (5) If the regulations fall under subsection ..., the Secretary of State must in making the regulations have regard to any representations received before the end of the period specified in the notice.
- (6) The “statutory test” is that it is appropriate to make the regulations having regard to the need to secure effective and convenient local government across the area in relation to the areas of competence.
- (7) The “consultation requirement” is that the Secretary of State has consulted—
 - (a) if the regulations fall under subsection (3)(a), such persons (if any) as the Secretary of State considers it necessary to consult about—
 - (i) the proposal that the regulations will implement, and
 - (ii) any modifications to that proposal;
 - (b) if the regulations fall under subsection (3)(b), the relevant consultees about the proposal.
- (8) Subsection (9) applies where the Secretary of State is considering whether to make regulations establishing a CCA for an area and—
 - (a) part of the area is separated from the rest of it by one or more local government areas that are not within the area, or
 - (b) a local government area that is not within the area is surrounded by local government areas that are within the area.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (9) In deciding whether to make the regulations, the Secretary of State must have regard to the likely effect of the creation of the proposed CCA on the exercise of functions equivalent to those of the proposed CCA's functions in each local government area that is next to any part of the proposed CCA area.
- (10) The requirements of this section do not apply to regulations to the extent that they include provision made under section 33 (functions of mayors: policing).
- (11) In this section—
- “areas of competence” has the meaning given by section 2 of the English Devolution and Community Empowerment Act 2026;
 - “proposed area” means the area for which the CCA is proposed to be established;
 - the “relevant consultees” means—
 - (a) the constituent councils, and
 - (b) any other persons that the Secretary of State considers it appropriate to consult.]

Textual Amendments

- F69** S. 46 substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\), s. 108\(1\)\(3\), Sch. 1 para. 37](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482, regs. 1\(2\), 2](#))

47 **Proposal for changes to existing arrangements relating to CCA [^{F70}(locally led)]**

- (1) One or more authorities to which this section applies may—
- (a) prepare a proposal for the making of regulations under [^{F71}any of the relevant sections] in relation to an existing CCA, and
 - (b) submit the proposal to the Secretary of State.

[^{F72}(1A) The “relevant sections” are—

- (a) section 10 (constitutional arrangements);
- (b) section 16 (funding);
- (c) section 18 (local authority functions);
- (d) section 19 (other public authority functions);
- (e) section 21 (integrated transport authority and passenger transport executive);
- (f) section 22 (directions relating to highways and traffic functions);
- (g) section 25 (changes to boundaries of a CCA's area);
- (h) section 26 (dissolution of a CCA's area);
- (i) section 27 (power to provide for election of mayor);
- (j) section 30 (functions of mayors: general).]

- (2) This section applies to the following authorities—

- (a) the CCA;
- (b) a county council whose area is within the area of the CCA;
- (c) a unitary district council whose area is within the area of the CCA;
- (d) in the case of a proposal for the making of regulations under section 25 to add the area of a county council to the area of the CCA, that county council;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (e) in the case of a proposal for the making of regulations under section 25 to add the area of a unitary district council to the area of the CCA, that unitary district council.
- (3) Before submitting a proposal under this section to the Secretary of State, the authority or authorities preparing the proposal must—
 - [^{F73}(a) consult any persons that the authority or the authorities consider it appropriate to consult,]
 - (b) have regard to the results of the consultation in preparing the proposal for submission to the Secretary of State.
- (4) The requirements in subsection (3) may be satisfied by things done before the coming into force of this section.
- (5) Before a proposal under this section for the making of regulations [^{F74}under section 10, 16, 18, 19, 21, 22, or 30] is submitted to the Secretary of State, each person who would have to consent to the making of the regulations must consent to the submission of the proposal.
- [^{F75}(5A) Before a proposal under this section for the making of regulations under section 25 or 26 is submitted to the Secretary of State, the relevant consenting authorities must consent to the submission of the proposal.
- (5B) Before a proposal under this section for the making of regulations under section 27 is submitted to the Secretary of State, the constituent councils and the CCA must consent to the submission of the proposal.]
- (6) If a proposal under this section is submitted to the Secretary of State by an authority, the authority is to be treated as having consented to its submission for the purposes of subsection (5) [^{F76}, (5A) or (5B)].
- [^{F77}(6A) In determining for the purposes of subsection (5) who would have to consent to the making of regulations under section 10, 16, 18, 19, 21, 22, or 30, the consent of an authority is taken to be required even if the requirement for their consent under that section does not apply where a proposal is made under this section.]
- ^{F78}(7)
- [^{F79}(8A) For the meaning of the “relevant consenting authorities” in relation to regulations under section 25 or 26 see sections 48B and 48C.]
- (9) The Secretary of State may by regulations—
 - (a) make further provision about the matters which must be addressed by a proposal under this section;
 - (b) make provision about material which must be included in or submitted with a proposal under this section.

Textual Amendments

- F70** Words in s. 47 heading inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 38\(a\)](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F71** Words in s. 47(1)(a) substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 38\(b\)](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- F72** S. 47(1A) inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 38(c)** (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F73** S. 47(3)(a) substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 38(d)** (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F74** Words in s. 47(5) inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 38(e)** (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F75** S. 47(5A)(5B) inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 38(f)** (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F76** Words in s. 47(6) inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 38(g)** (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F77** S. 47(6A) inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 38(h)** (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F78** S. 47(7) omitted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 38(i)** (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)
- F79** S. 47(8A) for s. 47(8) substituted for (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), **Sch. 1 para. 38(j)** (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)

Commencement Information

- I45** S. 47 in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

^{F80}48 Requirements for changes to existing arrangements relating to CCA

- (1) The Secretary of State may make regulations under any of the relevant sections in relation to an existing CCA only if—
 - (a) the Secretary of State considers that the statutory test is met, and
 - (b) any consultation required by subsection (3) or (4) has been carried out.
- (2) The relevant sections are—
 - (a) section 10 (constitutional arrangements);
 - (b) section 16 (funding);
 - (c) section 18 (local authority functions);
 - (d) section 19 (other public authority functions);
 - (e) section 21 (integrated transport authority and passenger transport executive);
 - (f) section 22 (directions relating to highways and traffic functions);
 - (g) section 27 (power to provide for election of mayor);
 - (h) section 30 (functions of mayors: general).
- (3) If the regulations implement a proposal submitted to the Secretary of State in accordance with section 47, the Secretary of State must consult such persons (if any) as the Secretary of State considers it necessary to consult about the proposal.
- (4) In any other case, the Secretary of State must consult the relevant consultees.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (5) Subsection (4) does not apply if the regulations are made in accordance with the requirements under section 28(3).
- (6) The “relevant consultees” for the purposes of subsection (4)—
- (a) in relation to a mayoral CCA means—
 - (i) the constituent councils, and
 - (ii) the mayor;
 - (b) in relation a non-mayoral CCA means—
 - (i) the constituent councils, and
 - (ii) the CCA.
- (7) In this section, “statutory test” has the meaning given by section 46(6).]

Textual Amendments

F80 S. 48 substituted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\), s. 108\(1\)\(3\), Sch. 1 para. 40](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482, regs. 1\(2\), 2](#))

[^{F81} 48A Requirements in connection with boundary changes or dissolution of CCA

- (1) The Secretary of State may make regulations under section 25 (boundary changes) or 26 (dissolution) in relation to an existing CCA only if the following requirements are met.
- (2) The Secretary of State considers that the statutory test is met.
- (3) For the purposes of subsection (2), the reference in the statutory test to “the area”—
 - (a) in relation to regulations under section 25, means the area after the local government area in question has been added or removed, or
 - (b) in relation to regulations under section 26, means the area of the CCA.
- (4) The regulations must—
 - (a) implement a proposal submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA, locally led), with or without modifications,
 - (b) implement a proposal of which notice was given under section 47A (proposal to add an area to an existing area of a CCA, Secretary of State directed), with or without modifications, or
 - (c) implement a proposal which the Secretary of State is satisfied that the relevant consenting authorities have consented to in principle (see sections 48B and 48C: relevant consenting authorities).
- (5) If the regulations falls under subsection (4)(a) or (c), the consultation requirement must be met.
- (6) If the regulations fall under subsection (4)(b), the Secretary of State must in making the regulations have regard to any representations received before the end of the period specified in the notice.
- (7) The “consultation requirement” is that the Secretary of State has consulted—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) if the regulations fall under subsection (4)(a), such persons (if any) as the Secretary of State considers it necessary to consult about the proposal that the regulations will implement;
 - (b) if the regulations fall under subsection (4)(c), the relevant consultees about the proposal.
 - (8) Subsection (9) applies where the Secretary of State is considering whether to make regulations under section 25 and—
 - (a) part of the area to be created is separated from the rest of it by one or more local government areas that are not within the area, or
 - (b) a local government area that is not within the area to be created is surrounded by local government areas that are within the area.
 - (9) In deciding whether to make regulations under section 25, the Secretary of State must have regard to the likely effect of the change to the CCA's area on the exercise of functions equivalent to those of the CCA's functions in each local government area that is next to any part of the area to be created by the regulations.
 - (10) In this section—
 - “relevant consultee”—
 - (a) in relation to regulations under section 25 means—
 - (i) the council of the local government area to be added to or removed from the area of the CCA;
 - (ii) if the CCA that the local government area is to be added to or removed from is a mayoral CCA, the mayor of the CCA;
 - (iii) if the CCA that the local government area is to be added to or removed from is a non-mayoral CCA, the CCA;
 - (iv) any other persons that the Secretary of State considers appropriate;
 - (b) in relation to regulations under section 26 means—
 - (i) the constituent councils of the CCA that is to be abolished,
 - (ii) if the CCA that is to be abolished is a mayoral CCA, the mayor of the CCA;
 - (iii) if the CCA that is to be abolished is a non-mayoral CCA, the CCA;
 - (iv) any other persons that the Secretary of State considers appropriate;
- “statutory test” has the meaning given by section 46(6).

Textual Amendments

F81 Ss. 48A-48C inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 41](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)

48B Relevant consenting authorities in relation to regulations under section 25

- (1) The “relevant consenting authorities” in relation to regulations under section 25 means—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the relevant council in relation to the relevant local government area to be added to or removed from the area of the CCA, and
 - (b) if the CCA that the local government area is to be added to or removed from is a mayoral CCA, the mayor of the CCA;
 - (c) if the CCA that the local government area is to be added to or removed from is a non-mayoral CCA, the CCA.
- (2) The “relevant council” in relation to a relevant local government area is—
- (a) if the local government area is the area of a county council, the county council;
 - (b) if the local government area is the area of a unitary district council, the unitary district council.
- (3) Where a CCA is a relevant consenting authority, the question of whether to consent in principle for the purpose of section 48A(4)(c) is to be decided at a meeting of the CCA by a simple majority of the voting members of the authority who are present at the meeting.
- (4) A reference in subsection (3) to a voting member—
- (a) includes a substitute member who may act in place of a voting member;
 - (b) does not include a non-constituent member.

Textual Amendments

F81 Ss. 48A-48C inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 41](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)

48C Relevant consenting authorities in relation to regulations under section 26

The “relevant consenting authorities” in relation to regulations under section 26 means—

- (a) a majority of the constituent councils, and
- (b) if the CCA to be abolished is a mayoral CCA, the mayor for the area of the authority.]

Textual Amendments

F81 Ss. 48A-48C inserted (29.4.2026 except so far as it relates to Sch. 1 paras. 18, 39 of the amending Act) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 1 para. 41](#) (with s. 102) (with saving and transitional provision in [S.I. 2026/482](#), regs. 1(2), 2)

General powers of CCAs

49 General power of CCA

- (1) A CCA may do—
- (a) anything it considers appropriate for the purposes of the carrying-out of any of its functions (its “functional purposes”),

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) anything it considers appropriate for purposes incidental to its functional purposes,
 - (c) anything it considers appropriate for purposes indirectly incidental to its functional purposes through any number of removes,
 - (d) anything it considers to be connected with—
 - (i) any of its functions, or
 - (ii) anything it may do under paragraph (a), (b) or (c), and
 - (e) for a commercial purpose anything which it may do under any of paragraphs (a) to (d) otherwise than for a commercial purpose.
- (2) Where subsection (1) confers power on a CCA to do something, it confers power (subject to section 50) to do it anywhere in the United Kingdom or elsewhere.
- (3) Power conferred on a CCA by subsection (1) is in addition to, and is not limited by, its other powers.

^{F82}(4)

Textual Amendments

F82 S. 49(4) omitted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by virtue of [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3)(5), [Sch. 6 para. 8\(2\)\(a\)](#) (with s. 102)

Commencement Information

I46 S. 49 in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

50 Boundaries of power under section 49

- (1) Section 49(1) does not enable a CCA to do anything which it is unable to do by virtue of a relevant limitation which is expressed to apply—
 - (a) to its power under section 49(1),
 - (b) to all of its powers, or
 - (c) to all of its powers but with exceptions that do not include its power under section 49(1).
- (2) If exercise of a relevant power of a CCA is subject to restrictions, those restrictions apply also to exercise of the power conferred on it by section 49(1) so far as that power is overlapped by the relevant power.
- (3) Section 49(1) does not authorise a CCA to borrow money.
- (4) Section 49(1)(a) to (d) does not authorise a CCA to charge a person for anything done by it otherwise than for a commercial purpose (but see section 93 of the Local Government Act 2003 (power of CCAs and other best value authorities to charge for discretionary services)).
- (5) Section 49(1)(e) does not authorise a CCA to do things for a commercial purpose in relation to a person if a statutory provision requires it to do those things in relation to the person.
- (6) Where under section 49(1)(e) a CCA does things for a commercial purpose, it must do them through—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) a company within the meaning given by section 1(1) of the Companies Act 2006,
- (b) a registered society within the meaning of the Co-operative and Community Benefit Societies Act 2014, or
- (c) a society registered or deemed to be registered under the Industrial and Provident Societies Act (Northern Ireland) 1969.

(7) In this section—

“relevant limitation” means a prohibition, restriction or other limitation imposed by a statutory provision;

“relevant power” means a power conferred by a statutory provision;

“statutory provision” means a provision of an Act or of an instrument made under an Act.

Commencement Information

I47 S. 50 in force at 26.12.2023, see s. 255(2)(c)

51 Power to make provision supplemental to section 49

- (1) The Secretary of State may by regulations make provision preventing CCAs from doing under section 49(1) anything which is specified, or is of a description specified, in the regulations.
- (2) The Secretary of State may by regulations provide for the exercise by CCAs of power conferred by section 49(1) to be subject to conditions, whether generally or in relation to doing anything specified, or of a description specified, in the regulations.
- (3) The power under subsection (1) or (2) may be exercised in relation to—
 - (a) all CCAs,
 - (b) particular CCAs, or
 - (c) particular descriptions of CCAs.
- (4) Before making regulations under subsection (1) or (2) the Secretary of State must consult—
 - (a) such representatives of CCAs,
 - (b) such representatives of local government, and
 - (c) such other persons (if any),
 as the Secretary of State considers appropriate.
- (5) Subsection (4) does not apply to regulations under subsection (1) or (2) which are made only for the purpose of amending earlier such regulations—
 - (a) so as to extend the earlier regulations, or any provision of the earlier regulations, to a particular CCA or to CCAs of a particular description, or
 - (b) so that the earlier regulations, or any provision of the earlier regulations, ceases to apply to a particular CCA or to CCAs of a particular description.

Commencement Information

I48 S. 51 in force at 26.12.2023, see s. 255(2)(c)

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

F83 52

Textual Amendments

F83 S. 52 omitted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by virtue of English Devolution and Community Empowerment Act 2026 (c. 23), s. 108(1)(3)(5), Sch. 6 para. 8(2)(b) (with s. 102)

[F84] 52A Allowances for members with special responsibilities

- (1) A CCA may—
 - (a) make a scheme providing for the payment of allowances to members of the CCA who have special responsibilities, and
 - (b) pay allowances in accordance with the scheme.
- (2) A CCA may only make a scheme if—
 - (a) the CCA has considered a report published by a relevant remuneration panel which contains recommendations for the allowances provided for in the scheme, and
 - (b) the allowances payable under the scheme do not exceed the amounts specified in the recommendations made by the relevant remuneration panel.
- (3) A CCA which has made a scheme under this section must produce and publish reports on the allowances paid under the scheme (including their amounts).
- (4) In exercising the powers conferred by this section, or complying with the duty to produce and publish reports, a CCA must take account of any guidance issued for this purpose by the Secretary of State.
- (5) In deciding the terms of a report produced for the purposes of this section, a relevant remuneration panel must take account of any guidance issued for this purpose by the Secretary of State.
- (6) If a member of a CCA is entitled to be paid—
 - (a) an allowance under this section, and
 - (b) an allowance or other payment by a constituent council,
 in respect of the same special responsibilities, the amount payable under this section is to be reduced by the amount payable by the constituent council (and the amount payable under this section is to be reduced to nil if it is smaller than the amount payable by the constituent council).
- (7) Regulations under section 10(1) (about the constitutional arrangements of a CCA) may not prevent or otherwise affect the exercise of the power to pay an allowance under this section; but this section does not otherwise limit the power conferred by section 10(1).
- (8) In this section—

“relevant remuneration panel”, means a panel that is specified, or of a description specified, in regulations made by the Secretary of State for the purposes of this section;

“special responsibilities”, in relation to a member of CCA, means any responsibilities which the member has in addition to the general responsibilities of being a member of the CCA.]

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

Textual Amendments

- F84** [S. 52A](#) inserted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), **ss. 10(2)**, 108(1)(5) (with [s. 102](#))

Supplementary

53 Incidental etc provision

- (1) The Secretary of State may by regulations make incidental, consequential, transitional, transitory or supplementary provision for the purposes of, or in consequence of, regulations under this Chapter or for giving full effect to such regulations.
- (2) Regulations under subsection (1) may not include provision amending or disapplying sections 15 to 17 of, and Schedule 1 to, the Local Government and Housing Act 1989 (political balance on local authority committees etc).

Commencement Information

- I49** [S. 53](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

54 Transfer of property, rights and liabilities

- (1) The Secretary of State may by regulations make provision for the transfer of property, rights and liabilities (including criminal liabilities) for the purposes of, or in consequence of, regulations under this Chapter or for giving full effect to such regulations.
- (2) Property, rights and liabilities may be transferred by—
 - (a) the regulations,
 - (b) scheme made by the Secretary of State under the regulations, or
 - (c) a scheme required to be made under the regulations by a person other than the Secretary of State.
- (3) A transfer by virtue of this section may have effect—
 - (a) whether or not the property, rights and liabilities would otherwise be capable of being transferred;
 - (b) without any instrument or formality being required.
- (4) The rights and liabilities which may be transferred by virtue of this section include rights and liabilities in relation to a contract of employment.
- (5) The Transfer of Undertakings (Protection of Employment) Regulations 2006 ([S.I. 2006/246](#)) apply to the transfer by virtue of this section (whether or not the transfer is a relevant transfer for the purposes of those regulations).
- (6) Regulations under this section or a scheme made under them may define the property, rights and liabilities to be transferred by specifying or describing them.
- (7) Provision for the transfer of property, rights and liabilities made by virtue of this section may include provision—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) for the creation or imposition by the Secretary of State of new rights or liabilities in respect of anything transferred;
 - (b) for the shared ownership or use of any property or facilities;
 - (c) for the management or custody of transferred property;
 - (d) for bodies to make agreements with respect to any property, income, rights, liabilities and expenses of, and any financial relations between, the parties to the agreement.
- (8) Provision for the transfer of property, rights and liabilities made by virtue of this section may include provision—
 - (a) for the continuing effect of things done by the transferor in relation to anything transferred;
 - (b) for the continuation of things (including legal proceedings) in the process of being done, by or on behalf of or in relation to the transferor in relation to anything transferred;
 - (c) for references to the transferor in any agreement (whether written or not), instrument or other document in relation to anything transferred to be treated (so far as necessary for the purposes of or in consequence of the transfer) as references to the transferee.

Commencement Information

I50 [S. 54](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

55 Guidance

- (1) The Secretary of State may give guidance about anything that could be done under or by virtue of this Chapter by an authority to whom this section applies.
- (2) An authority to whom this section applies must have regard to any guidance given under this section in exercising any function conferred or imposed by or by virtue of this Chapter.
- (3) Any guidance under this section must be given in writing and may be varied or revoked by further guidance in writing.
- (4) Any such guidance may make different provision for different cases and different provision for different areas.
- (5) This section applies to—
 - (a) a county council;
 - (b) a district council;
 - (c) an Integrated Transport Authority;
 - (d) a combined authority;
 - (e) a CCA.

Commencement Information

I51 [S. 55](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

56 Consequential amendments

Schedule 4 (combined county authorities: consequential amendments) has effect.

Commencement Information

I52 [S. 56](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

57 Interpretation of Chapter

In this Chapter—

- “associate member” has the meaning given by section 12(1);
- “CCA” has the meaning given by section 9(1);
- “combined authority” has the meaning given by section 9(5);
- “constituent council” has the meaning given by section 10(11);
- “deputy mayor” has the meaning given by section 29(7);
- “economic prosperity board” has the meaning given by section 9(5);
- [^{F85}“established mayoral strategic authority” means a mayoral CCA designated by the Secretary of State under section 25A;]
- “fire and rescue authority” means a fire and rescue authority under the Fire and Rescue Services Act 2004;
- “general functions” has the meaning given by section 30(2);
- “Integrated Transport Authority” has the meaning given by section 9(5);
- “local government area” has the meaning given by section 46(6);
- “mayor”, in relation to the area of a CCA, means the mayor for the area of the CCA by virtue of regulations under section 27(1);
- “mayoral CCA” has the meaning given by section 27(8);
- “nominating body” means a body designated under section 11(1);
- “non-constituent member” has the meaning given by section 11(3);
- [^{F86}“non-mayoral CCA” means a CCA that is not a mayoral CCA;]
- “PCC functions” has the meaning given by section 33(3);
- “two-tier county council” has the meaning given by section 9(5);
- “unitary county council” has the meaning given by section 9(5);
- “unitary district council” has the meaning given by section 9(5).

Textual Amendments

- F85** Words in s. 57 inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), [ss. 15\(1\)\(a\), 108\(1\)\(3\)](#) (with [s. 102](#))
- F86** Words in s. 57 inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), [ss. 15\(1\)\(b\), 108\(1\)\(3\)](#) (with [s. 102](#))

Commencement Information

I53 [S. 57](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

CHAPTER 2

OTHER PROVISION

Combined authorities

58 Review of combined authority’s constitutional arrangements

After section 104C of the Local Democracy, Economic Development and Construction Act 2009 (inserted by section 64(8)) insert—

“104D Review of combined authority’s constitutional arrangements

- (1) This section applies if an order under section 104(1) (constitution of combined authority) enables a combined authority to make provision about its constitution (“constitutional provision”).
- (2) An appropriate person may carry out a review of the combined authority’s constitutional provision if—
 - (a) an appropriate person proposes a review, and
 - (b) the combined authority consents to the review.
- (3) If an appropriate person carries out a review under subsection (2), they may propose changes to the combined authority’s constitutional provision as a result of the review for agreement by the authority.
- (4) The question of whether to consent under subsection (2)(b) or to agree to changes proposed under subsection (3) is to be decided at a meeting of the combined authority by a simple majority of the voting members of the authority who are present at the meeting.
- (5) In the case of a mayoral combined authority—
 - (a) a majority in favour of consenting under subsection (2)(b) does not need to include the mayor, but
 - (b) a majority in favour of changes proposed under subsection (3) must include the mayor.
- (6) The reference in subsection (4) to a voting member—
 - (a) includes a substitute member who may act in place of a voting member;
 - (b) does not include a non-constituent member.
- (7) Subsection (4) applies instead of—
 - (a) any provision of an order under section 104(1) made before the coming into force of this section which is about the procedure applying to a decision on a question of a kind mentioned in subsection (4), and
 - (b) any constitutional provision of a combined authority about such procedure.
- (8) In this section “appropriate person”, in relation to a combined authority, means—
 - (a) a member of the authority appointed by a county council the whole or any part of whose area is within the area of the authority,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) a member of the authority appointed by a district council whose area is within the area of the authority, or
- (c) the mayor for the area of the authority (if it is a mayoral combined authority).”

Commencement Information

I54 S. 58 in force at 26.12.2023, see s. 255(2)(d)

59 Consent to changes to combined authority’s area

- (1) The Local Democracy, Economic Development and Construction Act 2009 is amended as follows.

- (2) In section 104 (constitution of combined authority), after subsection (11) insert—

“(11A) If the only provision made under this section in an order under this Part is provision as a result of an order under section 106 (changes to boundaries of combined authority’s area)—

- (a) subsection (10) does not apply to the order under this Part, and
- (b) subsections (3A) to (3H) of section 106 apply in relation to the order as if it contained the provision made by the order under section 106.”

- (3) Section 106 (changes to boundaries of combined authority’s area) is amended in accordance with subsections (4) to (9).

- (4) For subsection (3A) substitute—

“(3A) An order under this section adding or removing a local government area to or from an existing area of a mayoral combined authority may be made only if—

- (a) the relevant council in relation to the local government area consents, and
- (b) the mayor for the area of the combined authority consents.

(3AA) An order under this section adding or removing a local government area to or from an existing area of a combined authority which is not a mayoral combined authority may be made only if—

- (a) the relevant council in relation to the local government area consents, and
- (b) the combined authority consents.”

- (5) In subsection (3B), for “subsection (3A)(a)” substitute “subsections (3A)(a) and (3AA)(a)”.

- (6) In subsection (3C), after “subsection (3A)(a)” insert “or (3AA)(a)”.

- (7) After subsection (3C) insert—

“(3CA) The question of whether to consent under subsection (3AA)(b) to an order under this section is to be decided at a meeting of the combined authority by a simple majority of the voting members of the authority who are present at the meeting.

(3CB) Subsection (3CA) applies instead of—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) any provision of an order under section 104(1) made before the coming into force of that subsection which is about the procedure applying to a decision on a question of the kind mentioned in that subsection, and
 - (b) any provision made by a combined authority about its constitution under such an order about such procedure.”
- (8) For subsection (3D) substitute—
 - “(3D) Where an order under subsection (1)(b) is made as a result of the duty in section 105B(5) or 107B(4)—
 - (a) subsection (2) does not apply, and
 - (b) neither subsection (3A) nor subsection (3AA) applies.”
- (9) After subsection (3D) insert—
 - “(3E) Subsection (3F) applies if a combined authority has made provision about its constitution under an order under section 104(1).
 - (3F) A decision about any change to that provision as a result of an order under this section is to be decided at a meeting of the combined authority by a simple majority of the voting members of the authority who are present at the meeting.
 - (3G) Subsection (3F) applies instead of—
 - (a) any provision of an order under section 104(1) made before the coming into force of that subsection which is about the procedure applying to a decision on a question of the kind mentioned in that subsection, and
 - (b) any provision made by a combined authority about its constitution under such an order about such procedure.
 - (3H) A reference in this section to a voting member—
 - (a) includes a substitute member who may act in place of a voting member;
 - (b) does not include a non-constituent member.”

Commencement Information

I55 S. 59 in force at Royal Assent, see [s. 255\(2\)\(e\)](#)

60 Changes to mayoral combined authority’s area: additional requirements

- (1) An order under section 106 of the Local Democracy, Economic Development and Construction Act 2009 which adds a local government area to an existing area of a mayoral combined authority may only be made during the relevant period if the consultation requirements in subsection (2) are met.
- (2) The consultation requirements are as follows—
 - (a) the Secretary of State has consulted the Local Government Boundary Commission for England,
 - (b) the mayor for the area of the combined authority has consulted the residents of the local government area which is to be added to that area, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) the mayor has given the Secretary of State a report providing information about the consultation carried out under paragraph (b), and the Secretary of State has laid the report before Parliament.

- (3) In this section, “the relevant period” means the period of 9 months beginning with the day on which this Act is passed.

Commencement Information

I56 S. 60 in force at Royal Assent, see [s. 255\(2\)\(e\)](#)

61 Consent to conferral of general functions on mayor

- (1) The Local Democracy, Economic Development and Construction Act 2009 is amended as follows.

- (2) In section 104 (constitution of combined authority), after subsection (11A) (inserted by section [59\(2\)](#)) insert—

“(11B) If the only provision made under this section in an order under this Part is provision as a result of an order to which section 107DA (procedure for direct conferral of general functions on mayor) applies—

- (a) subsection (10) does not apply to the order under this Part, and
- (b) the order may be made only with the consent of the mayor for the combined authority.”

- (3) In section 105B (section 105A orders: procedure), after subsection (5) insert—

“(5A) The requirements in subsection (1) do not apply where the order is made under sections 105A and 107D in relation to an existing mayoral combined authority and provides for a function—

- (a) to be a function of the combined authority, and
- (b) to be a function exercisable only by the mayor.

See section 107DA in relation to an order of this kind.”

- (4) In section 107D (functions of mayors: general), after subsection (10) insert—

“(11) The requirement in subsection (9) does not apply where the order is made under section 105A and this section in relation to an existing mayoral combined authority and provides for a function—

- (a) to be a function of the combined authority, and
- (b) to be a function exercisable only by the mayor.

See section 107DA in relation to an order of this kind.”

- (5) After section 107D insert—

“107DA Procedure for direct conferral of general functions on mayor

- (1) This section applies in relation to an order which is made under sections 105A and 107D in relation to an existing mayoral combined authority and provides for a function—

- (a) to be a function of the combined authority, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) to be a function exercisable only by the mayor.
- (2) The Secretary of State may make the order only if a request for the making of the order has been made to the Secretary of State by the mayor.
- (3) Before submitting a request under this section, the mayor must consult the constituent councils.
- (4) A request under this section must contain—
 - (a) a statement by the mayor that all of the constituent councils agree to the making of the order, or
 - (b) if the mayor is unable to make that statement, the reasons why the mayor considers the order should be made even though not all of the constituent councils agree to it being made.
- (5) In this section “constituent council” means—
 - (a) a county council the whole or any part of whose area is within the area of the combined authority, or
 - (b) a district council whose area is within the area of the combined authority.”

Commencement Information

I57 S. 61 in force at 26.12.2023, see [s. 255\(2\)\(f\)](#)

62 Consent to conferral of police and crime commissioner functions on mayor

- (1) Section 107F of the Local Democracy, Economic Development and Construction Act 2009 (functions of mayors: policing) is amended as follows.
- (2) For subsection (4) substitute—
 - “(4) An order under subsection (1) may be made in relation to an existing mayoral combined authority only with the consent of the mayor of the authority.”
- (3) Omit subsection (9).

Commencement Information

I58 S. 62 in force at Royal Assent, see [s. 255\(2\)\(g\)](#)

63 Functions in respect of key route network roads

- (1) The Local Democracy, Economic Development and Construction Act 2009 is amended as follows.
- (2) In section 104, in subsection (10), for “An” substitute “Except as provided for by [section 107ZA\(7\)](#), an”.
- (3) In section 107D, in subsection (9), for “An” substitute “Except as provided for by [section 107ZA\(7\)](#), an”.
- (4) After section 107 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“Combined authorities: key route network roads

107ZA Designation of key route network roads

- (1) A combined authority may designate a highway or proposed highway in its area as a key route network road, or remove its designation as a key route network road, with the consent of—
 - (a) each constituent council in whose area the highway or proposed highway is, and
 - (b) in the case of a mayoral combined authority, the mayor.
- (2) The Secretary of State may designate a highway or proposed highway in the area of a combined authority as a key route network road, or remove its designation as a key route network road, if requested to do so by—
 - (a) the combined authority,
 - (b) the mayor (if any) of the combined authority, or
 - (c) a constituent council.
- (3) A designation or removal under this section must be in writing and must state when it comes into effect.
- (4) The Secretary of State must send a copy of a designation or removal under [subsection \(2\)](#) to the combined authority in question at least 7 days before the date on which it comes into effect.
- (5) A combined authority must publish each designation or removal under this section of a key route network road within its area before the date on which it comes into effect.
- (6) A combined authority that has key route network roads in its area must keep a list or map (or both) accessible to the public showing those roads.
- (7) The requirements in section 104(10) and section 107D(9)(a) do not apply to provision under section 104(1)(d) and section 107D(1) contained in the same instrument so far as that provision—
 - (a) confers a power of direction on an existing mayoral combined authority regarding the exercise of an eligible power in respect of key route network roads in the area of that combined authority,
 - (b) provides for that power of direction to be exercisable only by the mayor of the combined authority, and
 - (c) is made with the consent of the mayor after the mayor has consulted the constituent councils.
- (8) When a mayor consents under [subsection \(7\)\(c\)](#), the mayor must give the Secretary of State—
 - (a) a statement by the mayor that all of the constituent councils agree to the making of the order, or
 - (b) if the mayor is unable to make that statement, the reasons why the mayor considers the order should be made even though not all of the constituent councils agree to it being made.
- (9) In this section—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“constituent council” has the meaning given in section 104(11);
“eligible power” has the meaning given by section 88(2) of the Local Transport Act 2008;
“key route network road” means a highway or proposed highway designated for the time being under this section as a key route network road;
“proposed highway” means land on which, in accordance with plans made by a highway authority, that authority are for the time being constructing or intending to construct a highway shown in the plans.”

Commencement Information

I59 [S. 63](#) in force at 26.12.2023, see [s. 255\(2\)\(h\)](#)

64 Membership of combined authority

- (1) The Local Democracy, Economic Development and Construction Act 2009 is amended as follows.
- (2) Section 104 (constitution of combined authority) is amended in accordance with subsections [\(3\)](#) to [\(7\)](#).
- (3) In subsection (2), for “85” substitute “85(1) to (3)”.
- (4) For subsection (2A) substitute—

“(2A) But—

 - (a) section 84 of that Act, in its application to a combined authority by virtue of subsection (1)(a), is subject to—
 - (i) sections [104A](#) and [104B](#) and regulations under section [104C](#) (combined authority membership), and
 - (ii) sections [104D\(4\)](#) and [106\(3CA\)](#) and [\(3F\)](#) (procedure for combined authority consents), and
 - (b) section 85(1) of that Act, in its application to a combined authority by virtue of subsection (2), is subject to subsections (2AA) and (2B).”
- (5) After subsection (2A) insert—

“(2AA) Section 85(1)(a) has effect as if it required an order which includes provision about the number and appointment of members of a combined authority to provide for the authority’s members, other than—

 - (a) the mayor (in the case of a mayoral combined authority),
 - (b) the authority’s non-constituent members (see section [104A](#)), and
 - (c) the authority’s associate members (see section [104B](#)),

to be appointed by the authority’s constituent councils.”
- (6) Omit subsection (2C).
- (7) In subsection (11), for “subsection (10)” substitute “this section”.
- (8) After section 104 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“104A Non-constituent members of a combined authority

- (1) A combined authority may designate a body other than a constituent council as a nominating body for the purposes of this Part.
- (2) A body may be designated under subsection (1) only if the body consents to the designation.
- (3) A nominating body of a combined authority may nominate a representative of the body for appointment by the authority as a member (a “non-constituent member”).
- (4) The non-constituent members of a combined authority are to be non-voting members of that authority unless the voting members resolve otherwise.
- (5) A resolution under subsection (4) does not permit non-constituent members to vote on a decision whether the combined authority should consent to the making of an order under this Part.
- (6) This section is subject to regulations under section 104C(4) (disapplication of this section).
- (7) In this section “constituent council”, in relation to a combined authority, means—
 - (a) a county council the whole or any part of whose area is within the area of the authority, or
 - (b) a district council whose area is within the area of the authority.

104B Associate members of a combined authority

- (1) A combined authority may appoint an individual to be a member (“an associate member”) of the combined authority.
- (2) The associate members of a combined authority are to be non-voting members of the authority.
- (3) This section is subject to regulations under section 104C(4) (disapplication of this section).

104C Regulations about members

- (1) The Secretary of State may by regulations make provision about—
 - (a) constituent members of a combined authority;
 - (b) the mayor for the area of a combined authority in the mayor’s capacity as a member of the authority;
 - (c) nominating bodies of a combined authority;
 - (d) non-constituent members of a combined authority;
 - (e) associate members of a combined authority.
- (2) The provision that may be made by regulations under subsection (1) includes, in particular, provision about—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the cases in which a decision of a combined authority requires a majority, or a particular kind of majority, of the votes of members of a particular kind;
 - (b) the process for the designation of a nominating body or the removal of such a designation;
 - (c) the number of nominating bodies that may be designated by a combined authority;
 - (d) the number of non-constituent members that may be appointed by a combined authority;
 - (e) the appointment, disqualification, resignation or removal of a non-constituent member;
 - (f) the appointment of a substitute member to act in place of a non-constituent member;
 - (g) the maximum number of non-constituent members of a combined authority;
 - (h) the making by a nominating body of a combined authority of payments towards the costs of the authority;
 - (i) the things which may or may not be done by, or in relation to, a non-constituent member;
 - (j) the appointment, disqualification, resignation or removal of an associate member;
 - (k) the appointment of a substitute member to act in place of an associate member;
 - (l) the maximum number of associate members of a combined authority;
 - (m) the things which may or may not be done by, or in relation to, an associate member.
- (3) Regulations under subsection (1) may confer a discretion on a combined authority to determine any matter.
- (4) The Secretary of State may by regulations provide, in relation to a combined authority established by an order which came into force before the coming into force of this section—
 - (a) for the relevant provisions about membership not to apply in relation to the authority, or
 - (b) for the authority to determine whether the relevant provisions about membership are to apply in relation to the authority.
- (5) In subsection (4) “the relevant provisions about membership” means—
 - (a) the amendments to section 104 made by section 64(2) to (7) of the Levelling-up and Regeneration Act 2023, and
 - (b) sections 104A and 104B.
- (6) Regulations under subsection (1) or (4) may make incidental, supplementary, consequential, transitional, transitory or saving provision.
- (7) In this section “constituent member”, in relation to a combined authority, means a member of the authority (other than any mayor for the area of the authority) appointed by—
 - (a) a county council the whole or any part of whose area is within the area of the authority, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(b) a district council whose area is within the area of the authority.”

(9) In section 105 (constitution of combined authority), after subsection (3) insert—

“(3ZA) But section 92, in its application to a combined authority by virtue of subsection (3), is subject to regulations under section 104C(1) (combined authority membership).”

(10) In section 107C (deputy mayors etc), after subsection (6) insert—

“(6A) References in this section to a member of a combined authority do not include a non-constituent or associate member.”

(11) In section 107D (functions of mayors: general)—

(a) after subsection (3) insert—

“(3A) The reference in subsection (3)(b) to a member of a combined authority does not include a non-constituent or associate member.”,
and

(b) after subsection (4) insert—

“(4A) An order under subsection (3)(c) must provide that the committee must not consist solely of non-constituent or associate members.”

(12) In section 107G (mayors for combined authority areas: financial provision), after subsection (6) insert—

“(6A) The reference in subsection (6)(b)(i) to a member of a combined authority does not include a non-constituent or associate member.”

(13) In section 120 (interpretation), at the appropriate places insert—

““associate member” has the meaning given by section 104B(1);”,

““nominating body” means a body designated under section 104A(1);”, and

““non-constituent member” has the meaning given by section 104A(3);”.

Commencement Information

I60 S. 64 in force at 26.12.2023, see s. 255(2)(h)

65 Proposal for establishment of combined authority

(1) The Local Democracy, Economic Development and Construction Act 2009 is amended in accordance with subsections (2) to (8).

(2) Omit sections 108 (review by authorities: new combined authority) and 109 (preparation and publication of scheme: new combined authority).

(3) Before section 110 insert—

“109A Proposal for new combined authority

(1) One or more authorities to which this section applies may—

(a) prepare a proposal for the establishment of a combined authority for an area, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) submit the proposal to the Secretary of State.
- (2) This section applies to the following authorities—
 - (a) a county council the whole or any part of whose area is within the proposed area;
 - (b) a district council whose area is within the proposed area;
 - (c) an EPB the whole or any part of whose area is within the proposed area;
 - (d) an ITA the whole or any part of whose area is within the proposed area;
 - (e) a combined county authority the whole or any part of whose area is within the proposed area.
- (3) In this section—
 - “combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;
 - “the proposed area” means the area for which the combined authority is proposed to be established.
- (4) Before submitting a proposal under this section to the Secretary of State, the authority or authorities preparing the proposal must—
 - (a) carry out a public consultation across the proposed area on the proposal, and
 - (b) have regard to the results of the consultation in preparing the proposal for submission to the Secretary of State.
- (5) The requirements in subsection (4) may be satisfied by things done before the coming into force of this section.
- (6) If a proposal under this section is not submitted by all of the authorities to which this section applies, each authority which does not submit the proposal must consent to its submission to the Secretary of State.
- (7) A proposal under this section must specify the purposes to be achieved by the establishment of the combined authority.
- (8) The Secretary of State may by regulations—
 - (a) make further provision about the matters which must be addressed by a proposal under this section;
 - (b) make provision about material which must be included in or submitted with a proposal under this section.
- (9) Regulations under subsection (8) may make incidental, supplementary, consequential, transitional, transitory or saving provision.”
- (4) Section 110 (requirements in connection with establishment of combined authority) is amended in accordance with subsections (5) to (8).
- (5) In subsection (1), for paragraph (a) substitute—
 - “(a) the Secretary of State considers that to do so is likely to improve the economic, social and environmental well-being of some or all of the people who live or work in the area,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (aa) the Secretary of State considers that to do so is appropriate having regard to the need—
 - (i) to secure effective and convenient local government, and
 - (ii) to reflect the identities and interests of local communities,
 - (ab) where a proposal for the establishment of the combined authority has been submitted under section 109A, the Secretary of State considers that its establishment will achieve the purposes specified under [subsection \(7\)](#) of that section.”.
- (6) For subsection (1A) substitute—
- “(1A) If a proposal for the establishment of the combined authority has been submitted under section 109A, the Secretary of State must have regard to the proposal in making the order.”
- (7) In subsection (2), for paragraphs (a) and (b) (and the “and” at the end of paragraph (b)) substitute—
- “(a) a proposal has been prepared under section 109A,
- (b) a public consultation has been carried out in connection with the proposal and the Secretary of State has been provided with a summary of the consultation responses, and”.
- (8) Omit subsection (4).
- (9) This section does not affect—
- (a) the operation of section 108 of the Local Democracy, Economic Development and Construction Act 2009 in relation to a review that began before this section came into force, or
 - (b) the operation of section 109 of that Act in relation to the preparation and publication of a scheme following such a review.
- (10) The amendments made by subsections [\(5\)](#) to [\(8\)](#) do not apply to section 110 of that Act as it has effect in relation to—
- (a) the making of an order in response to a scheme under section 109 of that Act, or
 - (b) the making of an order otherwise than in response to a scheme, where a draft of the statutory instrument containing the order was laid before Parliament before the coming into force of this section.

Commencement Information

161 [S. 65](#) in force at 26.12.2023, see [s. 255\(2\)\(h\)](#)

66 Proposal for changes to existing combined arrangements

- (1) The Local Democracy, Economic Development and Construction Act 2009 is amended in accordance with subsections [\(2\)](#) to [\(9\)](#).
- (2) Omit sections 111 (review by authorities: existing combined authority) and 112 (preparation and publication of scheme: existing combined authority).
- (3) Before section 113 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“112A Proposal for changes to existing combined arrangements

- (1) One or more authorities to which this section applies may—
 - (a) prepare a proposal for the making of an order under section 104, 105, 105A, 106, 107, 107A, 107D or 107F in relation to an existing combined authority, and
 - (b) submit the proposal to the Secretary of State.
- (2) This section applies to the following authorities—
 - (a) the combined authority;
 - (b) a county council the whole or any part of whose area is within the area of the combined authority;
 - (c) a district council whose area is within the area of the combined authority;
 - (d) in the case of a proposal for the making of an order under section 106 to add all or part of the area of a county council to the area of the combined authority, that county council;
 - (e) in the case of a proposal for the making of an order under section 106 to add the area of a district council to the area of the combined authority, that district council.
- (3) Before submitting a proposal under this section to the Secretary of State, the authority or authorities preparing the proposal must—
 - (a) carry out a public consultation across—
 - (i) the area of the combined authority, and
 - (ii) in the case of a proposal for the making of an order under section 106 to add a local government area to the area of the combined authority, that local government area, and
 - (b) have regard to the results of the consultation in preparing the proposal for submission to the Secretary of State.
- (4) The requirements in subsection (3) may be satisfied by things done before the coming into force of this section.
- (5) Before a proposal under this section for the making of an order is submitted to the Secretary of State, each person who would have to consent to the making of the order must consent to the submission of the proposal.
- (6) If a proposal under this section is submitted to the Secretary of State by an authority, the authority is to be treated as having consented to its submission for the purposes of [subsection \(5\)](#).
- (7) In determining for the purposes of [subsection \(5\)](#) who would have to consent to the making of an order under section 105A, subsections (3) and (4) of section 105B (limited consent requirements) are to be disregarded.
- (8) In determining for the purposes of [subsection \(5\)](#) who would have to consent to the making of an order under section 107A, section 107B(3)(b) (limited consent requirements) is to be disregarded.
- (9) A proposal under this section must specify the purposes to be achieved by the order which it proposes should be made.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (10) The Secretary of State may by regulations—
 - (a) make further provision about the matters which must be addressed by a proposal under this section;
 - (b) make provision about material which must be included in or submitted with a proposal under this section.
- (11) Regulations under [subsection \(10\)](#) may make incidental, supplementary, consequential, transitional, transitory or saving provision.”
- (4) Section 113 (requirements in connection with changes to existing combined arrangements) is amended in accordance with subsections [\(5\)](#) to [\(9\)](#).
- (5) In subsection (1), for “106 or 107” substitute “105A, 106, 107, 107A, 107D or 107F”.
- (6) In subsection (1), for paragraph (a) (and the “and” at the end of that paragraph) substitute—
 - “(a) the Secretary of State considers that to do so is likely to improve the economic, social and environmental well-being of some or all of the people who live or work in the area,
 - (aa) the Secretary of State considers that to do so is appropriate having regard to the need—
 - (i) to secure effective and convenient local government, and
 - (ii) to reflect the identities and interests of local communities,
 - (ab) where a proposal for the making of the order has been submitted under section 112A, the Secretary of State considers that making the order will achieve the purposes specified under [subsection \(9\)](#) of that section, and”.
- (7) For subsection (1A) substitute—

“(1A) If a proposal for the making of the order has been submitted under section 112A, the Secretary of State must have regard to the proposal in making the order.”
- (8) In subsection (2), for paragraphs (a) and (b) (and the “and” at the end of paragraph (b)) substitute—
 - “(a) a proposal has been prepared under section 112A,
 - (b) a public consultation has been carried out in connection with the proposal and the Secretary of State has been provided with a summary of the consultation responses, and”.
- (9) Omit subsection (3).
- (10) This section does not affect—
 - (a) the operation of section 111 of the Local Democracy, Economic Development and Construction Act 2009 in relation to a review that began before this section came into force, or
 - (b) the operation of section 112 of that Act in relation to the preparation and publication of a scheme following such a review.
- (11) The amendments made by subsections [\(5\)](#) to [\(9\)](#) do not apply to section 113 of that Act as it has effect in relation to—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the making of an order in response to a scheme under section 112 of that Act, or
- (b) the making of an order otherwise than in response to a scheme, where a draft of the statutory instrument containing the order was laid before Parliament before the coming into force of this section.

(12) The requirement to consult under section 113(2) of the Local Democracy, Economic Development and Construction Act 2009, as amended by this section, may be satisfied by consultation before (as well as after) the passing of this Act.

Commencement Information

I62 S. 66 in force at Royal Assent, see [s. 255\(2\)\(i\)](#)

67 Consequential amendments relating to section 65 and 66

- (1) The Local Democracy, Economic Development and Construction Act 2009 is amended as follows.
- (2) In section 105B (section 105A orders: procedure)—
 - (a) in subsection (1)—
 - (i) in paragraph (a), for “by the appropriate authorities,” substitute “—
 - (i) as part of a proposal under section 109A, or
 - (ii) in accordance with section 112A,” and
 - (ii) in paragraph (b), for the words from “the exercise” to the end of the paragraph substitute “the economic, social and environmental well-being of some or all of the people who live or work in the area or areas to which the order relates”, and
 - (b) omit subsection (11).
- (3) In section 107B (requirements in connection with orders under section 107A)—
 - (a) in subsection (1), for “by the appropriate authorities,” substitute “—
 - (a) as part of a proposal under section 109A, or
 - (b) in accordance with section 112A,” and
 - (b) omit subsection (2).
- (4) The amendments made by this section do not affect the operation of section 105B or 107B of the Local Democracy, Economic Development and Construction Act 2009 in relation to a proposal under that section made before the coming into force of this section.

Commencement Information

I63 [S. 67](#) in force at 26.12.2023, see [s. 255\(2\)\(j\)](#)

68 Regulations applying to combined authorities

- (1) Section 117 of the Local Democracy, Economic Development and Construction Act 2009 (orders under Part 6) is amended as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) In the heading, after “Orders” insert “and regulations”.
- (3) In subsection (1), after “Orders” insert “and regulations”.
- (4) In subsection (1A), after “An order” insert “or regulations”.
- (5) After subsection (3) insert—
 - “(3A) A statutory instrument that contains (whether alone or with any other provisions) regulations under section 104C(1), 104C(4), or 107K(1) may not be made unless a draft of the instrument containing the regulations has been laid before, and approved by a resolution of, each House of Parliament.
 - (3B) A statutory instrument that—
 - (a) contains regulations under section 109A(8) or 112A(10), and
 - (b) is not by virtue of subsection (3A) subject to a requirement that a draft of the instrument be laid before, and approved by a resolution of, each House of Parliament,
 is subject to annulment by resolution of either House of Parliament.”
- (6) In subsection (4), after “Part” insert “or of regulations under section 104C(1) or (4)”.

Commencement Information

I64 S. 68 in force at 26.12.2023, see s. 255(2)(j)

69 Combined authorities and combined county authorities: power to borrow

In section 23 of the Local Government Act 2003 (meaning of “local authority” for the purposes of Part 1), after subsection (10) insert—

- “(10A) If a draft of a statutory instrument containing regulations under subsection (5) or (8A) would, apart from this subsection, be treated for the purposes of the standing orders of either House of Parliament as a hybrid instrument, it is to proceed in that House as if it were not such an instrument.”

Commencement Information

I65 S. 69 in force at 26.12.2023, see s. 255(2)(j)

70 Payment of allowances to committee members

- (1) In Schedule 5A to the Local Democracy, Economic Development and Construction Act 2009 (combined authorities: overview and scrutiny committees and audit committees)—
 - (a) in paragraph 3(2) (power by order to make further provision about overview and scrutiny committees), after paragraph (a) insert—
 - “(aa) about the payment of allowances to members of such a committee who are members of a constituent council;”, and
 - (b) in paragraph 4(3) (power by order to make further provision about audit committees), after paragraph (b) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(c) the payment of allowances to members of the committee who are members of a constituent council (within the meaning of paragraph 3).”

(2) In Schedule 5C to that Act (mayors for combined authority areas: police and crime commissioner functions), after paragraph 5 insert—

“5A The Secretary of State may by order make provision about the payment of allowances to members of a police and crime panel established by virtue of an order under paragraph 4 who are members of a constituent council (within the meaning of paragraph 3 of Schedule 5A).”

Commencement Information

I66 S. 70 in force at 26.12.2023, see s. 255(2)(j)

Local authority governance

71 Timing for changes in governance arrangements

(1) The Local Government Act 2000 is amended as follows.

(2) In section 9KC (resolution of local authority)—

(a) in subsection (4)—

(i) the words from “Resolution B is approved” to the end of the subsection become paragraph (a), and

(ii) at the end of that paragraph insert “, or

(b) subsection (4A) applies and Resolution B is passed in accordance with subsection (4E).”, and

(b) after subsection (4) insert—

“(4A) This subsection applies where Resolution B—

(a) makes a change in governance arrangements—

(i) under section 9K for the local authority to start to operate executive arrangements, or

(ii) under section 9KA for the local authority to vary its executive arrangements so that they provide for a mayor and cabinet executive, and

(b) has not been approved in a referendum held in accordance with this Chapter.

(4B) Where subsection (4A) applies, the local authority may submit a proposal to the Secretary of State for consent to pass Resolution B before the end of the period of 5 years beginning with the date Resolution A is passed.

(4C) A proposal must specify—

(a) the change in governance arrangements to be made by Resolution B, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) how the change is likely to improve the economic, social and environmental well-being of some or all of the people who live or work in the area of the local authority.
 - (4D) The Secretary of State may consent to a proposal only if the Secretary of State considers that the change in governance arrangements is likely to improve the economic, social and environmental well-being of some or all of the people who live or work in the area of the local authority.
 - (4E) If the Secretary of State consents to a proposal, the local authority may pass Resolution B—
 - (a) before the end of the 5 year period beginning with the date Resolution A is passed, but
 - (b) not later than the end of the 3 year period beginning with the date consent is given.
 - (4F) The Secretary of State may by regulations make further provision about—
 - (a) the matters which must be addressed by a proposal under this section, and
 - (b) how a proposal is to be considered by the Secretary of State.”
- (3) In section 9MF (further provision with respect to referendums)—
 - (a) in subsection (1)—
 - (i) the words from “subsection (2)” to the end of the subsection become paragraph (a), and
 - (ii) at the end of that paragraph insert “, or
 - (b) subsection (3A) applies and Referendum B is held in accordance with subsection (3E).”, and
 - (b) after subsection (3) insert—

“(3A) This subsection applies if Referendum B is held under section 9M to approve a change in governance arrangements—

 - (a) under section 9K for the local authority to start to operate executive arrangements, or
 - (b) under section 9KA for the local authority to vary its executive arrangements so that they provide for a mayor and cabinet executive.

(3B) Where subsection (3A) applies, the local authority may submit a proposal to the Secretary of State for consent to hold Referendum B within the period of 10 years beginning with the date of Referendum A.

(3C) A proposal must specify—

 - (a) the change in governance arrangements that is subject to approval in Referendum B, and
 - (b) how the change is likely to improve the economic, social and environmental well-being of some or all of the people who live or work in the area of the local authority.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3D) The Secretary of State may consent to a proposal only if the Secretary of State considers that the change in governance arrangements is likely to improve the economic, social and environmental well-being of some or all of the people who live or work in the area of the local authority.
- (3E) If the Secretary of State consents to a proposal, the local authority may hold Referendum B—
- (a) within the 10 year period beginning with the date of Referendum A, but
 - (b) not later than the end of the 3 year period beginning with the date consent is given.
- (3F) The Secretary of State may by regulations make further provision about—
- (a) the matters which must be addressed by a proposal under this section, and
 - (b) how a proposal is to be considered by the Secretary of State.”

Commencement Information

I67 S. 71 in force at Royal Assent, see [s. 255\(2\)\(k\)](#)

72 Transfer of functions: changes in governance arrangements

- (1) The Local Government Act 2000 is amended in accordance with subsections [\(2\)](#) to [\(5\)](#).
- (2) In section 9KC (resolution of local authority), after subsection (5) insert—
- “(6) See sections [9NC](#) and [9ND](#) (transfer of functions: changes in governance arrangements) for further provision about when a resolution under this section may be passed.”
- (3) In section 9MB (requirement to hold and give effect to referendum)—
- (a) in subsection (4)—
 - (i) the words from “within the period” to the end of the subsection become paragraph (a), and
 - (ii) at the end of that paragraph insert “, or
 - (b) where [paragraph \(b\)](#) of section [9ND\(7\)](#) (transfer of functions: changes in governance arrangements) applies, within the period of 28 days beginning with the day when the regulations mentioned in that subsection are amended or revoked.”, and
- (b) after subsection (5) insert—
- “(6) See section [9ND](#) for further provision about referendums under section 9M.”
- (4) In section 9MF (further provision with respect to referendums), after subsection (6) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(7) See section 9ND (transfer of functions: changes in governance arrangements) for further provision about referendums under section 9MC.”

(5) After section 9NB insert—

“Transfer of functions: changes in governance arrangements

9NC Transfer of functions: changes in governance arrangements not subject to a referendum

- (1) This section applies where—
 - (a) the Secretary of State has made regulations under section 16 of the Cities and Local Government Devolution Act 2016 (power to transfer etc public authority functions to certain local authorities) that provide for a function to be exercisable by a local authority,
 - (b) the local authority proposes to pass a resolution under section 9KC to make a relevant change in governance arrangements, and
 - (c) that change is not—
 - (i) subject to approval in a referendum under section 9M, or
 - (ii) required to be implemented by the local authority in accordance with section 9MF(4) (referendums under sections 9MC to 9ME).
- (2) The local authority may not pass the resolution unless the local authority complies with this section.
- (3) The local authority must notify the Secretary of State of the proposed change in governance arrangements.
- (4) Where the Secretary of State receives such a notification, the Secretary of State must consider whether, as a result of the proposed change in governance arrangements, the regulations mentioned in subsection (1)(a) should be amended or revoked (see section 17(1) of the Cities and Local Government Devolution Act 2016).
- (5) The Secretary of State must notify the local authority of the decision under subsection (4).
- (6) If the Secretary of State considers that the regulations should be amended or revoked, the local authority may not pass the resolution until the regulations have been so amended or revoked.
- (7) If the Secretary of State considers that the regulations should not be amended or revoked, the local authority may pass the resolution.
- (8) In this section—

“function” has the same meaning as in section 16 of the Cities and Local Government Devolution Act 2016;

“relevant change in governance arrangements” means—

 - (a) a change under section 9K for the local authority to cease to operate executive arrangements, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) a change under section 9KA for the local authority to vary its executive arrangements so that they provide for a leader and cabinet executive.
- (9) This section is subject to section 9KC(3) and (4) (timing of change in governance arrangements).

9ND Transfer of functions: changes in governance arrangements subject to a referendum

- (1) This section applies where—
 - (a) the Secretary of State has made regulations under section 16 of the Cities and Local Government Devolution Act 2016 (power to transfer etc public authority functions to certain local authorities) that provide for a function to be exercisable by a local authority,
 - (b) the local authority proposes to pass a resolution under section 9KC to make a relevant change in governance arrangements, and
 - (c) that change is subject to approval in a referendum under section 9M.
- (2) This section also applies where—
 - (a) the Secretary of State has made regulations under section 16 of the Cities and Local Government Devolution Act 2016 that provide for a function to be exercisable by a local authority, and
 - (b) the local authority is required by regulations under section 9MC (referendum following petition) to hold a referendum on whether the authority should make a relevant change in governance arrangements.
- (3) The local authority may not—
 - (a) hold the referendum mentioned in subsection (1)(c) or (2)(b), or
 - (b) pass a resolution which makes the proposed change in governance arrangements,unless the local authority complies with this section.
- (4) The local authority must notify the Secretary of State of the proposed change in governance arrangements.
- (5) Where the Secretary of State receives such a notification, the Secretary of State must consider whether, as a result of the proposed change in governance arrangements, the regulations mentioned in subsection (1)(a) or (2)(a) should be amended or revoked (see section 17(1) of the Cities and Local Government Devolution Act 2016).
- (6) The Secretary of State must notify the local authority of the decision under subsection (5).
- (7) If the Secretary of State considers that the regulations should be amended or revoked—
 - (a) the local authority may hold the referendum mentioned in subsection (1)(c) or (2)(b), but
 - (b) if the result of the referendum is to approve the proposals, the local authority may not pass a resolution which makes the proposed change in governance arrangements until the regulations have been so amended or revoked.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (8) If the Secretary of State considers that the regulations should not be amended or revoked, the local authority may hold the referendum mentioned in subsection (1)(c) or (2)(b) and (if the result of the referendum is to approve the proposals) pass the resolution.
- (9) In this section “function” and “relevant change in governance arrangements” have the same meaning as in section 9NC.
- (10) This section is subject to sections 9KC(3) and (4), 9MB and 9MF (timing of change in governance arrangements etc).”
- (6) In section 17 of the Cities and Local Government Devolution Act 2016 (section 16: procedure etc)—
 - (a) in subsection (1)—
 - (i) omit the “and” at the end of paragraph (a), and
 - (ii) after paragraph (b) insert “, and
 - (c) where subsection (4A) applies to the regulations, the Secretary of State has had regard to the matters in subsection (4B).”, and
 - (b) after subsection (4) insert—
 - “(4A) This subsection applies to regulations under section 16 that—
 - (a) revoke or otherwise amend previous regulations under that section, and
 - (b) are made in response to a notification from a local authority under section 9NC(3) or 9ND(4) of the Local Government Act 2000 (transfer of functions: changes in governance arrangements) of a proposed change in governance arrangements.
 - (4B) The matters mentioned in subsection (1)(c) are—
 - (a) the circumstances of the area of the local authority, and
 - (b) the likely impact of the change in governance arrangements on—
 - (i) the economic, social and environmental well-being of some or all of the people who live or work in the area of the local authority, and
 - (ii) the accountability and decision-making of the local authority.”

Commencement Information

I68 S. 72 in force at Royal Assent, see s. 255(2)(k)

73 Power to transfer etc public authority functions to certain local authorities

In section 17 of the Cities and Local Government Devolution Act 2016 (procedure for making regulations under section 16)—

- (a) in subsection (1)(b), for “the exercise of statutory functions” substitute “the economic, social and environmental well-being of some or all of the people who live or work”, and

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

(b) before subsection (5) insert—

“(4C) The requirement in subsection (1)(b) does not apply to the making of regulations under section 16 where subsection (4A) applies to those regulations.”

Commencement Information

I69 S. 73 in force at 26.12.2023, see s. 255(2)(l)

Police and crime commissioners and the Mayor’s Office for Policing and Crime

74 Participation of police and crime commissioners at certain local authority committees

In section 102(9) of the Local Government Act 1972 (appointment of committees), for “to which the commissioner is appointed in accordance with this section”, substitute “described in subsection (6)”.

Commencement Information

I70 S. 74 in force at 26.12.2023, see s. 255(2)(l)

PROSPECTIVE

75 Disposal of land

In section 123 of the Local Government Act 1972 (disposal of land by principal councils), after subsection (2B) insert—

“(2C) Police and crime commissioners and the Mayor’s Office for Policing and Crime are to be treated as principal councils for the purposes of this section.”

Commencement Information

I71 S. 75 not in force at Royal Assent, see s. 255(2)(m)

Alternative mayoral titles

76 Combined authorities: alternative mayoral titles

After section 107G of the Local Democracy, Economic Development and Construction Act 2009 insert—

“107H Alternative mayoral titles: new mayoral combined authorities

(1) This section applies to a mayoral combined authority where the order made under section 107A (power to provide for election of mayor) in relation to the

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

authority comes into force on or after the date on which this section comes into force.

- (2) At the first meeting of the authority after the order made under section 107A comes into force, the authority must, by a resolution in accordance with subsection (4)—
 - (a) provide that the mayor for the area of the authority is to be known by the title of mayor, or
 - (b) change the title by which the mayor for the area of the authority is to be known to an alternative title mentioned in subsection (3).
- (3) The alternative titles are—
 - (a) county commissioner;
 - (b) county governor;
 - (c) elected leader;
 - (d) governor;
 - (e) a title that the authority considers more appropriate than the alternative titles mentioned in paragraphs (a) to (d), having regard to the title of other public office holders in the area of the authority.
- (4) The following requirements must be met in relation to the resolution mentioned in subsection (2)—
 - (a) particulars of the resolution must be included in the notice of the meeting,
 - (b) where the resolution includes a proposed alternative title mentioned in subsection (3)(e), the resolution must specify why the authority considers that the title is more appropriate than the other alternative titles mentioned in subsection (3), and
 - (c) the resolution must be passed at the meeting by a simple majority of the members of the authority who vote on it.
- (5) Subsections (6) and (7) apply where under this section a mayoral combined authority changes the title by which the mayor for the area of the authority is to be known to an alternative title.
- (6) The authority must—
 - (a) send notice of the change to the Secretary of State,
 - (b) publish the notice in the area of the authority in such manner as the authority considers appropriate, and
 - (c) publish the notice in such other manner as the Secretary of State may direct.
- (7) Where this subsection applies—
 - (a) a reference in any enactment (whenever passed or made) to the mayor for the area of the authority is, unless the context otherwise requires, to be read as a reference to the alternative title by which the mayor is to be known, and
 - (b) references to mayor, mayoral (except in the expression “mayoral combined authority”) and deputy mayor are to be construed accordingly.
- (8) A change of title under this section does not affect the rights or obligations of any person or render defective any legal proceedings; and any legal

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

proceedings may be commenced or continued as if there had been no change of title.

- (9) In this section a reference to a member of a combined authority does not include a non-constituent member.
- (10) In this section “enactment”—
- (a) includes an enactment comprised in subordinate legislation within the meaning of the Interpretation Act 1978, but
 - (b) does not include this section or sections [107I](#) and [107J](#).

107I Alternative mayoral titles: existing mayoral combined authorities

- (1) This section applies to a mayoral combined authority where the order made under section 107A (power to provide for election of mayor) in relation to the authority comes into force before the date on which this section comes into force.
- (2) The authority may, by a resolution in accordance with subsection [\(3\)](#), change the title by which the mayor for the area of the authority is to be known to one of the following alternative titles—
- (a) county commissioner;
 - (b) county governor;
 - (c) elected leader;
 - (d) governor;
 - (e) a title that the authority considers more appropriate than the alternative titles mentioned in paragraphs [\(a\)](#) to [\(d\)](#), having regard to the title of other public office holders in the area of the authority.
- (3) The following requirements must be met in relation to the resolution—
- (a) the resolution must be considered at the first meeting of the authority held after a qualifying election for the return of the mayor,
 - (b) particulars of the resolution must be included in the notice of the meeting,
 - (c) where the resolution includes a proposed alternative title mentioned in subsection [\(2\)\(e\)](#), the resolution must specify why the authority considers that the title is more appropriate than the other alternative titles mentioned in subsection [\(2\)](#), and
 - (d) the resolution must be passed at the meeting by a simple majority of the members of the authority who vote on it.
- (4) Subsections [\(5\)](#) and [\(6\)](#) apply where under this section a mayoral combined authority changes the title by which the mayor for the area of the authority is to be known to an alternative title.
- (5) The authority must—
- (a) send notice of the change to the Secretary of State,
 - (b) publish the notice in the area of the authority in such manner as the authority considers appropriate, and
 - (c) publish the notice in such other manner as the Secretary of State may direct.
- (6) Where this subsection applies—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) a reference in any enactment (whenever passed or made) to the mayor for the area of the authority is, unless the context otherwise requires, to be read as a reference to the alternative title by which the mayor is to be known, and
 - (b) references to mayor, mayoral (except in the expression “mayoral combined authority”) and deputy mayor are to be construed accordingly.
- (7) A change of title under this section does not affect the rights or obligations of any person or render defective any legal proceedings; and any legal proceedings may be commenced or continued as if there had been no change of title.
- (8) In this section a reference to a member of a combined authority does not include a non-constituent member.
- (9) In this section—
 - “enactment” has the same meaning as in section 107H;
 - “qualifying election” means an election for the return of the mayor, other than—
 - (a) the first election for the return of the mayor, and
 - (b) an election caused by a vacancy in the office of the mayor occurring before expiry of the mayor’s term of office.
- (10) This section is subject to section 107J.

107J Alternative mayoral titles: further changes

- (1) This section applies where a mayoral combined authority has—
 - (a) by a resolution under section 107H or 107I or by a previous resolution under this section, changed the title by which the mayor for the area of the authority is to be known to an alternative title,
 - (b) by a resolution under section 107H, provided that the mayor for the area of the authority is to be known by the title of mayor, or
 - (c) by a previous resolution under this section, provided that the mayor for the area of the authority is no longer to be known by an alternative title.
- (2) The authority may, by a resolution in accordance with subsection (4)—
 - (a) in a subsection (1)(a) case—
 - (i) provide that the mayor is no longer to be known by the alternative title, or
 - (ii) change the title by which the mayor is to be known to an alternative title mentioned in subsection (3);
 - (b) in a subsection (1)(b) or (c) case, change the title by which the mayor is to be known to an alternative title mentioned in subsection (3).
- (3) The alternative titles are—
 - (a) county commissioner;
 - (b) county governor;
 - (c) elected leader;
 - (d) governor;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (e) a title that the authority considers more appropriate than the alternative titles mentioned in paragraphs (a) to (d), having regard to the title of other public office holders in the area of the authority.
- (4) The following requirements must be met in relation to the resolution mentioned in subsection (2)—
 - (a) the resolution must be considered at a relevant meeting of the authority,
 - (b) particulars of the resolution must be included in the notice of the meeting,
 - (c) where the resolution includes a proposed alternative title mentioned in subsection (3)(e), the resolution must specify why the authority considers that the title is more appropriate than the other alternative titles mentioned in subsection (3), and
 - (d) the resolution must be passed at the meeting by a simple majority of the members of the authority who vote on it.
- (5) In subsection (4)(a) “relevant meeting” means the first meeting of the authority held after a qualifying election for the return of the mayor, provided that the election is at least the third qualifying election since the resolution mentioned in subsection (1) was passed.
- (6) Where under this section an authority provides that the mayor for the area of the authority is no longer to be known by an alternative title, the authority must—
 - (a) send notice of the change to the Secretary of State,
 - (b) publish the notice in the area of the authority in such manner as the authority considers appropriate, and
 - (c) publish the notice in such other manner as the Secretary of State may direct.
- (7) Subsections (8) and (9) apply where under this section an authority changes the title by which the mayor for the area of the authority is to be known to an alternative title.
- (8) The authority must—
 - (a) send notice of the change to the Secretary of State,
 - (b) publish the notice in the area of the authority in such manner as the authority considers appropriate, and
 - (c) publish the notice in such other manner as the Secretary of State may direct.
- (9) Where this subsection applies—
 - (a) a reference in any enactment (whenever passed or made) to the mayor for the area of the authority is, unless the context otherwise requires, to be read as a reference to the alternative title by which the mayor is to be known, and
 - (b) references to mayor, mayoral (except in the expression “mayoral combined authority”) and deputy mayor are to be construed accordingly.
- (10) A change of title under this section does not affect the rights or obligations of any person, or render defective any legal proceedings; and any legal

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

proceedings may be commenced or continued as if there had been no change of title.

- (11) Where a combined authority to which section 107H applies does not pass a resolution as required by subsection (2) of that section, the authority is to be treated for the purposes of this section as if, at the meeting mentioned in that subsection, it had passed the resolution mentioned in section 107H(2)(a) (providing that the mayor is to be known by the title of mayor).
- (12) In this section a reference to a member of a combined authority does not include a non-constituent member.
- (13) In this section—
 - “enactment” has the same meaning as in section 107H;
 - “qualifying election” has the same meaning as in section 107I.

107K Power to amend list of alternative titles

- (1) The Secretary of State may by regulations amend section 107H(3), 107I(2) or 107J(3) to add, modify or remove a reference to an alternative title or a description of an alternative title.
- (2) Regulations under subsection (1) may make incidental, supplementary, consequential, transitional, transitory or saving provision, including provision which makes consequential amendments to section 107H, 107I or 107J.”

Commencement Information

I72 S. 76 in force at 26.12.2023, see s. 255(2)(n)

77 Local authorities in England: alternative mayoral titles

- (1) The Local Government Act 2000 is amended as follows.
- (2) After section 9HE insert—

“9HF Alternative mayoral titles

- (1) A local authority within subsection (8) may, by a resolution in accordance with subsection (2), change the title by which the elected mayor of the authority is to be known to one of the following alternative titles—
 - (a) county commissioner;
 - (b) county governor;
 - (c) elected leader;
 - (d) governor;
 - (e) a title that the authority considers more appropriate than the alternative titles mentioned in paragraphs (a) to (d), having regard to the title of other public office holders in the area of the authority.
- (2) The following requirements must be met in relation to the resolution—
 - (a) the resolution must be considered at a relevant meeting of the authority,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) particulars of the resolution must be included in the notice of the meeting,
 - (c) where the resolution includes a proposed alternative title mentioned in subsection (1)(e), the resolution must specify why the authority considers that the title is more appropriate than the other alternative titles mentioned in subsection (1), and
 - (d) the resolution must be passed at the meeting by a simple majority of the members of the authority who vote on it.
- (3) In subsection (2)(a) “relevant meeting” means—
 - (a) in the case of a local authority within subsection (8)(a), the first meeting of the authority held after a qualifying election for the return of the elected mayor,
 - (b) in the case of a local authority within subsection (8)(b), the meeting of the authority at which the resolution under section 9KC (resolution of local authority) is passed, and
 - (c) in the case of a local authority within subsection (8)(c), the first meeting of the authority held after the referendum mentioned in section 9N is held.
- (4) Subsections (5) and (6) apply where under this section a local authority changes the title by which the elected mayor of the authority is to be known to an alternative title.
- (5) The authority must—
 - (a) send notice of the change to the Secretary of State,
 - (b) publish the notice in the area of the authority in such manner as the authority considers appropriate, and
 - (c) publish the notice in such other manner as the Secretary of State may direct.
- (6) Where this subsection applies—
 - (a) a reference in any enactment (whenever passed or made) to the elected mayor of the authority is, unless the context otherwise requires, to be read as a reference to the alternative title by which the elected mayor is to be known, and
 - (b) references to mayor, mayoral and deputy mayor are to be construed accordingly.
- (7) A change of title under this section does not affect the rights or obligations of any person or render defective any legal proceedings; and any legal proceedings may be commenced or continued as if there had been no change of title.
- (8) A local authority is within this subsection if—
 - (a) it operates a mayor and cabinet executive,
 - (b) it passes a resolution in accordance with section 9KC (resolution of local authority) to make a change in governance arrangements which provides for the authority to operate a mayor and cabinet executive, or
 - (c) it holds a referendum by virtue of an order under section 9N (referendum on change to mayor and cabinet executive) and the

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

proposal for the authority to operate a mayor and cabinet executive is approved in that referendum.

- (9) The Secretary of State may by regulations amend subsection (1) to add, modify or remove a reference to an alternative title or a description of an alternative title.
- (10) In this section—
- “enactment”—
 - (a) includes an enactment comprised in subordinate legislation within the meaning of the Interpretation Act 1978, but
 - (b) does not include this section or section 9HG;
 - “qualifying election” means an election for the return of the elected mayor, other than—
 - (a) the first election for the return of the elected mayor, and
 - (b) an election caused by a vacancy in the office of the elected mayor occurring before expiry of the elected mayor’s term of office.
- (11) This section is subject to section 9HG.

9HG Alternative mayoral titles: further changes

- (1) This section applies where a local authority has—
- (a) by a resolution under section 9HF or by a previous resolution under this section, changed the title by which the elected mayor of the authority is to be known to an alternative title, or
 - (b) by a previous resolution under this section, provided that the elected mayor of the authority is no longer to be known by an alternative title.
- (2) The authority may, by a resolution in accordance with subsection (4)—
- (a) in a subsection (1)(a) case—
 - (i) provide that the elected mayor is no longer to be known by the alternative title, or
 - (ii) change the title by which the elected mayor is to be known to an alternative title mentioned in subsection (3);
 - (b) in a subsection (1)(b) case, change the title by which the elected mayor is to be known to an alternative title mentioned in subsection (3).
- (3) The alternative titles are—
- (a) county commissioner;
 - (b) county governor;
 - (c) elected leader;
 - (d) governor;
 - (e) a title that the authority considers more appropriate than the alternative titles mentioned in paragraphs (a) to (d), having regard to the title of other public office holders in the area of the authority.
- (4) The following requirements must be met in relation to the resolution mentioned in subsection (2)—
- (a) the resolution must be considered at a relevant meeting of the authority,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) particulars of the resolution must be included in the notice of the meeting,
 - (c) where the resolution includes a proposed alternative title mentioned in subsection (3)(e), the resolution must specify why the authority considers that the title is more appropriate than the other alternative titles mentioned in subsection (3), and
 - (d) the resolution must be passed at the meeting by a simple majority of the members of the authority who vote on it.
- (5) In subsection (4)(a) “relevant meeting” means the first meeting of the authority held after a qualifying election for the return of the elected mayor, provided that the election is at least the third qualifying election since the resolution mentioned in subsection (1) was passed.
- (6) Where under this section a local authority provides that the elected mayor of the authority is no longer to be known by an alternative title, the authority must—
 - (a) send notice of the change to the Secretary of State,
 - (b) publish the notice in the area of the authority in such manner as the authority considers appropriate, and
 - (c) publish the notice in such other manner as the Secretary of State may direct.
- (7) Subsections (8) and (9) apply where under this section a local authority changes the title by which the elected mayor of the authority is to be known to an alternative title.
- (8) The authority must—
 - (a) send notice of the change to the Secretary of State,
 - (b) publish the notice in the area of the authority in such manner as the authority considers appropriate, and
 - (c) publish the notice in such other manner as the Secretary of State may direct.
- (9) Where this subsection applies—
 - (a) a reference in any enactment (whenever passed or made) to the elected mayor of the authority is, unless the context otherwise requires, to be read as a reference to the alternative title by which the elected mayor is to be known, and
 - (b) references to mayor, mayoral and deputy mayor are to be construed accordingly.
- (10) A change of title under this section does not affect the rights or obligations of any person, or render defective any legal proceedings; and any legal proceedings may be commenced or continued as if there had been no change of title.
- (11) The Secretary of State may by regulations amend subsection (3) to add, modify or remove a reference to an alternative title or a description of an alternative title.
- (12) In this section “enactment” and “qualifying election” have the same meaning as in section 9HF.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3) In section 105(6) (orders and regulations), after “9HE,” insert “9HF(9), 9HG(11),”.

Commencement Information

I73 S. 77 in force at Royal Assent, see [s. 255\(2\)\(o\)](#)

Local government capital finance

78 Capital finance risk management

- (1) The Local Government Act 2003 is amended as follows.
- (2) After section 12 (power to invest) insert—

“Risk management: England

12A Risk-mitigation directions

- (1) The Secretary of State may give one or more risk-mitigation directions to a local authority in England, for the purpose of reducing or mitigating the financial risk to the authority, if—
- (a) a trigger event has occurred in relation to the local authority, and
 - (b) the Secretary of State is satisfied that the direction is, or (as the case may be) directions are, appropriate and proportionate to the level of that financial risk.
- (2) A “trigger event” occurs if (and when)—
- (a) a risk threshold is breached by the local authority (see [section 12B](#));
 - (b) a report is made by the chief finance officer of the local authority under section 114(3) of the Local Government Finance Act 1988 (report to effect that authority’s expenditure is likely to exceed available resources); or
 - (c) the Secretary of State—
 - (i) gives a direction under section 16(2)(b) (request for expenditure to be, or not be, treated as capital) in respect of the local authority, or
 - (ii) makes a grant to the local authority under an enactment, for the purpose of preventing circumstances arising that would require such a report to be made.
- (3) The following are “risk-mitigation directions”—
- (a) a direction that sets limits in relation to the borrowing of money by the local authority;
 - (b) a direction that requires the local authority to take action specified in the direction.
- (4) A direction under [subsection \(3\)\(a\)](#)—
- (a) may set different limits in relation to different kinds of borrowing;
 - (b) must specify the period for which any limit has effect.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (5) A direction under [subsection \(3\)\(b\)](#)—
- (a) may (amongst other things) require the local authority to take action to divest itself of a specified asset;
 - (b) must specify the time by which any specified action must be taken.
- (6) In deciding whether or not to exercise a power to give a direction under this section, the Secretary of State must have regard to—
- (a) the likely impact of the direction on the provision of services to the public by or on behalf of the local authority;
 - (b) the duty imposed on the local authority by section 3(1) of the Local Government Act 1999 (best value duty).
- (7) In deciding whether or not to exercise a power to give a direction under this section, the Secretary of State may, in particular, take account of the likely impact of that decision on the implementation of any central government policy, project or programme.
- (8) The Secretary of State may not give a risk-mitigation direction unless the Secretary of State—
- (a) has given the local authority notice of the proposed direction, and of the right of the local authority to make written representations to the Secretary of State about it within the period specified in the notice, and
 - (b) has considered any representations made by the local authority to the Secretary of State within that period.
- (9) In this section, “financial risk”, in relation to a local authority, means the risk that the expenditure of the local authority (including expenditure it proposes to incur) in the current or any future financial year is likely to exceed, or further exceed, the resources (including sums borrowed) available to it to meet that expenditure.
- (10) This section is subject to [section 12C](#) (restriction of power to give risk-mitigation directions).

12B Risk thresholds

- (1) For the purposes of [section 12A\(2\)\(a\)](#), a risk threshold is breached by a local authority in England if (and when) a capital risk metric for the local authority breaches the specified threshold for that metric.
- (2) Each of the following is a “capital risk metric”—
- (a) the total of a local authority’s debt (including credit arrangements) as compared to the financial resources at the disposal of the authority;
 - (b) the proportion of the total of a local authority’s capital assets which is investments made, or held, wholly or mainly in order to generate financial return;
 - (c) the proportion of the total of a local authority’s debt (including credit arrangements) in relation to which the counter-party is not central government or a local authority;
 - (d) the amount of minimum revenue provision charged by a local authority to a revenue account for a financial year;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (e) any other metric specified by regulations made by the Secretary of State.
- (3) The Secretary of State may, by regulations, make further provision—
 - (a) specifying whether the specified threshold for a particular metric is breached by a failure to reach that threshold or by that threshold being exceeded;
 - (b) about how the metrics specified in, or under, [subsection \(2\)](#) are to be calculated for the purpose of determining whether the specified threshold for that metric has been breached.
- (4) Before making regulations under [subsection \(2\)\(e\)](#), the Secretary of State must consult all local authorities in England.
- (5) In this section—
 - “capital asset” has the meaning given by section 9;
 - “minimum revenue provision” has the meaning given by regulation 27 of the Local Authorities (Capital Finance and Accounting)(England) Regulations 2003 ([S.I. 2003/3146](#));
 - “specified” means specified, or determined in a manner specified, in regulations made by the Secretary of State.
- (6) Regulations may require a specified threshold to be determined having regard to guidance issued under section 21(1A) (accounting practices).

12C Restriction of power to give risk-mitigation directions

- (1) If, after the power to give risk-mitigation directions becomes exercisable under [section 12A\(1\)](#) in relation to a local authority—
 - (a) at least 12 months have elapsed since the Secretary of State last became aware of a trigger event having occurred in relation to the authority,
 - (b) any risk-mitigation direction given to the authority has been complied with or revoked, and
 - (c) the Secretary of State is satisfied no further risk-mitigation direction is likely to be required in the foreseeable future for the purpose of reducing or mitigating the financial risk to the authority,
 the Secretary of State must give the local authority a notice to that effect (“a cessation notice”).
- (2) Where a cessation notice is given, the power conferred by [section 12A\(1\)](#) is no longer exercisable, in relation to that authority, by reason of any trigger event of which the Secretary of State was aware at the time that notice was given.
- (3) In this section “risk-mitigation direction”, “trigger event” and “financial risk” have the same meaning as in [section 12A](#).

12D Duty to cooperate with independent expert

- (1) This section applies where—
 - (a) a trigger event has occurred in relation to a local authority in England,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) [section 12C\(2\)](#) does not apply to prevent the power conferred by [section 12A\(1\)](#) being exercisable, in relation to that authority, by reason of that event, and
 - (c) the Secretary of State has appointed an independent expert to review the level of the financial risk to the local authority.
- (2) The local authority must, so far as reasonably practicable, co-operate with the independent expert in any way that the independent expert considers necessary or expedient for the purposes of the conduct of the review.
- (3) In this section—
 - “financial risk” has the same meaning as in [section 12A](#);
 - “independent expert” means a person—
 - (a) who is independent of the local authority and the Secretary of State, and
 - (b) who has relevant experience or knowledge which is relevant to the matter in question;
 - “trigger event” has the same meaning as in [section 12A](#).”
- (3) In section 2 (control of borrowing), in subsection (1)—
 - (a) after paragraph (b) insert “, or”, and
 - (b) after that paragraph insert—
 - “(c) any limit for the time being applicable to it under section 12A.”
- (4) In section 5 (temporary borrowing)—
 - (a) in subsection (1), after “section 4” insert “or 12A”, and
 - (b) in subsection (2), after “section 4(2)” insert “or 12A”.
- (5) In section 8 (control of credit arrangements), in subsection (1)—
 - (a) after paragraph (b) insert “, or”, and
 - (b) after that paragraph insert—
 - “(c) any limit for the time being applicable to it under section 12A.”
- (6) In section 12 (power to invest), at the end insert—
 - “This is subject to a direction under section 12A (risk-mitigation directions).”
- (7) In section 19 (application to parish and community councils), in subsection (1) for “9 to 13” substitute “9 to 12, 13”.
- (8) In section 23 (meaning of “local authority” in Chapter 3 of Part 1), in subsection (4), after “1 to 8,” insert “[12A](#) to [12D](#),”.

Commencement Information

- I74** S. 78 not in force at Royal Assent, see [s. 255\(2\)\(p\)](#)
I75 [S. 78](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Council tax

79 Long-term empty dwellings: England

- (1) In section 11B of the Local Government Finance Act 1992 (higher amount for long-term empty dwellings: England)—
 - (a) after subsection (1C) insert—

“(1D) In exercising its functions under this section a billing authority must have regard to any guidance issued by the Secretary of State.”;
 - (b) in subsection (8), for “2 years” substitute “1 year”.
- (2) The amendments made by [subsection \(1\)](#) have effect for financial years beginning on or after 1 April 2024 (and, in relation to the amendment made by [subsection \(1\)\(b\)](#), it does not matter whether the period mentioned in section 11B(8) of the Local Government Finance Act 1992 begins before [this section](#) comes into force).

Commencement Information

I76 S. 79 in force at Royal Assent, see [s. 255\(2\)\(q\)](#)

80 Dwellings occupied periodically: England

- (1) The Local Government Finance Act 1992 is amended in accordance with [subsections \(2\)](#) and [\(3\)](#).
- (2) After section 11B (higher amount for long-term empty dwellings: England) insert—

“11C Higher amount for dwellings occupied periodically: England

- (1) For any financial year, a billing authority in England may by determination provide in relation to its area, or such part of its area as it may specify in the determination, that if on any day the conditions mentioned in [subsection \(2\)](#) are satisfied in respect of a dwelling—
 - (a) the discount under section 11(2)(a) does not apply, and
 - (b) the amount of council tax payable in respect of that dwelling and that day is increased by such percentage of not more than 100 as it may specify in the determination.
- (2) The conditions are—
 - (a) there is no resident of the dwelling, and
 - (b) the dwelling is substantially furnished.
- (3) A billing authority’s first determination under this section must be made at least one year before the beginning of the financial year to which it relates.
- (4) In exercising its functions under this section a billing authority must have regard to any guidance issued by the Secretary of State.
- (5) Where a determination under this section has effect in relation to a class of dwellings—
 - (a) the billing authority may not make a determination under section 11A(3), (4) or (4A) in relation to that class, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) any determination that has been made under section 11A(3), (4) or (4A) ceases to have effect in relation to that class.
- (6) A billing authority may make a determination varying or revoking a determination under this section for a financial year, but only before the beginning of the year.
- (7) Where a billing authority makes a determination under this section it must publish a notice of the determination in at least one newspaper circulating in the area.
- (8) The notice must be published before the end of the period of 21 days beginning with the date of the determination.
- (9) The validity of the determination is not affected by a failure to comply with [subsection \(7\)](#) or [\(8\)](#).

11D Section 11C: regulations

- (1) The Secretary of State may by regulations prescribe one or more classes of dwelling in relation to which a billing authority may not make a determination under [section 11C](#).
 - (2) A class of dwellings may be prescribed under [subsection \(1\)](#) by reference to such factors as the Secretary of State thinks fit and may, amongst other factors, be prescribed by reference to—
 - (a) the physical characteristics of, or other matters relating to, dwellings;
 - (b) the circumstances of, or other matters relating to, any person who is liable to the amount of council tax concerned.
 - (3) The Secretary of State may by regulations specify a different percentage limit for the limit which is for the time being specified in [section 11C\(1\)\(b\)](#).
 - (4) A statutory instrument containing regulations made under [subsection \(3\)](#) may not be made unless a draft of the instrument has been approved by resolution of the House of Commons.”
- (3) In consequence of the amendment made by subsection (2)—
- (a) in section 11 (discounts), in subsection (2), after “11B” insert “, 11C”;
 - (b) in section 11A (discounts: special provision for England), in subsection (4C), at the end insert “and 11C(5)”;
 - (c) in section 13 (reduced amounts), in subsection (3), after “11B” insert “, 11C”;
 - (d) in section 66 (judicial review), in subsection (2)(b), after “11B” insert “, 11C”;
 - (e) in section 67 (functions to be discharged only by authority), in subsection (2)(a), after “11B” insert “, 11C”;
 - (f) in section 113 (orders and regulations), in subsection (3), after “under section” insert “11D(3),”;
 - (g) in Schedule 2 (administration), in paragraph 4(7), after “: England),” insert “11C(1)(b) (higher amount for dwellings occupied periodically: England),”.
- (4) A determination for the purposes of section 11C of the Local Government Finance Act 1992 as inserted by [subsection \(2\)](#) may not relate to a financial year beginning before 1 April 2024 (but this does not affect the requirement for the determination to be made at least one year before the beginning of the financial year to which it relates).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I77 S. 80 in force at Royal Assent, see [s. 255\(2\)\(q\)](#)

Street names

81 Alteration of street names: England

- (1) In this section “local authority” means—
 - (a) a district council in England;
 - (b) a county council in England for an area for which there is no district council;
 - (c) a London borough council;
 - (d) the Common Council of the City of London.
- (2) A local authority within [subsection \(1\)\(a\)](#) or [\(b\)](#) may, by order, alter the name of a street, or any part of a street, in its area if the alteration has the necessary support.
- (3) Where a local authority has altered the name of a street, or any part of a street, under [subsection \(2\)](#), it may cause the altered name to be painted or otherwise marked on a conspicuous part of any building or other erection.
- (4) Any person who then wilfully, and without the consent of the local authority, obliterates, defaces, obscures, removes or alters the altered name painted or otherwise marked under [subsection \(3\)](#) is liable to a penalty not exceeding level 1 on the standard scale.
- (5) A local authority within [subsection \(1\)\(c\)](#) or [\(d\)](#) may exercise the power conferred by section 6(1) of the London Building Acts (Amendment) Act 1939 (assigning of names to streets etc) to make an order altering the name of a street, or any part of a street, in its area only if the alteration has the necessary support.
- (6) An alteration has the necessary support for the purposes of this section only if—
 - (a) it has sufficient local support, and
 - (b) where it is an alteration of a specified kind, it has any other support specified as a pre-condition for alterations of that kind.
- (7) Regulations may provide that sufficient local support, or support of a kind specified under [subsection \(6\)\(b\)](#), can only be established in the way, or in one of the alternative ways, specified in the regulations.
- (8) Regulations under [subsection \(7\)](#) may (amongst other things)—
 - (a) make provision enabling a referendum to be held by a local authority, on a question determined by it in accordance with the regulations, for the purposes of establishing whether an alteration has sufficient local support, including provision about the conduct and timing of a referendum and who is entitled to vote;
 - (b) provide that, where a local authority holds a referendum in accordance with regulations made by virtue of [paragraph \(a\)](#), the alteration may not be made unless one or both of the following apply—
 - (i) a specified percentage or number of those entitled to vote in the referendum exercise that right;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (ii) a specified majority of those who vote indicate their support for the alteration;
- (c) provide that, where a local authority has run a process (“the first process”) for the purposes of this section which failed to establish that an alteration of the name of a street (or a part of a street) had sufficient local support, the local authority may not run another such process within a specified period in respect of—
 - (i) if the first process related to the name of a whole street, an alteration of the name of the same street or any part of it;
 - (ii) if the first process related to the name of a part of a street (“the original part”), an alteration of the name of the whole street, of the original part or of any other part which includes some or all of the original part.
- (9) A local authority must have regard to any guidance published by the Secretary of State about—
 - (a) the things to be done before a local authority decides to take steps to establish if an alteration has the necessary support for the purposes of this section;
 - (b) the exercise of other functions conferred on a local authority by or under this section.
- (10) No local Act operates to enable a local authority within [subsection \(1\)\(a\)](#) or [\(b\)](#) to alter the name of a street, or part of a street, in its area.
- (11) In this section—
 - “regulations” means regulations made by the Secretary of State;
 - “specified” means specified in regulations;
 - “street” has the meaning given by section 48(1) of the New Roads and Street Works Act 1991.
- (12) [Schedule 5](#) contains amendments which are consequential on this section.

Commencement Information

- I78** S. 81 not in force at Royal Assent, see [s. 255\(2\)\(r\)](#)
I79 S. 81 in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(b\)](#)

Other provision

82 Powers of parish councils

After section 19 of the Local Government Act 1894 (provisions as to small parishes), insert—

“19A Powers under other enactments

- (1) Nothing in this Part affects any powers, duties or liabilities conferred on a parish council by or under any other enactment (whenever passed or made).
- (2) This section does not apply in relation to community councils (see section 179(4) of the Local Government Act 1972).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I80 [S. 82](#) in force at 26.12.2023, see [s. 255\(2\)\(s\)](#)

83 The Common Council of the City of London: removal of voting restrictions

- (1) In section 618 of the Housing Act 1985 (the Common Council of the City of London), omit subsections (3) and (4).
- (2) In section 224 of the Housing Act 1996 (the Common Council of the City of London), omit subsections (3) and (4).

Commencement Information

I81 [S. 83](#) in force at 26.12.2023, see [s. 255\(2\)\(s\)](#)

PART 3

PLANNING

CHAPTER 1

PLANNING DATA

Modifications etc. (not altering text)

- C2** [Pt. 3 Ch. 1](#): functions in part to be exercisable concurrently by the Secretary of State and the Scottish Ministers (6.2.2025) by [The Scotland Act 1998 \(Transfer of Functions to the Scottish Ministers etc.\) Order 2025 \(S.I. 2025/135\)](#), arts. 1(1), [3](#) (with art. 4(1))

84 Power in relation to the processing of planning data

- (1) Regulations made by an appropriate authority under this Chapter (“planning data regulations”) may make provision requiring a relevant planning authority, in processing such of its planning data as is specified or described in the regulations, to comply with any approved data standards which are applicable.
- (2) “Planning data”, in relation to a relevant planning authority, means any information which is provided to, or processed by, the authority—
 - (a) for the purposes of a function under a relevant planning enactment, or
 - (b) for any other purpose relating to planning or development in England.
- (3) “Approved data standards”, in relation to planning data, are such written standards, containing technical specifications or other requirements in relation to the data, or in relation to providing or processing the data, as may be published by an appropriate authority from time to time.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) A devolved authority may only publish approved data standards in relation to planning data about which the devolved authority acting alone could make planning data regulations.

Modifications etc. (not altering text)

- C3** [S. 84\(3\)](#) function in part to be exercisable concurrently by the Secretary of State and the Scottish Ministers (6.2.2025) by [The Scotland Act 1998 \(Transfer of Functions to the Scottish Ministers etc.\) Order 2025 \(S.I. 2025/135\)](#), arts. 1(1), [3](#) (with art. 4(1))

Commencement Information

- I82** [S. 84](#) not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)
I83 [S. 84](#) in force at 31.3.2024 by [S.I. 2024/389](#), reg. [2\(a\)](#)

85 Power in relation to the provision of planning data

- (1) A relevant planning authority may by publishing a notice require a person, or persons of a particular description, in providing to the authority such planning data as is specified or described in planning data regulations, to provide the data—
- in any form and manner, or
 - in a particular form and manner,
- which complies with any approved data standards which are applicable.
- (2) A relevant planning authority may not impose a requirement under [subsection \(1\)](#)—
- on the Crown,
 - on a court or tribunal, or
 - in relation to the provision of planning data for the purposes of, or in contemplation of, legal proceedings before a court or tribunal.
- (3) If a relevant planning authority imposes a requirement under [subsection \(1\)](#) on a person, provision in a relevant planning enactment does not apply to the extent that it requires or permits the person to provide the planning data to the authority in a form or manner which is inconsistent with the requirement imposed under [subsection \(1\)](#).
- (4) Subsections [\(5\)](#) to [\(7\)](#) apply if—
- in providing planning data to a relevant planning authority, a person fails to comply with a requirement imposed under [subsection \(1\)](#), and
 - the authority does not consider that the person has a reasonable excuse for the failure.
- (5) The authority may serve a notice on the person rejecting for such purposes as may be specified in the notice—
- all or any part of the planning data, and
 - if the authority considers it appropriate to do so, any other information provided with the planning data or any document in or with which the planning data is provided.
- (6) Any planning data, other information or document rejected under [subsection \(5\)](#) is to be treated as not having been provided to the authority for the purposes specified in the notice.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (7) If the planning data, other information or document is subsequently provided to the authority in a form and manner which complies with the requirement under subsection (1), the authority may treat the planning data, other information or document as having been provided at the time that it would have been provided had it not been rejected under subsection (5).
- (8) Planning data regulations may include provision about how the powers in this section are to be exercised, including provision about—
- (a) the provision or publication of notices or other documents;
 - (b) the form and content of notices or other documents (and, for these purposes, the regulations may confer a discretion on a relevant planning authority);
 - (c) time limits;
 - (d) any other procedural matters.

Commencement Information

I84 S. 85 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I85 [S. 85](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(b\)](#)

86 Power to require certain planning data to be made publicly available

- (1) Planning data regulations may make provision requiring a relevant planning authority to make such of its planning data as is specified or described in the regulations available to the public under an approved open licence.
- (2) The power under [subsection \(1\)](#) does not include power to require a relevant planning authority to make planning data available in breach of—
- (a) any obligation of confidence owed by the authority, or
 - (b) any other restriction on making the planning data available (however imposed).
- (3) An “approved open licence”, in relation to a planning authority’s planning data, means a licence—
- (a) which sets out terms and conditions under which the planning data may be used by the public free of charge, and
 - (b) which is in such form and has such content as is, for the time being, specified or described in a document published by the Secretary of State.

Commencement Information

I86 S. 86 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I87 [S. 86](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(c\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

PROSPECTIVE

87 Power to require use of approved planning data software in England

- (1) Planning data regulations made by the Secretary of State may make provision restricting or preventing a relevant planning authority in England from using or creating, or having any right in relation to, planning data software which—
 - (a) is specified or described in the regulations for the purposes of this subsection, but
 - (b) is not approved in writing by the Secretary of State.
- (2) “Planning data software” means software which is capable of being used for the purposes of enabling or facilitating the provision of planning data to, or the processing of planning data by, relevant planning authorities.

Commencement Information

I88 S. 87 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

PROSPECTIVE

88 Disclosure of planning data does not infringe copyright in certain cases

- (1) A relevant planning authority that makes planning data available to a person does not, in doing so, infringe copyright if making the data available is necessary for the purposes of enabling or facilitating—
 - (a) the development of planning data software which is to be submitted for approval under [section 87\(1\)](#), or
 - (b) the upgrade, modification or maintenance of, or the provision of technical support in respect of, planning data software which is approved under [section 87\(1\)](#).
- (2) The person to whom the planning data is made available does not infringe any copyright by using it for the purpose mentioned in subsection (1) for which it is made available.

Commencement Information

I89 S. 88 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

89 Requirements to consult devolved administrations

- (1) The Secretary of State may only make planning data regulations which contain provision—
 - (a) within Scottish devolved legislative competence, or
 - (b) which could be made by the Scottish Ministers,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

with the consent of the Scottish Ministers, unless that provision is merely incidental to, or consequential on, provision that would be outside that devolved legislative competence.

- (2) The Secretary of State may only make planning data regulations which contain provision that confers a function on, or modifies or removes a function of, the Scottish Ministers after consulting the Scottish Ministers, unless—
 - (a) that provision is contained in regulations which require the consent of the Scottish Ministers by virtue of subsection (1), or
 - (b) that provision is merely incidental to, or consequential on, provision that would be outside Scottish devolved legislative competence.
- (3) Provision is “within Scottish devolved legislative competence” where, if the provision were included in an Act of the Scottish Parliament, it would be within the legislative competence of that Parliament.
- (4) The Secretary of State may only make planning data regulations which contain provision within Welsh devolved legislative competence with the consent of the Welsh Ministers, unless that provision is merely incidental to, or consequential on, provision that would be outside that devolved legislative competence.
- (5) The Secretary of State may only make planning data regulations which contain provision that could be made by the Welsh Ministers or that confers a function on, or modifies or removes a function of, the Welsh Ministers or a devolved Welsh authority after consulting the Welsh Ministers, unless—
 - (a) that provision is contained in regulations which require the consent of the Welsh Ministers by virtue of subsection (4), or
 - (b) that provision is merely incidental to, or consequential on, provision that would be outside Welsh devolved legislative competence.
- (6) “Devolved Welsh authority” has the same meaning as in the Government of Wales Act 2006 (see section 157A of that Act).
- (7) Provision is “within Welsh devolved legislative competence” where, if the provision were included in an Act of Senedd Cymru, it would be within the legislative competence of the Senedd (including any provision that could be made only with the consent of a Minister of the Crown).
- (8) The Secretary of State may only make planning data regulations which contain provision within Northern Ireland devolved legislative competence with the consent of the relevant Northern Ireland department, unless that provision is merely incidental to, or consequential on, provision that would be outside that devolved legislative competence.
- (9) The Secretary of State may only make planning data regulations which contain provision that could be made by a Northern Ireland department or that confers a function on, or modifies or removes a function of, a Northern Ireland department after consulting the relevant Northern Ireland department, unless—
 - (a) that provision is contained in regulations which require the consent of the relevant Northern Ireland department by virtue of subsection (8), or
 - (b) that provision is merely incidental to, or consequential on, provision that would be outside Northern Ireland devolved legislative competence.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (10) The “relevant Northern Ireland department” is such Northern Ireland department as the Secretary of State considers appropriate having regard to the provision which is to be contained in the regulations concerned.
- (11) Provision is within “Northern Ireland devolved legislative competence” where the provision—
- (a) would be within the legislative competence of the Northern Ireland Assembly, if contained in an Act of that Assembly, and
 - (b) would not, if contained in a Bill for an Act of the Northern Ireland Assembly, result in the Bill requiring the consent of the Secretary of State.
- (12) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975.

Commencement Information

I90 S. 89 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I91 [S. 89](#) in force at 31.3.2024 by [S.I. 2024/389, reg. 2\(d\)](#)

90 Planning data regulations made by devolved authorities

[Schedule 13](#) contains restrictions on the exercise of the powers under this Chapter by devolved authorities.

Commencement Information

I92 S. 90 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I93 [S. 90](#) in force at 31.3.2024 by [S.I. 2024/389, reg. 2\(e\)](#)

91 Interpretation of Chapter

In this Chapter—

“appropriate authority” means—

- (a) the Secretary of State,
- (b) a devolved authority, or
- (c) the Secretary of State acting jointly with one or more devolved authorities;

“approved data standards” has the meaning given in [section 84\(3\)](#);

“devolved authority” means—

- (a) the Scottish Ministers,
- (b) the Welsh Ministers, or
- (c) a Northern Ireland department;

“planning data” has the meaning given in [section 84\(2\)](#);

“planning data regulations” has the meaning give in [section 84\(1\)](#);

“planning data software” has the meaning given in [section 87\(2\)](#);

“process”, in relation to information, means to perform an operation or set of operations on information, or on sets of information, such as—

- (a) collection, recording, organisation, structuring or storage,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) adaptation or alteration,
- (c) retrieval, consultation or use,
- (d) disclosure by transmission, dissemination or otherwise making available,
- (e) alignment or combination, or
- (f) restriction, erasure or destruction;

“provided” includes submitted, issued, served, notified and published (and related expressions are to be construed accordingly);

“public authority” means any person certain of whose functions are of a public nature;

“relevant planning authority” means—

- (a) a local planning authority (within the meaning given in [section 15LH](#) of PCPA 2004),
- (b) a minerals and waste planning authority (within the meaning given in [section 15LH](#) of PCPA 2004),
- (c) a hazardous substances authority (within the meaning given in the Hazardous Substances Act) in relation to land in England,
- (d) a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009,
- (e) a combined county authority established under section 9 of this Act,
- (f) the Greater London Authority,
- (g) the Mayor of London,
- (h) a Mayoral development corporation in relation to which a decision of the Mayor under any of subsections (2) to (5) of section 202 of the Localism Act 2011 has effect,
- (i) an urban development corporation established, for an area in England, under section 135 of the Local Government, Planning and Land Act 1980,
- (j) a development corporation established, in relation to a site in England, under section 3 of the New Towns Act 1981,
- (k) the Secretary of State when exercising a function under a relevant planning enactment,
- (l) a Panel or person who, pursuant to a decision of the Secretary of State under section 61(2) of the Planning Act 2008, is to handle an application for an order granting development consent,
- (m) a public authority that has functions under [Part 6](#) of this Act, or
- (n) any other public authority prescribed by planning data regulations that has functions relating to—
 - (i) planning or development in England, or
 - (ii) nationally significant infrastructure projects (within the meaning given in the Planning Act 2008);

“relevant planning enactment” means any enactment comprised in or made under—

- (a) the Local Government, Planning and Land Act 1980, so far as relating to planning or development in England,
- (b) the New Towns Act 1981, so far as relating to planning or development in England,
- (c) TCPA 1990,
- (d) the Listed Buildings Act,
- (e) the Hazardous Substances Act,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (f) the Planning (Consequential Provisions) Act 1990,
- (g) Part 8 of GLAA 1999,
- (h) PCPA 2004,
- (i) the Planning Act 2008,
- (j) the Localism Act 2011, so far as relating to planning or development in England,
- (k) this Part or Part 4 or 6 of this Act, or
- (l) any other enactment prescribed by planning data regulations to the extent that it confers functions on a public authority relating to—
 - (i) planning or development in England, or
 - (ii) nationally significant infrastructure projects (within the meaning given in the Planning Act 2008).

Commencement Information

I94 S. 91 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I95 [S. 91](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(f\)](#)

CHAPTER 2

DEVELOPMENT PLANS ETC

Development plans and national policy

92 Development plans: content

(1) Section 38 of PCPA 2004 (development plan) is amended as follows.

(2) In subsection (1), for “(2)” substitute “(2A)”.

(3) For subsections (2) and (3) substitute—

“(2A) For the purposes of any area in England the development plan is—

- (a) each spatial development strategy that is operative in relation to that area,
- (b) each local plan which has effect in relation to that area,
- (c) each minerals and waste plan which has effect in relation to that area,
- (d) each supplementary plan which has effect in relation to that area,
- (e) each neighbourhood development plan which has been made in relation to that area, and
- (f) each policies map for that area.”

(4) For subsection (9) substitute—

“(9A) In subsection [\(2A\)](#)—

- (a) “spatial development strategy”, “local plan”, “minerals and waste plan” and “supplementary plan” have the same meaning as in Part 2 (see, in particular, section [15LH](#)), and
- (b) policies map must be construed in accordance with [section 15LD](#).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I96 S. 92 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I97 [S. 92](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(a\)](#) (with [Sch. 1](#))

PROSPECTIVE

93 Role of development plan and national policy in England

(1) Section 38 of PCPA 2004 (development plan) is amended as follows.

(2) After subsection (5) insert—

“(5A) For the purposes of any area in England, subsections [\(5B\)](#) and [\(5C\)](#) apply if, for the purposes of any determination to be made under the planning Acts, regard is to be had to—

- (a) the development plan, and
- (b) any national development management policies.

(5B) Subject to subsections (5) and [\(5C\)](#), the determination must be made in accordance with the development plan and any national development management policies, taken together, unless material considerations strongly indicate otherwise.

(5C) If to any extent the development plan conflicts with a national development management policy, the conflict must be resolved in favour of the national development management policy.”

(3) In subsection (6), for “If” substitute “For the purposes of any area in Wales, if”.

(4) After [subsection \(9A\)](#) (inserted by [section 92\(4\)](#) of this Act) insert—

“(9B) National development management policy must be construed in accordance with [section 38ZA](#).”

(5) [Schedule 6](#) amends various Acts relating to planning so that they provide that, in making a determination, regard is to be had to the development plan and any national development management policies.

Commencement Information

I98 S. 93 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

94 National development management policies: meaning

After section 38 of PCPA 2004 insert—

“38ZA Meaning of “national development management policy”

(1) A “national development management policy” is a policy (however expressed) of the Secretary of State in relation to the development or use of land in

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

England, or any part of England, which the Secretary of State by direction designates as a national development management policy.

- (2) The Secretary of State may—
- (a) revoke a direction under [subsection \(1\)](#);
 - (b) modify a national development management policy.
- (3) The Secretary of State must have regard to the need to mitigate, and adapt to, climate change—
- (a) in preparing a policy which is to be designated as a national development management policy, or
 - (b) in modifying a national development management policy.
- (4) Before making or revoking a direction under [subsection \(1\)](#), or modifying a national development management policy, the Secretary of State must ensure that such consultation with, and participation by, the public or any bodies or persons as the Secretary of State thinks appropriate takes place.
- (5) The only cases in which no consultation or participation need take place under [subsection \(4\)](#) are those where the Secretary of State thinks that none is appropriate because—
- (a) a proposed modification of a national development management policy does not materially affect the policy or only corrects an obvious error or omission, or
 - (b) it is necessary, or expedient, for the Secretary of State to act urgently.”

Commencement Information

I99 S. 94 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I100 S. 94 in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(c\)](#)

PROSPECTIVE

Spatial development strategy for London

95 Contents of the spatial development strategy

(1) Section 334 of GLAA 1999 (the spatial development strategy) is amended as follows.

(2) For subsections (2) to (6) substitute—

“(2A) The spatial development strategy must include a statement of the Mayor’s policies (however expressed), in relation to the development and use of land in Greater London, which are—

- (a) of strategic importance to Greater London, and
- (b) designed to achieve objectives that relate to the particular characteristics or circumstances of Greater London.

(2B) The spatial development strategy may specify or describe infrastructure the provision of which the Mayor considers to be of strategic importance to Greater London for the purposes of—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) supporting or facilitating development in Greater London,
 - (b) mitigating, or adapting to, climate change, or
 - (c) promoting or improving the economic, social or environmental well-being of Greater London.
- (2C) The spatial development strategy may specify or describe affordable housing the provision of which the Mayor considers to be of strategic importance to Greater London.
- (2D) For the purposes of subsections (2A) to (2C) a matter—
 - (a) may be of strategic importance to Greater London if it does not affect the whole area of Greater London, but
 - (b) is not to be regarded as being of strategic importance to Greater London, unless it is of strategic importance to more than one London borough.
- (2E) The Secretary of State may, by regulations under section 343 below, prescribe further matters the spatial development strategy may, or must, deal with.”
- (3) After subsection (8) insert—
 - “(9) The spatial development strategy must be designed to secure that the use and development of land in Greater London contribute to the mitigation of, and adaptation to, climate change.
 - (10) The spatial development strategy must take account of any local nature recovery strategy, under section 104 of the Environment Act 2021, that relates to an area in Greater London, including in particular—
 - (a) the areas identified in the strategy as areas which—
 - (i) are, or could become, of particular importance for biodiversity, or
 - (ii) are areas where the recovery or enhancement of biodiversity could make a particular contribution to other environmental benefits,
 - (b) the priorities set out in the strategy for recovering or enhancing biodiversity, and
 - (c) the proposals set out in the strategy as to potential measures relating to those priorities.
 - (11) The spatial development strategy must not—
 - (a) include anything that is not permitted or required by or under subsections (2A) to (8),
 - (b) specify particular sites where development should take place, or
 - (c) be inconsistent with or (in substance) repeat any national development management policy.”

Commencement Information

I101 S. 95 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

96 Adjustment of terminology

- (1) In section 337 of GLAA 1999 (publication of spatial development strategy)—
 - (a) for the heading substitute “Adoption.”;
 - (b) in subsection (1), for “publish” substitute “adopt”;
 - (c) after that subsection insert—

“(1A) The Mayor adopts the strategy by publishing it together with a statement that it has been adopted.”;
 - (d) in subsection (2), for “published” substitute “adopted”;
 - (e) in subsection (4), for “published”, in both places it occurs, substitute “adopted”;
 - (f) in subsection (5), for “publication” substitute “adoption”;
 - (g) in subsection (6), for “published” substitute “adopted”;
 - (h) in subsection (7), for “publish” substitute “adopt”;
 - (i) in subsection (8), for “publish” substitute “adopt”;
 - (j) in subsection (9), for “published” substitute “adopted”.
- (2) Also in GLAA 1999—
 - (a) in section 41(1)(c), for “published” substitute “adopted”;
 - (b) in section 43(5)(a), for “published”, in both places it occurs, substitute “adopted”;
 - (c) in section 334(1), for “publish” substitute “adopt”;
 - (d) in section 336—
 - (i) in subsection (1), for “publishes” substitute “adopts”;
 - (ii) in subsection (4), for “publish” substitute “adopt”;
 - (e) in section 338(1), for “publishing” substitute “adopting”;
 - (f) in section 341—
 - (i) in subsection (1), for “publish” substitute “adopt”;
 - (ii) in subsection (2), for “publish” substitute “adopt”;
 - (iii) in subsection (3), for “publication”, in both places it occurs, substitute “adoption”;
 - (g) in section 343(1)(c), after “publication,” insert “adoption.”.
- (3) In section 74(1C)(b) of TCPA 1990, for “published” substitute “adopted”.
- (4) Any reference in an enactment to a strategy, or alteration or replacement of a strategy, adopted under Part 8 of GLAA 1999 (or the adoption of it) includes reference to a strategy, alteration or replacement published under that Part before this section comes into force (or the publication of it).

Commencement Information

I102 S. 96 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Local planning

97 Plan making

[Schedule 7](#) contains provision for, and in connection with, joint spatial development strategies, local plans, minerals and waste plans and supplementary plans.

Commencement Information

I103 S. 97 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I104 [S. 97](#) in force at 3.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 2](#)

I105 [S. 97](#) in force at 25.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 3\(b\)](#) (with [Sch. 1](#))

Neighbourhood planning

98 Contents of a neighbourhood development plan

(1) Section 38B of PCPA 2004 (provision that may be made by neighbourhood development plans) is amended as follows.

(2) Before subsection (1) insert—

“(A1) A neighbourhood development plan may include—

- (a) policies (however expressed) in relation to the amount, type and location of, and timetable for, development in the neighbourhood area in the period for which the plan has effect;
- (b) other policies (however expressed) in relation to the use or development of land in the neighbourhood area which are designed to achieve objectives that relate to the particular characteristics or circumstances of that area, any part of that area or one or more specific sites in that area;
- (c) details of any infrastructure requirements, or requirements for affordable housing, to which development in accordance with the policies, included in the plan under paragraph (a) or (b), would give rise;
- (d) requirements with respect to design that relate to development, or development of a particular description, throughout the neighbourhood area, in any part of that area or at one or more specific sites in that area, which the qualifying body considers should be met for planning permission for the development to be granted.”

(3) After subsection (2A) insert—

“(2B) So far as the qualifying body considers appropriate, having regard to the subject matter of the neighbourhood development plan, the plan must—

- (a) be designed to secure that the development and use of land in the neighbourhood area contribute to the mitigation of, and adaptation to, climate change, and
- (b) take account of any local nature recovery strategy, under section 104 of the Environment Act 2021, that relates to all or part of the neighbourhood area, including in particular—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (i) the areas identified in the strategy as areas which—
 - (A) are, or could become, of particular importance for biodiversity, or
 - (B) are areas where the recovery or enhancement of biodiversity could make a particular contribution to other environmental benefits,
- (ii) the priorities set out in the strategy for recovering or enhancing biodiversity, and
- (iii) the proposals set out in the strategy as to potential measures relating to those priorities.

(2C) The neighbourhood development plan must not—

- (a) include anything that is not permitted or required by or under subsections (A1) to (2A) or regulations under subsection (4), or
- (b) be inconsistent with or (in substance) repeat any national development management policy.”

(4) In subsection (4)(b), after “requiring” insert “or permitting”.

Commencement Information

I106 S. 98 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I107 [S. 98](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(c\)](#) (with [Sch. 1](#))

99 Neighbourhood development plans and orders: basic conditions

(1) In paragraph 8(2) of Schedule 4B to TCPA 1990 (basic conditions for making neighbourhood development order or neighbourhood plan)—

- (a) for paragraph (e) substitute—
 - “(ea) the making of the order would not have the effect of preventing development from taking place which—
 - (i) is proposed in the development plan for the area of the authority (or any part of that area), and
 - (ii) if it took place, would provide housing,”;
- (b) after paragraph (f) (but before the “and” at the end of that paragraph) insert—
 - “(fa) any requirements imposed in relation to the order by or under [Part 6](#) of the Levelling-up and Regeneration Act 2023 (environmental outcomes reports) have been complied with,”.

(2) In section 38C(5) of PCPA 2004 (neighbourhood development plans: modifications of Schedule 4B to TCPA 1990), in paragraph (d), for the words from “if” to the end substitute “if—

- (i) sub-paragraphs (2)(b) and (c) were omitted,
- (ii) in sub-paragraph (2), for paragraph (ea) there were substituted—
 - “(ea) the making of the neighbourhood development plan would not result in the development plan for the area of the authority proposing that less housing is

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

provided by means of development taking place in that area than if the neighbourhood development plan were not to be made,” and

(iii) sub-paragraphs (3) to (5) were omitted.”

(3) In paragraph 11(2) of Schedule A2 to PCPA 2004 (modification of neighbourhood development plans: basic conditions)—

(a) for paragraph (c) substitute—

“(ca) the making of the plan would not result in the development plan for the area of the authority proposing that less housing is provided by means of development taking place in that area than if the draft plan were not to be made,”;

(b) after paragraph (d) (but before the “and” at the end of that paragraph) insert—

“(da) any requirements imposed in relation to the plan by or under [Part 6](#) of the Levelling-up and Regeneration Act 2023 (environmental outcomes reports) have been complied with,”.

Commencement Information

I108 S. 99 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I109 [S. 99](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(d\)](#) (with [Sch. 1](#))

Requirement to assist with plan making

100 Requirement to assist with certain plan making

In Part 3 of PCPA 2004 (development), after section 39 (sustainable development) insert—

“Assistance with certain parts of development plan etc

39A Power to require assistance with certain plan making

- (1) Subsection (2) applies if a plan-making authority notifies a prescribed public body in writing that the authority requires the body, under this section, to assist the authority in relation to the preparation or revision of a relevant plan by the authority.
- (2) The prescribed public body must do everything that the plan-making authority reasonably requires of the body to assist the authority in relation to the preparation or revision of the relevant plan.
- (3) The Secretary of State may by regulations make provision as to—
 - (a) what a plan-making authority must, may or may not require a prescribed public body to do under [subsection \(2\)](#);
 - (b) the procedure to be followed in doing anything under this section;
 - (c) the determination of the time by or at which anything must be done under this section;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (d) the form and content of a notification under [subsection \(1\)](#) or of any other document or information provided under this section.
- (4) A “plan-making authority” is a body which, or other person who, is to prepare or revise (whether acting alone or jointly) a relevant plan.
- (5) Each of the following is a “relevant plan”—
 - (a) a local plan, a minerals and waste plan, a supplementary plan or policies map under Part 2;
 - (b) a spatial development strategy under Part 8 of the Greater London Authority Act 1999 or Part 2 of this Act;
 - (c) an infrastructure delivery strategy under Part 10A of the Planning Act 2008;
 - (d) a marine plan under the Marine and Coastal Access Act 2009 for the English inshore region, the English offshore region or any part of either of those regions.
- (6) A “prescribed public body” is a body which, or other person who, is prescribed or of a prescribed description and certain of whose functions are of a public nature.
- (7) References in this section to the preparation or revision of a relevant plan include any activities that could reasonably be considered to prepare the way for the preparation or revision of the plan.
- (8) In this section—
 - “the English inshore region” and “the English offshore region” have the same meaning as in the Marine and Coastal Access Act 2009;
 - “revision”, in relation to a relevant plan, includes any alteration, amendment, replacement or other modification (and related expressions are to be read accordingly).”

Commencement Information

I110 S. 100 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I111 [S. 100](#) in force at 3.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 2](#)

I112 [S. 100](#) in force at 25.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 3\(e\)](#) (with [Sch. 1](#))

Minor and consequential amendments

101 Minor and consequential amendments in connection with [Chapter 2](#)

[Schedule 8](#) contains minor and consequential amendments in connection with [Chapter 2](#).

Commencement Information

I113 S. 101 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I114 [S. 101](#) in force at 25.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 3\(f\)](#) (with [Sch. 1](#))

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

CHAPTER 3

HERITAGE

PROSPECTIVE

102 Regard to certain heritage assets in exercise of planning functions

(1) After section 58A of TCPA 1990 insert—

“Regard to certain heritage assets

58B Duty of regard to certain heritage assets in granting permissions

- (1) In considering whether to grant planning permission or permission in principle for the development of land in England which affects a relevant asset or its setting, the local planning authority or (as the case may be) the Secretary of State must have special regard to the desirability of preserving or enhancing the asset or its setting.
- (2) For the purposes of subsection (1), preserving or enhancing a relevant asset or its setting includes preserving or enhancing any feature, quality or characteristic of the asset or setting that contributes to the significance of the asset.
- (3) For the purposes of this section—
 - (a) anything within an entry in the first column of the following table is a “relevant asset”, and
 - (b) “significance”, in relation to a relevant asset, has the meaning given by the corresponding entry in the second column of the table.

TABLE

<i>“relevant asset”</i>	<i>“significance”</i>
a scheduled monument within the meaning of the Ancient Monuments and Archaeological Areas Act 1979 (see section 1(11) of that Act)	the national importance referred to in section 1(3) of that Act
a garden or other area of land included in a register maintained by the Historic Buildings and Monuments Commission for England under section 8C of the Historic Buildings and Ancient Monuments Act 1953	the special historic interest referred to in subsection (1) of that section
a site designated as a restricted area under section 1 of the Protection of Wrecks Act 1973	the historical, archaeological or artistic importance referred to in subsection (1) (b) of that section
a World Heritage Site (that is to say, a property appearing on the World Heritage	the outstanding universal value referred to in that paragraph

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“relevant asset”	“significance”
List kept under paragraph (2) of article 11 of the UNESCO Convention Concerning the Protection of the World Cultural and Natural Heritage adopted at Paris on 16 November 1972)	
(4) The reference in subsection (1) to a local planning authority includes the Mayor of London in relation to the grant of planning permission by Mayoral development order.	
(5) Nothing in this section applies in relation to neighbourhood development orders (except as provided in Schedule 4B) or street vote development orders (except as provided by SVDO regulations within the meaning given by section 61QM).”	
(2) In paragraph 8 of Schedule 4B to TCPA 1990 (matters to be considered in examining draft neighbourhood development order)—	
(a) in sub-paragraph (2)—	
(i) in paragraph (b), after “preserving” insert “or enhancing”;	
(ii) after paragraph (c) insert—	
“(ca) having special regard to the desirability of preserving or enhancing anything that is a relevant asset for the purposes of section 58B or its setting, it is appropriate to make the order.”;	
(b) after sub-paragraph (4) insert—	
“(4A) Sub-paragraph (2)(ca) applies in relation to anything that is a relevant asset for the purposes of section 58B only in so far as the order grants planning permission for development that affects the asset or its setting.	
(4B) Subsections (2) and (3)(b) of section 58B apply for the purposes of sub-paragraphs (2)(ca) and (4A) as they apply for the purposes of that section.”	
(3) In section 16 of the Listed Buildings Act (decisions on applications for listed building consent), [F87 in subsection (2), after “preserving” insert “or enhancing”.]	
(4) In section 66 of the Listed Buildings Act (duty to have regard to listed buildings in the exercise of certain planning functions)—	
[F88 (za) in subsection (1), after “preserving” insert “or enhancing”];	
(a) after subsection (1) insert—	
“(1A) The reference in subsection (1) to a local planning authority includes the Mayor of London in relation to the grant of planning permission by Mayoral development order.”;	
[F89 (b) in subsection (2), after “preserving” insert “or enhancing”.]	

Textual Amendments

F87 Words in s. 102(3) substituted (4.11.2024) by Historic Environment (Wales) Act 2023 (2023 asc 3), Sch. 13 para. 198(a) (as inserted by The Historic Environment (Wales) Act 2023 (Consequential

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Provision) (Primary Legislation) Regulations 2024 (S.I. 2024/1061), regs. 1(2), **21**; S.I. 2024/860, **art. 3(d)**)

F88 S. 102(4)(za) inserted by Historic Environment (Wales) Act 2023 (2023 asc 3), Sch. 13 para. 198(b) (i) (as inserted) by The Historic Environment (Wales) Act 2023 (Consequential Provision) (Primary Legislation) Regulations 2024 (S.I. 2024/1061), regs. 1(2), **21**; S.I. 2024/860, **art. 3(d)**)

F89 S. 102(4)(b) substituted (4.11.2024) by Historic Environment (Wales) Act 2023 (2023 asc 3), Sch. 13 para. 198(b)(ii) (as inserted by The Historic Environment (Wales) Act 2023 (Consequential Provision) (Primary Legislation) Regulations 2024 (S.I. 2024/1061), regs. 1(2), **21**; S.I. 2024/860, **art. 3(d)**)

Commencement Information

I115 S. 102 not in force at Royal Assent, see **s. 255(3)(b)**

103 Temporary stop notices in relation to listed buildings

(1) The Listed Buildings Act is amended as follows.

(2) After section 44A insert—

“44AA Temporary stop notices in England

(1) This section applies where it appears to a local planning authority in England that—

- (a) works have been or are being executed to a listed building in their area, and
- (b) the works are such as to involve a contravention of section 9(1) or (2).

(2) The authority may issue a temporary stop notice if, having regard to the effect of the works on the character of the building as one of special architectural or historic interest, they consider it is expedient that the works (or part of them) be stopped immediately.

(3) A temporary stop notice must be in writing and must—

- (a) specify the works in question,
- (b) prohibit execution of the works (or so much of them as is specified in the notice),
- (c) set out the authority’s reasons for issuing the notice, and
- (d) include a statement of the effect of section 44AB.

(4) A temporary stop notice may be served on a person who appears to the authority—

- (a) to be executing the works or causing them to be executed,
- (b) to have an interest in the building, or
- (c) to be an occupier of the building.

(5) The authority must display a copy of the notice on the building; and the copy must specify the date on which it is first displayed.

(6) A temporary stop notice takes effect when the copy of it is first displayed in accordance with subsection (5).

(7) A temporary stop notice ceases to have effect—

- (a) at the end of the period of 56 days beginning with the day on which the copy of it is first displayed in accordance with subsection (5), or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) if the notice specifies a shorter period beginning with that day, at the end of that period.
- (8) But if the authority withdraws the notice before the time when it would otherwise cease to have effect under subsection (7), the notice ceases to have effect on its withdrawal.
- (9) A local planning authority may not issue a subsequent temporary stop notice in relation to the same works unless the authority have, since issuing the previous notice, taken other enforcement action in relation to the contravention referred to in subsection (1)(b).
- (10) The reference in subsection (9) to taking other enforcement action includes a reference to obtaining an injunction under section 44A.
- (11) A temporary stop notice does not prohibit the execution of works of such description, or the execution of works in such circumstances, as the Secretary of State may by regulations prescribe.

44AB Temporary stop notices in England: offence

- (1) A person is guilty of an offence if the person contravenes, or causes or permits a contravention of, a temporary stop notice—
 - (a) which has been served on the person under section 44AA(4), or
 - (b) a copy of which has been displayed in accordance with section 44AA(5).
- (2) An offence under this section may be charged by reference to a day or to some longer period; and accordingly, a person may, in relation to the same temporary stop notice, be convicted of more than one offence under this section by reference to different periods.
- (3) In proceedings against a person for an offence under this section, it is a defence for the person to show that the person did not know, and could not reasonably have been expected to know, of the existence of the temporary stop notice.
- (4) In proceedings against a person for an offence under this section, it is also a defence for the person to show—
 - (a) that works to the building were urgently necessary in the interests of safety or health or for the preservation of the building,
 - (b) that it was not practicable to secure safety or health or, as the case may be, the preservation of the building by works of repair or works for affording temporary support or shelter,
 - (c) that the works carried out were limited to the minimum measures immediately necessary, and
 - (d) that notice in writing justifying in detail the carrying out of the works was given to the local planning authority as soon as reasonably practicable.
- (5) A person guilty of an offence under this section is liable on summary conviction, or on conviction on indictment, to a fine.
- (6) In determining the amount of a fine to be imposed on a person convicted under this section, the court must in particular have regard to any financial benefit

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

which has accrued or appears likely to accrue to the person in consequence of the offence.

44AC Temporary stop notices in England: compensation

- (1) A person who, on the day when a temporary stop notice is first displayed in accordance with section 44AA(5), has an interest in the building is, on making a claim to the local planning authority within the prescribed time and in the prescribed manner, entitled to be paid compensation by the authority in respect of any loss or damage directly attributable to the effect of the notice.
- (2) But subsection (1) applies only if—
 - (a) the works specified in the notice are not such as to involve a contravention of section 9(1) or (2), or
 - (b) the authority withdraws the notice other than following the grant of listed building consent, after the day mentioned in subsection (1), which authorises the works.
- (3) The loss or damage in respect of which compensation is payable under this section includes a sum payable in respect of a breach of contract caused by the taking of action necessary to comply with the notice.
- (4) No compensation is payable under this section in the case of loss or damage suffered by a claimant if—
 - (a) the claimant was required to provide information under a relevant provision, and
 - (b) the loss or damage could have been avoided if the claimant had provided the information or had otherwise co-operated with the planning authority when responding to the notice.
- (5) In subsection (4)(a), each of the following is a relevant provision—
 - (a) section 16 of the Local Government (Miscellaneous Provisions) Act 1976, and
 - (b) section 330 of the principal Act.”

^{F90}(3)

^{F90}(4)

^{F90}(5)

^{F90}(6)

- (7) In section 45 (concurrent enforcement functions in London of the Historic Buildings and Monuments Commission)—
 - (a) after “43” insert “and 44AA to 44AC”;
 - (b) after “those provisions” insert “, and in any provision of this Act referring to anything done under those provisions,”.
- (8) In section 46 (concurrent enforcement functions of the Secretary of State)—
 - (a) after subsection (1) insert—

“(1A) If it appears to the Secretary of State to be expedient that a temporary stop notice should be issued in respect of any land in England, the Secretary of State may issue such a notice.”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) in subsection (2), after “(1)” insert “or (1A)”;
- (c) after subsection (3) insert—
 - “(3A) A temporary stop notice issued by the Secretary of State shall have the same effect as a notice issued by the local planning authority under section 44AA.”
- (9) In section 82A(2) (exceptions from Crown application), after paragraph (f) insert—
 - “(fza) section 44AB;”.
- (10) In section 88 (rights of entry)—
 - (a) after subsection (3) insert—
 - “(3ZA) Any person duly authorised in writing by the Secretary of State, a local planning authority in England or, where the authorisation relates to a building situated in Greater London, the Commission may at any reasonable time enter any land for any of the following purposes—
 - (a) securing the display of a temporary stop notice issued under section 44AA;
 - (b) ascertaining whether a temporary stop notice issued under that section is being complied with;
 - (c) considering any claim for compensation under section 44AC.”;
- ^{F91}(b)
- ^{F91}(c)
- (11) In section 88B (supplementary provision about rights of entry), after subsection (1) insert—
 - “(1ZA) Subsection (1) does not apply to a person authorised under section 88(3ZA) who intends to enter the land for either of the purposes mentioned in paragraphs (a) and (b) of that subsection.”
- (12) In Schedule 2 (lapse of building preservation notices)—
 - ^{F92}(a)
 - (b) after paragraph 4 insert—
 - “4A Any temporary stop notice served under section 44AA(4) by the local planning authority with respect to the building while the building preservation notice was in force ceases to have effect.”;
 - ^{F93}(c)

Textual Amendments

- F90** S. 103(3)-(6) omitted (W.) (4.11.2024) by virtue of [Historic Environment \(Wales\) Act 2023 \(2023 asc 3\)](#), [Sch. 13 para. 199\(a\)](#) (as inserted by [The Historic Environment \(Wales\) Act 2023 \(Consequential Provision\) \(Primary Legislation\) Regulations 2024 \(S.I. 2024/1061\)](#), regs. 1(2), **21**; S.I. 2024/860, art. 3(d))
- F91** S. 103(10)(b)(c) omitted (W.) (4.11.2024) by virtue of [Historic Environment \(Wales\) Act 2023 \(2023 asc 3\)](#), [Sch. 13 para. 199\(b\)](#) (as inserted by [The Historic Environment \(Wales\) Act 2023 \(Consequential Provision\) \(Primary Legislation\) Regulations 2024 \(S.I. 2024/1061\)](#), regs. 1(2), **21**; S.I. 2024/860, art. 3(d))

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- F92** S. 103(12)(a) omitted (W.) (4.11.2024) by virtue of [Historic Environment \(Wales\) Act 2023](#) (2023 asc 3), [Sch. 13 para. 199\(c\)](#) (as inserted by [The Historic Environment \(Wales\) Act 2023](#) (Consequential Provision) (Primary Legislation) Regulations 2024 (S.I. 2024/1061), regs. 1(2), [21](#); S.I. 2024/860, art. 3(d))
- F93** S. 103(12)(c) omitted (W.) (4.11.2024) by virtue of [Historic Environment \(Wales\) Act 2023](#) (2023 asc 3), [Sch. 13 para. 199\(c\)](#) (as inserted by [The Historic Environment \(Wales\) Act 2023](#) (Consequential Provision) (Primary Legislation) Regulations 2024 (S.I. 2024/1061), regs. 1(2), [21](#); S.I. 2024/860, art. 3(d))

Commencement Information

I116 S. 103 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I117 S. 103 in force at 25.4.2024 by [S.I. 2024/452](#), [reg. 3\(a\)](#)

PROSPECTIVE

104 Urgent works to listed buildings: occupied buildings and recovery of costs

- (1) The Listed Buildings Act is amended as follows.
- (2) In section 54 (urgent works to preserve listed buildings)—
 - (a) omit subsection (4);
 - (b) in subsection (5A), omit “in Wales”;
 - (c) after subsection (7) insert—
 - “(8) Section 6 of the Local Land Charges Act 1975 (general charge registrable pending specific charge) applies in relation to expenditure incurred in executing works under this section as if—
 - (a) the Commission and the Secretary of State were local authorities, and
 - (b) the giving of a notice under section 55 were the making of an order.”
- (3) In section 55 (recovery of expenses of urgent works)—
 - (a) after subsection (2) insert—
 - “(2A) A notice given under subsection (2) in relation to a building in England is a local land charge.”;
 - (b) in subsection (5A)—
 - (i) after “Where” insert “the Secretary of State or”;
 - (ii) after “local authority” insert “or the Commission”;
 - (c) in subsection (5B)—
 - (i) for the words from “In” to “when the” substitute “As from the time when a”;
 - (ii) for “the Welsh Ministers may prescribe” substitute “may be prescribed”;
 - (d) after subsection (5B) insert—
 - “(5BA) An order under subsection (5B) may be made—
 - (a) by the Secretary of State, in relation to buildings in England;
 - (b) by the Welsh Ministers, in relation to buildings in Wales.”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (e) in subsection (5C), for “that time” substitute “the time mentioned in subsection (5B)”;

(f) after subsection (5G) insert—

“(5H) If, after a notice is given under subsection (2) in relation to a building in England, there is a change in the owner of the building, a fresh notice may be given to the new owner at any time before the first notice becomes operative (and the provisions of this section apply again in relation to the fresh notice).

(5I) If a notice is given to the new owner under subsection (5H), the first notice referred to in that subsection ceases to have effect.”

Commencement Information

I118 S. 104 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

105 **Removal of compensation for building preservation notice**

- (1) The Listed Buildings Act is amended as follows.

(2) In section 3 (temporary listing in England: building preservation notices), after subsection (1) insert—

“(1A) Before serving a building preservation notice under this section, the local planning authority must consult with the Commission.

(1B) Subsection (1A) does not apply where the Commission proposes to serve a building preservation notice under this section (see subsection (8)).”

F94(3)

F94(4)

Textual Amendments

F94 S. 105(3)(4) omitted (W.) (4.11.2024) by virtue of [Historic Environment \(Wales\) Act 2023 \(2023 asc 3\)](#), [Sch. 13 para. 200](#) (with [Sch. 14. para. 12](#)) (as inserted by [The Historic Environment \(Wales\) Act 2023 \(Consequential Provision\) \(Primary Legislation\) Regulations 2024 \(S.I. 2024/1061\)](#), regs. 1(2), [21](#), [22](#); [S.I. 2024/860](#), art. 3(d))

Commencement Information

I119 S. 105 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I120 S. 105 in force at 25.7.2024 by [S.I. 2024/452](#), [reg. 4](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

CHAPTER 4

GRANT AND IMPLEMENTATION OF PLANNING PERMISSION

106 Street votes

- (1) TCPA 1990 is amended in accordance with subsection (2).
- (2) After section 61Q (community right to build orders) insert—

“Street vote development orders

61QA Street vote development orders

- (1) A process may be initiated by or on behalf of a qualifying group for the purpose of requiring the Secretary of State to make a street vote development order.
- (2) A “street vote development order” is an order which grants planning permission in relation to a particular street area specified in the order—
 - (a) for development specified in the order, or
 - (b) for development of any description or class specified in the order.

61QB Qualifying groups

- (1) A “qualifying group”, in relation to a street vote development order, is a group of individuals—
 - (a) each of whom on the prescribed date meet the conditions in subsection (2), and
 - (b) comprised of at least—
 - (i) the prescribed number, or
 - (ii) the prescribed proportion of persons of a prescribed description.
- (2) The conditions are that the individual—
 - (a) is entitled to vote in—
 - (i) an Authority election, where any part of the street area to which the street vote development order would relate is within the City of London, or
 - (ii) an election of councillors of any relevant council (other than the City of London) any part of whose area is within the street area to which the street vote development order would relate,
 - (b) has a qualifying address for that election which is in the street area that the street vote development order would relate to, and
 - (c) does not have an anonymous entry in the register of local government electors.
- (3) A “relevant council” means—
 - (a) a district council,
 - (b) a London borough council,
 - (c) a metropolitan district council, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (d) a county council in relation to any area in England for which there is no district council.
- (4) For the purposes of this section—
- (a) “anonymous entry” is to be construed in accordance with section 9B of the Representation of the People Act 1983;
 - (b) “Authority election” has the meaning given by section 203(1) of the Representation of the People Act 1983;
 - (c) the Inner Temple and the Middle Temple are to be treated as forming part of the City of London;
 - (d) “qualifying address” has the meaning given by section 9 of the Representation of the People Act 1983.

61QC Meaning of “street area”

- (1) A “street area” means an area in England—
- (a) which is of a prescribed description, and
 - (b) no part of which is within an excluded area.
- (2) An “excluded area” means—
- (a) a National Park or the Broads;
 - (b) an area comprising a world heritage property and its buffer zone as identified in accordance with the Operational Guidelines for the Implementation of the World Heritage Convention as published from time to time;
 - (c) an area notified as a site of special scientific interest under section 28 of the Wildlife and Countryside Act 1981;
 - (d) an area designated as an area of outstanding natural beauty under section 82 of the Countryside and Rights of Way Act 2000;
 - (e) an area identified as green belt land, local green space or metropolitan open land in a development plan;
 - (f) a European site within the meaning given by regulation 8 of the Conservation of Habitats and Species Regulations 2017 ([S.I. 2017/1012](#));
 - (g) such other area as may be specified or described in regulations made by the Secretary of State.
- (3) In this section, “a world heritage property” means a property appearing on the World Heritage List (published in accordance with Article 11 of the UNESCO Convention Concerning the Protection of the World Cultural and Natural Heritage adopted on 16 November 1972).

61QD Process for making street vote development orders

- (1) The Secretary of State must make regulations (“SVDO regulations”) which make provision about the preparation and making of a street vote development order.
- (2) SVDO regulations must, in particular, make provision—
- (a) for the appointment by the Secretary of State of a person to—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (i) handle proposals made under [section 61QA\(1\)](#) (“street vote proposals”) or specified aspects of those proposals,
 - (ii) carry out the independent examination of such proposals, and
 - (iii) to make street vote development orders on the Secretary of State’s behalf,

(and for the above purposes the same or different persons may be appointed);
 - (b) as to the circumstances in which a street vote development order may be made and in particular must make provision requiring a referendum under [section 61QE](#) to be held before an order may be made.
- (3) SVDO regulations may, in particular, include provision as to—
- (a) the functions of a qualifying group in relation to a street vote proposal and how those functions are to be discharged (including provision for a member of the group or another prescribed person to be responsible for discharging them);
 - (b) the form and content of a street vote proposal;
 - (c) the information and documents (if any) which must accompany a street vote proposal;
 - (d) the circumstances and the way in which a proposal may be withdrawn;
 - (e) the steps that must be taken, and the conditions that must be met, before a proposal falls to be considered by an appointed person;
 - (f) the circumstances in which an appointed person may or must decline to consider or reject a proposal;
 - (g) the steps that must be taken, and the conditions that must be met, before a proposal falls to be independently examined;
 - (h) the functions of the independent examination in relation to the proposal;
 - (i) the circumstances in which an appointed person may terminate the independent examination (including provision as to the procedure for doing so);
 - (j) the procedure to be followed at an examination (including provision regarding the procedure to be followed at any hearing or inquiry or provision designating the hearing or inquiry as a statutory inquiry for the purposes of section 9 of the Tribunals and Inquiries Act 1992);
 - (k) the power to summons witnesses at any inquiry (including by applying, with or without modifications, section 250(3) and (4) of the Local Government Act 1972);
 - (l) the award of costs in connection with an examination;
 - (m) the steps to be taken following the independent examination (including provision for prescribed modifications to be made to the draft street vote development order);
 - (n) the payment by a local planning authority of remuneration and expenses relating to the examination;
 - (o) the functions of local planning authorities, or other authorities, in connection with street vote development orders (including provision regulating the arrangements of authorities for the discharge of those functions);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (p) cases where there are two or more local planning authorities any of whose area falls within the area of the street area that the proposal relates to (including provision modifying functions of the local planning authorities under the regulations in such cases or provision applying, with or without modifications, any provision of Part 6 of the Local Government Act 1972 in cases where the provision would not otherwise apply);
- (q) requirements about the giving of notice and publicity;
- (r) the information and documents that are to be made available to the public;
- (s) consultation with and participation by the public or prescribed persons;
- (t) the making and consideration of representations;
- (u) the determination of the time by or at which anything must be done in connection with street vote development orders;
- (v) the provision by any person of prescribed information or documents or prescribed descriptions of information or documents in connection with a street vote development order;
- (w) the making of reasonable charges for anything done in connection with street vote development orders;
- (x) when a court may entertain proceedings for questioning prescribed decisions to act or any other prescribed matter.

61QE Referendums

- (1) SVDO regulations may make provision about referendums held in connection with street vote development orders and may, in particular, include provision—
 - (a) as to the circumstances in which an appointed person or the Secretary of State may direct relevant councils to carry out a referendum in relation to a street vote development order;
 - (b) the functions of such councils in relation to the referendum;
 - (c) dealing with any case where there are two or more relevant councils any of whose area falls within the area in which a referendum is to take place (including provision for only one council to carry out functions in relation to the referendum in such a case);
 - (d) prescribing a date by which the referendum must be held or before which it cannot be held;
 - (e) as to the question to be asked in the referendum and any explanatory material in relation to that question;
 - (f) as to voter eligibility for the referendum;
 - (g) as to the publicity to be given in connection with the referendum;
 - (h) as to the provision of prescribed information to voters in connection with the referendum (including information about any infrastructure levy or community infrastructure levy which is chargeable in respect of development under a street vote development order);
 - (i) about the limitation of expenditure in connection with the referendum;
 - (j) as to the conduct of the referendum;

***Status:** Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (k) as to when, where and how voting in the referendum is to take place;
 - (l) as to how the votes cast are to be counted;
 - (m) about certification as to the number of persons voting in the referendum and as to the number of those persons voting in favour of a street vote development order;
 - (n) about the combination of polls at the referendum with polls at another referendum or at any election;
 - (o) as to the threshold of votes that must be met before a street vote development order may be made.
- (2) For the purposes of making provision within subsection (1), SVDO regulations may apply or incorporate (with or without modifications) any provision made by or under any enactment relating to elections or referendums.
- (3) But where the regulations apply or incorporate (with or without modifications) any provision that creates an offence, the regulations may not impose a penalty greater than is provided for in respect of that provision.
- (4) Before making provision within this section, the Secretary of State must consult the Electoral Commission.
- (5) In this section “enactment” means an enactment, whenever passed or made.

61QF Regulations: general provision

SVDO regulations may—

- (a) provide for exemptions (including exemptions which are subject to prescribed conditions);
- (b) confer a function, including a function involving the exercise of a discretion, on any person.

61QG Provision that may be made by a street vote development order

- (1) A street vote development order may make provision in relation to—
- (a) all land in the street area specified in the order,
 - (b) any part of that land, or
 - (c) a site in that area specified in the order.
- (2) A street vote development order may only provide for the granting of planning permission for any development that—
- (a) is prescribed development or development of a prescribed description or class,
 - (b) is not excluded development, and
 - (c) satisfies any further prescribed conditions.
- (3) A street vote development order may make different provision for different purposes.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

61QH Meaning of “excluded development”

The following development is excluded development for the purposes of [section 61QG\(2\)\(b\)](#) —

- (a) development of a scheduled monument within the meaning given by section 1(11) of the Ancient Monuments and Archaeological Areas Act 1979;
- (b) Schedule 1 development as defined by regulation 2 of the Town and Country Planning (Environmental Impact Assessment) Regulations 2017 ([S.I. 2017/571](#));
- (c) development that consists (whether wholly or partly) of a nationally significant infrastructure project (within the meaning of the Planning Act 2008);
- (d) development of a listed building within the meaning given by section 1(5) of the Planning (Listed Buildings and Conservation) Areas Act 1990;
- (e) development consisting of the winning and working of minerals;
- (f) such other development as may be specified or described in regulations made by the Secretary of State.

61QI Permission granted by street vote development orders

- (1) The granting of planning permission by a street vote development order is subject to—
 - (a) any prescribed conditions or limitations or conditions or limitations of a prescribed description, and
 - (b) such other conditions or limitations as may be specified in the order (but see subsections [\(4\)](#) and [\(5\)](#)).
- (2) The conditions that may be specified include a condition that unless a relevant obligation is entered into—
 - (a) the development authorised by the planning permission or any description of such development must not be begun, or
 - (b) anything created in the course of the development authorised by the planning permission may not be occupied or used for any purpose.
- (3) A relevant obligation for the purposes of subsection [\(2\)](#) includes an obligation which involves the payment of money or affects any estate or interest in, or rights over, land.
- (4) But an order may only specify a condition that a person enter into an obligation under section 106 if the obligation—
 - (a) is necessary to make the development specified in the order acceptable in planning terms,
 - (b) is directly related to the development,
 - (c) is fairly and reasonably related in scale and kind to the development, and
 - (d) satisfies such other requirements as may be specified in regulations made by the Secretary of State.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (5) The Secretary of State may by regulations provide that—
- (a) conditions or limitations of a prescribed description may not be imposed under subsection (1)(b),
 - (b) conditions or limitations of a prescribed description may only be imposed under subsection (1)(b) in circumstances of a prescribed description, or
 - (c) no conditions or limitations may be imposed under subsection (1)(b) in circumstances of a prescribed description.
- (6) A condition or limitation prescribed under subsection (1)(a) may confer a function on any person, including a function involving the exercise of a discretion.
- (7) If—
- (a) planning permission granted by a street vote development order for any development is withdrawn by the revocation of the order under [section 61QJ](#), and
 - (b) the revocation is made after the development has begun but before it has been completed,
- the development may, despite the withdrawal of the permission, be completed.
- (8) But an order under [section 61QJ](#) revoking a street vote development order may provide that [subsection \(7\)](#) is not to apply in relation to development specified in the order under that section.
- (9) In this section “relevant obligation” means—
- (a) an obligation under section 106 (planning obligations), or
 - (b) an agreement under section 278 of the Highways Act 1980 (agreements as to execution of works).

61QJ Revocation or modification of street vote development orders

- (1) The Secretary of State may by order revoke or modify a street vote development order.
- (2) A local planning authority may, with the consent of the Secretary of State, by order revoke a street vote development order relating to a street area any part of which falls within the area of that authority.
- (3) If a street vote development order is revoked, the person revoking the order must state the reasons for the revocation.
- (4) An appointed person may at any time by order modify a street vote development order for the purpose of correcting errors.
- (5) A modification of a street vote development order is to be done by replacing the order with a new one containing the modification.
- (6) Regulations may make provision in connection with the revocation or modification of a street vote development order.
- (7) The regulations may, in particular, include provision as to—
 - (a) the giving of notice and publicity in connection with a revocation or modification;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) the information and documents relating to a revocation or modification that are to be made available to the public;
- (c) the making of reasonable charges for anything provided as a result of the regulations;
- (d) consultation with and participation by the public in relation to a revocation or modification;
- (e) the making and consideration of representations about a revocation or modification (including the time by which representations must be made).

61QK Financial assistance in relation to street votes

- (1) The Secretary of State may do anything that the Secretary of State considers appropriate—
 - (a) for the purpose of publicising or promoting the making of street vote development orders and the benefits expected to arise from their making, or
 - (b) for the purpose of giving advice or assistance to anyone in relation to the making of street vote proposals or the doing of anything else for the purposes of, or in connection with, such proposals or street vote development orders.
- (2) The things that the Secretary of State may do under this section include, in particular—
 - (a) the provision of financial assistance (or the making of arrangements for its provision) to any body or other person, and
 - (b) the making of agreements or other arrangements with any body or other person (under which payments may be made to the person).
- (3) In this section—
 - (a) the reference to giving advice or assistance includes providing training or education;
 - (b) any reference to the provision of financial assistance is to the provision of financial assistance by any means (including the making of a loan and the giving of a guarantee or indemnity).

61QL Street votes: connected modifications

The Secretary of State may by regulations make provision modifying the application of Schedule 7A (biodiversity gain in England) in relation to planning permission granted by a street vote development order.

61QM Interpretation

In sections [61QA](#) to [61QL](#)—

- “an appointed person” means a person appointed in accordance with [section 61QD\(2\)\(a\)](#);
- “excluded development” has the meaning given by [section 61QH](#);
- “qualifying group” has the meaning given by [section 61QB](#);
- “relevant council” has the meaning given by [section 61QB\(3\)](#);

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

“street area” has the meaning given by [section 61QC](#);
 “street vote development order” has the meaning given by [section 61QA\(2\)](#);
 “street vote proposal” has the meaning given by [section 61QD\(2\)\(a\)\(i\)](#);
 “SVDO regulations” has the meaning given by [section 61QD\(1\)](#).”

- (3) [Schedule 9](#) contains minor and consequential amendments in connection with this section.

Commencement Information

I121 S. 106 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I122 [S. 106](#) in force at 31.1.2024 for specified purposes by [S.I. 2024/92](#), [reg. 2\(d\)](#)

107 Street votes: community infrastructure levy

- (1) The Planning Act 2008 is amended as follows.
- (2) In section 211(10) (amount of levy)—
- at the beginning insert “Except where subsection (11) applies,”, and
 - from “, 213” to the end substitute “to 213 and 214(1) and (2) apply in relation to a revision of a charging schedule as they apply in relation to a charging schedule.”
- (3) After section 211(10) insert—
- “(11) Where the only provision made by a charging schedule or a revision of a charging schedule is provision for the purpose of determining the amount of CIL chargeable in respect of street vote development—
- sections 212 to 213 and 214(1) and (2) do not apply in relation to the charging schedule or the revision of the charging schedule, and
 - CIL regulations may make provision about procedural requirements that must be met before the charging schedule or revision may take effect.
- (12) “Street vote development” means development of land for which planning permission is granted by a street vote development order made under section 61QA of TCPA 1990.”
- (4) After section 212(11) (charging schedule: examination) insert—
- “(12) For exceptions to this section see section 211(11).”
- (5) After section 212A(7) (charging schedule: examiner’s recommendations) insert—
- “(8) For exceptions to this section see section 211(11).”
- (6) After section 213(5) (charging schedule: approval) insert—
- “(6) For exceptions to this section see section 211(11).”
- (7) After section 214(6) (charging schedule: effect) insert—
- “(7) For exceptions to subsections (1) and (2) of this section see section 211(11).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(8) After section 214 (charging schedule: effect) insert—

“214A Secretary of State: power to require review of certain charging schedules

- (1) This section applies where—
- (a) a charging schedule makes provision for the purpose of determining the amount of CIL chargeable in respect of street vote development, and
 - (b) section 211(11) applied in relation to the charging schedule or the revision of the charging schedule in connection with making such provision.
- (2) The Secretary of State may direct a charging authority to review the charging schedule if the Secretary of State considers that—
- (a) the economic viability of street vote development in the charging authority’s area is significantly impaired, or
 - (b) there is a substantial risk that it will become significantly impaired, as a result of the CIL which is or will be chargeable in respect of street vote development in that area.
- (3) If a charging authority is directed to review its charging schedule under subsection (2), it must—
- (a) consider whether to revise the charging schedule under section 211(9), and
 - (b) notify the Secretary of State of its decision with reasons.
- (4) If the charging authority decides to revise the charging schedule, it must do so within a reasonable time.
- (5) If a charging authority has not complied with a direction given under subsection (2) within a reasonable time and to a standard which the Secretary of State considers adequate, the Secretary of State may appoint a person to do so on behalf of the charging authority.
- (6) If a person appointed under subsection (5) decides that the charging schedule should be revised, the charging authority must revise the schedule accordingly within a reasonable time.
- (7) If the charging authority fails to revise the charging schedule in accordance with subsection (4) or (6), the Secretary of State may appoint a person to do so on behalf of the charging authority.
- (8) CIL regulations may make provision about—
- (a) procedures for appointing a person under subsection (5) or (7),
 - (b) conditions which must be met before such an appointment may be made,
 - (c) procedures which must be followed by the person in complying with a direction given under subsection (2) or revising the charging schedule under subsection (7),
 - (d) circumstances in which the person may be replaced,

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (e) duties of a charging authority where a person is appointed to act on its behalf under subsection (5) or (7),
 - (f) liability for costs incurred as a result of the appointment of the person, and
 - (g) what constitutes a reasonable time under subsections (4) to (6).
- (9) In this section “street vote development” has the meaning given by section 211(12).”
- (9) In section 216(2) (application), after paragraph (f) insert—
- “(fa) where the CIL is chargeable in respect of street vote development, affordable housing.”
- (10) After section 216(7) insert—
- “(8) In this section—
- “affordable housing” means—
- (a) social housing within the meaning of Part 2 of the Housing and Regeneration Act 2008, and
 - (b) any other description of housing that CIL regulations may specify;
- “street vote development” has the meaning given by section 211(12).”

Commencement Information

I123 S. 107 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I124 [S. 107](#) in force at 31.1.2024 for specified purposes by [S.I. 2024/92](#), [reg. 2\(e\)](#)

108 Street votes: modifications of the Town and Country Planning (Environmental Impact Assessment) Regulations 2017

The Secretary of State may by regulations make provision modifying the application of the Town and Country Planning (Environmental Impact Assessment) Regulations 2017 ([S.I. 2017/517](#)) in relation to the grant of planning permission by a street vote development order.

Commencement Information

I125 [S. 108](#) in force at 26.12.2023, see [s. 255\(3\)\(a\)](#)

109 Crown development

(1) TCPA 1990 is amended as follows.

(2) After section 293A insert—

“293B Urgent Crown development: applications to the Secretary of State

(1) This section applies where—

- (a) the appropriate authority intends to make a relevant application, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) the authority considers—
 - (i) that the development to which the application relates is of national importance, and
 - (ii) that it is necessary that the development is carried out as a matter of urgency.
- (2) The appropriate authority may make the application to the Secretary of State under this section.
- (3) In this section, “relevant application” means—
 - (a) an application for planning permission for the development of land in England, or
 - (b) an application for approval of a matter that, as defined in section 92, is a reserved matter in the case of an outline planning permission for the development of land in England,but does not include an application of the kind described in section 73(1) or an application of a description excluded by regulations.
- (4) An application under this section must include—
 - (a) such information, documents or other matters as may be required by a development order, and
 - (b) a statement of the appropriate authority’s grounds for making the application.
- (5) As soon as practicable after receiving the application, the Secretary of State must give notice to the appropriate authority either agreeing or refusing to determine the application.
- (6) The Secretary of State may only agree to determine the application if the Secretary of State considers that—
 - (a) the development to which the application relates is of national importance, and
 - (b) it is necessary that the development is carried out as a matter of urgency.
- (7) The Secretary of State must send a copy of a notice given under subsection (5) to the local planning authority to whom the application could otherwise have been made.
- (8) The Secretary of State may by notice require the appropriate authority to provide such further information as is necessary for the purposes of—
 - (a) deciding whether to agree or to refuse to determine the application;
 - (b) determining the application.
- (9) A development order may make provision—
 - (a) as to the form and manner in which an application must be made;
 - (b) requiring notice to be given of an application;
 - (c) as to the form, content and service of a notice required under [paragraph \(b\)](#);
 - (d) requiring that an application be publicised in such manner as the order may specify.

***Status:** Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (10) A development order which makes provision under subsection (9) may include provision to ensure that the imposition of any requirement under that subsection does not result in the public disclosure of sensitive information.
- (11) For the purposes of subsection (10), information is “sensitive” if the Secretary of State directs that—
 - (a) it relates to matters of national security or measures taken or to be taken to ensure the security of any premises or property, and
 - (b) its public disclosure would be contrary to the national interest.
- (12) A development order making any provision by virtue of this section may make different provision for different cases or different classes of development.
- (13) The Secretary of State may give directions requiring a local planning authority to do things in relation to an application made under [section 293B](#) that could otherwise have been made to that authority.
- (14) Directions under subsection (13)—
 - (a) may relate to a particular application or to applications more generally;
 - (b) may be given to a particular authority or to authorities more generally.

293C Urgent Crown development: determination of applications by the Secretary of State

- (1) This section applies where —
 - (a) the appropriate authority has made a relevant application to the Secretary of State under [section 293B](#), and
 - (b) the Secretary of State has given notice under [section 293B\(5\)](#) agreeing to determine the application.
- (2) Before determining the application, the Secretary of State must consult the following persons about the application—
 - (a) the local planning authority to which the application could otherwise have been made, and
 - (b) such other persons as the Secretary of State considers appropriate.
- (3) A development order may make provision as to the consultation required by subsection (2) including—
 - (a) provision requiring the Secretary of State to consult other specified persons (or persons of a specified description);
 - (b) provision as to the manner in which persons may be consulted;
 - (c) different provision for different cases or classes of development.
- (4) The Secretary of State may—
 - (a) grant the application, either unconditionally or subject to such conditions as the Secretary of State thinks fit, or
 - (b) refuse it.
- (5) The Secretary of State must notify the local planning authority to whom the application could otherwise have been made of the Secretary of State’s decision on the application.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (6) The decision of the Secretary of State on the application is final.
- (7) Section 73A applies, with any necessary modifications, to an application for planning permission under [section 293B](#) as it applies to an application for planning permission which is to be determined by the local planning authority under Part 3.
- (8) The following provisions do not apply for the purposes of determining an application for planning permission under [section 293B](#)—
 - (a) [section 58B\(1\)](#) of this Act;
 - (b) sections 66(1) and 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990.

293D Crown development: applications to the Secretary of State

- (1) This section applies where—
 - (a) the appropriate authority intends to make a relevant application, and
 - (b) the authority considers that the development to which it relates is of national importance.
- (2) The appropriate authority may make the application to the Secretary of State under this section.
- (3) In this section and [section 293E](#), “relevant application” means—
 - (a) an application for planning permission, or permission in principle, for the development of land in England, or
 - (b) an application for approval of a matter that, as defined by [section 92](#), is a reserved matter in the case of an outline planning permission for the development of land in England,but does not include an application of the kind described in [section 73\(1\)](#) or an application of a description excluded by regulations.
- (4) After receiving the application, the Secretary of State must give a notice to the appropriate authority stating whether the Secretary of State considers the development to be of national importance.
- (5) If the Secretary of State considers the development to be of national importance, the Secretary of State must proceed to determine the application.
- (6) If the Secretary of State considers that the development is not of national importance, the Secretary of State may take the steps referred to in either subsection [\(7\)](#) or, where it applies, subsection [\(9\)](#).
- (7) The Secretary of State may—
 - (a) refer the application to the local planning authority to whom it could otherwise have been made, and
 - (b) direct that the application—
 - (i) is to be treated as having been made to the authority (and not to the Secretary of State under this section), and
 - (ii) is to be determined by that authority accordingly.
- (8) Subsection [\(9\)](#) applies where—

***Status:** Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (a) the application could otherwise have been made to the Secretary of State under section 62A, and
 - (b) the appropriate authority has given notice to the Secretary of State that the authority consents to the application being treated as having been made to the Secretary of State under that section.
- (9) The Secretary of State may—
- (a) direct that the application is to be treated as having been made to the Secretary of State under section 62A (and not to the Secretary of State under this section), and
 - (b) determine the application accordingly.

293E Crown development: connected applications to the Secretary of State

- (1) This section applies where—
- (a) the appropriate authority makes an application to the Secretary of State under section 293D, and
 - (b) the Secretary of State gives a notice to the appropriate authority under section 293D(4) stating that the development to which it relates is considered by the Secretary of State to be of national importance.
- (2) The appropriate authority may make an application (“a connected application”) under the planning Acts to the Secretary of State where the requirements of subsection (3) are met.
- (3) The requirements are that—
- (a) the application is—
 - (i) for listed building consent under the Planning (Listed Buildings and Conservation Areas) Act 1990,
 - (ii) for hazardous substances consent under the Planning (Hazardous Substances) Act 1990, or
 - (iii) of a prescribed description,
 - (b) it is considered by the person making the application to be connected to an application under section 293D,
 - (c) it is neither a relevant application nor an application of the kind described in section 73(1), and
 - (d) it relates to land in England.
- (4) If a connected application is made under subsection (2), but the Secretary of State considers that it is not connected with the relevant application concerned, the Secretary of State may—
- (a) refer the connected application to the local planning authority, or hazardous substances authority, to whom it could otherwise have been made, and
 - (b) direct that the connected application—
 - (i) is to be treated as having been made to that authority (and not to the Secretary of State under this section), and
 - (ii) is to be determined by that authority accordingly.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

293F Applications under section 293F 293D or 293F 293E: supplementary matters

- (1) The decision of the Secretary of State on an application made under section 293D or 293E is final.
- (2) The Secretary of State may give directions requiring a local planning authority or hazardous substances authority to do things in relation to an application made under section 293D or 293E that could otherwise have been made to that authority.
- (3) Directions under subsection (2)—
 - (a) may relate to a particular application or to applications more generally;
 - (b) may be given to a particular authority or to authorities more generally.

293G Notifying parish councils of applications under section 293G 293D293G (2)

- (1) If an application is made to the Secretary of State under section 293D(2) and a parish council would be entitled under paragraph 8 of Schedule 1 to be notified of the application were it made to the local planning authority, the Secretary of State must notify the council of—
 - (a) the application, and
 - (b) any alteration of the application accepted by the Secretary of State.
- (2) Paragraph 8(4) and (5) of Schedule 1 apply in relation to duties of the Secretary of State under subsection (1) as they apply to duties of a local planning authority under paragraph 8(1) or (3B) of that Schedule.

293H Provisions applying to applications made under section 293H 293D or 293H 293E

- (1) Sections 62(3) and (4), 65(5), 70 to 70C, 72(1) and (5) and 73A apply, with any necessary modifications, to an application for planning permission made to the Secretary of State under section 293D as they apply to an application for planning permission which is to be determined by the local planning authority.
- (2) Any requirements imposed by a development order by virtue of section 62, 65 or 71 or paragraph 8(6) of Schedule 1, or by regulations under paragraph 14(3) or 16 of Schedule 7A, may be applied by a development order, with or without modifications, to an application for planning permission made to the Secretary of State under section 293D.
- (3) Sections 65(5) and 70 to 70C apply, with any necessary modifications, to an application for permission in principle made to the Secretary of State under section 293D as they apply to an application for permission in principle which is to be determined by the local planning authority.
- (4) Any requirements imposed by a development order by virtue of section 62(1), (2) or (8), 65 or 71 or paragraph 8(6) of Schedule 1 may be applied by a development order, with or without modifications, to an application for permission in principle made to the Secretary of State under section 293D.

***Status:** Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (5) Where an application is made to the Secretary of State under section 293E instead of to the authority to whom it could otherwise have been made, a development order may (with or without modifications) apply to the application any enactment that relates to applications of that kind when made to that authority.
- (6) A development order which makes provision under this section to apply to an application under section 293D or 293E (with or without modifications) any requirement to disclose information may include provision to secure that the requirement would not result in the public disclosure of sensitive information.
- (7) For the purposes of subsection (6), information is “sensitive” if the Secretary of State directs that—
 - (a) it relates to matters of national security or measures taken or to be taken to ensure the security of any premises or property, and
 - (b) its public disclosure would be contrary to the national interest.

293I Deciding applications made under section 293I 293D or 293I 293E

- (1) An application made to the Secretary of State under section 293D or 293E (“a direct application”) is to be determined by a person appointed by the Secretary of State for the purpose instead of by the Secretary of State, subject to section 293J.
- (2) Where a person has been appointed under subsection (1) or this subsection to determine a direct application then, at any time before the person has determined the application, the Secretary of State may—
 - (a) revoke the person’s appointment;
 - (b) appoint another person to determine the application instead.
- (3) A person appointed under this section to determine a direct application has the same powers and duties that the Secretary of State has under section 293H.
- (4) Where a direct application is determined by a person appointed under this section, the person’s decision is to be treated as that of the Secretary of State.
- (5) Except as provided by Part 12, the validity of that decision is not to be questioned in any proceedings whatsoever.
- (6) It is not a ground of application to the High Court under section 288 that a direct application ought to have been determined by the Secretary of State and not by a person appointed under this section unless the applicant challenges the person’s power to determine the direct application before the person’s decision on the direct application is given.
- (7) Where any enactment (other than this section and section 319A)—
 - (a) refers (or is to be read as referring) to the Secretary of State in a context relating to or capable of relating to a direct application (otherwise than by referring to the application having been made to the Secretary of State), or
 - (b) refers (or is to be read as referring) to anything (other than the making of the application) done or authorised or required to be done by, to or before the Secretary of State in connection with any such application,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

then, so far as the context permits, the enactment is to be read, in relation to an application determined or to be determined by a person appointed under this section, as if the reference to the Secretary of State were or included a reference to that person.

293J Applications under section 293J 293D or 293J 293E: determination by the Secretary of State

- (1) The Secretary of State may direct that an application made to the Secretary of State under section 293D or 293E (“a direct application”) is to be determined by the Secretary of State instead of by a person appointed under section 293I.
 - (2) Where a direction is given under subsection (1), the Secretary of State must serve a copy of the direction on—
 - (a) the person, if any, appointed under section 293I to determine the application concerned,
 - (b) the applicant, and
 - (c) the local planning authority.
 - (3) Where a direct application is to be determined by the Secretary of State in consequence of a direction under subsection (1)—
 - (a) in determining the application, the Secretary of State may take into account any report made to the Secretary of State by any person previously appointed to determine the application, and
 - (b) subject to that, the provisions of the planning Acts which are relevant to the application apply to it as if section 293I had never applied to it.
 - (4) The Secretary of State may by a further direction revoke a direction under subsection (1) at any time before the determination of the direct application concerned.
 - (5) Where a direction is given under subsection (4), the Secretary of State must serve a copy of the direction on—
 - (a) the person, if any, previously appointed under section 293I to determine the application concerned,
 - (b) the applicant, and
 - (c) the local planning authority.
 - (6) Where a direction is given under subsection (4) in relation to a direct application—
 - (a) anything done by or on behalf of the Secretary of State in connection with the application which might have been done by a person appointed under section 293I to determine the application is, unless the person appointed under section 293I to determine the application directs otherwise, to be treated as having been done by that person, and
 - (b) subject to that, section 293I applies to the application as if no direction under subsection (1) had been given in relation to the application.”
- (3) [Schedule 10](#) contains consequential amendments.

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

Commencement Information

I126 S. 109 in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

I127 S. 109 in force at 1.5.2025 for specified purposes by [S.I. 2025/430](#), [reg. 2\(a\)](#)

PROSPECTIVE

110 Material variations in planning permission

- (1) TCPA 1990 is amended as follows.
- (2) After section 73A insert—

“73B Applications for permission not substantially different from existing permission

- (1) An application for planning permission in respect of land in England is to be determined in accordance with this section if the applicant—
 - (a) requests that it be so determined,
 - (b) makes a proposal as to the conditions (if any) subject to which permission should be granted, and
 - (c) identifies an existing planning permission by reference to which the application is to be considered (“the existing permission”).
- (2) The existing permission must not have been granted—
 - (a) under section 73, section 73A or this section, or
 - (b) other than on application.
- (3) The applicant may also identify, for the purposes of an application to be determined in accordance with this section, a planning permission—
 - (a) that was granted under section 73 or this section by reference to the existing permission, or
 - (b) that forms part of a sequence of planning permissions granted under section 73 or this section, the first of which was granted by reference to the existing permission.
- (4) A development order must set out how an applicant is to do as mentioned in subsections (1) and (3).
- (5) Planning permission may be granted in accordance with this section only if the local planning authority is satisfied that its effect will not be substantially different from that of the existing permission.
- (6) Planning permission may not be granted in accordance with this section in a way that differs from the existing permission as to the time by which a condition requires—
 - (a) development to be started, or
 - (b) an application for approval of reserved matters (within the meaning of section 92) to be made.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (7) In determining an application in accordance with this section, the local planning authority must limit its consideration to those respects in which the permission being applied for would, if granted in accordance with the proposal under subsection (1)(b), differ in effect from—
- (a) the existing permission, and
 - (b) each planning permission (if any) identified in accordance with subsection (3).

Section 70(2) is subject to this subsection.

- (8) If the local planning authority decides not to grant planning permission in accordance with this section, it must refuse the application.
- (9) For the purposes of this section, the effect of a planning permission is to be assessed by reference to both the development it authorises and any conditions to which it is subject.
- (10) In assessing the effect of an existing planning permission for the purposes of subsection (5) (but not for the purposes of subsection (7)), any change to the permission made under section 96A is to be disregarded.
- (11) The following provisions apply in relation to the condition under paragraph 13 of Schedule 7A (biodiversity gain condition)—
- (a) nothing in this section authorises the disapplication of the condition;
 - (b) the condition is to be disregarded for the purposes of subsections (1)(b), (5) and (7);
 - (c) where—
 - (i) the existing planning permission is subject to the condition,
 - (ii) a biodiversity gain plan (“the earlier biodiversity gain plan”) was approved for the purposes of the condition as it attaches to that permission,
 - (iii) planning permission is granted in accordance with this section, and
 - (iv) that planning permission is consistent with the post-development biodiversity value of the onsite habitat as specified in the earlier biodiversity gain plan,the earlier biodiversity gain plan is to be regarded as approved for the purposes of the condition as it attaches to the planning permission granted in accordance with this section.
- (12) Nothing in this section authorises the disapplication of the condition under section 90B (condition relating to development progress reports in England).
- (13) In relation to an application for planning permission that is made to, or is to be determined by, the Secretary of State, a reference in this section to the local planning authority is to be read as a reference to the Secretary of State.
- (14) The preceding provisions of this section apply in relation to an application for permission in principle as if—
- (a) each reference to planning permission were a reference to permission in principle, and
 - (b) the provisions of this section relating to conditions were omitted.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (15) Permission in principle granted in accordance with this section is to be taken, for the purposes of section 70(2ZZC), as having come into force when the existing permission in principle identified under subsection (1)(c) came into force.”
- (3) In section 62A (applications that may be made directly to the Secretary of State)—
- (a) in subsection (2), after “73(1)” insert “, an application that is to be determined in accordance with section 73B”;
 - (b) in subsection (3)(d), after “73(1)” insert “nor an application that is to be determined in accordance with section 73B”.
- (4) In section 70A (power to decline to determine application similar to an earlier one)—
- (a) in subsection (8), for “subsection (9)” substitute “subsections (9) to (11)”;
 - (b) at the end insert—
- “(10) An application that is to be determined in accordance with section 73B is not similar to an earlier application that was not determined in accordance with that section.
- (11) An application that is to be determined in accordance with section 73B is similar to an earlier application that was determined in accordance with that section only if the local planning authority think that the difference of effect referred to in subsection (7) of that section is (both in kind and in degree) the same or substantially the same in the case of both applications.”
- (5) In section 70B (power to decline to determine application similar to a pending one)—
- (a) in subsection (5), at the beginning insert “Subject to subsections (5A) and (5B),”;
 - (b) after subsection (5) insert—
- “(5A) An application that is to be determined in accordance with section 73B is not similar to another application that is not to be determined in accordance with that section.
- (5B) An application that is to be determined in accordance with section 73B is similar to another application that is to be determined in accordance with that section only if the local planning authority think that the difference of effect referred to in subsection (7) of that section is (both in kind and in degree) the same or substantially the same in the case of both applications.”

Commencement Information

I128 S. 110 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

111 Development commencement notices

- (1) TCPA 1990 is amended as follows.
- (2) After section 93 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“Commencement of development: England

93G Commencement notices

- (1) This section applies where—
 - (a) planning permission has been granted under section 70 or 73 for the development of any land in England, and
 - (b) the development is of a prescribed description.
- (2) Before the development is begun, the person proposing to carry it out must give a notice (a “commencement notice”) to the local planning authority specifying the date on which the person expects the development to be begun.
- (3) Once a person has given a commencement notice, the person—
 - (a) may give a further commencement notice substituting a new date for the date previously given, and
 - (b) must do so if the development is not commenced on the date previously given.
- (4) A commencement notice must—
 - (a) include such information as may be prescribed, and
 - (b) be in such form and be given in such manner as may be prescribed.
- (5) Where it appears to the local planning authority that a person has failed to comply with the requirements of subsection (2) or (3)(b), they may serve a notice on any relevant person requiring the relevant person to give the authority such of the information prescribed under subsection (4)(a) as the notice may specify.
- (6) In subsection (5) “relevant person” means—
 - (a) the person to whom the requirements of subsection (2) or (3)(b) applied, and
 - (b) any person who is the owner or occupier of the land to which the planning permission relates or who has any other interest in that land.
- (7) A person on whom a notice under subsection (5) is served is guilty of an offence if they fail to give the information required by the notice within the period of 21 days beginning with the day on which it was served.
- (8) It is a defence for a person charged with an offence under subsection (7) to prove that they had a reasonable excuse for failing to provide the information required.
- (9) A person guilty of an offence under subsection (7) is liable on summary conviction to a fine not exceeding level 3 on the standard scale.
- (10) When granting planning permission under section 70 or 73 for the development of any land in England, a local planning authority must by notice inform the applicant of—
 - (a) the requirements of subsections (2) and (3)(b), and
 - (b) the consequences of non-compliance with those requirements.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3) In section 56 (time when development begins), in subsection (3), after “92,” insert “93G.”
- (4) In section 69 (register of applications etc)—
- (a) in subsection (1), after paragraph (f) (inserted by [section 114\(4\)\(a\)](#)) insert—
 “(g) commencement notices under section 93G.”;
 - (b) in subsection (2), after paragraph (c) (inserted by [section 114\(4\)\(b\)](#)) insert—
 “(d) such information as is prescribed with respect to commencement notices under section 93G that are given to the local planning authority.”

Commencement Information

1129 S. 111 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

1130 [S. 111](#) in force at 31.3.2024 for specified purposes by [S.I. 2024/389](#), [reg. 2\(g\)](#)

112 Completion notices

- (1) TCPA 1990 is amended as follows.
- (2) After section 93G insert—

“Termination of planning permission: England

93H Completion notices

- (1) This section applies where—
- (a) a planning permission relating to land in England is by virtue of section 91 or 92 subject to a condition that the development to which the permission relates must begin before the expiration of a particular period, and development has been begun within that period but has not been completed,
 - (b) development has begun in accordance with a simplified planning zone scheme in England but has not been completed by the time the area ceases to be a simplified planning zone,
 - (c) development has begun in accordance with planning permission under an enterprise zone scheme in England but has not been completed by the time the area ceases to be an enterprise zone,
 - (d) a planning permission under a neighbourhood development order is subject to a condition that the development to which the permission relates must begin before the expiration of a particular period, and development has begun within that period but has not been completed, or
 - (e) a planning permission under a street vote development order is subject to a condition that the development to which the permission relates must begin before the expiration of a particular period, and development has begun within that period but has not been completed.
- (2) If the local planning authority are of the opinion that the development will not be completed within a reasonable period, they may serve a notice (a

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“completion notice”) stating that the planning permission will cease to have effect at a specified time (the “completion notice deadline”).

- (3) The completion notice deadline must be—
 - (a) at least 12 months after the completion notice was served, and
 - (b) if the notice was served in a case within subsection (1)(a) or (d) before the end of the period referred to in that provision, at least 12 months after the end of that period.
- (4) A completion notice must include—
 - (a) prescribed information in relation to the right of appeal against the notice, and
 - (b) any other prescribed information.
- (5) A completion notice must be served on—
 - (a) the owner of the land,
 - (b) if different, the occupier of the land, and
 - (c) a person not falling within paragraph (a) or (b) with an interest in the land, being an interest which, in the opinion of the local planning authority, is materially affected by the notice.
- (6) The local planning authority may withdraw a completion notice at any time before the completion notice deadline.
- (7) If they do so they must immediately give notice of the withdrawal to every person who was served with the completion notice.
- (8) If it appears to the Secretary of State to be expedient that a completion notice should be served in respect of any land in England, the Secretary of State may, after consulting the local planning authority, serve such a notice.

93I Appeals against completion notices

- (1) Where a completion notice is served by a local planning authority under section 93H, any of the following may appeal to the Secretary of State against it (whether or not the notice was served on them)—
 - (a) the owner of the land,
 - (b) a person not within paragraph (a) with an interest in the land, and
 - (c) a person who occupies the land by virtue of a licence.
- (2) An appeal may be brought on any of the following grounds—
 - (a) that the appellant considers that the development will be completed within a reasonable period;
 - (b) that the completion notice deadline is an unreasonable one;
 - (c) that the notice was not served on the persons on whom it was required to be served under section 93H(5).
- (3) The Secretary of State may by regulations prescribe the procedure which is to be followed on appeals under this section.
- (4) The regulations may in particular include provision—
 - (a) as to the period within which an appeal must be brought;
 - (b) as to how an appeal is made;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) as to the information to be supplied by the appellant;
 - (d) as to how a local planning authority must respond to an appeal and the information to be supplied by the authority;
 - (e) for the purpose of securing that the appeal is brought to the attention of persons in the locality of the development.
- (5) On an appeal under this section the Secretary of State may—
 - (a) quash the completion notice,
 - (b) vary the completion notice by substituting a later completion notice deadline, or
 - (c) uphold the notice with the original completion notice deadline.
- (6) On an appeal under this section the Secretary of State may also correct any defect, error or misdescription in the completion notice if satisfied that the correction will not cause injustice to the appellant or the local planning authority.
- (7) If, on an appeal made on the ground referred to in subsection (1)(c), the Secretary of State determines that the completion notice was not served on a person on whom it should have been served, the notice need not be quashed if it appears to the Secretary of State that neither that person nor the appellant has been substantially prejudiced by that fact.
- (8) Subsection (5) of section 250 of the Local Government Act 1972 (which authorises a Minister holding an inquiry under that section to make orders with respect to the costs of the parties) applies in relation to any proceedings before the Secretary of State on an appeal under this section as if those proceedings were an inquiry held by the Secretary of State under section 250.

93J Effect of completion notices

- (1) The planning permission to which a completion notice relates becomes invalid at the completion notice deadline (whether as originally specified or substituted on appeal under section 93I).
- (2) Where an appeal is brought under section 93H the completion notice is of no effect pending the final determination or withdrawal of the appeal.
- (3) Subsection (1) does not affect any planning permission so far as relating to development carried out under it before the completion notice deadline.”
- (3) [Schedule 11](#) contains consequential amendments.
- (4) The amendments made by this section and [Schedule 11](#) apply in relation to planning permission granted before, as well as to planning permission granted after, the coming into force of this section.
- (5) But a completion notice may not be served under section 93H of TCPA 1990 in a case where—
 - (a) before the coming into force of this section, a completion notice was served under section 94(2) of TCPA 1990, and
 - (b) that completion notice is awaiting confirmation under section 95 of TCPA 1990.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I131 [S. 112](#) in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

113 Power to decline to determine applications in cases of earlier non-implementation etc

- (1) TCPA 1990 is amended as follows.
- (2) After section 70C insert—

“70D Power to decline to determine applications in cases of earlier non-implementation etc

- (1) A local planning authority in England may decline to determine an application for planning permission for the development of any land if—
 - (a) the development is development of a prescribed description,
 - (b) the application is made by—
 - (i) a person who has previously made an application for planning permission for development of land all or any part of which is in the local planning authority’s area at the time the current application is made (“the earlier application”), or
 - (ii) a person who has a connection of a prescribed description with the development to which the earlier application related (“the earlier development”),
 - (c) the earlier development was of a description prescribed under paragraph (a), and
 - (d) subsection (2) or (3) applies to the earlier development.
- (2) This subsection applies to the earlier development if the earlier development has not begun.
- (3) This subsection applies to the earlier development if—
 - (a) the earlier development has begun but has not been substantially completed, and
 - (b) the local planning authority is of the opinion that the carrying out of the earlier development has been unreasonably slow.
- (4) In forming an opinion as to whether the carrying out of the earlier development has been unreasonably slow, the local planning authority must have regard to all the circumstances, including in particular—
 - (a) in a case where a commencement notice under section 93G has been given, whether the development—
 - (i) was begun by the date specified in the notice, and
 - (ii) was carried out in accordance with any timescales specified in it,
 - (b) whether a completion notice was served in respect of the earlier development under section 93H or (before the coming into force of section 93H) section 94 or 96 and, if so, whether the permission granted became invalid under section 93J or (as the case may be) section 95, and

***Status:** Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (c) any prescribed circumstances.
- (5) Where a person applies to a local planning authority for planning permission for development of a description prescribed under subsection (1)(a), the authority may by notice require the person to provide such information, being information of a prescribed description, as the authority may specify in the notice for the purpose of its functions under this section.
- (6) If a person does not comply with a notice under subsection (5) within the period of 21 days beginning with the day on which the notice was served, the local planning authority may decline to determine the application.
- (7) If a person to whom a notice under subsection (5) is given—
 - (a) makes a statement purporting to comply with the notice which the person knows to be false or misleading in a material particular, or
 - (b) recklessly makes such a statement which is false or misleading in a material particular,
 the person is guilty of an offence.
- (8) A person guilty of an offence under subsection (7) is liable on summary conviction to a fine.
- (9) Subsection (1) does not permit a local planning authority to decline to determine an application for planning permission to which section 73, 73A or 73B applies.”
- (3) In section 56 (time when development begins), in subsection (3), after “61D(5) and (7),” insert “70D,”.
- (4) In section 76C (provisions applying to applications under section 62A), in subsection (1), for “70C” substitute “70D”.
- (5) In section 78 (right to appeal), in subsection (2)(aa), after “or 70C” insert “or 70D”.
- (6) In section 174 (appeal against enforcement notice), in subsection (2AA)(b) (as substituted by [section 118](#) of this Act), for “or 70C” substitute “, 70C or 70D”.

Commencement Information

I132 [S. 113](#) in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

114 Condition relating to development progress reports

- (1) TCPA 1990 is amended as follows.
- (2) In section 56(3) (time when development begun), after “89,” insert “90B,”.
- (3) Before section 91 (including the italic heading before that section) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“Development progress reports

90B Condition relating to development progress reports in England

- (1) This section applies where relevant planning permission is granted for relevant residential development in England.
- (2) The relevant planning permission must be granted subject to a condition that a development progress report must be provided to the local planning authority in whose area the development is to be carried out for each reporting period.
- (3) The first reporting period in relation to the development is to be a period—
 - (a) beginning at a prescribed time or by reference to a prescribed event, and
 - (b) during which the development is begun.
- (4) A new reporting period is to begin immediately after the end of a reporting period which is not the last reporting period.
- (5) A reporting period which is not the last reporting period is to be a period of 12 months.
- (6) The last reporting period is to be a period ending with the day on which the development is completed (subject to any provision made under [subsection \(9\)](#)).
- (7) A “development progress report”, in relation to relevant residential development, means a report which sets out—
 - (a) the progress that has been made, and that remains to be made, towards completing the dwellings the creation of which the development is to involve, as at the end of the reporting period to which the report relates,
 - (b) the progress which is predicted to be made towards completing those dwellings over each subsequent reporting period up to and including the last reporting period, and
 - (c) such other information as may be prescribed in regulations under [subsection \(9\)](#).
- (8) If relevant planning permission is granted without the condition required by [subsection \(2\)](#), it is to be treated as having been granted subject to that condition.
- (9) The Secretary of State may by regulations make provision—
 - (a) about the form and content of development progress reports;
 - (b) about when and how development progress reports are to be provided to local planning authorities;
 - (c) about who may or must provide development progress reports to local planning authorities;
 - (d) about the provision of development progress reports and other information to local planning authorities where there is a change in circumstances in connection with relevant residential development,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

such as (for example) where the development is no longer intended to be completed in accordance with—

- (i) the relevant planning permission;
- (ii) a previous development progress report;
- (iii) any timescales specified in a commencement notice given under section 93G;
- (e) about when a condition under [subsection \(2\)](#) is to be treated as being discharged;
- (f) about when relevant residential development is to be treated as being completed for the purposes of this section.

(10) In this section—

“relevant planning permission” means planning permission other than—

- (a) planning permission granted by a development order;
- (b) planning permission granted for development carried out before the grant of that permission;
- (c) planning permission granted for a limited period;
- (d) planning permission granted by an enterprise zone scheme;
- (e) planning permission granted by a simplified planning zone scheme;

“relevant residential development” means development which—

- (a) involves the creation of one or more dwellings, and
- (b) is of a prescribed description.”

(4) In section 69 (register of applications etc)—

- (a) in subsection (1), after paragraph (e) insert—
 - “(f) development progress reports under section 90B;”;
- (b) in subsection (2), after paragraph (b) insert—
 - “(c) such information as is prescribed with respect to development progress reports under section 90B that are provided to the local planning authority;”.

(5) In section 70 (determination of applications: general considerations), in subsection (1) (a), after “sections” insert “90B,”.

(6) In section 73 (determination of applications to develop land after non-compliance), before subsection (4) insert—

“(2E) Nothing in this section authorises the disapplication of the condition under section 90B (condition relating to development progress reports in England).”

(7) In section 96A (power to make non-material changes to planning permission), before subsection (4) insert—

“(3B) The conditions referred to in subsection (3)(b) do not include the condition under section 90B (condition relating to development progress reports in England).”

(8) In section 97 (revocation or modification of planning permission), at the end insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(9) Subsection (1) does not permit the revocation or modification of the condition under section 90B (condition relating to development progress reports in England).”

(9) In section 100ZA(13)(c) (restrictions on power to impose planning conditions in England), as amended by paragraph 3(12) of Schedule 14 to the Environment Act 2021, at the end insert “or the condition under section 90B (condition relating to development progress reports in England)”.

(10) Until paragraph 3(12) of Schedule 14 to the Environment Act 2021 comes into force, section 100ZA(13)(c) has effect as if at the end there were inserted “but do not include the condition under section 90B (condition relating to development progress reports in England)”.

Commencement Information

I133 [S. 114](#) in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

CHAPTER 5

ENFORCEMENT OF PLANNING CONTROLS

115 Time limits for enforcement

(1) In section 171B of TCPA 1990 (time limits), in subsection (1), for the words from “four years” to the end substitute—

- “(a) in the case of a breach of planning control in England, ten years beginning with the date on which the operations were substantially completed, and
- (b) in the case of a breach of planning control in Wales, four years beginning with the date on which the operations were substantially completed.”

(2) In that section, in subsection (2), for the words from “four years” to the end substitute—

- “(a) in the case of a breach of planning control in England, ten years beginning with the date of the breach, and
- (b) in the case of a breach of planning control in Wales, four years beginning with the date of the breach.”

Commencement Information

I134 [S. 115](#) not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I135 [S. 115](#) in force at 25.4.2024 by [S.I. 2024/452](#), [reg. 3\(b\)](#) (with [reg. 5](#))

116 Duration of temporary stop notices

(1) Section 171E of TCPA 1990 (temporary stop notices) is amended as follows.

(2) In subsection (7)(a), for “period of 28 days” substitute “relevant period”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(3) After subsection (7) insert—

“(8) In subsection (7)(a), “relevant period” means—

- (a) in the case of a notice issued by a local planning authority in England, 56 days;
- (b) in the case of a notice issued by a local planning authority in Wales, 28 days.”

Commencement Information

I136 S. 116 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I137 [S. 116](#) in force at 25.4.2024 by [S.I. 2024/452](#), [reg. 3\(c\)](#) (with [reg. 6](#))

117 Enforcement warning notices

(1) TCPA 1990 is amended as follows.

(2) In section 171A (expressions used in connection with enforcement), in subsection (2)

(a) before paragraph (a) insert—

“(za) the issue of an enforcement warning notice in relation to land in England under section [172ZA](#).”;

(b) in paragraph (aa), for “(defined in section 173ZA)” substitute “in relation to land in Wales under section 173ZA”.

(3) Before section 172A insert—

“172ZA Enforcement warning notice: England

(1) The local planning authority may issue a notice (an “enforcement warning notice”) where it appears to them that—

- (a) there has been a breach of planning control in respect of any land in England, and
- (b) there is a reasonable prospect that, if an application for planning permission in respect of the development concerned were made, planning permission would be granted.

(2) The notice must—

- (a) state the matters that appear to the authority to constitute the breach of planning control, and
- (b) state that, unless an application for planning permission is made within a period specified in the notice, further enforcement action may be taken.

(3) A copy of the notice must be served—

- (a) on the owner and the occupier of the land to which it relates, and
- (b) on any other person having an interest in the land, being an interest that, in the opinion of the authority, would be materially affected by the taking of any further enforcement action.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) The issue of an enforcement warning notice does not affect any other power exercisable in respect of any breach of planning control.”
- (4) In section 188 (register of enforcement and stop notices and other enforcement action) in subsection (1)—
- (a) after paragraph (za) insert—
- “(zb) to enforcement warning notices under section [172ZA](#) (enforcement warning notice: England),”;
- (b) in paragraph (aa), at the end insert “under section [173ZA](#) (enforcement warning notice: Wales)”.
- (5) In that section, in subsection (2)—
- (a) in paragraph (a), for “enforcement warning notice” substitute “enforcement warning notice under section [172ZA](#) or [173ZA](#)”;
- (b) in paragraph (b), after “enforcement notices” insert “and enforcement warning notices under section [172ZA](#)”.

Commencement Information

I138 S. 117 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I139 [S. 117](#) in force at 25.4.2024 by [S.I. 2024/452](#), [reg. 3\(d\)](#)

118 Restriction on appeals against enforcement notices

In section 174 of TCPA 1990 (appeal against enforcement notice), for subsections (2A) and (2B) substitute —

- “(2A) An appeal may not be brought on the ground specified in subsection (2)(a) if—
- (a) the land to which the enforcement notice relates is in England, and
- (b) the enforcement notice was issued at a time after the making of an application for planning permission that was related to the enforcement notice.
- (2AA) For the purposes of [subsection \(2A\)](#)—
- (a) an application for planning permission for the development of any land is related to an enforcement notice if granting planning permission for the development would involve granting planning permission in respect of the matters specified in the enforcement notice as constituting a breach of planning control;
- (b) an application for planning permission that the local planning authority or the Secretary of State declined to determine under section 70A, 70B or 70C is to be ignored.
- (2AB) But [subsection \(2A\)](#) does not apply if—
- (a) the application for planning permission has ceased to be under consideration, and
- (b) the enforcement notice was issued after the end of the period of two years beginning with the day on which the application ceased to be under consideration.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(2AC) For the purposes of [subsection \(2AB\)](#), an application for planning permission has ceased to be under consideration if—

- (a) the application was refused, or granted subject to conditions, and, in the case of an application determined by the local planning authority, the applicant did not appeal under section 78(1)(a);
- (b) the applicant did not appeal in the circumstances mentioned in section 78(2) and the application was not subsequently refused;
- (c) the applicant appealed under section 78(1)(a) or section 78(2) and—
 - (i) the appeal was dismissed,
 - (ii) the application was on appeal granted subject to conditions, or subject to different conditions, or
 - (iii) the Secretary of State declined under section 79(6) to determine the appeal.

(2B) For the purposes of [subsection \(2AB\)](#), the day on which the application ceased to be under consideration is—

- (a) in a case within [subsection \(2AC\)\(a\)](#), the day on which the right to appeal arose;
- (b) in a case within [subsection \(2AC\)\(b\)](#), the day after the end of the prescribed period referred to in section 78(2);
- (c) in a case within [subsection \(2AC\)\(c\)\(i\)](#), the day on which the appeal was dismissed;
- (d) in a case within [subsection \(2AC\)\(c\)\(ii\)](#), the day on which the appeal was determined;
- (e) in a case within [subsection \(2AC\)\(c\)\(iii\)](#) relating to an appeal under section 78(1)(a), the day on which the right to appeal arose;
- (f) in a case within [subsection \(2AC\)\(c\)\(iii\)](#) relating to an appeal under section 78(2), the day after the end of the prescribed period referred to in section 78(2)."

Commencement Information

I140 S. 118 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I141 S. 118 in force at 25.4.2024 by [S.I. 2024/452](#), [reg. 3\(e\)](#) (with [reg. 7](#))

119 Undue delays in appeals

(1) TCPA 1990 is amended as follows.

(2) In section 176 (determination of appeals relating to enforcement notices), at the end insert—

“(6) If at any time before or during the determination of an appeal against an enforcement notice issued by a local planning authority in England it appears to the Secretary of State that the appellant is responsible for undue delay in the progress of the appeal, the Secretary of State may—

- (a) give the appellant notice that the appeal will be dismissed unless the appellant takes, within the period specified in the notice, such steps as are so specified for the expedition of the appeal, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) if the appellant fails to take those steps within that period, dismiss the appeal accordingly.”
- (3) In section 195 (appeals relating to certificates of lawfulness), after subsection (3) insert—
 - “(3A) Where the local planning authority referred to in subsection (1) is in England, if at any time before or during the determination of an appeal under subsection (1)(a) or (b) it appears to the Secretary of State that the appellant is responsible for undue delay in the progress of the appeal, the Secretary of State may—
 - (a) give the appellant notice that the appeal will be dismissed unless the appellant takes, within the period specified in the notice, such steps as are so specified for the expedition of the appeal, and
 - (b) if the appellant fails to take those steps within that period, dismiss the appeal accordingly.”
- (4) In Schedule 6 (determination of certain appeals by person appointed by Secretary of State), in paragraph 2 (powers and duties of appointed person)—
 - (a) in sub-paragraph (1)(b) for “and (5)” substitute “, (5) and (6)”;
 - (b) in sub-paragraph (1)(c), for “and (3)” substitute “, (3) and (3A)”.

Commencement Information

I142 S. 119 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I143 [S. 119](#) in force at 25.4.2024 by [S.I. 2024/452](#), [reg. 3\(f\)](#) (with [reg. 8](#))

120 Penalties for non-compliance

- (1) In section 187A of TCPA 1990 (enforcement of conditions), in subsection (12), for the words from “to a fine” to the end substitute—
 - “(a) to a fine, if the land is in England, or
 - (b) to a fine not exceeding level 3 on the standard scale, if the land is in Wales.”
- (2) In section 216 of TCPA 1990 (penalty for non-compliance with section 215 notice)—
 - (a) in subsection (2), for the words from “to a fine” to the end substitute—
 - “(a) to a fine, if the land is in England, or
 - (b) to a fine not exceeding level 3 on the standard scale, if the land is in Wales.”;
 - (b) in subsection (6), for “one-tenth of level 3 on the standard scale” substitute “the relevant amount”;
 - (c) after subsection (6) insert—
 - “(6A) In subsection (6) “the relevant amount” means—
 - (a) if the land is in England, one-tenth of the greater of—
 - (i) £5000, or
 - (ii) level 4 on the standard scale;
 - (b) if the land is in Wales, one-tenth of level 3 on the standard scale.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I144 S. 120 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I145 [S. 120](#) in force at 25.4.2024 by [S.I. 2024/452](#), [reg. 3\(g\)](#) (with [reg. 9](#))

121 Power to provide relief from enforcement of planning conditions

After section 196D of TCPA 1990 insert—

“Relief from enforcement

196E Power to provide relief from enforcement of planning conditions

- (1) The Secretary of State may by regulations provide that a local planning authority in England may not take, or is subject to specified restrictions in how it may take, relevant enforcement measures in relation to any actual or apparent failure to comply with a relevant planning condition.
- (2) The Secretary of State may make regulations under subsection (1) only if the Secretary of State considers that it is appropriate to make the regulations for the purposes of national defence or preventing or responding to civil emergency or significant disruption to the economy of the United Kingdom or any part of the United Kingdom.
- (3) The power in [subsection \(1\)](#) may only be exercised in respect of an actual or apparent failure which occurs during a specified period of not more than one year (the “relief period”) or which is apprehended during the relief period to so occur (but see subsections (7) and (8)).
- (4) A “relevant enforcement measure” is anything which may be done by a local planning authority in England for the purposes of investigating, preventing, remedying or penalising an actual or apparent failure to comply with a relevant planning condition.
- (5) A relevant enforcement measure includes, in particular—
 - (a) the exercise of a power under—
 - (i) section 171BA (power to apply for planning enforcement order);
 - (ii) section 187B (power to apply to court for injunction);
 - (iii) section 196A (power to enter without a warrant);
 - (iv) section 196B (power to apply for, and enter under, warrant);
 - (b) the issue of—
 - (i) a planning contravention notice under section 171C,
 - (ii) a temporary stop notice under section 171E,
 - (iii) an enforcement notice under section 172,
 - (iv) an enforcement warning notice under section 172ZA,
 - (v) a stop notice under section 183, or
 - (vi) a breach of condition notice under section 187A.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (6) A “relevant planning condition” is a condition or limitation subject to which planning permission for development of land in England is granted, but does not include a condition under—
 - (a) section 90A and Schedule 7A (condition relating to biodiversity gain);
 - (b) section 90B (condition relating to development progress reports);
 - (c) section 91 (condition limiting duration of planning permission);
 - (d) section 92 (conditions for outline planning permission).
- (7) Regulations under [subsection \(1\)](#) may make provision as to the treatment of an actual or apparent failure to comply with a relevant planning condition, which—
 - (a) starts before, but continues after, the start of the relief period, or
 - (b) starts during, but continues after, that period.
- (8) Regulations under [subsection \(1\)](#) may provide that an actual or apparent failure to comply with a relevant planning condition is not to be treated as occurring during the relief period, if the failure—
 - (a) occurs wholly during the period, and
 - (b) is not remedied by a specified time after the period.
- (9) Regulations under [subsection \(1\)](#) may make provision that, where anything relating to the taking of a relevant enforcement measure is to be or may be done by a time during the relief period, it is to be or may be instead done by a specified time after that period.
- (10) Regulations under [subsection \(1\)](#) may—
 - (a) apply in relation to all, or only specified, local planning authorities in England;
 - (b) apply in relation to all, or only specified, relevant planning conditions;
 - (c) apply in relation to all, or only specified, relevant enforcement measures;
 - (d) prevent the taking of relevant enforcement measures indefinitely or only for a specified period of time.
- (11) In this section, “specified” means specified or described in regulations under [subsection \(1\)](#).”

Commencement Information

I146 [S. 121](#) in force at 26.12.2023, see [s. 255\(3\)\(a\)](#)

CHAPTER 6

OTHER PROVISION

122 Consultation before applying for planning permission

In section 122 of the Localism Act 2011 (consultation before applying for planning permission in England), omit subsections (3) and (4) (which provide for the expiry of sections 61W to 61Y of TCPA 1990).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I147 S. 122 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I148 [S. 122](#) in force at 25.4.2024 by [S.I. 2024/452](#), [reg. 3\(h\)](#)

123 Duty in relation to self-build and custom housebuilding

(1) In section 2A of the Self-build and Custom Housebuilding Act 2015 (duty to grant planning permissions etc)—

(a) in subsection (2)—

(i) omit “suitable”;

(ii) for “in respect of enough serviced plots” substitute “for the carrying out of self-build and custom housebuilding on enough serviced plots”;

(iii) for “arising in” substitute “in respect of”;

(b) after subsection (5) insert—

“(5A) Regulations may make provision specifying descriptions of planning permissions or permissions in principle that are, or are not, to be treated as development permission for the carrying out of self-build and custom housebuilding for the purposes of this section.”;

(c) in subsection (6), for paragraph (a) substitute—

“(a) the demand for self-build and custom housebuilding in an authority’s area in respect of a base period is the aggregate of—

(i) the demand for self-build and custom housebuilding arising in the authority’s area in the base period; and

(ii) any demand for self-build and custom housebuilding that arose in the authority’s area in an earlier base period and in relation to which—

(A) the time allowed for complying with the duty in subsection (2) expired during the base period in question, and

(B) the duty in subsection (2) has not been met;

(aa) the demand for self-build and custom housebuilding arising in an authority’s area in a base period is evidenced by the number of entries added during that period to the register under section 1 kept by the authority”;

(d) omit subsection (6)(c);

(e) in subsection (9)(b), for “arising in” substitute “in respect of”.

(2) In section 4 of the Self-build and Custom Housebuilding Act 2015 (regulations), in subsection (2), before paragraph (za) insert—

“(zza) section 2A(5A).”.

Commencement Information

I149 S. 123 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I150 [S. 123](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(f\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

124 Powers as to form and content of planning applications

(1) Before section 327A of TCPA 1990 insert—

“327ZA Planning applications in England: powers as to form and content

- (1) Subsections (2) to (3) apply to a relevant power to make provision about—
 - (a) the form or manner in which a planning application is to be made, or
 - (b) the form or manner in which an associated document is to be provided.
- (2) The power includes power to make provision requiring or allowing the application to be made, or the associated document to be provided—
 - (a) by particular electronic means, or
 - (b) by electronic means that satisfy particular technical standards or specifications.
- (3) The power includes power to make provision requiring or allowing the authority to which a planning application is (or is to be) made to waive a requirement of a sort described in subsection (2).
- (4) Subsection (5) applies to a relevant power to make provision about the content of a planning application or associated document.
- (5) The power includes power to make provision requiring the application or associated document, or any particular content of it, to be prepared or endorsed by a person with particular qualifications or experience.
- (6) Subsection (7) applies to any power within subsection (1) or (4).
- (7) The power may be exercised by making provision referring (and giving effect) to such material of a particular description as is published from time to time by the Secretary of State on a government website together with a statement that it has effect for the purposes of the provision in question.
- (8) Provision that may be made by virtue of subsection (7) includes, for example, provision requiring or allowing a planning application to be made (or an associated document to be provided) using such a form, or in accordance with such specifications, as are published from time to time as mentioned in that subsection.
- (9) In this section, a “relevant power to make provision” about a certain matter is a power of the Secretary of State under this Act to make subordinate provision about that matter, if and so far as the power is exercisable in relation to England.
- (10) It is irrelevant for the purposes of subsection (9) in what terms a power is conferred (and, in particular, whether it relates specifically to the matter in question or is a more general power capable of exercise in relation to that matter).
- (11) In this section—

“associated document” means any document or other material that—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) accompanies, relates to, or is or is to be subject of, a planning application, and
 - (b) is required by or under this Act to be provided by or on behalf of the person making the application;

“planning application” means—

 - (a) an application under, or for the purposes of, any provision of Part 3 or 8 of this Act or any subordinate provision made under that Part, or
 - (b) an application under section 191 or 192,

but does not include an application made in legal proceedings;

“provided” includes prepared, submitted, issued, served, notified and published;

“subordinate provision” means provision in an order or in regulations.”
- (2) In section 62(2A) of TCPA 1990 (powers relating to applications for planning permission to include certain applications under conditions), before paragraph (a) insert—
 - “(za) applications for any consent, agreement or approval required by a condition under section 61C(1)(b).”.
- (3) In paragraph 14 of Schedule 7A to TCPA 1990 (biodiversity gain plans) at the end insert—
 - “(4) Section 327ZA applies to the power conferred by sub-paragraph (3) as if a biodiversity gain plan were an “associated document” within the meaning of that section.”
- (4) In section 17 of the Listed Buildings Act (conditions of listed building consent), after subsection (3) insert—
 - “(4) Regulations under this Act in relation to England may, in relation to applications made pursuant to a condition attached to listed building consent, make any provision corresponding to provision that may be made in relation to applications for such consent under section 10(3).”
- (5) In section 89 of the Listed Buildings Act (application of general provisions of TCPA 1990)—
 - (a) in subsection (1), after the entry for section 323A insert—
 - “section 327ZA (powers as to form and content of applications in England);”;
 - (b) before subsection (1A) insert—
 - “(1ZC) In section 327ZA of the principal Act as applied by this section, references to a planning application are to be read as references to an application under, or for the purposes of, any provision of Chapter 2 of Part 1 of this Act or any subordinate provision made under that Chapter (but are not to be read as including an application made in legal proceedings).”
- (6) In section 10 of the Hazardous Substances Act (conditions of hazardous substance consent), after subsection (3) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(4) Regulations in relation to England may, in relation to applications made pursuant to a condition attached to hazardous substance consent, make any provision corresponding to provision that may be made in relation to applications for such consent under section 7.”

(7) In section 37 of the Hazardous Substances Act (application of general provisions of TCPA 1990)—

(a) in subsection (2), after the entry for section 323A insert—

“section 327ZA (powers as to form and content of applications in England);”;

(b) at the end insert—

“(5) In section 327ZA of the principal Act as applied by this section, references to a planning application are to be read as references to an application under, or for the purposes of, any provision of this Act or any subordinate provision made under this Act (but are not to be read as including an application made in legal proceedings).”

Commencement Information

I151 S. 124 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I152 S. 124 in force at 25.4.2024 by [S.I. 2024/452](#), [reg. 3\(i\)](#)

PROSPECTIVE

125 Additional powers in relation to planning obligations

In section 106A of TCPA 1990 (modification and discharge of planning obligations), after subsection (9) insert—

“(9A) Regulations may make provision for, or in connection with—

- (a) requirements which must be met in order for a planning obligation in respect of land in England to be modified or discharged; and
- (b) circumstances in which a planning obligation in respect of land in England may not be modified or discharged.”

Commencement Information

I153 S. 125 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

126 Fees for certain services in relation to nationally significant infrastructure projects

(1) After section 54 of the Planning Act 2008 (rights of entry: Crown land) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“CHAPTER 4

FEES

54A Power to provide for fees for certain services in relation to nationally significant infrastructure projects

- (1) The Secretary of State may make regulations for and in connection with the charging of fees by prescribed public authorities in relation to the provision of relevant services.
- (2) A “relevant service” means any advice, information or other assistance (including a response to a consultation) provided in connection with—
 - (a) an application or proposed application—
 - (i) for an order granting development consent, or
 - (ii) to make a change to, or revoke, such an order, or
 - (b) any other prescribed matter relating to nationally significant infrastructure projects.
- (3) The regulations under [subsection \(1\)](#) may in particular make provision—
 - (a) about when a fee (including a supplementary fee) may, and may not, be charged;
 - (b) about the amount which may be charged;
 - (c) about what may, and may not, be taken into account in calculating the amount charged;
 - (d) about who is liable to pay a fee charged;
 - (e) about when a fee charged is payable;
 - (f) about the recovery of fees charged;
 - (g) about waiver, reduction or repayment of fees;
 - (h) about the effect of paying or failing to pay fees charged (including provision permitting a public authority prescribed under [subsection \(1\)](#) to withhold a relevant service that they would otherwise be required to provide under an enactment until any outstanding fees for that service are paid);
 - (i) for the supply of information for any purpose of the regulations;
 - (j) conferring a function, including a function involving the exercise of a discretion, on any person.
- (4) A public authority prescribed under [subsection \(1\)](#) must have regard to any guidance published by the Secretary of State in relation to the exercise of its functions under the regulations.
- (5) In this section, “public authority” means any person certain of whose functions are of a public nature.”

Commencement Information

I154 [S. 126](#) in force at 26.12.2023, see [s. 255\(3\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

127 Power to shorten deadline for examination of development consent order applications

- (1) Section 98 of the Planning Act 2008 (timetable for examining, and reporting on, application for development consent order) is amended as follows.
- (2) After subsection (4) insert—

“(4A) The Secretary of State may set a date for a deadline under subsection (1) that is earlier than the date for the time being set.”
- (3) In subsection (6), after “subsection (4)” insert “or (4A)”.

Commencement Information

I155 S. 127 in force at 26.12.2023, see s. 255(3)(a)

128 Additional powers in relation to non-material changes to development consent orders

In paragraph 2 of Schedule 6 to the Planning Act 2008 (non-material changes), after sub-paragraph (1) insert—

- “(1A) The Secretary of State may by regulations make provision about—
- (a) the decision-making process in relation to the exercise of the power conferred by sub-paragraph (1);
 - (b) the making of the decision as to whether to exercise that power;
 - (c) the effect of a decision to exercise that power.

This is subject to sub-paragraph (2).

- (1B) The power to make regulations under sub-paragraph (1A) includes power to allow a person to exercise a discretion.”

Commencement Information

I156 S. 128 in force at 26.12.2023, see s. 255(3)(a)

129 Hazardous substances consent: connected applications to the Secretary of State

In section 62A of TCPA 1990 (when application may be made directly to the Secretary of State), in subsection (3)(a)—

- (a) in sub-paragraph (i) omit “or”;
- (b) after that sub-paragraph insert—

“(ia) an application for hazardous substances consent under the Planning (Hazardous Substances) Act 1990, or”.

Commencement Information

I157 S. 129 not in force at Royal Assent, see s. 255(3)(b)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

1158 [S. 129](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(g\)](#)

130 Regulations and orders under the Planning Acts

(1) In section 333 of TCPA 1990 (regulations and orders)—

(a) after subsection (2A) insert—

“(2B) Regulations made under this Act may make consequential, supplementary, incidental, transitional, transitory or saving provision.”;

(b) after subsection (7) insert—

“(8) Orders made under this Act by statutory instrument may make consequential, supplementary, incidental, transitional, transitory or saving provision.”

(2) In section 238 of TCPA 1990 (consecrated land), in subsection (5)(c), for the words from “contain” to the end substitute “in particular by virtue of section 333(2B) include provision as to the closing of registers”.

(3) In TCPA 1990, omit the following—

- (a) section 61Z2(3);
- (b) section 106ZB(2)(a);
- (c) in section 116(2), the words “and incidental or supplementary provision”;
- (d) section 202G(4);
- (e) section 303(6)(a);
- (f) section 303ZA(4)(a);
- (g) section 319A(10)(a);
- (h) section 319B(10)(a);
- (i) in Schedule 4D, paragraph 1(3).

(4) In section 93 of the Listed Buildings Act (regulations and orders), for subsection (6) substitute—

“(6) Regulations made under this Act and orders made under this Act by statutory instrument may make consequential, supplementary, incidental, transitional, transitory or saving provision.”

(5) In the Listed Buildings Act, omit the following—

- (a) section 88D(9)(a);
- (b) section 88E(9)(a).

(6) In section 40 of the Hazardous Substances Act (regulations)—

- (a) in the heading, after “Regulations” insert “and orders”;
- (b) after subsection (4) insert—

“(5) Regulations made under this Act and orders made under this Act by statutory instrument may make consequential, supplementary, incidental, transitional, transitory or saving provision.”

(7) In section 5 of the Hazardous Substances Act (power to prescribe hazardous substances), in subsection (3), for “to make such transitional provision” substitute “under section 40(5) for regulations under this section to make transitional provision”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(8) In the Hazardous Substances Act, omit the following—

(a) section 21A(9)(a);

(b) section 21B(9)(a).

Commencement Information

I159 [S. 130](#) in force at 26.12.2023, see [s. 255\(3\)\(a\)](#)

131 Power for appointees to vary determinations as to procedure

In paragraph 2 of Schedule 6 to TCPA 1990 (powers and duties of appointed persons), in sub-paragraph (10)—

(a) for “does not apply” substitute “applies”;

(b) at the end insert “only for the purposes of subsection (4) of that section”.

Commencement Information

I160 [S. 131](#) in force at 26.12.2023, see [s. 255\(3\)\(a\)](#)

132 Pre-consolidation amendment of planning, development and compulsory purchase legislation

(1) The Secretary of State may by regulations make such amendments and modifications of the relevant enactments as in the Secretary of State’s opinion facilitate, or are otherwise desirable in connection with, the consolidation of some or all of those enactments.

(2) “Relevant enactments” means—

(a) the enactments listed in [subsection \(3\)](#), and

(b) any other enactments, whenever passed or made, so far as relating to—

(i) planning or development, or

(ii) the compulsory purchase of land (including compensation for such purchases).

(3) The enactments referred to in [subsection \(2\)\(a\)](#) are—

the Land Clauses Consolidation Act 1845;

the Railway Clauses Consolidation Act 1845;

sections 9, 13, 76 and 77 of the National Parks and Access to the Countryside Act 1949;

the Land Compensation Act 1961;

the Compulsory Purchase Act 1965;

the Agriculture Act 1967;

the Civic Amenities Act 1967;

the Land Compensation Act 1973;

sections 13 to 16 of (and Schedule 1 to) the Local Government (Miscellaneous Provisions) Act 1976;

Parts 13, 14, 16 and 18 of the Local Government, Planning and Land Act 1980;

the Compulsory Purchase (Vesting Declarations) Act 1981;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

the Acquisition of Land Act 1981;
the New Towns Act 1981;
Part 3 of the Housing Act 1988;
TCPA 1990;
the Listed Buildings Act;
the Hazardous Substances Act;
the Planning and Compensation Act 1991;
Part 3 and section 96 of (and Schedule 14 to) the Environment Act 1995;
GLAA 1999;
PCPA 2004;
the Planning Act 2008;
the Planning and Energy Act 2008;
Chapter 3 of Part 5, Part 6 and Chapter 2 of Part 8 of the Localism Act 2011;
Parts 6 and 7 of the Housing and Planning Act 2016;
section 15 of the Neighbourhood Planning Act 2017;
Parts 3 to 9 of this Act.

- (4) For the purposes of this section, “amend” includes repeal and revoke (and similar terms are to be read accordingly).
- (5) Subsection (6) applies where, in the Secretary of State’s opinion, an amendment or modification made by regulations under this section facilitates or is otherwise desirable in connection with the consolidation of certain relevant enactments.
- (6) The regulations must provide that the amendment or modification comes into force immediately before an Act consolidating those relevant enactments comes into force.
- (7) Regulations under this section must not make any provision which is within—
 - (a) Scottish devolved legislative competence,
 - (b) Welsh devolved legislative competence, or
 - (c) Northern Ireland devolved legislative competence,
unless that provision is a restatement of provision or is merely incidental to, or consequential on, provision that would be outside that legislative competence.
- (8) For the purposes of subsection (7)—
 - (a) provision is within “Scottish devolved legislative competence” where, if it were included in an Act of the Scottish Parliament, it would be within the legislative competence of that Parliament;
 - (b) provision is within “Welsh devolved legislative competence” where, if it were included in an Act of Senedd Cymru, it would be within the legislative competence of the Senedd (including any provision that could be made only with the consent of a Minister of the Crown);
 - (c) provision is within “Northern Ireland devolved legislative competence” where the provision—
 - (i) would be within the legislative competence of the Northern Ireland Assembly, if it were included in an Act of that Assembly, and
 - (ii) would not, if it were included in a Bill for an Act of the Northern Ireland Assembly, result in the Bill requiring the consent of the Secretary of State.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (9) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975.

Commencement Information

I161 S. 132 in force at 26.12.2023, see s. 255(3)(a)

133 Participation in certain proceedings conducted by, or on behalf of, the Secretary of State

- (1) The Secretary of State may, to the extent not otherwise able to do so, require or permit a person who takes part in relevant proceedings conducted by the Secretary of State to do so (wholly or partly) remotely.
- (2) The references in subsection (1) to the Secretary of State include references to a person appointed by the Secretary of State.
- (3) “Relevant proceedings” means any inquiry, hearing, examination, meeting or other proceedings under an Act (whenever passed or made) which relate to planning, development or the compulsory purchase of land.
- (4) Relevant proceedings include, in particular—
 - (a) any proceedings to which section 319A of TCPA 1990 applies (see subsections (7) to (10) of that section);
 - (b) any proceedings under section 20 of, or paragraph 6 of Schedule 3 to, the Listed Buildings Act;
 - (c) any proceedings under section 21 of, or paragraph 6 of the Schedule to, the Hazardous Substances Act;
 - (d) any proceedings under section 13A of, or paragraph 4A of Schedule 1 to, the Acquisition of Land Act 1981;
 - (e) any proceedings under Part 10A or Part 11 of the Planning Act 2008;
 - (f) an examination under Part 2 of PCPA 2004;
 - (g) an examination under Chapter 2 or 3 of Part 6 of the Planning Act 2008 (including any meetings under Chapter 4 of that Part) in relation to an application for an order granting development consent;
 - (h) an examination under Schedule 4B to the TCPA 1990 in relation to a draft neighbourhood development order.
- (5) For the purposes of this section a person takes part in relevant proceedings remotely if they take part through—
 - (a) a live telephone link,
 - (b) a live television link, or
 - (c) any other arrangement which does not involve the person attending the proceedings in person.

Commencement Information

I162 S. 133 in force at 26.12.2023, see s. 255(3)(a)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

PROSPECTIVE

134 Power of certain bodies to charge fees for advice in relation to applications under the Planning Acts

After section 303ZA of the TCPA 1990 (fees for appeals) insert—

“303ZB Power of certain bodies to charge fees for advice in relation to applications under the planning Acts

- (1) A prescribed body may charge fees for the provision of advice, information or assistance (including the provision of a response to a consultation) in connection with an application within [subsection \(2\)](#) that relates to land in England.
- (2) An application is within this subsection if it is an application, proposed application or proposal for a permission, approval or consent under, or for the purposes of, the planning Acts.
- (3) A prescribed body may not charge fees under [subsection \(1\)](#) in respect of—
 - (a) a response to a consultation that a qualifying neighbourhood body is required to carry out under an enactment;
 - (b) the provision of prescribed advice, information or assistance or advice, information or assistance of a prescribed description.
- (4) In subsection [\(3\)\(a\)](#), a “qualifying neighbourhood body” means—
 - (a) a qualifying body within the meaning given by section 61E(6) (and includes a community organisation which is to be regarded as such a qualifying body by virtue of paragraph 4(2) of Schedule 4C), or
 - (b) a qualifying body within the meaning given by section 38A(12) of the Planning and Compulsory Purchase Act 2004.
- (5) A prescribed body may charge fees under [subsection \(1\)](#) only in accordance with a statement published on its website which—
 - (a) describes the advice, information or assistance in respect of which fees are charged,
 - (b) sets out the fees (or, if applicable, the method by which the fees are to be calculated), and
 - (c) refers to any provision in an enactment pursuant to which the advice, information or assistance is provided.
- (6) Subsections [\(7\)](#) and [\(8\)](#) apply where a prescribed body decides to charge fees under [subsection \(1\)](#) for advice, information or assistance which the body provides pursuant to a provision in an enactment.
- (7) If a person fails to pay the fee charged under [subsection \(1\)](#), the prescribed body may, notwithstanding any requirement to provide the advice, information or assistance, withhold the advice, information or assistance until the fee is paid.
- (8) The prescribed body must secure that, taking one financial year with another, the income from the fees charged under [subsection \(1\)](#) does not exceed the cost of providing the advice, information or assistance.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(9) A financial year is the period of 12 months beginning with 1 April.

(10) Before making regulations under this section, the Secretary of State must consult—

- (a) any body likely to be affected by the regulations, and
- (b) such other persons as the Secretary of State considers appropriate.

(11) In this section, “fees” include charges (however described).”

Commencement Information

I163 S. 134 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

135 Biodiversity net gain: pre-development biodiversity value and habitat enhancement

In Schedule 7A to the TCPA 1990 (biodiversity gain in England)—

- (a) in paragraph 5(4), after “6” insert “, 6A, 6B”;
- (b) after paragraph 6 insert—

“6A If—

- (a) a person carries on activities on land on or after 25 August 2023 in accordance with a planning permission (other than the planning permission referred to in paragraph 5(1)),
- (b) on the relevant date, development for which that other planning permission was granted—
 - (i) has not been begun, or
 - (ii) has been begun but has not been completed, and
- (c) as a result of the activities the biodiversity value of the onsite habitat referred to in paragraph 5(1) is lower on the relevant date than it would otherwise have been,

the pre-development biodiversity value of the onsite habitat is to be taken to be its biodiversity value immediately before the carrying on of the activities.

6B (1) This paragraph applies where there is insufficient evidence of the biodiversity value of an onsite habitat immediately before the carrying on of the activities referred to in paragraph 6 or 6A.

(2) The biodiversity value of the onsite habitat immediately before the carrying on of the activities referred to in paragraph 6 or 6A is to be taken to be the highest biodiversity value of the onsite habitat which is reasonably supported by any available evidence relating to the onsite habitat.”;

- (c) in paragraph 10—

- (i) in sub-paragraph (1), after “habitat enhancement” insert “of an offsite habitat”;
- (ii) after sub-paragraph (1) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(1A) For the purposes of sub-paragraph (1) (and without prejudice to paragraphs 3 and 4(1)), a habitat enhancement is calculated as the amount by which the projected value of the offsite habitat as at the end of the maintenance period referred to in section 100(2)(b) of the Environment Act 2021 exceeds its pre-enhancement biodiversity value.

(1B) The pre-enhancement biodiversity value of an offsite habitat is the biodiversity value of the offsite habitat on the relevant date.

(1C) The relevant date is—

- (a) the date on which the application is made to register the land subject to the habitat enhancement in the biodiversity gain site register, or
- (b) such other date as may be specified in the conservation covenant or planning obligation.

(1D) But if—

- (a) a person carries on activities on an offsite habitat on or after 25 August 2023 otherwise than in accordance with—
 - (i) planning permission, or
 - (ii) any other permission of a kind specified by the Secretary of State by regulations, and
- (b) as a result of the activities the biodiversity value of the offsite habitat is lower on the relevant date than it would otherwise have been,

the pre-enhancement biodiversity value of the offsite habitat is to be taken to be its biodiversity value immediately before the carrying on of the activities.”;

- (d) in paragraph 12(1), after the definition of “onsite habitat” insert—
 ““offsite habitat” means habitat which is not onsite habitat.”

Commencement Information

I164 S. 135 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I165 [S. 135](#) in force at 12.2.2024 by [S.I. 2024/92, reg. 3](#)

136 Development affecting ancient woodland

- (1) Before the end of the period of three months beginning with the day on which this Act is passed, the Secretary of State must vary the Town and Country Planning (Consultation) (England) Direction 2021 (“the 2021 Direction”) so that it applies in relation to applications for planning permission for development affecting ancient woodland.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) In subsection (1) “ancient woodland” means an area in England which has been continuously wooded since at least the end of the year 1600 A.D.
- (3) This section does not affect whether or how the Secretary of State may withdraw or vary the 2021 Direction after it has been varied as mentioned in subsection (1).

Commencement Information

I166 S. 136 in force at 26.12.2023, see s. 255(3)(a)

PART 4

INFRASTRUCTURE LEVY AND COMMUNITY INFRASTRUCTURE LEVY

PROSPECTIVE

137 Infrastructure Levy: England

[Schedule 12](#) makes provision for, and in connection with, the imposition, in England, of a charge to be known as Infrastructure Levy.

Commencement Information

I167 S. 137 not in force at Royal Assent, see s. 255(4)

PROSPECTIVE

138 Power to designate Homes and Communities Agency as a charging authority

In section 14 of the Housing and Regeneration Act 2008 (contents of designation orders), after subsection (6) insert—

“(6A) The order may provide that where the HCA is the local planning authority for the whole or any part of the designated area it is to be a charging authority under section 204B(3)(b) of the Planning Act 2008 (Infrastructure Levy) for the whole or any part of that area—

- (a) for all or specified purposes,
- (b) in relation to all or specified kinds of development, and
- (c) in place of any person or body who would otherwise be the charging authority for that area, for those purposes, and in relation to those kinds of development.”

Commencement Information

I168 S. 138 not in force at Royal Assent, see s. 255(4)

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

PROSPECTIVE

139 Restriction of Community Infrastructure Levy to Greater London and Wales

- (1) Part 11 of the Planning Act 2008 (Community Infrastructure Levy) is amended as follows.
- (2) In the Part heading, at the end insert “: Greater London and Wales”.
- (3) In section 205 (the levy)—
 - (a) in subsection (1), after “imposition” insert “, in Greater London and Wales,”;
 - (b) in subsection (3), in the Table, omit the second entry.
- (4) In section 206 (the charge)—
 - (a) in subsection (1), after “A charging authority” insert “in Greater London or Wales”;
 - (b) for subsection (3) substitute—

“(3) The Mayor of London is the charging authority for Greater London.”;
 - (c) in subsection (4)—
 - (i) in the words before paragraph (a), for “, or in the case of Greater London one of the charging authorities,” substitute “in Wales”;
 - (ii) in the words before paragraph (a), omit “, (3)(b) or (c)”;
 - (iii) in paragraph (a), at the end insert “in Wales, and”;
 - (iv) omit paragraphs (c) to (e);
 - (d) in subsection (5)—
 - (i) omit paragraph (a) (together with the “and” at the end of that paragraph);
 - (ii) in paragraph (b) omit “in relation to Wales”;
 - (e) omit subsection (6).
- (5) Omit section 207 (joint committees).
- (6) In section 223(1) (relationship with other powers), before paragraph (a) insert—

“(za) Part 10A (Infrastructure Levy: England) (including any power conferred by IL regulations under that Part),”.

Commencement Information

I169 S. 139 not in force at Royal Assent, see [s. 255\(4\)](#)

140 Enforcement of Community Infrastructure Levy

- (1) In section 218 of the Planning Act 2008 (enforcement), for subsections (11) and (12) substitute—

“(11) Regulations under this section creating a criminal offence may not provide for—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) imprisonment for a term exceeding the maximum term for summary offences, on summary conviction for an offence triable summarily only,
- (b) imprisonment for a term exceeding the general limit in a magistrates' court, on summary conviction for an offence triable either way, or
- (c) imprisonment for a term exceeding 2 years, on conviction on indictment.

(12) In subsection (11)(a), “the maximum term for summary offences” means—

- (a) in relation to an offence committed before the time when section 281(5) of the Criminal Justice Act 2003 comes into force, 6 months;
- (b) in relation to an offence committed after that time, 51 weeks.”

Commencement Information

I170 S. 140 not in force at Royal Assent, see [s. 255\(4\)](#)

I171 [S. 140](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(h\)](#)

PROSPECTIVE

PART 5

COMMUNITY LAND AUCTION PILOTS

Community land auction arrangements

141 Community land auction arrangements and their purpose

- (1) In making CLA regulations the Secretary of State must aim to ensure that the overall purpose of community land auction arrangements is to ensure that costs incurred in—
 - (a) supporting the development of an area, and
 - (b) achieving any purpose specified under [section 143\(7\)](#), [section 144\(3\)](#) or [section 145\(3\)](#),
 can be funded (wholly or partly) by owners or developers of land.
- (2) “CLA regulations” means regulations made under this Part by the Secretary of State.
- (3) A “community land auction arrangement” means an arrangement provided for in CLA regulations under which—
 - (a) a local planning authority is to invite anyone who has a freehold or leasehold interest in land in the authority's area to offer to grant a CLA option over the land, with a view to the land being allocated for development in the next local plan for the authority's area,
 - (b) any CLA option granted under the arrangement ceases to have effect if the land subject to the option is not so allocated when that plan is adopted or approved (unless the option has already been exercised or been withdrawn or otherwise ceased to have effect), and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) the local planning authority may—
 - (i) exercise the CLA option and dispose of the interest in the land to a person who proposes to develop the land,
 - (ii) exercise the CLA option with a view to developing the land itself, or
 - (iii) dispose of the CLA option to a person who proposes to exercise it and then develop the land.
- (4) A “CLA option”, in relation to land, means an option to acquire a freehold or leasehold interest in the land which—
 - (a) subject to CLA regulations under paragraph (c), can be—
 - (i) exercised by the local planning authority in whose area the land is situated, or
 - (ii) disposed of by that authority to any other person, on such terms as the authority considers appropriate,
 - (b) is granted under a community land auction arrangement, and
 - (c) meets any requirements imposed by CLA regulations.
- (5) CLA regulations under subsection (4)(c) may, in particular, include provision about—
 - (a) how long a CLA option must be capable of being exercised for;
 - (b) when, or the circumstances in which, a CLA option may or must be capable of being exercised;
 - (c) when, or the circumstances in which, a CLA option may or must cease to have effect;
 - (d) when, or the circumstances in which, a CLA option may or must be withdrawn;
 - (e) when, the circumstances in which or the terms on which, a CLA option may or must be disposed of;
 - (f) sums that are to be paid under or in connection with a CLA option (including provision permitting or requiring such sums to be adjusted to reflect changes in the value of money);
 - (g) the form and content of a CLA option.

Commencement Information

I172 S. 141 not in force at Royal Assent, see [s. 255\(4\)](#)

142 Power to permit community land auction arrangements

- (1) This section applies where—
 - (a) CLA regulations provide that a local planning authority which is to prepare a local plan may put in place a community land auction arrangement in relation to that plan,
 - (b) the local planning authority resolves to do so (and that resolution has not been rescinded), and
 - (c) the community land auction arrangement has not come to an end.
- (2) The local plan may only allocate land in the authority’s area for development—
 - (a) if the land is subject to a CLA option or a CLA option has already been exercised in relation to it, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) in circumstances which are prescribed by CLA regulations.
- (3) Any financial benefit that the local planning authority has derived, or will or could derive, from a CLA option may be taken into account—
 - (a) in deciding whether to allocate land which is subject to the option, or in relation to which the option has been exercised, for development in the local plan;
 - (b) in deciding whether the local plan is sound in an examination under Part 2 of PCPA 2004.
- (4) CLA regulations may make provision about how, or to what extent, any financial benefit may be taken into account under subsection (3) (including provision about how any financial benefit is to be weighed against any other considerations which may be relevant to whether the land should be allocated for development in the local plan or to whether the plan is sound).
- (5) References in this section to a local plan do not include references to a joint local plan (but see [section 147](#) in relation to the application of this Part in relation to joint local plans).

Commencement Information

I173 S. 142 not in force at Royal Assent, see [s. 255\(4\)](#)

CLA receipts

143 Application of CLA receipts

- (1) CLA regulations must require a local planning authority which receives sums that represent financial benefit derived from CLA options over land in its area (“CLA receipts”) to apply them, or cause them to be applied, to—
 - (a) support the development of an area by funding the provision, improvement, replacement, operation or maintenance of infrastructure, or
 - (b) fund the operation of community land auction arrangements in relation to its area.
- (2) Subsection (1) is subject to the following provisions of this section and sections [144\(1\)](#) to [\(3\)](#) and [145\(2\)](#) and [\(3\)](#).
- (3) CLA regulations may make provision about the extent to which the CLA receipts received by a local planning authority may or must be applied to funding the provision, improvement, replacement, operation or maintenance of infrastructure of a particular description.
- (4) In this section (except subsection (6)) and sections [144\(2\)](#), [145\(2\)](#) and [146](#) “infrastructure” includes—
 - (a) roads and other transport facilities,
 - (b) flood defences,
 - (c) schools and other educational facilities,
 - (d) medical facilities,
 - (e) sporting and recreational facilities,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (f) open spaces,
 - (g) affordable housing,
 - (h) facilities and equipment for emergency and rescue services,
 - (i) facilities and spaces which—
 - (i) preserve or improve the natural environment, or
 - (ii) enable or facilitate enjoyment of the natural environment, and
 - (j) facilities and spaces for the mitigation of, and adaptation to, climate change.
- (5) In [subsection \(4\)\(g\)](#) “affordable housing” means—
- (a) social housing within the meaning of Part 2 of the Housing and Regeneration Act 2008, and
 - (b) any other description of housing that CLA regulations may specify.
- (6) CLA regulations may amend this section so as to—
- (a) add, remove or vary an entry in the list of matters included within the meaning of “infrastructure”;
 - (b) list matters excluded from the meaning of “infrastructure”.
- (7) CLA regulations may make provision about circumstances in which local planning authorities may apply a specified amount of CLA receipts, or cause a specified amount of CLA receipts to be applied, towards specified purposes which are not mentioned in [subsection \(1\)](#).
- (8) CLA regulations may specify—
- (a) works, installations and other facilities whose provision, improvement or replacement may or is to be, or may not be, funded by CLA receipts,
 - (b) maintenance activities and operational activities (including operational activities of a promotional kind) in connection with infrastructure that may or are to be, or may not be, funded by CLA receipts,
 - (c) things within [subsection \(1\)\(b\)](#) that may or are to be, or may not be, funded by CLA receipts,
 - (d) things within [section 144\(2\)](#) that may or are to be, or may not be, funded by CLA receipts passed to a person in discharge of a duty under [section 144\(1\)](#),
 - (e) things within [section 145\(2\)](#) that may or are to be, or may not be, funded by CLA receipts to which provision under [section 145\(2\)](#) relates,
 - (f) criteria for determining the areas that may benefit from funding by CLA receipts, and
 - (g) what is to be, or not to be, treated as funding.
- (9) The regulations may—
- (a) require local planning authorities in relation to which [section 142](#) applies to prepare and publish a list of what is to be, or may be, wholly or partly funded by CLA receipts;
 - (b) include provision about the procedure to be followed in preparing a list (which may include provision for consultation or for the appointment of an independent person or both);
 - (c) include provision about the circumstances in which a local planning authority may and may not apply CLA receipts to anything not included on the list;
 - (d) permit or require the list to be prepared and published as part of a CLA infrastructure delivery strategy (see [section 146](#)).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (10) In making provision about funding the regulations may, in particular—
- (a) permit CLA receipts to be used to reimburse expenditure already incurred;
 - (b) permit CLA receipts to be reserved for expenditure that may be incurred in the future;
 - (c) permit CLA receipts to be applied (either generally or subject to limits set by or determined in accordance with the regulations) to administrative expenses in connection with infrastructure or anything within [section 144\(2\)\(a\)\(ii\)](#) or [section 145\(2\)\(b\)](#) or otherwise in connection with a community land auction arrangement;
 - (d) include provision for the giving of loans, guarantees or indemnities;
 - (e) make provision about the application of CLA receipts where anything to which they were to be applied no longer requires funding.
- (11) The regulations may—
- (a) require a local planning authority to account separately, and in accordance with the regulations, for CLA receipts received or due;
 - (b) require a local planning authority to monitor the use made and to be made of CLA receipts in its area;
 - (c) require a local planning authority to report on actual or expected collection and application of CLA receipts;
 - (d) permit a local planning authority to cause money to be applied in respect of things done outside its area;
 - (e) permit a local planning authority or other body to spend or retain money;
 - (f) permit a local planning authority to pass money to another body (and in paragraphs (a) to (e) a reference to a local planning authority includes a reference to a body to which a local planning authority passes money in reliance on this paragraph).
- (12) For the purposes of [subsection \(1\)](#) a financial benefit is derived from a CLA option if it arises as a consequence of the local planning authority—
- (a) exercising the option and developing or disposing of the land which was subject to it, or
 - (b) disposing of the option.

Commencement Information

I174 S. 143 not in force at Royal Assent, see [s. 255\(4\)](#)

144 Duty to pass CLA receipts to other persons

- (1) CLA regulations may require a local planning authority that receives CLA receipts in respect of development in an area to pass them to a person other than the authority.
- (2) CLA regulations imposing a duty under [subsection \(1\)](#) must contain provision to secure that any CLA receipts passed to a person in discharge of the duty are used to—
 - (a) support the development of the area to which the duty relates, or of any part of that area, by funding—
 - (i) the provision, improvement, replacement, operation or maintenance of infrastructure, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (ii) anything else that is concerned with addressing demands that development places on an area, or
- (b) fund the operation of community land auction arrangements in relation to land in the local planning authority's area.
- (3) CLA regulations may make provision about circumstances in which a specified amount of the CLA receipts may be used for specified purposes which are not mentioned in [subsection \(2\)](#).
- (4) A duty under [subsection \(1\)](#) may relate to—
 - (a) the whole of a local planning authority's area or the whole of the combined area of two or more local planning authorities, or
 - (b) part only of such an area or combined area.
- (5) CLA regulations may make provision about the persons to whom CLA receipts may or must, or may not, be passed in discharge of a duty under [subsection \(1\)](#).
- (6) A duty under [subsection \(1\)](#) may relate—
 - (a) to all CLA receipts (if any) received in respect of the area to which the duty relates, or
 - (b) such part of those CLA receipts as is specified in, or determined under or in accordance with, CLA regulations.
- (7) CLA regulations may make provision in connection with the timing of payments in discharge of a duty under [subsection \(1\)](#).
- (8) CLA regulations may, in relation to CLA receipts passed to a person in discharge of a duty under [subsection \(1\)](#), make provision about—
 - (a) accounting for the CLA receipts,
 - (b) monitoring their use,
 - (c) reporting on their use,
 - (d) responsibilities of local planning authorities for things done by the person in connection with the CLA receipts,
 - (e) recovery of the CLA receipts, and any income or profits accruing in respect of them or from their application, in cases where—
 - (i) anything to be funded by them has not been provided, or
 - (ii) they have been misapplied,
 including recovery of sums or other assets representing them or any such income or profits, and
 - (f) use of anything recovered in cases where—
 - (i) anything to be funded by the CLA receipts has not been provided, or
 - (ii) the CLA receipts have been misapplied.
- (9) This section does not limit [section 143\(11\)\(f\)](#).

Commencement Information

I175 S. 144 not in force at Royal Assent, see [s. 255\(4\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

145 Use of CLA receipts in an area to which section 144(1) duty does not relate

- (1) Subsection (2) applies where—
 - (a) there is an area to which a particular duty under section 144(1) relates, and
 - (b) there is also an area to which that duty does not relate (“the uncovered area”).
- (2) CLA regulations may provide that the local planning authority that receives CLA receipts in respect of development in the uncovered area may apply the CLA receipts, or cause them to be applied, to—
 - (a) support development by funding the provision, improvement, replacement, operation or maintenance of infrastructure,
 - (b) support development of the uncovered area, or of any part of that area, by funding anything else that is concerned with addressing demands that development places on an area, or
 - (c) funding the operation of community land auction arrangements in relation to the local planning authority’s area.
- (3) The regulations may make provision about circumstances in which the authority may apply a specified amount of CLA receipts, or cause a specified amount of CLA receipts to be applied, towards specified purposes which are not mentioned in subsection (2).
- (4) Provision under subsection (2)(a) or (b) may relate to the whole, or part only, of the uncovered area.
- (5) Provision under subsection (2) may relate—
 - (a) to all CLA receipts (if any) received in respect of the area to which the provision relates, or
 - (b) such part of those CLA receipts as is specified in, or determined under or in accordance with, CLA regulations.

Commencement Information

I176 S. 145 not in force at Royal Assent, see s. 255(4)

146 CLA infrastructure delivery strategy

- (1) CLA regulations may require a local planning authority in relation to which section 142 applies to prepare and publish a CLA infrastructure delivery strategy.
- (2) A CLA infrastructure delivery strategy is a document which—
 - (a) sets out the strategic plans (however expressed) of the local planning authority in relation to the application of CLA receipts, and
 - (b) includes such other information as may be prescribed by CLA regulations.
- (3) A CLA infrastructure delivery strategy may and, if required by CLA regulations, must set out the plans (however expressed) of the local planning authority in relation to the provision, improvement, replacement, operation and maintenance of infrastructure in the authority’s area.
- (4) A local planning authority may at any time prepare and publish a revision to, or replacement of, its CLA infrastructure delivery strategy.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (5) CLA regulations may make provision for the independent examination of—
 - (a) CLA infrastructure delivery strategies, and
 - (b) revisions to, or replacements of, such strategies.
- (6) The regulations may make provision for an examination to be combined with—
 - (a) an examination under Part 2 of PCPA 2004 in relation to a local plan, or
 - (b) an examination under Part 10A of the Planning Act 2008 in relation to an infrastructure delivery strategy under that Part.
- (7) The regulations may, in particular, make provision—
 - (a) about who is to carry out the examination;
 - (b) about what the examiner must, may or may not consider;
 - (c) about the procedure to be followed;
 - (d) about recommendations, or other consequences, arising from or in connection with the examination;
 - (e) about circumstances in which an examination is not required;
 - (f) applying, or corresponding to, any provision made by or under Part 10A of the Planning Act 2008 relating to an examination in relation to a charging schedule or infrastructure delivery strategy under that Part (with or without modifications).
- (8) A local planning authority which is required to prepare and publish a CLA infrastructure delivery strategy must have regard to any guidance published by the Secretary of State in relation to the preparation, publication, revision or replacement of CLA infrastructure delivery strategies.
- (9) CLA regulations may make provision about—
 - (a) the form and content of CLA infrastructure delivery strategies;
 - (b) the publication of CLA infrastructure delivery strategies and any related documents;
 - (c) the procedures to be followed in relation to the preparation, revision or replacement of CLA infrastructure delivery strategies;
 - (d) the timing of any steps in connection with the preparation, publication, revision or replacement of CLA infrastructure delivery strategies;
 - (e) the evidence required to inform the preparation of CLA infrastructure delivery strategies;
 - (f) consultation in connection with CLA infrastructure delivery strategies;
 - (g) the preparation of joint CLA infrastructure delivery strategies;
 - (h) the period of time for which CLA infrastructure delivery strategies are valid.

Commencement Information

I177 S. 146 not in force at Royal Assent, see [s. 255\(4\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

General

147 Power to provide for authorities making joint local plans

- (1) CLA regulations may make provision applying any provision made by or under this Part in relation to local planning authorities whose next local plan is to be a joint local plan, with or without modifications.
- (2) Where CLA regulations make provision under subsection (1) which permits local planning authorities that are to make a joint local plan to put in place a community land auction arrangement jointly, it must include provision about how CLA receipts deriving from that arrangement are to be shared between the authorities.

Commencement Information

I178 S. 147 not in force at Royal Assent, see [s. 255\(4\)](#)

148 Parliamentary scrutiny of pilot

- (1) The Secretary of State must prepare a report which—
 - (a) assesses the effectiveness of the operation of this Part in delivering the overall purpose mentioned in [section 141\(1\)](#), and
 - (b) contains such other information about, or assessments as to the effect of, community land auction arrangements as the Secretary of State considers appropriate.
- (2) The Secretary of State must lay the report before each House of Parliament before the later of—
 - (a) the end of the period of 24 months beginning with the day on which this Part expires in accordance with [section 150](#), and
 - (b) the end of the period of 24 months beginning with the day on which the final community land auction arrangement comes to an end.
- (3) The “final community land auction arrangement” means the last community land auction arrangement to come to an end.
- (4) After the report has been laid before each House of Parliament under [subsection \(2\)](#), the Secretary of State must publish it as soon as is reasonably practicable.
- (5) In calculating a period of 24 months mentioned in [subsection \(2\)](#), no account is to be taken of any time during which—
 - (a) Parliament is dissolved or prorogued, or
 - (b) either House of Parliament is adjourned for more than 4 days.

Commencement Information

I179 S. 148 not in force at Royal Assent, see [s. 255\(4\)](#)

149 CLA regulations: further provision and guidance

- (1) CLA regulations may make provision—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) about the leasehold interests in relation to which a community land auction arrangement may, may not or must be capable of applying;
 - (b) permitting a local planning authority to exclude land from a community land auction arrangement and disapply [section 142\(2\)](#) in relation to that land;
 - (c) about the procedures to be followed under, or in connection with, a community land auction arrangement;
 - (d) about the provision or publication of information under, or in connection with, a community land auction arrangement;
 - (e) about how, when or the circumstances in which anything must be done under, or in connection with, a community land auction arrangement;
 - (f) about the treatment of anyone who has an interest in or over land which is subject to a CLA option;
 - (g) about when a community land auction arrangement is to be taken to be put in place or to come to an end;
 - (h) about how [section 106](#) of TCPA 1990 (planning obligations) is to be used, or is not to be used, where [section 142](#) applies or has applied (including provision about the circumstances in which a planning obligation under that section may constitute a reason for granting planning permission);
 - (i) about the exercise of any other power relating to planning or development;
 - (j) about anything else relating to planning or development.
- (2) The Secretary of State may give guidance to a local planning authority or other authority about, or in connection with, community land auction arrangements (including guidance about how any power relating to planning or development is to be exercised in circumstances which include, or may include, a community land auction arrangement); and authorities must have regard to the guidance.
- (3) Provision may be made under [subsection \(1\)\(h\) to \(j\)](#), and guidance may be given under [subsection \(2\)](#), only if the Secretary of State thinks it necessary or expedient for—
- (a) delivering the overall purpose mentioned in [section 141\(1\)](#),
 - (b) enhancing the effectiveness, or increasing the use, of CLA regulations or community land auction arrangements,
 - (c) preventing agreements, undertakings or other transactions from being used to undermine or circumvent CLA regulations or community land auction arrangements,
 - (d) preventing agreements, undertakings or other transactions from being used to achieve a purpose that the Secretary of State thinks would better be achieved through the application of CLA regulations or community land auction arrangements, or
 - (e) preventing or restricting the imposition of burdens, the making of agreements or the giving of undertakings, in addition to those in connection with CLA regulations or community land auction arrangements.
- (4) CLA regulations may—
- (a) confer functions on any person, including functions involving the exercise of a discretion;
 - (b) make consequential, supplementary or incidental provision under [section 252\(1\)\(c\)](#) which disapplies, or modifies the effect of, any provision made by or under an Act of Parliament (whenever passed or made).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I180 S. 149 not in force at Royal Assent, see [s. 255\(4\)](#)

150 Expiry of Part 5

- (1) This Part, other than [section 148](#) and this section, expires at the end of the period of 10 years beginning with the date on which CLA regulations are first made.
- (2) Subsection (1) does not affect—
 - (a) any community land auction arrangement which is put in place before the expiry of this Part (whether or not it comes to an end before this Part expires);
 - (b) any CLA option, or allocation of land for development in a local plan, that is made under a community land auction arrangement which is put in place before the expiry of this Part (whether or not it comes to an end before this Part expires);
 - (c) the treatment of any CLA receipts after the expiry of this Part.
- (3) Subsections (1) and (2) are subject to such transitional, transitory or saving provision as may be made by CLA regulations in connection with the expiry of this Part.

Commencement Information

I181 S. 150 not in force at Royal Assent, see [s. 255\(4\)](#)

151 Interpretation of Part 5

In this Part—

- “CLA option” has the meaning given by [section 141\(4\)](#);
 - “CLA receipts” has the meaning given by [section 143\(1\)](#);
 - “CLA regulations” has the meaning given by [section 141\(2\)](#);
 - “community land auction arrangement” has the meaning given by [section 141\(3\)](#);
 - “joint local plan” and “local plan” have the same meaning as in Part 2 of PCPA 2004 (see, in particular, section 15LH of that Act);
 - “local planning authority” means a local planning authority for the purposes of Part 2 of PCPA 2004 (see, in particular, [section 15LF](#) of that Act) other than—
 - (a) a joint committee constituted under [section 15J](#) of that Act,
 - (b) an urban development corporation, a development corporation established under the New Towns Act 1981 or a Mayoral development corporation, or
 - (c) the Homes and Communities Agency,
- and references to the area of a local planning authority are to the area for which the authority is the local planning authority in accordance with Part 2 of PCPA 2004.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I182 S. 151 not in force at Royal Assent, see [s. 255\(4\)](#)

PART 6

ENVIRONMENTAL OUTCOMES REPORTS

Modifications etc. (not altering text)

- C4** Pt. 6: functions in part to be exercisable concurrently by the Secretary of State and the Scottish Ministers (6.2.2025) by [The Scotland Act 1998 \(Transfer of Functions to the Scottish Ministers etc.\) Order 2025 \(S.I. 2025/135\)](#), arts. 1(1), [3](#) (with art. 4)
- C5** Pt. 6: functions in part to be treated as being exercisable in or as regards Scotland (6.2.2025) by [The Scotland Act 1998 \(Transfer of Functions to the Scottish Ministers etc.\) Order 2025 \(S.I. 2025/135\)](#), arts. 1(1), [2](#) (with art. 4)

Setting environmental outcomes

152 Power to specify environmental outcomes

- (1) Regulations made by an appropriate authority under this Part (“EOR regulations”) may specify outcomes relating to environmental protection in the United Kingdom or [^{F95}elsewhere] that are to be “specified environmental outcomes” for the purposes of this Part.
- (2) “Environmental protection” means—
 - (a) protection of the natural environment, cultural heritage and the landscape from the effects of human activity (including, amongst other things, the protection of chalk streams from abstraction and pollution);
 - (b) protection of people from the effects of human activity on the natural environment, cultural heritage and the landscape;
 - (c) maintenance, restoration or enhancement of the natural environment, cultural heritage or the landscape;
 - (d) monitoring, assessing, considering, advising or reporting on anything in paragraphs (a) to (c).
- (3) The “natural environment” means—
 - (a) plants, wild animals and other living organisms,
 - (b) their habitats (including, amongst other things, chalk streams),
 - (c) land (except buildings or other structures), air and water,
 and the natural systems, cycles and processes through which they interact.
- (4) “Cultural heritage” means any building, structure, other feature of the natural or built environment or site, which is of historic, architectural, archaeological or artistic interest.
- (5) Before making any EOR regulations which contain provision about what the specified environmental outcomes are to be, an appropriate authority must have regard to—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) in the case of regulations made by the Secretary of State acting alone or jointly with a devolved authority, the current environmental improvement plan (within the meaning of Part 1 of the Environment Act 2021),
- (b) in the case of regulations made by the Scottish Ministers acting alone, the current environmental policy strategy (within the meaning of section 47 of the UK Withdrawal from the European Union (Continuity) (Scotland) Act 2021 (asp 4)),
- (c) in the case of regulations made by the Welsh Ministers acting alone, the current national natural resources policy (within the meaning of section 9 of the Environment (Wales) Act 2016), or
- (d) in the case of regulations made by a Northern Ireland department acting alone, the current environmental improvement plan (within the meaning of Schedule 2 to the Environment Act 2021).

Textual Amendments

F95 Words in s. 152(1) substituted (18.2.2026) by [Planning and Infrastructure Act 2025 \(c. 34\)](#), ss. 115, 118(6)(a) (with s. 116)

Commencement Information

I183 S. 152 in force at 26.12.2023, see s. 255(5)

Power to require environmental outcomes reports

153 Environmental outcomes reports for relevant consents and relevant plans

- (1) EOR regulations may make provision requiring an environmental outcomes report to be prepared in relation to a proposed relevant consent or a proposed relevant plan.
- (2) Where an environmental outcomes report is required to be prepared in relation to a proposed relevant consent—
 - (a) the proposed relevant consent may not be given, unless an environmental outcomes report has been prepared in relation to it, and
 - (b) that report must be taken into account or given effect, in accordance with EOR regulations, in determining whether and on what terms the proposed consent is to be given.
- (3) Where an environmental outcomes report is required to be prepared in relation to a proposed relevant plan—
 - (a) no step may be taken which would have the effect of bringing the proposed relevant plan into effect, unless an environmental outcomes report has been prepared in relation to it, and
 - (b) that report must be taken into account or given effect, in accordance with EOR regulations, in determining whether and on what terms the proposed relevant plan is to have effect.
- (4) An “environmental outcomes report”, in relation to a proposed relevant consent or proposed relevant plan, means a written report which assesses—
 - (a) the extent to which the proposed relevant consent or proposed relevant plan would, or is likely to, impact on the delivery of specified environmental outcomes,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) any proposals for increasing the extent to which a specified environmental outcome is delivered,
 - (c) any steps that may be proposed for the purposes of—
 - (i) avoiding the effects of a specified environmental outcome not being delivered to any extent;
 - (ii) so far as the effects of a specified environmental outcome not being delivered to any extent cannot be avoided, mitigating those effects;
 - (iii) so far as the effects of a specified environmental outcome not being delivered to any extent cannot be avoided or mitigated, compensating for the specified environmental outcome not being delivered, and
 - (d) any proposals about how—
 - (i) the impact of the proposed relevant consent or proposed relevant plan on the delivery of a specified environmental outcome, or
 - (ii) the taking of any proposed steps of the kind mentioned in [paragraph \(c\)](#),
 should be monitored or secured.
- (5) The reference in [subsection \(4\)\(c\)](#) to steps includes—
 - (a) reasonable alternatives to the relevant consent, to the project to which the relevant consent relates or to any element of either, or (as the case may be)
 - (b) reasonable alternatives to the relevant plan or any element of it.
- (6) Subsection [\(2\)](#) does not apply in relation to a relevant consent where—
 - (a) the requirement for the consent is imposed under [subsection \(4\)](#) of [section 154](#), and
 - (b) the consent is to be given or refused in an environmental outcomes report in accordance with provision under [subsection \(5\)](#) of that section.
- (7) EOR regulations may include provision about or in connection with—
 - (a) what is to be taken to constitute the giving of a relevant consent for the purposes of [subsection \(2\)](#);
 - (b) the proposed relevant consents and proposed relevant plans for which an environmental outcomes report is, or may be, required;
 - (c) in relation to proposed relevant consents and proposed relevant plans for which an environmental outcomes report may be required, the circumstances in which a report is required;
 - (d) an environmental outcomes report not needing to assess the extent to which a proposed relevant consent or proposed relevant plan would, or is likely to, impact on the delivery of a specified environmental outcome, where an adequate assessment of the impact on delivery of the outcome has in effect already been, or is to be, carried out in a different environmental outcomes report;
 - (e) what proposals an environmental outcomes report may or must deal with under [subsection \(4\)\(b\)](#), [\(c\)](#) and [\(d\)](#);
 - (f) how any of the assessments mentioned in [subsection \(4\)](#) are to be carried out;
 - (g) the information to be included in, and the content and form of, an environmental outcomes report, including provision requiring, or permitting a public authority to require, a report to deal with matters in addition to those provided for in [subsection \(4\)](#);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (h) how, and to what extent, environmental outcomes reports are to be taken into account or given effect by public authorities in considering, and making decisions in relation to, relevant consents or relevant plans;
- (i) the carrying out of any proposals assessed in an environmental outcomes report under [subsection \(4\)\(b\), \(c\) and \(d\)](#).

Commencement Information

I184 [S. 153](#) in force at 26.12.2023, see [s. 255\(5\)](#)

Defining the consents and plans to which this Part applies

154 Power to define “relevant consent” and “relevant plan” etc

- (1) EOR regulations may provide that a consent of a description specified in the regulations (a “category 1 consent”) is to be a “relevant consent” for the purposes of this Part in all cases.
- (2) EOR regulations may provide that a consent of a description specified in the regulations (a “category 2 consent”) is to be a “relevant consent” for the purposes of this Part only if certain criteria specified in EOR regulations are met.
- (3) EOR regulations may make provision about, or in connection with, how, when and by whom it is to be determined whether criteria are met, such that a category 2 consent is a relevant consent.
- (4) EOR regulations may impose a requirement for a consent in relation to a project, which is to be a category 1 consent or a category 2 consent.
- (5) EOR regulations may make provision about, or in connection with, how a consent which is required under subsection (4) is to be given, including provision for it to be given (or refused) by an environmental outcomes report.
- (6) “Relevant plan” means a plan or programme which—
 - (a) relates, or may relate, to a project or to environmental protection in the United Kingdom or a relevant offshore area, and
 - (b) is specified or described in EOR regulations for the purposes of this subsection.
- (7) References in this Part to a proposed relevant consent or proposed relevant plan include references to a proposed variation or modification of, or revision to, a relevant consent or relevant plan (however described).
- (8) “Consent” means any consent, approval, permission, authorisation, confirmation or decision (however described, given or made) that is required, or otherwise provided for, by or under any enactment in relation to a project.
- (9) “Project” means a project in the United Kingdom ^{F96}, a relevant offshore area or, where subsection (10) applies, an area beyond national jurisdiction] involving—
 - (a) construction, engineering, demolition, dismantling or decommissioning,
 - (b) the installation, depositing or removal of any thing,
 - (c) the exploitation of natural resources by any means,
 - (d) a change in the use of land, a building or other structure, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (e) any other activity capable of affecting the natural environment, cultural heritage or landscape.

[^{F97}(10) This subsection applies where the activity within any of paragraphs (a) to (e) of subsection (9) is or involves a licensable marine activity within the meaning of—

- (a) [section 66](#) of the [Marine and Coastal Access Act 2009](#), or
- (b) [section 21](#) of the [Marine \(Scotland\) Act 2010](#) (asp 5).

(11) In this section, “area beyond national jurisdiction” has the meaning given by Article 1(2) of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas Beyond National Jurisdiction, opened for signature at New York on 20 September 2023.]

Textual Amendments

F96 Words in s. 154(9) substituted (12.2.2026) by [Biodiversity Beyond National Jurisdiction Act 2026](#) (c. 6), [ss. 26\(a\), 32\(1\)](#) (with s. 30)

F97 S. 154(10)(11) inserted substituted (12.2.2026) by [Biodiversity Beyond National Jurisdiction Act 2026](#) (c. 6), [ss. 26\(b\), 32\(1\)](#) (with s. 30)

Commencement Information

I185 [S. 154](#) in force at 26.12.2023, see [s. 255\(5\)](#)

Assessment and monitoring

155 Assessing and monitoring impact on outcomes etc

- (1) EOR regulations may make provision about, or in connection with, how the extent to which a relevant consent or relevant plan actually affects the delivery of a specified environmental outcome is to be assessed or monitored.
- (2) EOR regulations may make provision about, or in connection with, how the carrying out of any proposals assessed in an environmental outcomes report under [section 153\(4\)\(b\), \(c\) or \(d\)](#), or requirements under [subsection \(3\)](#), is to be assessed or monitored.
- (3) EOR regulations may make provision requiring action to be taken, if an assessment or monitoring under [subsection \(1\) or \(2\)](#) determines that is appropriate for the purposes of—
 - (a) increasing the extent to which a specified environmental outcome is delivered,
 - (b) mitigating or remedying the effects of a specified environmental outcome not being delivered to any extent, or
 - (c) compensating for a specified environmental outcome not being delivered to any extent.

Commencement Information

I186 [S. 155](#) in force at 26.12.2023, see [s. 255\(5\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Safeguards, devolution and exemptions

156 Safeguards: non-regression, international obligations and public engagement

- (1) An appropriate authority may make EOR regulations only if satisfied that making the regulations will not result in environmental law providing an overall level of environmental protection that is less than that provided by environmental law at the time this Act is passed.
- (2) EOR regulations may not contain provision that is inconsistent with the implementation of the international obligations of the United Kingdom relating to the assessment of the environmental impact of relevant plans and relevant consents.
- (3) In exercising functions under this Part, an appropriate authority must seek to ensure that (so far as would not otherwise be the case) arrangements will exist under which the public will be informed of any proposed relevant consent or proposed relevant plan in sufficient detail, and at a sufficiently early stage, to enable adequate public engagement to take place.
- (4) In this section—
 - “adequate public engagement” means such engagement with the public, in relation to a proposed relevant consent or proposed relevant plan, as the appropriate authority considers appropriate;
 - “environmental law” means environmental law (within the meaning of Part 1 of the Environment Act 2021 but disregarding section 46(3) and (4) of that Act), whether or not the environmental law is in force.

Commencement Information

I187 [S. 156](#) in force at 26.12.2023, see [s. 255\(5\)](#)

157 Requirements to consult devolved administrations

- (1) The Secretary of State may only make EOR regulations which contain provision—
 - (a) within Scottish devolved legislative competence, or
 - (b) which could be made by the Scottish Ministers,with the consent of the Scottish Ministers, unless that provision is merely incidental to, or consequential on, provision that would be outside that devolved legislative competence.
- (2) The Secretary of State may only make EOR regulations which contain provision that confers a function on, or modifies or removes a function of, the Scottish Ministers after consulting the Scottish Ministers, unless—
 - (a) that provision is contained in regulations which require the consent of the Scottish Ministers by virtue of subsection (1), or
 - (b) that provision is merely incidental to, or consequential on, provision that would be outside Scottish devolved legislative competence.
- (3) Provision is “within Scottish devolved legislative competence” where, if the provision were included in an Act of the Scottish Parliament, it would be within the legislative competence of that Parliament.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) The Secretary of State may only make EOR regulations which contain provision within Welsh devolved legislative competence with the consent of the Welsh Ministers, unless that provision is merely incidental to, or consequential on, provision that would be outside that devolved legislative competence.
- (5) The Secretary of State may only make EOR regulations which contain provision that could be made by the Welsh Ministers or that confers a function on, or modifies or removes a function of, the Welsh Ministers or a devolved Welsh authority after consulting the Welsh Ministers, unless—
 - (a) that provision is contained in regulations which require the consent of the Welsh Ministers by virtue of subsection (4), or
 - (b) that provision is merely incidental to, or consequential on, provision that would be outside Welsh devolved legislative competence.
- (6) “Devolved Welsh authority” has the same meaning as in the Government of Wales Act 2006 (see section 157A of that Act).
- (7) Provision is “within Welsh devolved legislative competence” where, if the provision were included in an Act of Senedd Cymru, it would be within the legislative competence of the Senedd (including any provision that could be made only with the consent of a Minister of the Crown).
- (8) The Secretary of State may only make EOR regulations which contain provision within Northern Ireland devolved legislative competence with the consent of the relevant Northern Ireland department, unless that provision is merely incidental to, or consequential on, provision that would be outside that devolved legislative competence.
- (9) The Secretary of State may only make EOR regulations which contain provision that could be made by a Northern Ireland department or that confers a function on, or modifies or removes a function of, a Northern Ireland department after consulting the relevant Northern Ireland department, unless—
 - (a) that provision is contained in regulations which require the consent of the relevant Northern Ireland department by virtue of subsection (8), or
 - (b) that provision is merely incidental to, or consequential on, provision that would be outside Northern Ireland devolved legislative competence.
- (10) The “relevant Northern Ireland department” is such Northern Ireland department as the Secretary of State considers appropriate having regard to the provision which is to be contained in the regulations concerned.
- (11) Provision is within “Northern Ireland devolved legislative competence” where the provision—
 - (a) would be within the legislative competence of the Northern Ireland Assembly, if contained in an Act of that Assembly, and
 - (b) would not, if contained in a Bill for an Act of the Northern Ireland Assembly, result in the Bill requiring the consent of the Secretary of State.
- (12) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I188 [S. 157](#) in force at 26.12.2023, see [s. 255\(5\)](#)

158 EOR regulations: devolved authorities

[Schedule 13](#) contains restrictions on the exercise of the powers under this Part by devolved authorities.

Commencement Information

I189 [S. 158](#) in force at 26.12.2023, see [s. 255\(5\)](#)

159 Exemptions for national defence and civil emergency etc

- (1) The Secretary of State may direct that no environmental outcomes report is required to be prepared in relation to a proposed relevant consent which is solely for the purposes of national defence or preventing or responding to civil emergency.
- (2) EOR regulations may provide for further circumstances in which the Secretary of State is to be able to direct that no environmental outcomes report is required to be prepared.
- (3) A direction under this section may provide that provision in EOR regulations specified in the direction applies (subject to any modifications specified in the direction), despite the fact that no environmental outcomes report is required to be prepared.
- (4) The Secretary of State may modify or revoke a direction under this section.

Commencement Information

I190 [S. 159](#) in force at 26.12.2023, see [s. 255\(5\)](#)

Enforcement

160 Enforcement

- (1) EOR regulations may make provision about, or in connection with, the enforcement of requirements imposed by or under this Part.
- (2) EOR regulations under this section may, in particular, include provision—
 - (a) creating a criminal offence (but may not create a criminal offence punishable with imprisonment);
 - (b) conferring a power on any court or tribunal;
 - (c) for the imposition of civil sanctions and appeals against such sanctions;
 - (d) conferring a power of entry (whether or not on the authority of a warrant);
 - (e) conferring a power of inspection, search, seizure or detention (whether or not on the authority of a warrant);
 - (f) authorising, or making provision for the authorisation of, the use of reasonable force in connection with a power mentioned in paragraph (d) or (e);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (g) applying, or corresponding to, any provision, made by or under any enactment, relating to enforcement in connection with a category 1 consent or a category 2 consent (with or without modifications).
- (3) EOR regulations under [subsection \(2\)\(c\)](#) may make provision for the imposition of civil sanctions whether or not the conduct in respect of which the sanction is imposed constitutes an offence.
- (4) In this section “civil sanction” means a sanction of a kind for which provision may be made under Part 3 of the Regulatory Enforcement and Sanctions Act 2008 (fixed monetary penalties, discretionary requirements, stop notices, enforcement undertakings).

Commencement Information

I191 [S. 160](#) in force at 26.12.2023, see [s. 255\(5\)](#)

Reporting

161 Reporting

- (1) EOR regulations may make provision requiring a public authority to report on, or provide information in relation to, the delivery of specified environmental outcomes.
- (2) EOR regulations may, in particular, include provision about or in connection with—
 - (a) the information to be included in, and the content and form of, a report required under [subsection \(1\)](#);
 - (b) the content and form of information required to be provided under [subsection \(1\)](#);
 - (c) when, or the circumstances in which, the information or report must be provided;
 - (d) the publication of the information or report;
 - (e) who the information or report is to be provided to;
 - (f) a report being combined with another document which is to be prepared under any enactment.

Commencement Information

I192 [S. 161](#) in force at 26.12.2023, see [s. 255\(5\)](#)

General

162 Public consultation etc

- (1) An appropriate authority must consult the public before making EOR regulations which contain provision—
 - (a) under [section 152\(1\)](#) (specified environmental outcomes);
 - (b) amending, repealing or revoking relevant existing environmental assessment legislation.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) An appropriate authority must consult such persons as the appropriate authority considers appropriate—
 - (a) before making EOR regulations which contain provision under—
 - (i) [section 154\(1\) to \(6\)](#) (consents and plans subject to this Part);
 - (ii) [section 159\(2\)](#) (power to provide for further exemptions by Secretary of State direction);
 - (iii) [section 160](#) (enforcement);
 - (iv) [section 164](#) (interaction with existing environmental assessment legislation and the Habitats Regulations);
 - (b) before issuing, modifying or withdrawing any guidance under [section 163](#), which relates to—
 - (i) how the likely impact of a proposed relevant consent or proposed relevant plan on the delivery of a specified environmental outcome should be assessed, or
 - (ii) how the extent to which a relevant consent or relevant plan actually affects the delivery of a specified environmental outcome should be assessed or monitored.
- (3) EOR regulations may require a public authority to respond, or to respond in a particular way or by a particular time, to a consultation under [subsection \(1\)](#) or [\(2\)](#).
- (4) The requirements to consult in subsections [\(1\)](#) and [\(2\)](#) may be met by consultation carried out before the subsection concerned comes into force.

Commencement Information

I193 [S. 162](#) in force at 26.12.2023, see [s. 255\(5\)](#)

163 Guidance

- (1) A public authority carrying out a function under this Part, other than under regulations made by a devolved authority acting alone, must have regard to any guidance issued by the Secretary of State in relation to the function.
- (2) A public authority carrying out a function under regulations made under this Part by the Secretary of State acting jointly with one or more devolved authorities must have regard to any guidance issued by the Secretary of State or any of those devolved authorities in relation to the function.
- (3) Before issuing guidance under subsection [\(2\)](#)—
 - (a) the Secretary of State must—
 - (i) obtain the consent of the Scottish Ministers so far as the guidance relates to a matter provision about which would be within Scottish devolved legislative competence by virtue of [section 157\(3\)](#) or which could be made by the Scottish Ministers;
 - (ii) obtain the consent of the Welsh Ministers so far as the guidance relates to a matter provision about which would be within Welsh devolved legislative competence (see [section 157\(7\)](#));
 - (iii) obtain the consent of the relevant Northern Ireland department so far as the guidance relates to a matter provision about which would

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- be within Northern Ireland devolved legislative competence (see section 157(11));
- (b) the Scottish Ministers must obtain the consent of the Secretary of State so far as the guidance relates to a matter provision about which would not be within Scottish devolved legislative competence by virtue of section 157(3) or which could not be made by the Scottish Ministers;
 - (c) the Welsh Ministers must obtain the consent of the Secretary of State so far as the guidance relates to a matter provision about which would be outside Welsh devolved legislative competence (see section 157(7));
 - (d) a Northern Ireland department must obtain the consent of the Secretary of State so far as the guidance relates to a matter provision about which would be outside Northern Ireland devolved legislative competence (see section 157(11)).
- (4) The “relevant Northern Ireland department” is such Northern Ireland department as the Secretary of State considers appropriate having regard to the material which is to be contained in the guidance concerned.
 - (5) A public authority carrying out a function under regulations made under this Part by a devolved authority acting alone must have regard to any guidance issued by the devolved authority in relation to the function.
 - (6) A public authority carrying out a function under existing environmental assessment legislation listed in Part 1 of Schedule 14 (other than a function under Schedule 3 to the Harbours Act 1964 so far as relating to environmental impact assessments in Scotland) must have regard to any guidance issued by the Secretary of State in relation to the function.
 - (7) A public authority carrying out a function under existing environmental assessment legislation listed in Part 2 of Schedule 14 must have regard to any guidance issued by the Scottish Ministers in relation to the function.
 - (8) A public authority carrying out a function under existing environmental assessment legislation listed in Part 3 of Schedule 14 must have regard to any guidance issued by the Welsh Ministers in relation to the function.
 - (9) A public authority carrying out a function under existing environmental assessment legislation listed in Part 4 of Schedule 14 must have regard to any guidance issued by a Northern Ireland department in relation to the function.
 - (10) EOR regulations may require any person carrying out a function under EOR regulations to have regard to guidance issued by an appropriate authority in relation to the function, failing which the function is not to be regarded as having been validly carried out.

Commencement Information

I194 S. 163 in force at 26.12.2023, see s. 255(5)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

164 Interaction with existing environmental assessment legislation and the Habitats Regulations

- (1) EOR regulations may make provision about, or in connection with, the interaction of this Part with existing environmental assessment legislation or the Habitats Regulations.
- (2) EOR regulations under this section may, in particular, include provision—
 - (a) treating anything done, or omitted to be done, in relation to an environmental outcomes report as satisfying or failing to satisfy a requirement under relevant existing environmental assessment legislation or the relevant Habitats Regulations;
 - (b) treating anything done, or omitted to be done, under existing environmental assessment legislation or the Habitats Regulations as satisfying or failing to satisfy a requirement imposed by or under this Part;
 - (c) about the co-ordination of things done under this Part and things done under existing environmental assessment legislation or the Habitats Regulations;
 - (d) disapplying or otherwise modifying any provision of relevant existing environmental assessment legislation or the relevant Habitats Regulations where preparation of an environmental outcomes report is required under this Part;
 - (e) disapplying or otherwise modifying any provision of this Part or EOR regulations where something is done, or required to be done, under existing environmental assessment legislation or the Habitats Regulations.
- (3) EOR regulations under this section may amend, repeal or revoke relevant existing environmental assessment legislation.
- (4) In this section—
 - “the Habitats Regulations” means—
 - (a) regulation 5 of the Offshore Petroleum Activities (Conservation of Habitats) Regulations 2001 ([S.I. 2001/1754](#));
 - (b) regulation 24 and Part 6 of the Conservation of Habitats and Species Regulations 2017 ([S.I. 2017/1012](#));
 - (c) regulations 27 to 37 of the Conservation of Offshore Marine Habitats and Species Regulations 2017 ([S.I. 2017/1013](#));
 - (d) the Conservation (Natural Habitats, &c.) Regulations 1994 ([S.I. 1994/2716](#));
 - (e) the Conservation (Natural Habitats, etc.) Regulations (Northern Ireland) 1995 ([S.R. \(N.I.\) 1995/380](#));
 - “the relevant Habitats Regulations” means—
 - (a) in relation to EOR regulations made by the Secretary of State acting alone or jointly with one or more devolved authorities, the legislation listed in the definition of “the Habitats Regulations”;
 - (b) in relation to EOR regulations made by the Scottish Ministers acting alone, the legislation listed in paragraph (d) of that definition;
 - (c) in relation to EOR regulations made by the Welsh Ministers acting alone, the legislation listed in the definition of “the Habitats Regulations” so far as it applies in relation to Wales;
 - (d) in relation to EOR regulations made by a Northern Ireland department acting alone, the legislation listed in paragraph (e) of that definition.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I195 [S. 164](#) in force at 26.12.2023, see [s. 255\(5\)](#)

165 Consequential repeal of power to make provision for environmental assessment

- (1) TCPA 1990 is amended as follows.
- (2) Omit section 71A (assessment of environmental effects).
- (3) In section 293A (urgent Crown development: application), in subsection (4), omit paragraph (a).

Commencement Information

I196 [S. 165](#) in force at 26.12.2023, see [s. 255\(5\)](#)

166 EOR regulations: further provision

- (1) EOR regulations may make provision about or in connection with—
 - (a) the procedure to be followed in relation to anything done under this Part, including the time by which anything must be done;
 - (b) who is to prepare an environmental outcomes report, including provision permitting a public authority to determine who is to do so or the qualifications or experience a person must have to do so;
 - (c) requiring a public authority to assist with any assessment or monitoring under this Part;
 - (d) the publication of, and consultation and public engagement in connection with, environmental outcomes reports and other relevant documents;
 - (e) the information to be included in, and the content and form of, any relevant document;
 - (f) the persons to whom an environmental outcomes report or other relevant document is to be given, and how it is to be given;
 - (g) the collection or provision of information in connection with this Part;
 - (h) the rejection of a relevant document, or information provided in connection with this Part, if it is not provided in accordance with [Chapter 1](#) of [Part 3](#) (planning data), including provision requiring a document or information to be rejected;
 - (i) how, and to what extent, any failure to comply with a requirement imposed by or under this Part is to be taken into account by public authorities in considering, and making decisions in relation to, relevant consents or relevant plans;
 - (j) appeals against, or reviews of, decisions of a public authority about matters for, or in respect of, which provision is made by EOR regulations or existing environmental assessment legislation.
- (2) EOR regulations may—
 - (a) provide for the charging of fees or other charges;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) confer a function, including a function involving the exercise of a discretion, on any person;
 - (c) make consequential, supplementary or incidental provision under [section 252\(1\)\(c\)](#) which amends, repeals or revokes any legislation (whenever passed or made).
- (3) In [subsection \(2\)\(c\)](#) “legislation” means any provision made by or under—
- (a) an Act,
 - (b) an Act or Measure of Senedd Cymru,
 - (c) an Act of the Scottish Parliament,
 - (d) Northern Ireland legislation, or
 - (e) [^{F98}assimilated direct legislation].

Textual Amendments

F98 Words in [s. 166\(3\)\(e\)](#) substituted (comes into force at the end of 2023) by [Levelling Up and Regeneration Act 2023 \(c. 55\)](#), [ss. 248, 255\(10\)\(b\)](#) (with [s. 247](#))

Commencement Information

I197 S. 166 in force at 26.12.2023, see [s. 255\(5\)](#)

167 Interpretation of [Part 6](#)

- (1) “Existing environmental assessment legislation” means the legislation listed in [Schedule 14](#).
- (2) “Relevant existing environmental assessment legislation” means—
 - (a) in relation to EOR regulations made by the Secretary of State acting alone or jointly with one or more devolved authorities, the legislation listed in [Schedule 14](#);
 - (b) in relation to EOR regulations made by the Scottish Ministers acting alone, the legislation listed in [Part 2](#) of that Schedule;
 - (c) in relation to EOR regulations made by the Welsh Ministers acting alone, the legislation listed in [Part 3](#) of that Schedule;
 - (d) in relation to EOR regulations made by a Northern Ireland department acting alone, the legislation listed in [Part 4](#) of that Schedule.
- (3) In this Part—
 - “appropriate authority” means—
 - (a) the Secretary of State,
 - (b) a devolved authority, or
 - (c) the Secretary of State acting jointly with one or more devolved authorities;
 - “category 1 consent” and “category 2 consent” have the meaning given by [section 154\(1\)](#) and [\(2\)](#);
 - “cultural heritage” has the meaning given by [section 152\(4\)](#);
 - “devolved authority” means—
 - (a) the Scottish Ministers,
 - (b) the Welsh Ministers, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) a Northern Ireland department;
- “environmental outcomes report” has the meaning given by [section 153\(4\)](#);
- “environmental protection” has the meaning given by [section 152\(2\)](#);
- “EOR regulations” has the meaning given by [section 152\(1\)](#);
- “existing environmental assessment legislation” has the meaning given by [subsection \(1\)](#);
- “natural environment” has the meaning given by [section 152\(3\)](#);
- “project” has the meaning given by [section 154\(9\)](#);
- “proposed”, in relation to a relevant consent or relevant plan, is to be construed in accordance with [section 154\(7\)](#);
- “public authority” means—
 - (a) any person with functions under, or functions in respect of which provision is made by, existing environmental assessment legislation when this Act is passed;
 - (b) any public authority within the meaning of section 6 of the Human Rights Act 1998, other than a court or tribunal;
- “relevant consent” has the meaning given by [section 154](#);
- “relevant document” means a document or information for, or in respect of, which provision is made by EOR regulations or existing environmental assessment legislation;
- “relevant existing environmental assessment legislation” has the meaning given by [subsection \(2\)](#);
- “relevant offshore area” means any area in—
 - (a) the territorial sea adjacent to the United Kingdom,
 - (b) any area designated by Order in Council under section 1(7) of the Continental Shelf Act 1964, or
 - (c) any area designated by Order in Council under section 41(3) of the Marine and Coastal Access Act 2009;
- “relevant plan” has the meaning given by [section 154\(6\)](#);
- “specified environmental outcome” has the meaning given by [section 152\(1\)](#).

Commencement Information

I198 [S. 167](#) in force at 26.12.2023, see [s. 255\(5\)](#)

PART 7

NUTRIENT POLLUTION STANDARDS

168 Nutrient pollution standards to apply to certain sewage disposal works

- (1) After section 96A of the Water Industry Act 1991 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“96B Nutrient pollution standards to apply to certain sewage disposal works

- (1) A sewerage undertaker whose area is wholly or mainly in England must—
 - (a) in the case of each nitrogen significant plant comprised in its sewerage system—
 - (i) secure that, by the upgrade date, the plant will be able to meet the nitrogen nutrient pollution standard, and
 - (ii) on and after the upgrade date, secure that the plant meets that standard;
 - (b) in the case of each phosphorus significant plant comprised in its sewerage system—
 - (i) secure that, by the upgrade date, the plant will be able to meet the phosphorus nutrient pollution standard, and
 - (ii) on and after the upgrade date, secure that the plant meets that standard.
- (2) In carrying out the duty under subsection (1), a sewerage undertaker must consider whether nature-based solutions, technologies and facilities relating to sewerage and water could be used to meet the standard.
- (3) “Nitrogen significant plant” means a plant in England that—
 - (a) discharges treated effluent into a nitrogen sensitive catchment area, and
 - (b) is not an exempt plant in relation to the nitrogen nutrient pollution standard.
- (4) “Phosphorus significant plant” means a plant in England that—
 - (a) discharges treated effluent into a phosphorus sensitive catchment area, and
 - (b) is not an exempt plant in relation to the phosphorus nutrient pollution standard.

96C Sensitive catchment areas

- (1) Where the Secretary of State considers that a habitats site that is wholly or partly in England is in an unfavourable condition by virtue of pollution from nutrients in water comprising nitrogen or compounds of nitrogen, the Secretary of State may designate the catchment area for the habitats site as a nitrogen sensitive catchment area.
- (2) Where the Secretary of State considers that a habitats site that is wholly or partly in England is in an unfavourable condition by virtue of pollution from nutrients in water comprising phosphorus or compounds of phosphorus, the Secretary of State may designate the catchment area for the habitats site as a phosphorus sensitive catchment area.
- (3) In determining—
 - (a) whether a habitats site is in an unfavourable condition by virtue of pollution from nutrients comprising nitrogen, phosphorus or compounds of nitrogen or phosphorus,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) the catchment area for a habitats site, or
 - (c) whether to exercise the power in subsection (4)(e),

the Secretary of State may take into account, in particular, advice from, or guidance published by, Natural England, the Environment Agency or the Joint Nature Conservation Committee.
- (4) A designation under subsection (1) or (2)—
 - (a) must be in writing,
 - (b) must be published as soon as practicable after being made,
 - (c) takes effect—
 - (i) on the day specified in the designation, or
 - (ii) if none is specified, on the day on which it is made, (the “designation date”),
 - (d) if it takes effect after the end of the initial period, must specify the upgrade date (see section 96E(1)(b)), and
 - (e) may specify the concentration that applies to a plant (which discharges into the catchment area) in relation to a nutrient pollution standard instead of the standard concentration.
- (5) A date specified under subsection (4)(d) as the upgrade date must be at least 7 years after the designation date.
- (6) Before specifying a concentration under subsection (4)(e), the Secretary of State must consult the Environment Agency.
- (7) A concentration specified under subsection (4)(e) ceases to have effect if, after the day on which the designation is made, the plant becomes an exempt plant.
- (8) A designation under this section may not be revoked; and it is immaterial for the purposes of the continued designation of an area whether subsection (1) or (2) continues to be satisfied in relation to it.
- (9) In this section “catchment area”, in relation to a habitats site, means the area where water, if released, would drain into the site.

96D Exempt sewage disposal works

- (1) A plant is exempt in relation to a nutrient pollution standard if—
 - (a) it has a capacity of less than a population equivalent of 2000 when the designation of the associated catchment area takes effect,
 - (b) it has been designated by the Secretary of State as exempt in relation to the standard, or
 - (c) it is exempt in relation to the standard under regulations under subsection (8).

This is subject to subsection (2).

- (2) The Secretary of State may designate a plant as not being exempt in relation to a nutrient pollution standard, unless—
 - (a) the plant has a capacity of less than a population equivalent of 250, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) the designation takes effect after the designation of the associated catchment area takes effect.
- (3) A designation under subsection (1)(b) or (2)—
 - (a) must be in writing,
 - (b) must be published as soon as practicable after being made, and
 - (c) takes effect—
 - (i) on the day specified in the designation, or
 - (ii) if none is specified, on the day on which it is made.
- (4) A designation under subsection (2) that takes effect after the designation of the associated catchment area takes effect must specify the upgrade date (see section 96E(2)(a)).
 The upgrade date must be at least 7 years after the designation under subsection (2) takes effect.
- (5) A designation under subsection (2) may specify the concentration that applies to a plant in relation to a nutrient pollution standard instead of the standard concentration.
- (6) Before specifying a concentration under subsection (5), the Secretary of State must consult the Environment Agency.
- (7) A concentration specified under subsection (5) ceases to have effect if, after the day on which the designation is made, the plant again becomes an exempt plant.
- (8) The Secretary of State may by regulations specify plants or descriptions of plant that are to be exempt in relation to a nutrient pollution standard.
- (9) Subsections (10) and (11) apply where a plant that is exempt under regulations under subsection (8) can, by virtue of the regulations, cease to be exempt.
- (10) The regulations must specify or provide for determining the upgrade date (see section 96E(2)(b)) in relation to any plant that ceases, by virtue of the regulations, to be an exempt plant in relation to a standard after the designation of the associated catchment area takes effect.
 The upgrade date must be at least 7 years after the plant ceases to be exempt in relation to the standard.
- (11) The regulations may provide for the Secretary of State to specify the concentration that applies to a plant that ceases, by virtue of the regulations, to be an exempt plant in relation to a nutrient pollution standard instead of the standard concentration; and, if such provision is made, the regulations must—
 - (a) require that the Secretary of State consult the Environment Agency before specifying a concentration;
 - (b) provide for any specified concentration to cease to have effect if, after the day on which the plant ceases to be an exempt plant, the plant again becomes an exempt plant.
- (12) A designation under subsection (2) in relation to a plant and a nutrient pollution standard is of no effect if the plant ceases, by virtue of regulations under subsection (8), to be exempt in relation to the standard before, or at the same time as, the designation would otherwise take effect.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (13) In this section “population equivalent” has the meaning given by regulation 2(1) of the Urban Waste Water Treatment (England and Wales) Regulations 1994 ([S.I. 1994/2841](#)).
- (14) References in this section to the designation of an associated catchment area are to its designation as a sensitive catchment area.

96E Upgrade date

- (1) The upgrade date, in relation to a nutrient significant plant, is, unless subsection (2) or (3) applies—
 - (a) 1 April 2030, if the designation of the associated catchment area takes effect during the initial period;
 - (b) the date specified under section [96C\(4\)\(d\)](#), if the designation of the associated catchment area takes effect after the end of the initial period.
- (2) But, if the plant becomes a nutrient significant plant after the designation of the associated catchment area takes effect, the upgrade date is—
 - (a) the date specified under section [96D\(4\)](#), where it becomes a nutrient significant plant by virtue of a designation under section [96D\(2\)](#);
 - (b) the date specified by or determined under provision made by virtue of section [96D\(10\)](#), where it becomes a nutrient significant plant on ceasing, by virtue of regulations under section [96D\(8\)](#), to be exempt.
- (3) Where the associated catchment area has ceased to be a catchment permitting area and a date has been specified under section [96H\(4\)\(c\)](#), that date is the upgrade date.
- (4) “The initial period” means the period of 3 months beginning with the date on which the Levelling-up and Regeneration Act 2023 is passed.
- (5) References in this section to the designation of an associated catchment area are to its designation as a sensitive catchment area.

96F Nutrient pollution standards

- (1) A nitrogen significant plant meets the nitrogen nutrient pollution standard if—
 - (a) where the associated catchment area is not a catchment permitting area (see section [96G](#)), the concentration of total nitrogen in treated effluent that the plant discharges is not more than—
 - (i) 10 mg/l, or
 - (ii) where a different concentration applies to the plant under section [96C\(4\)\(e\)](#) or [96D\(5\)](#) or by virtue of regulations made under section [96D\(11\)](#), that concentration;
 - (b) where the associated catchment area is a catchment permitting area, the sewerage undertaker is complying with any condition in the environmental permit for the plant imposed in pursuance of section [96G\(3\)\(b\)](#).
- (2) A phosphorus significant plant meets the phosphorus nutrient pollution standard if—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) where the associated catchment area is not a catchment permitting area, the concentration of total phosphorus in treated effluent that the plant discharges is not more than—
 - (i) 0.25 mg/l, or
 - (ii) where a different concentration applies to the plant under section 96C(4)(e) or 96D(5) or by virtue of regulations made under section 96D(11), that concentration;
 - (b) where the associated catchment area is a catchment permitting area, the sewerage undertaker is complying with any condition in the environmental permit for the plant imposed in pursuance of section 96G(3)(b).
- (3) “Treated effluent”, in relation to a plant, means any effluent discharged by the plant, other than anything discharged—
 - (a) from a storm overflow, or
 - (b) by an emergency discharge.
- (4) For the purposes of subsection (3), in relation to a plant—
 - (a) “storm overflow” means any structure or apparatus comprised in the plant which, when the capacity of relevant parts of the sewerage system is exceeded, relieves them by discharging the excess contents into inland waters, underground strata or the sea, where—
 - “relevant parts of the sewerage system” means—
 - (a) storage tanks at the plant, and
 - (b) other parts of the sewerage system downstream of the plant;
 - “the sewerage system” means the undertaker’s sewerage system of which the plant forms part;
 - (b) “emergency discharge” means a discharge in circumstances where the plant’s normal treatment process has failed because of—
 - (i) electrical power failure, or
 - (ii) mechanical breakdown of duty and standby pumps.
- (5) Regulations made by the Secretary of State may specify how the concentration of total nitrogen or concentration of total phosphorus in treated effluent is to be determined.
- (6) Regulations under subsection (5) may, in particular—
 - (a) make provision for requiring regular sampling of the treated effluent that a plant discharges to ascertain the concentration of total nitrogen or concentration of total phosphorus;
 - (b) make provision for regarding a nutrient pollution standard as being met by a plant if, for example—
 - (i) it is met, with at least the frequency specified in the regulations, in samples taken in accordance with the regulations, or
 - (ii) the average concentration, calculated in accordance with the regulations, of total nitrogen or of total phosphorus in samples taken in accordance with the regulations would meet the standard;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) make provision for determining generally, or in a particular case, whether anything is, or is not, to be regarded as treated effluent discharged by a plant;
- (d) make provision in relation to section 96G, including—
 - (i) the determination of compliance with conditions in environmental permits imposed in pursuance of section 96G(3)(b);
 - (ii) in connection with any kind of plant;
- (e) confer any function on the Secretary of State, the Authority, the Environment Agency, statutory undertakers or any other person;
- (f) make different provision for different purposes or different areas (including different plants within an area).

96G Nutrient pollution standards determined through environmental permitting

- (1) The Secretary of State may designate a sensitive catchment area as a catchment permitting area.
- (2) In determining whether to make a designation under subsection (1) or to revoke such a designation under section 96H(3)(c), the Secretary of State may take into account, in particular, advice from, or guidance published by, the Environment Agency or Natural England.
- (3) Where the Secretary of State makes a designation under subsection (1), the Environment Agency must—
 - (a) review the environmental permits for the plants that discharge treated effluent into the catchment permitting area that are—
 - (i) nutrient significant plants, and
 - (ii) such other plants that the Environment Agency considers appropriate (including such plants within an area that may be determined by the Environment Agency), and
 - (b) impose conditions on those permits relating to nutrients in treated effluent discharged by those plants—
 - (i) under Chapter 3 of Part 2 of the Environmental Permitting (England and Wales) Regulations 2016, and
 - (ii) for the relevant purpose.
- (4) The “relevant purpose” is ensuring that, on and after the applicable date, the overall effect on the habitats site associated with the catchment permitting area of nutrients in treated effluent discharged by all the plants that discharge treated effluent into the catchment permitting area is less significant or the same as the overall effect on the site of nutrients in treated effluent that would be discharged by those plants if—
 - (a) the standard concentration applied to nutrient significant plants, and
 - (b) the nutrient significant plants were (on that basis) meeting the nutrient pollution standard on and after the applicable date.
- (5) For that purpose, a condition imposed on an environmental permit in pursuance of subsection (3)(b) may, in particular—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) require, or have the effect of requiring, that the concentration of nutrients in treated effluent discharged by a plant is higher or lower than, or equal to, the standard concentration;
 - (b) relate to any or all of the plants mentioned in subsection (3)(a), including the concentration of nutrients in treated effluent discharged by those plants.
- (6) In subsection (4)—
 - (a) the “applicable date” means—
 - (i) where the designation under section 96C(1) or (2) of the area that is the catchment permitting area takes effect during the initial period, 1 April 2030, or
 - (ii) where that designation takes effect after the initial period, the date specified under section 96C(4)(d) in that designation;
 - (b) a habitats site is “associated” with a catchment permitting area if water released into the area would drain into the site.
- (7) The duty in subsection (3) applies in relation to the grant of an environmental permit for a plant that discharges (or will discharge) treated effluent into the catchment permitting area as if—
 - (a) paragraph (a) were omitted, and
 - (b) in paragraph (b)—
 - (i) for “those permits” there were substituted “the permit”;
 - (ii) for “those plants” there were substituted “the plant”;
 - (iii) for “Chapter 3” there were substituted “Chapter 2”.
- (8) It is for the Environment Agency to determine the overall effect on a habitats site of nutrients in treated effluent.
- (9) Regulations made by the Secretary of State may specify how such determinations are to be made.
- (10) In this section “nutrients”, in relation to an area designated under—
 - (a) section 96C(1), means nutrients in water comprising nitrogen or compounds of nitrogen;
 - (b) section 96C(2), means nutrients in water comprising phosphorus or compounds of phosphorus.

96H Section 96H 96G: procedure and revocations

- (1) A designation under section 96G(1) or revocation of such a designation under subsection (3)(c)—
 - (a) must be in writing,
 - (b) must be published as soon as practicable after being made, and
 - (c) takes effect in accordance with subsection (3) or (4) (as appropriate).
- (2) A designation under section 96G(1) may be made at the same time, or at any time after the time, that the designation under section 96C(1) or (2) of the area as a sensitive catchment area is made.
- (3) A designation under section 96G(1)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) if made before the time that the designation under section 96C(1) or (2) takes effect, takes effect at the same time as that designation;
 - (b) if made after the time that the designation under section 96C(1) or (2) takes effect, takes effect on the day specified in it;
 - (c) may be revoked.
- (4) A revocation under subsection (3)(c)—
 - (a) takes effect—
 - (i) on the day specified in the revocation, or
 - (ii) if none is specified, on the day on which it is made;
 - (b) has no effect in relation to the designation of the area under section 96C(1) or (2);
 - (c) may specify the upgrade date that is to apply in relation to nutrient significant plants (see section 96E(3)).
- (5) In determining whether an upgrade date should be specified under subsection (4)(c), the Secretary of State may take into account, in particular, advice from, or guidance published by, Natural England or the Environment Agency.

96I Information about catchment areas and nutrient significant plants

- (1) The Secretary of State must maintain and publish online a map showing—
 - (a) all the nitrogen sensitive catchment areas, and
 - (b) all the phosphorus sensitive catchment areas.
- (2) As soon as practicable after making a designation under section 96C (sensitive catchment areas), the Secretary of State must publish the revised map online.
- (3) The Secretary of State must maintain and publish online a document listing—
 - (a) all plants that are or have been—
 - (i) nitrogen significant plants, or
 - (ii) phosphorus significant plants;
 - (b) in relation to each plant listed under paragraph (a)—
 - (i) the upgrade date that applies for the time being;
 - (ii) if the plant becomes, or ceases to be, an exempt plant in relation to the related nutrient pollution standard, that fact and the date on which it occurred;
 - (iii) where the associated catchment area for a plant is not a catchment permitting area, the figure specified in section 96F(1)(a)(i) or (2)(a)(i), under section 96C(4)(e) or 96D(5) or by virtue of regulations made under section 96D(11) (total nitrogen concentration or total phosphorus concentration) that applies to the plant;
 - (iv) where a direction relating to the plant and the related nutrient pollution standard is made or revoked under regulation 85C or 110B of the Conservation of Habitats and Species Regulations 2017 (S.I. 2017/1012) (disapplication of assumption that the plant will meet the standard on and after the upgrade date or applicable date), that fact and the date on which the direction or revocation takes effect;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(c) all catchment permitting areas.

(4) Where any change occurs in the information required to be listed, the Secretary of State must, as soon as practicable, publish a revised document online.

96J Section 96J 96B: enforcement and interaction with other provisions

(1) The duty of a sewerage undertaker under section 96B is enforceable under section 18—

- (a) by the Secretary of State, or
- (b) with the consent of, or in accordance with a general authorisation given by, the Secretary of State, by the Authority.

(2) The Environment Agency must exercise its functions (whether under environmental permitting regulations or otherwise) so as to secure compliance by sewerage undertakers with the duty imposed by section 96B; those functions include, in particular, functions of determining—

- (a) whether to grant or vary any permit under environmental permitting regulations, or
- (b) any conditions to be included in any such permit.

(3) The Environment Agency must exercise its functions under the Environmental Damage (Prevention and Remediation) (England) Regulations 2015 (S.I. 2015/810) so as to secure compliance by sewerage undertakers with the duties imposed by those regulations to prevent and remediate environmental damage (within the meaning of those regulations) that is treated as occurring by regulation 9A of those regulations (nutrient significant sewage disposal works: environmental damage).

(4) Nothing in section 96B or 96G or this section affects—

- (a) any other obligation of a sewerage undertaker relating to nutrient levels in treated effluent of a plant, or any remedy available in respect of contravention of any such obligation;
- (b) any power to impose an obligation relating to nutrient levels in treated effluent of a plant (including by means of a condition included in a permit under environmental permitting regulations); and, in particular, nothing in those sections or this section is to be taken to preclude any such power being exercised so as to require a lower concentration of total nitrogen or lower concentration of total phosphorus in treated effluent of a plant than section 96B requires.

96K Powers to amend sections 96K 96D and 96K 96F

(1) The Secretary of State may by regulations amend any plant capacity for the time being specified in section 96D(1)(a) or (2)(a).

(2) Regulations under subsection (1) may not have effect in relation to an area that is a sensitive catchment area when the regulations are made.

(3) Subject to that, regulations under subsection (1)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) may, in particular, amend section 96D so that different plant capacities are specified in relation to the nitrogen nutrient pollution standard and the phosphorus nutrient pollution standard;
 - (b) may, where different plant capacities will apply for different purposes or different areas as a result of regulations under subsection (1), amend section 96D so as to specify those capacities and the purposes or areas for which they apply.
- (4) The Secretary of State may by regulations—
 - (a) amend section 96F(1)(a)(i) so as to substitute a different concentration of total nitrogen;
 - (b) amend section 96F(2)(a)(i) so as to substitute a different concentration of total phosphorus.
- (5) Regulations under subsection (4) may not have effect in relation to an area that is a sensitive catchment area when the regulations are made.
- (6) Where, as a result of the regulations, different concentrations will apply for different purposes or different areas (including different plants within an area), the regulations may amend section 96F(1)(a)(i) or (2)(a)(i) to specify those concentrations and the purposes or areas for (or plants within an area to) which they apply.
- (7) A statutory instrument containing regulations under subsection (1) or (4) may not be made unless a draft of the instrument has been laid before and approved by a resolution of each House of Parliament.
- (8) If a draft of a statutory instrument containing regulations under subsection (1) or (4) would, apart from this subsection, be treated for the purposes of the standing orders of either House of Parliament as a hybrid instrument, it is to proceed in that House as if it were not a hybrid instrument.

96L Sections 96L 96B to 96L 96K, 96L 96M and 96L 96N: interpretation

- (1) This section applies for the purposes of sections 96B to 96K, 96M and 96N.
- (2) In those sections (and this section)—
 - “associated catchment area”—
 - (a) in relation to a plant that is a nitrogen significant plant or is exempt in relation to the nitrogen nutrient pollution standard, means the nitrogen sensitive catchment area into which it discharges;
 - (b) in relation to a plant that is a phosphorus significant plant or is exempt in relation to the phosphorus nutrient pollution standard, means the phosphorus sensitive catchment area into which it discharges;
 - “catchment permitting area” means a sensitive catchment area designated under section 96G(1) for the time being;
 - “environmental permit” means a permit granted under Chapter 2 of Part 2 of the Environmental Permitting (England and Wales) Regulations 2016; and a reference to a condition imposed on such a permit is to be construed in accordance with those regulations;
 - “environmental permitting regulations” means—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the Environmental Permitting (England and Wales) Regulations 2016 ([S.I. 2016/1154](#)) (as they have effect from time to time), or
- (b) any other provision made after the Levelling-up and Regeneration Act 2023 is passed that is, or could have been, made under section 2 of the Pollution Prevention and Control Act 1999;

“exempt plant”, in relation to a nutrient pollution standard, has the meaning given by section [96D](#);

“habitats site” means a European site within the meaning of the Conservation of Habitats and Species Regulations 2017 ([S.I. 2017/1012](#)) (see regulation 8);

“the initial period” has the meaning given by section [96E\(4\)](#);

“nitrogen nutrient pollution standard”, in relation to references to a nitrogen significant plant meeting the standard, has the meaning given by section [96F\(1\)](#);

“nitrogen sensitive catchment area” means an area designated under section [96C\(1\)](#);

“nitrogen significant plant” has the meaning given by section [96B\(3\)](#);

“nutrient pollution standard” means the nitrogen nutrient pollution standard or the phosphorus nutrient pollution standard;

“nutrient significant plant” means—

- (a) a nitrogen significant plant, or
- (b) a phosphorus significant plant;

“phosphorus nutrient pollution standard”, in relation to references to a phosphorus significant plant meeting the standard, has the meaning given by section [96F\(2\)](#);

“phosphorus sensitive catchment area” means an area designated under section [96C\(2\)](#);

“phosphorus significant plant” has the meaning given by section [96B\(4\)](#);

“plant” means a sewage disposal works;

“related nutrient pollution standard”, in relation to a sensitive catchment area or a plant, means—

- (a) if (or so far as) the area is a nitrogen sensitive catchment area or the plant is a nitrogen significant plant, the nitrogen nutrient pollution standard;
- (b) if (or so far as) the area is a phosphorus sensitive catchment area or the plant is a phosphorus significant plant, the phosphorus nutrient pollution standard;

“sensitive catchment area” means—

- (a) a nitrogen sensitive catchment area, or
- (b) a phosphorus sensitive catchment area;

“standard concentration”, in relation to the nutrient pollution standard that applies to a plant, means the concentration specified in section [96F\(1\)\(a\)\(i\)](#) or [\(2\)\(a\)\(i\)](#) on the date that the designation of the associated catchment area as a sensitive catchment area takes effect;

“treated effluent” has the meaning given by section [96F\(3\)](#);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“upgrade date”, in relation to a plant that discharges into a sensitive catchment area, has the meaning given by section 96E.

- (3) References to a plant discharging into a sensitive catchment area are to the plant discharging treated effluent into the area.
- (4) References to the sewerage system of a sewerage undertaker have the meaning given by section 17BA(7).

96M New and altered plants: modifications

- (1) The Secretary of State may by regulations provide for sections 96B to 96L to apply with prescribed modifications in relation to any plant that, after the Levelling-up and Regeneration Act 2023 is passed—
 - (a) operates for the first time, or
 - (b) is altered.

This is subject to subsection (3).

- (2) Regulations under this section may in particular provide for sections 96C(5) and 96D(4) and (10) to apply as if they specified periods other than 7 years.
- (3) But regulations under this section may not modify section 96F(1) or (2) or section 96G(4) so as to apply a higher concentration of total nitrogen or higher concentration of total phosphorus than would otherwise apply.

96N Setting and enforcing nutrient pollution standards

- (1) The Secretary of State may by regulations make provision about the setting and enforcing of nutrient pollution standards.
- (2) The Secretary of State may only exercise the power under subsection (1) if the Secretary of State considers that the provisions about the setting and enforcing of nutrient pollution standards will be at least as effective as the provision already in force under sections 96B to 96M, the Environmental Damage (Prevention and Remediation) (England) Regulations 2015 (S.I. 810/2015) or this section as a result of the exercise of this power, including in relation to—
 - (a) overall environmental protection (within the meaning of section 45 of the Environment Act 2021),
 - (b) nutrient pollution levels discharged by plants or across catchment areas,
 - (c) enforcement, or
 - (d) costs.
- (3) The regulations may, in particular—
 - (a) amend, repeal, revoke or otherwise modify—
 - (i) sections 96B to 96M,
 - (ii) the Environmental Damage (Prevention and Remediation) (England) Regulations 2015, or
 - (iii) provision made under this section;
 - (b) provide for a sewerage undertaker’s compliance with the duty under section 96B (or an equivalent) to be determined by reference to

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- matters other than the concentration of nitrogen or phosphorous in treated effluent discharged by a plant;
- (c) include provision applying or corresponding to any provision in sections 96B to 96M (with or without modifications);
 - (d) include provision about the establishment of schemes involving sewerage undertakers and others for the purpose of encouraging or requiring sewerage undertakers to arrange or contribute to action in respect of the effect of nitrogen or phosphorous (from any source) on a habitats site;
 - (e) make different provision for different purposes or different areas.”
- (2) In section 213 of the Water Industry Act 1991 (powers to make regulations), in subsection (1), insert “96K, 96N,”—
- (a) if this subsection comes into force before section 82(2) of the Environment Act 2021, before “or 105A”;
 - (b) otherwise, before “105A”.

Commencement Information

I199 S. 168 in force at 26.12.2023, see s. 255(6)

169 Planning: assessments of effects on certain sites

Schedule 15 amends the Conservation of Habitats and Species Regulations 2017 (S.I. 2017/1012) to require certain assumptions to be made in certain circumstances about nutrient pollution standards (see section 168).

Commencement Information

I200 S. 169 in force at 26.12.2023, see s. 255(6)

170 Remediation

- (1) The Environmental Damage (Prevention and Remediation) (England) Regulations 2015 (S.I. 2015/810) are amended as follows.
- (2) After regulation 9 insert—

“9A Nutrient significant sewage disposal works: environmental damage

- (1) This regulation applies where a sewerage undertaker whose sewerage system includes a nutrient significant plant fails to secure that the plant is able to meet the related nutrient pollution standard by the upgrade date.
- (2) Any excess nutrient pollution is to be treated for the purposes of these regulations as damage to the related habitats site that is environmental damage caused by an activity of the sewerage undertaker that—
 - (a) requires a permit under the Environmental Permitting (England and Wales) Regulations 2016, and
 - (b) falls within Schedule 2.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(3) In paragraph (2)—

“excess nutrient pollution”, in relation to a nutrient significant plant and a related nutrient pollution standard, means the amount by which the total nutrient pollution discharged in treated effluent by the plant during the period—

- (a) beginning with the upgrade date, and
- (b) ending with the day the plant first meets the related nutrient pollution standard,

exceeds the total nutrient pollution that it would have discharged in treated effluent during that period had it met the related nutrient pollution standard on and after the upgrade date;

“total nutrient pollution” means—

- (a) in relation to the nitrogen nutrient pollution standard, total nitrogen, and
- (b) in relation to the phosphorus nutrient pollution standard, total phosphorus.

(4) Where—

- (a) the nutrient significant plant referred to in paragraph (1) is a plant that discharges treated effluent into a catchment permitting area (see section 96G of the Water Industry Act 1991), and
- (b) the sewerage undertaker has failed to comply with a condition in the environmental permit for the plant imposed in pursuance of subsection (3)(b) of that section,

the definition of “excess nutrient pollution” in paragraph (3) is subject to the following modifications.

(5) In a case where the condition relates to the total nutrient pollution discharged by the plant specifically, references in that definition to the “upgrade date” are to be read as the “applicable date”.

(6) In a case where the condition relates to the total nutrient pollution discharged by all plants that discharge into the associated catchment area, that definition is to be read as if—

- (a) in the words before paragraph (a), after “by the plant” there were inserted “and all other plants that discharged into the associated catchment area for that plant”,
- (b) in paragraph (a), for “upgrade date” there were substituted “applicable date”, and
- (c) in the words after paragraph (b)—
 - (i) for “that it” there were substituted “that both it and those other plants”, and
 - (ii) for “upgrade date” there were substituted “applicable date”.

(7) For the purposes of paragraph (3) as modified by paragraph (5) or (6), the “applicable date” is to be determined in accordance with section 96G(6)(a) of the Water Industry Act 1991.

(8) It is for the Environment Agency to determine the excess nutrient pollution discharged by a plant and in doing so the Environment Agency may have regard to—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the concentration of total nitrogen or concentration of total phosphorus determined for the purposes of section 96F of the Water Industry Act 1991 (see in particular subsection (5) of that section), and
 - (b) the volume of treated effluent discharged by the plant, as determined by the Environment Agency.
 - (9) Schedule 2ZA sets out modifications of these regulations that apply where this regulation applies.
 - (10) In this regulation—
 - “related habitats site”, in relation to a nutrient significant plant, means the habitats site by reference to which the associated catchment area is designated under section 96C of the Water Industry Act 1991;
 - “sewerage system”, in relation to a sewerage undertaker, has the meaning given by section 17BA(7) of the Water Industry Act 1991.
 - (11) For the purposes of this regulation, the following terms have the meanings given by section 96L of the Water Industry Act 1991—
 - “associated catchment area”;
 - “catchment permitting area”;
 - “environmental permit”;
 - “habitats site”;
 - “nitrogen nutrient pollution standard”;
 - “nutrient significant plant”;
 - “phosphorus nutrient pollution standard”;
 - “plant”;
 - “related nutrient pollution standard”;
 - “sensitive catchment area”;
 - “treated effluent”;
 - “upgrade date”;and references to a nutrient significant plant meeting the related nutrient pollution standard are to be read in accordance with section 96F(1) or (2) of that Act.”
 - (3) After Schedule 2 insert—

“SCHEDULE 2ZA

Regulation 9A

MODIFICATIONS WHERE REGULATION 9A APPLIES

- 1 In relation to anything that is treated as environmental damage by regulation 9A, these regulations apply with the following modifications.
- 2 Regulation 17 does not apply.
- 3 Regulation 18 applies as if—
 - (a) the opening words of paragraph (1) provided “Where excess nutrient pollution is treated as environmental damage by regulation 9A(2), the enforcing authority must notify the responsible operator—”;
 - (b) for paragraph (a) there were substituted—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(a) of the environmental damage;”.

4 Regulation 18A applies with the omission of paragraph (2).

5 Regulation 19(3) applies as if for paragraphs (a) to (e) (but not the “or” immediately following paragraph (e)) there were substituted—

“(a) the responsible operator did not fail to secure that the nutrient significant plant in question is able to meet the related nutrient pollution standard by the upgrade date;

(b) the determination by the Environment Agency of the excess nutrient pollution mentioned in regulation 9A(2) was unreasonable;”.

6 Regulation 25(2) applies as if—

(a) for paragraph (a) there were substituted—

“(a) determining the excess nutrient pollution mentioned in regulation 9A(2);”;

(b) paragraph (b) were omitted.”

Commencement Information

I201 S. 170 in force at 26.12.2023, see s. 255(6)

PART 8

DEVELOPMENT CORPORATIONS

Local authority proposals and oversight

171 Locally-led urban development corporations

(1) Section 134 of the Local Government, Planning and Land Act 1980 (urban development areas) is amended as set out in subsections (2) and (3).

(2) After subsection (1A) insert—

“(1B) The Secretary of State may, by order made by statutory instrument, designate any area of land in England as an urban development area if—

(a) a proposal has been made to the Secretary of State under section 134A(1) in relation to the area of land, and

(b) the Secretary of State is satisfied that it would be expedient in the local interest—

(i) to designate the area of land as an urban development area, and

(ii) to establish a development corporation for the area in consequence of the proposal.”

(3) After section 134 of the Local Government, Planning and Land Act 1980 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“134A Local authority proposal for designation of locally-led urban development area in England

- (1) A local authority in England, or two or more local authorities in England acting jointly, may propose to the Secretary of State that the Secretary of State should designate an area of land (the “proposal area”) as an urban development area under section 134(1B).
- (2) A proposal under subsection (1) (a “locally-led proposal”) must—
 - (a) state the proposing authority’s proposals as to—
 - (i) the name of the development corporation that would be established as a result of the proposal, and
 - (ii) which local authority or local authorities should be designated as the oversight authority for that development corporation, and
 - (b) include a map of the proposal area.
- (3) A locally-led proposal may also include proposals about any other matter about which the Secretary of State would be able to make provision in respect of the development corporation by order or regulations under this Part.
- (4) A locally-led proposal may relate to separate parcels of land.
- (5) A local authority may make a locally-led proposal only if—
 - (a) the proposal area falls wholly within the area of the local authority, or
 - (b) where it makes the proposal jointly with one or more other local authorities, the proposal area falls—
 - (i) wholly or partly within the area of each of them, and
 - (ii) wholly within their combined areas.
- (6) A proposing authority may make a locally-led proposal only if—
 - (a) the proposing authority has consulted the persons mentioned in subsection (7),
 - (b) the proposing authority has had regard to any comments made in response by the consultees, and
 - (c) if those comments include comments by a local authority or the Greater London Authority that the proposing authority does not accept, the proposing authority has published a statement giving the reasons for the non-acceptance.
- (7) The persons referred to in subsection (6)(a) are—
 - (a) persons who appear to the proposing authority to represent those living in, or in the vicinity of, the proposal area;
 - (b) persons who appear to the proposing authority to represent businesses with any premises in, or in the vicinity of, the proposal area;
 - (c) each Member of Parliament whose parliamentary constituency includes any part of the proposal area;
 - (d) each local authority for an area which falls wholly or partly within the proposal area (other than the proposing authority or a constituent council of the proposing authority);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (e) in relation to an area in Greater London, the Greater London Authority;
 - (f) any other person whom the proposing authority considers it appropriate to consult.
- (8) A local authority may be proposed as an oversight authority under subsection (2)(a)(ii) only if the proposal area is wholly or partly within the area of the local authority.
- (9) Where the proposing authority proposes, under subsection (2)(a)(ii), that two or more local authorities should be designated as the oversight authority, it may also propose—
- (a) that a specified function of an oversight authority should be exercisable by one of those local authorities, or
 - (b) that a specified function of an oversight authority should be exercisable by two or more of those local authorities jointly.

For this purpose, “specified” means specified in the proposal.

(10) In this section—

“local authority” means—

- (a) a district council,
- (b) a county council,
- (c) a London borough council, or
- (d) the Common Council;

“locally-led proposal” has the meaning given by subsection (2);

“proposing authority” means—

- (a) the local authority which makes a locally-led proposal, or
- (b) if two or more local authorities make such a proposal, those authorities acting jointly;

and where the proposing authority consists of two or more authorities acting jointly, each is a “constituent council” of the proposing authority.”

(4) Section 135 (urban development corporations) is amended as set out in subsections (5) and (6).

(5) In subsection (1A), after “in England” insert “designated under section 134(1)”.

(6) After subsection (4) insert—

“(4A) Subsections (4B) and (4C) apply where the Secretary of State makes an order under this section establishing a locally-led urban development corporation in consequence of a proposal under section 134A(1).

(4B) The order must—

- (a) establish the corporation with the proposed name,
- (b) give effect to any proposal made by virtue of section 134A(3) as to the number of members to be prescribed under paragraph 1A(2) of Schedule 26,
- (c) designate as the oversight authority the local authority or local authorities proposed as such, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (d) give effect to any proposal made by virtue of section [134A\(9\)](#) (allocation of functions where oversight authority consists of more than one local authority).

(4C) The Secretary of State must exercise other functions under this Act so as to give effect to any other proposals made by virtue of section [134A\(3\)](#).”

(7) After section 135 insert—

“135A Oversight of locally-led urban development area

(1) The Secretary of State may by regulations make provision about how an oversight authority is to oversee the regeneration of a locally-led urban development area.

(2) Regulations under subsection (1) may, for example—

- (a) provide that an oversight authority is to exercise specified functions under this Part of this Act, other than a power to make regulations or other instruments of a legislative character, which would otherwise be exercisable by the Secretary of State, the Treasury or any other Minister of the Crown;
- (b) provide that an oversight authority is to exercise such functions subject to specified conditions or limitations;
- (c) provide that specified functions under this Part of this Act may be exercised only with the consent of an oversight authority;
- (d) make provision about the membership of a locally-led urban development corporation;
- (e) modify provisions of this Part of this Act;
- (f) make different provision for different purposes;
- (g) make incidental, supplementary or consequential provision.

(3) In this section “specified” means specified by regulations under this section.

(4) Regulations under this section are to be made by statutory instrument.

(5) A statutory instrument containing regulations under this section may not be made until approved by a resolution of each House of Parliament.”

Commencement Information

I202 S. 171 not in force at Royal Assent, see [s. 255\(7\)](#)

I203 [S. 171\(7\)](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(h\)](#)

PROSPECTIVE

172 Development corporations for locally-led new towns

(1) The New Towns Act 1981 is amended as follows.

(2) After section 1 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“1ZA Local authority proposal for designation of locally-led new town in England

- (1) A local authority in England, or two or more local authorities in England acting jointly, may propose to the Secretary of State that the Secretary of State should designate an area of land (the “proposal area”) as the site of a proposed new town.
- (2) A proposal under subsection (1) (a “locally-led proposal”) must—
 - (a) state the proposing authority’s proposals as to—
 - (i) the name of the development corporation that would be established as a result of the proposal, and
 - (ii) which local authority or local authorities should be designated as the oversight authority for that development corporation, and
 - (b) include a map of the proposal area.
- (3) A locally-led proposal may also include proposals about any other matter about which the Secretary of State would be able to make provision in respect of the development corporation by order or regulations under this Act.
- (4) A local authority may make a locally-led proposal only if—
 - (a) the proposal area falls wholly within the area of the local authority, or
 - (b) where it makes the proposal jointly with one or more other local authorities, the proposal area falls—
 - (i) wholly or partly within the area of each of them, and
 - (ii) wholly within their combined areas.
- (5) A proposing authority may make a locally-led proposal only if—
 - (a) the proposing authority has consulted the persons mentioned in subsection (6),
 - (b) the proposing authority has had regard to any comments made in response by the consultees, and
 - (c) those comments include comments by a local authority or the Greater London Authority that the proposing authority does not accept, the proposing authority has published a statement giving the reasons for the non-acceptance.
- (6) The persons referred to in subsection (5)(a) are—
 - (a) persons who appear to the proposing authority to represent those living in, or in the vicinity of, the proposal area;
 - (b) persons who appear to the proposing authority to represent businesses with any premises in, or in the vicinity of, the proposal area;
 - (c) each Member of Parliament whose parliamentary constituency includes any part of the proposal area;
 - (d) each local authority for an area which falls wholly or partly within the proposal area (other than the proposing authority or a constituent council of the proposing authority);
 - (e) in relation to an area in Greater London, the Greater London Authority;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(f) any other person whom the proposing authority considers it appropriate to consult.

(7) A local authority may be proposed as the oversight authority under subsection (2)(a)(ii) only if the proposal area is wholly or partly within the area of the local authority.

(8) Where the proposing authority proposes, under subsection (2)(a)(ii), that two or more local authorities should be designated as the oversight authority, it may also propose—

- (a) that a specified function should be exercisable by one of those local authorities, or
- (b) that a specified function should be exercisable by two or more of those local authorities jointly.

For this purpose, “specified” means specified in the proposal.

(9) In this section—

“local authority” means—

- (a) a district council,
- (b) a county council, or
- (c) a London borough council;

“locally-led proposal” has the meaning given by subsection (2);

“proposing authority” means—

- (a) the local authority which makes a locally-led proposal, or
- (b) if two or more local authorities make such a proposal, those authorities acting jointly;

and where the proposing authority consists of two or more authorities acting jointly, each is a “constituent council” of the proposing authority.

1ZB Designation of locally-led new town in England

(1) This section applies where a proposal has been made to the Secretary of State under section 1ZA(1) in relation to an area of land in England.

(2) The Secretary of State may make an order under this section designating the area as the site of a proposed new town if satisfied that it would be expedient in the local interest that the area should be developed as a new town by a corporation established under this Act in consequence of the proposal.

(3) Subsections (3) and (5) of section 1 apply to an order under this section as they apply to an order under that section.”

(3) In section 3 (establishment of development corporations for new towns)—

- (a) in subsection (1), after “1” insert “or 1ZB”;
- (b) in subsection (2A), after “in England” insert “designated under section 1”;
- (c) after subsection (2A) insert—

“(2B) Subsections (2C) and (2D) apply where the Secretary of State makes an order under this section establishing a development corporation for a locally-led new town in consequence of a proposal under section 1ZA(1).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(2C) The order must—

- (a) establish the corporation with the proposed name,
- (b) give effect to any proposal made by virtue of section 1ZA(3) as to the number of members to be prescribed under subsection (2ZB),
- (c) designate as the oversight authority the local authority or local authorities proposed as such, and
- (d) give effect to any proposal made by virtue of section 1ZA(8) (allocation of functions where oversight authority consists of more than one local authority).

(2D) The Secretary of State must exercise other functions under this Act so as to give effect to any other proposals made by virtue of section 1ZA(3).”

- (4) In section 77 (regulations and orders), in each of subsections (3), (3B) and (3C), after “1,” insert “1ZB,”.

Commencement Information

I204 S. 172 not in force at Royal Assent, see [s. 255\(7\)](#)

PROSPECTIVE

173 Minor and consequential amendments

[Schedule 16](#) makes minor and consequential amendments in connection with sections [171](#) and [172](#).

Commencement Information

I205 S. 173 not in force at Royal Assent, see [s. 255\(7\)](#)

Planning functions

174 Planning functions of urban development corporations

- (1) The Local Government, Planning and Land Act 1980 is amended as follows.

- (2) In section 149 (urban development corporation as planning authority)—

- (a) after subsection (1) insert—

“(1A) If the Secretary of State so provides by order, an urban development corporation for an area in England shall be the local planning authority for the whole or any portion of its area for such purposes of Part 2 or 3 of the Planning and Compulsory Purchase Act 2004 as may be prescribed.”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) in subsection (2), for “The order” substitute “An order under subsection (1) or (1A)”;
 - (c) after subsection (2) insert—
 - “(2A) If the Secretary of State so provides by order, an urban development corporation, other than a locally-led urban development corporation, for an area in England shall be the minerals and waste planning authority for the whole or any portion of its area for the purposes of Part 2 of the Planning and Compulsory Purchase Act 2004.”;
 - (d) in subsection (3)—
 - (i) in paragraph (a), omit “of the 1990 Act and the Planning (Listed Buildings and Conservation Areas) Act 1990”;
 - (ii) in paragraph (b), omit “of those Acts”;
 - (e) after subsection (3) insert—
 - “(3A) A provision mentioned in paragraph 1, 3 or 5 of Part 1 of Schedule 29 may be specified under subsection (3)(a) only in relation to an urban development corporation for an area in England.”;
 - (f) after subsection (4) insert—
 - “(4A) If the Secretary of State so provides by order, an urban development corporation for an area in England shall have, in the whole or any portion of its area, the functions conferred on the relevant planning authority by Schedule 8 to the Electricity Act 1989 so far as it applies to applications for consent under section 37 of that Act.”
- (3) After section 149 insert—

“149A Arrangements for discharge of, or assistance with, planning functions in England

- (1) Subsection (2) applies in relation to any function that an urban development corporation has by virtue of an order under section 149(1).
- (2) The corporation may make arrangements for the discharge of the function by the council (if any) which would have the function but for the order.
- (3) Where arrangements are in force under sub-paragraph (2) for the discharge of a function by a council—
 - (a) the council may arrange for the discharge of the function by a committee, sub-committee or officer of the council, and
 - (b) section 101(2) of the Local Government Act 1972 (delegation by committees and sub-committees) applies in relation to the function as it applies in relation to functions of the council.
- (4) Arrangements under subsection (2) for the discharge of a function do not prevent the urban development corporation from exercising the function.
- (5) Subsection (6) applies in relation to any function that an urban development corporation has by virtue of an order under section 149(1A) or (2A).
- (6) The corporation may seek assistance in connection with the discharge of the function from the council (if any) which would have the function but for the order; and that council may give such assistance.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (7) In this section, “council” means a county council, district council or London borough council or the Common Council.”
- (4) In Part 1 of Schedule 29 (planning enactments conferring functions capable of being assigned to urban development corporations)—
- (a) at the beginning insert—

“1 Section 17 of the Land Compensation Act 1961.”;
 - (b) the paragraph referring to enactments in TCPA 1990 becomes paragraph 2;
 - (c) after that paragraph insert—

“3 Sections 171BA, 171E, [172ZA](#), 172A, 191, 192, 225, 225A, 225C, 225F to 225H, 225J and 225K of the 1990 Act.”;
 - (d) the paragraph referring to enactments in the Listed Buildings Act becomes paragraph 4;
 - (e) after that paragraph insert—

“5 Section [44AA](#) of the Planning (Listed Buildings and Conservation Areas) Act 1990.”

Commencement Information

I206 S. 174 not in force at Royal Assent, see [s. 255\(7\)](#)

I207 [S. 174](#) in force at 14.4.2026 by [S.I. 2026/168](#), [reg. 2\(a\)](#)

175 Planning functions of new town development corporations

- (1) The New Towns Act 1981 is amended as follows.
- (2) After section 7 insert—

“7A Development corporation as planning authority in England

- (1) This section applies in relation to a development corporation established for the purposes of a new town in England.
- (2) The Secretary of State may provide by order for the corporation to be the local planning authority for the specified area—
 - (a) for such purposes of Part 3 of the Town and Country Planning Act 1990, and in relation to such kinds of development, as are specified, or
 - (b) for such purposes of Part 2 or 3 of the Planning and Compulsory Purchase Act 2004 as are specified.
- (3) An order under subsection (2) may provide—
 - (a) that any enactment relating to local planning authorities is not to apply to the corporation, or
 - (b) that any such enactment which applies to the corporation is to apply to it subject to such modifications as are specified.
- (4) The Secretary of State may provide by order—
 - (a) for the corporation to have, in the specified area, the functions conferred by such of the enactments mentioned in Part 1 of

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- Schedule 29 to the Local Government, Planning and Land Act 1980 as are specified;
- (b) for such of the enactments mentioned in Part 2 of that Schedule as are specified in the order to have effect, in relation to the corporation and to land in the specified area, subject to the modifications set out in that Part;
 - (c) for such of the provisions of that Part 2 as apply for the purposes of the order to be read, for those purposes, as if—
 - (i) any reference to an urban development corporation were a reference to a development corporation established under section 3 of this Act, and
 - (ii) any reference to regenerating an area were a reference to developing a new town.
- (5) An order under subsection (4) may provide—
- (a) that any enactment relating to local planning authorities applies to the corporation for the purposes of any enactment specified in Schedule 29 to the Local Government, Planning and Land Act 1980 which relates to land in the specified area by virtue of the order;
 - (b) that any enactment so applied to the corporation applies to it subject to modifications specified in the order.
- (6) The Secretary of State may, if the corporation is not a locally-led development corporation, provide by order for the corporation to be the minerals and waste planning authority for the specified area for the purposes of Part 2 of the Planning and Compulsory Purchase Act 2004.
- (7) The Secretary of State may provide by order that the corporation is to have, in the specified area, the functions conferred on the relevant planning authority by Schedule 8 to the Electricity Act 1989 so far as it applies to applications for consent under section 37 of that Act.
- (8) The area specified under any of the preceding subsections must be the whole, or part, of the area of the new town.
- (9) An order under this section may include supplementary or transitional provision or savings.
- (10) In this section “specified” means specified in an order under this section.

7B Arrangements for discharge of, or assistance with, planning functions in England

- (1) Subsection (2) applies in relation to any function that a development corporation has by virtue of an order under section 7A(2)(a).
- (2) The corporation may make arrangements for the discharge of the function by the council (if any) which would have the function but for the order.
- (3) Where arrangements are in force under subsection (2) for the discharge of a function by a council—
 - (a) the council may arrange for the discharge of the function by a committee, sub-committee or officer of the council, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) section 101(2) of the Local Government Act 1972 (delegation by committees and sub-committees) applies in relation to the function as it applies in relation to functions of the council.
- (4) Arrangements under subsection (2) for the discharge of a function do not prevent the development corporation from exercising the function.
- (5) Subsection (6) applies in relation to any function that a development corporation has by virtue of an order under section 7A(2)(b) or (6).
- (6) The corporation may seek assistance in connection with the discharge of the function from the council (if any) which would have the function but for the order; and that council may give such assistance.
- (7) In this section, “council” means a county council, district council or London borough council.”
- (3) In Schedule 3 (constitution and proceedings of development corporations), after paragraph 10 insert—

“Delegation of planning functions

- 10A (1) This paragraph applies in relation to any function conferred on the corporation by virtue of an order under section 7A (planning functions of corporations in England).
- (2) The corporation may appoint committees and such committees may appoint sub-committees.
- (3) Anything which is authorised or required to be done by the corporation—
 - (a) may be done by any member of the corporation or of its staff who is authorised for the purpose either generally or specifically;
 - (b) may be done by a committee or sub-committee which is so authorised.
- (4) The corporation may—
 - (a) determine the quorum of a committee or sub-committee;
 - (b) make such arrangements as it thinks appropriate relating to the meetings and procedure of a committee or sub-committee.
- (5) Anything done for the purposes of sub-paragraph (4) is subject to directions given by the Secretary of State.
- (6) The validity of anything done by a committee or sub-committee is not affected by—
 - (a) any vacancy among its members;
 - (b) any defect in the appointment of any of its members.
- 10B (1) This paragraph has effect in relation to the membership of committees and sub-committees appointed under paragraph 10A.
- (2) A committee may consist of—
 - (a) such members of the corporation as it appoints;
 - (b) such other persons as the corporation (with the consent of the Secretary of State) appoints.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3) A sub-committee of a committee may consist of—
- (a) such members of the committee as it appoints;
 - (b) such persons who are members of another committee of the corporation (whether or not they are members of the corporation) as the committee appoints;
 - (c) such other persons as the corporation (with the consent of the Secretary of State) appoints.
- (4) The membership of a committee or sub-committee—
- (a) must always include at least one person who is a member of the corporation;
 - (b) must not include any person who is a member of the staff of the corporation.”

Commencement Information

- I208** S. 175 not in force at Royal Assent, see [s. 255\(7\)](#)
I209 [S. 175](#) in force at 14.4.2026 by [S.I. 2026/168](#), [reg. 2\(b\)](#)

176 Mayoral development corporation as minerals and waste planning authority

- (1) The Localism Act 2011 is amended as follows.
- (2) In section 202 (functions in relation to Town and Country Planning), after subsection (3) insert—
- “(3A) The Mayor may decide that the MDC is to be the minerals and waste planning authority, for the whole or any portion of the area, for the purposes of Part 2 of the Planning and Compulsory Purchase Act 2004.”
- (3) In section 203 (arrangements for discharge of, or assistance with, planning functions), in subsection (4), after “2004” insert “, or the minerals and waste planning authority for the purposes of Part 2 of that Act,”.
- (4) In section 204 (removal or restriction of planning functions), in subsection (2), after “(3)” insert “, (3A)”.

Commencement Information

- I210** S. 176 not in force at Royal Assent, see [s. 255\(7\)](#)
I211 [S. 176](#) in force at 14.4.2026 by [S.I. 2026/168](#), [reg. 2\(c\)](#)

177 Minor and consequential amendments

[Schedule 17](#) makes amendments consequential on sections [174](#) and [175](#), and other minor amendments in connection with the planning functions of development corporations.

Commencement Information

- I212** S. 177 not in force at Royal Assent, see [s. 255\(7\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

I213 S. 177 in force at 14.4.2026 by S.I. 2026/168, reg. 2(d)

Membership

178 Removal of restrictions on membership of urban development corporations and new town development corporations

(1) In Schedule 26 to the Local Government, Planning and Land Act 1980 (constitution and proceedings etc of urban development corporations)—

- (a) in paragraph 1, for the words from “such number” to the end substitute “the number of other members determined in accordance with paragraph 1A”;
- (b) after that paragraph insert—

“1A (1) In the case of a corporation established by the Scottish Ministers or the Welsh Ministers—

- (a) the number of other members must be prescribed by order under section 135, and
- (b) the prescribed number must be—
 - (i) not less than 5, and
 - (ii) not more than 11.

(2) In the case of a locally-led urban development corporation—

- (a) the number of other members must be prescribed by order under section 135, and
- (b) the prescribed number must be not less than 5.

(3) In any other case, the number of other members must be not less than 5.”

(2) In section 3 of the New Towns Act 1981 (establishment of development corporations)

- (a) in subsection (2), for paragraph (c) substitute—

“(c) at least one other member.”;

- (b) after subsection (2) insert—

“(2ZA) In the case of a development corporation established by an order under this section made by the Welsh Ministers—

- (a) the number of members other than the chairman and deputy chairman must be prescribed by the order, and
- (b) the prescribed number is not to exceed 11.

(2ZB) In the case of a locally-led development corporation, the number of members other than the chairman and deputy chairman must be prescribed by the order.”

(3) Nothing in this section affects any provision of an order made before this section comes into force.

Commencement Information

I214 S. 178 not in force at Royal Assent, see s. 255(7)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

I215 S. 178 in force at 14.4.2026 by S.I. 2026/168, reg. 2(e)

Finance

179 Removal of limits on borrowing of urban development corporations and new town development corporations

(1) In paragraph 8 of Schedule 31 to the Local Government, Planning and Land Act 1980 (aggregate limit on borrowing of urban development corporations)—

- (a) in sub-paragraph (1), after “sub-paragraph (2) below” insert “(save as excepted by sub-paragraph (2A))”;
- (b) after sub-paragraph (2) insert—

“(2A) But no sum which is—

- (a) borrowed by, or issued in fulfilment of a guarantee of a debt of, a corporation for an urban development area in England, and
- (b) borrowed or issued on or after the date on which section 179 of the Levelling-up and Regeneration Act 2023 comes into force,

is to count for the purposes of sub-paragraph (2)(a) or (b).”

(2) In section 60 of the New Towns Act 1981 (aggregate limit on borrowing of new town development corporations)—

- (a) in subsection (1), after “sums” insert “(save as excepted by subsection (1A))”;
- (b) after subsection (1) insert—

“(1A) No sum which—

- (a) is advanced to, or borrowed by, a development corporation established for the purposes of a new town in England, and
- (b) is advanced or borrowed on or after the date on which section 179 of the Levelling-up and Regeneration Act 2023 comes into force,

is to count for the purposes of subsection (1)(a) or (d).”

Commencement Information

I216 S. 179 not in force at Royal Assent, see s. 255(7)

I217 S. 179 in force at 14.4.2026 by S.I. 2026/168, reg. 2(f)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

PART 9

COMPULSORY PURCHASE

Powers

180 Acquisition by local authorities for purposes of regeneration

In section 226 of TCPA 1990 (power of local authority to acquire land compulsorily for development and other planning purposes), after subsection (1A) insert—

“(1B) In the application of subsections (1) and (1A) in England, “improvement” includes regeneration.”

Commencement Information

I218 S. 180 not in force at Royal Assent, see [s. 255\(7\)](#)

I219 [S. 180](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(i\)](#)

Procedure

181 Online publicity

- (1) The Acquisition of Land Act 1981 is amended as follows.
- (2) In section 7(1) (definitions), after the definition of “acquiring authority” insert—

““appropriate website”, in relation to a notice about a proposed compulsory purchase, means a website which members of the public could reasonably be expected to find on searching on the internet for information about the scheme or project that underlies the proposed purchase.”.
- (3) In section 11 (requirement to publish notice of compulsory purchase order in newspaper)—
 - (a) for the heading substitute “Public notices”;
 - (b) in subsection (1)—
 - (i) the words from “in two” to “situated” become paragraph (a);
 - (ii) at the end insert “, and
 - (b) for a period of at least 21 days ending with the day specified under subsection (2)(d), publish a notice in the prescribed form on an appropriate website.”;
 - (c) in subsection (2)—
 - (i) in the words before paragraph (a), for “notice” substitute “notices”;
 - (ii) omit the “and” at the end of paragraph (c);
 - (iii) after paragraph (c) insert—

“(ca) specify a website on which those copies may be viewed, and”;
 - (iv) for paragraph (d) substitute—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- “(d) specify the final day for making objections to the order, and the manner in which objections can be made.”;
- (d) after subsection (2) insert—
 - “(2A) If the confirming authority is satisfied that, because of special circumstances, it is impracticable for the acquiring authority to make the copies referred to in subsection (2)(c) available for inspection at an appropriate place, the confirming authority may direct that the requirement in subsection (2)(c) (together with that in section 12(1)(ba)) is not to apply.”;
- (e) in subsection (4)(b), omit the words from “(but” to “affixed)”.
- (4) In section 12(1) (requirement to serve notice on certain affected persons)—
 - (a) omit the “and” at the end of paragraph (b);
 - (b) after paragraph (b) insert—
 - “(ba) (subject to section 11(2A)) naming a place within the locality where a copy of the order and of the map referred to in it may be inspected,
 - (bb) specifying a website on which those copies may be viewed, and”;
 - (c) for paragraph (c) substitute—
 - “(c) specifying the final day for making objections to the order, and the manner in which objections can be made.”
- (5) After section 12 insert—

“12A Final day for making objections

- (1) For the purposes of sections 11 and 12, the day specified as the final day for making objections must be the last day, or a day after the last day, of the period of 21 days beginning with the first day at the beginning of which the acquiring authority expects that all of the following conditions will be satisfied.
- (2) The conditions are that—
 - (a) a notice has been published for the first time as required by section 11(1)(a),
 - (b) publication as required by section 11(1)(b) has begun,
 - (c) a notice has been affixed as required by section 11(3), and
 - (d) a notice has been served on every qualifying person as required by section 12(1).”
- (6) In section 15 (notices after confirmation of compulsory purchase order)—
 - (a) in subsection (3)—
 - (i) the words from “in one” to “situated” become paragraph (a);
 - (ii) at the end of that paragraph insert “, and
 - (b) on an appropriate website, until the end of the period of 6 weeks beginning with the day on which the authority takes the final step needed to comply with subsection (1)(a).”;
 - (b) in subsection (3A), for “(3)” substitute “(3)(a)”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) in subsection (3B)—
 - (i) for “(3)” substitute “(3)(a)”;
 - (ii) after “(3A),” insert “or with subsection (3)(b),”;
 - (d) in subsection (4), after paragraph (c) insert—
 - “(ca) specifying a website on which those copies may be viewed,”;
 - (e) after subsection (4) insert—
 - “(4A) If the confirming authority is satisfied that, because of special circumstances, it is impracticable for the acquiring authority to make the copies referred to in subsection (4)(c) available for inspection at an appropriate place, the confirming authority may direct that the requirement in subsection (4)(c) is not to apply.”
- (7) In section 22 (requirement to publish notice of certificate under Part 3 of the Act)—
- (a) the words from “in one” to “situated” become paragraph (a);
 - (b) at the end of that paragraph insert “, and
 - (b) on an appropriate website, until the end of the period of 6 weeks beginning with the day on which the certificate is given,”.
- (8) In paragraph 9 of Schedule 3 (requirement to publish notice of certificate under that Schedule)—
- (a) the words from “in one” to “situated” become paragraph (a);
 - (b) at the end of that paragraph insert “, and
 - (b) on an appropriate website, until the end of the period of 6 weeks beginning with the day on which the certificate is given,”.

Commencement Information

I220 S. 181 not in force at Royal Assent, see [s. 255\(7\)](#)

I221 S. 181 in force at 31.1.2024 for specified purposes by [S.I. 2024/92](#), [reg. 2\(j\)](#)

I222 S. 181 in force at 30.4.2024 for E. in so far as not already in force by [S.I. 2024/389](#), [reg. 3\(a\)](#) (with [reg. 4](#))

I223 S. 181 in force at 2.12.2025 for specified purposes by [S.I. 2025/1262](#), [reg. 2\(1\)\(a\)\(2\)](#) (with [reg. 3](#))

182 Confirmation proceedings

- (1) The Acquisition of Land Act 1981 is amended as follows.
- (2) In section 13A (confirmation proceedings for contested orders), for subsections (2) to (6) substitute—
- “(1A) The confirming authority must cause a public local inquiry to be held if—
 - (a) the order is subject to special parliamentary procedure, or
 - (b) in the case of an order to which section 16 applies, a certificate has been given under subsection (2) of that section.
 - (1B) If subsection (1A) does not apply, the confirming authority must either—
 - (a) cause a public local inquiry to be held, or
 - (b) follow the representations procedure.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (1C) In deciding between those options, the confirming authority must have regard to the scale and complexity of what is proposed by the order.
- (1D) The representations procedure is a procedure to be prescribed.
- (1E) The regulations prescribing the procedure must include—
 - (a) provision enabling each person who has made a remaining objection to make representations—
 - (i) in writing to the confirming authority, or
 - (ii) if the person so requests, at a hearing, and
 - (b) provision enabling the acquiring authority, and any other person the confirming authority thinks appropriate, to make representations—
 - (i) in writing to the confirming authority, or
 - (ii) if applicable, at a hearing held as mentioned in paragraph (a)(ii).
- (1F) The regulations may provide for hearings to be held by the confirming authority or by a person appointed by the confirming authority.
- (1G) In subsection (1E), “representations” means representations as to whether the order should be confirmed.
- (1H) Before confirming the order, the confirming authority must consider—
 - (a) each remaining objection;
 - (b) if a public local inquiry was held, the report of the person who held it;
 - (c) if the representations procedure was followed and the confirming authority held a hearing, the representations made at the hearing;
 - (d) if the representations procedure was followed and a person appointed by the confirming authority held a hearing, the report of that person;
 - (e) if the representations procedure was followed and written representations were made, those representations.
- (1I) The confirming authority may confirm the order with or without modifications.”
- (3) In section 13B (supplementary provision about written representations procedure)—
 - (a) in the heading, omit “Written”;
 - (b) in each of the following provisions, omit “written”—
 - (i) subsection (1);
 - (ii) subsection (2);
 - (iii) subsection (4);
 - (iv) subsection (6);
 - (v) subsection (7);
 - (c) in subsection (7), for “13A(6)” substitute “13A(1D)”.
- (4) In section 13C (confirmation of compulsory purchase order in stages), in subsection (3), for “13A(2) or (3)” substitute “13A(1A) or (1B)”.
- (5) In section 14D(3) (functions of inspector appointed by confirming authority), in paragraph (c), for the words from “13A(3)(a)” to the end substitute “13A”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I224 S. 182 not in force at Royal Assent, see [s. 255\(7\)](#)

I225 [S. 182](#) in force at 31.3.2024 for specified purposes by [S.I. 2024/389](#), [reg. 2\(i\)](#)

183 Conditional confirmation

- (1) The Acquisition of Land Act 1981 is amended as set out in subsections [\(2\)](#) and [\(3\)](#).
- (2) After section 13B insert—

“13BA Conditional confirmation

- (1) The confirming authority may confirm a compulsory purchase order conditionally.
 - (2) The effect of conditional confirmation is that the order—
 - (a) does not become operative until the confirming authority has decided, on an application by the acquiring authority, that certain conditions have been met, and
 - (b) expires if the confirming authority—
 - (i) has not received an application for the purposes of subsection [\(2\)\(a\)](#) by a certain time, or
 - (ii) having received such an application by that time, decides that the conditions have not been met.
 - (3) The conditions and the time are to be specified by the confirming authority when it confirms the order.
 - (4) The procedure to be followed in relation to an application under this section is to be prescribed.
 - (5) The regulations prescribing the procedure must include provision for each relevant objector—
 - (a) to be given notice of the application (or for steps to be taken with a view to notifying them), and
 - (b) to have the opportunity to make written representations in response to the application.
 - (6) In subsection [\(5\)](#), “relevant objector” means a person who made an objection to the order that—
 - (a) was a remaining objection for the purposes of section 13A, and
 - (b) had not been withdrawn by the time the order was confirmed.
 - (7) The regulations may include provision as to the giving of reasons for the decision on the application.
 - (8) Subsections (2) to (6) of section 13B apply to proceedings on an application under this section as they apply to the representations procedure.”
- (3) In section 15 (notices after confirmation of compulsory purchase order)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) in subsection (2)(b), for “date when the order becomes operative” substitute “day on which the authority takes the final step needed to comply with subsection (1)(a)”;
- (b) in subsection (3), at the beginning insert “Unless the order was confirmed conditionally,”;
- (c) in subsection (4), after paragraph (b) insert—
 - “(ba) if the order was confirmed conditionally, stating the conditions and time specified under section 13BA(3);”;
- (d) after subsection (4A) (inserted by section 181(6)) insert—
 - “(4B) If the order was confirmed conditionally and the confirming authority decides under section 13BA that the conditions have been met, the acquiring authority must serve—
 - (a) a copy of the order, and
 - (b) a fulfilment notice,on each person on whom a notice was required to be served under section 12.
 - (4C) Where subsection (4B) applies, the acquiring authority must also—
 - (a) affix a fulfilment notice to a conspicuous object or objects on or near the land comprised in the order, and
 - (b) publish a fulfilment notice—
 - (i) in one or more local newspapers circulating in the locality in which the land comprised in the order is situated, and
 - (ii) on an appropriate website, until the end of the period of 6 weeks beginning with the day on which the acquiring authority takes the final step needed to comply with subsection (4B).
 - (4D) The acquiring authority must comply with subsections (4B) and (4C)(a) and (b)(i) before the end of—
 - (a) the period of 6 weeks beginning with the day on which the decision under section 13BA is made, or
 - (b) such longer period beginning with that day as may be agreed in writing between the acquiring authority and the confirming authority.
 - (4E) If the acquiring authority fails to comply with those provisions before the end of that period, or fails to comply with subsection (4C)(b)(ii), the confirming authority may—
 - (a) take any steps that the acquiring authority was required but has failed to take to comply, and
 - (b) recover the reasonable costs of doing so from the acquiring authority
 - (4F) A fulfilment notice is a notice—
 - (a) stating that the conditions subject to which the order was confirmed have been met and that the order will therefore become operative, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) annexing the information that was contained in the confirmation notice.”;
- (e) in subsection (5), after “notice” insert “or fulfilment notice”;
- (f) in subsection (6)—
 - (i) after “notice” insert “, and any fulfilment notice,”;
 - (ii) for “it” substitute “each such notice”.
- (4) [Schedule 18](#) contains, and makes provision in connection with, amendments in consequence of this section and paragraph 3 of [Schedule 19](#).

Commencement Information

- I226** S. 183 not in force at Royal Assent, see [s. 255\(7\)](#)
- I227** [S. 183](#) in force at 31.3.2024 for specified purposes by [S.I. 2024/389](#), [reg. 2\(j\)](#)
- I228** [S. 183](#) in force at 18.2.2026 for specified purposes by [S.I. 2025/1370](#), [reg. 2\(1\)\(a\)\(2\)](#)
- I229** [S. 183\(4\)](#) in force at 2.12.2025 for specified purposes by [S.I. 2025/1262](#), [reg. 2\(1\)\(b\)](#)

184 Corresponding provision for purchases by Ministers

[Schedule 19](#) makes provision in relation to compulsory purchases by Ministers corresponding to the preceding provisions of this Part.

Commencement Information

- I230** S. 184 not in force at Royal Assent, see [s. 255\(7\)](#)
- I231** [S. 184](#) in force at 31.1.2024 for specified purposes by [S.I. 2024/92](#), [reg. 2\(k\)](#)
- I232** [S. 184](#) in force at 31.3.2024 for specified purposes by [S.I. 2024/389](#), [reg. 2\(k\)](#)
- I233** [S. 184](#) in force at 30.4.2024 for specified purposes by [S.I. 2024/389](#), [reg. 3\(b\)](#) (with [reg. 4](#))
- I234** [S. 184](#) in force at 2.12.2025 for specified purposes by [S.I. 2025/1262](#), [reg. 2\(1\)\(c\)\(2\)](#) (with [reg. 3](#))
- I235** [S. 184](#) in force at 18.2.2026 for specified purposes by [S.I. 2025/1370](#), [reg. 2\(1\)\(b\)\(2\)](#)

185 Time limits for implementation

- (1) In the Acquisition of Land Act 1981—
 - (a) after section 13C insert—

“13D Power to extend time limit for implementation

- (1) The confirming authority may, when it confirms a compulsory purchase order, include provision in the order specifying a period longer than three years for the purposes of section 4 of the Compulsory Purchase Act 1965 (time limit for notice to treat) and section 5A of the Compulsory Purchase (Vesting Declarations) Act 1981 (time limit for general vesting declaration).
- (2) No such provision is to be included by the acquiring authority in the order submitted for confirmation.”;
- (b) in paragraph 1 of Schedule 1 (preliminary provision about compulsory purchase by Ministers), after sub-paragraph (3) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(3A) The order may, in particular, include provision specifying a period longer than three years for the purposes of section 4 of the Compulsory Purchase Act 1965 (time limit for notice to treat) and section 5A of the Compulsory Purchase (Vesting Declarations) Act 1981 (time limit for general vesting declaration).”

(2) In the Compulsory Purchase Act 1965—

- (a) in section 4 (time limit for notice to treat)—
 - (i) the existing text becomes subsection (1);
 - (ii) in that subsection, for “period of 3 years” substitute “applicable period”;
 - (iii) after that subsection insert—

“(2) The applicable period is—

- (a) 3 years, or
 - (b) such longer period as is specified in the order for the purposes of this section.”;
- (b) in section 4A (extension of time limit during challenge), in subsection (1), for “three year period mentioned in” substitute “applicable period for the purposes of”.

(3) In the Compulsory Purchase (Vesting Declarations) Act 1981—

- (a) in section 5A (time limit for general vesting declaration)—
 - (i) the existing text becomes subsection (1);
 - (ii) in that subsection, for “period of 3 years” substitute “applicable period”;
 - (iii) after that subsection insert—

“(2) The applicable period is—

- (a) 3 years, or
 - (b) such longer period as is specified in the order for the purposes of this section.”;
- (b) in section 5B (extension of time limit during challenge), in subsection (1), for “three year period mentioned in” substitute “applicable period for the purposes of”.

(4) In section 582 of the Housing Act 1985 (suspension of recovery of possession of certain premises when compulsory purchase order made)—

- (a) in subsection (2)(a), for “third anniversary of” substitute “final day of the period of three years beginning with”;
- (b) after subsection (6) insert—

“(6A) If the compulsory purchase order specifies a period longer than three years under section 13D of the Acquisition of Land Act 1981, the references in this section to the period of three years are to be read as references to the period specified in the order.”

Commencement Information

I236 S. 185 not in force at Royal Assent, see [s. 255\(7\)](#)

I237 [S. 185](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(1\)](#) (with [reg. 6\(1\)](#))

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

186 Agreement to vary vesting date

- (1) The Compulsory Purchase (Vesting Declarations) Act 1981 is amended as set out in subsections (2) to (6).
- (2) In section 7 (constructive notice to treat), in subsection (1), at the beginning insert “Subject to section 8A,”.
- (3) In section 8 (vesting, entry and possession), in subsection (1), for “section” substitute “sections 8A and”.
- (4) After section 8 insert—

“8A Postponement of vesting by agreement

- (1) The acquiring authority may agree in writing with the owner of any interest which is to vest in the authority under section 8 that the interest is to vest on a date after the vesting date.
- (2) If such an agreement is in force on the vesting date, sections 7 and 8 operate in relation to the interest as if the vesting date were—
 - (a) the agreed date, or
 - (b) any date subsequently agreed under subsection (1).
- (3) If an interest subject to an agreement under this section entitles the owner to possession of the land concerned, the right to enter upon and take possession of the land given by section 8 does not arise until the interest vests in accordance with this section.”
- (5) In section 10 (compensation), after subsection (1) insert—

“(1A) But if an agreement under section 8A is in force in relation to an interest in the land when the land becomes vested apart from that interest, subsection (1) does not give rise to any liability in relation to the interest until it becomes vested.”
- (6) In paragraph 5 of Schedule A1 (definitions for the purposes of the Schedule)—
 - (a) the existing text become sub-paragraph (1);
 - (b) in that sub-paragraph, in the definition of “original vesting date”, after “is” insert “, subject to sub-paragraph (2),”;
 - (c) after that sub-paragraph insert—

“(2) If an agreement under section 8A is in force in respect of the interest which gives the owner the ability to sell the land proposed to be acquired, the “original vesting date” is the date on which the interest is to vest as a result of the agreement.”
- (7) In section 5A of the Land Compensation Act 1961 (valuation date)—
 - (a) in subsection (4), after “date is” insert “, subject to subsection (4A),”;
 - (b) after subsection (4) insert—

“(4A) If an interest in land vests in accordance with an agreement under section 8A of that Act (postponement of vesting), the relevant valuation date in respect of that interest is the earlier of—

 - (a) the date on which it vests, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) the date when the assessment is made.”;
- (c) in subsection (5B)(b), after “is” insert “, as a result of Schedule A1 to the Compulsory Purchase (Vesting Declarations) Act 1981 (counter-notices in respect of divided land),”.

Commencement Information

I238 S. 186 not in force at Royal Assent, see [s. 255\(7\)](#)

I239 [S. 186](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(m\)](#) (with [reg. 6\(2\)](#))

187 Common standards for compulsory purchase data

- (1) The Secretary of State may, by regulations, make provision requiring an acquiring authority, in preparing, holding or providing such of its relevant compulsory purchase data as is specified or described in the regulations, to comply with any approved data standards which are applicable.
- (2) “Acquiring authority” means any person who is, or may be, authorised under an enactment to acquire land compulsorily.
- (3) “Approved data standards”, in relation to relevant compulsory purchase data, are such written standards, containing technical specifications or other requirements in relation to the data, or in relation to preparing, holding or providing the data, as may be published by the Secretary of State from time to time.
- (4) “Relevant compulsory purchase data” means information that is, or is to be, contained in relevant compulsory purchase documentation.
- (5) “Relevant compulsory purchase documentation” means an order or notice or any other documentation that is, or is to be, prepared by an acquiring authority (acting as such) under or for the purposes of relevant compulsory purchase legislation.
- (6) “Relevant compulsory purchase legislation” means provision made by or under—
 - (a) the Land Compensation Act 1961,
 - (b) the Compulsory Purchase Act 1965,
 - (c) the Land Compensation Act 1973,
 - (d) sections 10 to 16 of, and Schedules 4 and 5 to, the New Towns Act 1981,
 - (e) the Compulsory Purchase (Vesting Declarations) Act 1981,
 - (f) the Acquisition of Land Act 1981,
 - (g) section 9 of the Tribunals and Inquiries Act 1992,
 - (h) Part 7 of the Housing and Planning Act 2016, or
 - (i) Chapter 1 of Part 2 of the Neighbourhood Planning Act 2017.
- (7) “Providing”, in subsection (1), includes submitting, issuing, serving, notifying and publishing.

Commencement Information

I240 S. 187 not in force at Royal Assent, see [s. 255\(7\)](#)

I241 [S. 187](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(n\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Compensation

188 ‘No-scheme’ principle: minor amendments

- (1) In section 6D of the Land Compensation Act 1961 (no-scheme principle)—
 - (a) in subsection (3), for “regeneration or redevelopment” substitute “development”;
 - (b) in subsection (4)(a), for “regeneration or redevelopment” substitute “development for which the land is acquired”;
 - (c) after subsection (6) insert—

“(7) In this section and section 6E, “development” includes re-development, regeneration and improvement.”
- (2) In section 6E of that Act (further provision about inclusion of transport projects in “scheme” for purposes of no-scheme principle)—
 - (a) in subsection (2)(a), for “regeneration or redevelopment” substitute “the development of land in the vicinity of land comprised in the relevant transport project”;
 - (b) in subsection (2)(c), omit “for regeneration or redevelopment”;
 - (c) in subsection (3), for “8 September 2016” substitute “the relevant date”;
 - (d) after subsection (3) insert—

“(3A) The “relevant date” is—

 - (a) 8 September 2016, in a case where the land is acquired for regeneration or redevelopment and regeneration or redevelopment was part of the published justification for the relevant transport project;
 - (b) in any other case, the first day after the period of three months beginning with the day on which section 188 of the Levelling-up and Regeneration Bill comes into force.”

Commencement Information

I242 S. 188 not in force at Royal Assent, see [s. 255\(7\)](#)

I243 [S. 188](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(o\)](#)

189 Prospects of planning permission for alternative development

- (1) The Land Compensation Act 1961 is amended as follows.
- (2) In section 14 (taking account of actual or prospective planning permission in valuing land)—
 - (a) in subsection (2), for paragraph (b) substitute—

“(b) of the prospect of planning permission being granted on or after that date for development, whether on the relevant land or other land, other than development for which planning permission is in force at the relevant valuation date.”;
 - (b) for subsections (3) and (4) substitute—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(2A) If a description of development is certified under section 17 as appropriate alternative development in relation to the relevant land (or any part of it), it is to be taken as certain for the purposes of subsection (2)(b) that—

- (a) planning permission for development of that description would be (or would have been) granted on the relevant valuation date, and
- (b) the permission would be (or would have been) granted in accordance with any indication given under section 17(5B).

(2B) In relation to any other development, the prospects of planning permission are to be assessed for the purposes of subsection (2)(b)—

- (a) on the assumptions set out in subsection (5), and
- (b) otherwise, in the circumstances known to the market at the relevant valuation date.”;

- (c) in subsection (5), in the words before paragraph (a), for “subsections (2)(b) and (4)(b)” substitute “subsection (2B)(a) (and in section 17(1B)(a))”;
- (d) in subsection (9), in the words before paragraph (a), for the words from “to” to “15(1)(b)” substitute “in subsection (2) to planning permission that is in force”.

(3) In section 17 (certification of appropriate alternative development)—

- (a) in subsection (1), for the words from “containing” to the end substitute “stating that a certain description of development is appropriate alternative development in relation to the acquisition”;
- (b) after subsection (1) insert—

“(1A) Development is “appropriate alternative development” for this purpose if it is development—

- (a) on the land in which the interest referred to in subsection (1) subsists (whether alone or together with other land),
- (b) for which planning permission is not in force at the relevant planning date, and
- (c) in respect of which the following test is met.

(1B) The test is whether, had an application for planning permission for the development been determined on the relevant planning date, the local planning authority would have been more likely than not to grant the permission—

- (a) on the assumptions set out in section 14(5),
- (b) on the assumption that it would act lawfully, and
- (c) otherwise, in the circumstances known to the market at the relevant planning date.

(1C) For the purposes of subsections (1A) and (1B), the “relevant planning date” is—

- (a) the relevant valuation date, or
- (b) if earlier, the date on which the application under this section is determined.”;
- (c) in subsection (3), for paragraphs (a) and (b) substitute—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- “(ba) must set out the applicant’s reasons for considering that the description of development given in the application is appropriate alternative development, and”;
 - (d) for subsections (5) to (8) substitute—
 - “(5A) The local planning authority may issue a certificate under this section in respect of—
 - (a) the description of development given in the application for the certificate, or
 - (b) a description of development less extensive than, but otherwise falling within, the description given in the application.
 - (5B) A certificate under this section must give a general indication of—
 - (a) any conditions to which planning permission for the development would have been subject, and
 - (b) any pre-condition for granting the permission (for example, entry into an obligation) that would have had to be met.
 - (5C) The test to be applied for the purposes of subsection (5B) is whether the local planning authority would have been more likely than not to impose such conditions, or insist on such a pre-condition, on the assumptions, and otherwise in the circumstances, referred to in subsection (1B).”;
 - (e) in subsection (10)—
 - (i) for “there must be taken into account any expenses reasonably” substitute “no account is to be taken of any expenses”;
 - (ii) omit the words from “where” to “favour”.
- (4) In section 18 (appeals to Upper Tribunal)—
 - (a) in subsection (2)—
 - (i) after paragraph (a) (but before the “and” at the end) insert—
 - “(aa) must consider those matters as if, in subsections (1B) and (5C), the references to the local planning authority were references to a reasonable planning authority.”;
 - (ii) in paragraph (b), after sub-paragraph (ii) insert—
 - “(ia) cancel it, or”;
 - (b) after subsection (2) insert—
 - “(2A) Where the local planning authority have rejected an application for a certificate under section 17, the person who applied for the certificate may appeal to the Upper Tribunal against the rejection.
 - (2B) On an appeal under subsection (2A)—
 - (a) paragraphs (a) and (aa) of subsection (2) apply as on an appeal under subsection (1), and,
 - (b) the Upper Tribunal must—
 - (i) confirm the rejection, or
 - (ii) issue a certificate,
 as the Upper Tribunal may consider appropriate.”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) in subsection (3), for the words from “the preceding” to the end substitute “subsection (2A) applies as if the local planning authority have rejected the application”;
- (d) after subsection (3) insert—
 - “(4) The references in sections 14(2A) and 17(5A) and (5B) to a certificate under section 17 include a certificate issued, or as varied, by the Upper Tribunal under this section.”
- (5) In section 19 (applications by surveyors)—
 - (a) in subsection (3), for “paragraphs (a) and (b)” substitute “paragraph (ba)”;
 - (b) after that subsection insert—
 - “(4) In the application of section 18 by virtue of subsection (1)—
 - (a) subsection (1)(a) of that section is to be read as if it included the surveyor, and
 - (b) subsection (2A) of that section is to be read as if the reference to the person who applied for the certificate included the person entitled to the interest.”
- (6) In section 20(a) (power to prescribe time limit for issuing certificate under section 17), for the words from “time” to the end substitute “period within which an application under that section is to be determined”.
- (7) In section 22 (interpretation of Part 3), after subsection (2) insert—
 - “(2A) The completion of the acquisition or purchase referred to in the applicable paragraph of subsection (2) does not affect the continued application of that subsection.”

Commencement Information

I244 S. 189 not in force at Royal Assent, see s. 255(7)

I245 S. 189 in force at 31.1.2025 by S.I. 2024/92, reg. 5 (with reg. 6(3)-(5))

190 Power to require prospects of planning permission to be ignored

- (1) In the Acquisition of Land Act 1981—
 - (a) in section 7(3) (regulations subject to negative procedure), before “paragraph 4A” insert “section 15A(11) or”;
 - (b) in section 14A (confirmation by acquiring authority), after subsection (2) insert—
 - “(2A) Nor does it apply to an order directing that compensation is to be assessed in accordance with section 14A of the Land Compensation Act 1961 (see section 15A).”;
 - (c) after section 15 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“Special provision about compensation

15A Directions applying section 15A 14A of the Land Compensation Act 1961

- (1) Subsection (2) applies if—
 - (a) an acquiring authority submits a compulsory purchase order for confirmation, and
 - (b) the authorising enactment is listed in [Schedule 2A](#).
- (2) The acquiring authority may include in the order a direction that compensation is to be assessed in accordance with section 14A of the Land Compensation Act 1961 (cases where prospect of planning permission to be ignored); and if it does so the following provisions of this section apply.
- (3) The acquiring authority must submit to the confirming authority a statement of commitments together with the order.
- (4) A “statement of commitments” is a statement of the acquiring authority’s intentions as to what will be done with the project land should the acquisition proceed, so far as the authority relies on those intentions in contending that the direction is justified in the public interest.
- (5) If the authorising enactment is listed in any of paragraphs 2 to 7 of [Schedule 2A](#), those intentions must include the provision of a certain number of units of affordable housing.
- (6) The statement under section 12(1)(a) must include a statement of the effect of the direction; and paragraphs (ba) and (bb) of the same subsection apply in respect of the statement of commitments as they apply in respect of the compulsory purchase order.
- (7) The confirming authority may permit the acquiring authority to amend the statement of commitments before the decision whether to confirm the order is made.
- (8) But the confirming authority may do so—
 - (a) only if satisfied that the amendment would not be unfair to any person who made or could have made a relevant objection for the purposes of section 13, and
 - (b) if the authorising enactment is listed in any of paragraphs 2 to 7 of [Schedule 2A](#), only if the statement of commitments as amended will still comply with subsection (5).
- (9) If the confirming authority decides to confirm the order in accordance with the applicable provisions of this Part—
 - (a) it may confirm the order with the direction included if satisfied that the direction is justified in the public interest;
 - (b) otherwise, it must modify the order so as to remove the direction.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (10) If the order is confirmed with the direction included, a confirmation notice under section 15 must (in addition to the matters set out in subsection (4) of that section)—
- (a) state the effect of the direction,
 - (b) explain how the statement of commitments may be viewed, and
 - (c) explain that additional compensation may become payable if the statement of commitments is not fulfilled.
- (11) In this section—
- “the authorising enactment” means the enactment that confers the power to make the compulsory purchase to which the order in question relates;
- “the project land” means—
- (a) the land proposed to be acquired further to the compulsory purchase order, and
 - (b) any other land that the acquiring authority intends to be used in connection with that land;
- “unit of affordable housing” means a building or part of a building that is constructed or adapted for use as a separate dwelling and—
- (a) in the case of a building in England, is to be used as—
 - (i) social housing within the meaning of Part 2 of the Housing and Regeneration Act 2008, or
 - (ii) housing of any other description that is prescribed, or
 - (b) in the case of a building in Wales, is to be used as housing of a description that is prescribed.”;
- (d) after Schedule 2 insert—

“SCHEDULE 2A Section 15A

ENACTMENTS ELIGIBLE FOR DIRECTIONS APPLYING
SECTION 14A OF THE LAND COMPENSATION ACT 1961

Enactments authorising acquisitions for purposes including housing

- 1 Section 21A(1)(c) and (2)(c) of the Welsh Development Agency Act 1975 (acquisition by Welsh Ministers of land in England for Welsh development purposes).
- 2 Section 142 of the Local Government, Planning and Land Act 1980 (acquisition by urban development corporation).
- 3 Section 17 of the Housing Act 1985 (acquisition by local housing authority).
- 4 Section 226 of the Town and Country Planning Act 1990 (acquisition by local authority for development or planning purposes).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- 5 Section 333ZA of the Greater London Authority Act 1999 (acquisition by Greater London Authority for housing or regeneration purposes).
- 6 Section 9 of the Housing and Regeneration Act 2008 (acquisition by the Homes and Communities Agency).
- 7 Section 207 of the Localism Act 2011 (acquisition by mayoral development corporation).

Enactments authorising acquisitions for purposes of the NHS

- 8 Paragraph 46 of Schedule 4 to the Health and Social Care (Community Health and Standards) Act 2003 (acquisition by NHS foundation trust).
- 9 Paragraph 27 of Schedule 4 to the National Health Service Act 2006 (acquisition by NHS trust).
- 10 In the National Health Service (Wales) Act 2006—
 - (a) paragraph 20 of Schedule 2 (acquisition by local health board);
 - (b) paragraph 27 of Schedule 3 (acquisition by NHS trust).

Enactment authorising acquisitions for educational purposes

- 11 Section 530 of the Education Act 1996 (acquisition by local authority for purposes of educational institution or function)."

(2) In the Land Compensation Act 1961—

- (a) after section 14 insert—

“14A Cases where prospect of planning permission to be ignored

- (1) The following provisions apply in relation to an acquisition if the compulsory purchase order authorising the acquisition directs that compensation is to be assessed in accordance with this section.
- (2) Section 14 does not apply.
- (3) In assessing the value of land in accordance with rule (2) in section 5, it is to be assumed that no planning permission would be granted for development on the relevant land (whether alone or together with other land).
- (4) Subsection (3) does not prevent account being taken of planning permission that has already been granted.
- (5) Subsection (3) does not apply in relation to development consisting of the use as two or more separate dwellings of any building previously used as a single dwelling.
- (6) [Schedule 2A](#) provides for the payment of additional compensation in respect of the acquisition in certain circumstances.”;
- (b) in section 32 (interest from entry on land), after subsection (2) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- “(3) This section does not apply in relation to additional compensation payable under [Schedule 2A](#).”;
- (c) after the second Schedule insert—

“SCHEDULE 2A Section [14A\(6\)](#)

ADDITIONAL COMPENSATION WHERE SECTION [14A](#) APPLIED

Directions for additional compensation

- 1 (1) This paragraph applies if—
- (a) an interest in land has been acquired further to a compulsory purchase order, and
 - (b) the order directed that compensation was to be assessed in accordance with section [14A](#).
- (2) The confirming authority must, on an application by an eligible person, make a direction for additional compensation if it appears to the confirming authority that the following conditions are met.
- (3) Those conditions are—
- (a) that the statement of commitments has not been fulfilled,
 - (b) either—
 - (i) that the period of 10 years beginning with the date on which the compulsory purchase order became operative has expired, or
 - (ii) that there is no longer any realistic prospect of the statement of commitments being fulfilled within that period, and
 - (c) that the initial direction would not have been confirmed on the basis of a statement of commitments reflecting what has in fact been done with the project land since its acquisition.
- (4) In sub-paragraph (3)—
- “the statement of commitments” means the statement of commitments submitted in connection with the compulsory purchase order under section [15A\(3\)](#) of the Acquisition of Land Act 1981 (and if the statement was amended after its submission, means the statement as amended);
- “the initial direction” means the direction referred to in sub-paragraph (1)(b) (and that direction was “confirmed” when the compulsory purchase order was confirmed with the inclusion of the direction);
- “the project land” means the land treated as the project land for the purposes of the statement of commitments;
- and that statement is “fulfilled” if what is done with that land after its acquisition is materially in accordance with the statement.
- (5) The effect of a direction for additional compensation is that each eligible person may make a claim to the acquiring authority for

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

any additional compensation in respect of the acquisition payable to the person under this Schedule.

- (6) A person is an “eligible person” for the purposes of this Schedule if the person was entitled to compensation in respect of the acquisition (and see also paragraph 4(1)).

Amount of additional compensation

- 2 (1) Additional compensation in respect of an acquisition is payable to an eligible person only if, in relation to that person, the alternative amount is greater than the original amount.
- (2) The amount payable is the difference between the two amounts.
- (3) The “original amount” is the amount of compensation awarded or agreed to be paid to the person in respect of the acquisition.
- (4) The “alternative amount” is the amount of compensation that would have been assessed as due to the person in respect of the acquisition had compensation been assessed without the application of section 14A.
- (5) If the original amount was agreed, the relevant valuation date for the purposes of the assessment imagined under sub-paragraph (4) is the date on which the agreement was concluded.
- (6) In relation to the determination of an amount of additional compensation under this Schedule, section 17(2)(b) applies as if its reference to the amount of compensation were to the amount of additional compensation.
- (7) A certificate issued under section 17 (or 18) after the award or agreement referred to in sub-paragraph (3) is to have effect for the purposes of the assessment imagined under sub-paragraph (4) as if it had been issued before that assessment.
- (8) Any amount of compensation that is or would be attributable to disturbance, severance or injurious affection is to be ignored for the purposes of sub-paragraphs (3) and (4).

Time limit for application for direction

- 3 An application under paragraph 1(2) may not be made after the expiry of the period of 13 years beginning with the date on which the compulsory purchase order became operative.

Mortgages

- 4 (1) For the purposes of this Schedule an “eligible person” includes a person who would have been entitled to compensation in respect of the acquisition but for the existence of a mortgage (but the mortgage is in that case still to be taken into account in determining the original and alternative amounts under paragraph 2).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) An amount agreed or awarded to be paid to a mortgagee under section 15 or 16 of the Compulsory Purchase Act 1965 in respect of the acquisition is to be treated for the purposes of this Schedule as compensation in respect of the acquisition.
- (3) The reference in sub-paragraph (2) to an amount paid under section 15 or 16 of the Compulsory Purchase Act 1965 (“the applicable section”) includes an amount paid under section 52ZA or 52ZB of the Land Compensation Act 1973 and taken into account by virtue of section 52ZC(7)(d) of that Act for the purposes of the applicable section.
- (4) Additional compensation payable under this Schedule to a person in the person’s capacity as a mortgagee (or to a person exercising rights of a mortgagee) is to be applied towards the discharge of the sums secured by the mortgage.
- (5) If there is no remaining sum secured by the mortgage, the additional compensation that would be payable as described in sub-paragraph (4) is instead payable to the person who is an eligible person by virtue of the interest that was subject to the mortgage.
- (6) If the additional compensation that would be payable as described in sub-paragraph (4) exceeds the total of the remaining sums secured by the mortgage, the amount of the excess is instead payable to the person who is an eligible person by virtue of the interest that was subject to the mortgage.

Successors-in-title

- 5 (1) This paragraph applies if, had the compensation to which an eligible person was entitled in respect of the acquisition remained unpaid, the right to be paid it would now vest in some other person (assuming that it remained enforceable and any obligations in respect of the right had been complied with).
- (2) If the eligible person is still alive or in existence, the rights that the eligible person would have under this Schedule are exercisable by the other person and not by the eligible person.
- (3) If the eligible person is no longer alive or in existence, the rights that the eligible person would have under this Schedule if that person were still alive or in existence are exercisable by the other person.
- (4) The right exercisable by the other person under sub-paragraph (2) or (3) is subject to any restriction, condition or other incident to which the right vested in that person as imagined under sub-paragraph (1) would be subject.
- (5) Additional compensation paid to the other person by virtue of sub-paragraph (2) or (3) must be dealt with by the person in any way in which the person would have to deal with compensation

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

paid to that person further to the right vested in that person as imagined under sub-paragraph (1).

- (6) If a person is an eligible person by virtue of paragraph 4(1), the reference in sub-paragraph (1) to compensation to which the person was entitled is to be read as a reference to the compensation to which the person would have been entitled but for the mortgage.

Consequential losses

- 6 (1) The relevant authority may by regulations provide for additional compensation payable on a claim under paragraph 1(5) to include (in addition to any amount payable under paragraph 2) an amount to make good qualifying losses.
- (2) “Qualifying losses” are financial losses shown to have been suffered by an eligible person, or a person entitled to exercise the rights of the eligible person under paragraph 5, as a result of the compensation initially payable to the eligible person in respect of the acquisition being of the original amount rather than the alternative amount.
- (3) In the case of an eligible person who is so by virtue of an interest that was subject to a mortgage, the reference in sub-paragraph (2) to compensation payable to the eligible person is to be taken to include compensation payable to the mortgagee of that interest.
- (4) Regulations under this paragraph may limit the qualifying losses in respect of which additional compensation is payable under the regulations by reference to—
- (a) a description of loss,
 - (b) an amount, or
 - (c) any other circumstance.

Procedure etc

- 7 (1) The relevant authority may by regulations make provision—
- (a) about the procedure for applications under paragraph 1(2) or claims under paragraph 1(5) (including provision about the costs of such applications or claims);
 - (b) about steps that must be taken by the acquiring authority or the confirming authority for the purposes of publicising or giving notice of a direction for additional compensation;
 - (c) for interest to be applied to amounts of additional compensation that are payable;
 - (d) about how or when additional compensation (and any interest) is to be paid.
- (2) Regulations under this paragraph about costs of claims under paragraph 1(5)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) may modify or disapply section 29 of the Tribunals, Courts and Enforcement Act 2007 (costs or expenses) or provisions in Tribunal Procedure Rules relating to costs;
 - (b) may apply (with or without modifications) section 4 of this Act;
- and section 4 of this Act does not apply in relation to such a claim unless so applied.

Regulations

- 8 (1) For the purposes of this Schedule “the relevant authority” is—
- (a) the Secretary of State, in relation to England;
 - (b) the Welsh Ministers, in relation to Wales.
- (2) Regulations under this Schedule may make—
- (a) consequential, supplementary, incidental, transitional or saving provision;
 - (b) different provision for different purposes.
- (3) Regulations under this Schedule are to be made by statutory instrument.
- (4) A statutory instrument containing such regulations is subject to annulment in pursuance of—
- (a) a resolution of either House of Parliament, in the case of regulations made by the Secretary of State, or
 - (b) a resolution of Senedd Cymru, in the case of regulations made by the Welsh Ministers.

Interpretation

- 9 (1) In this Schedule—
- (a) “the confirming authority” means—
 - (i) the person who confirmed the compulsory purchase order, or
 - (ii) any successor to that person’s function of confirming compulsory purchase orders of the type in question;
 - (b) references to “the acquisition” or “the compulsory purchase order” are to the acquisition or order by virtue of which paragraph 1 applies;
 - (c) references to the acquisition of an interest in land include—
 - (i) the creation of such an interest, and
 - (ii) the acquisition or creation of a right in or over land;

and references to interests in land are to be read accordingly.
- (2) In the case of a compulsory purchase order made under section 10(1) of, and Part 1 of Schedule 4 to, the New Towns

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Act 1981 (compulsory acquisition by new town development corporation in usual cases), the reference in paragraph 1(4) to section 15A(3) of the Acquisition of Land Act 1981 is to be read as a reference to paragraph 5A(2) of Schedule 4 to the New Towns Act 1981.

- (3) In the case of a compulsory purchase order made under section 13(1)(a) of, and Part 1 of Schedule 5 to, the New Towns Act 1981 (compulsory acquisition by new town development corporation of statutory undertakers' operational land)—
 - (a) the reference in paragraph 1(4) to section 15A(3) of the Acquisition of Land Act 1981 is to be read as a reference to paragraph 5A(2) of Schedule 5 to the New Towns Act 1981, and
 - (b) the references in paragraph 1(4) and sub-paragraph (1)(a) to the confirmation of the order are to be read as references to the making of the order.
- (4) In the case of a compulsory purchase order made under section 21A(1)(b) or (2)(b) of the Welsh Development Agency Act 1975 (compulsory acquisition by Welsh Ministers of land in Wales for Welsh development purposes)—
 - (a) the reference in paragraph 1(4) to submission under section 15A(3) of the Acquisition of Land Act 1981 is to be read as a reference to preparation under paragraph 3B(2) of Schedule 4 to the Welsh Development Agency Act 1975, and
 - (b) the references in paragraph 1(4) and sub-paragraph (1)(a) to the confirmation of the order are to be read as references to the making of the order.
- (5) If—
 - (a) an interest in land is acquired further to section 154(2) of the Town and Country Planning Act 1990 (deemed compulsory acquisition further to blight notice), and
 - (b) the land falls within paragraph 22 of Schedule 13 to that Act (land blighted by compulsory purchase order),
 the interest is to be treated for the purposes of this Schedule as having been acquired further to the compulsory purchase order by virtue of which the land falls within that paragraph.”

(3) In the New Towns Act 1981—

- (a) in Schedule 4 (procedure for compulsory acquisition by new town development corporation in usual cases), after paragraph 5 insert—

“5A (1) A development corporation submitting an order to the Secretary of State under this Part of this Schedule may include in the order a direction that compensation is to be assessed in accordance with section 14A of the Land Compensation Act 1961 (cases where prospect of planning permission to be ignored); and if it does so the following provisions of this paragraph apply.

- (2) The corporation must submit a statement of commitments together with the order.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3) A “statement of commitments” is a statement of the corporation’s intentions as to what will be done with the project land should the acquisition proceed, so far as the corporation relies on those intentions in contending that the direction is justified in the public interest.
- (4) Those intentions must include the provision of a certain number of units of affordable housing.
- (5) The notice under paragraph 2(1) must—
 - (a) state the effect of the direction, and
 - (b) name a place where a copy of the statement of commitments may be seen at any reasonable hour.
- (6) The Secretary of State may permit the corporation to amend the statement of commitments before the decision whether to confirm the order is made.
- (7) But the Secretary of State may do so—
 - (a) only if satisfied that the amendment would not be unfair to any person who duly made or could duly have made an objection for the purposes of paragraph 4, and
 - (b) only if the statement of commitments as amended will still comply with sub-paragraph (4).
- (8) If the Secretary of State decides to confirm the order under paragraph 3, the Secretary of State—
 - (a) may confirm the order with the direction included if satisfied that the direction is justified in the public interest;
 - (b) otherwise, must modify the order so as to remove the direction.
- (9) If the order is confirmed with the direction included, the notice under paragraph 5 must—
 - (a) state the effect of the direction,
 - (b) explain how the statement of commitments may be viewed, and
 - (c) explain that additional compensation may become payable if the statement of commitments is not fulfilled.
- (10) In this paragraph—

“the project land” means—

 - (a) the land proposed to be acquired further to the compulsory purchase order, and
 - (b) any other land that the corporation intends to be used in connection with that land;

“unit of affordable housing” means a building or part of a building that is constructed or adapted for use as a separate dwelling and—

 - (a) in the case of a building in England, is to be used as—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (i) social housing within the meaning of Part 2 of the Housing and Regeneration Act 2008, or
 - (ii) housing of any other description that is set out in regulations made by the Secretary of State, or
 - (b) in the case of a building in Wales, is to be used as housing of a description that is set out in regulations made by the Welsh Ministers.”;
- (b) in Schedule 5 (procedure for compulsory acquisition by new town development corporation of statutory undertaker’s operational land), after paragraph 5 insert—
 - “5A (1) A development corporation making an application under this Part of this Schedule may include in the application a request for a direction that compensation is to be assessed in accordance with section 14A of the Land Compensation Act 1961 (cases where prospect of planning permission to be ignored); and if it does so the following provisions of this paragraph apply.
 - (2) The corporation must submit a statement of commitments together with the application.
 - (3) A “statement of commitments” is a statement of the corporation’s intentions as to what will be done with the project land should the acquisition proceed, so far as the corporation relies on those intentions in contending that the direction would be justified in the public interest.
 - (4) Those intentions must include the provision of a certain number of units of affordable housing.
 - (5) The notice under paragraph 2 must—
 - (a) state that the request has been made and what the effect of the direction would be, and
 - (b) name a place where a copy of the statement of commitments may be seen at all reasonable hours.
 - (6) The Secretary of State and the appropriate Minister may permit the corporation to amend the statement of commitments before the decision whether to make an order on the application is made.
 - (7) But they may do so—
 - (a) only if satisfied that the amendment would not be unfair to any person who duly made or could duly have made an objection for the purposes of paragraph 3, and
 - (b) only if the statement of commitments as amended will still comply with sub-paragraph (4).
 - (8) If the Secretary of State and the appropriate Minister decide to make an order on the application under paragraph 3, they may include the direction in the order only if satisfied that the direction is justified in the public interest.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (9) If an order is made with the direction included, the notice under paragraph 5 must—
 - (a) state the effect of the direction,
 - (b) explain how the statement of commitments may be viewed, and
 - (c) explain that additional compensation may become payable if the statement of commitments is not fulfilled.
 - (10) In this paragraph—
 - “the project land” means—
 - (a) the land proposed to be acquired further to the compulsory purchase order, and
 - (b) any other land that the corporation intends to be used in connection with that land;
 - “unit of affordable housing” means a building or part of a building that is constructed or adapted for use as a separate dwelling and—
 - (a) in the case of a building in England, is to be used as—
 - (i) social housing within the meaning of Part 2 of the Housing and Regeneration Act 2008, or
 - (ii) housing of any other description that is set out in regulations made by the Secretary of State, or
 - (b) in the case of a building in Wales, is to be used as housing of a description that is set out in regulations made by the Welsh Ministers.”

(4) In Part 1 of Schedule 4 to the Welsh Development Agency Act 1975 (procedure for compulsory acquisition under that Act), after paragraph 3A insert—

“3B (1) Where the Welsh Ministers prepare a compulsory purchase order in draft under section 21A(1)(b) or (2)(b), they may include in the draft order a direction that compensation is to be assessed in accordance with section 14A of the Land Compensation Act 1961 (cases where prospect of planning permission to be ignored); and if they do so the following provisions of this paragraph apply.

 - (2) The Welsh Ministers must prepare a statement of commitments together with the draft order.
 - (3) A “statement of commitments” is a statement of the Welsh Ministers’ intentions as to what will be done with the project land should the acquisition proceed, so far as they rely on those intentions in contending that the direction is justified in the public interest.
 - (4) Those intentions must include the provision of a certain number of units of affordable housing.
 - (5) The statement under paragraph 3(1)(a) of Schedule 1 to the 1981 Act must include a statement of the effect of the direction; and paragraphs (ba)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

and (bb) of the same sub-paragraph apply in respect of the statement of commitments as they apply in respect of the draft order.

- (6) The Welsh Ministers may amend the statement of commitments before the compulsory purchase order is made.
- (7) But they may do so—
 - (a) only if satisfied that the amendment would not be unfair to any person who made or could have made a relevant objection for the purposes of paragraph 4 of Schedule 1 to the 1981 Act, and
 - (b) only if the statement of commitments as amended will still comply with sub-paragraph (4).
- (8) If the Welsh Ministers decide to make the compulsory purchase order in accordance with the applicable provisions of Schedule 1 to the 1981 Act—
 - (a) they may make the order with the direction included if satisfied that the direction is justified in the public interest;
 - (b) otherwise, they must modify the draft of the order so as to remove the direction.
- (9) If the order is made with the direction included, a making notice under paragraph 6 of Schedule 1 to the 1981 Act must (in addition to the matters set out in sub-paragraph (4) of that paragraph)—
 - (a) state the effect of the direction,
 - (b) explain how the statement of commitments may be viewed, and
 - (c) explain that additional compensation may become payable if the statement of commitments is not fulfilled.
- (10) In this paragraph—

“the project land” means—

 - (a) the land proposed to be acquired further to the compulsory purchase order, and
 - (b) any other land that the Welsh Ministers intend to be used in connection with that land;

“unit of affordable housing” means a building or part of a building that is constructed or adapted for use as a separate dwelling and—

 - (a) in the case of a building in Wales, is to be used as housing of a description that is set out in regulations made by the Welsh Ministers, or
 - (b) in the case of a building in England, is to be used as—
 - (i) social housing within the meaning of Part 2 of the Housing and Regeneration Act 2008, or
 - (ii) housing of any other description that is set out in regulations made by the Secretary of State.
- (11) A statutory instrument containing regulations under sub-paragraph (10) is subject to annulment in pursuance of a resolution of—
 - (a) Senedd Cymru, in the case of regulations made by the Welsh Ministers, or
 - (b) either House of Parliament, in the case of regulations made by the Secretary of State.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (5) In section 157 of TCPA 1990 (special provisions as to compensation for acquisitions further to blight notices), before subsection (1) insert—

“(A1) Where—

- (a) an interest in land is acquired in pursuance of a blight notice,
- (b) the interest is one in respect of which a compulsory purchase order is in force, and
- (c) the order directs that compensation is to be assessed in accordance with section 14A of the Land Compensation Act 1961,

the compensation payable for the acquisition is to be assessed in accordance with that direction and as if the notice to treat deemed to have been served in respect of the interest under section 154 had been served in pursuance of the compulsory purchase order.”

Commencement Information

I246 S. 190 not in force at Royal Assent, see [s. 255\(7\)](#)

I247 [S. 190](#) in force at 31.3.2024 for specified purposes for W. by [S.I. 2024/389](#), [reg. 2\(l\)](#)

I248 [S. 190](#) in force at 30.4.2024 for E. by [S.I. 2024/92](#), [reg. 4](#) (with [reg. 6\(6\)](#))

PART 10

LETTING BY LOCAL AUTHORITIES OF VACANT HIGH-STREET PREMISES

Significant concepts

191 Designated high streets and town centres

- (1) A local authority may designate a street in its area as a high street for the purposes of this Part if it considers that the street is important to the local economy because of a concentration of high-street uses of premises on the street.
- (2) A local authority may designate an area within its area as a town centre for the purposes of this Part if—
 - (a) the built environment of the area is characterised principally by a network of streets, and
 - (b) the authority considers that the area is important to the local economy because of a concentration of high-street uses of premises in the area.
- (3) A street or area is not to be designated, however, if the authority considers that its importance derives principally from goods or services purchased in the course of business.
- (4) A designation under this section may be varied or withdrawn at any time.
- (5) A local authority must maintain and make available to the public a list describing, and a map showing, any designations under this section that are in force in its area.
- (6) A designation under this section is a local land charge.
- (7) In this Part—

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

“designated high street” means a street for the time being designated under subsection (1);

“designated town centre” means an area for the time being designated under subsection (2).

Commencement Information

I249 S. 191 not in force at Royal Assent, see [s. 255\(7\)](#)

I250 [S. 191](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

192 High-street uses and premises

- (1) For the purposes of this Part, any use of premises that falls within any of the following sub-paragraphs is a “high-street use”—
 - (a) use as a shop or office;
 - (b) use for the provision of services to persons who include visiting members of the public;
 - (c) use as a restaurant, bar, public house, café or other establishment selling food or drink for immediate consumption;
 - (d) use for public entertainment or recreation;
 - (e) use as a communal hall or meeting-place;
 - (f) use for manufacturing or other industrial processes of a sort that can (in each case) reasonably be carried on in proximity to, and compatibly with, the preceding uses.
- (2) For the purposes of this Part, premises are “qualifying high-street premises” if—
 - (a) they are situated on a designated high street or in a designated town centre, and
 - (b) the local authority considers them to be suitable for a high-street use.
- (3) But premises are not “qualifying high-street premises” if they are, or when last used were, used wholly or mainly as a warehouse.
- (4) For the purposes of this Part, “suitable high-street use”, in relation to premises, means a high-street use for which the local authority considers the premises to be suitable.
- (5) In considering the uses for which premises are suitable, a local authority is to have regard to any works that it expects—
 - (a) the landlord would be required to carry out, or
 - (b) the tenant would be permitted to, and likely to, carry out,
 if a contract was entered into under section [204](#) and a tenancy was granted further to it.

Commencement Information

I251 S. 192 not in force at Royal Assent, see [s. 255\(7\)](#)

I252 [S. 192](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

193 Vacancy condition

- (1) For the purposes of this Part, the “vacancy condition” is satisfied in relation to premises on a given day if—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the premises are unoccupied on that day, and
 - (b) either—
 - (i) the premises were unoccupied for the whole of the period of one year ending with the previous day, or
 - (ii) during the period of two years ending with the previous day, the premises were unoccupied on at least 366 days.
- (2) For the purposes of subsection (1), premises are occupied on a day during which they begin or cease to be occupied.
- (3) Days before the day on which this section comes into force are to count for the purposes of subsection (1)(b).
- (4) Occupation by a person living in premises that are not designed or adapted for residential use is not to count as occupation for the purposes of this section.
- (5) Regulations may amend this section so as to alter the circumstances in which the “vacancy condition” is satisfied in relation to premises.
- (6) Those circumstances must relate to the time during which premises are or have been unoccupied.
- (7) A state of affairs does not amount to the occupation of premises for the purposes of this section unless it involves the use of the premises for activity that—
 - (a) is substantial,
 - (b) is sustained, and
 - (c) involves the regular presence of people at the premises.

Commencement Information

- I253** S. 193 not in force at Royal Assent, see [s. 255\(7\)](#)
I254 [S. 193](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

194 Local benefit condition

For the purposes of this Part, the “local benefit condition” is satisfied in relation to premises if the local authority considers that the occupation of the premises for a suitable high-street use would be beneficial to the local economy, society or environment.

Commencement Information

- I255** S. 194 not in force at Royal Assent, see [s. 255\(7\)](#)
I256 [S. 194](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

Procedure preliminary to letting

195 Initial notice

- (1) On any day on which it appears to a local authority that the vacancy condition and the local benefit condition are met in relation to qualifying high-street premises in its

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

area, the authority may serve a notice under this section (an “initial letting notice”) on the landlord of the premises.

- (2) An initial letting notice expires (if it has not been withdrawn)—
- (a) when a final letting notice in relation to the premises takes effect, or
 - (b) at the end of the period of ten weeks beginning with the day on which the initial letting notice takes effect.

Commencement Information

I257 S. 195 not in force at Royal Assent, see [s. 255\(7\)](#)
I258 [S. 195](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

196 Restriction on letting while initial notice in force

- (1) While an initial letting notice is in force in relation to premises, the landlord of the premises may not—
- (a) grant, or agree to grant, a tenancy of, or licence to occupy, the premises, or
 - (b) enter into any other agreement resulting in another person becoming entitled to possess or occupy the premises (except as a result of the transfer or extinction of the landlord’s interest),
- without the written consent of the local authority that served the notice.
- (2) The local authority must give or refuse consent under subsection (1) within a reasonable time after it is sought.
- (3) Subsection (1) does not apply to the grant of a tenancy pursuant to an obligation that bound the landlord before the initial letting notice took effect.
- (4) An obligation that is conditional on the service of an initial letting notice in relation to the premises is to be disregarded for the purposes of subsection (3).
- (5) A tenancy or licence granted, or other agreement entered into, without consent required by subsection (1) is void.
- (6) But subsection (5) is to be treated as never having applied to a tenancy, licence or agreement if—
- (a) either—
 - (i) the initial letting notice expires without a final letting notice having taken effect, or
 - (ii) a final letting notice served further to the initial letting notice expires without a contract having been entered into under section 204, and
 - (b) the parties to the tenancy, licence or agreement have, until the expiry, conducted themselves towards each other on the basis that the tenancy, licence or agreement is valid.

Commencement Information

I259 S. 196 not in force at Royal Assent, see [s. 255\(7\)](#)
I260 [S. 196](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

197 Circumstances in which letting to be permitted

- (1) The local authority must give consent under section 196(1) to—
 - (a) the grant of, or an agreement to grant, a tenancy, or
 - (b) the grant of a licence to occupy the premises,if the conditions in subsection (2) are met.
- (2) The conditions are that—
 - (a) the term of the proposed tenancy, or the period of occupation under the proposed licence, would begin within the period of eight weeks beginning with the day on which the initial letting notice took effect,
 - (b) that term or period would be at least one year, and
 - (c) the local authority is satisfied that the tenancy or licence would be likely to lead to the occupation of the premises for a high-street use.
- (3) For the purposes of subsection (2)(b), a term or period is to be taken to be less than one year if the lessor or licensor has a right to terminate it within the period of one year beginning with the day on which it starts, unless that right arises only on default by the tenant or licensee.
- (4) Consent granted further to the duty in subsection (1) is to be treated as not having been given if—
 - (a) the proposed tenancy or licence is not granted, or
 - (b) the term of the tenancy, or period of occupation under the licence, does not begin,within the period referred to in subsection (2)(a).

Commencement Information

- I261** S. 197 not in force at Royal Assent, see [s. 255\(7\)](#)
I262 [S. 197](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

198 Final notice

- (1) A local authority may serve a notice under this section (a “final letting notice”) on the landlord of qualifying high-street premises on any day on which—
 - (a) an initial letting notice served by the authority is in force in relation to the premises,
 - (b) the period of eight weeks beginning with the day on which that notice took effect has elapsed, and
 - (c) either—
 - (i) no tenancy or licence has been granted, or other agreement entered into, with the consent of the authority under section 196 or in circumstances where consent was not needed because of subsection (3) of that section, or
 - (ii) the authority is satisfied that any tenancy, licence or agreement so granted or entered into is consistent with the contemplated exercise of its powers under section 204.
- (2) But the notice must be served in time for it to take effect before the initial letting notice expires.

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (3) A final letting notice expires (if it has not been withdrawn or revoked on appeal, and subject to sections 201(6) and 202(6)) at the end of the period of 14 weeks beginning with the day on which it takes effect.

Commencement Information

- I263** S. 198 not in force at Royal Assent, see [s. 255\(7\)](#)
I264 [S. 198](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

199 Restriction on letting while final notice in force

- (1) While a final letting notice is in force in relation to premises, the landlord of the premises may not—
- (a) grant, or agree to grant, a tenancy of, or licence to occupy, the premises, or
 - (b) enter into any other agreement resulting in another person becoming entitled to possess or occupy the premises (except as a result of the transfer or extinction of the landlord's interest),
- without the written consent of the local authority that served the notice.
- (2) The local authority must give or refuse consent under subsection (1) within a reasonable time after it is sought.
- (3) Subsection (1) does not apply to the grant of a tenancy pursuant to an obligation that bound the landlord before the initial letting notice preceding the final letting notice took effect.
- (4) An obligation that is conditional on the service of an initial letting notice or final letting notice in relation to the premises is to be disregarded for the purposes of subsection (3).
- (5) A tenancy granted, or agreement entered into, without consent required by subsection (1) is void.
- (6) But subsection (5) is to be treated as never having applied to a tenancy, licence or agreement if—
- (a) the final letting notice expires without a contract having been entered into under section 204, and
 - (b) the parties to the tenancy, licence or agreement have, until that expiry, conducted themselves towards each other on the basis that the tenancy, licence or agreement is valid.

Commencement Information

- I265** S. 199 not in force at Royal Assent, see [s. 255\(7\)](#)
I266 [S. 199](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

200 Restriction on works while final notice in force

- (1) While a final letting notice is in force in relation to premises, the landlord of the premises may not carry out, or permit the carrying out of, any works to the premises without the written consent of the local authority that served the notice.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) In subsection (1), “works to the premises” include the alteration or removal of any fixtures or fittings on the premises.
- (3) Subsection (1) does not apply to works that are—
 - (a) urgently necessary for repair or preservation, or
 - (b) necessary to fulfil an obligation of the landlord, other than one voluntarily assumed after the initial letting notice preceding the final letting notice took effect.
- (4) The local authority must—
 - (a) give or refuse consent under subsection (1) within a reasonable time after it is sought, and
 - (b) must give such consent unless there are reasonable grounds for refusing it, concerning the exercise or contemplated exercise of the authority’s powers under the following provisions of this Part in relation to the premises.
- (5) A person who contravenes subsection (1) without reasonable excuse commits an offence and is liable on summary conviction to a fine not exceeding level 4 on the standard scale.

Commencement Information

- I267** S. 200 not in force at Royal Assent, see [s. 255\(7\)](#)
I268 [S. 200](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

201 Counter-notice

- (1) The landlord of premises in relation to which a final letting notice has been served may give a counter-notice to the local authority that served the final letting notice.
- (2) A counter-notice must be received by the local authority before the end of the period of 14 days beginning with the day on which the final letting notice takes effect.
- (3) A counter-notice must—
 - (a) state that, if the final letting notice is not withdrawn, the landlord intends to appeal against it, and
 - (b) specify the ground (which must be a permissible ground) on which the appeal would be brought.
- (4) The permissible grounds of appeal are set out in Part 1 of [Schedule 20](#) (and they are to be interpreted and applied in accordance with Part 2 of that Schedule).
- (5) Regulations may amend that Schedule so as to—
 - (a) add a ground of appeal;
 - (b) make provision about the interpretation or application of a ground so added;
 - (c) amend or remove a ground so added or provision so made.
- (6) The period referred to in section [198\(3\)](#), as it applies to a particular final letting notice, is extended by 28 days if a counter-notice is served in relation to the final letting notice.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

- I269** S. 201 not in force at Royal Assent, see [s. 255\(7\)](#)
I270 [S. 201](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

202 Appeals

- (1) This section applies if—
 - (a) a counter-notice is given under section [201](#), and
 - (b) the landlord of the premises to which it relates is not, within the period of 14 days beginning with the day on which the counter-notice was received by the local authority, notified by the authority of the withdrawal of the final letting notice.
- (2) The landlord may appeal against the final letting notice to the county court.
- (3) An appeal must be brought on the ground specified in the counter-notice.
- (4) An appeal must be brought within the period of 28 days beginning with the day on which the counter-notice was received by the local authority.
- (5) In disposing of an appeal under this section, the county court must either revoke or confirm the final letting notice.
- (6) The period referred to in section [198\(3\)](#), as it applies to a particular final letting notice, is extended by one day (in addition to those referred to in section [201\(6\)](#)) for each day in the period—
 - (a) beginning with the day on which an appeal against the notice is brought, and
 - (b) ending with the day on which the appeal is finally determined, withdrawn or abandoned.
- (7) For the purposes of subsection [\(6\)\(b\)](#), an appeal is not finally determined until the decision on the appeal, or on any further appeal, may not be overturned on a further appeal (ignoring the possibility of an appeal out of time with permission).

Commencement Information

- I271** S. 202 not in force at Royal Assent, see [s. 255\(7\)](#)
I272 [S. 202](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(a\)](#)

Procedure for letting

203 Rental auctions

- (1) A local authority may arrange for a rental auction to be carried out in respect of qualifying high-street premises if—
 - (a) a final letting notice served by the authority is in force in relation to the premises,
 - (b) it is no longer possible for that notice to be revoked on appeal (whether because of the expiry of the period referred to in section [201\(2\)](#) or [202\(4\)](#) or the final determination, withdrawal or abandonment of an appeal), and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) either—
 - (i) no tenancy or licence has been granted, or other agreement entered into, with the consent of the authority under section 199 or in circumstances where consent was not needed because of subsection (3) of that section, or
 - (ii) the authority is satisfied that any tenancy, licence or agreement so granted or entered into is consistent with the contemplated exercise of its powers under section 204.
- (2) A “rental auction” is a process for finding persons who would be willing to take a tenancy of the premises further to a contract under section 204 and ascertaining the consideration that they would be willing to give in order to do so.
- (3) Regulations must make provision about the process.
- (4) The regulations must provide for the suitable high-street use of the premises to be specified by the local authority ahead of the auction.
- (5) The regulations must provide for the identification of a person as the “successful bidder” following a rental auction, except in cases where the regulations provide for there to be no successful bidder.
- (6) The regulations may, in particular, provide for a person who took part in the auction but would not otherwise be the successful bidder to be treated as the successful bidder if—
 - (a) the landlord of the premises so proposes or agrees, or
 - (b) it appears to the local authority that it will not be reasonably practicable to enter into a contract under section 204 with the person who would otherwise be the successful bidder.
- (7) The regulations may include provision about with whom, and on what terms, the local authority can enter into arrangements for the auction.
- (8) The regulations may allow local authorities to make choices as to procedure.
- (9) To the extent that the local authority has a choice as to procedure, the local authority must have regard to any representations made by the landlord.

Commencement Information

I273 S. 203 not in force at Royal Assent, see [s. 255\(7\)](#)

I274 [S. 203](#) in force at 31.3.2024 for specified purposes by [S.I. 2024/389](#), [reg. 2\(m\)](#)

I275 [S. 203](#) in force at 2.12.2024 in so far as not already in force by [S.I. 2024/1138](#), [reg. 2\(b\)](#)

204 Power to contract for tenancy

- (1) Subsection (2) applies if—
 - (a) a final letting notice served by the authority is in force in relation to the premises,
 - (b) the period of 42 days beginning with the day on which that notice took effect has elapsed,
 - (c) a rental auction has been carried out in respect of qualifying high-street premises, and
 - (d) the condition in section 203(1)(c) is still met.

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (2) The local authority that served the notice may enter into a tenancy contract with the successful bidder in the auction (as identified in accordance with regulations under section 203).
- (3) A “tenancy contract” is a contract under which—
 - (a) the landlord of the premises agrees to grant, and
 - (b) the successful bidder agrees to take,
 a short-term tenancy of the premises (including a contract under which those things are agreed subject to conditions).
- (4) A contract entered into under this section has effect as if it was entered into by the landlord of the premises instead of the local authority.
- (5) A local authority is to act under this section in its own name, but with an indication that it is acting so as to bind the landlord rather than itself.
- (6) As soon as possible after entering into a contract under this section, the local authority must provide a signed copy of it to the landlord.

Commencement Information

- I276** S. 204 not in force at Royal Assent, see [s. 255\(7\)](#)
I277 S. 204 in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(c\)](#)

205 Terms of contract for tenancy

- (1) This section applies in relation to a contract entered into under section 204.
- (2) The contract must set out the terms of the agreed tenancy (as to which see section 206).
- (3) The contract may identify the physical extent of the premises in greater detail than that in which the premises were identified for the purposes of sections 195 to 203.
- (4) The contract may (subject to regulations under subsection (6)) include—
 - (a) provision allowing the tenant to carry out pre-tenancy works (and to enter land for the purpose);
 - (b) provision making that ability subject to the consent of the landlord (and about the giving of such consent);
 - (c) provision requiring the landlord to carry out pre-tenancy works (whether in or outside the premises) before the term of the agreed tenancy begins;
 - (d) provision about the remedies available to the tenant if the landlord fails to carry out pre-tenancy works as so required.
- (5) “Pre-tenancy works” means works carried out (whether in or outside the premises) before the term of the agreed tenancy begins in contemplation of the use of the premises by the tenant once the term begins.
- (6) Regulations may—
 - (a) impose restrictions or conditions on the ability to include provision within subsection (4) in the contract;
 - (b) provide for circumstances in which provision within subsection (4) must be included in the contract;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) make other provision about the terms of the contract.
- (7) In making regulations under subsection (6), the Secretary of State must have regard to the terms on which contracts for the grant of short-term tenancies are typically entered into on a commercial basis.
- (8) In deciding (so far as it has discretion to do so) on the terms of the contract, the local authority must have regard to any representations made by the landlord.
- (9) In this section—
 - “the agreed tenancy” means the tenancy the grant of which is agreed in the contract;
 - “the premises” means the premises that are to be demised by the agreed tenancy;
 - “the tenant” means the prospective tenant under the agreed tenancy;
 - “the landlord” means the landlord of the premises.

Commencement Information

I278 S. 205 not in force at Royal Assent, see [s. 255\(7\)](#)

I279 [S. 205](#) in force at 31.3.2024 for specified purposes by [S.I. 2024/389](#), [reg. 2\(n\)](#)

I280 [S. 205](#) in force at 2.12.2024 in so far as not already in force by [S.I. 2024/1138](#), [reg. 2\(d\)](#)

206 Terms of tenancy

- (1) This section applies in relation to a tenancy the grant of which is agreed in a contract entered into under section [204](#).
- (2) If the interest of the landlord in the premises is such that the landlord could not grant a tenancy the term of which ended after a particular time, the term of the tenancy must not end after that time.
- (3) The tenancy must include terms requiring that the premises be used wholly or mainly for the suitable high-street use specified by the local authority ahead of the rental auction that preceded the contract.
- (4) If the rental auction involved the successful bidder indicating the amount of premium or rent that the successful bidder would be willing to pay, the premium or rent payable under the tenancy must, unless the landlord agrees otherwise, be of the amount indicated (subject to any term of the tenancy about review or deduction of rent).
- (5) The terms of the tenancy may include provision granting to the tenant interests or rights in or over land outside the premises in connection with tenant’s use of the premises.
- (6) The terms of the tenancy must include provision satisfying each of the descriptions set out in [Schedule 21](#).
- (7) Regulations may—
 - (a) provide exceptions from subsection (6);
 - (b) provide further detail about the provision that is to be included in the terms of the tenancy by virtue of subsection (6);
 - (c) make other provision about the terms of the tenancy.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (8) In making regulations under subsection (7), the Secretary of State must have regard to the terms on which short-term tenancies are typically granted on a commercial basis.
- (9) In deciding (so far as it has discretion to do so) on the terms of the tenancy, the local authority must have regard to any representations made by the landlord.
- (10) In this section—
 - “the premises” means the premises which are to be demised by the tenancy;
 - “the landlord” means the landlord of the premises.

Commencement Information

- I281** S. 206 not in force at Royal Assent, see [s. 255\(7\)](#)
- I282** [S. 206](#) in force at 31.3.2024 for specified purposes by [S.I. 2024/389](#), [reg. 2\(o\)](#)
- I283** [S. 206](#) in force at 2.12.2024 in so far as not already in force by [S.I. 2024/1138](#), [reg. 2\(d\)](#)

207 Power to grant tenancy in default

- (1) This section applies if—
 - (a) a local authority has entered into a contract under section 204, and
 - (b) the landlord of the premises to which the contract relates fails to grant a tenancy as required by the contract.
- (2) The local authority may grant the tenancy that the landlord should have granted.
- (3) A tenancy granted under this section has effect as if it was granted by the landlord instead of the local authority; and the local authority may do anything that the landlord could do in order to make an effective grant.
- (4) A local authority is to act under this section in its own name, but with an indication that it is acting so as to bind the landlord rather than itself.
- (5) As soon as possible after granting a tenancy under this section, the local authority must provide a signed copy of the instrument by which the tenancy was granted to the landlord.

Commencement Information

- I284** S. 207 not in force at Royal Assent, see [s. 255\(7\)](#)
- I285** [S. 207](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(e\)](#)

208 Deemed consent of superior lessor or mortgagee

A contract entered into under section 204, and a tenancy granted further to such a contract, are deemed to have been entered into or granted with the express consent of—

- (a) any person who is (or will be when the tenancy is granted) a superior lessor of the land in which the premises in question are comprised, and
- (b) any mortgagee of that land.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

- I286** S. 208 not in force at Royal Assent, see [s. 255\(7\)](#)
I287 [S. 208](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(e\)](#)

209 Exclusion of security of tenure

A tenancy granted further to a contract entered into under section [204](#) is excluded from sections 24 to 28 of the Landlord and Tenant Act 1954.

Commencement Information

- I288** S. 209 not in force at Royal Assent, see [s. 255\(7\)](#)
I289 [S. 209](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(e\)](#)

Powers to obtain information

210 Power to require provision of information

- (1) This section applies in relation to premises that are situated on a designated high street or within a designated town centre.
- (2) The local authority for the area in which the premises are situated may, in writing, require any interested person to give information about the premises to the authority.
- (3) In subsection [\(2\)](#), “interested person” means a person who appears to the local authority to have an interest in the land in which the premises are comprised.
- (4) For the purposes of subsection [\(2\)](#), information about premises includes information about—
 - (a) the occupation of the premises,
 - (b) matters affecting the premises,
 - (c) persons interested in the premises, and
 - (d) their interests in the premises.
- (5) A requirement under subsection [\(2\)](#) must state the time by which and manner in which the information is required to be given.
- (6) The power conferred by subsection [\(2\)](#) may be exercised only for the purpose of obtaining information about the premises that the local authority thinks is likely to be necessary or expedient for the exercise of its functions under this Part in relation to the premises.
- (7) A person commits an offence if the person—
 - (a) fails without reasonable excuse to comply with a requirement under subsection [\(2\)](#), or
 - (b) in response to such a requirement, gives information that—
 - (i) is false, and
 - (ii) the person knows or should reasonably know to be false.

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (8) A person who commits an offence under subsection (7) is liable on summary conviction to a fine not exceeding level 4 on the standard scale.

Commencement Information

- I290** S. 210 not in force at Royal Assent, see [s. 255\(7\)](#)
I291 [S. 210](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(e\)](#)

211 Power to enter and survey land

- (1) This section applies in relation to premises that are situated on a designated high street or within a designated town centre.
- (2) A person authorised in writing by the local authority for the area in which the premises are situated may—
 - (a) enter and survey the premises, and
 - (b) enter on any other land in order to gain access to the premises for the purposes of paragraph (a).
- (3) In the following provisions of this section, “the power” means the power conferred by subsection (2).
- (4) The power may be exercised only for the purpose of obtaining information about the premises that the authority thinks is likely to be necessary or expedient for the exercise of its functions under this Part in relation to the premises.
- (5) The power may be exercised only if the local authority has given, or made all reasonable efforts to give, written notice to—
 - (a) the landlord of the premises, for the purposes of subsection (2)(a), or
 - (b) the person who appears to the local authority to be in possession of, or entitled to possession of, the land, for the purposes of subsection (2)(b),
 at least 14 days before the day on which the power is first exercised in relation to the premises or other land in question.
- (6) The power may be exercised only at a reasonable time.
- (7) The power may not be exercised in a way that involves the use of force, except on the authority of a warrant issued by a justice of the peace.
- (8) Such a warrant—
 - (a) may be issued only on an application supported by evidence given on oath,
 - (b) may be issued only if the justice of the peace is satisfied that reasonable efforts have been made to exercise the power without the use of force, and
 - (c) must specify the number of occasions on which it can be relied.
- (9) A person exercising the power must produce—
 - (a) evidence of the authorisation referred to in subsection (2), and
 - (b) a copy of any warrant issued under subsection (7),
 if so requested by any person who appears to have control over the premises or other land.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (10) If no person who appears to have control over the premises or other land is present when the power is exercised, the person exercising the power must leave the premises or land as secure against trespassers as when the person entered.

Commencement Information

- I292** S. 211 not in force at Royal Assent, see [s. 255\(7\)](#)
I293 [S. 211](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(e\)](#)

212 Offences in connection with section 211

- (1) A person who, without reasonable excuse, obstructs a person in the exercise of the power conferred by section [211\(2\)](#) is guilty of an offence.
- (2) A person who commits an offence under subsection [\(1\)](#) is liable on summary conviction to a fine not exceeding level 3 on the standard scale.
- (3) A person commits an offence if the person discloses confidential information, obtained in the exercise of the power conferred by section [211\(2\)](#), for purposes other than those for which the power was exercised.
- (4) A person who commits an offence under subsection [\(3\)](#) is liable—
- (a) on summary conviction, to a fine, or
 - (b) on conviction on indictment, to imprisonment for a term not exceeding two years or to a fine, or both.
- (5) In subsection [\(3\)](#), “confidential information” means information—
- (a) which constitutes a trade secret, or
 - (b) the disclosure of which would or would be likely to prejudice the commercial interests of any person.

Commencement Information

- I294** S. 212 not in force at Royal Assent, see [s. 255\(7\)](#)
I295 [S. 212](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(e\)](#)

213 Power to extend time limits

- (1) Subsection [\(2\)](#) applies if it appears to the county court that, because of—
- (a) a failure to comply with a requirement under section [210\(2\)](#),
 - (b) the giving of false information in response to such a requirement, or
 - (c) obstruction of a person in the exercise of the power conferred by section [211\(2\)](#),
- a local authority has been impeded in deciding whether or how to exercise its functions under this Part in relation to premises in respect of which an initial letting notice or final letting notice is in force.
- (2) The court may order that the period referred to in section [195\(2\)\(b\)](#) or [198\(3\)](#), as applicable in relation to the notice, is to be extended by such number of days as appears to the court to be appropriate in view of the impediment.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(3) The court may act under this section only on an application by the local authority.

Commencement Information

I296 S. 213 not in force at Royal Assent, see [s. 255\(7\)](#)
I297 [S. 213](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(e\)](#)

General and supplementary provision

214 Further provision about letting notices

- (1) In this section, references to letting notices are to initial letting notices and final letting notices.
- (2) Regulations must make provision about—
 - (a) the form and content of letting notices,
 - (b) the service of letting notices, and
 - (c) when letting notices take effect.
- (3) In making regulations under subsection (2)(a), the Secretary of State must seek to secure that letting notices—
 - (a) identify the premises to which they relate and their suitable high-street use,
 - (b) explain the reasons for the service of the notice, and
 - (c) explain the consequences under this Part of the notice having been served, in such detail as is adequate in order for the recipient of the notice to be able to decide how to act in response to it.
- (4) For the purposes of this Part, an authority serves a letting notice on the day on which it takes the last step that it needs to take in order for the notice to be served in accordance with regulations under subsection (2)(b).
- (5) In making regulations under subsection (2)(c), the Secretary of State must seek to secure that, in the ordinary course of events (taking into account the method of service employed), it is likely that the landlord will become aware of the notice by the time it takes effect.
- (6) A letting notice served by a local authority may be withdrawn by the authority at any time.
- (7) A letting notice—
 - (a) is not affected by any change in the landlord of the premises in relation to which it has been served, and
 - (b) is a local land charge.
- (8) Regulations may provide for copies of letting notices to be served on—
 - (a) persons with interests in the affected premises that are superior to the landlord's interest;
 - (b) mortgagees of the affected premises.

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

Commencement Information

- I298** S. 214 not in force at Royal Assent, see [s. 255\(7\)](#)
I299 [S. 214](#) in force at 31.3.2024 for specified purposes by [S.I. 2024/389](#), [reg. 2\(p\)](#)
I300 [S. 214](#) in force at 2.12.2024 in so far as not already in force by [S.I. 2024/1138](#), [reg. 2\(f\)](#)

215 Other formalities

Regulations may make provision about the manner of, or procedure to be followed in connection with—

- (a) making, varying or withdrawing a designation under section [191](#);
- (b) seeking, giving or refusing consent under section [196](#) or [199](#);
- (c) giving a counter-notice under section [201](#);
- (d) making representations under section [203\(9\)](#), [205\(8\)](#) or [206\(9\)](#);
- (e) making a requirement under section [210](#);
- (f) giving notice under section [211\(5\)](#).

Commencement Information

- I301** S. 215 not in force at Royal Assent, see [s. 255\(7\)](#)
I302 [S. 215](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(q\)](#)

216 Compensation

- (1) A person interested in land is entitled to compensation for damage as a result of the exercise of the power conferred by section [211](#).
- (2) Such compensation is payable by the local authority that authorised the exercise of the power.
- (3) Any disputes relating to compensation under this section are to be determined by the Upper Tribunal.
- (4) The provisions of section 4 of the Land Compensation Act 1961 apply to the determination of such disputes, with any necessary modifications.
- (5) Except as provided by subsection (1), no compensation is payable in respect of the exercise of the powers conferred by this Part.

Commencement Information

- I303** S. 216 not in force at Royal Assent, see [s. 255\(7\)](#)
I304 [S. 216](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(g\)](#)

217 Power to modify or disapply enactments applicable to letting

- (1) Subsection (2) applies to an enactment which imposes obligations on a lessor or prospective lessor of premises in relation to—
 - (a) the letting of the premises, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) the premises while let.
- (2) Regulations may provide for the enactment to—
 - (a) apply with modifications, or
 - (b) not to apply,
 in relation to a tenancy granted (or to be granted) further to a contract entered into under section 204, or the premises demised by such a tenancy.
- (3) In this section “enactment” includes an enactment comprised in subordinate legislation, within the meaning given by section 21(1) of the Interpretation Act 1978.

Commencement Information

- I305** S. 217 not in force at Royal Assent, see [s. 255\(7\)](#)
I306 [S. 217](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(g\)](#)

218 Interpretation of Part 10

- (1) The following provisions apply for the purposes of this Part.
- (2) Each of the following is a local authority—
 - (a) a district council in England,
 - (b) a county council in England for any area for which there is no district council,
 - (c) a London borough council,
 - (d) the Common Council of the City of London, and
 - (e) the Council of the Isles of Scilly.
- (3) “Premises” means—
 - (a) the whole of a building that is designed or adapted to be used as a whole, or
 - (b) any part of a building that—
 - (i) is designed or adapted to be used separately from the other parts, or
 - (ii) could with reasonable adaptation be so used.
- (4) Premises are situated on a street if the building comprising or containing the premises—
 - (a) directly adjoins the street, or
 - (b) is separated from the street only by the curtilage of the building.
- (5) “Street” means a street, within the meaning given by section 48(1) of the New Roads and Street Works Act 1991, to which the public have access on foot (whether by right or permission); and includes any part of a street.
- (6) “The landlord”, in relation to premises, means a person who—
 - (a) is entitled to possession of the premises, and
 - (b) has sufficient interest in the premises to be capable of granting a tenancy of the premises of at least one year in duration.
- (7) For the purposes of subsection (6) as it applies in relation to—
 - (a) the service of a final letting notice in the circumstances described in section 198(1)(c)(ii), and
 - (b) the operation of this Part following the service of such a notice,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- the tenancy, licence or agreement referred to in section [198\(1\)\(c\)\(ii\)](#) is to be ignored.
- (8) “Short-term tenancy” means a tenancy for a term of at least one year but not exceeding five years.
- (9) References to the terms of a contract or tenancy include covenants, conditions and grants.
- (10) “Mortgagee” is to be read as if any charge or lien for securing money or money’s worth was a “mortgage”.
- (11) References to regulations are to regulations made by the Secretary of State.

Commencement Information

- I307** S. 218 not in force at Royal Assent, see [s. 255\(7\)](#)
I308 [S. 218](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(g\)](#)

PART 11

INFORMATION ABOUT INTERESTS AND DEALINGS IN LAND

219 Power to require provision of certain classes of information

- (1) Regulations may require the provision of information that is within the scope of a permitted purpose.
- (2) So far as the regulations are to extend to England and Wales, the permitted purposes are—
- (a) the beneficial ownership purpose (see section [220](#)),
 - (b) the contractual control purpose (see section [221](#)), and
 - (c) the national security purpose (see section [222](#)).
- (3) So far as the regulations are to extend to Scotland or Northern Ireland, the only permitted purpose is the national security purpose.
- (4) Regulations under this section must, for each requirement they impose, specify—
- (a) the person on whom the requirement falls,
 - (b) the occurrence or circumstances that gives or give rise to the requirement,
 - (c) the time limit for complying with the requirement, and
 - (d) the person to whom the required information is to be provided.
- (5) The occurrence or circumstances specified under subsection [\(4\)\(b\)](#)—
- (a) must, in the case of a requirement to provide information within the scope of the national security purpose, and
 - (b) in any other case may,
- be (or include) the giving of a notice in accordance with the regulations to the person on whom the requirement falls.
- (6) In relation to such cases, the regulations may also make provision deeming notice to have been given at a certain time in certain circumstances.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (7) The person specified under subsection (4)(d) must be—
- (a) the Chief Land Registrar, or
 - (b) another person exercising public functions on behalf of the Crown.
- (8) Regulations under this section may—
- (a) make provision about how information is to be provided (including provision requiring it to be provided by electronic means specified in the regulations);
 - (b) provide for, or make provision about, the application of the regulations to persons outside, or information held outside, the United Kingdom;
 - (c) relate to things done or arising before the coming into force of this section.

Commencement Information

I309 S. 219 in force at Royal Assent, see [s. 255\(8\)](#)

220 The beneficial ownership purpose

- (1) Information is within the scope of the beneficial ownership purpose if it appears to the Secretary of State that the information would be useful for the purpose of—
- (a) identifying persons who are beneficial owners of land in England or Wales, or
 - (b) understanding the relationship of those persons with the land that they beneficially own.
- (2) For the purposes of this section, a person beneficially owns land if either of the following subsections applies.
- (3) This subsection applies where—
- (a) the land is owned by a body corporate or partnership, and
 - (b) the person is, in relation to that body corporate or partnership, a beneficial owner within the meaning given by regulation 5 of the Money Laundering Regulations.
- (4) This subsection applies where—
- (a) the land is owned as part of—
 - (i) a trust, foundation or similar legal arrangement, or
 - (ii) the estate of a deceased person in the course of administration, and
 - (b) the person is, in relation to that trust, foundation, arrangement or estate, a beneficial owner within the meaning given by regulation 6 of the Money Laundering Regulations.
- (5) In this section—
- (a) expressions that are also used in regulation 5 or 6 of the Money Laundering Regulations have the same meaning as in that regulation;
 - (b) references to ownership of land (except references to beneficial ownership) are to the legal ownership of a freehold or leasehold estate in the land;
 - (c) “the Money Laundering Regulations” means the Money Laundering, Terrorist Financing and Transfer of Funds (Information on the Payer) Regulations 2017 ([S.I. 2017/692](#)).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I310 S. 220 in force at Royal Assent, see [s. 255\(8\)](#)

221 The contractual control purpose

- (1) Information is within the scope of the contractual control purpose if it appears to the Secretary of State that the information would be useful for the purpose of understanding relevant contractual rights.
- (2) For the purposes of subsection (1), understanding relevant contractual rights includes identifying the persons holding them and understanding the circumstances in which they were created or acquired.
- (3) “Relevant contractual rights” are rights that—
 - (a) arise under a contract,
 - (b) relate to the development, use or disposal of land in England or Wales, and
 - (c) are held for the purposes of an undertaking.
- (4) In this section—

“contract” includes a deed (whether or not made for consideration);

“undertaking” includes—

 - (a) a business,
 - (b) a charity or similar endeavour, and
 - (c) the exercise of functions of a public nature.

Commencement Information

I311 S. 221 in force at Royal Assent, see [s. 255\(8\)](#)

222 The national security purpose

- (1) Information is within the scope of the national security purpose if—
 - (a) the information relates to land that is within subsection (2),
 - (b) the information is within subsection (3), and
 - (c) it appears to the Secretary of State that requiring the provision of the information under section 219 would be justified in the interests of national security.
- (2) Land is within this subsection if it appears to the Secretary of State that a threat to national security arises in connection with the location of the land or anything situated or done on it.
- (3) Information is within this subsection if it appears to the Secretary of State that the information would be useful for the purpose of—
 - (a) identifying persons who—
 - (i) own relevant interests in the land,
 - (ii) have relevant rights concerning the land, or
 - (iii) have the ability, or are in a position that may involve the ability, to control or influence (directly or indirectly) the owner of a relevant

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

interest in the land, or a person with a relevant right concerning the land, in the exercise of that ownership or right, or

(b) understanding the relationship of those persons with the land.

(4) In subsection (3)—

- (a) references to ownership include legal and beneficial ownership;
- (b) “control or influence” includes control or influence by reason of interests or rights in or under a company, partnership, trust, foundation, or legal structure or arrangement similar to any of those.

Commencement Information

I312 S. 222 in force at Royal Assent, see [s. 255\(8\)](#)

223 Requirements may include transactional information

- (1) The information that may (if it falls within the scope of a permitted purpose) be required to be provided under [section 219](#) includes transactional information about instruments, contracts or other arrangements—
 - (a) creating, altering, extinguishing, evidencing, or transferring relevant interests in land, or
 - (b) conferring, amending, assigning, terminating or otherwise modifying relevant rights concerning land.
- (2) “Transactional information” means—
 - (a) details of the parties to a transaction;
 - (b) details of persons on whose behalf or for whose benefit the parties to a transaction are or were acting;
 - (c) details of the terms of a transaction;
 - (d) details of persons providing professional services in relation to a transaction;
 - (e) details of the source of any money paid or other consideration given in connection with a transaction;
 - (f) copies of documents giving effect to or evidencing a transaction.
- (3) “Transaction”, in subsection (2), means an instrument, contract or other arrangement within subsection (1).

Commencement Information

I313 S. 223 in force at Royal Assent, see [s. 255\(8\)](#)

224 Use of information

- (1) Regulations may provide for—
 - (a) the retention of information provided further to a requirement imposed under [section 219](#);
 - (b) the sharing of such information with persons exercising functions of a public nature, for use for the purposes of such functions;
 - (c) the publication of such information.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) In the case of a requirement to provide information within the scope of the national security purpose, regulations under subsection (1) may be made so as to apply to information provided further to the requirement only so far as appears to the Secretary of State to be justified in the interests of national security.
- (3) Regulations may provide for the payment of fees—
 - (a) by persons providing information further to a requirement imposed under [section 219](#), and
 - (b) to the person to whom the information is provided, in respect of any functions conferred on that person under subsection (1).
- (4) No civil liability is to arise from the sharing or publication of information under regulations under this section by reason of any inaccuracy or omission in the information as provided further to a requirement imposed under [section 219](#).

Commencement Information

I314 S. 224 in force at Royal Assent, see [s. 255\(8\)](#)

225 Offences

- (1) A person who, without reasonable excuse, fails to comply with a requirement imposed under [section 219](#) commits an offence.
- (2) A person commits an offence if—
 - (a) the person provides information in response to a requirement imposed under [section 219](#),
 - (b) the information is false or misleading in a material particular, and
 - (c) the person knows that the information is false or misleading or is reckless as to whether it is.
- (3) But an offence under this section is committed under the law of a given jurisdiction only if the requirement in question is imposed by regulations extending to that jurisdiction.
- (4) A person who commits an offence under subsection (1) is liable—
 - (a) on summary conviction in England and Wales, to imprisonment for a term not exceeding the maximum term for summary offences or a fine (or both);
 - (b) on summary conviction in Scotland, to imprisonment for a term not exceeding 12 months or a fine not exceeding level 5 on the standard scale (or both);
 - (c) on summary conviction in Northern Ireland, to imprisonment for a term not exceeding 6 months or a fine not exceeding level 5 on the standard scale (or both).
- (5) In subsection (4)(a), “the maximum term for summary offences” means—
 - (a) if the offence is committed before the time when section 281(5) of the Criminal Justice Act 2003 comes into force, 6 months;
 - (b) if the offence is committed after that time, 51 weeks.
- (6) A person guilty of an offence under subsection (2) is liable—
 - (a) on summary conviction in England and Wales, to imprisonment for a term not exceeding the general limit in a magistrates’ court or a fine (or both);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) on summary conviction in Scotland, to imprisonment for a term not exceeding 12 months or a fine not exceeding the statutory maximum (or both);
 - (c) on summary conviction in Northern Ireland, to imprisonment for a term not exceeding 6 months or a fine not exceeding the statutory maximum (or both);
 - (d) on conviction on indictment, to imprisonment for a term not exceeding two years or a fine (or both).
- (7) If—
- (a) an entity within subsection (8) commits an offence under this section, and
 - (b) a person who is, or is purporting to act as, a relevant officer of the entity authorises or permits, participates in, or fails to take all reasonable steps to prevent the commission of the offence,
- that person also commits the offence.
- (8) The entities within this subsection are those specified in the first column of the following table; and “relevant officer”, in relation to such an entity, means a person acting in a capacity specified in the corresponding entry in the second column.

Entity	“Relevant officer”
A company.	A director, manager, secretary or similar officer.
A partnership.	A partner.
A body corporate (other than a company) or unincorporated body whose affairs are managed by a governing body.	A member of the governing body.
A body corporate (other than a company) or unincorporated body whose affairs are managed by its members.	A member.

- (9) An offence under this section committed under the law of Scotland by a person outside Scotland may be prosecuted in—
- (a) a sheriff court district in which the person is apprehended or in custody, or
 - (b) a sheriff court district determined by the Lord Advocate,
- as if the offence had been committed in that district (and in that event the offence is for all incidental or consequential purposes deemed to have been committed in that district).
- (10) In subsection (9), “sheriff court district” is to be read in accordance with section 307(1) of the Criminal Procedure (Scotland) Act 1995.

Commencement Information

I315 S. 225 in force at Royal Assent, see [s. 255\(8\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

226 Enforcement of requirements

- (1) Regulations may make provision to prevent a relevant registration act from being carried out in relation to a relevant interest in land or relevant right concerning land in relation to which a requirement imposed under section 219 has not been complied with.
- (2) For the purposes of subsection (1), a relevant registration act is any act that would or could be carried out in relation to the register of title kept under the Land Registration Act 2002.
- (3) Regulations under subsection (1) may—
 - (a) amend the Land Registration Act 2002;
 - (b) make consequential amendments of any other enactment.

Commencement Information

I316 S. 226 in force at Royal Assent, see [s. 255\(8\)](#)

227 Interpretation of Part 11

In this Part—

- “person” includes any entity that has legal personality under the law by which it is governed;
- “regulations” means regulations made by the Secretary of State;
- “relevant interest in land” means an estate, interest, right or power in or over land in the United Kingdom, except an advowson, franchise or manor;
- “relevant right concerning land” means a right or power, arising under a contract or otherwise, that is not a relevant interest in land but concerns the ownership, control or use of land in the United Kingdom.

Commencement Information

I317 S. 227 in force at Royal Assent, see [s. 255\(8\)](#)

PART 12

MISCELLANEOUS

228 Registration of short-term rental properties

- (1) The Secretary of State must by regulations make provision requiring or permitting the registration of specified short-term rental properties in England.
- (2) “Short-term rental property” means—
 - (a) a dwelling, or part of a dwelling, which is provided by a person (“the host”) to another person (“the guest”)—
 - (i) for use by the guest as accommodation other than the guest’s only or principal residence,
 - (ii) in return for payment (whether or not by the guest), and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (iii) in the course of a trade or business carried on by the host, and
 - (b) any dwelling or premises, or part of a dwelling or premises, not falling within paragraph (a) which is specified for the purposes of this paragraph.
- (3) The Secretary of State must consult the public before making the first regulations under this section.
- (4) The requirement in subsection (3) may be satisfied by consultation undertaken before the coming into force of this section.
- (5) Regulations under this section may, in particular, include provision about or in connection with—
 - (a) who may, or must, maintain the register or registers provided for under this section;
 - (b) who may, or must, register a specified short-term rental property on any register provided for under this section;
 - (c) conditions that must be satisfied for a specified short-term rental property to be registered or conditions that may be placed upon a specified short-term rental property's registration (including provision about the circumstances in which such conditions may be varied);
 - (d) the circumstances in which the registration of a specified short-term rental property may be revoked;
 - (e) procedural requirements relating to the registration of a specified short-term rental property, the variation of any conditions placed on the registration or the revocation of the registration;
 - (f) appeals against decisions made in relation to the registration of a specified short-term rental property;
 - (g) the form or content of—
 - (i) a register provided for under this section,
 - (ii) an application for registration on such a register, or
 - (iii) any other document provided for under this section;
 - (h) how the registration of a specified short-term rental property may or must be publicised;
 - (i) the collection, provision or publication of information in connection with regulations under this section;
 - (j) exemptions from some or all of the requirements imposed by regulations under this section;
 - (k) prohibiting the provision of a short-term rental property or anything done wholly or partly for the purposes of promoting such a property to the public or a section of the public, in the course of a trade or business, where the property is not registered or another requirement imposed by regulations under this section has not been met;
 - (l) the enforcement of requirements or prohibitions imposed by regulations made under this section.
- (6) Provision under subsection (5)(l) may, in particular, include provision—
 - (a) conferring a power on a court or tribunal;
 - (b) for the imposition of civil sanctions and appeals against such sanctions.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (7) Regulations under this section may make provision for the imposition of civil sanctions whether or not the conduct in respect of which the sanction is imposed constitutes an offence.
- (8) Regulations under this section may—
- (a) provide for the charging of fees or other charges;
 - (b) confer a function, including a function involving the exercise of a discretion, on any person;
 - (c) relate to all or only part of England (and still discharge the duty in [subsection \(1\)](#)).
- (9) In this section—
- “civil sanction” means a sanction of a kind for which provision may be made under Part 3 of the Regulatory Enforcement and Sanctions Act 2008 (fixed monetary penalties, discretionary requirements, stop notices, enforcement undertakings);
- “premises” includes any place and, in particular, includes—
- (a) any vehicle or vessel;
 - (b) any tent or moveable structure;
- “specified” means specified or described in regulations made under this section.

Commencement Information

I318 [S. 228](#) in force at 26.12.2023, see [s. 255\(9\)\(b\)](#)

229 Pavement licences

[Schedule 22](#) makes—

- (a) provision to make the regime for pavement licences under sections 1 to 9 of the Business and Planning Act 2020 permanent, and
- (b) other provision relating to pavement licences.

Commencement Information

I319 [S. 229](#) not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I320 [S. 229](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(r\)](#) (with [reg. 5](#))

PROSPECTIVE

230 Historic environment records

- (1) A relevant authority must maintain an historic environment record for its area.
- (2) An “historic environment record” is a system for storing and making available to the public information about—
 - (a) any of the following in the area—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (i) a listed building within the meaning given by section 1(5) of the Listed Buildings Act;
 - (ii) a conservation area within the meaning given by section 91(1) of that Act;
 - (iii) a scheduled monument within the meaning given by section 1(11) of the Ancient Monuments and Archaeological Areas Act 1979;
 - (iv) a garden or other area of land included in a register maintained by the Historic Buildings and Monuments Commission for England under section 8C of the Historic Buildings and Ancient Monuments Act 1953;
 - (v) a site designated as a restricted area under section 1 of the Protection of Wrecks Act 1973;
 - (vi) a World Heritage Site (that is to say, a property appearing on the World Heritage List kept under Article 11(2) of the UNESCO Convention Concerning the Protection of the World Cultural and Natural Heritage adopted at Paris on 16 November 1972);
 - (vii) anything of a description specified in regulations under subsection (3),
- (b) other sites in the area which the authority considers to be of historic, architectural, archaeological or artistic interest,
- (c) objects found in the area in the course of archaeological investigations which the authority considers to be of such interest, and
- (d) historical, architectural, archaeological or scientific investigations or studies relating to—
 - (i) anything within paragraphs (a) to (c), or
 - (ii) the development, preservation or present character of any part of the area.
- (3) The Secretary of State may, by regulations, specify for the purposes of subsection (2)(a)(vii) a description of object, structure or site that—
 - (a) is designated, registered or similarly recognised under an enactment, and
 - (b) appears to the Secretary of State to be so wholly or partly because of historic, architectural, archaeological or artistic importance.
- (4) Subsection (1) requires information to be included in an historic environment record only so far as the relevant authority—
 - (a) has the information, and
 - (b) considers it suitable for inclusion in the record.
- (5) A relevant authority must take such steps as it considers reasonable to—
 - (a) obtain information for inclusion in its historic environment record, and
 - (b) keep information included in its historic environment record up to date.
- (6) The Secretary of State may by regulations make provision—
 - (a) about how information is to be stored or made available as described in subsection (2);
 - (b) for and in connection with the charging of fees by relevant authorities in respect of—
 - (i) the provision of advice or assistance to persons making use, or proposing to make use, of an historic environment record;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (ii) the provision of documents copied or derived from an historic environment record.
- (7) Regulations under subsection (6)(a) may, in particular, make provision requiring or enabling information to be stored or made available in accordance with such standards or specifications as are published by the Secretary of State from time to time.
- (8) The relevant authorities for the purposes of this section are—
 - (a) each county council in England,
 - (b) each district council for an area in England for which there is no county council,
 - (c) each London borough council,
 - (d) the Common Council of the City of London,
 - (e) the Council of the Isles of Scilly,
 - (f) each National Park authority for a National Park in England, and
 - (g) the Broads Authority.
- (9) For the purposes of this section—
 - (a) the area of the Common Council includes the Inner Temple and the Middle Temple,
 - (b) an area comprising a National Park for which there is a National Park authority is the area of that authority and no other relevant authority, and
 - (c) the area comprising the Broads, as defined by section 2(3) of the Norfolk and Suffolk Broads Act 1988, is the area of the Broads Authority and no other relevant authority.

Commencement Information

I321 S. 230 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

231 Review of governance etc of RICS

- (1) The Secretary of State may, from time to time, appoint an independent person to carry out a review of—
 - (a) the governance of the Royal Institution of Chartered Surveyors,
 - (b) the effectiveness of the Institution in meeting its objectives, and
 - (c) any other matter specified in the appointment.
- (2) A matter may be specified under [subsection \(1\)\(c\)](#) only if the Secretary of State considers that the matter is connected with—
 - (a) the governance of the Institution, or
 - (b) the effectiveness of the Institution in meeting its objectives.
- (3) On completion of a review, the appointed person must make a written report to the Secretary of State—
 - (a) setting out the result of the review, and
 - (b) making such recommendations (if any) as the person considers.
- (4) The Secretary of State must publish a copy of the report.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(5) In [this section](#) “independent” means appearing to the Secretary of State to be independent of—

- (a) the Secretary of State, and
- (b) the Royal Institution of Chartered Surveyors.

Commencement Information

I322 [S. 231](#) in force at 26.12.2023, see [s. 255\(9\)\(b\)](#)

PROSPECTIVE

232 Marine licensing

(1) The Marine and Coastal Access Act 2009 is amended in accordance with subsections [\(2\)](#) to [\(7\)](#).

(2) In section 72A (further fees chargeable where the Welsh Ministers are the appropriate licensing authority)—

- (a) in the heading, from “Welsh” to the end substitute “appropriate licensing authority is the Secretary of State, the Scottish Ministers or the Welsh Ministers”;
- (b) in subsection (1), for the words from “Welsh” to the end substitute “appropriate licensing authority in relation to a marine licence granted under this Part is the Secretary of State, the Scottish Ministers or the Welsh Ministers.”;
- (c) in subsection (2)(c), insert at the beginning “where the Welsh Ministers are the licensing authority,”;
- (d) after subsection (2) insert—

“(2A) Where the licensing authority is the Secretary of State or the Scottish Ministers, the authority may charge a fee for dealing with—

- (a) a variation of the licence under section 72(3) (whether or not on an application), or
- (b) a transfer and variation of the licence under section 72(7).”;
- (e) in subsection (4), for “subsection (2)” substitute “subsections (2) and (2A)”;
- (f) in subsection (6)—
 - (i) the words from “an application” to “72” become paragraph (a),
 - (ii) at the beginning of that paragraph insert “where the Welsh Ministers are the licensing authority,”;
 - (iii) after that paragraph insert “, or
 - (b) where the licensing authority is the Secretary of State or the Scottish Ministers, an application for a variation of a licence under section 72(3) or a transfer and variation of a licence under section 72(7).”;
 - (iv) in the closing words, after “licensee” insert “or (as the case may be) other applicant”; and
- (g) in subsection (9), after “licensee” insert “or other applicant”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3) In section 98 (delegation of functions), in subsection (6)—
 - (a) in paragraph (ca), for “Welsh Ministers are the licensing authority” substitute “licensing authority is the Secretary of State, the Scottish Ministers or the Welsh Ministers”;
 - (b) in paragraph (ha), for “Welsh Ministers are the licensing authority” substitute “licensing authority is the Secretary of State, the Scottish Ministers or the Welsh Ministers”;
 - (c) in paragraph (hb), for “Welsh Ministers are the licensing authority” substitute “licensing authority is the Secretary of State, the Scottish Ministers or the Welsh Ministers”.
- (4) In section 107A (deposits on account of fees payable)—
 - (a) in the heading, after “the” insert “Secretary of State, the Scottish Ministers or the”;
 - (b) in subsection (1), from “Welsh” to the end substitute “appropriate licensing authority is the Secretary of State, the Scottish Ministers or the Welsh Ministers.”
- (5) In section 107B (supplementary provision about fees)—
 - (a) in the heading, after “the” insert “Secretary of State, the Scottish Ministers or the”;
 - (b) in subsection (1), from “Welsh” to the end substitute “appropriate licensing authority is the Secretary of State, the Scottish Ministers or the Welsh Ministers.”
- (6) In section 108 (appeals against notices), in subsection (2A), at the beginning insert “The Secretary of State, the Scottish Ministers or”.
- (7) In section 110A (fees: oil and gas activities for which marine licence needed), in subsection (4)—
 - (a) after “67,” insert “72(3), 72(7) or 72A(2)(a) or (b),”;
 - (b) after “67(2)” insert “or 72A(4)”;
 - (c) after “67(5)” insert “or 72A(6)”.
- (8) The amendments made to the Marine and Coastal Access Act 2009 by sections 77 to 80 of the [Environment \(Wales\) Act 2016 \(anaw 3\)](#) extend to Scotland and Northern Ireland (as well as England and Wales).
- (9) The Public Bodies (Marine Management Organisation) (Fees) Order 2014 ([S.I. 2014/2555](#)) is revoked.

Commencement Information

I323 S. 232 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

233 Power to replace Health and Safety Executive as building safety regulator

- (1) The Secretary of State may by regulations make provision for a body (“the new regulator”) to replace the Health and Safety Executive as the building safety regulator for the purposes of the Building Safety Act 2022.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) The new regulator may be—
 - (a) a body established by the regulations, or
 - (b) another body specified in the regulations.
- (3) The Secretary of State may by regulations make further provision in connection with subsection (1), including provision—
 - (a) conferring the functions of the Health and Safety Executive as the building safety regulator on to the new regulator;
 - (b) establishing or modifying the constitutional arrangements of the new regulator;
 - (c) establishing or modifying the funding arrangements of the new regulator;
 - (d) conferring a power on the Secretary of State to give directions to the new regulator.
- (4) Regulations under this section may amend, repeal or revoke any provision made by or under—
 - (a) the Health and Safety at Work etc. Act 1974;
 - (b) the Building Act 1984;
 - (c) TCPA 1990;
 - (d) section 54 of PCPA 2004;
 - (e) the Building Safety Act 2022.
- (5) No regulations may be made under this section after the end of the period of 24 months beginning with the day on which the final report of the Grenfell Tower Inquiry is presented to Parliament in accordance with section 26 of the Inquiries Act 2005.
- (6) In this section—
 - “constitutional arrangements”, in relation to the new regulator, include matters relating to—
 - (a) the name and status of the body;
 - (b) the chair, members and staff of the body (including qualifications and procedures for appointment and functions);
 - (c) the body’s powers to employ staff;
 - (d) remuneration, allowances and pensions for the body’s members and staff;
 - (e) governing procedures and arrangements (including the role and membership of committees and sub-committees);
 - (f) reports and accounts (including audit);
 - “funding arrangements”, in relation to the new regulator, include provision for it to be funded by a Minister of the Crown and the extent of such funding;
 - “Grenfell Tower Inquiry” means the public inquiry into the fire at Grenfell Tower on 14 June 2017 as set up on 15 August 2017 for the purposes of section 5 of the Inquiries Act 2005;
 - “Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975.

Commencement Information

I324 S. 233 in force at 26.12.2023, see s. 255(9)(b)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

234 Transfer schemes in connection with regulations under [section 233](#)

- (1) The Secretary of State may, in connection with regulations under [section 233\(1\)](#), make one or more schemes for the transfer of property, rights and liabilities (“transfer schemes”).
- (2) A transfer scheme in connection with regulations under [section 233\(1\)](#) may provide for the transfer of property, rights or liabilities to the new regulator from the Health and Safety Executive.
- (3) The things that may be transferred under a transfer scheme include—
 - (a) property, rights and liabilities that could not otherwise be transferred;
 - (b) property acquired, and rights and liabilities arising, after the making of the scheme;
 - (c) criminal liabilities.
- (4) A transfer scheme may—
 - (a) create rights, or impose liabilities, in relation to property or rights transferred;
 - (b) make provision about the continuing effect of things done by, on behalf of or in relation to the Health and Safety Executive in respect of anything transferred;
 - (c) make provision about the continuation of things (including legal proceedings) in the process of being done by, on behalf of or in relation to the Health and Safety Executive in respect of anything transferred;
 - (d) make provision for references to the Health and Safety Executive in an instrument or other document in respect of anything transferred to be treated as references to the new regulator;
 - (e) make provision for the shared ownership or use of property;
 - (f) make provision which is the same as or similar to the TUPE regulations;
 - (g) make other consequential, supplementary, incidental or transitional provision.
- (5) A transfer scheme may provide—
 - (a) for modifications by agreement;
 - (b) for modifications to have effect from the date when the original scheme came into effect.
- (6) In subsection (4)(f), “the TUPE regulations” means the Transfer of Undertakings (Protection of Employment) Regulations 2006 ([S.I. 2006/246](#)).
- (7) For the purposes of this section—
 - (a) references to rights and liabilities include rights and liabilities relating to a contract of employment;
 - (b) references to the transfer of property include the grant of a lease.
- (8) For the purposes of subsection (7)(a)—
 - (a) an individual who holds employment in the civil service of the State is to be treated as employed by virtue of a contract of employment, and
 - (b) the terms of the individual’s employment in the civil service of the State are to be treated as constituting the terms of the contract of employment.
- (9) In this section “new regulator” has the meaning given in [section 233\(1\)](#).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I325 [S. 234](#) in force at 26.12.2023, see [s. 255\(9\)\(b\)](#)

PROSPECTIVE

235 Transfer of land by local authorities

(1) In Schedule 1 to the Academies Act 2010 (Academies: land), after paragraph 9 insert—

“Compulsory transfer to trustees

- 9A (1) This paragraph applies where Conditions A to D are met.
- (2) Condition A is that a local authority make premises (“the new premises”) available to be used by an Academy school.
- (3) Condition B is that the new premises are made available as an alternative to premises (“the existing premises”) which have previously been used by—
- (a) the Academy school, or
 - (b) a maintained school, Academy or sixth form college that has been or is to be discontinued and that the Academy school replaces.
- (4) Condition C is that the existing premises are held on trust by a person or persons (“the trustees”) for the purposes of (as the case may be)—
- (a) the Academy school, or
 - (b) the discontinued maintained school, Academy or sixth form college.
- (5) Condition D is that the trustees—
- (a) having sold the existing premises, pay to the local authority a sum that—
 - (i) is just, having regard to the value of the local authority’s interest in the new premises, but
 - (ii) does not exceed the total of the proceeds of sale and any interest that has accrued to the trustees on those proceeds, or
 - (b) if the local authority agree to accept the trustees’ interest in the existing premises, transfer that interest to the local authority.
- (6) The local authority must transfer their interest in the new premises to the trustees to be held by them on trust for the purposes of the Academy school.
- (7) The local authority must pay to the trustees to whom the transfer is made their reasonable costs in connection with the transfer.
- (8) Any question relating to the duty in sub-paragraph (6) may, if not agreed by the local authority and the trustees, be referred by the local authority

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

or the trustees to the adjudicator (see section 25 of the School Standards and Framework Act 1998).

(9) The questions referred to in sub-paragraph (8) include in particular—

- (a) the extent of the premises an interest in which is to be transferred by the local authority,
- (b) whether a sum proposed by any person to be paid by the trustees as specified in sub-paragraph (5)(a) is just having regard to the value of the local authority's interest in the new premises,
- (c) the amount of any interest that has accrued to the trustees on proceeds of sale as referred to in sub-paragraph (5)(a)(ii), and
- (d) the identity of the trustees to or by whom a payment or transfer should be made.

(10) The local authority and the trustees respectively must provide to the adjudicator any information the adjudicator may request from them for the purpose of exercising the functions the adjudicator has by virtue of this paragraph.

(11) Any sum paid to the local authority as referred to in sub-paragraph (5) (a) is to be treated for the purposes of section 14 of the School Sites Act 1841 (which relates to the sale or exchange of land held on trust for the purposes of a school) as a sum applied in the purchase of a site for the school, Academy or sixth form college referred to in sub-paragraph (3) (a) or (b).

(12) In this paragraph, references to premises do not include playing fields.”

(2) In section 25 of the School Standards and Framework Act 1998 (adjudicators), in subsection (2), after “2006” insert “or paragraph 9A of Schedule 1 to the Academies Act 2010”.

(3) In Schedule 5 to that Act (adjudicators), in paragraph 5(1), after “2006” insert “or paragraph 9A of Schedule 1 to the Academies Act 2010”.

(4) In Part 2 of Schedule 22 to that Act (maintained schools: disposals on discontinuance), in paragraph 5, after sub-paragraph (1A) insert—

“(1B) This paragraph also does not apply where the school mentioned in sub-paragraph (1)(a) is (with or without other schools) to be replaced by an Academy school in circumstances where paragraph 9A(1) of Schedule 1 to the Academies Act 2010 applies.”

Commencement Information

I326 S. 235 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

236 Open access mapping

(1) The Countryside and Rights of Way Act 2000 is amended as follows.

(2) After section 9 (maps in conclusive form) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“9A Review of maps (England)

- (1) This section applies where a map has been issued in conclusive form for the purposes of this Part in respect of any area in England.
- (2) Natural England must before 1 January 2031, to the extent that they consider appropriate, carry out a review of whether—
 - (a) any land shown on that map as open country or registered common land is open country or registered common land at the time of the review, and
 - (b) any land in that area which is not so shown ought to be so shown.
- (3) Regulations may require Natural England to carry out subsequent reviews, in respect of such matters and in respect of such circumstances as may be prescribed.”
- (3) In section 10 (review of maps)—
 - (a) at the end of the heading insert “(Wales)”;
 - (b) in subsection (1), after “area” insert “in Wales”;
 - (c) in subsection (2), for paragraphs (a) and (b) substitute—
 - “(a) in the case of the first review, not more than ten years after the issue of the map in conclusive form, and
 - (b) in the case of subsequent reviews, not more than fifteen years after the previous review.”
- (4) In section 11 (regulations relating to maps)—
 - (a) in subsection (2), after paragraph (j) insert—
 - “(ja) the procedure to be followed on a review under section 9A (including provision as to the period within which, and the manner in which, representations may be made to Natural England in relation to such a review),”;
 - (b) after subsection (3) insert—
 - “(3A) Regulations made by virtue of subsection (2)(ja) may make provision—
 - (a) for appeals in relation to a review, including by making provision applying, or corresponding to, any provision of, or made under, Schedule 1A to the National Parks and Access to the Countryside Act 1949 (coastal access reports) (with or without modifications);
 - (b) enabling Natural England to make a determination in preparing a map on a review that any boundary of an area of open country is to be treated as coinciding with a particular physical feature (whether the effect is to include other land as open country or to exclude part of an area of open country).”

Commencement Information

I327 S. 236 in force at 26.12.2023, see s. 255(9)(b)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

237 Childcare: use of non-domestic premises

- (1) In section 96 of the Childcare Act 2006 (meaning of early years and later years provision etc), in each of subsections (4) and (8) omit “, where at least half of the provision is on domestic premises”.
- (2) [Schedule 23](#) amends the Childcare Act 2006 to make provision relating to the registration of persons providing childminding wholly on non-domestic premises.

Commencement Information

I328 S. 237 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I329 [S. 237](#) in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

238 Childcare: number of providers

In section 96 of the Childcare Act 2006 (meaning of early years and later years provision etc), in each of subsections (5) and (9), for “three” substitute “four”.

Commencement Information

I330 S. 238 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I331 [S. 238](#) in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(b\)](#) (with [reg. 4](#), [Schs. 1-3](#))

239 Amendments of Schedule 7B to the Government of Wales Act 2006

- (1) Schedule 7B to the Government of Wales Act 2006 (general restrictions on legislative competence of Senedd Cymru) is amended in accordance with subsections [\(2\)](#) and [\(3\)](#).
- (2) In paragraph 9(8)(b) (exceptions to restrictions relating to reserved authorities)—
 - (a) omit the “or” at the end of paragraph (vi);
 - (b) after paragraph (vii) insert “; or
 - (viii) [Chapter 1](#) of [Part 3](#) or [Part 6](#) of the Levelling-up and Regeneration Act 2023.”
- (3) In paragraph 11(6)(b) (exceptions to restrictions relating to Ministers of the Crown)—
 - (a) omit the “or” at the end of the first paragraph (ix);
 - (b) for the second paragraph (ix) substitute—
 - “(x) the Trade (Australia and New Zealand) Act 2023; or
 - (xi) [Chapter 1](#) of [Part 3](#) or [Part 6](#) of the Levelling-up and Regeneration Act 2023.”
- (4) In the Procurement Act 2023—
 - (a) in section 118 (concurrent powers and the Government of Wales Act 2006), for paragraphs (c) and (d) substitute—
 - “(c) at the end of paragraph 11(6)(b)(x), omit “or”, and
 - (d) in paragraph 11(6)(b)(xi), at the end insert “; or
 - (xii) the Procurement Act 2023.””;
 - (b) in Schedule 11 (repeals and revocations), for paragraph 1 substitute—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- “1 In Schedule 7B to the Government of Wales Act 2006 (general restrictions on devolved competence)—
- (a) paragraph 9(9)(d) (as inserted by the Trade (Australia and New Zealand) Act 2023), and
 - (b) paragraph 11(6)(b)(x) (as inserted by the Levelling-up and Regeneration Act 2023).”

Commencement Information

I332 [S. 239](#) in force at 26.12.2023, see [s. 255\(9\)\(b\)](#)

240 Blue plaques in England

In paragraph 4 of Schedule 2 to the Local Government Act 1985 (Listed Buildings, Conservation Areas and Ancient Monuments), for “Greater London” substitute “any area in England”.

Commencement Information

I333 [S. 240](#) in force at 26.12.2023, see [s. 255\(9\)\(b\)](#)

241 Powers of local authority in relation to the provision of childcare

In section 8 of the Childcare Act 2006 (powers of local authority in relation to the provision of childcare)—

- (a) in subsection (1)(c) omit “subject to subsection (3),”; and
- (b) omit subsections (3) to (5).

Commencement Information

I334 [S. 241](#) in force at 26.12.2023, see [s. 255\(9\)\(b\)](#)

242 Report on enforcement of the Vagrancy Act 1824

- (1) The Secretary of State must prepare and publish a report on the impact of the enforcement of sections 3 and 4 of the Vagrancy Act 1824 on the levelling-up missions (within the meaning given by section 1(2)(a)).
- (2) The report must be published within the period of 12 months beginning with the day on which this section comes into force.
- (3) This section ceases to have effect on the day on which section 81 of the Police, Crime, Sentencing and Courts Act 2022 (repeal of the Vagrancy Act 1824 etc) comes into force.

Commencement Information

I335 [S. 242](#) in force at 26.12.2023, see [s. 255\(9\)\(b\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

243 Qualifying leases under the Building Safety Act 2022

(1) The Building Safety Act 2022 is amended in accordance with subsections (2) to (4).

(2) In section 119 (meaning of “qualifying lease”) after subsection (3) insert—

“(3A) A connected replacement lease (see section 119A) is also a “qualifying lease”.”

(3) After section 119 insert—

“119A Meaning of “connected replacement lease”

(1) For the purposes of section 119 (and this section) a lease (the “new lease”) is a “connected replacement lease” if—

- (a) the new lease is a lease of a single dwelling in a relevant building,
- (b) the tenant under the new lease is liable to pay a service charge,
- (c) the new lease was granted on or after 14 February 2022,
- (d) the new lease replaces—
 - (i) one other lease, which is a qualifying lease (whether under section 119(2) or (3A)), or
 - (ii) two or more other leases, at least one of which is a qualifying lease (whether under section 119(2) or (3A)), and
- (e) there is continuity in the property let.

(2) For the purposes of subsection (1)(d), the new lease replaces another lease if—

- (a) the term of the new lease begins during the term of the other lease, and the new lease is granted in substitution of the other lease, or
- (b) the term of the new lease begins at the end of the term of the other lease (regardless of when the lease is granted).

(3) For the purposes of subsection (2)(a), the circumstances in which the new lease is granted in substitution of another lease include circumstances where—

- (a) the new lease is granted by way of a surrender and regrant of the other lease (including a deemed surrender and regrant, whether deemed under an enactment or otherwise);
- (b) the new lease is granted under—
 - (i) section 24 of the Landlord and Tenant Act 1954 (renewed business leases),
 - (ii) section 14 of, or Schedule 1 to, the Leasehold Reform Act 1967 (extension of leases of houses), or
 - (iii) section 56 of the Leasehold Reform, Housing and Urban Development Act 1993 (extension of leases of flats),
 in a case where that provision of that Act applies by virtue of the other lease.

(4) For the purposes of subsection (1)(e) there is continuity in the property let if—

- (a) the newly let property is exactly the same as the already let property,
- (b) the newly let property consists of some or all of the already let property, together with other property (whether or not that other property was previously let) (a “property combination”), or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) the newly let property consists of some, but not all, of the already let property (but no other property) (a “property reduction”).
- (5) But there is no continuity in the property let by virtue of a property reduction if, as respects any lease in the relevant chain of qualifying leases, there was continuity in the property let by virtue of a property combination.
- (6) For that purpose, the “relevant” chain of qualifying leases is the chain of qualifying leases of which the new lease would be part were it a connected replacement lease.
- (7) For the purposes of subsection (1)(e) there is also continuity in the property let if the new lease is granted to rectify any error in the lease, or any lease, which the new lease replaces.
- (8) Where a dwelling is at any time on or after 14 February 2022 let under two or more leases to which subsection (1)(a) and (b) apply, any of the leases which is superior to any of the other leases is not a connected replacement lease.
- (9) For the purposes of sections 122 to 125 and Schedule 8, all of the leases in a chain of qualifying leases are to be treated as a single qualifying lease which has a term that—
 - (a) began when the term of the initial qualifying lease in that chain began, and
 - (b) ends when the term of the current connected replacement lease in that chain ends.
- (10) The Secretary of State may by regulations make provision about the meaning of “connected replacement lease” (including provision changing the meaning).
- (11) The provision that may be made in regulations under this section includes—
 - (a) provision which amends this section;
 - (b) provision which has retrospective effect.
- (12) Provision in regulations under this section made by virtue of section 168(2)
 - (a) (consequential provision etc) may (in particular) amend this Act.
- (13) In this section—
 - “already let property”, in relation to a new lease, means the property let by the lease or leases which the new lease replaces;
 - “chain of qualifying leases” means—
 - (a) an initial qualifying lease which is the preceding qualifying lease in relation to a connected replacement lease (the “first replacement lease”),
 - (b) the first replacement lease, and
 - (c) any other connected replacement lease if the preceding qualifying lease in relation to it is—
 - (i) the first replacement lease, or
 - (ii) any other connected replacement lease which is in the chain of qualifying leases;

and a chain of qualifying leases may accordingly consist of different leases at different times (if further connected replacement leases are granted);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“current connected replacement lease”, in relation to a particular time, means a connected replacement lease during the term of which that time falls;

“initial qualifying lease” means a lease which is a qualifying lease under section 119(2);

“new lease” has the meaning given in subsection (1);

“newly let property” means the property let by the new lease;

“preceding qualifying lease”, in relation to the new lease, means—

- (a) in a case within subsection (1)(d)(i), the lease which the new lease replaces;
- (b) in a case within subsection (1)(d)(ii), a lease which—
 - (i) the new lease replaces, and
 - (ii) is a qualifying lease.

(14) The definitions in section 119(4) also apply for the purposes of this section.”

(4) In section 168(6)(a) (affirmative procedure for regulations), after “74,” insert “119A,”.

(5) The amendments made by this section are to be treated as having come into force on 28 June 2022.

Commencement Information

I336 [S. 243](#) in force at 26.12.2023, see [s. 255\(9\)\(b\)](#)

PROSPECTIVE

244 Road user charging schemes in London

(1) Schedule 23 to GLAA 1999 (road user charging) is amended as follows.

(2) After paragraph 1(3) insert—

“(3A) Any reference in this Schedule to national obligations is a reference to obligations imposed by or under any enactment on a Minister of the Crown.”

(3) After paragraph 3 insert—

“Proposals relating to certain TfL schemes: opt out

3A (1) This paragraph applies where Transport for London proposes to—

- (a) make a TfL scheme the purpose, or one of the purposes, of which is the improvement of air quality, or
- (b) significantly vary a TfL scheme where the purpose, or one of the purposes, of the variation is the improvement of air quality.

(2) Transport for London must publish a draft order containing the proposed TfL scheme or the proposed variations to the TfL scheme.

(3) The draft order must be in such form as the Authority may determine.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) Transport for London may not make the order and submit it to the Authority in accordance with paragraph 4(1) otherwise than in accordance with [sub-paragraph \(8\)](#).
- (5) A relevant London borough council may, within the opt-out period, give notice that it wants to opt out of the scheme (an “opt-out notice”).
- (6) An opt-out notice must be given to—
 - (a) Transport for London, and
 - (b) the Secretary of State.
- (7) A London borough council is “relevant” if—
 - (a) any of the council’s area falls within the charging area of the proposed TfL scheme or of the TfL scheme after the proposed variations have been made, and
 - (b) the principal purpose of the scheme applying in the council’s area is the improvement of air quality.
- (8) After the opt-out period has ended—
 - (a) if [sub-paragraph \(9\)](#) applies, Transport for London may make the order and submit it to the Authority in accordance with paragraph 4(1);
 - (b) if [sub-paragraph \(10\)](#) applies, Transport for London may make the order and submit it to the Authority in accordance with paragraph 4(1) only if Transport for London first modifies the order so that the proposed TfL scheme, or the TfL scheme after the proposed variations have been made, will not apply to the area of each eligible council which has given, and not withdrawn, an opt-out notice.
- (9) This sub-paragraph applies if—
 - (a) no opt-out notice has been given within the opt-out period or any opt-out notices that have been given within that period have been withdrawn, or
 - (b) one or more opt-out notices have been given within the opt-out period and have not been withdrawn, but each of them was given by a London borough council that is an ineligible council (whether or not that council was an ineligible council at the time the opt-out notice was given) and in each case either—
 - (i) the council did not submit an alternative plan, within the opt-out period, to the Secretary of State under [paragraph 3B](#), or
 - (ii) the council did so submit an alternative plan and the plan has been rejected under that paragraph.
- (10) This sub-paragraph applies if—
 - (a) one or more opt-out notices have been given within the opt-out period and have not been withdrawn,
 - (b) in the case of any opt-out notice that was given by a London borough council that is an ineligible council (whether or not that council was an ineligible council at the time the opt-out notice was given)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (i) the council did not submit an alternative plan, within the opt-out period, to the Secretary of State under paragraph 3B, or
 - (ii) the council did so submit an alternative plan and the plan has been rejected under that paragraph, and
 - (c) one or more of the opt-out notices that have been given, and not withdrawn, was given by a London borough council that is an eligible council (whether or not that council was an eligible council at the time the opt-out notice was given).
 - (11) A relevant London borough council is an “eligible council” if it has complied with any duty imposed on it under or by virtue of Part 4 of the Environment Act 1995 and—
 - (a) no part of the council’s area is designated, or is required to be designated, as an air quality management area under section 83 of the Environment Act 1995 (designation of air quality management areas), or
 - (b) if any part of the council’s area is so designated, or required to be so designated, the council has an alternative plan that has been approved by the Secretary of State under paragraph 3B.
 - (12) In this paragraph and paragraph 3B—
 - “alternative plan” means a plan for improving air quality in the area of the London borough council which does not involve the TfL scheme applying to any of the area of the London borough council;
 - “eligible council” has the meaning given by sub-paragraph (11) and “ineligible council” is to be read accordingly;
 - “opt-out notice” has the meaning given by sub-paragraph (5);
 - “opt-out period” means the period of 10 weeks beginning with the day on which the draft order containing the proposed TfL scheme, or the proposed variations to the TfL scheme, is published in accordance with sub-paragraph (2);
 - “relevant London borough council” has the meaning given by sub-paragraph (7).
- 3B (1) This paragraph applies where paragraph 3A applies and a relevant London borough council—
- (a) gives an opt-out notice, within the opt-out period, in relation to the TfL scheme and does not withdraw it, and
 - (b) submits an alternative plan to the Secretary of State within that period.
- (2) The London borough council must—
- (a) notify Transport for London that the council has submitted the alternative plan, and
 - (b) provide Transport for London with a copy of it.
- (3) The Secretary of State must, before the end of the review period, by notice to the London borough council and Transport for London—
- (a) approve the alternative plan, or
 - (b) reject the alternative plan.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) Subject to [sub-paragraph \(5\)](#), the Secretary of State must approve the alternative plan if the Secretary of State is satisfied that it is likely to achieve and maintain improvements in relation to air quality standards and objectives, in every part of the London borough council's area that is designated, or is required to be designated, as mentioned in [paragraph 3A\(11\)\(a\)](#), that are similar to those that the proposed TfL scheme, or the TfL scheme after the proposed variations have been made, is likely to achieve if it applies to the area of the council.
- (5) The Secretary of State is not required to approve the alternative plan if the Secretary of State considers that the plan is inconsistent, or could be inconsistent, with national policies or obligations relating to air quality.
- (6) At any time during the review period before the Secretary of State approves or rejects the alternative plan under [sub-paragraph \(3\)](#), the Secretary of State may invite the London borough council to modify the plan for the purposes of securing that—
 - (a) the Secretary of State can be satisfied as mentioned in [sub-paragraph \(4\)](#), or
 - (b) the plan is consistent with national policies or obligations relating to air quality,
 and if the council modifies the plan, sub-paragraphs (3) to (5) apply in relation to the plan as modified.
- (7) The review period is the period of 16 weeks beginning with the day after the day on which the opt-out period ends.
- (8) The Secretary of State may on one or more occasions extend the review period.
- (9) The Secretary of State must give notice of any extension under [sub-paragraph \(8\)](#) to—
 - (a) each London borough council that has—
 - (i) given an opt-out notice, within the opt-out period, in relation to the TfL scheme and not withdrawn it, and
 - (ii) submitted an alternative plan to the Secretary of State within that period, and
 - (b) Transport for London.
- (10) Where a London borough council's alternative plan has been approved under this paragraph, the Mayor may issue a direction to the council requiring it to take such steps as may be specified in the direction for the purpose of securing that the alternative plan is implemented.
- (11) The power to give a direction under [sub-paragraph \(10\)](#) may only be exercised by the Mayor after consultation with the London borough council concerned.
- (12) Where the Mayor issues a direction to a London borough council under [sub-paragraph \(10\)](#), the council must comply with the direction.
- (13) In [sub-paragraph \(4\)](#) the reference to air quality standards and objectives is to air quality standards and objectives within the meaning of Part 4 of the Environment Act 1995.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(4) After paragraph 4(2) insert—

“(2A) Where an order has been modified in accordance with [paragraph 3A\(8\)\(b\)](#) before being made and submitted by Transport for London under this paragraph, the Authority must—

- (a) require Transport for London to publish its proposals for the TfL scheme, or the proposed variations to the TfL scheme, and to consider objections to the proposals, and
- (b) consult or require Transport for London to consult—
 - (i) any London borough council any of whose area falls within the charging area of the proposed TfL scheme or of the TfL scheme after the proposed variations have been made,
 - (ii) the Secretary of State, and
 - (iii) such other persons as the Authority considers appropriate.

(2B) In a case not falling within [sub-paragraph \(2A\)](#), the Authority may—

- (a) consult, or require an authority making a charging scheme to consult, other persons;
- (b) require such an authority to publish its proposals for the scheme and to consider objections to the proposals.”

(5) In paragraph 4(3)—

- (a) in the opening words, for “The” substitute “In any case, the”;
- (b) omit paragraphs (a) and (aa).

(6) After paragraph 4 insert—

“Secretary of State’s intervention power in relation to certain schemes

4A (1) This paragraph applies where—

- (a) the Secretary of State has been consulted under paragraph [4\(2A\)\(b\)\(ii\)](#) about an order containing a proposal for a TfL scheme or proposed variations to a TfL scheme, and
- (b) the Authority has—
 - (i) made any modifications to the order under paragraph 4(3)
 - (d) that it considers appropriate, or
 - (ii) decided not to make any such modifications.

(2) The Authority may not confirm the order under paragraph 4(1) unless—

- (a) the Authority has published the order, and
- (b) the condition in [sub-paragraph \(3\)](#) has been met.

(3) The condition in this sub-paragraph is met if—

- (a) the period of 60 days beginning with the day on which the order is published (the “confirmation period”) expires without the Secretary of State giving the Authority a direction in relation to the order under [sub-paragraph \(4\)](#), or
- (b) before the end of the confirmation period the Secretary of State gives the Authority a direction in relation to the order under [sub-](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

[paragraph \(4\)](#) and the Authority has modified the order in accordance with the direction.

(4) Where the Secretary of State considers that as a result of the order being modified in accordance with [paragraph 3A\(8\)\(b\)](#)—

- (a) the proposed TfL scheme contained in the order would or could be inconsistent with national policies or obligations relating to air quality, or
- (b) the TfL scheme after the proposed variations contained in the order have been made would or could be inconsistent with such policies or obligations,

the Secretary of State may, within the confirmation period, direct the Authority to make modifications to the order so as to prevent the inconsistency by expanding the charging area of the proposed TfL scheme contained in the order, or the TfL scheme after the proposed variations contained in the order have been made, to include any of the area of a London borough council to which the scheme would not otherwise apply by virtue of the modification in accordance with [paragraph 3A\(8\)\(b\)](#).”

(7) In paragraph 34B(1), after “functions” insert “, or the Secretary of State’s functions,”.

(8) In paragraph 38—

- (a) after “sub-paragraphs” insert “(2A), (2B),”;
- (b) at the end insert “, but does not apply to a variation to a TfL scheme made as a result of a modification to an order under [paragraph 4A\(3\)\(b\)](#)”.

Commencement Information

I337 S. 244 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

245 Protected landscapes

(1) The National Parks and Access to the Countryside Act 1949 is amended in accordance with subsections [\(2\)](#) and [\(3\)](#).

(2) In section 4A (application of Part 2 of Act to Wales), after subsection (2) insert—

“(3) Subsection (1) does not apply in relation to section 11A(1A) or (1B) (duty to further statutory purposes of National Parks in England).”

(3) In section 11A (duty to have regard to purposes of National Parks)—

- (a) in the heading, for “to have regard” substitute “in relation”;
- (b) after subsection (1), insert—

“(1A) In exercising or performing any functions in relation to, or so as to affect, land in any National Park in England, a relevant authority other than a devolved Welsh authority must seek to further the purposes specified in section 5(1) and if it appears that there is a conflict between those purposes, must attach greater weight to the purpose of conserving and enhancing the natural beauty, wildlife and cultural heritage of the area comprised in the National Park.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (1B) In exercising or performing any functions in relation to, or so as to affect, land in any National Park in England, a devolved Welsh authority must have regard to the purposes specified in section 5(1) and if it appears that there is a conflict between those purposes, must attach greater weight to the purpose of conserving and enhancing the natural beauty, wildlife and cultural heritage of the area comprised in the National Park.”;
 - (c) in subsection (2), after “Park”, in the first place it occurs, insert “in Wales”;
 - (d) after that subsection, insert—
 - “(2A) The Secretary of State may by regulations make provision about how a relevant authority is to comply with the duty under [subsection \(1A\)](#) (including provision about things that the authority may, must or must not do to comply with the duty).”;
 - (e) after subsection (5), insert—
 - “(5A) In this section, “devolved Welsh authority” has the same meaning as in the Government of Wales Act 2006 (see, in particular, section 157A of that Act).”
- (4) After section 66 of the Environment Act 1995 (national park management plans), insert—

“66A National Park Management Plans (England): further provision

- (1) The Secretary of State may by regulations make provision—
 - (a) requiring a National Park Management Plan for a park in England to contribute to the meeting of any target set under Chapter 1 of Part 1 of the Environment Act 2021;
 - (b) setting out how such a Management Plan must contribute to the meeting of such targets;
 - (c) setting out how such a Management Plan must further the purposes specified in section 5(1) of the National Parks and Access to the Countryside Act 1949.
- (2) The Secretary of State may by regulations make provision—
 - (a) requiring a relevant authority other than a devolved Welsh authority to contribute to the preparation, implementation or review of a National Park Management Plan for a park in England;
 - (b) setting out how such a relevant authority may or must do so.
- (3) In this section—
 - “devolved Welsh authority” has the same meaning as in the Government of Wales Act 2006 (see, in particular, section 157A of that Act);
 - “relevant authority” has the same meaning as in section 11A of the National Parks and Access to the Countryside Act 1949.

66B Regulations under section 66A: procedure etc

- (1) The power to make regulations under section 66A—
 - (a) is exercisable by statutory instrument;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) includes power to make different provision for different purposes or different areas;
 - (c) includes power to make incidental, supplementary, consequential, transitional, transitory or saving provision.
- (2) A statutory instrument containing regulations under section 66A is subject to annulment in pursuance of a resolution of either House of Parliament.”
- (5) The Countryside and Rights of Way Act 2000 is amended in accordance with subsections (6) to (10).
- (6) In section 85 (general duty of public bodies etc)—
 - (a) before subsection (1), insert—

“(A1) In exercising or performing any functions in relation to, or so as to affect, land in an area of outstanding natural beauty in England, a relevant authority other than a devolved Welsh authority must seek to further the purpose of conserving and enhancing the natural beauty of the area of outstanding natural beauty.

(A2) In exercising or performing any functions in relation to, or so as to affect, land in an area of outstanding natural beauty in England, a devolved Welsh authority must have regard to the purpose of conserving and enhancing the natural beauty of the area of outstanding natural beauty.”;
 - (b) in subsection (1), after “beauty”, in the first place it occurs, insert “in Wales”;
 - (c) after that subsection, insert—

“(1A) The Secretary of State may by regulations make provision about how a relevant authority is to comply with the duty under [subsection \(A1\)](#) (including provision about things that the authority may, must or must not do to comply with the duty).”;
 - (d) in subsection (3), after “(2)—” insert—

““devolved Welsh authority” has the same meaning as in the Government of Wales Act 2006 (see, in particular, section 157A of that Act);”.
- (7) In section 87 (general purposes and powers)—
 - (a) before subsection (1) insert—

“(A1) It is the duty of a conservation board established in relation to an area in England, in the exercise of their functions, to seek to further—

 - (a) the purpose of conserving and enhancing the natural beauty of the area of outstanding natural beauty, and
 - (b) the purpose of increasing the understanding and enjoyment by the public of the special qualities of the area of outstanding natural beauty,

but if it appears to the board that there is a conflict between those purposes, they are to attach greater weight to the purpose mentioned in paragraph (a).”;
 - (b) in subsection (1), after “board”, in the first place it occurs, insert “established in relation to an area in Wales”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) in subsection (2), for the words from “while” to “(1)” substitute “whilst fulfilling their duties under subsection (A1) or (1) (as the case may be)”.
- (8) In section 90 (supplementary provisions relating to management plans), after subsection (2) insert—
 - “(2A) The Secretary of State may by regulations make provision—
 - (a) requiring a plan under section 89 relating to an area of outstanding natural beauty in England to contribute to the meeting of any target set under Chapter 1 of Part 1 of the Environment Act 2021;
 - (b) setting out how such a plan must contribute to the meeting of such targets;
 - (c) setting out how a plan under section 89 relating to an area of outstanding natural beauty in England must further the purpose of conserving and enhancing the natural beauty of that area.”
- (9) After that section insert—

“90A Duty of public bodies etc in relation to management plans

- (1) The Secretary of State may by regulations make provision—
 - (a) requiring a relevant authority other than a devolved Welsh authority to contribute to the preparation, implementation or review of a plan under section 89 relating to an area of outstanding natural beauty in England;
 - (b) setting out how such a relevant authority may or must do so.
- (2) In this section—
 - “devolved Welsh authority” has the same meaning as in the Government of Wales Act 2006 (see, in particular, section 157A of that Act);
 - “relevant authority” has the same meaning as in section 85.”
- (10) After section 91 insert—

“91A Regulations under Part 4

- (1) A power to make regulations under this Part—
 - (a) is exercisable by statutory instrument;
 - (b) includes power to make different provision for different purposes or different areas;
 - (c) includes power to make consequential, incidental, supplementary, transitional, transitory or saving provision.
- (2) Regulations under this Part are to be made by statutory instrument.
- (3) A statutory instrument containing regulations under this Part is subject to annulment in pursuance of a resolution of either House of Parliament.”
- (11) The Norfolk and Suffolk Broads Act 1988 is amended in accordance with subsections (12) to (15).
- (12) In section 3 (the Broads Plan), after subsection (6) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(7) The Secretary of State may by regulations make provision—

- (a) requiring the Broads Plan to contribute to the meeting of any target set under Chapter 1 of Part 1 of the Environment Act 2021;
- (b) setting out how the Broads Plan must contribute to the meeting of such targets;
- (c) setting out how the Broads Plan must further the purposes mentioned in [subsection \(8\)](#).

(8) The purposes are the purposes of—

- (a) conserving and enhancing the natural beauty, wildlife and cultural heritage of the Broads;
- (b) promoting opportunities for the understanding and enjoyment of the special qualities of the Broads by the public; and
- (c) protecting the interests of navigation.”

(13) In section 17A (general duty of public bodies etc)—

- (a) in subsection (1), for “shall have regard to” substitute “must seek to further”;
- (b) after that subsection insert—

“(1A) The Secretary of State may by regulations make provision about how a relevant authority is to comply with the duty under subsection (1) (including provision about things that the authority may, must or must not do to comply with the duty).”

(14) After that section insert—

“17B Duty of public bodies etc to contribute to the Broads Plan

(1) The Secretary of State may by regulations make provision—

- (a) requiring a relevant authority other than a devolved Welsh authority to contribute to the implementation or review of the Broads Plan;
- (b) setting out how such a relevant authority may or must do so.

(2) In this section—

“devolved Welsh authority” has the same meaning as in the Government of Wales Act 2006 (see, in particular, section 157A of that Act);

“relevant authority” has the same meaning as in section 17A.”

(15) In section 24 (orders and byelaws)—

- (a) in the heading, after “orders” insert “, regulations”;
- (b) in subsection (1), after “orders” insert “or regulations”;
- (c) in subsection (3), after “orders” insert “, regulations”.

Commencement Information

I338 [S. 245](#) in force at 26.12.2023, see [s. 255\(9\)\(b\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

PART 13

GENERAL

246 Data protection

- (1) This section applies to a duty or power, to disclose or use information, imposed or conferred by or under any provision of this Act, other than section 86 (in relation to which see subsection (2) of that section).
- (2) A duty or power to which this section applies does not operate to require or authorise the disclosure or use of information which would contravene the data protection legislation (but the duty or power is to be taken into account in determining whether the disclosure or use would contravene that legislation).
- (3) In this section “data protection legislation” has the same meaning as in the Data Protection Act 2018 (see section 3 of that Act).

Commencement Information

I339 S. 246 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

247 Crown application

- (1) This Act binds the Crown, subject to subsections (2) to (4).
- (2) The amendments made by this Act bind the Crown only to the extent that the provisions amended bind the Crown.
- (3) [Part 10](#) does not apply in relation to land that is Crown land for the purposes of Part 13 of TCPA 1990 (see section 293 of that Act).
- (4) [Part 11](#) does not apply in relation to land belonging to His Majesty in right of His private estates (as construed in accordance with section 1 of the Crown Private Estates Act 1862).

Commencement Information

I340 S. 247 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

248 Amendments of references to “retained direct EU legislation”

In [section 166\(3\)\(e\)](#) for “retained direct EU legislation” substitute “assimilated direct legislation”

Commencement Information

I341 [S. 248](#) in force at the end of 2023, see [s. 255\(10\)\(b\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

249 Abbreviated references to certain Acts

In this Act—

“GLAA 1999” means the Greater London Authority Act 1999;

“the Hazardous Substances Act” means the Planning (Hazardous Substances) Act 1990;

“the Listed Buildings Act” means the Planning (Listed Buildings and Conservation Areas) Act 1990;

“PCPA 2004” means the Planning and Compulsory Purchase Act 2004;

“TCPA 1990” means the Town and Country Planning Act 1990.

Commencement Information

I342 S. 249 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

250 Power to make consequential provision

(1) The Secretary of State may by regulations make provision that is consequential on this Act or any provision made under it.

(2) Regulations under this section may amend, repeal or revoke provision made by this Act or any provision made by or under primary legislation passed—

(a) before this Act, or

(b) in the same session of Parliament as this Act.

(3) In this section “primary legislation” means—

(a) an Act,

(b) an Act or Measure of Senedd Cymru,

(c) an Act of the Scottish Parliament, or

(d) Northern Ireland legislation.

Commencement Information

I343 S. 250 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

251 Power to address conflicts with the Historic Environment (Wales) Act 2023

(1) The Secretary of State may by regulations amend this Act, or any Act amended by this Act, in consequence of a relevant amending provision of the Historic Environment (Wales) Act 2023 (“HEWA 2023”) coming into force before a provision of this Act.

(2) That power includes, in relation to an Act amended by this Act, the power to make amendments to serve in place of those contained in this Act.

(3) Amendments made in reliance on subsection (2) must produce in substance the same effect in relation to England as the amendments contained in this Act would produce if the relevant amending provision of HEWA 2023 were ignored.

(4) In this section—

“amend” includes repeal, and related terms are to be read accordingly;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

a “relevant amending provision” of HEWA 2023 means a provision of that Act that amends an enactment that—

- (a) is amended by this Act, or
- (b) relates to an enactment amended by this Act.

Commencement Information

I344 S. 251 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

252 Regulations

- (1) A power to make regulations under this Act includes power to make—
 - (a) different provision for different purposes;
 - (b) different provision for different areas;
 - (c) consequential, incidental, supplementary, transitional, transitory or saving provision.
- (2) A power to make regulations under Chapter 1 of Part 2, in the case of regulations other than regulations under section 13(1) or regulations mentioned in subsection ^[F99](8)(aa)] to ^[F100](ca)]^[F101] or (8)(l), or regulations under Schedule 1A], includes power to make provision amending, applying (with or without modifications), disapplying, repealing or revoking any enactment whenever passed or made.
- (3) Regulations under this Act are to be made by statutory instrument.
- (4) A statutory instrument containing regulations that fall within subsection (5) may not be made unless a draft of the instrument has been laid before, and approved by a resolution of, each House of Parliament.
- (5) Regulations fall within this subsection if they contain provision (whether alone or with other provision)—
 - (a) under Chapter 1 of Part 2, other than provision of the kind mentioned in subsection ^[F102](8)(aa) or ^[F103](8)(ab) or ^[F104](8)(ac) or ^[F105](ca)]^[F106] or (8)(l)];
 - (b) under section 81(6)(b);
 - (c) under section 132;
 - (d) under Part 5 other than section 142(1)(a);
 - (e) under section 217;
 - (f) under Part 11;
 - (g) under section 228;
 - (h) under section 233;
 - (i) which—
 - (i) amends or repeals any provision of primary legislation, and
 - (ii) is not made under section 251 or under section 250 in consequence of regulations under section 251.
- (6) A statutory instrument containing regulations which fall within subsection (8) is subject to annulment in pursuance of a resolution of either House of Parliament.
- (7) Subsection (6) does not apply if a draft of the instrument has been laid before, and approved by a resolution of, each House of Parliament.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(8) Regulations fall within this subsection if they contain provision (whether alone or with other provision)—

[^{F107}(aa) under section 17B(5);]

[^{F108}(ab) under section 32C(2);]

[^{F109}(ac) under section 33A;]

(a) under section 45(8) or 47(9);

(b) under section 51(1) made only for the purpose mentioned in section 51(5)(b);

(c) under section 51(2) made only for that purpose or for imposing conditions on the doing of things for a commercial purpose;

[^{F110}(ca) under section 52A;]

(d) under section 81, other than section 81(6)(b);

(e) under section 108;

(f) under section 142(1)(a);

(g) under section 187;

(h) under Part 10;

(i) under section 230(2)(a)(vii) or (6)(a);

(j) under section 250;

(k) under section 251.

[^{F111}(l) under Schedule 2A.]

(9) Subsections (3) to (8) do not apply to regulations under Chapter 1 of Part 3 or Part 6.

(10) Schedule 24 contains provision about regulations made under Chapter 1 of Part 3 or Part 6.

(11) If a draft of a statutory instrument containing regulations under Chapter 1 of Part 2 or section 228 would, apart from this subsection, be treated for the purposes of the standing orders of either House of Parliament as a hybrid instrument, it is to proceed in that House as if it were not a hybrid instrument.

(12) This section does not apply to regulations under section 255.

(13) In this section “primary legislation” means—

(a) an Act,

(b) an Act or Measure of Senedd Cymru,

(c) an Act of the Scottish Parliament, or

(d) Northern Ireland legislation.

Textual Amendments

F99 Word in s. 252(2) substituted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 104\(7\)\(a\)](#), 108(1)

F100 Word in s. 252(2) substituted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 10\(3\)\(a\)](#), 108(1)(5)

F101 Words in s. 252(2) inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 104\(7\)\(b\)](#), 108(1)

F102 Words in s. 252(5)(a) inserted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 22\(2\)\(a\)](#), 108(1)(5)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- F103** Words in s. 252(5)(a) inserted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(5), [Sch. 22 para. 1\(5\)\(a\)](#)
- F104** Words in s. 252(5)(a) inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 104\(8\)\(a\)](#), 108(1)
- F105** Word in s. 252(5)(a) substituted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 10\(3\)\(b\)](#), 108(1)(5)
- F106** Words in s. 252(5)(a) inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 104\(8\)\(b\)](#), 108(1)
- F107** S. 252(8)(aa) inserted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 22\(2\)\(b\)](#), 108(1)(5)
- F108** S. 252(8)(ab) inserted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(5), [Sch. 22 para. 1\(5\)\(b\)](#)
- F109** S. 252(8)(ac) inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 104\(9\)](#), 108(1)
- F110** S. 252(8)(ca) inserted (29.4.2026 for specified purposes, 29.6.2026 in so far as not already in force) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), [ss. 10\(3\)\(c\)](#), 108(1)(5)
- F111** S. 252(8)(l) inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 3 para. 2](#)

Commencement Information

I345 S. 252 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

253 Financial provisions

- (1) There is to be paid out of money provided by Parliament any expenditure incurred under or by virtue of this Act by a Minister of the Crown or another public authority.
- (2) There is to be paid out of the National Loans Fund, the Consolidated Fund or money provided by Parliament any increase attributable to this Act in the sums payable under any other Act out of the National Loans Fund, the Consolidated Fund or money so provided.

Commencement Information

I346 S. 253 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

254 Extent

- (1) [Part 1](#) extends to England and Wales, Scotland and Northern Ireland.
- (2) [Part 2](#) extends to England and Wales only.
- (3) In [Part 3](#)—
 - (a) [Chapter 1](#) (including [Schedule 13](#) so far as it relates to [Chapter 1](#) of [Part 3](#)) extends to England and Wales, Scotland and Northern Ireland;
 - (b) an amendment or repeal made by [Chapters 2 to 6](#) has the same extent as the provision amended or repealed;
 - (c) sections [108](#) and [132](#) extend to England and Wales, Scotland and Northern Ireland;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (d) section 133 extends to England and Wales and Scotland;
- (e) section 136 extends to England and Wales only.
- (4) Parts 4 and 5 extend to England and Wales only.
- (5) Part 6 (including Schedule 13 so far as it relates to Part 6) extends to England and Wales, Scotland and Northern Ireland.
- (6) Part 7 extends to England and Wales only.
- (7) An amendment or repeal made by Part 8 has the same extent as the provision amended or repealed.
- (8) Parts 9 and 10 extend to England and Wales only.
- (9) Part 11 extends to England and Wales, Scotland and Northern Ireland.
- (10) In Part 12—
 - (a) sections 228, 229 (and Schedule 22), 230, 233 to 236, 237 (and Schedule 23), 238, 240, 241, 243 and 245 extend to England and Wales only;
 - (b) sections 231, 232, 239 and 242 extend to England and Wales, Scotland and Northern Ireland;
 - (c) section 244 extends to England and Wales and Scotland.
- (11) This Part extends to England and Wales, Scotland and Northern Ireland.

Commencement Information

I347 S. 254 in force at Royal Assent, see s. 255(10)(a)

255 Commencement and transitional provision

- (1) In Part 1—
 - (a) section 7 comes into force on the day on which this Act is passed, and
 - (b) the remaining provisions come into force at the end of the period of two months beginning with the day on which this Act is passed.
- (2) In Part 2—
 - (a) sections 27 and 45 come into force on the day on which this Act is passed;
 - (b) in Schedule 4—
 - (i) if a provision amended by any of paragraphs 218, 222, 223 and 224 has not come into force before the end of the period mentioned in paragraph (c), that paragraph comes into force when the provision that it amends comes into force (but otherwise it comes into force at the end of that period);
 - (ii) paragraphs 226 to 230 come into force on such day as the Secretary of State may by regulations appoint;
 - (c) the remaining provisions of Chapter 1 come into force at the end of the period of two months beginning with the day on which this Act is passed;
 - (d) section 58 comes into force at the end of the period of two months beginning with the day on which this Act is passed;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (e) sections 59 and 60 come into force on the day on which this Act is passed;
 - (f) section 61 comes into force at the end of the period of two months beginning with the day on which this Act is passed;
 - (g) section 62 comes into force on the day on which this Act is passed;
 - (h) sections 63 to 65 come into force at the end of the period of two months beginning with the day on which this Act is passed;
 - (i) section 66 comes into force on the day on which this Act is passed;
 - (j) sections 67 to 70 come into force at the end of the period of two months beginning with the day on which this Act is passed;
 - (k) sections 71 and 72 come into force on the day on which this Act is passed;
 - (l) sections 73 and 74 come into force at the end of the period of two months beginning with the day on which this Act is passed;
 - (m) section 75 comes into force on such day as the Secretary of State may by regulations appoint;
 - (n) section 76 comes into force at the end of the period of two months beginning with the day on which this Act is passed;
 - (o) section 77 comes into force on the day on which this Act is passed;
 - (p) section 78 comes into force on such day as the Secretary of State may by regulations appoint;
 - (q) sections 79 and 80 come into force on the day on which this Act is passed;
 - (r) section 81 (and Schedule 5) come into force on such day as the Secretary of State may by regulations appoint;
 - (s) sections 82 and 83 come into force at the end of the period of two months beginning with the day on which this Act is passed.
- (3) In Part 3—
- (a) sections 108, 109 (so far as it confers a power to make regulations or to make a development order), 112, 113 and 114 (so far as conferring a power to make regulations), 121, 126 to 128, 130 to 133 and 136 come into force at the end of the period of two months beginning with the day on which this Act is passed;
 - (b) sections 109, 112, 113 and 114 (so far as not already commenced by virtue of paragraph (a)), Schedule 13 (so far as it relates to Chapter 1 of Part 3) and the other provisions come into force on such day as the Secretary of State may by regulations appoint.
- (4) Parts 4 and 5 come into force on such day as the Secretary of State may by regulations appoint.
- (5) Part 6 (including Schedule 13 so far as it relates to Part 6) comes into force at the end of the period of two months beginning with the day on which this Act is passed.
- (6) Part 7 comes into force at the end of the period of two months beginning with the day on which this Act is passed.
- (7) Parts 8 to 10 come into force on such day as the Secretary of State may by regulations appoint.
- (8) Part 11 comes into force on the day on which this Act is passed.
- (9) In Part 12—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) sections 229 (and Schedule 22), 230, 232, 235, 237 (and Schedule 23), 238 and 244 come into force on such day as the Secretary of State may by regulations appoint;
 - (b) sections 228, 231, 233, 234, 236, 239 to 243 and 245 come into force at the end of the period of two months beginning with the day on which this Act is passed.
- (10) In this Part—
- (a) sections 246, 247 and 249 to 256 come into force on the day on which this Act is passed;
 - (b) section 248 comes into force at the end of 2023.
- (11) A power under [this section](#) to appoint a day may be exercised to appoint different days for different purposes or areas.
- (12) The Secretary of State may by regulations make such transitional, transitory or saving provision as the Secretary of State considers appropriate in connection with the coming into force of any provision of this Act.
- (13) The power to make regulations under [subsection \(12\)](#) includes power to—
- (a) make different provision for different purposes;
 - (b) make different provision for different areas;
 - (c) confer a discretion on the Secretary of State to determine how something is treated under provision made under that subsection.
- (14) Regulations under [this section](#) are to be made by statutory instrument.

Commencement Information

I348 S. 255 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

256 Short title

This Act may be cited as the Levelling-up and Regeneration Act 2023.

Commencement Information

I349 S. 256 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

SCHEDULES

SCHEDULE 1

Section 15

COMBINED COUNTY AUTHORITIES: OVERVIEW AND SCRUTINY COMMITTEES AND AUDIT COMMITTEE

Functions of overview and scrutiny committee

- 1 (1) A CCA must arrange for the appointment by the CCA of one or more committees of the authority (referred to in this Schedule as overview and scrutiny committees).
- (2) The arrangements must ensure that the CCA's overview and scrutiny committee has power (or its overview and scrutiny committees have power between them)—
 - (a) to review or scrutinise decisions made, or other action taken, in connection with the discharge of any functions which are the responsibility of the CCA;
 - (b) to make reports or recommendations to the CCA with respect to the discharge of any functions that are the responsibility of the CCA;
 - (c) to make reports or recommendations to the CCA on matters that affect the CCA's area or the inhabitants of the area.
- (3) If the CCA is a mayoral CCA, the arrangements must also ensure that the CCA's overview and scrutiny committee has power (or its overview and scrutiny committees have power between them)—
 - (a) to review or scrutinise decisions made, or other action taken, in connection with the discharge by the mayor of any general functions;
 - (b) to make reports or recommendations to the mayor with respect to the discharge of any general functions;
 - (c) to make reports or recommendations to the mayor on matters that affect the CCA's area or the inhabitants of the area.
- (4) The power of an overview and scrutiny committee under sub-paragraph (2)(a) and (3)(a) to review or scrutinise a decision made but not implemented includes—
 - (a) power to direct that a decision is not to be implemented while it is under review or scrutiny by the overview and scrutiny committee, and
 - (b) power to recommend that the decision be reconsidered.
- [^{F112}(4A) Paragraph 9 of Schedule 2A makes provision about particular functions of overview and scrutiny committees in relation to commissioners appointed under section 29A.]
- (5) An overview and scrutiny committee of a CCA must publish details of how it proposes to exercise its powers in relation to the review and scrutiny of decisions made but not yet implemented and its arrangements in connection with the exercise of those powers.
- (6) Before complying with sub-paragraph (5) an overview and scrutiny committee must obtain the consent of the CCA to the proposals and arrangements.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (7) An overview and scrutiny committee of a CCA may not discharge any functions other than the functions conferred by or under this Schedule.
- (8) Any reference in this Schedule to the discharge of any functions includes a reference to the doing of anything which is calculated to facilitate, or is conducive or incidental to, the discharge of those functions.

Textual Amendments

F112 Sch. 1 para. 1(4A) inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), ss. 9(3), 108(1)(3) (with s. 102)

Commencement Information

I350 Sch. 1 para. 1 in force at 26.12.2023, see s. 255(2)(c)

Overview and scrutiny committees: supplementary provision

- 2 (1) An overview and scrutiny committee of a CCA—
 - (a) may appoint one or more sub-committees, and
 - (b) may arrange for the discharge of any of its functions by any such sub-committee.
- (2) A sub-committee of an overview and scrutiny committee may not discharge any functions other than those conferred on it under sub-paragraph (1)(b).
- (3) An overview and scrutiny committee of a CCA may not include a member of the CCA (including, in the case of a mayoral CCA, the mayor for the CCA's area or deputy mayor).
- (4) An overview and scrutiny committee of a CCA is to be treated as a committee or sub-committee of a principal council for the purposes of Part 5A of the Local Government Act 1972 (access to meetings and documents of certain authorities, committees and sub-committees).
- (5) Subsections (2) to (5) of section 102 of the Local Government Act 1972 apply to an overview and scrutiny committee of a CCA as they apply to a committee appointed under that section.
- (6) An overview and scrutiny committee of a CCA—
 - (a) may require the members or officers of the CCA to attend before it to answer questions (including, in the case of a mayoral CCA, the mayor for the CCA's area and deputy mayor), and
 - (b) may invite other persons to attend meetings of the committee.
- (7) A person on whom a requirement is imposed under sub-paragraph (6)(a) is required to comply with the requirement.
- (8) A person is not obliged by sub-paragraph (6) to answer any question which the person would be entitled to refuse to answer in or for the purposes of proceedings in a court in England and Wales.
- (9) In exercising, or deciding whether to exercise, any of its functions an overview and scrutiny committee of a CCA must have regard to any guidance for the time being issued by the Secretary of State.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (10) Guidance under sub-paragraph (9) may make different provision for different cases or for different descriptions of committee.
- (11) In sub-paragraphs (3) to (9) references to an overview and scrutiny committee of a CCA include references to any sub-committee of such a committee.

Commencement Information

I351 Sch. 1 para. 2 in force at 26.12.2023, see s. 255(2)(c)

Power to make further provision about overview and scrutiny committees

- 3 (1) The Secretary of State may by regulations make further provision about overview and scrutiny committees of a CCA.
- (2) Provision under sub-paragraph (1) may in particular include provision—
 - (a) about the membership of an overview and scrutiny committee and the voting rights of such members;
 - (b) about the payment of allowances to members of such a committee who are members of a constituent council;
 - (c) about the person who is to be chair of such a committee;
 - (d) for the appointment of a person to act as a scrutiny officer of an overview and scrutiny committee;
 - (e) about how and by whom matters may be referred to an overview and scrutiny committee;
 - (f) requiring persons (whether members of the CCA or other persons) to respond to reports or recommendations made by an overview and scrutiny committee;
 - (g) about the publication of reports, recommendations or responses;
 - (h) about information which must, or must not, be disclosed to an overview and scrutiny committee (whether by members of the CCA or by other persons);
 - (i) as to the minimum or maximum period for which a direction under paragraph 1(4)(a) may have effect.
- (3) Provision must be made under sub-paragraph (2)(a) so as to ensure that the majority of members of an overview and scrutiny committee are members of the CCA's constituent councils.
- (4) Provision must be made under sub-paragraph (2)(c) so as to ensure that the chair of an overview and scrutiny committee is—
 - (a) an independent person (as defined by the regulations), or
 - (b) an appropriate person who is a member of one of the CCA's constituent councils.
- (5) For the purposes of sub-paragraph (4)(b) “appropriate person”—
 - (a) in relation to a mayoral CCA, means a person who is not a member of a registered political party of which the mayor is a member, and
 - (b) in relation to any other CCA, means a person who is not a member of the registered political party which has the most representatives among the members of the constituent councils (or, if there is no such party because two

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

or more parties have the same number of representatives, is not a member of any of those parties).

- (6) In sub-paragraph (2)(d) the reference to a “scrutiny officer” of an overview and scrutiny committee is a reference to a person appointed with the function of—
 - (a) promoting the role of the committee, and
 - (b) providing support and guidance—
 - (i) to the committee and its members, and
 - (ii) to members of the CCA (so far as relating to the functions of the committee).
- (7) Provision under sub-paragraph (2)(g) may include provision for descriptions of confidential or exempt information to be excluded from the publication of reports, recommendations or responses.
- (8) In this paragraph “registered political party” means a party registered under Part 2 of the Political Parties, Elections and Referendums Act 2000.
- (9) In this paragraph references to an overview and scrutiny committee include references to any sub-committee of such a committee.

Commencement Information

I352 Sch. 1 para. 3 in force at 26.12.2023, see s. 255(2)(c)

Audit committees

- 4 (1) A CCA must arrange for the appointment by the CCA of an audit committee.
- (2) The functions of the audit committee are to include—
 - (a) reviewing and scrutinising the CCA’s financial affairs,
 - (b) reviewing and assessing the CCA’s risk management, internal control and corporate governance arrangements,
 - (c) reviewing and assessing the economy, efficiency and effectiveness with which resources have been used in discharging the CCA’s functions, and
 - (d) making reports and recommendations to the CCA in relation to reviews conducted under paragraphs (a), (b) and (c).
- (3) The Secretary of State may by regulations make provision about—
 - (a) the membership of a CCA’s audit committee;
 - (b) the appointment of the members;
 - (c) the payment of allowances to members of the committee who are members of a constituent council.
- (4) Provision must be made under sub-paragraph (3) so as to ensure that at least one member of an audit committee is an independent person (as defined by the regulations).

Commencement Information

I353 Sch. 1 para. 4 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

SCHEDULE 2

Section 27

MAYORS FOR COMBINED COUNTY AUTHORITY AREAS: FURTHER PROVISIONS ABOUT ELECTIONS

Interpretation

- 1 In this Schedule references to a mayor are references to a mayor for the area of a CCA.

Commencement Information

I354 Sch. 2 para. 1 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

Timing of elections

- 2 (1) The term of office of a mayor is to be four years.
- (2) The first election for the return of a mayor is to take place on the first day of ordinary elections of councillors of a constituent council to take place after the end of the period of 6 months beginning with the day on which the regulations under section 27(1) come into force.
- (3) Subsequent elections for the return of a mayor are to take place in every fourth year thereafter on the same day as the ordinary election of councillors of that constituent council.
- (4) But this paragraph has effect subject to any provision made under paragraph 3.

Commencement Information

I355 Sch. 2 para. 2 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

- 3 The Secretary of State may by regulations make provision—
- (a) as to the dates on which and years in which elections for the return of a mayor may or must take place,
 - (b) as to the intervals between elections for the return of a mayor,
 - (c) as to the term of office of a mayor, and
 - (d) as to the filling of vacancies in the office of a mayor.

Commencement Information

I356 Sch. 2 para. 3 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

Commencement Information

I355 Sch. 2 para. 2 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

I356 Sch. 2 para. 3 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Voting at elections of mayors

- 4 (1) Each person entitled to vote as an elector at an election for the return of a mayor is to have one vote [^{F113}(a “mayoral vote”)].
- (2) The mayor is to be returned under the simple majority system [^{F114}, unless there are three or more candidates].
- [^{F115}(3) If there are three or more candidates to be the mayor—
- (a) the mayor is to be returned under the supplementary vote system in accordance with paragraph 4A, and
 - (b) a voter’s mayoral vote is accordingly a vote capable of being given to indicate the voter’s first and second preference from among the candidates.]

Textual Amendments

F113 Words in [Sch. 2 para. 4\(1\)](#) substituted (18.6.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(6), [Sch. 30 para. 17\(a\)](#); S.I. 2026/656, reg. 2(b) (with [reg. 3](#))

F114 Words in [Sch. 2 para. 4\(2\)](#) inserted (18.6.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(6), [Sch. 30 para. 17\(b\)](#); S.I. 2026/656, reg. 2(b) (with [reg. 3](#))

F115 [Sch. 2 para. 4\(3\)](#) inserted (18.6.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(6), [Sch. 30 para. 17\(c\)](#); S.I. 2026/656, reg. 2(b) (with [reg. 3](#))

Commencement Information

I357 [Sch. 2 para. 4](#) in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

[^{F116}4A(1) This paragraph applies where there are three or more candidates to be a mayor.

(2) In this Schedule—

“first preference vote” means a mayoral vote to the extent that it is given so as to indicate a voter’s first preference from among the candidates to be the mayor;

“second preference vote” means a mayoral vote to the extent that it is given so as to indicate a voter’s second preference from among the candidates to be the mayor.

- (3) If one of the candidates to be the mayor receives more than half of all the first preference votes given in the election that candidate is to be returned as the mayor.
- (4) If none of the candidates to be the mayor receives more than half of all the first preference votes given in the election, the following provisions of this paragraph apply.
- (5) The two candidates who received the greatest number of first preference votes given in the election remain in the contest.
- (6) If, by reason of an equality of first preference votes, three or more candidates are qualified to remain in the contest by virtue of sub-paragraph (5), all of them remain in the contest.
- (7) The other candidates are eliminated from the contest.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (8) The number of second preference votes given in the election for each of the candidates remaining in the contest by voters who did not give their first preference vote to any of those candidates must be ascertained.
- (9) The person who must be returned as the mayor is that one of the candidates remaining in the contest who has the greatest total number of preference votes.
- (10) If, by reason of an equality of total number of preference votes, two or more candidates remaining in the contest each have the greatest total number of preference votes, the returning officer is to decide by lots which of them is to be returned as the mayor.
- (11) In this paragraph “mayoral vote” has the meaning given by paragraph 4(1) (as read with sub-paragraph (3) of that paragraph).]

Textual Amendments

F116 Sch. 2 para. 4A inserted (18.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), s. 108(6), [Sch. 30 para. 18](#); S.I. 2026/656, reg. 2(b) (with reg. 3)

Entitlement to vote

- 5 (1) The persons entitled to vote as electors at an election for the return of a mayor for the area of a CCA are those who on the day of the poll—
 - (a) would be entitled to vote as electors at an election of councillors for an electoral area situated wholly or partly within the area of the CCA, and
 - (b) are registered in the register of local government electors at an address within the CCA’s area.
- (2) A person is not entitled as an elector to cast more than one ^{F117}mayoral] vote at an election for the return of a mayor.
- (3) In this paragraph—

“electoral area” has the meaning given by section 203(1) of the Representation of the People Act 1983;

“local government elector” has the meaning given by section 270(1) of the Local Government Act 1972;

^{F118}“mayoral vote” has the meaning given by paragraph 4(1) (as read with sub-paragraph (3) of that paragraph).]

Textual Amendments

F117 Word in Sch. 2 para. 5(2) inserted (18.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), s. 108(6), [Sch. 30 para. 19\(a\)](#); S.I. 2026/656, reg. 2(b) (with reg. 3)

F118 Words in Sch. 2 para. 5(3) inserted (18.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), s. 108(6), [Sch. 30 para. 19\(b\)](#); S.I. 2026/656, reg. 2(b) (with reg. 3)

Commencement Information

I358 Sch. 2 para. 5 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Election as mayor and councillor

- 6 (1) If the person who is returned at an election as the mayor for the area of a CCA is also returned at an election held at the same time as a councillor of a constituent council, a vacancy arises in the office of councillor.
- (2) If the person who is returned at an election (“the mayoral election”) as the mayor for the area of a CCA —
- (a) is a councillor of a constituent council, and
 - (b) was returned as such a councillor at an election held at an earlier time than the mayoral election,
- a vacancy arises in the office of councillor.
- (3) Subject to sub-paragraph (4), a person who is elected as the mayor for the area of a CCA may not be a candidate in an election for the return of a councillor or councillors of a constituent council.
- (4) A person who is the mayor for the area of a CCA may be a candidate in an election for the return of a councillor or councillors of a constituent council if the election is held at the same time as an election for the return of the mayor, but sub-paragraph (1) applies if the person is a candidate in both such elections and is returned as the mayor and as a councillor.

Commencement Information

I359 Sch. 2 para. 6 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

Qualification and disqualification

- 7 (1) In order to be qualified to be elected and to hold office as the mayor for the area of a CCA, a person must, on the relevant day, be—
- (a) at least 18 years old, and
 - (b) a qualifying citizen.
- (2) The person must also—
- (a) on and after the relevant day, be entitled (under paragraph 5) to vote in the election for the return of the mayor for that area, or
 - (b) for the twelve months before the relevant day—
 - (i) have occupied, as owner or tenant, land or other premises within an electoral area situated wholly or partly within the area of the CCA,
 - (ii) had their principal or only place of work in that electoral area, or
 - (iii) resided in that electoral area.
- (3) In this paragraph—
- “electoral area” has the meaning given by section 203(1) of the Representation of the People Act 1983;
 - “qualifying citizen” means a person who is—
 - (a) a qualifying Commonwealth citizen (within the meaning given by section 79 of the Local Government Act 1972),
 - (b) a citizen of the Republic of Ireland,
 - (c) a qualifying EU citizen (within the meaning given by section 203A of the Representation of the People Act 1983), or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (d) an EU citizen with retained rights (within the meaning given by section 203B of that Act);
“relevant day” means—
 - (a) if the election is preceded by the nomination of candidates, the day on which the person is nominated, and
 - (b) if the election is not preceded by the nomination of candidates, the day of the election.
- (4) Until the coming into force of paragraph 5 of Schedule 8 to the Elections Act 2022 (amendment of paragraph 8(3) of Schedule 5B to the Local Democracy, Economic Development and Construction Act 2009 relating to candidacy rights of EU citizens), sub-paragraph (3) has effect as if for the definition of “qualifying citizen” there were substituted—
““qualifying citizen” means a person who is a qualifying Commonwealth citizen or a citizen of the Republic of Ireland or a relevant citizen of the Union, within the meaning given in section 79 of the Local Government Act 1972;”.

Modifications etc. (not altering text)

- C6** Sch. 2 para. 7(3) modified (temp.) (7.2.2024) by [The Combined Authorities \(Mayoral Elections\) Order 2017 \(Amendment\) Regulations 2024 \(S.I. 2024/131\)](#), regs. 1(3), **23**, **24**

Commencement Information

- I360** Sch. 2 para. 7 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

- 8 (1) A person is disqualified for being elected or holding office as the mayor for the area of a CCA if the person—
- (a) holds any paid office or employment (other than the office of mayor or deputy mayor) appointments or elections to which are or may be made by or on behalf of the CCA or any of the constituent councils;
 - (b) is the subject of—
 - (i) a debt relief restrictions order or an interim debt relief restrictions order under Schedule 4ZB to the Insolvency Act 1986, or
 - (ii) a bankruptcy restrictions order or an interim bankruptcy restrictions order under Schedule 4A to the Insolvency Act 1986;
 - (c) has in the five years before being elected, or at any time since being elected, been convicted in the United Kingdom, the Channel Islands or the Isle of Man of an offence and been sentenced to a period of imprisonment of three months or more without the option of a fine;
 - (d) is disqualified for being elected or for being a member of a constituent council under Part 3 of the Representation of the People Act 1983 (consequences of corrupt or illegal practices);
 - (e) is incapable of being elected to or holding—
 - (i) the office of member of the Northern Ireland Assembly having been reported personally guilty or convicted of a corrupt practice under section 114A of the Representation of the People Act 1983 (as applied by Schedule 1 to the Northern Ireland Assembly (Elections) Regulations 2001 ([SI 2001/2599](#))) (undue influence);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (ii) the office of member of a district council in Northern Ireland having been reported personally guilty or convicted of a corrupt practice under paragraph 3 of Schedule 9 to the Electoral Law Act (Northern Ireland) 1962 (undue influence).
- (2) For the purposes of sub-paragraph (1)(c), a person is to be treated as having been convicted on—
 - (a) the expiry of the ordinary period allowed for making an appeal or application with respect to the conviction, or
 - (b) if an appeal or application is made, the date on which it is finally disposed of or abandoned or fails because it is not prosecuted.
- (3) Until the coming into force of paragraph 6 of Schedule 5 to the Elections Act 2022 (amendment of paragraph 9(1) of Schedule 5B to the Local Democracy, Economic Development and Construction Act 2009 relating to undue influence), sub-paragraph (1) has effect as if paragraph (e) were omitted.

Commencement Information

I361 Sch. 2 para. 8 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

- 9 (1) A person is disqualified for being elected or holding office as the mayor for the area of a CCA if the person is subject to—
 - (a) any relevant notification requirements, or
 - (b) a relevant order.
- (2) In this paragraph “relevant notification requirements” mean—
 - (a) the notification requirements of Part 2 of the Sexual Offences Act 2003;
 - (b) the notification requirements of Part 2 of the Sex Offenders (Jersey) Law 2010;
 - (c) the notification requirements of Part 2 of the Criminal Justice (Sex Offenders and Miscellaneous Provisions) (Bailiwick of Guernsey) Law 2013;
 - (d) the notification requirements of Schedule 1 to the Criminal Justice Act 2001 (an Act of Tynwald: c 4).
- (3) In this paragraph “relevant order” means—
 - (a) a sexual harm prevention order under section 345 of the Sentencing Code;
 - (b) a sexual harm prevention order under section 103A of the Sexual Offences Act 2003;
 - (c) a sexual offences prevention order under section 104 of that Act;
 - (d) a sexual risk order under section 122A of that Act;
 - (e) a risk of sexual harm order under section 123 of that Act;
 - (f) a risk of sexual harm order under section 2 of the Protection of Children and Prevention of Sexual Offences (Scotland) Act 2005;
 - (g) a sexual risk order under section 27 of the Abusive Behaviour and Sexual Harm (Scotland) Act 2016;
 - (h) a restraining order under Article 10 of the Sex Offenders (Jersey) Law 2010;
 - (i) a child protection order under Article 11 of that Law;
 - (j) a sexual offences prevention order under section 18 of that Law;
 - (k) a risk of sexual harm order under section 22 of that Law;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (l) a sexual offences prevention order under section 1 of the Sex Offenders Act 2006 (an Act of Tynwald: c 20);
 - (m) a risk of sexual harm order under section 5 of that Act.
- (4) For the purposes of sub-paragraph (1)(a), a person who is subject to any relevant notification requirements is not to be regarded as disqualified until—
- (a) the expiry of the ordinary period allowed for making an appeal or application against the conviction, finding, caution, order or certification in respect of which the person is subject to the relevant notification requirements, or
 - (b) if such an appeal or application is made, the date on which it is finally disposed of or abandoned or fails because it is not prosecuted.
- (5) For the purposes of sub-paragraph (1)(b), a person who is subject to a relevant order is not to be regarded as disqualified until—
- (a) the expiry of the ordinary period allowed for making an appeal against the relevant order, or
 - (b) if such an appeal is made, the date on which it is finally disposed of or abandoned or fails because it is not prosecuted.
- (6) This paragraph does not have the effect of disqualifying a person for being elected or holding office as the mayor for the area of a CCA by reason of the person becoming subject to—
- (a) any relevant notification requirements, or
 - (b) a relevant order,
- before the day on which this paragraph comes into force.

Commencement Information

I362 Sch. 2 para. 9 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

^{F119}A(1) A person is disqualified for holding office as the mayor for the area of a CCA if the person is an elected member of a legislature in the United Kingdom.

- (2) If a person—
- (a) is elected as the mayor for the area of a CCA, and
 - (b) is, on the first day of the mayoral term, an elected member of a legislature in the United Kingdom,
- the person is not disqualified under this paragraph for holding office as the mayor at any time in the period of eight days beginning with the first day of the mayoral term.
- (3) If a person—
- (a) becomes an elected member of a legislature in the United Kingdom, and
 - (b) is, when the person becomes the elected member, the mayor for the area of a CCA,
- the person is not disqualified under this paragraph for holding office as the mayor at any time in the period of eight days beginning with the day on which the person becomes the elected member of the legislature.
- (4) In this paragraph—
- “elected member of a legislature in the United Kingdom” means a member of—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the House of Commons;
 - (b) the Scottish Parliament;
 - (c) Senedd Cymru;
 - (d) the Northern Ireland Assembly;
- “first day of the mayoral term”, in relation to a person who is elected as the mayor for the area of a CCA, means the day that would be the first day of the person’s term as the mayor if it is assumed that the person is not disqualified under this paragraph.]

Textual Amendments
F119 Sch. 2 para. 9A inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 17(3), 108(5)** (with s. 102)

10 Paragraph 10 of Schedule 3 contains further provision about disqualification in the case of mayors who exercise PCC functions.

Commencement Information
I363 Sch. 2 para. 10 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

11 The acts of a person elected as a mayor for the area of a CCA who acts in that office are, despite any disqualification or lack of qualification—

- (a) in respect of being, or being elected as, a mayor, or
- (b) in respect of being, or being elected as, the mayor for that area,

as valid and effectual as if the person had not been so disqualified or as if the person had been qualified.

Commencement Information
I364 Sch. 2 para. 11 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

Textual Amendments
F119 Sch. 2 para. 9A inserted (29.6.2026) by [English Devolution and Community Empowerment Act 2026](#) (c. 23), **ss. 17(3), 108(5)** (with s. 102)

Modifications etc. (not altering text)
C6 Sch. 2 para. 7(3) modified (temp.) (7.2.2024) by [The Combined Authorities \(Mayoral Elections\) Order 2017 \(Amendment\) Regulations 2024](#) (S.I. 2024/131), regs. 1(3), **23, 24**

Commencement Information
I360 Sch. 2 para. 7 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)
I361 Sch. 2 para. 8 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)
I362 Sch. 2 para. 9 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)
I363 Sch. 2 para. 10 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)
I364 Sch. 2 para. 11 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Power to make further provision

- 12 (1) The Secretary of State may by regulations make provision as to—
- (a) the conduct of elections for the return of mayors, and
 - (b) the questioning of elections for the return of mayors and the consequences of irregularities.
- (2) Regulations under sub-paragraph (1)(a) may, in particular, include provision—
- (a) about the registration of electors,
 - (b) for disregarding alterations in a register of electors,
 - (c) about the limitation of election expenses (and the creation of criminal offences in connection with the limitation of such expenses), and
 - (d) for the combination of polls at elections for the return of mayors and other elections.
- (3) Regulations under sub-paragraph (1) may—
- (a) apply or incorporate (with or without modifications) any provision of, or made under, the Representation of the People Acts or any provision of any other enactment (whenever passed or made) relating to parliamentary elections or local government elections,
 - (b) modify any form contained in, or in regulations or rules made under, the Representation of the People Acts so far as may be necessary to enable it to be used both for the original purpose and in relation to elections for the return of mayors, and
 - (c) so far as may be necessary in consequence of any provision made by or under this Part or any regulations under sub-paragraph (1), amend any provision of any enactment (whenever passed or made) relating to the registration of parliamentary electors or local government electors.
- (4) Before making regulations under sub-paragraph (1), the Secretary of State must consult the Electoral Commission.
- (5) In addition, the power of the Secretary of State to make regulations under sub-paragraph (1) so far as relating to matters mentioned in sub-paragraph (2)(c) is exercisable only on, and in accordance with, a recommendation of the Electoral Commission, except where the Secretary of State considers that it is expedient to exercise that power in consequence of changes in the value of money.
- (6) The requirements in sub-paragraphs (4) and (5) may be satisfied by things done before the coming into force of this paragraph.
- (7) No return of a mayor at an election is to be questioned except by an election petition under the provisions of Part 3 of the Representation of the People Act 1983 as applied by or incorporated in regulations under sub-paragraph (1).

Commencement Information

I365 Sch. 2 para. 12 in force at Royal Assent, see [s. 255\(2\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

[^{F120}SCHEDULE 2A

Section 29A

COMMISSIONERS

Textual Amendments

F120 Sch. 2A inserted (29.4.2026) by [English Devolution and Community Empowerment Act 2026 \(c. 23\)](#), s. 108(1)(3), [Sch. 3 para. 1](#) (with s. 102)

Application of Schedule

- 1 This Schedule applies to commissioners appointed by the mayor for the area of a CCA (see section 29A).

Persons ineligible for appointment

- 2
 - (1) The appointment of an ineligible person as a commissioner is of no effect.
 - (2) The appointment of a person ceases to have effect if a person becomes ineligible after appointment as a commissioner.
 - (3) For the purposes of this paragraph a person is “ineligible” if the person—
 - (a) is disqualified for being elected or holding office as the mayor for the area of a CCA under paragraph 8, 9 or 9A of Schedule 2, or
 - (b) is the mayor or deputy mayor for the area of the CCA to which the appointment relates.
 - (4) But being a commissioner does not make a person ineligible by virtue of paragraph 8(1)(a) of Schedule 2 (as applied by sub-paragraph (3)(a)) — instead see paragraph 4(3).
 - (5) Any defect in the appointment of a person as a commissioner, or in the qualifications of a person appointed as a commissioner, does not affect the validity of anything done by the person as commissioner.

Terms and conditions of appointment

- 3
 - (1) The mayor must determine the terms and conditions of a person’s appointment as a commissioner.
 - (2) But that is subject to the provisions of this Schedule.

Commissioner to work in only one area of competence

- 4
 - (1) The terms and conditions must provide for the person’s work as commissioner to relate to one of the areas of competence (the commissioner’s “special” area of competence), whether by relating to—
 - (a) one or more aspects of that area of competence, or
 - (b) that area of competence generally.
 - (2) This paragraph does not prevent a person’s work as a commissioner from relating incidentally—
 - (a) to any area of competence other than the commissioner’s special area, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) to matters outside any of the areas of competence.
- (3) The appointment of a person as a commissioner (the “invalid appointment”) is of no effect if (in the absence of this paragraph) the person would, at any particular time, be serving—
 - (a) as commissioner under the invalid appointment, and
 - (b) as commissioner under another appointment made before, or at the same time as, the invalid appointment—
 - (i) under section 29A (whether or not in relation to the same CCA as the invalid appointment), or
 - (ii) under section 107CA of the Local Democracy, Economic Development and Construction Act 2009 (appointments by mayors of combined authorities).

Duration of appointment

- 5
- (1) The terms and conditions must provide for a person’s appointment as a commissioner to end on or before the last day of the relevant term of office of the mayor making the appointment.
 - (2) If the mayor who made the appointment ceases to hold office before the last day of the relevant term of office—
 - (a) any arrangements under section 30(3)(ba) for the commissioner to exercise functions cease to have effect;
 - (b) the commissioner must not carry out any work as commissioner, except work in preparation for the ending of the appointment in accordance with paragraph (c); and
 - (c) the appointment as commissioner ends with the earlier of the following days—
 - (i) the day on which a person next becomes mayor for the area of the CCA;
 - (ii) the last day of the period of three months beginning with the day on which the mayor ceases to hold office.
 - (3) In this paragraph “relevant term of office”, in relation to an appointment of a person as a commissioner made by a mayor, means the term of office of the mayor during which, or in relation to which, the appointment is made.

Limitation on delegation of functions

- 6
- (1) The power of the mayor to arrange under section 30(3)(ba) for a commissioner to exercise a function is subject to this paragraph.
 - (2) The mayor may not arrange for a commissioner to exercise—
 - (a) any function of approving—
 - (i) a local growth plan under section 32A,
 - (ii) a local transport plan under Part 2 of the Transport Act 2000,
 - (iii) a spatial development strategy under Part 2 of the Planning and Compulsory Purchase Act 2004, or
 - (iv) any other document that is specified for the purposes of this paragraph in regulations made by the Secretary of State;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) any function of making or terminating the appointment of a person as a member of staff or holder of any office or role (whether as an employee or otherwise);
 - (c) any function of a police and crime commissioner that is exercisable by the mayor or the deputy mayor for policing and crime;
 - (d) excepted fire and rescue functions.
- (3) The mayor must obtain the consent of the CCA to any arrangement for a commissioner to exercise a function; but this does not apply to a function that is exercisable only by the mayor on behalf of the CCA.
- (4) The mayor may not arrange for a commissioner to exercise a function except in relation to the commissioner’s special area of competence.
- (5) That does not prevent the mayor from arranging for the commissioner to exercise the function incidentally in relation—
 - (a) to any area of competence other than the commissioner’s special area, or
 - (b) to matters outside any of the areas of competence.
- (6) In this paragraph “excepted fire and rescue functions” means—
 - (a) functions under the following provisions of the FRSA 2004—
 - (i) section 13 (reinforcement schemes);
 - (ii) section 15 (arrangements with other employers of fire-fighters);
 - (iii) section 16 (arrangements for discharge of functions by others);
 - (b) the functions of—
 - (i) appointing, suspending or dismissing the chief fire officer;
 - (ii) approving the terms of appointment of the chief fire officer;
 - (iii) holding the chief fire officer to account for managing the fire and rescue service;
 - (c) approving—
 - (i) the community risk management plan;
 - (ii) the fire and rescue declaration;
 - (d) approving plans, modifications to plans and additions to plans for the purpose of ensuring that—
 - (i) as far as reasonably practicable, the CCA is able to perform its fire and rescue functions if an emergency occurs, and
 - (ii) the CCA is able to perform its functions so far as is necessary or desirable for the purpose of preventing an emergency or reducing, controlling or mitigating the effects of an emergency, or taking other action in connection with it;
 - (e) approving any arrangements for the co-operation of the CCA in relation to its fire and rescue functions with other Category 1 responders and Category 2 responders in respect of—
 - (i) the performance of the CCA’s duty as a fire and rescue authority under section 2 of the Civil Contingencies Act 2004 (duty to assess, plan and advise);
 - (ii) any duties under subordinate legislation made in exercise of powers under that Act.
- (7) In sub-paragraph (6) and this sub-paragraph—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“Category 1 responder” and “Category 2 responder” have the meanings given in section 3 of the Civil Contingencies Act 2004 (section 2: supplemental);

“chief fire officer” means the person with responsibility for managing the fire and rescue service;

“community risk management plan” means a plan which—

- (a) is prepared and published by the CCA in accordance with the Fire and Rescue National Framework, and
- (b) sets out for the period covered by the document in accordance with the requirements of the Framework—
 - (i) the CCA’s priorities and objectives, and
 - (ii) an assessment of all foreseeable fire and rescue related risks that could affect its community, in accordance with the discharge of the CCA’s fire and rescue functions;

“emergency” has the meaning given in section 1 of the Civil Contingencies Act 2004 (meaning of “emergency”);

“fire and rescue authority” means a fire and rescue authority under the FRSA 2004;

“fire and rescue declaration” means a document which—

- (a) is prepared and published by the CCA in accordance with the Fire and Rescue National Framework, and
- (b) contains a statement of the way in which the CCA has had regard, in the period covered by the document, to the Framework and to any community risk management plan prepared by the CCA for that period;

“fire and rescue functions” means—

- (a) functions of a fire and rescue authority which the CCA has by virtue of regulations under section 19, or
- (b) functions which the CCA has as a fire and rescue authority by virtue of section 1(2)(f) or (g) of the FRSA 2004;

“Fire and Rescue National Framework” means the document prepared by the Secretary of State under section 21 of the FRSA 2004;

“fire and rescue service” means the personnel, services and equipment secured for the purposes of carrying out the functions of a fire and rescue authority under—

- (a) section 6 of the FRSA 2004 (fire safety);
- (b) section 7 of the FRSA 2004 (fire-fighting);
- (c) section 8 of the FRSA 2004 (road traffic accidents);
- (d) any applicable order under section 9 of the FRSA 2004 (emergencies);
- (e) section 2 of the Civil Contingencies Act 2004 (duty to assess, plan and advise) and any applicable subordinate legislation made under that Act;
- (f) any other provision of, or made under, an enactment which confers functions on a fire and rescue authority;

“FRSA 2004” means the Fire and Rescue Services Act 2004.

Allowances

7 (1) A CCA may—

- (a) make a scheme providing for the payment of allowances to commissioners appointed by the mayor for the area of the CCA, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) pay allowances in accordance with the scheme.
- (2) A CCA may only make a scheme if—
 - (a) the CCA has considered a report published by a relevant remuneration panel which contains recommendations for the allowances provided for in the scheme, and
 - (b) the allowances payable under the scheme do not exceed the amounts specified in the recommendations made by the relevant remuneration panel.
- (3) A CCA which has made a scheme under this section must produce and publish reports on the allowances paid under the scheme (including their amounts).
- (4) In this section “relevant remuneration panel” means a panel that is specified, or of a description specified, in regulations made by the Secretary of State for the purposes of this paragraph.

Ending of appointment

- 8 The appointment of a person as a commissioner ends if—
- (a) the appointment ceases to have effect in accordance with paragraph 2(2) or 4(3),
 - (b) the appointment ends—
 - (i) in accordance with the terms and conditions included by virtue of paragraph 5(1), or
 - (ii) in accordance with paragraph 5(2),
 - (c) the appointment is terminated in accordance with its terms and conditions or otherwise in accordance with contract law—
 - (i) by the mayor for the area of the CCA (whether that is the person who made the appointment or a successor), or
 - (ii) by the commissioner,
 - (d) the appointment ceases to have effect in accordance with paragraph 9(4), or
 - (e) the commissioner dies.

Role of overview and scrutiny committees

- 9 (1) The power which the CCA’s overview and scrutiny committee has (or its overview and scrutiny committees have between them) in accordance with paragraph 1(3) of Schedule 1 must include power to recommend that a commissioner’s appointment is terminated.
- (2) If a recommendation is made that a commissioner’s appointment is terminated, the CCA must decide whether or not to accept the recommendation.
- (3) A decision to accept the recommendation must be made by a two thirds majority of the non-mayoral members, or substitute members acting in their place, of the CCA present and voting on the question at a meeting of the authority.
- (4) If a decision is made to accept the recommendation, the commissioner’s appointment ceases to have effect when the decision is made.
- (5) In this paragraph “non-mayoral members”, in relation to a CCA, means the members of the CCA other than the mayor.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Powers of appointment and termination exercisable on behalf of the CCA

- 10 (1) The powers to make and terminate the appointment of a person as a commissioner are (by virtue of section 30(1A)) powers of the CCA exercisable only by the mayor on behalf of the CCA.
- (2) Accordingly, if a person is appointed as a commissioner—
- (a) under a worker’s contract, the CCA is the employer;
 - (b) under a contract other than a worker’s contract, the contract is between the CCA and the commissioner;
 - (c) otherwise than under a contract, the commissioner holds office under the CCA.
- (3) In this paragraph “worker’s contract” and “employer” have the same meanings as in the Employment Rights Act 1996 (see section 230 of that Act).

Guidance

- 11 (1) The Secretary of State may issue guidance about the selection or appointment of commissioners.
- (2) The mayors for the areas of CCAs must take account of any such guidance.
- (3) The Secretary of State may issue guidance about the exercise of the function under paragraph 6(3) of consenting to arrangements for a function to be exercisable by a commissioner.
- (4) CCAs must take account of any such guidance.
- (5) The Secretary of State may issue guidance about the exercise by CCAs of the powers conferred by paragraph 7 and guidance about compliance with the duty under that paragraph to produce and publish reports.
- (6) CCAs must take account of any such guidance.
- (7) The Secretary of State may issue guidance about the terms of reports produced by relevant remuneration panels for the purposes of paragraph 7.
- (8) Relevant remuneration panels must take account of any such guidance.
- (9) The Secretary of State may issue guidance about the making of recommendations under paragraph 9 to terminate the appointment of a person as commissioner.
- (10) The members of overview and scrutiny committees must take account of any such guidance.]

SCHEDULE 3

Section 33

MAYORS FOR COMBINED COUNTY AUTHORITY AREAS: PCC FUNCTIONS

Introductory

- 1 (1) This Schedule applies where regulations are made under section 33(1) providing for a mayor to exercise functions of a police and crime commissioner.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) A duty under this Schedule to make provision by regulations is a duty to make such provision in regulations made at any time before the first election of a mayor who, by virtue of regulations under section 33(1), is to exercise functions of a police and crime commissioner.
- (3) In this Schedule references to “the mayor” and the “CCA area” are references to a mayor or area in relation to which regulations are made under section 33(1).
- (4) In this Schedule “the 2011 Act” means the Police Reform and Social Responsibility Act 2011.

Commencement Information

I366 Sch. 3 para. 1 in force at 26.12.2023, see s. 255(2)(c)

PCC functions exercisable by the mayor

- 2 (1) The Secretary of State may by regulations provide that the mayor may exercise in the CCA area—
 - (a) all PCC functions,
 - (b) all PCC functions other than those specified or described in the regulations, or
 - (c) only those PCC functions specified or described in the regulations.
- (2) But regulations under sub-paragraph (1)(b) or (c) must secure that the following PCC functions are exercisable by the mayor in relation to the CCA area—
 - (a) the functions mentioned in subsections (6) to (8) of section 1 of the 2011 Act (securing maintenance of efficient and effective police force and holding the relevant chief constable to account);
 - (b) the functions under sections 5, 7 and 8 of that Act (issuing etc a police and crime plan);
 - (c) the functions under section 38 of that Act (appointing, suspending or removing a chief constable).

Commencement Information

I367 Sch. 3 para. 2 in force at 26.12.2023, see s. 255(2)(c)

Delegation of function

- 3 (1) The Secretary of State must by regulations make provision authorising the mayor—
 - (a) to appoint a deputy mayor in respect of PCC functions (“deputy mayor for policing and crime”), and
 - (b) to arrange for the deputy mayor for policing and crime to exercise any PCC functions of the mayor.
- (2) Regulations under sub-paragraph (1) must include provision authorising the mayor to arrange for any other person to exercise any PCC functions of the mayor.
- (3) Regulations under sub-paragraph (1) must include provision preventing the mayor from appointing as deputy mayor for policing and crime—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the person who is appointed as deputy mayor under section 29;
 - (b) a person listed in subsection (6) of section 18 of the 2011 Act;
 - (c) any other person of a description specified in the regulations.
- (4) Regulations under sub-paragraph (1) must include provision preventing the mayor from arranging for the deputy mayor for policing and crime to exercise—
 - (a) a PCC function of the mayor of a kind listed in subsection (7)(a), (e) or (f) of section 18 of the 2011 Act, or
 - (b) any other PCC function specified or described in the regulations.
- (5) Regulations under sub-paragraph (1) must include provision preventing the mayor from arranging, by virtue of provision under sub-paragraph (2), for a person to exercise—
 - (a) any function if the person is listed in subsection (6) of section 18 of the 2011 Act;
 - (b) a function listed in subsection (7) of that section;
 - (c) any other PCC function specified or described in the regulations.
- (6) Regulations under sub-paragraph (1) must include provision authorising the deputy mayor for policing and crime to arrange for any other person to exercise any PCC function of the mayor which is exercisable by the deputy mayor for policing and crime in accordance with provision made under that sub-paragraph.
- (7) Regulations under sub-paragraph (1) must include provision preventing the deputy mayor for policing and crime from arranging for a person to exercise a function if—
 - (a) the person is listed in subsection (6) of section 18 of the 2011 Act, or
 - (b) the function is a PCC function of the mayor—
 - (i) of a kind listed in subsection (7)(b), (c) or (d) of that section, or
 - (ii) of any other kind specified or described in the regulations.

Commencement Information

I368 Sch. 3 para. 3 in force at 26.12.2023, see s. 255(2)(c)

Police and crime panels

- 4 The Secretary of State must by regulations provide for a panel to be established in relation to the CCA area with functions, in relation to the exercise by the mayor of PCC functions, corresponding to those of a police and crime panel under sections 28 and 29 of the 2011 Act.

Commencement Information

I369 Sch. 3 para. 4 in force at 26.12.2023, see s. 255(2)(c)

- 5 (1) The Secretary of State may by regulations provide for a police and crime panel to have oversight functions in relation to any general functions of the mayor that are the subject of arrangements under section 30(3)(c)(i) (power to arrange for general functions to be exercisable by deputy mayor for policing and crime).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) If it appears to the Secretary of State expedient for the police and crime panel also to have oversight functions in relation to other general functions of the mayor that are related to general functions in respect of which regulations are made under subparagraph (1), the Secretary of State may by regulations provide for the panel to have oversight functions in relation to those other general functions.
- (3) Regulations under this paragraph may disapply, or otherwise modify, the application of paragraph 1(3) of Schedule 1 so far as relating to general functions of the mayor in respect of which a police and crime panel has oversight functions.
- (4) In this paragraph—
 “oversight functions”, in relation to general functions of the mayor, are functions that are of a corresponding or similar kind to those that a police and crime panel has in relation to PCC functions of the mayor;
 “police and crime panel” means a panel established by virtue of regulations under paragraph 4.

Commencement Information

I370 Sch. 3 para. 5 in force at 26.12.2023, see s. 255(2)(c)

- 6 The Secretary of State may by regulations make provision about the payment of allowances to members of a police and crime panel established by virtue of regulations under paragraph 4 who are members of a constituent council.

Commencement Information

I371 Sch. 3 para. 6 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I369 Sch. 3 para. 4 in force at 26.12.2023, see s. 255(2)(c)

I370 Sch. 3 para. 5 in force at 26.12.2023, see s. 255(2)(c)

I371 Sch. 3 para. 6 in force at 26.12.2023, see s. 255(2)(c)

Financial matters

- 7 The Secretary of State must by regulations make provision—
- (a) requiring the mayor to maintain a fund in relation to receipts arising, and liabilities incurred, in the exercise of PCC functions;
 - (b) about the preparation of an annual budget in relation to the exercise of such functions.

Commencement Information

I372 Sch. 3 para. 7 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Suspension

- 8 The Secretary of State must by regulations provide for the panel mentioned in paragraph 4 to have power to suspend the mayor, so far as acting in the exercise of PCC functions, in circumstances corresponding to those mentioned in section 30(1) of the 2011 Act in relation to a police and crime commissioner.

Commencement Information

I373 Sch. 3 para. 8 in force at 26.12.2023, see s. 255(2)(c)

Conduct

- 9 The Secretary of State must by regulations make provision about the matters mentioned in paragraphs (a) to (c) of section 31(1) of the 2011 Act (taking references in those paragraphs to “relevant office holders” as references to the mayor and the deputy mayor for policing and crime).

Commencement Information

I374 Sch. 3 para. 9 in force at 26.12.2023, see s. 255(2)(c)

Disqualification

- 10 (1) The Secretary of State must by regulations provide for [F121 sections 64 to 66 and section 68] of the 2011 Act to apply in relation to a person being, or being elected as, the mayor as they apply in relation to a person being, or being elected as, a police and crime commissioner.
- (2) Provision under sub-paragraph (1) is in addition to paragraphs 7, 8 [F122, 9 and 9A] of Schedule 2.

Textual Amendments

F121 Words in Sch. 3 para. 10(1) substituted (29.6.2026) by English Devolution and Community Empowerment Act 2026 (c. 23), ss. 17(4)(a), 108(5) (with s. 102)

F122 Words in Sch. 3 para. 10(2) substituted (29.6.2026) by English Devolution and Community Empowerment Act 2026 (c. 23), ss. 17(4)(b), 108(5) (with s. 102)

Commencement Information

I375 Sch. 3 para. 10 in force at 26.12.2023, see s. 255(2)(c)

Policing protocol

- 11 The Secretary of State must by regulations require the mayor to have regard, in the exercise of PCC functions, to the policing protocol issued under section 79 of the 2011 Act.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I376 [Sch. 3 para. 11](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

Application of certain enactments

- 12 (1) The Secretary of State must by regulations provide for the following provisions of the Police Act 1996 to apply to the mayor, in the exercise of PCC functions, as though the mayor were a police and crime commissioner—
- (a) sections 24(4) and 98(6) (aid of one police force by another);
 - (b) sections 22A to 23H (collaboration agreements);
 - (c) sections 40 to 40B (powers to give directions);
 - (d) sections 54 and 55 (appointment and functions of His Majesty’s Inspectors of Constabulary);
 - (e) section 96A(2) (national and international functions).
- (2) The Secretary of State must by regulations provide for provision similar to section 41 of the Police Act 1996 (directions as to minimum budget) to have effect for the purpose of enabling directions to be given to the mayor acting on behalf of the mayoral CCA in relation to the calculation of the component of the council tax requirement relating to the mayor’s PCC functions (see section [41\(4\)\(a\)](#) above).

Commencement Information

I377 [Sch. 3 para. 12](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

Supplementary

- 13 (1) Subject to the requirements of this Schedule, the Secretary of State may by regulations make any other provision the Secretary of State thinks appropriate for the purposes of giving full effect to regulations under section [33\(1\)](#).
- (2) Sub-paragraphs (3) and (4) apply in relation to regulations under—
- (a) sub-paragraph [\(1\)](#),
 - (b) another provision of this Schedule, or
 - (c) section [33\(1\)](#).
- (3) The regulations may include provision—
- (a) that is similar to any police and crime commissioner enactment, or
 - (b) for a purpose corresponding to a purpose for which any such enactment is made.
- (4) The regulations may provide for the mayor to be treated as a police and crime commissioner for the purposes of any police and crime commissioner enactment.
- (5) “Police and crime commissioner enactment” means—
- (a) any enactment that is contained in, or is made under, Part 1 of the 2011 Act, and
 - (b) any other enactment that has effect in relation to police and crime commissioners.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (6) In sub-paragraph (5) “enactment” includes an enactment whenever passed or made.
- (7) Power to make regulations under this paragraph is in addition to (and does not limit) the power to make regulations under section 53.
- (8) Subsections (5) and (6) of section 29, so far as relating to the exercise of PCC functions, are subject to any provision contained in regulations under this Schedule.
- (9) Regulations under this Schedule may relate to—
 - (a) a particular mayor in respect of whom regulations under section 33(1) have effect, or
 - (b) all mayors in respect of whom any such regulations have effect.

Commencement Information

I378 Sch. 3 para. 13 in force at 26.12.2023, see s. 255(2)(c)

SCHEDULE 4

Section 56

COMBINED COUNTY AUTHORITIES: CONSEQUENTIAL AMENDMENTS

Landlord and Tenant Act 1954 (c. 56)

- 1 In section 69(1) of the Landlord and Tenant Act 1954 (interpretation), in the definition of “local authority”, after “section 103 of that Act” insert “, a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I379 Sch. 4 para. 1 in force at 26.12.2023, see s. 255(2)(c)

Trustee Investments Act 1961 (c. 62)

- 2 In section 11(4)(a) of the Trustee Investments Act 1961 (local authority investment schemes), after “section 103 of that Act” insert “, a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I380 Sch. 4 para. 2 in force at 26.12.2023, see s. 255(2)(c)

Local Government (Records) Act 1962 (c. 56)

- 3 The Local Government (Records) Act 1962 is amended as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I381 Sch. 4 para. 3 in force at 26.12.2023, see s. 255(2)(c)

- 4 In section 2(6) (acquisition and deposit of records), after “section 103 of that Act” insert “, to a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I382 Sch. 4 para. 4 in force at 26.12.2023, see s. 255(2)(c)

- 5 In section 8(1) (interpretation), in the definition of “local authority”, after “section 103 of that Act” insert “, or a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I383 Sch. 4 para. 5 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I381 Sch. 4 para. 3 in force at 26.12.2023, see s. 255(2)(c)

I382 Sch. 4 para. 4 in force at 26.12.2023, see s. 255(2)(c)

I383 Sch. 4 para. 5 in force at 26.12.2023, see s. 255(2)(c)

Leasehold Reform Act 1967 (c. 88)

- 6 In section 28(5)(a) of the Leasehold Reform Act 1967 (retention or resumption of land required for public purposes), after “section 103 of that Act,” insert “any combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023,”.

Commencement Information

I384 Sch. 4 para. 6 in force at 26.12.2023, see s. 255(2)(c)

Transport Act 1968 (c. 73)

- 7 The Transport Act 1968 is amended as follows.

Commencement Information

I385 Sch. 4 para. 7 in force at 26.12.2023, see s. 255(2)(c)

- 8 (1) Section 9 (Areas, Authorities and Executives) is amended as follows.
 (2) In subsection (1)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) in paragraph (a)(i), after “a combined authority area” insert “or a combined county authority area”;
 - (b) after paragraph (ab) insert—
 - “(ac) any reference to a “combined county authority” is to an authority established under section 9(1) of the Levelling-up and Regeneration Act 2023 for an area which is or includes a metropolitan county;
 - (ad) any reference to a “combined county authority area” is to an area for which a combined county authority is established;”;
 - (c) in paragraph (b), after sub-paragraph (ia) insert—
 - “(iaa) in relation to a combined county authority area, the combined county authority;”.
- (3) In subsection (2), after “a combined authority area” insert “, a combined county authority area”.
- (4) In subsection (3), after “a combined authority area” insert “, a combined county authority area”.
- (5) In subsection (5) for “or a combined authority area” substitute “a combined authority area or a combined county authority area”.

Commencement Information

I386 Sch. 4 para. 8 in force at 26.12.2023, see s. 255(2)(c)

- 9 In section 9A (general functions of Authorities and Executives), in each of subsections (3), (5), (6)(a) and (b), (7) and (8), after “combined authority area” insert “, combined county authority area”.

Commencement Information

I387 Sch. 4 para. 9 in force at 26.12.2023, see s. 255(2)(c)

- 10 (1) Section 10 (general powers of Executives) is amended as follows.
- (2) In subsection (1), after “a combined authority area” insert “, a combined county authority area”.
 - (3) In subsection (3), after “a combined authority area” insert “, a combined county authority area”.
 - (4) In subsection (5), after “a combined authority area” insert “, a combined county authority area”.

Commencement Information

I388 Sch. 4 para. 10 in force at 26.12.2023, see s. 255(2)(c)

- 11 In section 10A(1) (further powers of Executives), for “or combined authority area” substitute “, combined authority area or combined county authority area”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I389 [Sch. 4 para. 11](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 12 In section 12(1) (borrowing powers of Executive), after “a combined authority area” insert “, a combined county authority area”.

Commencement Information

I390 [Sch. 4 para. 12](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 13 In section 14(1) (accounts of Executive), after “a combined authority area” insert “, a combined county authority area”.

Commencement Information

I391 [Sch. 4 para. 13](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 14 (1) Section 15 (further functions of Authority) is amended as follows.
- (2) In subsection (1), after “a combined authority area” insert “, a combined county authority area”.
- (3) In subsection (6), after “a combined authority area” insert “, a combined county authority area”.

Commencement Information

I392 [Sch. 4 para. 14](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 15 In section 16(1) (annual report by Authority and Executive), after “combined authority area” insert “, combined county authority area”.

Commencement Information

I393 [Sch. 4 para. 15](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 16 (1) Section 20 (special duty with respect to railway passengers) is amended as follows.
- (2) In subsection (1), after “a combined authority area” insert “, a combined county authority area”.
- (3) In subsection (2A), after “a combined authority area” insert “, a combined county authority area”.

Commencement Information

I394 [Sch. 4 para. 16](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 17 (1) Section 23 (consents of, or directions, by Minister) is amended as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) In subsection (1), after “a combined authority area” insert “, a combined county authority area”.
- (3) In subsection (2), after “a combined authority area” insert “, a combined county authority area”.
- (4) In subsection (3), after “a combined authority area” insert “, a combined county authority area”.

Commencement Information

I395 Sch. 4 para. 17 in force at 26.12.2023, see s. 255(2)(c)

- 18 In section 56(6) (assistance by Minister or local authority towards expenditure on public transport), after paragraph (bc) insert—
- “(bd) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I396 Sch. 4 para. 18 in force at 26.12.2023, see s. 255(2)(c)

- 19 (1) Schedule 5 (Passenger Transport Executives) is amended as follows.
- (2) In Part 2, in paragraph 2, after “the combined authority area”, in both places it occurs, insert “, the combined county authority area”.
 - (3) In Part 3, in paragraph 11, after “a combined authority area”, insert “, a combined county authority area”.

Commencement Information

I397 Sch. 4 para. 19 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I385 Sch. 4 para. 7 in force at 26.12.2023, see s. 255(2)(c)
I386 Sch. 4 para. 8 in force at 26.12.2023, see s. 255(2)(c)
I387 Sch. 4 para. 9 in force at 26.12.2023, see s. 255(2)(c)
I388 Sch. 4 para. 10 in force at 26.12.2023, see s. 255(2)(c)
I389 Sch. 4 para. 11 in force at 26.12.2023, see s. 255(2)(c)
I390 Sch. 4 para. 12 in force at 26.12.2023, see s. 255(2)(c)
I391 Sch. 4 para. 13 in force at 26.12.2023, see s. 255(2)(c)
I392 Sch. 4 para. 14 in force at 26.12.2023, see s. 255(2)(c)
I393 Sch. 4 para. 15 in force at 26.12.2023, see s. 255(2)(c)
I394 Sch. 4 para. 16 in force at 26.12.2023, see s. 255(2)(c)
I395 Sch. 4 para. 17 in force at 26.12.2023, see s. 255(2)(c)
I396 Sch. 4 para. 18 in force at 26.12.2023, see s. 255(2)(c)
I397 Sch. 4 para. 19 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Local Government Grants (Social Need) Act 1969 (c. 2)

- 20 In section 1(3) of the Local Government Grants (Social Need) Act 1969 (provision for grants), for “and a combined authority established under section 103 of that Act” substitute “, a combined authority established under section 103 of that Act and a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I398 Sch. 4 para. 20 in force at 26.12.2023, see s. 255(2)(c)

Employers’ Liability (Compulsory Insurance) Act 1969 (c. 57)

- 21 In section 3(2)(b) of the Employers’ Liability (Compulsory Insurance) Act 1969 (employers exempted from insurance), after “section 103 of that Act,” insert “a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023,”.

Commencement Information

I399 Sch. 4 para. 21 in force at 26.12.2023, see s. 255(2)(c)

Local Authorities (Goods and Services) Act 1970 (c. 39)

- 22 In section 1(4) of the Local Authorities (Goods and Services) Act 1970 (provision for grants), in the definition of “local authority”, after “section 103 of that Act,” insert “any combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023,”.

Commencement Information

I400 Sch. 4 para. 22 in force at 26.12.2023, see s. 255(2)(c)

Local Government Act 1972 (c. 70)

- 23 The Local Government Act 1972 is amended as follows.

Commencement Information

I401 Sch. 4 para. 23 in force at 26.12.2023, see s. 255(2)(c)

- 24 (1) Section 70 (restriction on promotion of Bills for changing local government areas, etc) is amended as follows.
- (2) In subsection (1), for “or combined authority” substitute “, combined authority or combined county authority”.
- (3) In subsection (3), for “or combined authority” substitute “, combined authority or combined county authority”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I402 Sch. 4 para. 24 in force at 26.12.2023, see s. 255(2)(c)

- 25 In section 80(2)(b) (disqualification for election and holding office as member of local authority), after “combined authority” insert “, combined county authority”.

Commencement Information

I403 Sch. 4 para. 25 in force at 26.12.2023, see s. 255(2)(c)

- 26 In section 85(4) (vacation of office by failure to attend meetings), for “and a combined authority” substitute “, a combined authority and a combined county authority”.

Commencement Information

I404 Sch. 4 para. 26 in force at 26.12.2023, see s. 255(2)(c)

- 27 In section 86(2) (declaration of vacancy by local authority), for “and a combined authority” substitute “, a combined authority and a combined county authority”.

Commencement Information

I405 Sch. 4 para. 27 in force at 26.12.2023, see s. 255(2)(c)

- 28 In section 92(7) (proceedings for disqualification)—
(a) for “and a combined authority” substitute “, a combined authority and a combined county authority”, and
(b) for “or a combined authority” substitute “, a combined authority or a combined county authority”.

Commencement Information

I406 Sch. 4 para. 28 in force at 26.12.2023, see s. 255(2)(c)

- 29 In section 99 (meetings and proceedings of local authorities), after “combined authorities,” insert “combined county authorities,”.

Commencement Information

I407 Sch. 4 para. 29 in force at 26.12.2023, see s. 255(2)(c)

- 30 (1) Section 100J (application of Part 5A to to new authorities, Common Council, etc) is amended as follows.
(2) In subsection (1), after paragraph (bd) insert—
“(bda) a combined county authority;”.
(3) In subsection (4)(a), for “or a combined authority” substitute “, a combined authority or a combined county authority”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I408 Sch. 4 para. 30 in force at 26.12.2023, see s. 255(2)(c)

- 31 (1) Section 101 (arrangements for discharge of functions by local authorities) is amended as follows.
- (2) In subsection (1E), for ““Mayoral function”” substitute “In subsection (1D) “mayoral function””.
- (3) After subsection (1E) insert—
- “(1F) A combined county authority may not arrange for the discharge of any functions under subsection (1) if, or to the extent that, the function is a mayoral function of a mayor for the area of the authority.
- (1G) In subsection (1F) “mayoral function” has the meaning given by section 41(8) of the Levelling-up and Regeneration Act 2023.”
- (4) In subsection (5C), after “combined authority” insert “or combined county authority”.
- (5) In subsection (5D)—
- (a) the words from “section 107E” to the end become paragraph (a), and
- (b) at the end of paragraph (a) insert “, or
- (b) section 32 of the Levelling-up and Regeneration Act 2023 (joint exercise of general functions).”
- (6) In subsection (5E), for “has the meaning given in section 107D(2) of that Act.” substitute “—
- (a) in relation to a combined authority, has the meaning given in section 107D(2) of the Local Democracy, Economic Development and Construction Act 2009;
- (b) in relation to a combined county authority, has the meaning given in section 30(2) of the Levelling-up and Regeneration Act 2023.”
- (7) In subsection (13), after “a combined authority,” insert “a combined county authority,”.

Commencement Information

I409 Sch. 4 para. 31 in force at 26.12.2023, see s. 255(2)(c)

- 32 In section 138C(1) (application of sections 138A and 138B to other authorities), after paragraph (n) insert—
- “(na) a combined county authority;”.

Commencement Information

I410 Sch. 4 para. 32 in force at 26.12.2023, see s. 255(2)(c)

- 33 In section 142(1B) (provision of information relating to matters affecting local government), after “a combined authority” insert “, a combined county authority”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I411 Sch. 4 para. 33 in force at 26.12.2023, see s. 255(2)(c)

34 (1) Section 146A (joint authorities etc) is amended as follows.

(2) In subsection (1)—

(a) in the opening words, after “(1ZE)” insert “, (1ZEA)”, and

(b) after “a combined authority,” insert “a combined county authority”.

(3) After subsection (1ZE) insert—

“(1ZEA) A combined county authority is not to be treated as a local authority for the purposes of section 111 (but see section 49 of the Levelling-up and Regeneration Act 2023).”

Commencement Information

I412 Sch. 4 para. 34 in force at 26.12.2023, see s. 255(2)(c)

35 In section 175(3B) (allowances for attending conferences and meetings), after “a combined authority” insert “, a combined county authority”.

Commencement Information

I413 Sch. 4 para. 35 in force at 26.12.2023, see s. 255(2)(c)

36 In section 176(3) (payment of expenses), for “and a combined authority” substitute “a combined authority and a combined county authority”.

Commencement Information

I414 Sch. 4 para. 36 in force at 26.12.2023, see s. 255(2)(c)

37 In section 223(2) (appearance of local authorities in legal proceedings), after “a combined authority,” insert “a combined county authority,”.

Commencement Information

I415 Sch. 4 para. 37 in force at 26.12.2023, see s. 255(2)(c)

38 In section 224(2) (arrangements by principal councils for custody of documents), for “or combined authority” substitute “, combined authority or combined county authority”.

Commencement Information

I416 Sch. 4 para. 38 in force at 26.12.2023, see s. 255(2)(c)

39 In section 225(3) (deposit of documents with proper officer), for “and a combined authority” substitute “, a combined authority and a combined county authority”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I417 [Sch. 4 para. 39](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 40 In section 228(7A) (inspection of documents), for “or a combined authority” substitute “, a combined authority or a combined county authority”.

Commencement Information

I418 [Sch. 4 para. 40](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 41 In section 229(8) (photographic copies of documents) after “a combined authority,” insert “a combined county authority,”.

Commencement Information

I419 [Sch. 4 para. 41](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 42 In section 230(2) (reports and returns), for “and a combined authority” substitute “, a combined authority and a combined county authority”.

Commencement Information

I420 [Sch. 4 para. 42](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 43 In section 231(4) (service of notice on local authorities), after “a combined authority,” insert “a combined county authority,”.

Commencement Information

I421 [Sch. 4 para. 43](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 44 In section 232(1A) (public notices), after “a combined authority,” insert “a combined county authority,”.

Commencement Information

I422 [Sch. 4 para. 44](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 45 In section 233(11) (service of notices by local authorities), after “a combined authority,” insert “a combined county authority,”.

Commencement Information

I423 [Sch. 4 para. 45](#) in force at 26.12.2023, see [s. 255\(2\)\(c\)](#)

- 46 In section 234(4) (authentication of documents), after “a combined authority,” insert “a combined county authority,”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I424 Sch. 4 para. 46 in force at 26.12.2023, see s. 255(2)(c)

- 47 In section 236(1) (procedure for byelaws), for “or a combined authority” substitute “, a combined authority or a combined county authority”.

Commencement Information

I425 Sch. 4 para. 47 in force at 26.12.2023, see s. 255(2)(c)

- 48 In section 236B(1) (revocation of byelaws), after paragraph (e) insert—
“(f) a combined county authority.”

Commencement Information

I426 Sch. 4 para. 48 in force at 26.12.2023, see s. 255(2)(c)

- 49 In section 238 (evidence of byelaws), for “or a combined authority” substitute “, a combined authority or a combined county authority”.

Commencement Information

I427 Sch. 4 para. 49 in force at 26.12.2023, see s. 255(2)(c)

- 50 In section 239(4A) (power to promote or oppose bills), for “and a combined authority” substitute “, a combined authority and a combined county authority”.

Commencement Information

I428 Sch. 4 para. 50 in force at 26.12.2023, see s. 255(2)(c)

- 51 In section 270(1) (interpretation), at the appropriate place insert—
““combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I429 Sch. 4 para. 51 in force at 26.12.2023, see s. 255(2)(c)

- 52 In Part 1A of Schedule 12 (meetings and proceedings of joint authorities etc), in paragraph 6A, for “or a combined authority” substitute “, a combined authority or a combined county authority”.

Commencement Information

I430 Sch. 4 para. 52 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

- I401 Sch. 4 para. 23 in force at 26.12.2023, see s. 255(2)(c)
- I402 Sch. 4 para. 24 in force at 26.12.2023, see s. 255(2)(c)
- I403 Sch. 4 para. 25 in force at 26.12.2023, see s. 255(2)(c)
- I404 Sch. 4 para. 26 in force at 26.12.2023, see s. 255(2)(c)
- I405 Sch. 4 para. 27 in force at 26.12.2023, see s. 255(2)(c)
- I406 Sch. 4 para. 28 in force at 26.12.2023, see s. 255(2)(c)
- I407 Sch. 4 para. 29 in force at 26.12.2023, see s. 255(2)(c)
- I408 Sch. 4 para. 30 in force at 26.12.2023, see s. 255(2)(c)
- I409 Sch. 4 para. 31 in force at 26.12.2023, see s. 255(2)(c)
- I410 Sch. 4 para. 32 in force at 26.12.2023, see s. 255(2)(c)
- I411 Sch. 4 para. 33 in force at 26.12.2023, see s. 255(2)(c)
- I412 Sch. 4 para. 34 in force at 26.12.2023, see s. 255(2)(c)
- I413 Sch. 4 para. 35 in force at 26.12.2023, see s. 255(2)(c)
- I414 Sch. 4 para. 36 in force at 26.12.2023, see s. 255(2)(c)
- I415 Sch. 4 para. 37 in force at 26.12.2023, see s. 255(2)(c)
- I416 Sch. 4 para. 38 in force at 26.12.2023, see s. 255(2)(c)
- I417 Sch. 4 para. 39 in force at 26.12.2023, see s. 255(2)(c)
- I418 Sch. 4 para. 40 in force at 26.12.2023, see s. 255(2)(c)
- I419 Sch. 4 para. 41 in force at 26.12.2023, see s. 255(2)(c)
- I420 Sch. 4 para. 42 in force at 26.12.2023, see s. 255(2)(c)
- I421 Sch. 4 para. 43 in force at 26.12.2023, see s. 255(2)(c)
- I422 Sch. 4 para. 44 in force at 26.12.2023, see s. 255(2)(c)
- I423 Sch. 4 para. 45 in force at 26.12.2023, see s. 255(2)(c)
- I424 Sch. 4 para. 46 in force at 26.12.2023, see s. 255(2)(c)
- I425 Sch. 4 para. 47 in force at 26.12.2023, see s. 255(2)(c)
- I426 Sch. 4 para. 48 in force at 26.12.2023, see s. 255(2)(c)
- I427 Sch. 4 para. 49 in force at 26.12.2023, see s. 255(2)(c)
- I428 Sch. 4 para. 50 in force at 26.12.2023, see s. 255(2)(c)
- I429 Sch. 4 para. 51 in force at 26.12.2023, see s. 255(2)(c)
- I430 Sch. 4 para. 52 in force at 26.12.2023, see s. 255(2)(c)

Employment Agencies Act 1973 (c. 35)

53 In section 13(7) of the Employment Agencies Act 1973 (interpretation), after paragraph (fzc) insert—

“(fzd) the exercise by a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023 of any of its functions;”.

Commencement Information

- I431 Sch. 4 para. 53 in force at 26.12.2023, see s. 255(2)(c)

Local Government Act 1974 (c. 7)

54 The Local Government Act 1974 is amended as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I432 Sch. 4 para. 54 in force at 26.12.2023, see s. 255(2)(c)

- 55 In section 25(1) (authorities subject to investigation), after paragraph (cf) insert—
“(cg) any combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I433 Sch. 4 para. 55 in force at 26.12.2023, see s. 255(2)(c)

- 56 (1) Section 26C (referral of complaints by authorities) is amended as follows.
(2) In subsection (6), after paragraph (f) insert—
“(g) in relation to a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023, a member of a constituent council of the authority;”.
(3) After subsection (8) insert—
“(9) For the purposes of subsection (6)(g)—
(a) a county council is a constituent council of a combined county authority if the area of the county council, or part of that area, is within the area of the combined county authority;
(b) a district council is a constituent council of a combined county authority if the area of the district council is within the area of the combined county authority.”

Commencement Information

I434 Sch. 4 para. 56 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I432 Sch. 4 para. 54 in force at 26.12.2023, see s. 255(2)(c)

I433 Sch. 4 para. 55 in force at 26.12.2023, see s. 255(2)(c)

I434 Sch. 4 para. 56 in force at 26.12.2023, see s. 255(2)(c)

Health and Safety at Work etc Act 1974 (c. 37)

- 57 In section 28(6) of the Health and Safety at Work etc Act 1974 (restrictions on disclosure of information), after “section 103 of that Act,” insert “a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I435 Sch. 4 para. 57 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Local Government (Miscellaneous Provisions) Act 1976 (c. 57)

- 58 In section 44 of the Local Government (Miscellaneous Provisions) Act 1976 (interpretation of Part 1), in the definition of “local authority”—
- (a) in paragraph (a), after “section 103 of that Act,” insert “a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023,”;
 - (b) in paragraph (c), after “section 103 of that Act,” insert “a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023,”.

Commencement Information

I436 Sch. 4 para. 58 in force at 26.12.2023, see **s. 255(2)(c)**

Rent (Agriculture) Act 1976 (c. 80)

- 59 In section 5(3) of the Rent (Agriculture) Act 1976 (no statutory tenancy where landlord’s interest belongs to local authority), after paragraph (bbzb) insert—
- “(bbzc) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I437 Sch. 4 para. 59 in force at 26.12.2023, see **s. 255(2)(c)**

Rent Act 1977 (c. 42)

- 60 In section 14(1) of the Rent Act 1977 (landlord’s interest belonging to local authority etc), after paragraph (cbc) insert—
- “(cbd) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I438 Sch. 4 para. 60 in force at 26.12.2023, see **s. 255(2)(c)**

Protection from Eviction Act 1977 (c. 43)

- 61 In section 3A(8) of the Protection from Eviction Act 1977 (excluded tenancies and licences), after paragraph (ab) insert—
- “(ac) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I439 Sch. 4 para. 61 in force at 26.12.2023, see **s. 255(2)(c)**

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Local Government, Planning and Land Act 1980 (c. 65)

62 The Local Government, Planning and Land Act 1980 is amended as follows.

Commencement Information

I440 Sch. 4 para. 62 in force at 26.12.2023, see s. 255(2)(c)

63 In section 2(1) (duty of authorities to publish information), after paragraph (kac) insert—

“(kad) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I441 Sch. 4 para. 63 in force at 26.12.2023, see s. 255(2)(c)

64 In section 98(8A) (disposal of land at direction of Secretary of State), after paragraph (ezb) insert—

“(ezc) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I442 Sch. 4 para. 64 in force at 26.12.2023, see s. 255(2)(c)

65 In section 99(4) (directions to dispose of land), after paragraph (dbzb) insert—

“(dbzc) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I443 Sch. 4 para. 65 in force at 26.12.2023, see s. 255(2)(c)

66 In section 100(1)(a) (interpretation and extent of Part 10), for “or a combined authority established under section 103 of that Act” substitute “, a combined authority established under section 103 of that Act or a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I444 Sch. 4 para. 66 in force at 26.12.2023, see s. 255(2)(c)

67 In Schedule 16 (bodies to whom Part 10 applies), after paragraph 5BZB insert—

“5BZBA A combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I445 Sch. 4 para. 67 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

- I440 Sch. 4 para. 62 in force at 26.12.2023, see s. 255(2)(c)
- I441 Sch. 4 para. 63 in force at 26.12.2023, see s. 255(2)(c)
- I442 Sch. 4 para. 64 in force at 26.12.2023, see s. 255(2)(c)
- I443 Sch. 4 para. 65 in force at 26.12.2023, see s. 255(2)(c)
- I444 Sch. 4 para. 66 in force at 26.12.2023, see s. 255(2)(c)
- I445 Sch. 4 para. 67 in force at 26.12.2023, see s. 255(2)(c)

Public Passenger Vehicles Act 1981 (c. 14)

- 68 In section 4C(4) of the Public Passenger Vehicles Act 1981 (power of senior traffic commissioner to give guidance and directions), in paragraph (e), after “of combined authorities” insert “established under section 103 of the Local Democracy, Economic Development and Construction Act 2009, of combined county authorities established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

- I446 Sch. 4 para. 68 in force at 26.12.2023, see s. 255(2)(c)

Acquisition of Land Act 1981 (c. 67)

- 69 In section 17(4)(a) of the Acquisition of Land Act 1981 (local authority land), in the definition of “local authority”, for “or a combined authority established under section 103 of that Act” substitute “, a combined authority established under section 103 of that Act or a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

- I447 Sch. 4 para. 69 in force at 26.12.2023, see s. 255(2)(c)

Local Government (Miscellaneous Provisions) Act 1982 (c. 30)

- 70 The Local Government (Miscellaneous Provisions) Act 1982 is amended as follows.

Commencement Information

- I448 Sch. 4 para. 70 in force at 26.12.2023, see s. 255(2)(c)

- 71 In section 33(9) (enforceability by local authorities of covenants relating to land)—
- (a) in paragraph (a), for “or a combined authority established under section 103 of that Act” substitute “, a combined authority established under section 103 of that Act or a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”;
 - (b) in paragraph (b), for “or combined authority” substitute “, combined authority or combined county authority”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I449 Sch. 4 para. 71 in force at 26.12.2023, see s. 255(2)(c)

- 72 In section 41(13) (lost and uncollected property), in the definition of “local authority”, after paragraph (ezb) insert—
“(ezba) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I450 Sch. 4 para. 72 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I448 Sch. 4 para. 70 in force at 26.12.2023, see s. 255(2)(c)

I449 Sch. 4 para. 71 in force at 26.12.2023, see s. 255(2)(c)

I450 Sch. 4 para. 72 in force at 26.12.2023, see s. 255(2)(c)

Stock Transfer Act 1982 (c. 41)

- 73 In Schedule 1 to the Stock Transfer Act 1982 (specified securities), in paragraph 7(2) (a), after “section 103 of that Act” insert “, a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I451 Sch. 4 para. 73 in force at 26.12.2023, see s. 255(2)(c)

County Courts Act 1984 (c. 28)

- 74 In section 60(3) of the County Courts Act 1984 (rights of audience), in the definition of “local authority”, after “section 103 of that Act,” insert “a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I452 Sch. 4 para. 74 in force at 26.12.2023, see s. 255(2)(c)

Local Government Act 1985 (c. 51)

- 75 The Local Government Act 1985 is amended as follows.

Commencement Information

I453 Sch. 4 para. 75 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- 76 In section 72(5) (accounts and audit), after paragraph (c) insert—
 “(d) a combined county authority established under section 9(1) of the
 Levelling-up and Regeneration Act 2023.”

Commencement Information

I454 Sch. 4 para. 76 in force at 26.12.2023, see s. 255(2)(c)

- 77 In section 73(2) (financial administration), after paragraph (b) insert—
 “(c) a combined county authority established under section 9(1) of the
 Levelling-up and Regeneration Act 2023.”

Commencement Information

I455 Sch. 4 para. 77 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I453 Sch. 4 para. 75 in force at 26.12.2023, see s. 255(2)(c)

I454 Sch. 4 para. 76 in force at 26.12.2023, see s. 255(2)(c)

I455 Sch. 4 para. 77 in force at 26.12.2023, see s. 255(2)(c)

Transport Act 1985 (c. 67)

- 78 The Transport Act 1985 is amended as follows.

Commencement Information

I456 Sch. 4 para. 78 in force at 26.12.2023, see s. 255(2)(c)

- 79 In section 27A(7)(b) (additional powers where service not operated as registered),
 for “or combined authority” substitute “, combined authority or combined county
 authority”.

Commencement Information

I457 Sch. 4 para. 79 in force at 26.12.2023, see s. 255(2)(c)

- 80 In section 64(1)(a) (consultation with respect to policies), after “combined authority,”
 insert “combined county authority.”

Commencement Information

I458 Sch. 4 para. 80 in force at 26.12.2023, see s. 255(2)(c)

- 81 In section 93(8)(b) (travel concession schemes), for “and a combined authority”
 substitute “, a combined authority and a combined county authority”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I459 Sch. 4 para. 81 in force at 26.12.2023, see s. 255(2)(c)

- 82 In section 106(4) (grants for transport facilities and services), after paragraph (aa) insert—
“(ab) any combined county authority;”.

Commencement Information

I460 Sch. 4 para. 82 in force at 26.12.2023, see s. 255(2)(c)

- 83 In section 137 (general interpretation), after subsection (5A) insert—
“(5B) References in this Act to a combined county authority are references to a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I461 Sch. 4 para. 83 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I456 Sch. 4 para. 78 in force at 26.12.2023, see s. 255(2)(c)
I457 Sch. 4 para. 79 in force at 26.12.2023, see s. 255(2)(c)
I458 Sch. 4 para. 80 in force at 26.12.2023, see s. 255(2)(c)
I459 Sch. 4 para. 81 in force at 26.12.2023, see s. 255(2)(c)
I460 Sch. 4 para. 82 in force at 26.12.2023, see s. 255(2)(c)
I461 Sch. 4 para. 83 in force at 26.12.2023, see s. 255(2)(c)

Housing Act 1985 (c. 68)

- 84 (1) Section 4 of the Housing Act 1985 (other descriptions of authority) is amended as follows.
- (2) In subsection (1)(e), after “combined authority,” insert “a combined county authority;”.
- (3) In subsection (2), at the appropriate place insert—
““combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I462 Sch. 4 para. 84 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Housing Associations Act 1985 (c. 69)

- 85 In section 106(1) (minor definitions) of the Housing Associations Act 1985, in the definition of “local authority”—
- (a) for “and a combined authority established under section 103 of that Act” substitute “, a combined authority established under section 103 of that Act and a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”;
 - (b) after “such a combined authority,” insert “such a combined county authority,”.

Commencement Information

I463 Sch. 4 para. 85 in force at 26.12.2023, see s. 255(2)(c)

Landlord and Tenant Act 1985 (c. 70)

- 86 In section 38 of the Landlord and Tenant Act 1985 (minor definitions), in the definition of “local authority”, after “section 103 of that Act,” insert “a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023,”.

Commencement Information

I464 Sch. 4 para. 86 in force at 26.12.2023, see s. 255(2)(c)

Local Government Act 1986 (c. 10)

- 87 The Local Government Act 1986 is amended as follows.

Commencement Information

I465 Sch. 4 para. 87 in force at 26.12.2023, see s. 255(2)(c)

- 88 In section 6(2)(a) (interpretation and application of Part 2), after “a combined authority established under section 103 of that Act,”, and on a new line, insert “a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023,”.

Commencement Information

I466 Sch. 4 para. 88 in force at 26.12.2023, see s. 255(2)(c)

- 89 In section 9(1)(a) (interpretation and application of Part 3), after “a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009,”, and on a new line, insert “a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023,”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I467 Sch. 4 para. 89 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I465 Sch. 4 para. 87 in force at 26.12.2023, see s. 255(2)(c)

I466 Sch. 4 para. 88 in force at 26.12.2023, see s. 255(2)(c)

I467 Sch. 4 para. 89 in force at 26.12.2023, see s. 255(2)(c)

Landlord and Tenant Act 1987 (c. 31)

- 90 In section 58(1)(a) of the Landlord and Tenant Act 1987 (exempt landlords and resident landlords), for “or a combined authority established under section 103 of that Act” substitute “, a combined authority established under section 103 of that Act or a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I468 Sch. 4 para. 90 in force at 26.12.2023, see s. 255(2)(c)

Local Government Act 1988 (c. 9)

- 91 In Schedule 2 to the Local Government Act 1988 (public supply or works contracts: the public authorities), after the entry for a combined authority established under the Local Democracy, Economic Development and Construction Act 2009, and on a new line, insert “A combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I469 Sch. 4 para. 91 in force at 26.12.2023, see s. 255(2)(c)

Local Government Finance Act 1988 (c. 41)

- 92 The Local Government Finance Act 1988 is amended as follows.

Commencement Information

I470 Sch. 4 para. 92 in force at 26.12.2023, see s. 255(2)(c)

- 93 In section 74 (levies), after subsection (14) insert—
- “(15) For the purposes of this section—
- (a) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023 is to be treated as a levying body with respect to which regulations may be made under subsection (2), and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) the reference in that subsection to the council concerned shall be treated as a reference to the combined county authority’s constituent councils.
- (16) Regulations under this section by virtue of subsection (15) may be made only with the consent of—
 - (a) the constituent councils, and
 - (b) in the case of regulations in relation to an existing combined county authority, that authority.
- (17) Regulations under this section by virtue of subsection (15) may not make provision in relation to expenses of a combined county authority that are attributable to the exercise of mayoral functions.
- (18) In subsections (15) to (17)—
 - “constituent council” has the meaning given by section 10(11) of the Levelling-up and Regeneration Act 2023;
 - “mayoral function” has the meaning given by section 41(8) of that Act.”

Commencement Information

I471 Sch. 4 para. 93 in force at 26.12.2023, see s. 255(2)(c)

- 94 In section 88B(9) (special grant: relevant authorities), after paragraph (c) insert—
- “(d) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I472 Sch. 4 para. 94 in force at 26.12.2023, see s. 255(2)(c)

- 95 In section 111(2) (financial administration: relevant authorities), after paragraph (ib) insert—
- “(ic) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I473 Sch. 4 para. 95 in force at 26.12.2023, see s. 255(2)(c)

- 96 In section 143 (orders and regulations), after subsection (4B) insert—
- “(4C) The power to make regulations under section 74 above, so far as they are made in relation to a combined county authority by virtue of subsection (15) of that section, are to be exercisable by statutory instrument, and no such regulations are to be made unless a draft of them has been laid before and approved by a resolution of each House of Parliament.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I474 Sch. 4 para. 96 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I470 Sch. 4 para. 92 in force at 26.12.2023, see s. 255(2)(c)

I471 Sch. 4 para. 93 in force at 26.12.2023, see s. 255(2)(c)

I472 Sch. 4 para. 94 in force at 26.12.2023, see s. 255(2)(c)

I473 Sch. 4 para. 95 in force at 26.12.2023, see s. 255(2)(c)

I474 Sch. 4 para. 96 in force at 26.12.2023, see s. 255(2)(c)

Housing Act 1988 (c. 50)

97 The Housing Act 1988 is amended as follows.

Commencement Information

I475 Sch. 4 para. 97 in force at 26.12.2023, see s. 255(2)(c)

98 In section 74(8) (transfer of land and other property to housing action trusts), after paragraph (fc) insert—

“(fd) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I476 Sch. 4 para. 98 in force at 26.12.2023, see s. 255(2)(c)

99 In Schedule 1 (tenancies which cannot be assured tenancies), in paragraph 12(2), after paragraph (fb) (and before the “and” at the end of that paragraph) insert—

“(fc) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I477 Sch. 4 para. 99 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I475 Sch. 4 para. 97 in force at 26.12.2023, see s. 255(2)(c)

I476 Sch. 4 para. 98 in force at 26.12.2023, see s. 255(2)(c)

I477 Sch. 4 para. 99 in force at 26.12.2023, see s. 255(2)(c)

Road Traffic Act 1988 (c. 52)

100 In section 144(2)(a)(i) of the Road Traffic Act 1988 (exceptions from requirement of third-party insurance or security), for “or a combined authority established

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

under section 103 of that Act” substitute “, a combined authority established under section 103 of that Act or a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I478 Sch. 4 para. 100 in force at 26.12.2023, see s. 255(2)(c)

Local Government and Housing Act 1989 (c. 42)

101 The Local Government and Housing Act 1989 is amended as follows.

Commencement Information

I479 Sch. 4 para. 101 in force at 26.12.2023, see s. 255(2)(c)

102 In section 21(1) (interpretation of Part 1), after paragraph (jb) insert—
 “(jba) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I480 Sch. 4 para. 102 in force at 26.12.2023, see s. 255(2)(c)

103 In section 152(2) (interpretation), after paragraph (izb) insert—
 “(ize) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I481 Sch. 4 para. 103 in force at 26.12.2023, see s. 255(2)(c)

104 In section 157(6) (periodic payments of grants)—
 (a) omit the “and” at the end of paragraph (j), and
 (b) after paragraph (k) insert—
 “(l) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I482 Sch. 4 para. 104 in force at 26.12.2023, see s. 255(2)(c)

105 (1) Schedule 1 (political balance on local authority committees etc) is amended as follows.

(2) In paragraph 2(1), for “(jb)” substitute “(jba)”.

(3) In paragraph 4(1), in paragraph (a) of the definition of “relevant authority”, for “(jb)” substitute “(jba)”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I483 Sch. 4 para. 105 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I479 Sch. 4 para. 101 in force at 26.12.2023, see s. 255(2)(c)

I480 Sch. 4 para. 102 in force at 26.12.2023, see s. 255(2)(c)

I481 Sch. 4 para. 103 in force at 26.12.2023, see s. 255(2)(c)

I482 Sch. 4 para. 104 in force at 26.12.2023, see s. 255(2)(c)

I483 Sch. 4 para. 105 in force at 26.12.2023, see s. 255(2)(c)

Town and Country Planning Act 1990 (c. 8)

106 The TCPA 1990 is amended as follows.

Commencement Information

I484 Sch. 4 para. 106 in force at 26.12.2023, see s. 255(2)(c)

107 In section 252(12) (procedure for making orders), in the definition of “local authority”, after “section 103 of that Act,” insert “a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023,”.

Commencement Information

I485 Sch. 4 para. 107 in force at 26.12.2023, see s. 255(2)(c)

108 In Schedule 14 (procedure for footpaths and bridleways orders), in paragraph 1(3), in the definition of “council”, after “section 103 of that Act” insert “, a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I486 Sch. 4 para. 108 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I484 Sch. 4 para. 106 in force at 26.12.2023, see s. 255(2)(c)

I485 Sch. 4 para. 107 in force at 26.12.2023, see s. 255(2)(c)

I486 Sch. 4 para. 108 in force at 26.12.2023, see s. 255(2)(c)

Further and Higher Education Act 1992 (c. 13)

109 In section 54(1)(e)(ii) of the Further and Higher Education Act 1992 (duty to give information), for “or a combined authority” substitute “, a combined authority established under section 103 of the Local Democracy, Economic Development and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Construction Act 2009 or a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I487 Sch. 4 para. 109 in force at 26.12.2023, see s. 255(2)(c)

Local Government Finance Act 1992 (c. 14)

110 The Local Government Finance Act 1992 is amended as follows.

Commencement Information

I488 Sch. 4 para. 110 in force at 26.12.2023, see s. 255(2)(c)

111 In section 39(1) (major precepting authorities), after paragraph (ab) insert—
 “(ac) a mayoral CCA, as defined by section 27(8) of the Levelling-up and Regeneration Act 2023 (mayoral combined county authorities);”.

Commencement Information

I489 Sch. 4 para. 111 in force at 26.12.2023, see s. 255(2)(c)

112 In section 40 (issue of precepts by major precepting authority), after subsection (11) insert—

- “(12) Where the precepting authority is a mayoral CCA—
- (a) a precept may be issued under this section only in relation to expenditure incurred by the mayor for the authority’s area in, or in connection with, the exercise of mayoral functions (as defined by section 41(8) of the Levelling-up and Regeneration Act 2023), and
 - (b) the issuing and calculation of a precept under this Chapter is subject to any provision made in regulations under that section.”

Commencement Information

I490 Sch. 4 para. 112 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I488 Sch. 4 para. 110 in force at 26.12.2023, see s. 255(2)(c)

I489 Sch. 4 para. 111 in force at 26.12.2023, see s. 255(2)(c)

I490 Sch. 4 para. 112 in force at 26.12.2023, see s. 255(2)(c)

Local Government (Overseas Assistance) Act 1993 (c. 25)

113 In section 1(10) of the Local Government (Overseas Assistance) Act 1993 (power to provide advice and assistance), after paragraph (dzb) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(dzc) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I491 Sch. 4 para. 113 in force at 26.12.2023, see s. 255(2)(c)

Railways Act 1993 (c. 43)

114 The Railways Act 1993 is amended as follows.

Commencement Information

I492 Sch. 4 para. 114 in force at 26.12.2023, see s. 255(2)(c)

- 115 In section 25(1) (public sector operators not to be franchisees)—
- (a) after paragraph (ca) insert—
 - “(cb) any combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”;
 - (b) in paragraph (d), for “or a combined authority” substitute “, a combined authority or a combined county authority”.

Commencement Information

I493 Sch. 4 para. 115 in force at 26.12.2023, see s. 255(2)(c)

- 116 In section 149(5) (service of documents), in the definition of “local authority”, for “and a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009” substitute “, a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009 and a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023”.

Commencement Information

I494 Sch. 4 para. 116 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I492 Sch. 4 para. 114 in force at 26.12.2023, see s. 255(2)(c)

I493 Sch. 4 para. 115 in force at 26.12.2023, see s. 255(2)(c)

I494 Sch. 4 para. 116 in force at 26.12.2023, see s. 255(2)(c)

Deregulation and Contracting Out Act 1994 (c. 40)

- 117 In section 79A of the Deregulation and Contracting Out Act 1994 (meaning of “local authority”: England), after paragraph (mb) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(mc) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I495 Sch. 4 para. 117 in force at 26.12.2023, see s. 255(2)(c)

Environment Act 1995 (c. 25)

118 After section 86B of the Environment Act 1995 insert—

“86C Role of combined county authorities in relation to action plans

- (1) Where a local authority in the area of a combined county authority intends to prepare an action plan it must notify the combined county authority.
- (2) Where a combined county authority has been given a notification under subsection (1) by a local authority, the combined county authority must, before the end of the relevant period, provide the local authority with proposals for particular measures the combined county authority will take to contribute to the achievement, and maintenance, of air quality standards and objectives in the area to which the plan relates.
- (3) Where a combined county authority provides proposals under subsection (2), the combined county authority must—
 - (a) in those proposals, specify a date for each particular measure by which it will be carried out, and
 - (b) as far as is reasonably practicable, carry out those measures by those dates.
- (4) An action plan prepared by a local authority in the area of a combined county authority must set out any proposals provided to it under subsection (2) (including the dates specified by virtue of subsection (3)(a)).
- (5) In this section “combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I496 Sch. 4 para. 118 in force at 26.12.2023, see s. 255(2)(c)

Housing Grants, Construction and Regeneration Act 1996 (c. 53)

119 In section 3(2) of the Housing Grants, Construction and Regeneration Act 1996 (ineligible applicants), after paragraph (jc) insert—

“(jd) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I497 Sch. 4 para. 119 in force at 26.12.2023, see s. 255(2)(c)

Crime and Disorder Act 1998 (c. 37)

- 120 In section 17(2) of the Crime and Disorder Act 1998 (duty to consider crime and disorder implications), after “a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;”, and on a new line, insert “a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I498 Sch. 4 para. 120 in force at 26.12.2023, see s. 255(2)(c)

Local Government Act 1999 (c. 27)

- 121 In section 1(1) of the Local Government Act 1999 (best value authorities), after paragraph (hc) insert—
“(hd) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I499 Sch. 4 para. 121 in force at 26.12.2023, see s. 255(2)(c)

Greater London Authority Act 1999 (c. 29)

- 122 In section 211(1) of the GLAA 1999 (public sector operators)—
(a) after paragraph (ca) insert—
“(cb) any combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”, and
(b) in paragraph (d), for “or combined authority” substitute “, combined authority or combined county authority”.

Commencement Information

I500 Sch. 4 para. 122 in force at 26.12.2023, see s. 255(2)(c)

Freedom of Information Act 2000 (c. 36)

- 123 In Schedule 1 to the Freedom of Information Act 2000 (public authorities), after paragraph 19B insert—
“19C A combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I501 Sch. 4 para. 123 in force at 26.12.2023, see s. 255(2)(c)

Transport Act 2000 (c. 38)

124 The Transport Act 2000 is amended as follows.

Commencement Information

I502 Sch. 4 para. 124 in force at 26.12.2023, see s. 255(2)(c)

125 In section 108(4) (local transport plans), after paragraph (ca) (but before the “or” at the end of that paragraph) insert—

“(cb) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”.

Commencement Information

I503 Sch. 4 para. 125 in force at 26.12.2023, see s. 255(2)(c)

126 (1) Section 109 (further provision about local transport plans in England) is amended as follows.

(2) In subsection (2A), in the opening words, for “or a combined authority” substitute “, a combined authority or a combined county authority”.

(3) In subsection (2B)—

- (a) in the opening words, for “or a combined authority” substitute “, a combined authority or a combined county authority”;
- (b) in paragraph (a), after “combined authority” insert “or combined county authority”;
- (c) in paragraph (c), after “combined authority” insert “or combined county authority”.

Commencement Information

I504 Sch. 4 para. 126 in force at 26.12.2023, see s. 255(2)(c)

127 (1) Section 113 (role of metropolitan district councils) is amended as follows.

(2) In subsection (2), after “a combined authority” insert “or a combined county authority”.

(3) in subsection (2A), in each of paragraphs (a), (b) and (c), after “combined authority” insert “or combined county authority”.

Commencement Information

I505 Sch. 4 para. 127 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- 128 In section 123A(4) (franchising schemes)—
- (a) after paragraph (a) insert—
 - “(aa) a mayoral CCA.”;
 - (b) omit the “or” at the end of paragraph (e);
 - (c) at the end of paragraph (f) insert “, or
 - (g) a combined county authority which is not a mayoral CCA.”;
 - (d) in the words after paragraph (g), for “(f)” substitute “(g)”.

Commencement Information

I506 Sch. 4 para. 128 in force at 26.12.2023, see s. 255(2)(c)

- 129 In section 123C(2) (consent of the Secretary of State and notice)—
- (a) omit the “or” at the end of paragraph (a);
 - (b) at the end of paragraph (b) insert “,
 - (c) the area of a mayoral CCA, or
 - (d) the combined area of two or more mayoral CCAs.”

Commencement Information

I507 Sch. 4 para. 129 in force at 26.12.2023, see s. 255(2)(c)

- 130 In section 123G (response to consultation), after subsection (4) insert—
- “(5) If a franchising authority are a mayoral CCA, the function of deciding whether to make a proposed franchising scheme is a function of the combined county authority exercisable only by the mayor acting on behalf of the combined county authority (including in a case where the decision is to make a scheme jointly with one or more other franchising authorities).”

Commencement Information

I508 Sch. 4 para. 130 in force at 26.12.2023, see s. 255(2)(c)

- 131 In section 123M (variation of scheme), after subsection (6) insert—
- “(6A) If a franchising authority are a mayoral CCA, the function of deciding whether to make a proposed variation is a function of the combined county authority exercisable only by the mayor acting on behalf of the combined county authority (including in a case where the decision is to act jointly to vary a scheme).”

Commencement Information

I509 Sch. 4 para. 131 in force at 26.12.2023, see s. 255(2)(c)

- 132 In section 123N (revocation of scheme), after subsection (7) insert—
- “(7A) If a franchising authority are a mayoral CCA, the function of deciding whether to make a proposed revocation is a function of the combined county

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

authority exercisable only by the mayor acting on behalf of the combined county authority (including in a case where the decision is to act jointly to revoke a scheme).”

Commencement Information

I510 Sch. 4 para. 132 in force at 26.12.2023, see s. 255(2)(c)

- 133 (1) Section 157 (grants to Integrated Transport Authorities and combined authorities) is amended as follows.
- (2) In the heading, for “and combined authorities” substitute “, combined authorities and combined county authorities”.
- (3) After subsection (1A) insert—
- “(1B) The Secretary of State may, with the approval of the Treasury, make grants to a combined county authority for the purpose of enabling the authority to carry out any of their functions.”

Commencement Information

I511 Sch. 4 para. 133 in force at 26.12.2023, see s. 255(2)(c)

- 134 (1) Section 162 (interpretation of Part 2) is amended as follows.
- (2) In subsection (1), at the appropriate place insert—
- ““mayoral CCA” has the meaning given by section 27(8) of the Levelling-up and Regeneration Act 2023;”.
- (3) After subsection (5A) insert—
- “(5B) In this Part “combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I512 Sch. 4 para. 134 in force at 26.12.2023, see s. 255(2)(c)

- 135 (1) Section 163 (road user charging schemes: preliminary) is amended as follows.
- (2) In each of subsections (3)(bb), (3)(cc) and (4A), for “or combined authority” substitute “, combined authority or combined county authority”.
- (3) After subsection (5A) insert—
- “(5B) In this Part “combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I513 Sch. 4 para. 135 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- 136 (1) Section 164 (local charging schemes) is amended as follows.
- (2) In subsection (2), for “or the area of a combined authority” substitute “, the area of a combined authority or the area of a combined county authority”.
- (3) In subsection (3)—
- (a) in the opening words, for “or the area of a combined authority” substitute “, the area of a combined authority or the area of a combined county authority”;
 - (b) in paragraph (b), after “combined authority” insert “or combined county authority”.

Commencement Information

I514 Sch. 4 para. 136 in force at 26.12.2023, see s. 255(2)(c)

- 137 (1) Section 165 (joint local charging schemes) is amended as follows.
- (2) In subsection (2), for “or the area of a combined authority” substitute “, the area of a combined authority or the area of a combined county authority”.
- (3) In subsection (3)—
- (a) in the opening words, for “or the area of a combined authority” substitute “, the area of a combined authority or the area of a combined county authority”;
 - (b) in paragraph (b), after “combined authority” insert “or combined county authority”.

Commencement Information

I515 Sch. 4 para. 137 in force at 26.12.2023, see s. 255(2)(c)

- 138 In section 165A(1)(b) (joint local-ITA charging schemes), after “combined authority” insert “or combined county authority”.

Commencement Information

I516 Sch. 4 para. 138 in force at 26.12.2023, see s. 255(2)(c)

- 139 (1) Section 166 (joint local-London charging schemes) is amended as follows.
- (2) In subsection (2), for “or the area of a combined authority” substitute “, the area of a combined authority or the area of a combined county authority”.
- (3) In subsection (3)—
- (a) in the opening words, for “or the area of a combined authority” substitute “, the area of a combined authority or the area of a combined county authority”;
 - (b) in paragraph (b), after “combined authority” insert “or combined county authority”.

Commencement Information

I517 Sch. 4 para. 139 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- 140 (1) Section 166A (joint ITA-London charging schemes) is amended as follows.
- (2) In subsection (1)(b), after “combined authority” insert “or combined county authority”.
- (3) In subsection (3)(b), for “or combined authority” substitute “, combined authority or combined county authority”.

Commencement Information

I518 Sch. 4 para. 140 in force at 26.12.2023, see s. 255(2)(c)

- 141 In section 167(2)(b) (trunk road charging schemes), after “a combined authority” insert “, a combined county authority”.

Commencement Information

I519 Sch. 4 para. 141 in force at 26.12.2023, see s. 255(2)(c)

- 142 In section 168(2) (charging schemes to be made by order)—
- (a) after “a combined authority” insert “, a combined county authority”;
- (b) for “or the combined authority” substitute “, the combined authority or the combined county authority”.

Commencement Information

I520 Sch. 4 para. 142 in force at 26.12.2023, see s. 255(2)(c)

- 143 (1) Section 170 (charging schemes: consultation and inquiries) is amended as follows.
- (2) In subsection (1A)(b), for “or a combined authority” substitute “, a combined authority or a combined county authority”.
- (3) In subsection (7)(a), for “or combined authority” substitute “, combined authority or combined county authority”.

Commencement Information

I521 Sch. 4 para. 143 in force at 26.12.2023, see s. 255(2)(c)

- 144 In section 177A(1) (power to require information), for “or combined authority” substitute “, combined authority or combined county authority”.

Commencement Information

I522 Sch. 4 para. 144 in force at 26.12.2023, see s. 255(2)(c)

- 145 In section 193(1) (guidance), after “combined authorities” insert “, combined county authorities”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I523 Sch. 4 para. 145 in force at 26.12.2023, see s. 255(2)(c)

- 146 In section 194 (information), in each of subsections (1), (2) and (6), for “or combined authority” substitute “, combined authority or combined county authority”.

Commencement Information

I524 Sch. 4 para. 146 in force at 26.12.2023, see s. 255(2)(c)

- 147 In section 198(1) (interpretation of Part 3), at the appropriate place insert—
““combined county authority” has the meaning given by section 163 (5B);”.

Commencement Information

I525 Sch. 4 para. 147 in force at 26.12.2023, see s. 255(2)(c)

- 148 (1) Schedule 12 (road user charging and workplace parking levy: financial provisions) is amended as follows.
- (2) In each of paragraphs 2(4), 3(2) and 7(5)(c), for “or combined authority” substitute “, combined authority or combined county authority”.
- (3) In paragraph 8(3)(aa), for “and combined authorities” substitute “, combined authorities and combined county authorities”.
- (4) In paragraph 8(4)(aa), for “or combined authority” substitute “, combined authority or combined county authority”.
- (5) In paragraph 11A—
- (a) in sub-paragraph (1), for “or combined authority’s” substitute “, combined authority’s or combined county authority’s”;
- (b) in sub-paragraph (4), after “combined authority” insert “or combined county authority”.
- (6) In each of paragraphs 11B(1) and 11C(1) and (3), for “or a combined authority” substitute “, a combined authority or a combined county authority”.

Commencement Information

I526 Sch. 4 para. 148 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I502 Sch. 4 para. 124 in force at 26.12.2023, see s. 255(2)(c)

I503 Sch. 4 para. 125 in force at 26.12.2023, see s. 255(2)(c)

I504 Sch. 4 para. 126 in force at 26.12.2023, see s. 255(2)(c)

I505 Sch. 4 para. 127 in force at 26.12.2023, see s. 255(2)(c)

I506 Sch. 4 para. 128 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- I507** Sch. 4 para. 129 in force at 26.12.2023, see s. 255(2)(c)
- I508** Sch. 4 para. 130 in force at 26.12.2023, see s. 255(2)(c)
- I509** Sch. 4 para. 131 in force at 26.12.2023, see s. 255(2)(c)
- I510** Sch. 4 para. 132 in force at 26.12.2023, see s. 255(2)(c)
- I511** Sch. 4 para. 133 in force at 26.12.2023, see s. 255(2)(c)
- I512** Sch. 4 para. 134 in force at 26.12.2023, see s. 255(2)(c)
- I513** Sch. 4 para. 135 in force at 26.12.2023, see s. 255(2)(c)
- I514** Sch. 4 para. 136 in force at 26.12.2023, see s. 255(2)(c)
- I515** Sch. 4 para. 137 in force at 26.12.2023, see s. 255(2)(c)
- I516** Sch. 4 para. 138 in force at 26.12.2023, see s. 255(2)(c)
- I517** Sch. 4 para. 139 in force at 26.12.2023, see s. 255(2)(c)
- I518** Sch. 4 para. 140 in force at 26.12.2023, see s. 255(2)(c)
- I519** Sch. 4 para. 141 in force at 26.12.2023, see s. 255(2)(c)
- I520** Sch. 4 para. 142 in force at 26.12.2023, see s. 255(2)(c)
- I521** Sch. 4 para. 143 in force at 26.12.2023, see s. 255(2)(c)
- I522** Sch. 4 para. 144 in force at 26.12.2023, see s. 255(2)(c)
- I523** Sch. 4 para. 145 in force at 26.12.2023, see s. 255(2)(c)
- I524** Sch. 4 para. 146 in force at 26.12.2023, see s. 255(2)(c)
- I525** Sch. 4 para. 147 in force at 26.12.2023, see s. 255(2)(c)
- I526** Sch. 4 para. 148 in force at 26.12.2023, see s. 255(2)(c)

Local Government Act 2003 (c. 26)

149 The Local Government Act 2003 is amended as follows.

Commencement Information

- I527** Sch. 4 para. 149 in force at 26.12.2023, see s. 255(2)(c)

150 (1) Section 23 (meaning of “local authority” for the purposes of Part 1) is amended as follows.

(2) After subsection (8) insert—

“(8A) This Part applies in relation to a combined county authority (a “CCA”) established under section 9(1) of the Levelling-up and Regeneration Act 2023 as it applies in relation to a local authority, except that section 1 confers power on a CCA to borrow money in relation only to functions of the CCA that are specified for the purposes of this subsection in regulations made by the Secretary of State.

(8B) A function of a CCA may be specified in regulations under subsection (8A) only with the consent of—

- (a) each county council for an area within the CCA’s area or proposed area,
- (b) each unitary district council for an area within the CCA’s area or proposed area, and
- (c) in the case of regulations in relation to an existing CCA, the CCA.

In this subsection “unitary district council” means a district council whose area does not form part of the area of a county council.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(8C) The reference in subsection (8A) to functions of the authority includes, in the case of a mayoral CCA, mayoral functions.

(8D) In subsection (8C)—

“mayoral CCA” has the meaning given by section 27(8) of the Levelling-up and Regeneration Act 2023;

“mayoral functions” has the meaning given by section 41(8) of that Act.”

(3) In subsection (10), after “(5)” insert “or (8A)”.

Commencement Information

I528 Sch. 4 para. 150 in force at 26.12.2023, see s. 255(2)(c)

151 In section 33(1) (local authorities for the purposes of Chapter 1 of Part 2), after paragraph (jc) insert—

“(jd) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I529 Sch. 4 para. 151 in force at 26.12.2023, see s. 255(2)(c)

152 In section 93(7) (power to charge for discretionary services: prohibitions to be disregarded)—

(a) in paragraph (d), for “and combined authorities” substitute “, combined authorities and combined county authorities”, and

(b) omit the “and” at the end of paragraph (f), and

(c) at the end of paragraph (g) insert “, and

(h) section 50(4) of the Levelling-up and Regeneration Act 2023 (combined county authorities).”

Commencement Information

I530 Sch. 4 para. 152 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I527 Sch. 4 para. 149 in force at 26.12.2023, see s. 255(2)(c)

I528 Sch. 4 para. 150 in force at 26.12.2023, see s. 255(2)(c)

I529 Sch. 4 para. 151 in force at 26.12.2023, see s. 255(2)(c)

I530 Sch. 4 para. 152 in force at 26.12.2023, see s. 255(2)(c)

Courts Act 2003 (c. 39)

153 In section 41(6) of the Courts Act 2003 (disqualification of lay justices who are members of local authorities), after paragraph (eb) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(ec) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023,”.

Commencement Information

I531 Sch. 4 para. 153 in force at 26.12.2023, see s. 255(2)(c)

Planning and Compulsory Purchase Act 2004 (c. 5)

154 The PCPA 2004 is amended as follows.

Commencement Information

I532 Sch. 4 para. 154 in force at 26.12.2023, see s. 255(2)(c)

155 In section 27A (default powers), in the heading and in the section, after “combined authority” insert “, combined county authority”.

Commencement Information

I533 Sch. 4 para. 155 in force at 26.12.2023, see s. 255(2)(c)

156 (1) Schedule A1 (default powers exercisable by Mayor of London, combined authority or county council) is amended as follows.

(2) In the heading, after “combined authority” insert “, combined county authority”.

(3) After paragraph 7 insert—

“Default powers exercisable by combined county authority

7ZA In this Schedule—

“combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;

“constituent planning authority” in relation to a combined county authority, means—

- (a) a county council, metropolitan district council or non-metropolitan district council which is the local planning authority for an area within the area of the combined county authority, or
- (b) a joint committee established under section 29 whose area is within, or the same as, the area of the combined county authority.

7ZB If the Secretary of State—

- (a) thinks that a constituent planning authority are failing or omitting to do anything it is necessary for them to do in connection with the preparation, revision or adoption of a development plan document, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) invites the combined county authority to prepare or revise the document,

the combined county authority may prepare or revise (as the case may be) the development plan document.
- 7ZC (1) This paragraph applies where a development plan document is prepared or revised by a combined county authority under paragraph 7ZB.
- (2) The combined county authority must hold an independent examination.
- (3) The combined county authority—
 - (a) must publish the recommendations and reasons of the person appointed to hold the examination, and
 - (b) may also give directions to the constituent planning authority in relation to publication of those recommendations and reasons.
- (4) The combined county authority may—
 - (a) approve the document, or approve it subject to specified modifications, as a local development document, or
 - (b) direct the constituent planning authority to consider adopting the document by resolution of the authority as a local development document.
- 7ZD (1) Subsections (4) to (7C) of section 20 apply to an examination held under paragraph 7ZC(2)—
 - (a) with the reference to the local planning authority in subsection (7C) of that section being read as a reference to the combined county authority, and
 - (b) with the omission of subsections (5)(c), (7)(b)(ii) and (7B)(b).
- (2) The combined county authority must give reasons for anything they do in pursuance of paragraph 7ZB or 7ZC(4).
- (3) The constituent planning authority must reimburse the combined county authority—
 - (a) for any expenditure that the combined county authority incur in connection with anything which is done by them under paragraph 7ZB and which the constituent planning authority failed or omitted to do as mentioned in that paragraph;
 - (b) for any expenditure that the combined county authority incur in connection with anything which is done by them under paragraph 7ZC(2).
- (4) In the case of a joint local development document or a joint development plan document, the combined county authority may apportion liability for the expenditure on such basis as the authority considers just between the authorities for whom the document has been prepared.”
- (4) In paragraph 8—
 - (a) in sub-paragraph (1), after paragraph (b) (but before the “or” at the end of that paragraph) insert—

“(ba) under paragraph 7ZB by a combined county authority,”;
 - (b) in sub-paragraph (2)(a)—
 - (i) after “6(4)(a)” insert “, 7ZC(4)(a)”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (ii) after “the combined authority” insert “, the combined county authority”;
- (c) in sub-paragraph (3)(a), after “the combined authority” insert “, the combined county authority”;
- (d) in sub-paragraph (5), after “6(4)(a)” insert “, 7ZC(4)(a)”;
- (e) in sub-paragraph (7)—
 - (i) in paragraph (b), after “6(4)(a)” insert “, 7ZC(4)(a)”;
 - (ii) in the words after paragraph (b), after “the combined authority” insert “, the combined county authority”.
- (5) In paragraph 9(8), after “the combined authority” insert “, the combined county authority”.
- (6) In paragraph 12, after “the combined authority” insert “, the combined county authority”.
- (7) In paragraph 13(1), after “a combined authority” insert “, a combined county authority”.

Commencement Information

I534 Sch. 4 para. 156 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I532 Sch. 4 para. 154 in force at 26.12.2023, see s. 255(2)(c)

I533 Sch. 4 para. 155 in force at 26.12.2023, see s. 255(2)(c)

I534 Sch. 4 para. 156 in force at 26.12.2023, see s. 255(2)(c)

Fire and Rescue Services Act 2004 (c. 21)

157 In section 1 of the Fire and Rescue Services Act 2004 (fire and rescue authorities), for subsection (5) substitute—

“(5) This section is also subject to—

- (a) an order under Part 6 of the Local Democracy, Economic Development and Construction Act 2009 which transfers the functions of a fire and rescue authority to a combined authority established under section 103 of that Act;
- (b) an order under Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023 which transfers the functions of a fire and rescue authority to a combined county authority established under section 9(1) of that Act.”

Commencement Information

I535 Sch. 4 para. 157 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Children Act 2004 (c. 31)

158 In section 50 of the Children Act 2004 (intervention - England), after subsection (7) insert—

“(8) If any functions of a local authority in England which are specified in subsection (2) are exercisable by a combined county authority by virtue of section 18 of the Levelling-up and Regeneration Act 2023—

- (a) a reference in this section to a local authority includes a reference to the combined county authority, and
- (b) a reference in this section to functions specified in subsection (2) is, in relation to the combined county authority, to be read as a reference to those functions so far as exercisable by the combined county authority.”

Commencement Information

I536 Sch. 4 para. 158 in force at 26.12.2023, see s. 255(2)(c)

Railways Act 2005 (c. 14)

159 In section 33(2) of the Railways Act 2005 (closure requirements), after paragraph (da) insert—

“(db) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I537 Sch. 4 para. 159 in force at 26.12.2023, see s. 255(2)(c)

Childcare Act 2006 (c. 21)

160 In section 15 of the Childcare Act 2006 (powers of Secretary of State to secure proper performance), after subsection (6A) insert—

“(6B) If any functions of an English local authority under this Part are exercisable by a combined county authority by virtue of section 18 of the Levelling-up and Regeneration Act 2023—

- (a) a reference in any of subsections (3) to (6) to an English local authority includes a reference to the combined county authority, and
- (b) a reference in those subsections to functions under this Part is, in relation to the combined county authority, to be read as a reference to those functions so far as exercisable by the combined county authority.”

Commencement Information

I538 Sch. 4 para. 160 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Education and Inspections Act 2006 (c. 40)

- 161 (1) Section 123 of the Education and Inspections Act 2006 (education and training to which Chapter 3 of Part 8 applies) is amended as follows.
- (2) In subsection (1), after paragraph (ea) insert—
- “(eb) further education for persons aged 19 or over which is wholly or partly funded by a combined county authority;”.
- (3) For subsection (5), substitute—
- “(5) In this section—
- “combined authority” means a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;
- “combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I539 Sch. 4 para. 161 in force at 26.12.2023, see s. 255(2)(c)

National Health Service Act 2006 (c. 41)

- 162 The National Health Service Act 2006 is amended as follows.

Commencement Information

I540 Sch. 4 para. 162 in force at 26.12.2023, see s. 255(2)(c)

- 163 In section 7A(2) (exercise of Secretary of State’s public health functions), after paragraph (d) (but before the “or” at the end of that paragraph) insert—
- “(da) a combined county authority;”.

Commencement Information

I541 Sch. 4 para. 163 in force at 26.12.2023, see s. 255(2)(c)

- 164 In section 12ZB(7) (procurement regulations), in the definition of “relevant authority”, after paragraph (a) insert—
- “(aa) a combined county authority;”.

Commencement Information

I542 Sch. 4 para. 164 in force at 26.12.2023, see s. 255(2)(c)

- 165 In section 13UA(2) (guidance about joint appointments)—
- (a) omit the “or” at the end of paragraph (b), and
- (b) at the end of paragraph (c) insert “, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (d) one or more relevant NHS body and one or more combined county authority.”

Commencement Information

I543 Sch. 4 para. 165 in force at 26.12.2023, see s. 255(2)(c)

- 166 In section 65Z5(1) (joint working and delegation arrangements), after paragraph (c) insert—

“(d) a combined county authority.”

Commencement Information

I544 Sch. 4 para. 166 in force at 26.12.2023, see s. 255(2)(c)

- 167 In section 65Z6(1) (joint committees and pooled funds), after paragraph (c) insert—

“(d) a combined county authority.”

Commencement Information

I545 Sch. 4 para. 167 in force at 26.12.2023, see s. 255(2)(c)

- 168 In section 75 (arrangements between NHS bodies and local authorities), after subsection (7F) insert—

“(7G) For the purposes of this section, a combined county authority that exercises a prescribed function within subsection (1)(a) of an NHS body under voluntary arrangements is to be treated as an NHS body.

(7H) “Voluntary arrangements” means arrangements made with the combined county authority under—

- (a) section 7A (exercise of Secretary of State’s public health functions),
or
(b) section 65Z5 (joint working and delegation arrangements).

(7I) Regulations under this section, so far as made before or in the same Session as that in which the Levelling-up and Regeneration Act 2023 is passed, apply to a combined county authority that is treated as an NHS body by virtue of subsection (7G) as if it were a prescribed NHS body for the purposes of those regulations.

(7J) But a combined county authority to which regulations under this section apply by virtue of subsection (7I) may enter into prescribed arrangements in relation to the exercise only of functions within subsection (1)(a) that are exercisable by the authority under voluntary arrangements.

(7K) Regulations under this section may provide for the regulations to apply in relation to a combined county authority subject to any prescribed limitations or conditions.

(7L) Nothing in subsection (7J) prevents a combined county authority from being a party to arrangements made by virtue of this section in relation to any prescribed functions of an NHS body that are exercisable by the

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

authority as a result of regulations under section 19 of the Levelling-up and Regeneration Act 2023 (public authority functions exercisable by combined county authorities).”

Commencement Information

I546 Sch. 4 para. 168 in force at 26.12.2023, see s. 255(2)(c)

- 169 In section 275(1) (interpretation), at the appropriate place insert—
 ““combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I547 Sch. 4 para. 169 in force at 26.12.2023, see s. 255(2)(c)

- 170 In section 276 (index of defined expressions), at the appropriate place insert—
 “combined county authority section 275(1)”.

Commencement Information

I548 Sch. 4 para. 170 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I540 Sch. 4 para. 162 in force at 26.12.2023, see s. 255(2)(c)
I541 Sch. 4 para. 163 in force at 26.12.2023, see s. 255(2)(c)
I542 Sch. 4 para. 164 in force at 26.12.2023, see s. 255(2)(c)
I543 Sch. 4 para. 165 in force at 26.12.2023, see s. 255(2)(c)
I544 Sch. 4 para. 166 in force at 26.12.2023, see s. 255(2)(c)
I545 Sch. 4 para. 167 in force at 26.12.2023, see s. 255(2)(c)
I546 Sch. 4 para. 168 in force at 26.12.2023, see s. 255(2)(c)
I547 Sch. 4 para. 169 in force at 26.12.2023, see s. 255(2)(c)
I548 Sch. 4 para. 170 in force at 26.12.2023, see s. 255(2)(c)

Concessionary Bus Travel Act 2007 (c. 13)

- 171 In section 9(6)(b) of the Concessionary Bus Travel Act 2007 (variation of reimbursement etc), for “or combined authority” substitute “, combined authority or combined county authority”.

Commencement Information

I549 Sch. 4 para. 171 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Local Government and Public Involvement in Health Act 2007 (c. 28)

172 The Local Government and Public Involvement in Health Act 2007 is amended as follows.

Commencement Information

I550 Sch. 4 para. 172 in force at 26.12.2023, see s. 255(2)(c)

173 In section 23(1) (definitions for the purposes of Chapter 1 of Part 1), in the definition of “public body”, after paragraph (g) insert—

“(h) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I551 Sch. 4 para. 173 in force at 26.12.2023, see s. 255(2)(c)

174 In section 104(2) (application of Chapter 1 of Part 5: partner authorities), after paragraph (ib) insert—

“(ic) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I552 Sch. 4 para. 174 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I550 Sch. 4 para. 172 in force at 26.12.2023, see s. 255(2)(c)

I551 Sch. 4 para. 173 in force at 26.12.2023, see s. 255(2)(c)

I552 Sch. 4 para. 174 in force at 26.12.2023, see s. 255(2)(c)

Local Transport Act 2008 (c. 26)

175 The Local Transport Act 2008 is amended as follows.

Commencement Information

I553 Sch. 4 para. 175 in force at 26.12.2023, see s. 255(2)(c)

176 After section 89A insert—

“89B Transfer of functions of combined county authority

(1) The Secretary of State may by order transfer functions of a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023 to an ITA.

(2) An order under this section may only be made in relation to functions that—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) relate to transport, and
- (b) are exercisable by the combined county authority in relation to an area that becomes, or becomes part of, the ITA's integrated transport area by virtue of an order under this Part.”

Commencement Information

I554 Sch. 4 para. 176 in force at 26.12.2023, see s. 255(2)(c)

177 (1) Section 90 (changing the boundaries of an integrated transport area) is amended as follows.

(2) In subsection (5)—

- (a) the words from “a combined authority” to the end of the subsection become paragraph (a), and
- (b) at the end of that paragraph insert “, or
 (b) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

(3) In subsection (6)—

- (a) the words from “the area of” to the end of the subsection become paragraph (a),
- (b) in that paragraph, for “that Act” substitute “the Local Democracy, Economic Development and Construction Act 2009”, and
- (c) at the end of that paragraph insert “, or
 (b) the area of a combined county authority by virtue of regulations under section 9(1) or 25(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I555 Sch. 4 para. 177 in force at 26.12.2023, see s. 255(2)(c)

178 (1) Section 91 (dissolution of an integrated transport area) is amended as follows.

(2) In subsection (4)—

- (a) the words from “a combined authority” to the end of the subsection become paragraph (a), and
- (b) at the end of that paragraph insert “, or
 (b) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

(3) In subsection (5)—

- (a) the words from “the area or part of the area” to the end of the subsection become paragraph (a),
- (b) in that paragraph, for “that Act” substitute “the Local Democracy, Economic Development and Construction Act 2009”, and
- (c) at the end of that paragraph insert “, or
 (b) the area or part of the area of a combined county authority by virtue of regulations under section 9(1) or 25(1) of the Levelling-up and Regeneration Act 2023.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I556 Sch. 4 para. 178 in force at 26.12.2023, see s. 255(2)(c)

- 179 (1) Section 102A (application of Chapter to combined authorities) is amended as follows.
- (2) In the heading, after “combined authorities” insert “and combined county authorities”.
- (3) After subsection (2) insert—
- “(3) This Chapter applies to a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023 as it applies to an ITA.
- (4) In the application of this Chapter to a combined county authority, references to an integrated transport area are to the combined county authority’s area.
- (5) In the application of this Chapter to a combined county authority, the reference in section 99(6)(b) to an executive body established by virtue of section 79(1)(a) or 84(2)(d) is to an executive body established by virtue of section 10(2)(c) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I557 Sch. 4 para. 179 in force at 26.12.2023, see s. 255(2)(c)

- 180 (1) Section 102E (power to establish STBs) is amended as follows.
- (2) In subsection (5), after paragraph (a) insert—
- “(aa) a combined county authority;”.
- (3) In subsection (6), after paragraph (a) (but before the “or” at the end of that paragraph) insert—
- “(aa) the area of a combined county authority;”.

Commencement Information

I558 Sch. 4 para. 180 in force at 26.12.2023, see s. 255(2)(c)

- 181 In section 102F(7) (requirements in connection with regulations under section 102E), after paragraph (a) insert—
- “(aa) a combined county authority;”.

Commencement Information

I559 Sch. 4 para. 181 in force at 26.12.2023, see s. 255(2)(c)

- 182 In section 102G(10) (constitution of STBs), after paragraph (a) insert—
- “(aa) in the case of a combined county authority, are the mayor for the area of the combined county authority (if there is one) and those members of the authority who are appointed from among the elected members

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

of the authority’s constituent councils (see section 10(4)(b) of the Levelling-up and Regeneration Act 2023);”.

Commencement Information

I560 Sch. 4 para. 182 in force at 26.12.2023, see s. 255(2)(c)

183 In section 102I(7) (transport strategy of an STB), after paragraph (b) insert—
“(ba) a combined county authority;”.

Commencement Information

I561 Sch. 4 para. 183 in force at 26.12.2023, see s. 255(2)(c)

184 In section 102J(7) (exercise of local transport functions), after paragraph (a) insert—
“(aa) a combined county authority;”.

Commencement Information

I562 Sch. 4 para. 184 in force at 26.12.2023, see s. 255(2)(c)

185 In section 102U, at the appropriate place insert—
““combined county authority” means a body established as a combined county authority under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I563 Sch. 4 para. 185 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I553 Sch. 4 para. 175 in force at 26.12.2023, see s. 255(2)(c)
I554 Sch. 4 para. 176 in force at 26.12.2023, see s. 255(2)(c)
I555 Sch. 4 para. 177 in force at 26.12.2023, see s. 255(2)(c)
I556 Sch. 4 para. 178 in force at 26.12.2023, see s. 255(2)(c)
I557 Sch. 4 para. 179 in force at 26.12.2023, see s. 255(2)(c)
I558 Sch. 4 para. 180 in force at 26.12.2023, see s. 255(2)(c)
I559 Sch. 4 para. 181 in force at 26.12.2023, see s. 255(2)(c)
I560 Sch. 4 para. 182 in force at 26.12.2023, see s. 255(2)(c)
I561 Sch. 4 para. 183 in force at 26.12.2023, see s. 255(2)(c)
I562 Sch. 4 para. 184 in force at 26.12.2023, see s. 255(2)(c)
I563 Sch. 4 para. 185 in force at 26.12.2023, see s. 255(2)(c)

Local Democracy, Economic Development and Construction Act 2009 (c. 20)

186 The Local Democracy, Economic Development and Construction Act 2009 is amended as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I564 Sch. 4 para. 186 in force at 26.12.2023, see s. 255(2)(c)

- 187 In section 35(2) (mutual insurance: supplementary), after paragraph (r) insert—
“(s) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I565 Sch. 4 para. 187 in force at 26.12.2023, see s. 255(2)(c)

- 188 In section 88(5) (areas of economic prosperity boards)—
(a) omit the “or” at the end of paragraph (a), and
(b) at the end of paragraph (b) insert “, or
(c) the area of a combined county authority.”

Commencement Information

I566 Sch. 4 para. 188 in force at 26.12.2023, see s. 255(2)(c)

- 189 In section 103(5) (areas of combined authorities) at the end of paragraph (a) insert—
“(aa) the area of a combined county authority.”

Commencement Information

I567 Sch. 4 para. 189 in force at 26.12.2023, see s. 255(2)(c)

- 190 (1) Section 106 (changes to boundaries of a combined authority’s area) is amended as follows.
(2) In subsection (6), after “an ITA” insert “or a combined county authority”.
(3) In subsection (7)—
(a) the words from “the integrated transport area” to the end of the subsection become paragraph (a), and
(b) at the end of that paragraph insert “, or
(b) the area of a combined county authority by virtue of regulations under section 9(1) or 25(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I568 Sch. 4 para. 190 in force at 26.12.2023, see s. 255(2)(c)

- 191 (1) Section 107 (dissolution of a combined authority’s area) is amended as follows.
(2) In subsection (6), after “an ITA” insert “or a combined county authority”.
(3) In subsection (7)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the words from “the integrated transport area” to the end of the subsection become paragraph (a), and
- (b) at the end of that paragraph insert “, or
 - (b) the area or part of the area of a combined county authority by virtue of regulations under section 9(1) or 25(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I569 Sch. 4 para. 191 in force at 26.12.2023, see s. 255(2)(c)

- 192 In section 118(5) (guidance), after paragraph (e) insert—
 “(f) a combined county authority.”

Commencement Information

I570 Sch. 4 para. 192 in force at 26.12.2023, see s. 255(2)(c)

- 193 In section 120 (interpretation of Part 6), at the appropriate place insert—
 ““combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I571 Sch. 4 para. 193 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I564 Sch. 4 para. 186 in force at 26.12.2023, see s. 255(2)(c)

I565 Sch. 4 para. 187 in force at 26.12.2023, see s. 255(2)(c)

I566 Sch. 4 para. 188 in force at 26.12.2023, see s. 255(2)(c)

I567 Sch. 4 para. 189 in force at 26.12.2023, see s. 255(2)(c)

I568 Sch. 4 para. 190 in force at 26.12.2023, see s. 255(2)(c)

I569 Sch. 4 para. 191 in force at 26.12.2023, see s. 255(2)(c)

I570 Sch. 4 para. 192 in force at 26.12.2023, see s. 255(2)(c)

I571 Sch. 4 para. 193 in force at 26.12.2023, see s. 255(2)(c)

Apprenticeships, Skills, Children and Learning Act 2009 (c. 22)

- 194 The Apprenticeships, Skills, Children and Learning Act 2009 is amended as follows.

Commencement Information

I572 Sch. 4 para. 194 in force at 26.12.2023, see s. 255(2)(c)

- 195 (1) Section 100 (provision of financial resources) is amended as follows.
 (2) After subsection (1AA) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(1AB) The Secretary of State may secure the provision of financial resources under this subsection (whether or not the resources could be secured under subsection (1)) to any of the persons mentioned in subsection (1) in respect of functions under this Part that are exercisable by a combined county authority by virtue of regulations made under section 19(1) of the Levelling-up and Regeneration Act 2023.”

(3) In subsection (5), at the appropriate place insert—

““combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I573 Sch. 4 para. 195 in force at 26.12.2023, see s. 255(2)(c)

196 (1) Section 122 (sharing of information for education and training purposes) is amended as follows.

(2) In subsection (3), after paragraph (fb) insert—

“(fc) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;

(fd) a person providing services to a combined county authority;”.

(3) In subsection (5)—

(a) omit the “or” at the end of paragraph (c), and

(b) at the end of paragraph (d) insert “, or

(e) any function of a combined authority under Part 4 that is exercisable by it by virtue of regulations made under section 19(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I574 Sch. 4 para. 196 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I572 Sch. 4 para. 194 in force at 26.12.2023, see s. 255(2)(c)

I573 Sch. 4 para. 195 in force at 26.12.2023, see s. 255(2)(c)

I574 Sch. 4 para. 196 in force at 26.12.2023, see s. 255(2)(c)

Equality Act 2010 (c. 15)

197 In Part 1 of Schedule 19 to the Equality Act 2010, under the heading “local government”, after the entry for a combined authority insert—

“A combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I575 Sch. 4 para. 197 in force at 26.12.2023, see s. 255(2)(c)

Localism Act 2011 (c. 20)

198 In section 27(6) of the Localism Act 2011 (duty to promote and maintain high standards of conduct), after paragraph (n) insert—

“(na) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I576 Sch. 4 para. 198 in force at 26.12.2023, see s. 255(2)(c)

Local Audit and Accountability Act 2014 (c. 2)

199 The Local Audit and Accountability Act 2014 is amended as follows.

Commencement Information

I577 Sch. 4 para. 199 in force at 26.12.2023, see s. 255(2)(c)

200 In section 40(6) (access to local government meetings and documents), after paragraph (ja) insert—

“(jb) a combined county authority.”

Commencement Information

I578 Sch. 4 para. 200 in force at 26.12.2023, see s. 255(2)(c)

201 In section 44(1) (interpretation of Act), at the appropriate place insert—

““combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I579 Sch. 4 para. 201 in force at 26.12.2023, see s. 255(2)(c)

202 In Schedule 2, after paragraph 28 insert—

“28ZA A combined county authority.”

Commencement Information

I580 Sch. 4 para. 202 in force at 26.12.2023, see s. 255(2)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

- I577** Sch. 4 para. 199 in force at 26.12.2023, see s. 255(2)(c)
I578 Sch. 4 para. 200 in force at 26.12.2023, see s. 255(2)(c)
I579 Sch. 4 para. 201 in force at 26.12.2023, see s. 255(2)(c)
I580 Sch. 4 para. 202 in force at 26.12.2023, see s. 255(2)(c)

Cities and Local Government Devolution Act 2016 (c. 1)

203 The Cities and Local Government Devolution Act 2016 is amended as follows.

Commencement Information

- I581** Sch. 4 para. 203 in force at 26.12.2023, see s. 255(2)(c)

- 204 (1) Section 1 (devolution: annual report) is amended as follows.
- (2) In subsection (1), after “this Act” insert “or Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023”.
- (3) In subsection (2)—
- (a) in paragraph (c), after “a combined authority” insert “or a combined county authority”;
- (b) in paragraph (e), after “combined authorities” insert “, combined county authorities”.
- (4) In subsection (4), after the definition of “combined authority” insert—
- ““combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

- I582** Sch. 4 para. 204 in force at 26.12.2023, see s. 255(2)(c)

- 205 (1) Section 18 (devolving health service functions) is amended as follows.
- (2) In subsection (1)—
- (a) in the words before paragraph (a), for the words from “or an order” to “(“the 2009 Act”)” substitute “, an order under section 105A of the Local Democracy, Economic Development and Construction Act 2009 (transfer of public authority functions to combined authorities) (“the 2009 Act”) or regulations under section 19(1) of the Levelling-up and Regeneration Act 2023 (transfer of public authority functions to combined authorities) (“the 2022 Act”);”, and
- (b) in paragraph (c), for “or a combined authority” substitute “, a combined authority or a combined county authority”.
- (3) In subsection (2), in the words after paragraph (h), for “or an order under section 105A of the 2009 Act” substitute “, an order under section 105A of the 2009 Act or regulations under section 19(1) of the 2022 Act”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(4) In subsection (7)—

- (a) in the words before paragraph (a), for “or by an order under section 105A of the 2009 Act” substitute “, by an order under section 105A of the 2009 Act or by regulations under section 19(1) of the 2022 Act”, and
- (b) in each of paragraphs (a) and (b), for “or a combined authority” substitute “, a combined authority or a combined county authority”.

(5) In subsection (8)—

- (a) for “or a combined authority” substitute “, a combined authority or a combined county authority”, and
- (b) for “, or by an order under section 105A of the 1999 Act” substitute “, by an order under section 105A of the 1999 Act or by regulations under section 19(1) of the 2022 Act”.

Commencement Information

I583 Sch. 4 para. 205 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I581 Sch. 4 para. 203 in force at 26.12.2023, see s. 255(2)(c)

I582 Sch. 4 para. 204 in force at 26.12.2023, see s. 255(2)(c)

I583 Sch. 4 para. 205 in force at 26.12.2023, see s. 255(2)(c)

Policing and Crime Act 2017 (c. 3)

206 The Policing and Crime Act 2017 is amended as follows.

Commencement Information

I584 Sch. 4 para. 206 in force at 26.12.2023, see s. 255(2)(c)

207 In section 3 (collaboration agreements: specific restrictions), after subsection (7) insert—

“(7A) A combined county authority that exercises the functions of a fire and rescue authority by virtue of section 18 or 19 of the Levelling-up and Regeneration Act 2023 may only enter into a collaboration agreement where the functions of the authority to which the agreement relates are functions of a fire and rescue authority that the combined county authority is entitled to exercise.”

Commencement Information

I585 Sch. 4 para. 207 in force at 26.12.2023, see s. 255(2)(c)

208 In section 5(5) (collaboration agreements: definitions)—

- (a) omit the “or” at the end of paragraph (b);
- (b) after paragraph (c) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- “(d) a combined county authority that exercises the functions of a fire and rescue authority by virtue of section 18 or 19 of the Levelling-up and Regeneration Act 2023, or
- (e) an elected mayor who exercises the functions of a fire and rescue authority by virtue of section 30 of that Act.”

Commencement Information

I586 Sch. 4 para. 208 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I584 Sch. 4 para. 206 in force at 26.12.2023, see s. 255(2)(c)

I585 Sch. 4 para. 207 in force at 26.12.2023, see s. 255(2)(c)

I586 Sch. 4 para. 208 in force at 26.12.2023, see s. 255(2)(c)

Technical and Further Education Act 2017 (c. 19)

209 The Technical and Further Education Act 2017 is amended as follows.

Commencement Information

I587 Sch. 4 para. 209 in force at 26.12.2023, see s. 255(2)(c)

- 210 In Schedule 3 (conduct of education administration: statutory corporations)—
- (a) in paragraph 13(b), in the inserted paragraph (ab), for “or combined authority” substitute “, combined authority or combined county authority”;
 - (b) in paragraph 38(c)—
 - (i) after the definition of “combined authority”, insert—

““combined county authority” means an authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”;
 - (ii) in the definition of “director of children’s services”, in paragraph (b), after “a combined authority” insert “or a combined county authority”.

Commencement Information

I588 Sch. 4 para. 210 in force at 26.12.2023, see s. 255(2)(c)

- 211 In Schedule 4 (conduct of education administration: companies)—
- (a) in paragraph 12(b), in the inserted paragraph (ab), for “or combined authority” substitute “, combined authority or combined county authority”;
 - (b) in paragraph 36(c)—
 - (i) after the definition of “combined authority”, insert—

““combined county authority” means an authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(ii) in the definition of “director of children’s services”, in paragraph (b), after “a combined authority” insert “or a combined county authority”.

Commencement Information

I589 Sch. 4 para. 211 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I587 Sch. 4 para. 209 in force at 26.12.2023, see s. 255(2)(c)

I588 Sch. 4 para. 210 in force at 26.12.2023, see s. 255(2)(c)

I589 Sch. 4 para. 211 in force at 26.12.2023, see s. 255(2)(c)

Bus Services Act 2017 (c. 21)

^{F123}212

Textual Amendments

F123 Sch. 4 para. 212 omitted (26.1.2026) by virtue of Bus Services Act 2025 (c. 24), ss. 22(8), 41(5); S.I. 2026/46, reg. 2(l)

Digital Economy Act 2017 (c. 30)

213 The Digital Economy Act 2017 is amended as follows.

Commencement Information

I590 Sch. 4 para. 213 in force at 26.12.2023, see s. 255(2)(c)

214 In Schedule 4 (public service delivery: specified persons for the purposes of section 35), after paragraph 14 insert—
“14A A combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I591 Sch. 4 para. 214 in force at 26.12.2023, see s. 255(2)(c)

215 In Schedule 5 (public service delivery: specified persons for the purposes of sections 36 and 37), after paragraph 8 insert—
“8A A combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I592 Sch. 4 para. 215 in force at 26.12.2023, see s. 255(2)(c)

216 In Schedule 6 (public service delivery: specified persons for the purposes of sections 36 and 37), after paragraph 7 insert—

“7A A combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I593 Sch. 4 para. 216 in force at 26.12.2023, see s. 255(2)(c)

Commencement Information

I590 Sch. 4 para. 213 in force at 26.12.2023, see s. 255(2)(c)

I591 Sch. 4 para. 214 in force at 26.12.2023, see s. 255(2)(c)

I592 Sch. 4 para. 215 in force at 26.12.2023, see s. 255(2)(c)

I593 Sch. 4 para. 216 in force at 26.12.2023, see s. 255(2)(c)

Data Protection Act 2018 (c.12)

217 In Schedule 1 to the Data Protection Act 2018 (special categories of personal data and criminal convictions etc data), in paragraph 23(3), after paragraph (h) insert—

“(ha) a mayor for the area of a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I594 Sch. 4 para. 217 in force at 26.12.2023, see s. 255(2)(c)

Automated and Electric Vehicles Act 2018 (c. 18)

218 (1) Section 12 of the Automated and Electric Vehicles Act 2018 (duty to consider making regulations under section 11(1)(a) on request from mayor) is amended as follows.

(2) In subsection (7)—

(a) in paragraph (a), after “a combined authority” insert “, a combined county authority”;

(b) in paragraph (b), after sub-paragraph (i) insert—

“(ia) in the case of the area of a combined county authority, the mayor for the area elected in accordance with section 27(2) of the Levelling-up and Regeneration Act 2023;”.

(3) In subsection (8), in the appropriate place insert—

““combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I595 Sch. 4 para. 218 coming into force in accordance with s. 255(2)(b)(i)(c)

Skills and Post-16 Education Act 2022 (c. 21)

219 The Skills and Post-16 Education Act 2022 is amended as follows.

Commencement Information

I596 Sch. 4 para. 219 in force at 26.12.2023, see s. 255(2)(c)

220 In section 1(7) (views of relevant authority in relation to local skills improvement plan), for paragraph (a), and the “or” at the end of that paragraph, substitute—

- “(a) a combined authority within the meaning of Part 6 of the Local Democracy, Economic Development and Construction Act 2009 (see section 103 of that Act),
- (aa) a CCA within the meaning of Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023 (combined county authorities) (see section 9 of that Act),
- (ab) a local authority that has functions conferred on it by regulations made under section 16(1) of the Cities and Local Government Devolution Act 2016 (power to transfer etc public authority functions to certain local authorities), or”.

Commencement Information

I597 Sch. 4 para. 220 in force at 26.12.2023, see s. 255(2)(c)

221 (1) Section 4 (interpretation of sections 1 to 4) is amended as follows.

(2) In subsection (1), at the appropriate place insert—

““combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

(3) In subsection (2), after paragraph (b) insert—

“(ba) a combined county authority”.

Commencement Information

I598 Sch. 4 para. 221 in force at 26.12.2023, see s. 255(2)(c)

222 In section 19(2) (meaning of “relevant provider”), after paragraph (g) insert—

“(ga) a combined county authority;”.

Commencement Information

I599 Sch. 4 para. 222 coming into force in accordance with s. 255(2)(b)(i)(c)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- 223 In section 20(7) (meaning of “funding authority”), after paragraph (c) insert—
“(ca) a combined county authority;”.

Commencement Information

I600 Sch. 4 para. 223 coming into force in accordance with s. 255(2)(b)(i)(c)

- 224 In section 21(2) (interpretation of sections 19 to 21), at the appropriate place insert—
““combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I601 Sch. 4 para. 224 coming into force in accordance with s. 255(2)(b)(i)(c)

Commencement Information

I596 Sch. 4 para. 219 in force at 26.12.2023, see s. 255(2)(c)
I597 Sch. 4 para. 220 in force at 26.12.2023, see s. 255(2)(c)
I598 Sch. 4 para. 221 in force at 26.12.2023, see s. 255(2)(c)
I599 Sch. 4 para. 222 coming into force in accordance with s. 255(2)(b)(i)(c)
I600 Sch. 4 para. 223 coming into force in accordance with s. 255(2)(b)(i)(c)
I601 Sch. 4 para. 224 coming into force in accordance with s. 255(2)(b)(i)(c)

Health and Care Act 2022 (c. 31)

- 225 In section 180(2) of the Health and Care Act 2022 (licensing of cosmetic procedures), in the definition of “local authority”, after paragraph (d) insert—
“(da) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I602 Sch. 4 para. 225 in force at 26.12.2023, see s. 255(2)(c)

Elections Act 2022 (c. 37)

- 226 The Elections Act 2022 is amended as follows.

Commencement Information

I603 Sch. 4 para. 226 not in force at Royal Assent, see s. 255(2)(b)(ii)
I604 Sch. 4 para. 226 in force at 26.12.2023 for specified purposes by S.I. 2023/1405, reg. 7(a)
I605 Sch. 4 para. 226 in force at 7.5.2024 in so far as not already in force by S.I. 2023/1405, reg. 8

- 227 In section 37(1) (interpretation of Part 5), in the definition of “relevant elective office”, after paragraph (f) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(fa) mayor for the area of a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I606 Sch. 4 para. 227 not in force at Royal Assent, see s. 255(2)(b)(ii)

I607 Sch. 4 para. 227 in force at 26.12.2023 by S.I. 2023/1405, reg. 7(b)

228 In section 45(9) (meaning of “relevant election”), after paragraph (g) insert—
 “(ga) an election for the return of a mayor for the area of a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Commencement Information

I608 Sch. 4 para. 228 not in force at Royal Assent, see s. 255(2)(b)(ii)

I609 Sch. 4 para. 228 in force at 26.12.2023 by S.I. 2023/1405, reg. 7(b)

229 (1) Paragraph 1 of Schedule 11 (illegal practices) is amended as follows.

(2) In sub-paragraph (1)(b)—

- (a) omit the “or” at the end of sub-paragraph (iv), and
- (b) after sub-paragraph (v) (but before the “and” at the end of that sub-paragraph) insert “or
 (vi) an election for the return of a mayor for the area of a combined county authority;”.

(3) In sub-paragraph (4)—

- (a) omit the “and” at the end of paragraph (b), and
- (b) at the end of paragraph (c) insert “, and
 (d) as it applies in relation to an election for the return of a mayor for the area of a combined county authority by virtue of regulations under paragraph 12(1) of Schedule 2 to the Levelling-up and Regeneration Act 2023.”

(4) After sub-paragraph (5) insert—

“(6) In this paragraph “combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I610 Sch. 4 para. 229 not in force at Royal Assent, see s. 255(2)(b)(ii)

I611 Sch. 4 para. 229 in force at 26.12.2023 by S.I. 2023/1405, reg. 7(b)

230 In paragraph 12(4) of Schedule 8 (voting and candidacy rights of EU citizens: transitional provision), after paragraph (d) insert—

“(da) mayor for the area of a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

- I612** Sch. 4 para. 230 not in force at Royal Assent, see [s. 255\(2\)\(b\)\(ii\)](#)
I613 Sch. 4 para. 230 in force at 7.5.2024 by [S.I. 2023/1405](#), [reg. 8](#)

Commencement Information

- I603** Sch. 4 para. 226 not in force at Royal Assent, see [s. 255\(2\)\(b\)\(ii\)](#)
I604 Sch. 4 para. 226 in force at 26.12.2023 for specified purposes by [S.I. 2023/1405](#), [reg. 7\(a\)](#)
I605 Sch. 4 para. 226 in force at 7.5.2024 in so far as not already in force by [S.I. 2023/1405](#), [reg. 8](#)
I606 Sch. 4 para. 227 not in force at Royal Assent, see [s. 255\(2\)\(b\)\(ii\)](#)
I607 Sch. 4 para. 227 in force at 26.12.2023 by [S.I. 2023/1405](#), [reg. 7\(b\)](#)
I608 Sch. 4 para. 228 not in force at Royal Assent, see [s. 255\(2\)\(b\)\(ii\)](#)
I609 Sch. 4 para. 228 in force at 26.12.2023 by [S.I. 2023/1405](#), [reg. 7\(b\)](#)
I610 Sch. 4 para. 229 not in force at Royal Assent, see [s. 255\(2\)\(b\)\(ii\)](#)
I611 Sch. 4 para. 229 in force at 26.12.2023 by [S.I. 2023/1405](#), [reg. 7\(b\)](#)
I612 Sch. 4 para. 230 not in force at Royal Assent, see [s. 255\(2\)\(b\)\(ii\)](#)
I613 Sch. 4 para. 230 in force at 7.5.2024 by [S.I. 2023/1405](#), [reg. 8](#)

SCHEDULE 5

section 81

ALTERATION OF STREET NAMES: CONSEQUENTIAL AMENDMENTS

Public Health Acts Amendment Act 1907

- 1 In section 21 of the Public Health Acts Amendment Act 1907 (power to alter names of streets), at the end insert—
“This section does not apply in relation to a street or part of a street in England.”

Commencement Information

- I614** Sch. 5 para. 1 not in force at Royal Assent, see [s. 255\(2\)\(r\)](#)
I615 Sch. 5 para. 1 in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(p\)](#)

Public Health Act 1925

- 2 In section 18 of the Public Health Act 1925 (alteration of name of street), after subsection (4) insert—
“(4A) In its application in relation to a street, or part of a street, in England, this section applies as if, in subsection (1), the words “may alter the name of any street, or part of a street, or” were omitted.
See [section 81](#) of the Levelling-up and Regeneration Act 2023 for provision about altering street names in England.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I616 Sch. 5 para. 2 not in force at Royal Assent, see [s. 255\(2\)\(r\)](#)

I617 [Sch. 5 para. 2](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(p\)](#)

London Building Acts (Amendment) Act 1939

- 3
- In section 6 (assigning of names to streets etc), after subsection (3) insert—
“(4) In the case of an order under subsection (1) to which [section 81\(5\)](#) of the Levelling-up and Regeneration Act 2023 (requirement to demonstrate necessary support before street name altered) applies, subsections (2) and (3) do not apply.”

Commencement Information

I618 Sch. 5 para. 3 not in force at Royal Assent, see [s. 255\(2\)\(r\)](#)

I619 [Sch. 5 para. 3](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(p\)](#)

Local Government Act 1972

- 4
- In Part 2 of Schedule 14 to the Local Government Act 1972 (amendments and modifications of Public Health Acts etc), in paragraph 26(c) for “sections 21 and” substitute “section”.

Commencement Information

I620 Sch. 5 para. 4 not in force at Royal Assent, see [s. 255\(2\)\(r\)](#)

I621 [Sch. 5 para. 4](#) in force at 31.1.2024 by [S.I. 2024/92](#), [reg. 2\(p\)](#)

PROSPECTIVE

SCHEDULE 6

Section 93(5)

DETERMINATIONS AND OTHER DECISIONS: HAVING REGARD TO NATIONAL DEVELOPMENT MANAGEMENT POLICIES

Town and Country Planning Act 1990

1

TCPA 1990 is amended as follows.

Commencement Information

I622 Sch. 6 para. 1 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- 2 In section 59A (development orders: permission in principle), in subsection (11), after “development plan” insert “, any national development management policies so far as they are material”.

Commencement Information

I623 Sch. 6 para. 2 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

- 3 In section 70 (determination of applications for planning permission: general considerations),—
- (a) in subsection (2), after paragraph (aza) insert—
 - “(azb) any national development management policies, so far as material to the application,”;
 - (b) in subsection (2A), for “(2)(b)” substitute “(2)(azb) and (b)”.

Commencement Information

I624 Sch. 6 para. 3 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

- 4 In section 70A (power to decline to determine subsequent application)—
- (a) after subsection (5) insert—
 - “(5A) The relevant considerations, in relation to a local planning authority in England, are—
 - (a) the development plan so far as material to the application;
 - (b) any national development management policies so far as material to the application;
 - (c) any other material considerations.”;
 - (b) in subsection (6), after “considerations” insert “, in relation to a local planning authority in Wales,”.

Commencement Information

I625 Sch. 6 para. 4 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

- 5 In section 74 (directions etc as to method of dealing with applications)—
- (a) in subsection (1)(b), at the end insert “or, in the case of an authority in England, any national development management policy”;
 - (b) in subsection (1C), after paragraph (a) (but before the “and” at the end of that paragraph) insert—
 - “(aa) any national development management policies,”.

Commencement Information

I626 Sch. 6 para. 5 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

- 6 In section 91 (general condition limiting duration of planning permission), in subsection (2), for “shall be” substitute “must be—
- (a) in the case of an authority in England, a period which the authority consider appropriate having regard to the provisions of

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- the development plan, to any national development management policies so far as they are material and to any other material considerations, or
- (b) in the case of an authority in Wales,”.

Commencement Information

I627 Sch. 6 para. 6 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

- 7 In section 92 (outline planning permission), in subsection (6), for “shall have regard” substitute “must have regard—
- (a) in the case of an authority in England, to the provisions of the development plan, to any national development management policies so far as they are material and to any other material considerations, or
- (b) in the case of an authority in Wales,”.

Commencement Information

I628 Sch. 6 para. 7 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

- 8 In section 97 (power to revoke or modify planning permission or permission in principle), in subsection (2), for “shall have regard” substitute “must have regard—
- (a) in the case of an authority in England, to the development plan, to any national development management policies so far as they are material and to any other material considerations, or
- (b) in the case of an authority in Wales,”.

Commencement Information

I629 Sch. 6 para. 8 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

- 9 In section 102 (orders requiring discontinuance of use or alteration or removal of buildings or works)—
- (a) in subsection (1), for “the development plan and to any other material considerations” substitute “the relevant considerations”;
- (b) after that subsection insert—
- “(1A) In subsection (1) “the relevant considerations” are—
- (a) in the case of an authority in England, the development plan, any national development management policies so far as they are material and any other material considerations, or
- (b) in the case of an authority in Wales, the development plan and any other material considerations.”

Commencement Information

I630 Sch. 6 para. 9 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- 10 In section 172 (issue of enforcement notice), in subsection (1)(b), for “regard” substitute “regard—
- (i) in the case of an authority in England, to the development plan, to any national development management policies so far as they are material and to any other material considerations, or
 - (ii) in the case of an authority in Wales,”.

Commencement Information

I631 Sch. 6 para. 10 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

- 11 In section 177 (grant or modification of planning permission on appeals against enforcement notices), for subsection (2) substitute—
- “(2) In considering whether to grant planning permission under subsection (1) —
- (a) if the land to which the enforcement notice relates is in England, the Secretary of State must have regard—
 - (i) to the provisions of the development plan, so far as material to the subject matter of the enforcement notice,
 - (ii) to any national development management policies, so far as material to the subject matter of the enforcement notice, and
 - (iii) to any other material considerations, or
 - (b) if the land to which the enforcement notice relates is in Wales, the Welsh Ministers must have regard—
 - (i) to the provisions of the development plan, so far as material to the subject matter of the enforcement notice, and
 - (ii) to any other material considerations.”

Commencement Information

I632 Sch. 6 para. 11 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

- 12 In Schedule 4B (process for making of neighbourhood development orders)—
- (a) in paragraph 5(5), before paragraph (a) insert—
 - “(za) national development management policies that are relevant to the draft neighbourhood development order to which the proposal in question relates,”;
 - (b) in paragraph 8(2), after paragraph (d) insert—
 - “(da) the making of the order is in general conformity with any national development management policies that are relevant to it,”.

Commencement Information

I633 Sch. 6 para. 12 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- 13 In Schedule 9 (requirements relating to discontinuance of mineral working), in paragraph 1—
- (a) in sub-paragraph (1), for “the development plan and to any other material considerations” substitute “the relevant considerations”;
 - (b) after that sub-paragraph insert—
 - “(1A) In sub-paragraph (1) “the relevant considerations” are—
 - (a) in the case of an authority in England, the development plan, any national development management policies so far as they are material and any other material considerations, or
 - (b) in the case of an authority in Wales, the development plan and any other material considerations.”

Commencement Information

I634 Sch. 6 para. 13 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

Commencement Information

I622 Sch. 6 para. 1 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I623 Sch. 6 para. 2 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I624 Sch. 6 para. 3 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I625 Sch. 6 para. 4 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I626 Sch. 6 para. 5 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I627 Sch. 6 para. 6 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I628 Sch. 6 para. 7 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I629 Sch. 6 para. 8 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I630 Sch. 6 para. 9 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I631 Sch. 6 para. 10 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I632 Sch. 6 para. 11 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I633 Sch. 6 para. 12 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I634 Sch. 6 para. 13 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

Planning (Hazardous Substances) Act 1990

- 14 In section 9 of the Hazardous Substances Act (determination of applications for hazardous substances consent), in subsection (2), after paragraph (c) insert—
- “(ca) in the case of an authority in England, to any national development management policies so far as they are material;”.

Commencement Information

I635 Sch. 6 para. 14 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

Greater London Authority Act 1999

- 15 In section 337(2) of GLAA 1999 (matters that may give rise to modification of spatial development strategy for London before publication), after paragraph (c) (but before the “or” at the end of that paragraph) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(ca) any national development management policies (within the meaning given by [section 38ZA](#) of the Planning and Compulsory Purchase Act 2004) so far as they are material;”.

Commencement Information

I636 Sch. 6 para. 15 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

SCHEDULE 7

Section 97

PLAN MAKING

Commencement Information

I637 Sch. 7 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I638 [Sch. 7](#) in force at 3.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 2](#)

I639 [Sch. 7](#) in force at 25.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 3\(b\)](#) (with [Sch. 1](#), [Sch. 2](#)) (as amended by [S.I. 2026/333](#), [regs. 1\(2\), 2](#))

In Part 2 of PCPA 2004 (local development) for sections 15 to 37 (and the heading before section 15) substitute—

“Joint spatial development strategies

15A Agreements to prepare joint spatial development strategy

- (1) Two or more eligible local planning authorities may agree to prepare a joint spatial development strategy.
- (2) A local planning authority are eligible for the purposes of subsection (1) if—
 - (a) they are not a London borough council,
 - (b) their area is not within, or the same as, the area of a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009,
 - (c) they are not prescribed as ineligible for the purposes of subsection (1),
 - (d) they are not already party to an agreement under subsection (1), and
 - (e) either—
 - (i) no joint spatial development strategy is operative in relation to the area of the authority, or
 - (ii) such a strategy is operative in relation to the area but the authority wish to enter into an agreement under subsection (1) in anticipation of the existing strategy being withdrawn or the authority withdrawing from it.
- (3) The Secretary of State may prescribe an authority under subsection (2)(c) only if the Secretary of State considers it appropriate to do so because of an exercise, or a contemplated exercise, of the powers in section 16 of the Cities and Local Government Devolution Act 2016 or [section 19](#) of the Levelling-up and Regeneration Act 2023 (powers to transfer etc public authority functions to certain local authorities).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(4) In this section and sections 15AA to 15AI—

“the joint strategy area”, in relation to a joint spatial development strategy, means the combined area of the participating authorities;

“the participating authorities”—

(a) in relation to a joint spatial development strategy that is being (or has been) prepared but has yet to become operative, means the local planning authorities that are for the time being party to the agreement to prepare it, and

(b) in relation to a joint spatial development strategy that is operative, means the local planning authorities that have adopted it and not since withdrawn from it,

and, unless the context otherwise requires, means those authorities acting jointly under such arrangements as they put in place for the purpose;

“participating authority” is to be read accordingly;

“preparation agreement” means an agreement under subsection (1).

15AA Contents of joint spatial development strategy

(1) A joint spatial development strategy must include a statement of the policies (however expressed) of the participating authorities, in relation to the development and use of land in the joint strategy area, which are—

(a) of strategic importance to that area, and

(b) designed to achieve objectives that relate to the particular characteristics or circumstances of that area.

(2) A joint spatial development strategy may specify or describe infrastructure the provision of which the participating authorities consider to be of strategic importance to the joint strategy area for the purposes of—

(a) supporting or facilitating development in that area,

(b) mitigating, or adapting to, climate change, or

(c) promoting or improving the economic, social or environmental well-being of that area.

(3) A joint spatial development strategy may specify or describe affordable housing the provision of which the participating authorities consider to be of strategic importance to the joint strategy area.

(4) For the purposes of subsections (1) to (3), a matter—

(a) may be of strategic importance to the joint strategy area if it does not affect the whole of that area, but

(b) is not to be regarded as being of strategic importance to that area unless it is of strategic importance to the area of more than one of the participating authorities.

(5) The Secretary of State may prescribe further matters the joint spatial development strategy may, or must, deal with.

(6) A joint spatial development strategy must contain such diagrams, illustrations or other descriptive or explanatory matter relating to its contents as may be prescribed.

(7) A joint spatial development strategy may make different provision for different cases or for different parts of the joint strategy area.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (8) A joint spatial development strategy must be designed to secure that the use and development of land in the joint strategy area contribute to the mitigation of, and adaptation to, climate change.
- (9) A joint spatial development strategy must take account of any local nature recovery strategy that relates to any part of the joint strategy area, including in particular—
 - (a) the areas identified in the strategy as areas which—
 - (i) are, or could become, of particular importance for biodiversity, or
 - (ii) are areas where the recovery or enhancement of biodiversity could make a particular contribution to other environmental benefits,
 - (b) the priorities set out in the strategy for recovering or enhancing biodiversity, and
 - (c) the proposals set out in the strategy as to potential measures relating to those priorities.
- (10) A joint spatial development strategy must not—
 - (a) include anything that is not permitted or required by or under the preceding provisions of this section,
 - (b) specify particular sites where development should take place, or
 - (c) be inconsistent with or (in substance) repeat any national development management policy.

15AB Consultation on draft strategy

- (1) Before any of the participating authorities adopt a joint spatial development strategy, the participating authorities must—
 - (a) prepare a draft of their proposed strategy,
 - (b) make copies available for inspection at such places as may be prescribed,
 - (c) send a copy to each of the bodies and persons specified in subsection (2),
 - (d) comply with any requirements imposed by regulations under [section 15LE](#), and
 - (e) consider any representations made in accordance with such regulations.
- (2) The bodies and persons mentioned in subsection (1)(c) are—
 - (a) the Secretary of State,
 - (b) any county council that are not a participating authority but any part of whose area forms part of the joint strategy area,
 - (c) the council of any county or district whose area adjoins the joint strategy area and is affected by the proposed strategy,
 - (d) such other persons or bodies as may be prescribed, and
 - (e) any other body to which, or person to whom, the participating authorities consider it appropriate to send a copy.
- (3) In determining the bodies to which it is appropriate to send a copy of the strategy under subsection (2)(e) (if any), the bodies to whom the participating authorities consider sending a copy must include—
 - (a) voluntary bodies some or all of whose activities benefit the whole or part of the joint strategy area,
 - (b) bodies which represent the interests of different racial, ethnic or national groups in the joint strategy area,
 - (c) bodies which represent the interests of different religious groups in the joint strategy area, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (d) bodies which represent the interests of different persons carrying on business in the joint strategy area.
- (4) Each copy made available for inspection or sent under subsection (1) must be accompanied by a statement of the prescribed period within which representations may be made to the participating authorities.
- (5) The persons who may make representations in accordance with the regulations include, in particular, the bodies and persons specified in subsection (2).
- (6) In this section and sections 15AD and 15AG, “representations made in accordance with the regulations” means representations made—
 - (a) in accordance with regulations made under this Part; and
 - (b) within the prescribed period.
- (7) In this section “the prescribed period” means such period as may be prescribed by, or determined in accordance with, regulations made by the Secretary of State.

15AC Public examination

- (1) Before any of the participating authorities adopt a joint spatial development strategy, the participating authorities must, unless the Secretary of State otherwise directs, cause an examination in public to be held in relation to the proposed strategy.
- (2) The following provisions of this section have effect in relation to an examination in public under subsection (1).
- (3) An examination in public is to be conducted by a person appointed by the Secretary of State for the purpose.
- (4) The matters examined at an examination in public are to be such matters affecting the consideration of the joint spatial development strategy as the person conducting the examination in public may consider ought to be so examined.
- (5) The person conducting an examination in public must make a report to the participating authorities.
- (6) No person is to have a right to be heard at an examination in public.
- (7) The following may take part in an examination in public—
 - (a) the participating authorities, and
 - (b) any person invited to do so by the person conducting the examination in public.

15AD Adoption of strategy

- (1) Subject to the following provisions of this section, each of the participating authorities may, by resolution, adopt the joint spatial development strategy prepared by them.
- (2) The joint spatial development strategy adopted by the participating authorities must be in the form of the draft prepared under section 15AB(1)(a), either as originally prepared or as modified to take account of—
 - (a) any representations made in accordance with the regulations (see section 15AB(6)),
 - (b) any direction given under subsection (7) (and not withdrawn),

***Status:** Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.*

***Changes to legislation:** Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

- (c) any report made under section 15AC by a person conducting an examination in public,
 - (d) the withdrawal of a participating authority under section 15AG(3),
 - (e) any national development management policies so far as material, or
 - (f) any other material considerations.
- (3) Subsection (2) is subject to the following provisions of this section.
- (4) The joint spatial development strategy must not be adopted by any of the participating authorities until after—
 - (a) the participating authorities have considered any representations made in accordance with the regulations, or
 - (b) if no such representations are made, the expiry of the prescribed period;and, in either case, until after the report of the person conducting the examination in public under section 15AC has been made (unless no such examination is to be held).
- (5) The joint spatial development strategy may not be adopted by a participating authority in relation to whose area a joint spatial development strategy is already operative.
- (6) If at any time it appears to the Secretary of State that it is expedient to do so for the purpose of avoiding—
 - (a) any inconsistency with current national policies, or
 - (b) any detriment to the interests of an area outside the joint strategy area,the Secretary of State may, at any time before any of the participating authorities have adopted the joint spatial development strategy, give the participating authorities a direction under subsection (7).
- (7) A direction under this subsection is a direction to the participating authorities not to adopt the joint spatial development strategy except in a form which includes modifications to the proposed joint spatial development strategy in such respects as are indicated in the direction, in order to—
 - (a) remove the inconsistency mentioned in subsection (6)(a), or
 - (b) avoid the detriment mentioned in subsection (6)(b).
- (8) Where a direction under subsection (7) is given, none of the participating authorities may adopt the joint spatial development strategy unless—
 - (a) the participating authorities satisfy the Secretary of State that they have made the modifications necessary to conform with the direction, or
 - (b) the direction is withdrawn.
- (9) A joint spatial development strategy becomes operative on the date on which, having been adopted by each participating authority, it is published by the participating authorities together with a statement that it has been so adopted.
- (10) In this section “the prescribed period” means such period as may be prescribed by, or determined in accordance with, regulations made by the Secretary of State.

15AE Review and monitoring

- (1) This section applies if a joint spatial development strategy is operative.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) The participating authorities must keep under review the matters which may be expected to affect the development of the joint strategy area or the planning of its development or which are otherwise relevant to the content of the strategy.
- (3) For the purpose of discharging their functions under subsection (2) of keeping under review any matters relating to the area of a local planning authority outside the joint strategy area, the participating authorities must consult that local planning authority about those matters.
- (4) The participating authorities must review the strategy from time to time.
- (5) If the Secretary of State so directs, the participating authorities must, within such time as may be specified in the direction, review the strategy or such part of it as may be specified in the direction.
- (6) The participating authorities must—
 - (a) monitor the implementation of the strategy, and
 - (b) monitor, and collect information about, matters relevant to the review, alteration or implementation of the strategy.

15AF Alteration of strategy

- (1) If a joint spatial development strategy is operative, the participating authorities may at any time prepare and adopt alterations of the strategy.
- (2) The Secretary of State may direct the participating authorities to exercise the power in subsection (1) in such manner and within such time as are specified in the direction.
- (3) Sections 15AB to 15AD apply in relation to the preparation and adoption of an alteration under subsection (1) as they apply in relation to the preparation and adoption of a joint spatial development strategy; and the strategy as altered must still conform to section 15AA.
- (4) But sections 15AB and 15AC do not apply in relation to an alteration if—
 - (a) the alteration is made in response to the withdrawal of a participating authority under section 15AH(2), and
 - (b) the strategy as altered will have substantially the same effect in relation to the joint strategy area (as it stands following the withdrawal) as it had in relation to that area before the alteration.

15AG Withdrawal before strategy becomes operative

- (1) This section applies if a preparation agreement is in force but the joint spatial development strategy to which the agreement relates (“the proposed strategy”) has not become operative.
- (2) A participating authority may withdraw from the agreement before the proposed strategy is published for consultation.
- (3) A participating authority may withdraw from the agreement after the proposed strategy is published for consultation if they have given at least 12 weeks’ notice to each other participating authority of their intention to do so.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) A participating authority that have adopted the strategy under section 15AD(1) may not withdraw from the agreement under subsection (3) unless they have first rescinded the resolution adopting the strategy.
- (5) A withdrawal under subsection (2) or (3) is effected by notice given to each other participating authority.
- (6) The participating authorities may cancel the agreement at any time.
- (7) If the withdrawal of a participating authority under subsection (2) or (3) means that there are no longer two or more participating authorities, the agreement is deemed to be cancelled under subsection (6).
- (8) The participating authorities may, and if the agreement is cancelled must, withdraw the proposed strategy if it has been published for consultation.
- (9) On the withdrawal of the proposed strategy, the participating authorities must—
 - (a) withdraw the copies made available for inspection under section 15AB(1)(b), and
 - (b) give notice of the withdrawal to—
 - (i) each body or person to whom a copy was sent under section 15AB(1)(c), and
 - (ii) any other body or person who made representations in accordance with the regulations (see section 15AB(6));and any participating authority that have adopted the strategy are deemed to rescind the resolution by which they did so.
- (10) In the application of subsections (8) and (9) where the agreement has been cancelled, the “participating authorities” are to be taken to be the authorities that were the participating authorities immediately before the cancellation.
- (11) If—
 - (a) a participating authority withdraw from the agreement under subsection (3),
 - (b) the agreement is not cancelled under subsection (6), and
 - (c) but for this subsection, the remaining participating authorities would, in response to the withdrawal, modify the proposed strategy so that it would have a substantially different effect on the joint strategy area (as it stands following the withdrawal) from that which the version published for consultation would have had on that area,the participating authorities must, instead of modifying the proposed strategy, withdraw it under subsection (8).
- (12) For the purposes of this section and section 15AI, a proposed strategy is “published for consultation” when a draft of it is made available for inspection under section 15AB(1)(b) or sent to any person under section 15AB(1)(c).
- (13) If a proposed strategy is withdrawn under subsection (8), the fact that the strategy was published for consultation is to be disregarded for the purposes of subsections (2) and (3).

15AH Withdrawal after strategy becomes operative

- (1) This section applies if a joint spatial development strategy is operative.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) A participating authority may withdraw from the strategy if—
 - (a) the period of five years beginning with the day on which the strategy became operative has elapsed, and
 - (b) the authority have given at least 12 weeks' notice to the other participating authorities of their intention to do so.
- (3) A withdrawal under subsection (2) is effected by notice given to each other participating authority.
- (4) The participating authorities may withdraw the strategy at any time.
- (5) If the withdrawal of a participating authority under subsection (2) means that there are no longer two or more participating authorities, the joint spatial development strategy is to be treated as having been withdrawn under subsection (4).
- (6) The Secretary of State may direct the participating authorities to withdraw the strategy if the Secretary of State thinks that the strategy is unsatisfactory.
- (7) If a participating authority withdraw from the strategy, the other participating authorities must consider whether to alter the strategy under section 15AF or withdraw it under subsection (4).
- (8) If a participating authority withdraw from the strategy, the strategy ceases to be operative in relation to the area of that authority (irrespective of whether it is altered under section 15AF).

15AI Effect of creation of combined authority in joint strategy area

- (1) This section applies if an order is made under section 103 of the Local Democracy, Economic Development and Construction Act 2009 establishing a combined authority the area of which includes, or is the same as, the area of a participating authority.
- (2) Subsection (3) or (4) applies if the order is made before the proposed joint spatial development strategy is published for consultation (see section 15AG(12)).
- (3) If the areas of at least two of the participating authorities are outside the area of the combined authority, each participating authority whose area is within the area of the combined authority are deemed, on the making of the order, to withdraw from the preparation agreement under section 15AG(2).
- (4) If the area of none or only one of the participating authorities is outside the area of the combined authority, the preparation agreement is deemed, on the making of the order, to be cancelled under section 15AG(6).
- (5) Subsection (6) or (7) applies if the order is made after the proposed joint spatial development strategy is published for consultation but before the joint spatial development strategy becomes operative.
- (6) If the areas of at least two of the participating authorities are outside the area of the combined authority, each participating authority whose area is within the area of the combined authority are deemed, on the making of the order—
 - (a) to withdraw from the preparation agreement under section 15AG(3) (despite not having given notice as required by that provision), and
 - (b) to rescind any resolution adopting the strategy.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (7) If the area of none or only one of the participating authorities is outside the area of the combined authority, the preparation agreement is deemed, on the making of the order, to be cancelled under section [15AG\(6\)](#).
- (8) Subsection [\(9\)](#) or [\(10\)](#) applies if—
 - (a) the joint spatial development strategy is operative, and
 - (b) the combined authority adopts a spatial development strategy for its area.
- (9) If the areas of at least two of the participating authorities are outside the area of the combined authority, each participating authority whose area is within the area of the combined authority is deemed, on the adoption of the strategy by the combined authority, to withdraw from the joint spatial development strategy under section [15AH\(2\)](#) (even if the conditions in that provision are not met).
- (10) If the area of none or only one of the participating authorities is outside the area of the combined authority, the joint spatial development strategy is deemed, on the adoption of the strategy by the combined authority, to be withdrawn under section [15AH\(4\)](#).
- (11) If a proposed strategy is withdrawn under section [15AG\(8\)](#), the fact that the strategy was published for consultation is to be disregarded for the purposes of subsections [\(2\)](#) and [\(5\)](#).

Plan timetables

15B Local plan timetable

- (1) Each local planning authority must prepare and maintain a document to be known as their “local plan timetable”.
- (2) The local plan timetable must specify—
 - (a) the matters which the authority’s local plan for their area is to deal with,
 - (b) the geographical area to which the authority’s local plan is to relate,
 - (c) any supplementary plans which the authority are to prepare,
 - (d) the subject matter and geographical area, site or sites to which each of those supplementary plans is to relate,
 - (e) how the authority propose to comply with the requirement in [section 15F\(1\)](#) (requirement in relation to design code),
 - (f) whether the authority’s local plan for their area is to be a joint local plan and, if so, each other local planning authority for whose area the joint local plan is to be their local plan,
 - (g) whether the authority are to prepare a joint supplementary plan and, if so, each other local planning authority who are to prepare that joint supplementary plan with them,
 - (h) any matter or area in respect of which the authority have agreed (or propose to agree) to the constitution of a joint committee under [section 15J](#), and
 - (i) a timetable for the preparation of the authority’s local plan for their area, and any supplementary plans the authority are to make, which is consistent with this Part and any regulations made under it.
- (3) If the local planning authority’s local plan for their area is to be a joint local plan, or the authority is to prepare one or more joint supplementary plans, the timetable for each joint plan, specified in the local plan timetable in accordance with [subsection \(2\)\(i\)](#),

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

must be consistent with the timetable for that plan in the local plan timetable prepared by each other local planning authority who are to prepare that plan.

- (4) If the local planning authority are a minerals and waste planning authority, the local plan timetable may incorporate the authority's minerals and waste plan timetable.
- (5) The Secretary of State may prescribe—
 - (a) the form and content of the local plan timetable;
 - (b) further matters which the local plan timetable must deal with.
- (6) If a local planning authority have not prepared a local plan timetable, the Secretary of State or the Mayor of London may—
 - (a) prepare a local plan timetable for the authority, and
 - (b) direct the authority to bring that timetable into effect.
- (7) The Secretary of State or the Mayor of London may direct the local planning authority to make such amendments to the local plan timetable as the Secretary of State or (as the case may be) Mayor thinks appropriate for the purpose of ensuring full and effective coverage (both geographically and with regard to subject matter) of the authority's area by the development plan for that area.
- (8) To bring the local plan timetable into effect, the local planning authority must publish it, together with a statement that the timetable is to have effect.
- (9) Once the local plan timetable has effect, the local planning authority must comply with it.
- (10) The Secretary of State may by regulations make provision as to when, or the circumstances in which, a local planning authority must revise their local plan timetable (and that provision may confer a power to direct that a local plan timetable is to be revised).
- (11) Subsections (1) to (9) and [section 15BA](#) apply to the revision of a local plan timetable as they apply to the preparation of a local plan timetable.
- (12) For further provision about directions under subsection (6) or (7), see [section 15BA](#).

15BA Local plan timetable: further provision about directions under [15BA section 15B](#)

- (1) The Mayor of London—
 - (a) may give a direction under [section 15B\(6\)](#) or (7) only if the local planning authority are a London borough council, and
 - (b) in considering whether to give such a direction, and which amendments to include in the direction, must have regard to any guidance issued by the Secretary of State.
- (2) A direction under [section 15B\(6\)](#) or (7) must contain the Secretary of State's, or (as the case may be) the Mayor of London's, reasons for giving it.
- (3) If at any time the Mayor of London gives a direction under [section 15B\(6\)](#) or (7)—
 - (a) the Mayor must at that time send a copy of the direction to the Secretary of State, and
 - (b) the direction is not to be given effect until such time as may be prescribed.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) The Secretary of State may, within such time as may be prescribed, direct the local planning authority—
 - (a) to disregard a direction given under [section 15B\(6\)](#) or [\(7\)](#) by the Mayor of London, or
 - (b) to give effect to the direction with such modifications as may be specified in the Secretary of State’s direction.
- (5) Such a direction must contain the Secretary of State’s reasons for giving it.
- (6) If at any time the Secretary of State gives a direction under [subsection \(4\)](#), the Secretary of State must at that time send a copy of the direction to the Mayor of London.
- (7) Section 38(1) of the Greater London Authority Act 1999 (delegation of functions by the Mayor) does not apply to the Mayor of London’s functions under [section 15B\(6\)](#) or [\(7\)](#) of giving a direction.

15BB Minerals and waste plan timetable

- (1) Each minerals and waste planning authority must prepare and maintain a document to be known as their “minerals and waste plan timetable”.
- (2) The minerals and waste plan timetable must specify—
 - (a) the matters which will be dealt with by the minerals and waste plan for the relevant area,
 - (b) the geographical area to which the authority’s minerals and waste plan is to relate,
 - (c) any supplementary plans which the minerals and waste planning authority are to make,
 - (d) the subject matter and geographical area, site or sites to which each supplementary plan is to relate,
 - (e) whether the minerals and waste plan for the authority’s area is to be a joint minerals and waste plan and, if so, each other minerals and waste planning authority for whose relevant area the joint minerals and waste plan is to be the minerals and waste plan,
 - (f) whether the authority are to prepare a joint supplementary plan and, if so, each other minerals and waste planning authority who are to prepare that joint supplementary plan with them, and
 - (g) a timetable for the preparation of the minerals and waste plan for the relevant area, and any supplementary plans the authority are to make, which is consistent with this Part and any regulations made under it.
- (3) If the minerals and waste plan for the relevant area is to be a joint minerals and waste plan, or the authority is to prepare one or more joint supplementary plans, the timetable for each joint plan, specified in the minerals and waste plan timetable in accordance with [subsection \(2\)\(g\)](#), must be consistent with the timetable for that plan in the minerals and waste plan timetable prepared by each other minerals and waste planning authority who are to prepare that plan.
- (4) Sections [15B\(5\)](#) to [\(12\)](#), [15BA](#) and [15LE](#) apply in relation to a minerals and waste plan timetable as they apply in relation to a local plan timetable and for that purpose—
 - (a) references to a local plan timetable are to be read as references to a minerals and waste plan timetable,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) references to a local plan are to be read as references to a minerals and waste plan,
 - (c) references to a local planning authority are to be read as references to a minerals and waste planning authority, and
 - (d) references to a local planning authority’s area are to be read as references to a minerals and waste planning authority’s relevant area.
- (5) In this section “joint minerals and waste plan” means a minerals and waste plan prepared jointly by two or more minerals and waste planning authorities for their combined relevant areas under sections [15I](#) and [15IA](#) (as applied by [section 15CB\(8\)](#)).

Local, minerals and waste and supplementary plans

15C Local plans

- (1) Each local planning authority must prepare a document to be known as their “local plan”.
- (2) Only one local plan may have effect in relation to a local planning authority’s area at any one time.
- (3) The local plan must set out policies of the local planning authority (however expressed) in relation to the amount, type and location of, and timetable for, development in the local planning authority’s area.
- (4) The local plan may include—
 - (a) other policies (however expressed) in relation to the use or development of land in the local planning authority’s area which are designed to achieve objectives that relate to the particular characteristics or circumstances of their area, any part of their area or one or more specific sites in their area;
 - (b) details of any infrastructure requirements, or requirements for affordable housing, to which development in accordance with the policies, included in the plan under [subsection \(3\)](#) or [paragraph \(a\)](#) of this subsection, would give rise;
 - (c) requirements with respect to design that relate to development, or development of a particular description, throughout the local planning authority’s area, in any part of their area or at one or more specific sites in their area, which the local planning authority consider should be met for planning permission for the development to be granted.
- (5) The Secretary of State may prescribe further matters which the local plan may, or must, deal with.
- (6) The local plan must be designed to secure that the use and development of land in the local planning authority’s area contribute to the mitigation of, and adaptation to, climate change.
- (7) The local plan must take account of any local nature recovery strategy that relates to all or part of the local planning authority’s area, including in particular—
 - (a) the areas identified in the strategy as areas which—
 - (i) are, or could become, of particular importance for biodiversity, or
 - (ii) are areas where the recovery or enhancement of biodiversity could make a particular contribution to other environmental benefits,
 - (b) the priorities set out in the strategy for recovering or enhancing biodiversity, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) the proposals set out in the strategy as to potential measures relating to those priorities.
- (8) The local plan must take account of an assessment of the amount, and type, of housing that is needed in the local planning authority's area, including the amount of affordable housing that is needed.
- (9) The local plan must not—
 - (a) include anything that is not permitted or required by or under subsections (3) to (5) or (10) or regulations under [section 15CA\(8\)\(a\)](#), or
 - (b) be inconsistent with or (in substance) repeat any national development management policy.
- (10) References in this section to development do not include minerals and waste development, but where the local planning authority is the minerals and waste planning authority for any part of their area, their local plan may incorporate all or part of their minerals and waste plan.

15CA Local plans: preparation and further provision

- (1) A local plan must be prepared in accordance with the local planning authority's local plan timetable.
- (2) A local plan must be in general conformity with the spatial development strategy, if one is operative in relation to the area of the local planning authority.
- (3) The local planning authority must, at such times as may be prescribed, seek observations or advice in relation to a proposed local plan, from a person appointed by the Secretary of State.
- (4) The Secretary of State may require the local planning authority to—
 - (a) reimburse the Secretary of State for any expenditure incurred by the Secretary of State in, or in connection with, appointing a person under subsection (3), or
 - (b) pay any fees and expenses of a person appointed by the Secretary of State under subsection (3).
- (5) The local planning authority must, as soon as is reasonably practicable, publish any observations or advice they receive from a person appointed by the Secretary of State under [subsection \(3\)](#).
- (6) In preparing their local plan, a local planning authority must have regard to—
 - (a) any observations or advice received from a person appointed by the Secretary of State under [subsection \(3\)](#),
 - (b) any responses to a consultation, provided for in regulations under [section 15LE](#), in connection with the preparation of the local plan,
 - (c) national development management policies,
 - (d) other national policies and advice contained in guidance issued by the Secretary of State,
 - (e) the National Planning Framework for Scotland, if any part of the authority's area adjoins Scotland,
 - (f) the National Development Framework for Wales, if any part of the authority's area adjoins Wales,
 - (g) any other part of the development plan for the authority's area which has effect,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (h) any neighbourhood priorities statement—
 - (i) which has effect for part of the authority’s area, and
 - (ii) to which the authority has not already had regard in preparing another local plan previously adopted or approved under this Part, and
 - (i) such other matters as the Secretary of State prescribes.
- (7) A local plan has effect only in so far as it or any part of it is adopted or approved under this Part.
- (8) Regulations made by the Secretary of State may—
- (a) prescribe the form and content of a local plan;
 - (b) make provision as to any further documents which must be prepared by the authority in connection with the preparation of a local plan (including the form and content of such documents);
 - (c) prescribe the nature of the observations or advice which must be sought under [subsection \(3\)](#);
 - (d) prescribe documents or information which must be provided by the local planning authority to a person appointed by the Secretary of State under [subsection \(3\)](#) (including the form and content of such documents);
 - (e) prescribe the form and content of observations or advice provided under [subsection \(3\)](#);
 - (f) prescribe when the local planning authority is to have regard to something mentioned in [subsection \(6\)](#);
 - (g) prescribe when any step in, or in connection with, the preparation of the local plan must be taken;
 - (h) make provision as to when, or in what circumstances, a new local plan is to be prepared to replace the existing one.

15CB Minerals and waste plan

- (1) Each minerals and waste planning authority must, in respect of their relevant area, prepare one or more documents which are to be known collectively as their “minerals and waste plan”.
- (2) The minerals and waste plan must set out policies of the minerals and waste planning authority (however expressed) in relation to the amount, type and location of, and timetable for, minerals and waste development, in the relevant area.
- (3) The minerals and waste plan may include—
 - (a) other policies (however expressed) in relation to—
 - (i) minerals and waste development in the relevant area, which are designed to achieve objectives that relate to the particular characteristics or circumstances of that area, any part of that area or one or more specific sites in that area;
 - (ii) development other than minerals and waste development, which are designed to secure that minerals and waste development in the relevant area can take place;
 - (b) details of any infrastructure requirements to which minerals and waste development in accordance with the policies, included in the plan under [subsection \(2\)](#) or [paragraph \(a\)](#) of this subsection, would give rise.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) The Secretary of State may prescribe further matters relating to minerals and waste development which the minerals and waste plan may, or must, deal with.
- (5) The minerals and waste plan must be designed to secure that minerals and waste development in the relevant area contributes to the mitigation of, and adaptation to, climate change.
- (6) The minerals and waste plan must take account of any local nature recovery strategy that relates to all or part of the relevant area, including in particular—
 - (a) the areas identified in the strategy as areas which—
 - (i) are, or could become, of particular importance for biodiversity, or
 - (ii) are areas where the recovery or enhancement of biodiversity could make a particular contribution to other environmental benefits,
 - (b) the priorities set out in the strategy for recovering or enhancing biodiversity, and
 - (c) the proposals set out in the strategy as to potential measures relating to those priorities.
- (7) The minerals and waste plan must not—
 - (a) include anything that is not permitted or required by or under subsections (2) to (4) or regulations under [section 15CA\(8\)\(a\)](#) (as applied by subsection (8)), or
 - (b) be inconsistent with or (in substance) repeat any national development management policy.
- (8) This Part applies in relation to a minerals and waste plan as it applies in relation to a local plan and for that purpose—
 - (a) references to a local plan timetable are to be read as references to a minerals and waste plan timetable,
 - (b) references to a local plan are to be read as references to a minerals and waste plan,
 - (c) references to a local planning authority are to be read as references to a minerals and waste planning authority, and
 - (d) references to a local planning authority’s area are to be read as references to a minerals and waste planning authority’s relevant area.
- (9) Subsection (8) is subject to such modifications of this Part, as it applies in relation to a minerals and waste plan, as may be prescribed.
- (10) Subsection (8) does not apply to—
 - (a) sections [15B](#) and [15BA](#);
 - (b) [section 15C](#);
 - (c) [section 15CC](#);
 - (d) sections [15J](#) to [15JB](#);
 - (e) [section 15LB\(2\)](#);
 - (f) sections [15LC\(3\)\(c\)](#) and [15LD](#).

15CC Supplementary plans

- (1) Each relevant plan-making authority may prepare one or more documents, each of which is to be known as a “supplementary plan”.
- (2) A supplementary plan prepared by the Mayor of London may include requirements with respect to design that relate to development, or development of a particular description,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

throughout Greater London, which the Mayor considers should be met for planning permission for the development to be granted.

- (3) A supplementary plan prepared by a local planning authority may include—
 - (a) policies (however expressed) in relation to the amount, type and location of, or timetable for, development at a specific site in their area or at two or more specific sites in their area which the authority consider to be nearby to each other;
 - (b) other policies (however expressed) in relation to the use or development of land in the local planning authority's area which are designed to achieve objectives that relate to the particular characteristics or circumstances of a specific site in their area or two or more specific sites in their area which the authority consider to be nearby to each other;
 - (c) details of any infrastructure requirements, or requirements for affordable housing, to which development in accordance with any policies, included in the plan under [paragraph \(a\)](#) or [\(b\)](#), would give rise;
 - (d) requirements with respect to design that relate to development, or development of a particular description, throughout the local planning authority's area, in any part of their area or at one or more specific sites in their area, which the local planning authority consider should be met for planning permission for the development to be granted.
- (4) References in [subsection \(3\)](#) to development do not include minerals and waste development.
- (5) A supplementary plan prepared by a minerals and waste planning authority may include—
 - (a) policies (however expressed) in relation to the amount, type and location of, or timetable for, minerals and waste development at one or more specific sites in the relevant area or at two or more specific sites in that area which the authority consider to be nearby to each other;
 - (b) other policies (however expressed) in relation to—
 - (i) minerals and waste development in the relevant area which are designed to achieve objectives that relate to the particular characteristics or circumstances of a specific site in that area or two or more specific sites in that area which the authority consider to be nearby to each other;
 - (ii) development other than minerals and waste development, which are designed to secure that minerals and waste development can take place at a specific site in the relevant area or two or more specific sites in that area which the authority consider to be nearby to each other;
 - (c) details of any infrastructure requirements to which minerals and waste development in accordance with any policies, included in the plan under [paragraph \(a\)](#) or [\(b\)](#), would give rise.
- (6) The Secretary of State may prescribe further matters which a supplementary plan may include.
- (7) A supplementary plan must be in general conformity with the spatial development strategy, if one is operative in relation to the area or a site to which the plan relates.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (8) In preparing a supplementary plan, the relevant plan-making authority must have regard to any other part of the development plan which has effect for the area or a site to which the plan relates.
- (9) So far as the relevant plan-making authority consider appropriate, having regard to the subject matter of the supplementary plan, the plan must—
- (a) be designed to secure that the development and use of land in the authority's area contribute to the mitigation of, and adaptation to, climate change, and
 - (b) take account of any local nature recovery strategy which relates to all or part of the area to which the plan relates or to an area in which a site to which the plan relates is located, including in particular—
 - (i) the areas identified in the strategy as areas which—
 - (A) are, or could become, of particular importance for biodiversity, or
 - (B) are areas where the recovery or enhancement of biodiversity could make a particular contribution to other environmental benefits,
 - (ii) the priorities set out in the strategy for recovering or enhancing biodiversity, and
 - (iii) the proposals set out in the strategy as to potential measures relating to those priorities.
- (10) A supplementary plan must not—
- (a) include anything which is not permitted or required by or under subsections (2) to (6), or
 - (b) be inconsistent with or (in substance) repeat any national development management policy.
- (11) The Secretary of State may by regulations make provision about the preparation, withdrawal or revision of supplementary plans.
- (12) Regulations under subsection (11)—
- (a) may apply, or make provision corresponding to, any provision made by or under this Part in relation to the preparation, withdrawal or revision of a local plan, with or without modifications;
 - (b) must require a proposed supplementary plan to be the subject of consultation with the public.
- (13) A supplementary plan has effect only in so far as it or any part of it is adopted or approved under this Part.

Examination of plans

15D Independent examination: local plans

- (1) A local planning authority must submit their proposed local plan to the Secretary of State for independent examination if a person appointed by the Secretary of State under section 15CA(3) advises that the prescribed requirements are met in relation to the plan.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) The authority must also send or make available to the Secretary of State (in addition to the local plan) such other documents (or copies of documents) and such information as is prescribed.
- (3) The Secretary of State may prescribe the manner in which the local plan, or any document or information to be sent under [subsection \(2\)](#), is to be sent.
- (4) The examination must be carried out by a person appointed by the Secretary of State (“the examiner”).
- (5) The purpose of the independent examination is to determine whether it is reasonable to conclude that the local plan is sound.
- (6) Any person who makes representations in relation to the local plan must (if that person so requests) be given the opportunity to appear before and be heard by the examiner.
- (7) At any time before the examiner makes a recommendation under any of the following subsections, if the examiner considers that—
 - (a) certain matters need to be dealt with in order for it to become reasonable to conclude that the local plan is sound, and
 - (b) those matters could be dealt with by pausing the examination under [section 15DA](#) for further work to be carried out,
 the examiner may decide that the examination is to be so paused.
- (8) The Secretary of State may by notice to the examiner—
 - (a) direct the examiner not to take any step, or any further step, in connection with the examination of the local plan, or of a specified part of it, until a specified time or until the direction is withdrawn;
 - (b) require the examiner—
 - (i) to consider any specified matters;
 - (ii) to give an opportunity, or further opportunity, to specified persons to appear before and be heard by the examiner;
 - (iii) to take any specified procedural step in connection with the examination.

In this subsection “specified” means specified in the notice.

- (9) Where the examiner—
 - (a) has carried out the examination, and
 - (b) considers that, in all the circumstances, it would be reasonable to conclude that the local plan is sound,
 the examiner must recommend that the local plan is adopted and give reasons for the recommendation.
- (10) Subsections [\(11\)](#) and [\(12\)](#) apply where the examiner—
 - (a) has carried out the examination, and
 - (b) is not required by [subsection \(9\)](#) to recommend that the local plan is adopted.
- (11) If the examiner considers that, if certain modifications were made to the local plan, it would become reasonable to conclude that the plan is sound, the examiner must—
 - (a) recommend that those modifications are made and that the plan is then adopted, and
 - (b) give reasons for the recommendation.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (12) If the examiner is not required by [subsection \(11\)](#) to recommend that the local plan is adopted with modifications and the examination is not paused or to be paused under [section 15DA](#), the examiner must—
- (a) recommend that the local plan is withdrawn, and
 - (b) give reasons for the recommendation.
- (13) The local planning authority must publish the recommendations and reasons they receive under this section.

15DA Pause of independent examination for further work

- (1) This section applies if the examiner decides under [section 15D\(7\)](#) that the examination under that section is to be paused under this section for further work to be carried out.
- (2) The examiner must notify the local planning authority and the Secretary of State—
- (a) that the examiner has taken that decision,
 - (b) of the matters which the examiner considers need to be dealt with in order for it to become reasonable to conclude that the local plan is sound, and
 - (c) of the period for which the examination under [section 15D](#) is to be paused under this section (“the pause period”).
- (3) The pause period may not—
- (a) begin earlier than the day on which notice is given to the local planning authority under [subsection \(2\)](#), nor
 - (b) be longer than such period as may be prescribed
- (4) The examination under [section 15D](#) is suspended at the beginning of the pause period.
- (5) During the pause period, the local planning authority must take steps to deal with the matters notified to them under [subsection \(2\)\(b\)](#).
- (6) Before the end of the pause period, the local planning authority must send to the examiner—
- (a) a document—
 - (i) setting out what the authority have done during the pause period to deal with the matters notified to them under [subsection \(2\)\(b\)](#), and
 - (ii) setting out any modifications to the local plan that the authority propose to make in order to make it sound or stating that the authority do not propose to make any such modifications, and
 - (b) any further evidence as to the soundness of the plan which the local planning authority may have.
- (7) The local planning authority must publish the document and any evidence sent under [subsection \(6\)](#).
- (8) If the examiner considers, at the end of the pause period, that the matters notified to the local planning authority under [subsection \(2\)\(b\)](#) have not been dealt with, with the result that there is no prospect of it becoming reasonable to conclude that the local plan is sound, the examiner must—
- (a) recommend that the local plan is withdrawn, and
 - (b) give reasons for the recommendation.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (9) If the examiner does not make a recommendation under [subsection \(8\)](#), the examination under [section 15D](#) is resumed.
- (10) The local planning authority must publish any recommendation and reasons they receive under this section.

15DB Independent examination: supplementary plans

- (1) A relevant plan-making authority must submit each supplementary plan that they propose to adopt for independent examination.
- (2) The supplementary plan must be submitted to—
 - (a) the Secretary of State, in order for the examination to be carried out by a person appointed by the Secretary of State, or
 - (b) a person who, in the opinion of the relevant plan-making authority—
 - (i) is independent of the authority,
 - (ii) does not have an interest in any land that may be affected by the supplementary plan, and
 - (iii) has appropriate qualifications and experience.
- (3) In the following provisions of this section, the person appointed by the Secretary of State under [paragraph \(a\)](#) of [subsection \(2\)](#), or (as the case may be) the person to whom the supplementary plan is submitted under [paragraph \(b\)](#) of that subsection, is “the examiner”.
- (4) The authority must also send or make available to the examiner (in addition to the supplementary plan) such other documents (or copies of documents) and such information as is prescribed.
- (5) The purpose of the independent examination is to determine in respect of the supplementary plan—
 - (a) whether the requirements of [section 15CC](#), and regulations under [subsection \(11\)](#) of that section relating to the preparation of the plan, have been met, and
 - (b) whether the relevant plan-making authority have had regard to any guidance issued by the Secretary of State which may be relevant.
- (6) The general rule is that the independent examination is to take the form of written representations.
- (7) But the examiner must cause a hearing to be held for the purposes of receiving oral representations in any case where the examiner considers that the consideration of oral representations is necessary to ensure adequate examination of an issue or that a person has a fair chance to put a case.
- (8) If a hearing is held under [subsection \(7\)](#), any person who makes representations about the matters mentioned in [subsection \(5\)](#) must (if that person so requests) be given the opportunity to appear before and be heard by the examiner
- (9) Where the examiner considers that, in all the circumstances, it would be reasonable to conclude—
 - (a) that the requirements mentioned in [subsection \(5\)\(a\)](#) have been met, and
 - (b) the relevant plan-making authority have had regard to any guidance issued by the Secretary of State which may be relevant,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

the examiner must recommend that the supplementary plan is adopted and give reasons for the recommendation.

- (10) Subsections (11) and (12) apply where the examiner—
- (a) has carried out the examination, and
 - (b) is not required by subsection (9) to recommend that the supplementary plan is adopted.
- (11) If the examiner considers that—
- (a) certain modifications of the supplementary plan would result in it being reasonable to conclude, in all the circumstances, that the requirements mentioned in subsection (5)(a) are met, and
 - (b) it is, in all the circumstances, reasonable to conclude that the relevant plan-making authority have had regard to any guidance issued by the Secretary of State which may be relevant,
- the examiner must recommend that those modifications are made and that the plan is then adopted and give reasons for the recommendation.
- (12) Where the examiner has carried out the examination and is not required by subsection (11) to recommend that the supplementary plan is adopted with modifications, the examiner must—
- (a) recommend that the supplementary plan is withdrawn, and
 - (b) give reasons for the recommendation.
- (13) The relevant plan-making authority must publish the recommendations and reasons they receive under this section.

Withdrawal and adoption of plans

15E Withdrawal of a local plan

- (1) A local planning authority may, at any time before they are required to submit a local plan for independent examination under section 15D, withdraw the plan.
- (2) After a local plan has been submitted for independent examination, the local planning authority may only withdraw the plan—
 - (a) if the person appointed to carry out the examination recommends that they do so and the Secretary of State has not directed that it is not to be withdrawn, or
 - (b) the Secretary of State directs that the plan is to be withdrawn.
- (3) The Secretary of State may at any time—
 - (a) after a local plan has been submitted for independent examination under section 15D, but
 - (b) before it is adopted under section 15EA,direct the local planning authority to withdraw the plan.

15EA Adoption of local plan or supplementary plan

- (1) Where the person appointed to carry out the independent examination of a local plan recommends that the plan as originally prepared is adopted, the local planning authority may adopt it—
 - (a) as originally prepared, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) with modifications that (taken together) do not materially affect its contents.
- (2) Where the person appointed to carry out the independent examination of a local plan recommends that the plan is adopted with modifications, the local planning authority may adopt it—
 - (a) with those modifications, or
 - (b) with those modifications, along with further modifications if the further modifications (taken together) do not materially affect its contents.
- (3) Where the person appointed to carry out the independent examination of a supplementary plan recommends that the plan as originally prepared is adopted, the relevant plan-making authority may adopt it—
 - (a) as originally prepared, or
 - (b) with modifications that (taken together) do not materially affect its contents.
- (4) Where the person appointed to carry out the independent examination of a supplementary plan recommends that the plan is adopted with modifications, the relevant plan-making authority may adopt it—
 - (a) with those modifications, or
 - (b) with those modifications, along with further modifications if the further modifications (taken together) do not materially affect its contents.
- (5) An authority must not adopt a local plan or supplementary plan unless they do so in accordance with subsection (1), (2), (3) or (4).
- (6) A plan is adopted by a local planning authority, or a minerals and waste planning authority, if it is adopted by a resolution of the authority.
- (7) The Mayor of London adopts a supplementary plan by publishing it, together with a statement that the plan is to have effect.

Requirement in relation to design code

15F Design code for whole area

- (1) A local planning authority must ensure that, for every part of their area, the development plan includes requirements with respect to design that relate to development, or development of a particular description, which the authority consider should be met for planning permission for the development to be granted.
- (2) Subsection (1) does not require the local planning authority to ensure—
 - (a) that there are requirements for every description of development for every part of their area, or
 - (b) that there are requirements in relation to every aspect of design.

Revocation and revision of plans

15G Revocation of local plans and supplementary plans

- (1) A local plan is revoked upon a new local plan for the local planning authority's area being adopted or approved under this Part.
- (2) The Secretary of State—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) may revoke a local plan at the request of the local planning authority;
- (b) may revoke a supplementary plan at the request of the relevant plan-making authority;
- (c) may prescribe descriptions of supplementary plan which may be revoked by the relevant plan-making authority themselves.

15GA Revision of local plan

- (1) A local planning authority may, at any time after their local plan has come into effect, prepare a revision of it.
- (2) If the Secretary of State directs them to do so after the local plan comes into effect, a local planning authority must prepare a revision of the local plan, in accordance with such timetable as the Secretary of State directs.
- (3) Subsection (4) applies if any part of the area of the local planning authority is an area to which an enterprise zone scheme relates.
- (4) As soon as practicable after the occurrence of a relevant event—
 - (a) the authority must consider whether their local plan should be changed in the light of the enterprise zone scheme;
 - (b) if they think that any changes to their local plan are required in consequence of the scheme they must prepare a revision to their local plan to give effect to the changes.
- (5) The following are relevant events—
 - (a) the making of an order under paragraph 5 of Schedule 32 to the Local Government, Planning and Land Act 1980 (designation of enterprise zone);
 - (b) the giving of notification under paragraph 11(1) of that Schedule (approval of modification of enterprise zone scheme).
- (6) References to an enterprise zone and an enterprise zone scheme must be construed in accordance with that Act.
- (7) This Part applies in relation to a revision under this section as it applies in relation to a local plan, subject to such modifications as may be prescribed.

Intervention powers in relation to plans

15H Power to require Secretary of State approval

- (1) At any time before a proposed local plan is adopted by a local planning authority, the Secretary of State may direct the local planning authority to submit the plan (or any part of it) to the Secretary of State for approval.
- (2) At any time before a proposed supplementary plan is adopted by a relevant plan-making authority, the Secretary of State may direct the relevant plan-making authority to submit the plan (or any part of it) to the Secretary of State for approval.
- (3) Where the Secretary of State gives a direction under [subsection \(1\)](#) or [\(2\)](#)—
 - (a) the authority must not take any step in connection with the adoption of the plan until the Secretary of State gives the Secretary of State's decision or withdraws the direction;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) if the direction is given, and not withdrawn, before the authority have submitted the plan for independent examination, the Secretary of State must hold an independent examination;
 - (c) if the direction is given after the authority have submitted the plan for independent examination but before the person appointed to carry out the examination has made recommendations, and is not withdrawn before those recommendations are made, the person must make the recommendations to the Secretary of State.
- (4) Subsections (4) to (12) of [section 15D](#), and [section 15DA](#), apply to an examination of a local plan held under [subsection \(3\)\(b\)](#).
- (5) In the case of an examination of a supplementary plan held under [subsection \(3\)\(b\)](#)—
 - (a) subsections (5) to (12) of [section 15DB](#) apply, and
 - (b) the examiner is to be a person appointed by the Secretary of State.
- (6) The Secretary of State must publish the recommendations made to the Secretary of State by virtue of [subsection \(3\)\(c\)](#) and the reasons of the person making the recommendations.
- (7) In relation to a plan or part of a plan submitted under [subsection \(1\)](#) or (2), the Secretary of State—
 - (a) may approve, approve subject to modifications or reject the plan or part, and
 - (b) must give reasons for the decision under [paragraph \(a\)](#).
- (8) In the exercise of any function under this section the Secretary of State—
 - (a) may take account of any matter which the Secretary of State thinks is relevant (regardless of whether the matter was taken account of by the authority), and
 - (b) must have regard to the local plan timetable and minerals and waste plan timetable, so far as relevant.

15HA Secretary of State powers where local planning authority are failing etc

- (1) This section applies if the Secretary of State thinks that—
 - (a) a local planning authority are failing to do anything it is necessary or expedient for them to do in connection with the preparation, adoption or revision of a local plan,
 - (b) a local plan or supplementary plan is, is going to be or may be unsatisfactory, or
 - (c) a proposed revision of a local plan or supplementary plan will, or may, result in the plan becoming unsatisfactory.
- (2) The Secretary of State may—
 - (a) if the plan has not come into effect, take over preparation of the plan from the relevant authority;
 - (b) if the plan has come into effect, revise the plan;
 - (c) give directions to the relevant authority in relation to—
 - (i) the preparation or adoption of the plan (including a direction requiring the plan to be modified in accordance with the direction);
 - (ii) the revocation or revision of the plan (including a direction requiring the plan to be revised in accordance with the direction or a direction revoking the plan).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3) The Secretary of State may appoint a person (a “local plan commissioner”) to—
 - (a) investigate and report to the Secretary of State, or
 - (b) do any of the things that may be done under [subsection \(2\)](#), on the Secretary of State’s behalf.
- (4) Subsections [\(5\)](#) to [\(10\)](#) apply if preparation of the plan is taken over under [subsection \(2\)\(a\)](#) or [\(3\)\(b\)](#).
- (5) The Secretary of State or (as the case may be) the local plan commissioner must publish a document setting out—
 - (a) their timetable for preparing the plan, and
 - (b) if they intend to depart from anything specified in a local plan timetable in relation to the plan, details of how they intend to depart from it.
- (6) The Secretary of State must—
 - (a) hold an independent examination of the plan or (as the case may be) direct the local plan commissioner to submit the plan for independent examination, or
 - (b) direct the relevant authority to submit the plan for independent examination under [section 15D](#) or (as the case may be) [15DB](#).
- (7) Subsections [\(4\)](#) to [\(12\)](#) of [section 15D](#), and [section 15DA](#), apply to an examination of a local plan held under [subsection \(6\)\(a\)](#), reading references to the local planning authority as references to the Secretary of State or (as the case may be) the local plan commissioner.
- (8) In the case of an examination of a supplementary plan held under [subsection \(6\)\(a\)](#)—
 - (a) subsections [\(5\)](#) to [\(12\)](#) of [section 15DB](#) apply, reading references to the relevant plan-making authority as references to the Secretary of State or (as the case may be) the local plan commissioner, and
 - (b) the examiner is to be a person appointed by the Secretary of State or the local plan commissioner.
- (9) The Secretary of State must either—
 - (a) publish the recommendations and reasons of the person appointed to hold the examination, or
 - (b) give directions to the relevant authority or local plan commissioner in relation to publication of those recommendations and reasons.
- (10) The Secretary of State or local plan commissioner may then—
 - (a) approve the plan or approve it subject to modifications,
 - (b) direct the relevant authority to consider adopting the plan, or
 - (c) reject the plan.
- (11) Subsections [\(5\)](#) to [\(10\)](#) (and the provisions applied by them) apply in relation to a revision to a plan under [subsection \(2\)\(b\)](#) or [\(3\)\(b\)](#) as they apply to a plan prepared under [subsection \(2\)\(a\)](#) or [\(3\)\(b\)](#).
- (12) In the exercise of any function under this section, the Secretary of State or local plan commissioner may take account of any matter which the Secretary of State or local plan commissioner thinks is relevant (regardless of whether the matter was taken account of by the relevant authority).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (13) The Secretary of State must give reasons for anything the Secretary of State does in pursuance of subsection (2) or (10).
- (14) A local plan commissioner must give reasons for anything the commissioner does in pursuance of subsection (3)(b) or (10).
- (15) In this section “relevant authority”—
 - (a) in relation to a local plan, means the local planning authority, or
 - (b) in relation to a supplementary plan, means the relevant plan-making authority.

15HB Secretary of State powers where local planning authority fails to ensure design code

- (1) This section applies where the Secretary of State considers that a local planning authority are unlikely to comply, or have not complied, with the requirement in section 15F(1).
- (2) The Secretary of State may give directions to the local planning authority as to the steps they must take to comply with that requirement, including directions as to the preparation, adoption or revision of their local plan or one or more supplementary plans.
- (3) The Secretary of State must give reasons for any directions given under this section.

15HC Liability for Secretary of State’s costs of intervention

- (1) The Secretary of State may require the relevant authority to—
 - (a) reimburse the Secretary of State for any expenditure incurred by the Secretary of State in, or in connection with, exercising a function under any of sections 15H to 15HB, or
 - (b) pay any fees and expenses of a local plan commissioner appointed under section 15HA(3).
- (2) Where a function under any of those sections is exercised in relation to a joint local plan or joint supplementary plan, the Secretary of State may apportion liability for such expenditure on such basis as the Secretary of State thinks just and reasonable between the authorities who are jointly preparing, or have jointly prepared, the plan.
- (3) In subsection (1) “relevant authority” means—
 - (a) where the function is exercised, or the local plan commissioner is appointed, in relation a local plan, the local planning authority;
 - (b) where the function is exercised, or the local plan commissioner is appointed, in relation to a supplementary plan, the relevant plan-making authority.

15HD Default powers exercisable by Mayor of London, combined authority, combined county authority or county council

Schedule A1 (default powers exercisable by Mayor of London, combined authority, combined county authority or county council) has effect.

15HE Temporary direction pending possible use of intervention or default powers

- (1) If the Secretary of State is considering whether to take action under section 15H, 15HA or 15HB or Schedule A1 in relation to a local plan or a supplementary plan, the Secretary

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

of State may direct the local planning authority or (as the case may be) the relevant plan-making authority not to take any step, or not to take a step specified in the direction, in connection with the plan—

- (a) until a time or event (if any) specified in the direction, or
 - (b) until the direction is withdrawn.
- (2) A plan to which a direction under this section relates has no effect while the direction is in force.
- (3) A direction given under this section in relation to a plan ceases to have effect if—
 - (a) the Secretary of State—
 - (i) gives a direction under [section 15H](#), [15HA\(2\)\(c\)](#) or [\(10\)\(b\)](#) or [15HB\(2\)](#) or paragraph 8(5) of Schedule A1 in relation to the plan, or
 - (ii) approves the plan under section [15HA\(10\)\(a\)](#),
 - (b) a local plan commissioner—
 - (i) gives a direction under section [15HA\(3\)\(b\)](#), or
 - (ii) approves the plan under section [15HA\(10\)\(a\)](#),
 - (c) the Mayor of London does anything under paragraph 2(4) of Schedule A1,
 - (d) a combined authority does anything under paragraph 6(4) of that Schedule, or
 - (e) a county council does anything under paragraph 7C(4) of that Schedule.

Joint plans

15I Joint local plans by agreement or direction

- (1) A joint local plan is a local plan prepared jointly by two or more local planning authorities for their combined areas.
- (2) Two or more local planning authorities may agree to prepare a joint local plan (a “joint local plan agreement”).
- (3) The Secretary of State may direct two or more local planning authorities to prepare a joint local plan (a “joint local plan direction”).
- (4) The Secretary of State may give a joint local plan direction to a local planning authority whether or not the authority’s local plan timetable specifies that their local plan for their area is to be a joint local plan.
- (5) The Secretary of State may give a joint local plan direction only if the Secretary of State considers that to do so will facilitate the more effective planning of the development and use of land in the area of one or more of the local planning authorities in question.
- (6) A joint local plan direction may specify the timetable for preparation of the joint local plan.
- (7) The Secretary of State must, when giving a joint local plan direction, notify the local planning authorities to which it applies of the reasons for giving it.
- (8) If the Secretary of State gives a joint local plan direction, the Secretary of State may direct the local planning authorities to which it is given to amend their local plan timetables to take account of the direction.
- (9) The Secretary of State may modify or withdraw a joint local plan direction by notice in writing to the authorities to which it was given.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (10) The Secretary of State must, when modifying or withdrawing a joint local plan direction, notify the local planning authorities to which it was given of the reasons for the modification or withdrawal.

15IA Joint local plans: application of Part

- (1) This section applies in a case where—
 - (a) a joint local plan agreement is made, or
 - (b) a joint local plan direction is given.
- (2) This Part applies for the purposes of any step which may be, or is required to be, taken in relation to the joint local plan as it applies for the purposes of any step which may be, or is required to be, taken in relation to a local plan.
- (3) For the purposes of [subsection \(2\)](#) anything which must be done by or in relation to a local planning authority in connection with a local plan must be done by or in relation to each of the relevant authorities in connection with the joint local plan.
- (4) Subsections (2) and (3) are subject to such modifications of this Part, as it applies to joint local plans, as may be prescribed.
- (5) If the relevant authorities include one or more authorities in relation to whose area a spatial development strategy is operative, the requirements of this Part in relation to the spatial development strategy, which apply to or in respect of local plans, apply—
 - (a) to or in respect of the joint local plan, and
 - (b) in relation to such of the area to which the joint local plan relates as the spatial development strategy is operative in relation to.
- (6) In this section “the relevant authorities” are the local planning authorities who are to prepare a joint local plan in accordance with the joint local plan agreement or joint local plan direction.

15IB Joint local plan agreement or direction: withdrawal or modification

- (1) This section applies if—
 - (a) a relevant authority withdraw from a joint local plan agreement,
 - (b) the Secretary of State withdraws a joint local plan direction, or
 - (c) the Secretary of State modifies a joint local plan direction so that it ceases to apply to one or more of the relevant authorities to which it was given.
- (2) Any step taken in relation to the joint local plan must be treated as a step taken by—
 - (a) a relevant authority for the purposes of any corresponding local plan prepared by them;
 - (b) two or more other relevant authorities for the purposes of any corresponding joint local plan.
- (3) Any independent examination of the joint local plan must be suspended.
- (4) If, before the end of the period prescribed for the purposes of this subsection, a relevant authority request the Secretary of State to do so, the Secretary of State may direct that—
 - (a) the examination is resumed in relation to—
 - (i) any corresponding local plan prepared by a relevant authority, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (ii) any corresponding joint local plan prepared by two or more of the relevant authorities;
 - (b) any step taken for the purposes of the suspended examination has effect for the purposes of the resumed examination.
- (5) The Secretary of State may by regulations make provision as to what is a corresponding local plan or a corresponding joint local plan for the purposes of this section.
- (6) For the purposes of this section references to the joint local plan are to the joint local plan to which the joint local plan agreement or (as the case may be) joint local plan direction related.
- (7) In this section “the relevant authorities” are the local planning authorities—
 - (a) who were party to the joint local plan agreement immediately before the authority mentioned in [subsection \(1\)\(a\)](#) withdrew from it, or
 - (b) to whom the joint local plan direction applied immediately before it was withdrawn or modified by the Secretary of State.

151C Joint supplementary plans by agreement

- (1) Two or more local planning authorities may agree to prepare a joint supplementary plan under [section 15CC](#), in which case in relation to that plan references in [subsection \(3\)](#) of that section to the area of the local planning authority are to be read as references to the combined areas of the relevant authorities.
- (2) Two or more minerals and waste planning authorities may agree to prepare a joint supplementary plan under [section 15CC](#), in which case in relation to that plan references in [subsection \(5\)](#) of that section to the relevant area are to be read as references to the combined relevant areas of the relevant authorities.
- (3) This Part applies for the purposes of any step which may be, or is required to be, taken in relation to the joint supplementary plan as it applies for the purposes of any step which may be, or is required to be, taken in relation to a supplementary plan.
- (4) For the purposes of [subsection \(3\)](#) anything which must be done by or in relation to a local planning authority or (as the case may be) a minerals and waste planning authority in connection with a supplementary plan must be done by or in relation to each of the relevant authorities in connection with the joint supplementary plan.
- (5) Subsections [\(3\)](#) and [\(4\)](#) are subject to such modifications of this Part, as it applies to joint supplementary plans, as may be prescribed.
- (6) If the relevant authorities include one or more authorities in relation to whose area a spatial development strategy is operative, the requirements of this Part in relation to the spatial development strategy, which apply to or in respect of supplementary plans, apply—
 - (a) to or in respect of the joint supplementary plan, and
 - (b) in relation to such of the area to which the joint supplementary plan relates as the spatial development strategy is operative in relation to.
- (7) Subsections [\(8\)](#) to [\(10\)](#) apply if a relevant authority withdraws from an agreement mentioned in [subsection \(1\)](#) or [\(2\)](#).
- (8) Any step taken in relation to the joint supplementary plan must be treated as a step taken by—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) a relevant authority for the purposes of any corresponding supplementary plan prepared by them;
 - (b) two or more other relevant authorities for the purposes of any corresponding joint supplementary plan.
- (9) Any independent examination of the joint supplementary plan must be suspended.
- (10) If, before the end of the period prescribed for the purposes of this subsection, any of the relevant authorities request the Secretary of State to do so, the Secretary of State may direct that—
 - (a) the examination is resumed in relation to—
 - (i) any corresponding supplementary plan prepared by any of the relevant authorities, or
 - (ii) any corresponding joint supplementary plan prepared by two or more of the relevant authorities;
 - (b) any step taken for the purposes of the suspended examination has effect for the purposes of the resumed examination.
- (11) The Secretary of State may by regulations make provision as to what is a corresponding supplementary plan or a corresponding joint supplementary plan for the purposes of this section.
- (12) A joint supplementary plan is a supplementary plan prepared jointly by two or more relevant authorities in accordance with this section.
- (13) In this section “the relevant authorities” means the authorities who enter into the agreement mentioned in [subsection \(1\)](#) or (as the case may be) [\(2\)](#).

Joint committees

15J Joint committees

- (1) This section applies if one or more local planning authorities agree with one or more county councils in relation to any area of such a council for which there is also a district council to establish a joint committee to be, for the purposes of this Part, the local planning authority—
 - (a) for the area specified in the agreement;
 - (b) in respect of such purposes as are so specified.
- (2) The Secretary of State may by regulations constitute a joint committee to be the local planning authority—
 - (a) for the area;
 - (b) in respect of those purposes.
- (3) Such regulations—
 - (a) must specify the authority or authorities and county council or councils (the “constituent authorities”) which are to constitute the joint committee;
 - (b) may make provision as to such other matters as the Secretary of State thinks are necessary or expedient to facilitate the exercise by the joint committee of its functions.
- (4) Regulations under [subsection \(3\)\(b\)](#) may include provision—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) corresponding to provisions relating to joint committees in Part 6 of the Local Government Act 1972;
 - (b) applying (with or without modifications) such enactments relating to local authorities as the Secretary of State thinks appropriate;
 - (c) modifying the application of this Part in relation to the joint committee.
- (5) For the purposes of [subsection \(4\)](#) a local authority is any of the following—
 - (a) a county council;
 - (b) a district council;
 - (c) a London borough council.
- (6) If regulations under this section are annulled in pursuance of a resolution of either House of Parliament—
 - (a) with effect from the date of the resolution the joint committee ceases to be the local planning authority as mentioned in [subsection \(2\)](#);
 - (b) anything which the joint committee (as the local planning authority) was required to do for the purposes of this Part must be done for their area by each local planning authority which were a constituent authority of the joint committee;
 - (c) each of those local planning authorities must revise their local plan timetable accordingly.
- (7) Nothing in this section or section [15JA](#) confers on a local planning authority constituted by virtue of regulations under this section any function in relation to section 13 or 14 (survey of area).
- (8) This section and section [15JA](#) are subject to the requirement in [section 15C\(2\)](#) that only one local plan may have effect in relation to the area of a local planning authority (including one constituted by virtue of regulations under this section) at any one time.
- (9) The policies contained in any local plan or supplementary plan adopted by the joint committee in the exercise of its functions under this Part must be taken for the purposes of the planning Acts to be the policies of each of the constituent authorities which are a local planning authority.
- (10) Subsection [\(11\)](#) applies to any function—
 - (a) which is conferred on a local planning authority (within the meaning of the principal Act) under or by virtue of the planning Acts, and
 - (b) which relates to the authority’s local plan timetable, local plan or supplementary plan.
- (11) If the authority is a constituent authority of a joint committee references to the authority’s local plan timetable, local plan or supplementary plan must be construed, in relation to that function, as including references to the timetable or plan of the joint committee.

15JA Joint committees: additional functions

- (1) This section applies if the constituent authorities of a joint committee agree that the joint committee is to be, for the purposes of this Part, the local planning authority for any area or purpose which is not the subject of—
 - (a) regulations under [section 15J](#), or
 - (b) an earlier agreement under this section.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) Each of the constituent authorities and the joint committee must revise their local plan timetable in accordance with the agreement.
- (3) With effect from the date when the last such revision takes effect the joint committee is, for the purposes of this Part, the local planning authority for the area or purpose mentioned in [subsection \(1\)](#).

15JB Dissolution of joint committee

- (1) This section applies if a constituent authority requests the Secretary of State to revoke regulations constituting a joint committee as the local planning authority for any area or in respect of any purpose.
- (2) The Secretary of State may revoke the regulations.
- (3) If the Secretary of State does so, any step taken by the joint committee in relation to a local plan timetable, local plan or supplementary plan must be treated for the purposes of any corresponding timetable or plan as a step taken by a successor authority.
- (4) A successor authority is—
 - (a) a local planning authority which were a constituent authority of the joint committee;
 - (b) a joint committee constituted by regulations under [section 15J](#) for an area which does not include an area which was not part of the area of the joint committee mentioned in [subsection \(1\)](#).
- (5) If the revocation takes effect at a time when an independent examination is being carried out in relation to a local plan or supplementary plan in relation to which the joint committee is the local planning authority the examination must be suspended.
- (6) But if, before the end of the period prescribed for the purposes of this subsection, a successor authority falling within [subsection \(4\)\(a\)](#) requests the Secretary of State to do so, the Secretary of State may direct that—
 - (a) the examination is resumed in relation to the corresponding plan;
 - (b) any step taken for the purposes of the suspended examination has effect for the purposes of the resumed examination.
- (7) The Secretary of State may by regulations make provision as to what is a corresponding timetable or plan.

Neighbourhood priorities statements

15K Neighbourhood priorities statements

- (1) Any qualifying body may make a statement, to be known as a “neighbourhood priorities statement”, which summarises what the body considers to be the principal needs and prevailing views, of the community in the neighbourhood area in relation to which the body is authorised, in respect of local matters.
- (2) “Local matters” are such matters as the Secretary of State may prescribe, relating to—
 - (a) development, or the management or use of land, in or affecting the neighbourhood area,
 - (b) housing in the neighbourhood area,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) the natural environment in the neighbourhood area,
 - (d) the economy in the neighbourhood area,
 - (e) public spaces in the neighbourhood area,
 - (f) the infrastructure, facilities or services available in the neighbourhood area, or
 - (g) other features of the neighbourhood area.
- (3) A qualifying body may modify or revoke a neighbourhood priorities statement that has effect, for the time being, for the neighbourhood area in relation to which the body is authorised.
- (4) A neighbourhood priorities statement has effect from the time it is published by a relevant local planning authority and ceases to have effect upon such an authority publishing a notice stating that it has been revoked by a qualifying body.
- (5) A modification of a neighbourhood priorities statement has effect from the time the modification, or modified statement, is published by a relevant local planning authority.
- (6) Regulations made by the Secretary of State may impose requirements which must be met for a neighbourhood priorities statement, or any modification or revocation of such a statement, to be made or published.
- (7) Regulations under [subsection \(6\)](#) or [section 15LE\(2\)\(k\)](#) may provide that a requirement may be met, or (as the case may be) procedure may be complied with, by virtue of things done by a parish council, or other organisation or body, before it becomes a qualifying body.
- (8) Regulations under [subsection \(6\)](#) and [section 15LE](#) must (between them)—
 - (a) require a qualifying body to publish any proposed neighbourhood priorities statement, so that people who live, work or carry on business in the neighbourhood area to which the statement relates can comment on the proposed statement before the body makes the statement,
 - (b) require a qualifying body to publish any proposed material modification of a neighbourhood priorities statement, so that people who live, work or carry on business in the neighbourhood area to which the statement relates can comment on the proposed modification before the body makes the modification,
 - (c) require a relevant local planning authority to publish a neighbourhood priorities statement, if the statement is made in accordance with this section and any regulations made under this Part,
 - (d) require a relevant local planning authority to publish a notice of the revocation of a neighbourhood priorities statement, if the statement has been revoked in accordance with this section and any regulations made under this Part, and
 - (e) require a relevant local planning authority, if a modification of a neighbourhood priorities statement is made in accordance with this section and any regulations made under this Part, to publish the modification or a modified statement.
- (9) Subsection [\(10\)](#) applies if, as a result of a modification of a neighbourhood area under [section 61G\(6\)](#) of the principal Act, a neighbourhood priorities statement relates to more than one neighbourhood area.
- (10) Any modification, or revocation, of the neighbourhood priorities statement as it has effect for one of those areas does not affect the statement as it has effect in relation to the other area or areas.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (11) Regulations under section 61G(11) of the principal Act (designation of areas as neighbourhood areas) may include provision about the consequences of the modification of designations—
- (a) on proposals for neighbourhood priorities statements, or on neighbourhood priorities statements, that have already been made, or
 - (b) on proposals for the modification of neighbourhood priorities statements, or on modifications of neighbourhood priorities statements, that have already been made.
- (12) A authority mentioned in [subsection \(13\)](#) is a “relevant local planning authority”, in relation to a neighbourhood priorities statement, if some or all of the neighbourhood area to which the statement relates falls within the area of the authority.
- (13) The authorities are—
- (a) a district council,
 - (b) a London borough council,
 - (c) a metropolitan district council,
 - (d) a county council in relation to an area in England for which there is no district council, or
 - (e) the Broads Authority.
- (14) In this section—
- “material modification”, in relation to a neighbourhood priorities statement, means a modification which a relevant local planning authority considers—
- (a) materially affects a summary, in the statement, of any needs or views, of the community in the neighbourhood area, in relation to a local matter, and
 - (b) does not only correct an obvious error or omission;
- “neighbourhood area” has the meaning given by sections 61G and 61I(1) of the principal Act;
- “qualifying body” means a parish council or an organisation or body designated as a neighbourhood forum, which is authorised to act in relation to a neighbourhood area as a result of section 61F of the principal Act (whether or not as applied by section 38C of this Act).

General

15L Exclusion of certain representations

- (1) This section applies to any representation or objection in respect of anything which is done or is proposed to be done in pursuance of—
- (a) an order or scheme under section 10, 14, 16, 18, 106(1) or (3) or 108(1) of the Highways Act 1980;
 - (b) an order under section 1 of the New Towns Act 1981.
- (2) If the Secretary of State or a local planning authority thinks that a representation made in relation to a local plan or supplementary plan is in substance a representation or objection to which this section applies the Secretary of State or (as the case may be) the authority may disregard it.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

15LA Development corporations: power to disapply provisions

The Secretary of State may direct that the provisions of—

- (a) this Part, or
- (b) any particular regulations made under section 14A,

do not apply to the area of an urban development corporation or a development corporation established under the New Towns Act 1981.

15LB Guidance

- (1) In the exercise of any function conferred by or under this Part a relevant plan-making authority must have regard to any guidance issued by the Secretary of State.
- (2) The Secretary of State must issue guidance for local planning authorities on how their local plan and any supplementary plans (taken as a whole) should address housing needs that result from old age or disability.

15LC Monitoring information

- (1) The Secretary of State may prescribe information within [subsection \(3\)](#) which each local planning authority must make available to the public.
- (2) The Secretary of State may prescribe information within [subsection \(3\)](#) which each local planning authority must provide to the Secretary of State.
- (3) Information is within this subsection if it relates to—
 - (a) the implementation of the local planning authority’s local plan timetable;
 - (b) the implementation of policies in their local plan and any supplementary plans they have prepared;
 - (c) the implementation of any policies which relate to the authority’s area, in any spatial development strategy that is operative in relation to their area;
 - (d) the extent to which specified environmental outcomes (within the meaning of [Part 6](#) of the Levelling-up and Regeneration Act 2023) are being delivered in relation to the authority’s area.
- (4) The information must be in such form, and made available or provided in such manner, as may be prescribed.

15LD Policies map

- (1) Each local planning authority must ensure that a map, to be known as a “policies map”, is prepared, and kept up to date, which illustrates the geographical application of the development plan for the authority’s area.
- (2) The map prepared and kept up to date under [subsection \(1\)](#)—
 - (a) must be in such form, and have such content, as may be prescribed,
 - (b) must be revised at such times, or in such circumstances, as may be prescribed, and
 - (c) must be made available to the public.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

15LE Regulations

- (1) The Secretary of State may by regulations make provision in connection with the exercise by any person of a function conferred by or under this Part.
- (2) The regulations may, in particular, include provision as to—
 - (a) the form and content of a joint spatial development strategy;
 - (b) the documents (if any) which must accompany a joint spatial development strategy;
 - (c) the procedure to be followed in connection with the preparation, adoption, publication, review, alteration or withdrawal of a joint spatial development strategy or in connection with any review under section 15AE(2);
 - (d) the procedure to be followed in the preparation, adoption, review, revision or withdrawal of local plans or supplementary plans;
 - (e) requirements about the giving of notice and publicity;
 - (f) requirements about inspection by the public of a local plan, supplementary plan or any other document;
 - (g) consultation with, or participation by, the public or any prescribed body or other person in connection with anything done under this Part, including provision imposing requirements for consultation or participation or as to the nature and extent of the consultation or participation that may or must take place;
 - (h) the making of representations about any matter to be included in a local plan or supplementary plan;
 - (i) consideration of any such representations;
 - (j) the remuneration and allowances payable to a person appointed to provide observations or advice under section 15CA(3), carry out a public or independent examination under this Part or act as a local plan commissioner under section 15HA(3);
 - (k) the procedure to be followed in the preparation, making, modification, revocation, replacement or publication of a neighbourhood priorities statement;
 - (l) the form, and content, of a neighbourhood priorities statement;
 - (m) the determination of the time by or at which anything must be done for the purposes of this Part;
 - (n) the manner of publication of any draft, report or other document published under this Part;
 - (o) monitoring the exercise by local planning authorities of their functions under this Part;
 - (p) the making of reasonable charges for the provision of copies of documents required by or under this Part.
- (3) Regulations under subsection (2)(l) may provide for the form or content of a neighbourhood priorities statement to be determined by the Secretary of State.
- (4) Regulations under this Part may make different provision for different areas.

15LF Meaning of “local planning authority” etc

- (1) This section applies for the purposes of this Part.
- (2) Each of the following is a local planning authority for their area—
 - (a) a district council;
 - (b) a London borough council;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) a metropolitan district council;
 - (d) a county council in relation to any area in England for which there is no district council.
- (3) A National Park authority is the local planning authority for the whole of its area, in place of any authority who would otherwise be a local planning authority for any part of that area under [subsection \(2\)](#).
- (4) The Broads Authority is the local planning authority for the Broads, in place of any authority who would otherwise be a local planning authority for any part of the Broads under [subsection \(2\)](#).
- (5) Where a relevant order provides that a development corporation is to be the local planning authority for an area for some or all purposes of this Part, the development corporation is the local planning authority for that area and those purposes in place of any authority who would otherwise be the local planning authority for that area and those purposes.
- (6) In subsection [\(5\)](#)—
 - “development corporation” means an urban development corporation, a development corporation established under the New Towns Act 1981 or a Mayoral development corporation;
 - “relevant order”—
 - (a) in relation to an urban development corporation, means an order under section 149([1A](#)) of the Local Government, Planning and Land Act 1980;
 - (b) in relation to a development corporation established under the New Towns Act 1981, means an order under section [7A\(2\)\(b\)](#) of that Act;
 - (c) in relation to a Mayoral development corporation, means an order under section 198(2) of the Localism Act 2011.
- (7) Subsection [\(5\)](#) is subject to subsections [\(8\)](#) and [\(9\)](#).
- (8) Subsection [\(9\)](#) applies where a designation order under section 13 of the Housing and Regeneration Act 2008 (power to make designation orders) provides that the Homes and Communities Agency is to be the local planning authority—
 - (a) for an area specified in the order, and
 - (b) for all purposes of this Part or any such purposes so specified.
- (9) The Homes and Communities Agency is the local planning authority for the area and the purposes concerned in place of any authority who would otherwise be the local planning authority for that area and those purposes.
- (10) See also [section 15J](#) under which joint committees can be constituted to be local planning authorities for the purposes of this Part.
- (11) References (other than in this section) to a local planning authority’s area are to the area for which they are the local planning authority in accordance with this Part.

15LG Meaning of “minerals and waste planning authority” etc

- (1) This section has effect for the purposes of this Part.
- (2) Subject to [subsection \(3\)](#)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) a county council in England is the minerals and waste planning authority for their area,
 - (b) a London borough council is the minerals and waste planning authority for their area,
 - (c) a metropolitan district council is the minerals and waste planning authority for their area, and
 - (d) a district council is the minerals and waste planning authority for any part of their area for which there is no county council.
- (3) A National Park authority is the minerals and waste planning authority for the whole of its area, in place of any authority who would otherwise be a minerals and waste planning authority for any part of that area under [subsection \(2\)](#).
- (4) Where a relevant order provides that a development corporation is to be the minerals and waste planning authority for an area for some or all purposes of this Part, the development corporation is the minerals and waste planning authority for that area and those purposes in place of any authority who would otherwise be the minerals and waste planning authority for that area and those purposes.
- (5) In subsection (4)—
- “development corporation” means an urban development corporation, a development corporation established under the New Towns Act 1981 or a Mayoral development corporation;
 - “relevant order”—
- (a) in relation to an urban development corporation, means an order under section 149(2A) of the Local Government, Planning and Land Act 1980;
 - (b) in relation to a development corporation established under the New Towns Act 1981, means an order under section 7A(6) of that Act;
 - (c) in relation to a Mayoral development corporation, means an order under section 198(2) of the Localism Act 2011.
- (6) “Relevant area”, in relation to a minerals and waste planning authority, means the area for which the authority are the minerals and waste planning authority in accordance with this section.

15LH Interpretation

- (1) This section has effect for the purposes of this Part.
- (2) Each of the following is a relevant plan-making authority—
- (a) the Mayor of London;
 - (b) a local planning authority;
 - (c) a minerals and waste planning authority.
- (3) In this Part (unless a contrary intention appears)—
- “affordable housing” means—
- (a) social housing within the meaning of Part 2 of the Housing and Regeneration Act 2008, and
 - (b) any other description of housing that may be prescribed;
- “constituent authority”, in relation to a joint committee, must be construed in accordance with [section 15J\(3\)](#);
- “joint local plan” must be construed in accordance with [section 15I\(1\)](#);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“joint local plan agreement” must be construed in accordance with [section 15I\(2\)](#);

“joint local plan direction” must be construed in accordance with [section 15I\(3\)](#);

“joint spatial development strategy” means a strategy adopted by local planning authorities under [section 15AD](#) or, as the context requires, a strategy in preparation further to an agreement under [section 15A\(1\)](#);

“joint supplementary plan” must be construed in accordance with [section 15IC](#);

“local nature recovery strategy” means a local nature recovery strategy under section 104 of the Environment Act 2021;

“local plan” must be construed in accordance with [section 15C](#);

“local plan timetable” must be construed in accordance with [section 15B](#);

“local planning authority” must be construed in accordance with [section 15LF](#);

“minerals and waste development” means development which is a county matter within the meaning of paragraph 1 of Schedule 1 to the principal Act (ignoring sub-paragraph (1)(i) of that paragraph);

“minerals and waste plan” must be construed in accordance with [section 15CB](#);

“minerals and waste plan timetable” must be construed in accordance with [section 15BB](#);

“minerals and waste planning authority” must be construed in accordance with [section 15LG](#);

“neighbourhood priorities statement” must be construed in accordance with [section 15K](#);

“relevant area” must be construed in accordance with [section 15LG](#);

“relevant plan-making authority” must be construed in accordance with [subsection \(2\)](#);

“spatial development strategy” means (except in the context of more specific expressions)—

- (a) the spatial development strategy for London,
- (b) a spatial development strategy adopted by a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009, or
- (c) a joint spatial development strategy;

“spatial development strategy for London” means the strategy adopted by the Mayor of London under Part 8 of the Greater London Authority Act 1999;

“supplementary plan” must be construed in accordance with [section 15CC](#).”

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

SCHEDULE 8

Section 101

MINOR AND CONSEQUENTIAL AMENDMENTS IN CONNECTION WITH CHAPTER 2 OF PART 3

Local Government Act 1972

- 1 In section 138C of the Local Government Act 1972 (application of sections 138A and 138B to other authorities), in subsections (1)(s) and (2)(c), for “an order under section 29” substitute “regulations made under section 15J”.

Commencement Information

I640 Sch. 8 para. 1 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I641 [Sch. 8 para. 1](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(i\)](#) (with [Sch. 1](#))

Town and Country Planning Act 1990

- 2 TCPA 1990 is amended as follows.

Commencement Information

I642 Sch. 8 para. 2 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I643 [Sch. 8 para. 2](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(i\)](#) (with [Sch. 1](#))

- 3 In section 2A (the Mayor of London: applications of potential strategic importance), in subsection (6)(aa), for “development plan document” substitute “local plan, document which is or forms part of a minerals and waste plan or supplementary plan”.

Commencement Information

I644 Sch. 8 para. 3 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I645 [Sch. 8 para. 3](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(i\)](#) (with [Sch. 1](#))

- 4 In section 59A (development orders: permission in principle)—
- (a) in paragraph (b) of subsection (3)—
 - (i) for “development plan document” substitute “local plan or supplementary plan”;
 - (ii) for “section 37” substitute “section 15LH”;
 - (b) after that paragraph insert—
 - “(ba) a document which is, or forms part of, a minerals and waste plan within the meaning of Part 2 of the 2004 Act (“a minerals and waste plan document”);”
 - (c) in subsection (5)(b), for “development plan document” substitute “local plan, minerals and waste plan document or supplementary plan”.

Commencement Information

I646 Sch. 8 para. 4 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

I647 Sch. 8 para. 4 in force at 25.3.2026 by S.I. 2026/169, reg. 3(f)(i) (with Sch. 1)

- 5 In section 70(4) (determination of applications: definitions), in paragraph (l) of the definition of “relevant authority”, for “section 29” substitute “section 15J”.

Commencement Information

I648 Sch. 8 para. 5 not in force at Royal Assent, see s. 255(3)(b)

I649 Sch. 8 para. 5 in force at 25.3.2026 by S.I. 2026/169, reg. 3(f)(i) (with Sch. 1)

- 6 In section 74 (directions etc as to method of dealing with applications), in subsection (1BB) for “development plan document” substitute “local plan, document which is or forms part of a minerals and waste plan or supplementary plan”.

Commencement Information

I650 Sch. 8 para. 6 not in force at Royal Assent, see s. 255(3)(b)

I651 Sch. 8 para. 6 in force at 25.3.2026 by S.I. 2026/169, reg. 3(f)(i) (with Sch. 1)

- 7 (1) Section 303A (responsibility of local planning authorities for costs of holding certain inquiries etc) is amended as follows.
- (2) In subsection (1A)—
- (a) before paragraph (a) insert—
- “(za) a public examination under section 15AC of the Planning and Compulsory Purchase Act 2004;”;
- (b) in paragraph (a), for “20, 21(5)(b), 27(3)(a)” substitute “15D, 15DB, 15H(3)(b), 15HA(6)(a)”.
- (3) In subsection (9A)—
- (a) in paragraph (a)—
- (i) after “submit a” insert “strategy, plan or”;
- (ii) after “for” insert “public or”;
- (b) in paragraph (b), for “27(2)(a)” substitute “15HA(3)(b) or 15HA(6)(a)”.
- (4) After subsection (9A) insert—
- “(9B) In a case where a qualifying procedure is carried out in relation to a plan that is prepared jointly by two or more local planning authorities under Part 2 of the Planning and Compulsory Purchase Act 2004, the Secretary of State may for the purposes of this section apportion the amount that may be recovered in accordance with subsections (4) to (6) between those authorities, on such basis as the Secretary of State considers just and reasonable.”
- (5) In subsection (10), before paragraph (a) insert—
- “(za) any reference to an independent examination under section 15D of the Planning and Compulsory Purchase Act 2004 includes a pause of such an examination under section 15DA of that Act;”.
- (6) After subsection (11) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(12) In this section references to a local planning authority are, in relation to a local planning authority in England, to a local planning authority for the purposes of Part 2 of the Planning and Compulsory Purchase Act 2004 and include a minerals and waste planning authority for the purposes of that Part.”

Commencement Information

I652 Sch. 8 para. 7 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I653 Sch. 8 para. 7(1)(2)(b)(4)-(6) in force at 25.3.2026 by S.I. 2026/169, [reg. 3\(f\)\(ii\)](#) (with Sch. 1)

I654 Sch. 8 para. 7(3)(a)(i) in force at 25.3.2026 for specified purposes by S.I. 2026/169, [reg. 3\(f\)\(ii\)](#) (with Sch. 1)

- 8 In section 306 (contributions by local authorities and statutory undertakers), in subsection (2)(ab)—
- (a) after “by a” insert “minerals and waste planning authority or”;
 - (b) after “duty of” insert “minerals and waste planning authority or”.

Commencement Information

I655 Sch. 8 para. 8 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I656 Sch. 8 para. 8 in force at 25.3.2026 by S.I. 2026/169, [reg. 3\(f\)\(iii\)](#) (with Sch. 1)

- 9 In section 324 (rights of entry), in subsection (1)(a), for “local development document” substitute “local plan, document which is or forms part of a minerals and waste plan or supplementary plan”.

Commencement Information

I657 Sch. 8 para. 9 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I658 Sch. 8 para. 9 in force at 25.3.2026 by S.I. 2026/169, [reg. 3\(f\)\(iii\)](#) (with Sch. 1)

- 10 In section 336 (interpretation), after the definition of “mortgage” insert—
- ““national development management policy” must be construed in accordance with section 38ZA of the Planning and Compulsory Purchase Act 2004;”.

Commencement Information

I659 Sch. 8 para. 10 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

- 11 (1) Schedule 1 (local planning authorities: distribution of functions) is amended as follows.
- (2) In paragraph 7, for sub-paragraph (10) substitute—
- “(10) A relevant county policy is a policy contained in a relevant document, plan or revision which—
- (a) has been submitted for independent examination under Part 2 of the 2004 Act and has not been withdrawn, or
 - (b) has been adopted, approved or made for the purposes of that Part.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(10A) In sub-paragraph (10)—

- (a) a “relevant document, plan or revision” means—
 - (i) a document prepared to be, or to form part of, the county planning authority’s minerals and waste plan for the purposes of Part 2 of the 2004 Act,
 - (ii) a revision of a document which is, or forms part of, the county planning authority’s minerals and waste plan for the purposes of that Part,
 - (iii) a supplementary plan prepared by the county planning authority acting as a minerals and waste planning authority under that Part, or
 - (iv) a revision of a such a supplementary plan;
- (b) the reference to submission of a relevant document, plan or revision for independent examination under Part 2 of the 2004 Act is to be taken to include any case where an independent examination is held under that Part.”

(3) In paragraph 8(3E), in paragraph (b) of the definition of “relevant neighbourhood development plan”, for “(3)” substitute “(2A)”.

(4) In paragraph 8A(2), in paragraph (b) of the definition of “relevant neighbourhood development plan”, for “(3)” substitute “(2A)”.

Commencement Information

I660 Sch. 8 para. 11 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I661 [Sch. 8 para. 11](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(iv\)](#) (with [Sch. 1](#))

12 In Schedule 13 (blighted land), in paragraph 1A—

- (a) for “development plan document”, in the first place it appears, substitute “local plan, minerals and waste plan or supplementary plan”;
- (b) for Note (2) substitute—

“(2) For the purposes of this paragraph a local plan is a local plan, or revision of such a plan, which—

- (a) has been submitted for independent examination under Part 2 of the Planning and Compulsory Purchase Act 2004 (in this paragraph, “the 2004 Act”) and has not been withdrawn, or
- (b) has been adopted, approved or made for the purposes of that Part.

(2ZA) For the purposes of this paragraph a minerals and waste plan is a document prepared to be or to form part of a minerals and waste plan, or a revision of such a document, which—

- (a) has been submitted for independent examination under Part 2 of the 2004 Act and has not been withdrawn, or
- (b) has been adopted, approved or made for the purposes of that Part.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(2ZB) For the purposes of this paragraph a supplementary plan is a supplementary plan, or a revision of such a plan, which—

- (a) has been submitted for independent examination under Part 2 of the 2004 Act and has not been withdrawn, or
- (b) has been adopted, approved or made for the purposes of that Part.”;
- (c) omit Note (3);
- (d) for Note (4) substitute—

“(4) In Notes (2) to (2ZB) the references to submission of a local plan, a supplementary plan, a document or a revision for independent examination under Part 2 of the 2004 Act are to be taken to include any case where an independent examination is held under that Part.”

Commencement Information

I662 Sch. 8 para. 12 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I663 [Sch. 8 para. 12](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(iv\)](#) (with [Sch. 1](#))

Greater London Authority Act 1999

13 GLAA 1999 is amended as follows.

Commencement Information

I664 Sch. 8 para. 13 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I665 [Sch. 8 para. 13](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(iv\)](#) (with [Sch. 1](#))

14 In section 338 (examination in public), at the end of subsection (1) insert “in relation to the proposed strategy”.

Commencement Information

I666 Sch. 8 para. 14 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

15 In section 346 (monitoring and data collection), in paragraph (b), for “local development documents” substitute “local plan, any document which is or forms part of a minerals and waste plan and any supplementary plans”.

Commencement Information

I667 Sch. 8 para. 15 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I668 [Sch. 8 para. 15](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(v\)](#) (with [Sch. 1](#))

16 In section 347 (functional bodies to have regard to strategy)—

- (a) for “section 24” substitute “sections 15CA(2) and 15CC(7)”;
- (b) for “requires certain of a Mayoral development corporation’s documents” substitute “require local plans, minerals and waste plans and supplementary plans”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I669 Sch. 8 para. 16 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I670 [Sch. 8 para. 16](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(v\)](#) (with [Sch. 1](#))

Planning and Compulsory Purchase Act 2004

17 PCPA 2004 is amended as follows.

Commencement Information

I671 Sch. 8 para. 17 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I672 [Sch. 8 para. 17](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(v\)](#) (with [Sch. 1](#))

18 For section 14 (survey of area: county councils) substitute—

“14 Survey of area: minerals and waste planning authorities and county councils

- (1) A minerals and waste planning authority must keep under review the matters which may be expected to affect minerals and waste development in the relevant area or the planning of such development.
- (2) Subsections (2) to (5) of section 13 apply for the purposes of subsection (1) as they apply for the purposes of that section and—
 - (a) references to the local planning authority must be construed as references to the minerals and waste planning authority,
 - (b) references to the area of the local planning authority must be construed as references to the relevant area, and
 - (c) references to the local planning authority for a neighbouring area must be construed as references to—
 - (i) in the case of a neighbouring area in England, the minerals and waste planning authority for that area, or
 - (ii) in the case of a neighbouring area in Wales, the local planning authority for that area for the purposes of Part 6.
- (3) The Secretary of State may by regulations require or (in a particular case) may direct a county council to keep under review in relation to their area such of the matters mentioned in section 13(1) to (4) as the Secretary of State prescribes or directs (as the case may be).
- (4) For the purposes of subsection (3)—
 - (a) it is immaterial whether the matter relates to minerals and waste development;
 - (b) if a matter which is prescribed or in respect of which the Secretary of State gives a direction falls within section 13(4) the county council must consult the local planning authority for the area in question.
- (5) The county council must make available the results of their review under subsection (3) to such persons as the Secretary of State prescribes or directs (as the case may be).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I673 Sch. 8 para. 18 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I674 [Sch. 8 para. 18](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(v\)](#) (with [Sch. 1](#))

- 19 In section 38 (development plan), in subsection (7), after “enactments” insert “mentioned in subsection (1)”.

Commencement Information

I675 Sch. 8 para. 19 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I676 [Sch. 8 para. 19](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(v\)](#) (with [Sch. 1](#))

- 20 In section 38A (meaning of “neighbourhood development plan”), in subsection (12) —
- (a) after “this section” insert “and section 38B”;
 - (b) in the definition of “local planning authority”, for the words from “section 37” to the end of the definition substitute “section 15LF”.

Commencement Information

I677 Sch. 8 para. 20 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I678 [Sch. 8 para. 20](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(v\)](#) (with [Sch. 1](#))

- 21 In section 39 (sustainable development), in subsection (1)—
- (a) in paragraph (b), for “local development documents” substituted “a joint spatial development strategy, local plan, minerals and waste plan or supplementary plan”;
 - (b) after that paragraph insert—
 - “(ba) under section 38A to 38C in relation to a neighbourhood development plan.”

Commencement Information

I679 Sch. 8 para. 21 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I680 [Sch. 8 para. 21](#) in force at 25.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 3\(f\)\(vi\)](#) (with [Sch. 1](#))

- 22 In section 61 (Wales: survey), for subsection (6) substitute—
- “(6) If a neighbouring area is in England, the reference in subsection (5) to the local planning authority for that area is to be construed as a reference to the local planning authority and the minerals and waste planning authority, in each case for the purposes of Part 2, for that area.”

Commencement Information

I681 Sch. 8 para. 22 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I682 [Sch. 8 para. 22](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(vii\)](#) (with [Sch. 1](#))

- 23 (1) Section 113 (validity of strategies, plans and documents) is amended as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(2) In subsection (1)—

- (a) after paragraph (ba) insert—
 - “(bb) a local plan;
 - (bc) a minerals and waste plan;
 - (bd) a supplementary plan;”;
- (b) omit paragraph (c);
- (c) in paragraph (e), for “(c)” substitute “(bb), (bc), (bd)”;
- (d) in paragraph (f), for “the Mayor of London’s” substitute “a”;
- (e) in paragraph (g), for “the” substitute “a”.

(3) In subsection (9)—

- (a) in paragraph (c), for “development plan document” substitute “local plan, minerals and waste plan or supplementary plan”;
- (b) in paragraph (e), after “strategy” insert “for London”;
- (c) after that paragraph insert—
 - “(f) in the case of a spatial development strategy adopted by a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009, or any alteration or replacement of it, whichever provisions of (or applied by) an order under that Act give the combined authority powers in relation to such a strategy;
 - (g) sections 15A to 15AF above, in the case of a joint spatial development strategy or any alteration of it.”

(4) In subsection (11)—

- (a) in paragraph (c)—
 - (i) for “development plan document” substitute “local plan, minerals and waste plan or supplementary plan”;
 - (ii) for the words from “by the local” to the end substitute “or approved (as the case may be) under Part 2;”;
- (b) in paragraph (e)—
 - (i) for “the”, in the second place it occurs, substitute “a”;
 - (ii) for “the Mayor of London publishes it” substitute “it becomes operative”.

(5) After subsection (12) insert—

“(13) In this section, “spatial development strategy”, “spatial development strategy for London” and “joint spatial development strategy” must be construed in accordance with section 15LH.”

Commencement Information

I683 Sch. 8 para. 23 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I684 Sch. 8 para. 23(1)(2)(4) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(viii\)](#) (with Sch. 1)

I685 Sch. 8 para. 23(3)(5) in force at 25.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 3\(f\)\(viii\)](#) (with Sch. 1)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- 24 In section 116 (Isles of Scilly), in subsection (2)(b), after “local planning authority” insert “or minerals and waste planning authority”.

Commencement Information

I686 Sch. 8 para. 24 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I687 [Sch. 8 para. 24](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(ix\)](#) (with [Sch. 1](#))

- 25 In section 122 (regulations and orders)—
- (a) in subsection (5), before paragraph (a) insert—
 - “(za) regulations under section 15A(2)(c);
 - (zb) regulations made under section 39A(3);”;
 - (b) in subsection (6), after “(5)” insert “(za), (zb),”.

Commencement Information

I688 Sch. 8 para. 25 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I689 [Sch. 8 para. 25](#) in force at 25.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 3\(f\)\(x\)](#) (with [Sch. 1](#))

- 26 (1) Schedule A1 (default powers exercisable by Mayor of London, combined authority or county council) is amended as follows.

- (2) For paragraph 1 substitute—

- “1 (1) This paragraph applies if the Secretary of State thinks that a London borough council, in their capacity as a local planning authority, are failing to do anything it is necessary or expedient for them to do in connection with the preparation, adoption or revision of a local plan.
- (2) If the local plan has not come into effect, the Secretary of State may invite the Mayor of London to take over preparation of the local plan from the London borough council, in which case the Mayor may do so.
- (3) If the local plan has come into effect, the Secretary of State may invite the Mayor of London to revise the local plan, in which case the Mayor may do so.”

- (3) In paragraph 2—

- (a) in sub-paragraph (1), for “development plan document” substitute “local plan”;
- (b) after that sub-paragraph insert—

“(1A) If the Mayor of London is to prepare the local plan, the Mayor must publish a document setting out—

- (a) the Mayor’s timetable for preparing the plan, and
- (b) if the Mayor intend to depart from anything specified in a local plan timetable in relation to the plan, details of how the Mayor intends to depart from it.”;

- (c) for sub-paragraph (4) substitute—

“(4) The Mayor of London may then—

- (a) where the Mayor has prepared a local plan, approve the local plan, approve the local plan subject to specified

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

modifications or direct the council to consider adopting the local plan by resolution of the council, or

- (b) where the Mayor is to revise a local plan, make the revision or make the revision subject to specified modifications.”

(4) In paragraph 3—

- (a) for sub-paragraph (1) substitute—

“(1) Subsections (4) to (12) of section 15D, and section 15DA, apply to an examination held under paragraph 2(2)—

- (a) reading references to the local planning authority as references to the Mayor of London, and
 - (b) in the case of an independent examination of a proposed revision, reading references to a local plan as references to the revision.”;
- (b) in sub-paragraph (3)(a), omit “or omitted”;
- (c) for sub-paragraph (4) substitute—
 - (i) for “joint local development document or a joint development plan document” substitute “joint local plan”;
 - (ii) for “the document” substitute “the plan”.

(5) In paragraph 4, for “section 29” substitute “section 15J”.

(6) For paragraph 5 substitute—

- “5
- (1) This paragraph applies if the Secretary of State thinks that a constituent planning authority are failing to do anything it is necessary or expedient for them to do in connection with the preparation, adoption or revision of a local plan.
 - (2) If the local plan has not come into effect, the Secretary of State may invite the combined authority to take over preparation of the local plan from the constituent planning authority, in which case the combined authority may do so.
 - (3) If the local plan has come into effect, the Secretary of State may invite the combined authority to revise the local plan, in which case the combined authority may do so.”

(7) In paragraph 6—

- (a) in sub-paragraph (1), for “development plan document” substitute “local plan”;
- (b) after that sub-paragraph insert—

“(1A) If the combined authority are to prepare the local plan, the combined authority must publish a document setting out—

- (a) their timetable for preparing the plan, and
 - (b) if they intend to depart from anything specified in a local plan timetable in relation to the plan, details of how they intend to depart from it.”;
- (c) for sub-paragraph (4) substitute—

“(4) The combined authority may then—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) where the combined authority have prepared a local plan, approve the local plan, approve the local plan subject to specified modifications or direct the constituent planning authority to consider adopting the local plan by resolution of the authority, or
- (b) where the combined authority are to revise a local plan, make the revision or make the revision subject to specified modifications.”

(8) In paragraph 7—

(a) for sub-paragraph (1) substitute—

“(1) Subsections (4) to (12) of section 15D, and section 15DA, apply to an examination held under paragraph 6(2)—

- (a) reading references to the local planning authority as references to the combined authority, and
- (b) in the case of an independent examination of a proposed revision, reading references to a local plan as references to the revision.”;

(b) in sub-paragraph (3)(a), omit “or omitted”;

(c) in sub-paragraph (4)—

- (i) for “joint local development document or a joint development plan document” substitute “joint local plan”;
- (ii) for “the document” substitute “the plan”.

(9) In paragraph 7ZA (inserted by paragraph 156 of Schedule 4 to this Act), in paragraph (b) of the definition of “constituent planning authority”, for “29” substitute “15J”.

(10) For paragraph 7ZB (inserted by paragraph 156 of Schedule 4 to this Act) substitute—

“7ZB (1) This paragraph applies if the Secretary of State thinks that a constituent planning authority are failing to do anything it is necessary or expedient for them to do in connection with the preparation, adoption or revision of a local plan.

(2) If the local plan has not come into effect, the Secretary of State may invite the combined county authority to take over preparation of the local plan from the constituent planning authority, in which case the combined county authority may do so.

(3) If the local plan has come into effect, the Secretary of State may invite the combined county authority to revise the local plan, in which case the combined county authority may do so.”

(11) In paragraph 7ZC (inserted by paragraph 156 of Schedule 4 to this Act)—

(a) in sub-paragraph (1), for “development plan document” substitute “local plan”;

(b) after that sub-paragraph insert—

“(1A) If the combined county authority are to prepare the local plan, the combined county authority must publish a document setting out—

- (a) their timetable for preparing the plan, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) if they intend to depart from anything specified in a local plan timetable in relation to the plan, details of how they intend to depart from it.”;
 - (c) for sub-paragraph (4) substitute—
 - “(4) The combined county authority may then—
 - (a) where the combined county authority have prepared a local plan, approve the local plan subject to specified modifications or direct the constituent planning authority to consider adopting the local plan by resolution of the authority, or
 - (b) where the combined county authority are to revise a local plan, make the revision or make the revision subject to specified modifications.”
- (12) In paragraph 7ZD (inserted by paragraph 156 of Schedule 4 to this Act)—
 - (a) for sub-paragraph (1) substitute—
 - “(1) Subsections (4) to (12) of section 15D, and section 15DA, apply to an examination held under paragraph 7ZC(2)—
 - (a) reading references to the local planning authority as references to the combined county authority, and
 - (b) in the case of an independent examination of a proposed revision, reading references to a local plan as references to the revision.”;
 - (b) in sub-paragraph (3)(a), omit “or omitted”;
 - (c) in sub-paragraph (4)—
 - (i) for “joint local development document or a joint development plan document” substitute “joint local plan”;
 - (ii) for “the document” substitute “the plan”.
- (13) For paragraph 7B substitute—
 - “7B (1) This paragraph applies if the Secretary of State thinks that a lower tier planning authority are failing to do anything it is necessary or expedient for them to do in connection with the preparation, adoption or revision of a local plan.
 - (2) If the local plan has not come into effect, the Secretary of State may invite the upper-tier county council to take over preparation of the local plan from the lower-tier planning authority, in which case the upper-tier county council may do so.
 - (3) If the local plan has come into effect, the Secretary of State may invite the upper-tier county council to revise the local plan, in which case the upper-tier county council may do so.”
- (14) In paragraph 7C—
 - (a) in sub-paragraph (1), for “development plan document” substitute “local plan”;
 - (b) after that sub-paragraph insert—
 - “(1A) If the upper-tier county council are to prepare the local plan, the upper-tier county council must publish a document setting out—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) their timetable for preparing the plan, and
- (b) if they intend to depart from anything specified in a local plan timetable in relation to the plan, details of how they intend to depart from it.”;
- (c) for sub-paragraph (4) substitute—

“(4) The upper-tier county council may then—

- (a) where the upper-tier county council have prepared a local plan, approve the local plan, approve the local plan subject to specified modifications or direct the lower-tier planning authority to consider adopting the local plan by resolution of the authority, or
- (b) where the upper-tier county council are to revise a local plan, make the revision or make the revision subject to specified modifications.”

(15) In paragraph 7D—

- (a) for sub-paragraph (1) substitute—

“(1) Subsections (4) to (12) of section 15D, and section 15DA, apply to an examination held under paragraph 7C(2)—

- (a) reading references to the local planning authority as references to the upper-tier county council, and
- (b) in the case of an independent examination of a proposed revision, reading references to a local plan as references to the revision.”;

- (b) in sub-paragraph (3)(a), omit “or omitted”;

- (c) in sub-paragraph (4)—

- (i) for “joint local development document or a joint development plan document” substitute “joint local plan”;
- (ii) for “the document” substitute “the plan”.

(16) In paragraph 8—

- (a) in sub-paragraph (1)—

- (i) for “development plan document” substitute “local plan”;
- (ii) for “revised” substitute “a revision of a local plan”;

- (b) in sub-paragraph (2)—

- (i) for “development plan document” substitute “local plan”;
- (ii) in paragraph (a), for “document” (in both places) substitute plan;
- (iii) in that paragraph, for “section 23” substitute “section 15EA”;

- (c) in sub-paragraph (3)(b), for “document” substitute “plan”;

- (d) in sub-paragraph (5)—

- (i) for “development plan document” substitute “local plan”;
- (ii) for “section 23” substitute “section 15EA”;
- (iii) for “the document” substitute “the plan”;

- (e) in sub-paragraph (6), for “document” (in each place) substitute “plan”;

- (f) in sub-paragraph (7)—

- (i) in paragraph (a), for “development plan document” substitute “local plan”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (ii) in paragraph (b), for “section 23” substitute “section 15EA”;
- (iii) in the words after paragraph (b), for “document” substitute “plan”;
- (g) after sub-paragraph (7) insert—

“(7A) Sub-paragraphs (2) to (7) and paragraph 9 apply in relation to a revision to a local plan to which this paragraph applies as they apply in relation to a local plan to which this paragraph applies—

- (a) reading references to the plan being adopted or approved as references to the revision being made, and
- (b) reading references to paragraph 2(4)(a), 6(4)(a), 7ZC(4)(a) or 7C(4)(a) as references to paragraph 2(4)(b), 6(4)(b), 7ZC(4)(b) or 7C(4)(b).”

(17) In paragraph 9, for “document” (in each place) substitute “plan”.

(18) For paragraph 10 substitute—

- “10 Subsections (4) to (12) of section 15D, and section 15DA, apply to an examination of a local plan held under paragraph 9(3)—
- (a) reading references to the local planning authority as references to Secretary of State, and
 - (b) in the case of an independent examination of a proposed revision, reading references to a local plan as references to the revision.”

(19) In paragraph 11, for “local development scheme” substitute “local plan timetable”.

(20) In paragraph 13—

- (a) in sub-paragraph (1)—
 - (i) for “development plan document” substitute “local plan”;
 - (ii) after “step” insert “, or not to take a step specified in the direction,”;
 - (iii) for “adoption or approval of the document” substitute “plan”;
- (b) in sub-paragraph (2), for “document” substitute “plan”;
- (c) in sub-paragraph (3), for “document” (in both places) substitute “plan”.

Commencement Information

I690 Sch. 8 para. 26 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I691 [Sch. 8 para. 26](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(xi\)](#) (with [Sch. 1](#))

Commons Act 2006

27 In Schedule 1A to the Commons Act 2006 (exclusion of right under section 15 of that Act (registration of greens): England), in the Table—

- (a) in paragraph 3 of the first column—
 - (i) for “development plan document” substitute “local plan, a document which is to be or to form part of a minerals and waste plan or a supplementary plan”;
 - (ii) for “section 17(7)” substitute “section 15LE(2)(g)”;
- (b) in paragraph (a) of the entry in the second column corresponding to paragraph 3—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (i) after “The” insert “plan or”;
- (ii) for “under section 22(1) of the 2004 Act” substitute “under—
 - (i) in the case of a local plan, section 15E of the 2004 Act;
 - (ii) in the case of a document which is to be or to form part of a minerals and waste plan, section 15E of that Act (as applied by section 15CB(8) of that Act);
 - (iii) in the case of a supplementary plan, regulations made under section 15CC(11) of that Act.”;
- (c) for paragraph (b) of the entry in the second column corresponding to paragraph 3 substitute—
 - “(b) The plan or document is adopted or approved under Part 2 of that Act (but see paragraph 4 of this Table).”;
- (d) in paragraph (c) of the entry in the second column corresponding to paragraph 3, after “which the” insert “plan or”;
- (e) for paragraph 4 of the first column substitute—
 - “4 A local plan, a document which is or forms part of a minerals and waste plan or a supplementary plan, which identifies the land for potential development, is adopted or approved under Part 2 of the 2004 Act.”;
- (f) in paragraph (a) of the entry in the second column corresponding to paragraph 4—
 - (i) after “The” insert “plan or”;
 - (ii) for “section 25 of the 2004 Act” substitute “section 15G of the 2004 Act (including as applied by section 15CB(8) of that Act, in the case of a minerals and waste plan)”;
- (g) in paragraph (b) of the entry in the second column corresponding to paragraph 4, after “in the” insert “plan or”.

Commencement Information

I692 Sch. 8 para. 27 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I693 [Sch. 8 para. 27](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(xi\)](#) (with [Sch. 1](#))

Planning and Energy Act 2008

28 The Planning and Energy Act 2008 is amended as follows.

Commencement Information

I694 Sch. 8 para. 28 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I695 [Sch. 8 para. 28](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(xi\)](#) (with [Sch. 1](#))

29 (1) Section 1 (energy policies) is amended as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) In subsection (1), for “development plan documents,” substitute “local plan and any supplementary plan, a minerals and waste planning authority may in their minerals and waste plan and any supplementary plan,”.
- (3) After that subsection insert—

“(1ZA) In relation to the minerals and waste plan or supplementary plan of a minerals and waste planning authority, references in subsection (1) to development in their area are to minerals and waste development in the relevant area.”
- (4) In subsection (4)—
 - (a) in paragraph (a), for “section 19” substitute “sections 15C, 15CA and 15CC”;
 - (b) after that paragraph insert—

“(aza) sections 15CB and 15CC of that Act, in the case of a minerals and waste planning authority;”.
- (5) In subsection (5), for “development plan documents” substitute “a local plan, a minerals and waste plan or a supplementary plan”.

Commencement Information

I696 Sch. 8 para. 29 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I697 Sch. 8 para. 29 in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(xi\)](#) (with [Sch. 1](#))

- 30 In section 2 (interpretation), for the definition of “development plan document” substitute—

““local plan”, “minerals and waste development”, “minerals and waste plan”, “minerals and waste planning authority”, “relevant area” and “supplementary plan” have the same meaning as in Part 2 of the Planning and Compulsory Purchase Act 2004 (see, in particular, section 15LH of that Act);”.

Commencement Information

I698 Sch. 8 para. 30 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I699 Sch. 8 para. 30 in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(xi\)](#) (with [Sch. 1](#))

Marine and Coastal Access Act 2009

- 31 (1) Schedule 6 to the Marine and Coastal Access Act 2009 (marine plans: preparation and adoption) is amended as follows.
 - (2) In paragraph 1—
 - (a) in sub-paragraph (2), after paragraph (d) insert—

“(da) any minerals and waste planning authority whose relevant area adjoins or is adjacent to the marine plan area;”;
 - (b) in sub-paragraph (3)—
 - (i) in paragraph (a) of the definition of “local planning authority”, for “section 37” substitute “section 15LF”;
 - (ii) after that definition insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

““minerals and waste planning authority” means an authority which is a minerals and waste planning authority for the purposes of Part 2 of the Planning and Compulsory Purchase Act 2004 (see section 15LG of that Act) and “relevant area” has the meaning given by that section.”

(3) In paragraph 3(6), in paragraph (a) of the definition of “development plan”, for “section 38(2) to (4)” substitute “section 38(2A) to (4)”.

Commencement Information

I700 Sch. 8 para. 31 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I701 [Sch. 8 para. 31](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(xi\)](#) (with [Sch. 1](#))

Waste (England and Wales) Regulations 2011 ([S.I. 2011/988](#))

32 In regulation 16(3) of the Waste (England and Wales) Regulations 2011 (general interpretation: meaning of planning authority), for sub-paragraph (b) substitute—
“(ba) a local planning authority or minerals and waste planning authority for the purposes of Part 2 of the 2004 Act;”.

Commencement Information

I702 Sch. 8 para. 32 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I703 [Sch. 8 para. 32](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(xi\)](#) (with [Sch. 1](#))

PROSPECTIVE

Housing and Planning Act 2016

33 The Housing and Planning Act 2016 is amended as follows.

Commencement Information

I704 Sch. 8 para. 33 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

PROSPECTIVE

34 In section 6 (starter homes: monitoring), in subsection (2), omit paragraph (c).

Commencement Information

I705 Sch. 8 para. 34 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

PROSPECTIVE

- 35 In section 7 (starter homes: compliance directions), in subsection (1)(b) for “local development document” substitute “local plan, document which is or forms part of a minerals and waste plan or supplementary plan”.

Commencement Information

I706 Sch. 8 para. 35 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

PROSPECTIVE

- 36 In section 8 (starter homes: interpretation), for the definition of “local development document” substitute—
““local plan”, “minerals and waste plan” and “supplementary plan” have the same meaning as in Part 2 of the Planning and Compulsory Purchase Act 2004 (see, in particular, section 15LH of that Act);”.

Commencement Information

I707 Sch. 8 para. 36 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

Conservation of Habitats and Species Regulations 2017 (S.I. 2017/1012)

- 37 The Conservation of Habitats and Species Regulations 2017 are amended as follows.

Commencement Information

I708 Sch. 8 para. 37 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I709 [Sch. 8 para. 37](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(xii\)](#) (with [Sch. 1](#))

- 38 (1) Regulation 41 (nature conservation policy in planning contexts) is amended as follows.
- (2) In paragraph (1), after “of land” insert “or minerals and waste development”.
- (3) In paragraph (2)(a)(i)—
- (a) for “section 17(3)” substitute “sections 15C(3) and (4) and 15CC(3)”;
(b) for “local development documents” substitute “local plans and supplementary plans made by local planning authorities”.
- (4) Omit the “and” at the end of paragraph (2)(a)(ii).
- (5) After paragraph (2)(a) insert—
“(aa) in relation to minerals and waste development, sections 15CB(2) and (3) and 15CC(5) of that Act; and”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I710 Sch. 8 para. 38 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I711 [Sch. 8 para. 38](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(xii\)](#) (with [Sch. 1](#))

- 39 (1) Regulation 108 (co-ordination for land use plan prepared by more than one authority) is amended as follows.
- (2) In paragraph (1), for the words from “prepare” to the end substitute “prepare a relevant joint plan”.
- (3) In paragraph (2), for “joint local development document or plan” substitute “relevant joint plan”.
- (4) In paragraph (3), for “joint local planning document or plan” substitute “relevant joint plan”.
- (5) In paragraph (5), for “joint local development document or plan” substitute “relevant joint plan”.
- (6) After that paragraph insert—
- “(6) In this regulation “relevant joint plan” means—
- (a) a joint spatial development strategy, joint local plan or joint supplementary plan (within the meaning of Part 2 of the 2004 Planning Act),
- (b) a document which is or forms part of a joint minerals and waste plan under sections 15I and 15IA of that Act (as applied by section 15CB(8) of that Act), or
- (c) a joint local development plan under section 72 of that Act.”

Commencement Information

I712 Sch. 8 para. 39 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I713 [Sch. 8 para. 39\(1\)-\(5\)](#) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(xiii\)](#) (with [Sch. 1](#))

I714 [Sch. 8 para. 39\(6\)](#) in force at 25.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 3\(f\)\(xiii\)](#) (with [Sch. 1](#))

- 40 (1) Regulation 111 (interpretation of Chapter 8 of Part 6) is amended as follows.
- (2) In paragraph (1)—
- (a) in paragraph (b) of the definition of “land use plan”—
- (i) for “local development document as provided for in” substitute “joint spatial development strategy, local plan, document which is or forms part of a minerals and waste plan, supplementary plan or any revision of such a plan or document under”;
- (ii) omit the words from “other” to the end;
- (b) in paragraph (a) of the definition of “plan-making authority”, after “replacement” insert “or section 15CC of the 2004 Planning Act (supplementary plans)”;
- (c) in paragraph (b) of the definition of “plan-making authority” omit “or an order under section 29(2) of the 2004 Planning Act (joint committees)”;
- (d) after that paragraph insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- “(ba) a local planning authority or minerals and waste planning authority for the purposes of Part 2 of the 2004 Planning Act;”;
 - (e) in paragraph (c) of the definition of “plan-making authority”, omit sub-paragraph (i);
 - (f) after that paragraph insert—
 - “(ca) anyone exercising powers under section 15H, 15HA or 15HB of, or Schedule A1 to, the 2004 Planning Act;”.
- (3) In paragraph (2)—
 - (a) for sub-paragraphs (a) and (b) substitute—
 - “(aa) the adoption of a joint spatial development strategy under section 15AD of the 2004 Planning Act or of an alteration of such a strategy under section 15AF of that Act;
 - (ab) the adoption or approval of a local plan, document which is or forms part of a minerals and waste plan, supplementary plan or a revision of any such document or plan under Part 2 of the 2004 Planning Act;”;
 - (b) in sub-paragraph (c) for “publication” substitute “adoption”.

Commencement Information

I715 Sch. 8 para. 40 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I716 Sch. 8 para. 40(1)(2)(b)-(f) in force at 25.3.2026 by [S.I. 2026/169](#), [reg. 3\(f\)\(xiv\)](#) (with Sch. 1)

I717 Sch. 8 para. 40(2)(a)(3) in force at 25.3.2026 for specified purposes by [S.I. 2026/169](#), [reg. 3\(f\)\(xiv\)](#) (with Sch. 1)

SCHEDULE 9

Section 106

STREET VOTES: MINOR AND CONSEQUENTIAL AMENDMENTS

Town and Country Planning Act 1990

- 1 (1) TCPA 1990 is amended as follows.
 - (2) In section 5 (the Broads), in subsection (3), for “61Q” substitute “61QM”.
 - (3) In section 56 (time when development begun), in subsection (3)—
 - (a) after “(7),” insert “[61QI\(8\)](#),”;
 - (b) for “108(3E)(c)(i)” substitute “, 108(3E)(c)(i), 108(3DB)(c)(i)”.
 - (4) In section 57 (planning permission required for development), in subsection (3), for “or a neighbourhood development order” substitute “, a neighbourhood development order or a street vote development order”.
 - (5) In section 58 (granting of planning permission: general), in subsection (1)(a), for “or a neighbourhood development order” substitute “, a neighbourhood development order or a street vote development order”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (6) In section 62 (applications for planning permission or permission in principle), in subsection (2A)—
 - (a) at the end of paragraph (a) omit “and”;
 - (b) after paragraph (b) insert “, and
 - (c) applications for consent, agreement or approval where that consent, agreement or approval is required by a condition or limitation imposed under section 61QI(1).”
- (7) In section 65 (notice of applications for planning permission or permission in principle), in subsection (3A)—
 - (a) at the end of paragraph (a) omit “and”;
 - (b) after paragraph (b) insert “, and
 - (c) any application for consent, agreement or approval where that consent, agreement or approval is required by a condition or limitation imposed under section 61QI(1) or any applicant for such consent, agreement or approval.”
- (8) In section 69 (register of applications etc)—
 - (a) after subsection (1)(cza) insert—
 - “(czb) street vote development orders or proposals for such orders;”;
 - (b) in subsection (2)(b), after “Mayoral development order,” insert “street vote development order or proposal for such an order,”.
- (9) In section 71 (consultations in connection with determinations under section 70), in subsection (2ZA)—
 - (a) at the end of paragraph (a) omit “and”;
 - (b) after paragraph (b) insert “, and
 - (c) an application for consent, agreement or approval where that consent, agreement or approval is required by a condition or limitation imposed under section 61QI(1).”
- (10) In section 74 (directions etc as to method of dealing with applications), in subsection (1ZA)—
 - (a) in paragraph (a)—
 - (i) at the end of sub-paragraph (i) omit “and”;
 - (ii) after sub-paragraph (ii) insert—
 - “(iii) a consent, agreement or approval where that consent, agreement or approval is required by a condition or limitation imposed under section 61QI(1), and”;
 - (b) in paragraph (b)—
 - (i) at the end of sub-paragraph (i) omit “and”;
 - (ii) after sub-paragraph (ii) insert “, and
 - (iii) applications for consent, agreement or approval where that consent, agreement or approval is required by a condition or limitation imposed under section 61QI(1).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (11) In section 77 (reference of applications to Secretary of State), in subsection (1), for “or a neighbourhood development order” substitute “, a neighbourhood development order or a street vote development order”.
- (12) In section 78 (right to appeal), in subsection (1)(c), for “or a neighbourhood development order” substitute “, a neighbourhood development order or a street vote development order”.
- (13) In section 88 (planning permission for development in enterprise zones), in subsection (9), for “or a neighbourhood development order” substitute “, a neighbourhood development order or a street vote development order”.
- (14) In section 91 (general condition limiting duration of planning permission), in subsection (4)(a), for “or a neighbourhood development order” substitute “, a neighbourhood development order or a street vote development order”.
- (15) In section 94 (termination of planning permission by reference to time limit: completion notices), in subsection (1), after paragraph (d) insert “; or
 - (e) a planning permission under a street vote development order is subject to a condition that the development to which the permission relates must be begun before the expiration of a particular period, that development has been begun within that period, but that period has elapsed without the development having been completed.”
- (16) In section 108 (compensation)—
 - (a) in the heading, for “or neighbourhood development order” substitute “, neighbourhood development order or street vote development order”;
 - (b) in subsection (1)—
 - (i) in paragraph (a), for “or a neighbourhood development order” substitute “, a neighbourhood development order or a street vote development order”;
 - (ii) in the words after paragraph (b), for “or the neighbourhood development order” substitute “, the neighbourhood development order or the street vote development order”;
 - (c) in subsection (2), for “or a neighbourhood development order” substitute “, a neighbourhood development order or a street vote development order”;
 - (d) in subsection (3B)—
 - (i) in paragraph (ba), at the end omit “or”;
 - (ii) after that paragraph insert—
 - “(bb) in the case of planning permission granted by a street vote development order, the condition in subsection (3DB) is met, or”;
 - (e) after subsection (3DA) insert—
 - “(3DB) The condition referred to in subsection (3B)(bb) is that—
 - (a) the planning permission is withdrawn by the revocation or modification of the street vote development order,
 - (b) notice of the revocation or modification was published in the prescribed manner not less than 12 months or more than the prescribed period before the revocation or modification took effect, and
 - (c) either—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (i) the development authorised by the street vote development order had not begun before the notice was published, or
 - (ii) [section 61QI\(7\)](#) applies in relation to the development.”
- (17) In section 109 (apportionment of compensation for depreciation), in subsection (6), in the definition of “relevant planning decision”, for “or the neighbourhood development order” substitute “, the neighbourhood development order or the street vote development order”.
- (18) In section 171H (temporary stop notice: compensation), in subsection (1)(a), for “or a neighbourhood development order” substitute “, a neighbourhood development order or a street vote development order”.
- (19) In section 264 (cases in which land is to be treated as not being operational land), in subsection (5)(ca), for “or a neighbourhood development order” substitute “, a neighbourhood development order or a street vote development order”.
- (20) In section 324 (rights of entry), in subsection (1A)—
 - (a) the words from “the reference” to the end become paragraph (a);
 - (b) after that paragraph insert “, and
 - (b) the reference to a proposal by the Secretary of State to make any order under Part 3 includes a reference to a proposal submitted (or to be submitted) to the Secretary of State for the making of a street vote development order.”
- (21) In section 333 (regulations and orders)—
 - (a) after subsection (3) insert—

“(3ZZA) Subsection (3) does not apply to a statutory instrument containing regulations made under any of sections 61QB to 61QJ or section 61QL if a draft of the instrument has been laid before, and approved by a resolution of, each House of Parliament.”;
 - (b) after subsection (3ZA) insert—

“(3ZZAA) No regulations may be made under section 61QC(2), 61QH or 61QI(4) unless a draft of the instrument containing the regulations has been laid before, and approved by a resolution of, each House of Parliament.”
- (22) In Schedule 1 (local planning authorities: distribution of functions), in paragraph 6A, at the end insert “or any of sections 61QA to 61QM (street vote development orders)”.

Commencement Information

I718 Sch. 9 para. 1 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

I719 [Sch. 9 para. 1\(6\)-\(10\)](#) in force at 31.1.2024 for specified purposes by [S.I. 2024/92](#), [reg. 2\(q\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

PROSPECTIVE

Planning (Listed Buildings and Conservation Areas) Act 1990

- 2 (1) The Listed Buildings Act is amended as follows.
- (2) In section 66 (general duty as respects listed buildings in exercise of planning functions), in subsection (4), after “orders” insert “or street vote development orders (except as provided by SVDO regulations within the meaning given by section 61QM of the principal Act)”.
- (3) In section 72 (general duty as respects conservation areas in exercise of planning functions), in subsection (4), after “orders” insert “or street vote development orders (except as provided by SVDO regulations within the meaning given by section 61QM of the principal Act)”.

Commencement Information

I720 Sch. 9 para. 2 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

PROSPECTIVE

Elections Act 2022

- 3 In section 34 of the Elections Act 2022 (campaigners), in subsection (6), in the definition of “local referendum”, after paragraph (d) insert—
- “(e) section 61QE of the Town and Country Planning Act 1990 (referendums on street vote development orders);”.

Commencement Information

I721 Sch. 9 para. 3 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

PROSPECTIVE

The Conservation of Habitats and Species Regulations 2017

- 4 (1) The Conservation of Habitats and Species Regulations 2017 ([S.I. 2017/1012](#)) are amended as follows.
- (2) In regulation 75 (general development orders)—
- (a) in the heading, after “orders” insert “and street vote development orders”;
- (b) in the opening words, after “2017” insert “or a street vote development order”.
- (3) In regulation 76 (opinion of appropriate nature conservation body)—
- (a) in the heading, after “orders” insert “and street vote development orders”;
- (b) in paragraph (1), after “order” insert “or a street vote development order”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) in paragraph (6), after “order” insert “or a street vote development order”.
- (4) In regulation 77 (approval of local planning authority), in the heading, after “orders” insert “and street vote development orders”.
- (5) In regulation 78 (supplementary)—
 - (a) in the heading, after “orders” insert “and street vote development orders”;
 - (b) in paragraph (3)(b), after “order” insert “or development order”.
- (6) In regulation 85B (assumptions to be made about nutrient pollution standards)—
 - (a) in the heading, after “orders” insert “and street vote development orders”;
 - (b) in paragraph (1)(a) after “orders” insert “and street vote development orders”.

Commencement Information

I722 Sch. 9 para. 4 not in force at Royal Assent, see [s. 255\(3\)\(b\)](#)

SCHEDULE 10

Section 109

CROWN DEVELOPMENT: CONSEQUENTIAL AMENDMENTS

Town and Country Planning Act 1990 (c. 8)

- 1 TCPA 1990 is amended as follows.

Commencement Information

I723 [Sch. 10 para. 1](#) in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

I724 [Sch. 10 para. 1](#) in force at 1.5.2025 for specified purposes by [S.I. 2025/430](#), [reg. 2\(b\)](#)

- 2 In section 61W (England: requirement to carry out pre-application consultation), in subsection (6)(a), for “293A” substitute “[293B](#)”.

Commencement Information

I725 [Sch. 10 para. 2](#) in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

I726 [Sch. 10 para. 2](#) in force at 1.5.2025 for specified purposes by [S.I. 2025/430](#), [reg. 2\(b\)](#)

- 3 In section 108 (compensation for refusal or conditional grant of planning permission etc formerly granted by development order etc)—
- (a) in subsection (1)—
 - (i) in paragraph (b), for “Part III or section 293A” substitute “Parts 3 or 13”;
 - (ii) in sub-paragraph (i), for “or section 293A” substitute “or by the Secretary of State or Welsh Ministers under Part 13”;
 - (b) in subsection (2B)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (i) in paragraph (b), for “Part III or section 293A” substitute “Parts 3 or 13”;
- (ii) in the closing words, for “or section 293A” substitute “or by the Secretary of State or Welsh Ministers under Part 13”.

Commencement Information

I727 Sch. 10 para. 3 in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

I728 Sch. 10 para. 3 in force at 1.5.2025 for specified purposes by [S.I. 2025/430](#), [reg. 2\(b\)](#)

- 4 In section 247 (highways affected by development: orders by the Secretary of State), in subsection (1)(a), for “Part III or section 293A” substitute “Parts 3 or 13”.

Commencement Information

I729 Sch. 10 para. 4 in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

I730 Sch. 10 para. 4 in force at 1.5.2025 for specified purposes by [S.I. 2025/430](#), [reg. 2\(b\)](#)

- 5 In section 257 (footpaths etc affected by development: orders by other authorities), in subsection (1)(a), for “Part III or section 293A” substitute “Parts 3 or 13”.

Commencement Information

I731 Sch. 10 para. 5 in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

I732 Sch. 10 para. 5 in force at 1.5.2025 for specified purposes by [S.I. 2025/430](#), [reg. 2\(b\)](#)

- 6 In section 284 (validity of certain orders, decisions and directions), in subsection (3) —
- (a) in paragraph (i), after “in principle” insert “to the Welsh Ministers”;
 - (b) after paragraph (i) insert—
 - “(j) any decision on an application made to the Secretary of State under section [293B](#), [293D](#) or [293E](#).”

Commencement Information

I733 Sch. 10 para. 6 in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

I734 Sch. 10 para. 6 in force at 1.5.2025 for specified purposes by [S.I. 2025/430](#), [reg. 2\(b\)](#)

- 7 In section 293A (urgent Crown development: application)—
- (a) in the heading, at the end insert “to the Welsh Ministers”;
 - (b) in subsection (1), in the opening words, after “development” insert “of land in Wales”.

Commencement Information

I735 Sch. 10 para. 7 in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

I736 Sch. 10 para. 7 in force at 1.5.2025 for specified purposes by [S.I. 2025/430](#), [reg. 2\(b\)](#)

- 8 In section 303 (fees for planning application etc.), after subsection (4) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) in subsection (4), for “appropriate authority” (in both places) substitute “Welsh Ministers”;
- (b) after subsection (4) insert—
 - “(4A) The Secretary of State may by regulations make provision for the payment of a fee to the Secretary of State in respect of an application under section [293B](#), [293D](#) or [293E](#).”

Commencement Information

I737 [Sch. 10 para. 8](#) in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

I738 [Sch. 10 para. 8](#) in force at 1.5.2025 for specified purposes by [S.I. 2025/430](#), [reg. 2\(b\)](#)

- 9 In section 319A (determination of procedure for certain proceedings: England), in subsection (7)—
- (a) omit the “and” at the end of paragraph (d);
 - (b) after paragraph (e) insert “; and
 - (f) an application made to the Secretary of State under section [293D](#) or [293E](#).”
 - (c) after paragraph (e) insert—
 - “(f) an application made to the Secretary of State under section [293D](#) or [293E](#).”

Commencement Information

I739 [Sch. 10 para. 9](#) in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

I740 [Sch. 10 para. 9](#) in force at 1.5.2025 for specified purposes by [S.I. 2025/430](#), [reg. 2\(b\)](#)

- 10 In section 336 (interpretation), in subsection (1)—
- (a) in the definition of “planning decision”, for “Part III or section 293A” substitute “Parts 3 or 13”;
 - (b) in the definition of “planning permission”, for “Part III or section 293A” substitute “Parts 3 or 13”.

Commencement Information

I741 [Sch. 10 para. 10](#) in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

I742 [Sch. 10 para. 10](#) in force at 1.5.2025 for specified purposes by [S.I. 2025/430](#), [reg. 2\(b\)](#)

Housing and Planning Act 2016 (c. 22)

- 11 In section 205 (interpretation of sections 203 and 204), in subsection (1), in the definition of “planning consent”, for “Part 3 of the Town and Country Planning Act 1990 or section 293A of that Act” substitute “Parts 3 or 13 of the Town and Country Planning Act 1990”.

Commencement Information

I743 [Sch. 10 para. 11](#) in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

I744 Sch. 10 para. 11 in force at 1.5.2025 for specified purposes by S.I. 2025/430, reg. 2(b)

SCHEDULE 11

Section 112

COMPLETION NOTICES: CONSEQUENTIAL AMENDMENTS

1 TCPA 1990 is amended as follows.

Commencement Information

I745 Sch. 11 para. 1 in force at 26.12.2023 for specified purposes, see s. 255(3)(a)

2 In section 56 (time when development begun), in subsection (3), after “92,” insert “93H.”

Commencement Information

I746 Sch. 11 para. 2 in force at 26.12.2023 for specified purposes, see s. 255(3)(a)

3 Before section 94 insert—

“Termination of planning permission: Wales”.

Commencement Information

I747 Sch. 11 para. 3 in force at 26.12.2023 for specified purposes, see s. 255(3)(a)

4 (1) Section 94 (termination of planning permission by reference to time limit: completion notices) is amended as follows.

(2) In the heading, at the end insert “in Wales”.

(3) In subsection (1)—

- (a) in paragraph (a), after “planning permission” insert “in relation to land in Wales”;
- (b) in paragraphs (b) and (c), after “scheme” insert “in Wales”;
- (c) omit paragraph (d) and the preceding “or”.

Commencement Information

I748 Sch. 11 para. 4 in force at 26.12.2023 for specified purposes, see s. 255(3)(a)

5 In section 95 (effect of completion notice)—

- (a) in the heading, at the end insert “in Wales”;
- (b) in subsection (1), after “notice” insert “served in respect of land in Wales”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I749 Sch. 11 para. 5 in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

- 6 In section 96 (power of Secretary of State to serve completion notices)—
- (a) in the heading, at the end insert “in Wales”;
 - (b) in subsection (1), after “land” insert “in Wales”.

Commencement Information

I750 Sch. 11 para. 6 in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

- 7 In section 284 (validity of development plans and certain orders, decisions and directions), in subsection (3), after paragraph (b) insert—
- “(ba) any decision on an appeal under section 93I;”.

Commencement Information

I751 Sch. 11 para. 7 in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

- 8 In section 285 (validity of notices), before subsection (1) insert—
- “(A1) The validity of a completion notice under section 93H shall not, except by way of an appeal under section 93I, be questioned in any proceedings whatsoever on any of the grounds on which such an appeal may be brought.”

Commencement Information

I752 Sch. 11 para. 8 in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

- 9 In section 286 (challenges to validity on grounds of authority’s powers), at the end insert—
- “(3) The validity of any completion notice served or purporting to have been served by a local planning authority under section 93H shall not be called in question in any legal proceedings, or in any proceedings under this Act which are not legal proceedings, on the ground of non-compliance with any requirement of paragraph 10 of Schedule 1.”

Commencement Information

I753 Sch. 11 para. 9 in force at 26.12.2023 for specified purposes, see [s. 255\(3\)\(a\)](#)

- 10 In section 289 (appeals to High Court)—
- (a) in the heading, for the words from “enforcement” to the end substitute “certain notices”;
 - (b) in subsection (1), after “appeal under” insert “section 93I against a completion notice or under”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I754 Sch. 11 para. 10 in force at 26.12.2023 for specified purposes, see s. 255(3)(a)

- 11 In section 319A (determination of procedure: England), in subsection (7), after paragraph (b) insert—
“(bza) an appeal under section 93I against a completion notice;”.

Commencement Information

I755 Sch. 11 para. 11 in force at 26.12.2023 for specified purposes, see s. 255(3)(a)

- 12 In section 324 (rights of entry), in subsection (1)(c), after “sections” insert “93H,”.

Commencement Information

I756 Sch. 11 para. 12 in force at 26.12.2023 for specified purposes, see s. 255(3)(a)

- 13 In Schedule 1 (local planning authorities: distribution of functions), in paragraph 10, after “section” insert “93H or”.

Commencement Information

I757 Sch. 11 para. 13 in force at 26.12.2023 for specified purposes, see s. 255(3)(a)

- 14 In Schedule 6 (determination of appeals by appointed person)—
(a) in paragraph 1(1), after “78,” insert “93I,”;
(b) in paragraph 2(1), after paragraph (a) insert—
“(zaa) in relation to an appeal under section 93I, as the Secretary of State has under that section;”.

Commencement Information

I758 Sch. 11 para. 14 in force at 26.12.2023 for specified purposes, see s. 255(3)(a)

- 15 In Schedule 16 (provisions referred to in sections 314 to 319), in Part 2, after the entry relating to sections 91 to 93 insert—
“Sections 93H to 93J”.

Commencement Information

I759 Sch. 11 para. 15 in force at 26.12.2023 for specified purposes, see s. 255(3)(a)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

PROSPECTIVE	
SCHEDULE 12	
INFRASTRUCTURE LEVY	
PART 1	
INFRASTRUCTURE LEVY: ENGLAND	
1	After Part 10 of the Planning Act 2008 insert—
“PART 10A	
INFRASTRUCTURE LEVY: ENGLAND	
204A The levy	
(1) The Secretary of State may with the consent of the Treasury make regulations providing for the imposition, in England, of a charge to be known as Infrastructure Levy (IL).	
(2) In making the regulations, the Secretary of State must aim to ensure that the overall purpose of IL is to ensure that costs incurred in—	
(a) supporting the development of an area, and	
(b) achieving any purpose specified under section 204N(5), 204O(3) or 204P(3),	
can be funded (wholly or partly) by owners or developers of land in a way that does not make development of the area economically unviable.	
(3) The Table describes the provisions of this Part.	
Section	Topic
Section 204B	The charge
Section 204C	Joint committees
Sections 204D and 204E	Liability
Section 204F	Charities
Section 204G	Amount
Sections 204H to 204M	Charging schedule
Sections 204N to 204P	Application
Section 204Q	Infrastructure delivery strategy
Section 204R	Collection
Section 204S	Enforcement

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Section	Topic
Section 204T	Compensation
Section 204U	Procedure
Section 204V	Appeals
Sections 204W to 204Y	Secretary of State: powers
Section 204Z1	IL regulations: general
Section 204Z2	Relationship with other powers

(4) In this Part—

“affordable housing” means—

- (a) social housing within the meaning of Part 2 of the Housing and Regeneration Act 2008, and
- (b) any other description of housing that IL regulations may specify;

“IL” has the meaning given in [subsection \(1\)](#);

“IL regulations” means regulations under this section.

204B The charge

(1) A charging authority in England must, in accordance with IL regulations, charge IL in respect of development in its area.

(2) A local planning authority is the charging authority for its area.

(3) But—

- (a) the Council of the Isles of Scilly is the only charging authority for the Isles of Scilly, and
- (b) the Homes and Communities Agency is the charging authority for an area only to the extent provided in a designation order made under section 13 of the Housing and Regeneration Act 2008.

(4) IL regulations may provide for any of the following to be the charging authority for an area in England in place of the charging authority under [subsection \(2\)](#) or [\(3\)\(a\)](#)—

- (a) a county council in England,
- (b) a district council,
- (c) a metropolitan district council, and
- (d) a London borough council (within the meaning of TCPA 1990).

(5) In this section, “local planning authority” has the meaning given by [section 15LH](#) of PCPA 2004, except that a development corporation is a local planning authority for the purposes of this section only if it is the local planning authority for the whole of its area for all purposes of Part 2 of PCPA 2004.

(6) IL regulations may make transitional provision in connection with, or in anticipation of, any person or body—

- (a) becoming a charging authority, or
- (b) ceasing to be a charging authority.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

204C Joint committees

- (1) This section applies if a joint committee that includes a charging authority is established under section 15J of PCPA 2004.
- (2) IL regulations may provide that the joint committee is to exercise specified functions, in respect of the area specified in the agreement under section 15J(1) of PCPA 2004, on behalf of the charging authority.
- (3) The regulations may make provision corresponding to provisions relating to joint committees in Part 6 of the Local Government Act 1972 in respect of the discharge of the specified functions.

204D Liability

- (1) Where liability to IL would arise in respect of proposed development (in accordance with provision made by a charging authority under and by virtue of section 204B and IL regulations) a person may assume liability to pay the levy.
- (2) An assumption of liability—
 - (a) may be made before development commences, and
 - (b) must be made in accordance with any provision of IL regulations about the procedure for assuming liability.
- (3) A person who assumes liability for IL before the commencement of development becomes liable when development is commenced in reliance on planning permission.
- (4) IL regulations must make provision for an owner or developer of land or another specified person to be liable for IL where development is commenced in reliance on planning permission if—
 - (a) nobody assumes liability in accordance with the regulations, or
 - (b) other specified circumstances arise (such as the insolvency or withdrawal of a person who has assumed liability).
- (5) IL regulations may make provision about—
 - (a) joint liability (with or without several liability);
 - (b) liability of partnerships;
 - (c) assumption of partial liability (and subsection (4)(a) applies where liability has not been wholly assumed);
 - (d) apportionment of liability (which may include provision for referral to a specified person or body for determination);
 - (e) withdrawal of assumption of liability;
 - (f) cancellation of assumption of liability by a charging authority (in which case subsection (4)(a) applies);
 - (g) transfer of liability (whether before or after development commences and whether or not liability has been assumed);
 - (h) exemption from, or reduction in, liability.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (6) The amount of any liability for IL is to be calculated by reference to the charging schedule which has effect at the time when planning permission first permits the development as a result of which the levy becomes payable.
- (7) IL regulations may make provision for liability for IL to arise where development which requires planning permission is commenced without it (and subsection (6) is subject to this subsection).
- (8) IL regulations may provide for liability to IL to arise in respect of a development where—
 - (a) the development was exempt from IL, or subject to a reduced rate of IL, and
 - (b) the description or purpose of the development changes.

204E Liability: interpretation of key terms

- (1) In section 204D “development” means—
 - (a) anything done by way of or for the purpose of the creation of a new building,
 - (b) anything done to or in respect of an existing building, or
 - (c) any change in the use of an existing building or part of a building.
- (2) IL regulations may provide for—
 - (a) works, or changes in use, of a specified kind not to be treated as development;
 - (b) the creation of, or anything done to or in respect of, a structure of a specified kind to be treated as development.
- (3) IL regulations must include provision for determining when development is treated as commencing.
- (4) Regulations under subsection (3) may, in particular, provide for development to be treated as commencing when some specified activity or event is undertaken or occurs, where the activity or event—
 - (a) is not development within the meaning of subsection (1), but
 - (b) has a specified kind of connection with a development within the meaning of that subsection.
- (5) IL regulations must define planning permission (which may include planning permission within the meaning of TCPA 1990 and any other kind of permission or consent (however called, and whether general or specific)).
- (6) IL regulations must include provision for determining the time at which planning permission is treated as first permitting development; and the regulations may, in particular, make provision—
 - (a) about outline planning permission;
 - (b) for permission to be treated as having been given at a particular time in the case of general consents.
- (7) For the purposes of section 204D—
 - (a) “owner” of land means a person who owns an interest in the land, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) “developer” means a person who is wholly or partly responsible for carrying out a development.

- (8) IL regulations may make provision for a person to be or not to be treated as an owner or developer of land in specified circumstances.

204F Charities

- (1) IL regulations must provide for an exemption from liability to pay IL in respect of a development where—
 - (a) the person who would otherwise be liable to pay IL in respect of the development is a relevant charity in England and Wales, and
 - (b) the building or structure in respect of which IL liability would otherwise arise is to be used wholly or mainly for a charitable purpose of the charity within the meaning of section 2 of the Charities Act 2011.
- (2) IL regulations may—
 - (a) provide for an exemption from liability to pay IL where the person who would otherwise be liable to pay IL in respect of the development is an institution established for a charitable purpose;
 - (b) require charging authorities to make arrangements for an exemption from, or reduction in, liability to pay IL where the person who would otherwise be liable to pay IL in respect of the development is an institution established for a charitable purpose.
- (3) Regulations under subsection (1) or (2) may provide that an exemption or reduction does not apply if specified conditions are satisfied.
- (4) For the purposes of subsection (1), a relevant charity in England and Wales is an institution which—
 - (a) is registered in the register of charities kept by the Charity Commission under section 29 of the Charities Act 2011, or
 - (b) is a charity within the meaning of section 1(1) of the Charities Act 2011 but is not required to be registered in the register kept under section 29 of that Act.
- (5) In subsection (2), a charitable purpose is a purpose falling within section 3(1) of the Charities Act 2011; but IL regulations may provide for an institution of a specified kind to be, or not to be, treated as an institution established for a charitable purpose.

204G Amount

- (1) A charging authority must, in accordance with IL regulations, issue a document (a “charging schedule”) setting rates, or other criteria, by reference to which the amount of IL chargeable in respect of development in its area is to be determined.
- (2) A charging authority, in setting rates or other criteria, must, to the extent and in the manner specified by IL regulations, seek to ensure that—
 - (a) the level of affordable housing which is funded by developers and provided in the authority’s area, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) the level of funding provided by developers of affordable housing provided in the authority's area,
can be maintained at a level which, over a specified period, is equal to or exceeds the level of such housing and funding provided over an earlier specified period of the same length.
- (3) Subsection (2) does not apply if the charging authority considers that complying with it would make development of the authority's area economically unviable.
- (4) The references in subsection (2) to the funding of affordable housing by developers are to its funding by developers through IL or by any other means.
- (5) For the purposes of subsection (2), IL regulations may make provision about—
 - (a) how the level of affordable housing provided in the area is to be measured, and
 - (b) how the level of funding provided by developers is to be measured.
- (6) A charging authority, in setting rates or other criteria, must have regard, to the extent and in the manner specified by IL regulations, to—
 - (a) matters specified by IL regulations relating to the economic viability of development (which may include, in particular, actual or potential economic effects of the imposition of IL);
 - (b) matters specified by IL regulations relating to the actual or potential economic effects (including increases in the value of land) of—
 - (i) a development plan (construed in accordance with section 38 of PCPA 2004),
 - (ii) planning permission,
 - (iii) the provision of infrastructure, or
 - (iv) any other matter that may affect the value of land;
 - (c) the amount of IL, and anything else specified in IL regulations, provided in connection with development in the authority's area over such period as may be specified in IL regulations;
 - (d) its infrastructure delivery strategy (see section 204Q).
- (7) IL regulations may make other provision about setting rates or other criteria.
- (8) The regulations may, in particular, permit or require charging authorities in setting rates or other criteria—
 - (a) to have regard, to the extent and in the manner specified by the regulations, to actual or expected administrative expenses in connection with IL;
 - (b) to have regard, to the extent and in the manner specified by the regulations, to actual and expected costs of anything other than infrastructure that is concerned with addressing demands that development places on an area (whether by reference to lists prepared by virtue of section 204N(7)(a) or otherwise);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (c) to have regard, to the extent and in the manner specified by the regulations, to other actual and expected sources of funding for anything other than infrastructure that is concerned with addressing demands that development places on an area;
 - (d) to have regard, to the extent and in the manner specified by the regulations, to values used or documents produced for other statutory purposes;
 - (e) to integrate the process, to the extent and in the manner specified by the regulations, with processes undertaken for other statutory purposes;
 - (f) to provide for rates or other criteria to change over time or on the occurrence of specified events (and, for these purposes, the regulations may make provision about how and when they are to change);
 - (g) to produce charging schedules having effect in relation to specified periods (subject to revision).
- (9) The regulations may permit or require charging schedules to adopt specified methods of calculation.
- (10) In particular, the regulations may—
- (a) permit or require charging schedules to operate by reference to descriptions or purposes of development;
 - (b) permit or require charging schedules to operate by reference to any measurement of the amount or nature of development (whether by reference to measurements of floor space, to numbers or intended uses of buildings, to numbers or intended uses of units within buildings, to allocation of space within buildings or units, to values or expected values or in any other way);
 - (c) permit or require charging schedules to operate by reference to the nature or existing use of the place where development is undertaken;
 - (d) permit or require charging schedules to operate by reference to an index used for determining a rate of inflation;
 - (e) permit or require charging schedules to operate by reference to values used or documents produced for other statutory purposes;
 - (f) provide, or permit or require provision, for differential rates, which may include provision for supplementary charges, a nil rate, increased rates or reductions;
 - (g) permit or require any threshold below which IL is charged at a nil rate or a reduced rate to be determined in a specified way, including for it to be increased or decreased by reference to the costs of development in a charging authority's area (and, for these purposes, the regulations may require the charging authority to publish information relating to the costs of development in its area).
- (11) The regulations may require a charging authority to provide estimates in connection with the IL chargeable in respect of development (including estimates of the amount of IL that is chargeable and estimates in connection with any payments in a form other than money permitted or required under section 204R(4)).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (12) A charging authority may revise or replace a charging schedule.
- (13) Subsections (2) to (10) and sections 204H to 204L apply in relation to a revision or replacement of a charging schedule as they apply in relation to a charging schedule.

204H Charging schedule: consultation and evidence

- (1) A charging authority may consult, or take other steps, in connection with the preparation of a charging schedule (subject to IL regulations).
- (2) A charging authority must use appropriate available evidence to inform the charging authority's preparation of a charging schedule.
- (3) IL regulations may make provision about the application of subsection (2) including, in particular—
 - (a) provision as to evidence that is to be taken to be appropriate,
 - (b) provision as to evidence that is to be taken to be not appropriate,
 - (c) provision as to evidence that is to be taken to be available,
 - (d) provision as to evidence that is to be taken to be not available,
 - (e) provision as to how evidence is, and as to how evidence is not, to be used,
 - (f) provision as to evidence that is, and as to evidence that is not, to be used,
 - (g) provision as to evidence that may, and as to evidence that need not, be used, and
 - (h) provision as to how the use of evidence is to inform the preparation of a charging schedule.

204I Charging schedule: examination

- (1) Before approving a charging schedule a charging authority must appoint a person (“the examiner”) to examine a draft.
- (2) The charging authority must appoint someone who, in the opinion of the authority—
 - (a) is independent of the charging authority, and
 - (b) has appropriate qualifications and experience.
- (3) The charging authority may, with the agreement of the examiner, appoint persons to assist the examiner.
- (4) In this section and section 204J, “the drafting requirements” means the requirements of this Part and IL regulations (including the requirements to have regard to the matters listed in section 204G(2), (6) and (8)), so far as relevant to the drafting of the schedule.
- (5) The examiner must consider whether the drafting requirements have been complied with and—
 - (a) make recommendations in accordance with section 204J, and
 - (b) give reasons for the recommendations.
- (6) The charging authority must publish the recommendations and reasons.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (7) IL regulations must require a charging authority to allow anyone who makes representations about a draft charging schedule to be heard by the examiner; and the regulations may make provision about timing and procedure.
- (8) IL regulations may make provision for examiners to reconsider their decisions with a view to correcting errors (before or after the approval of a charging schedule).
- (9) The charging authority may withdraw a draft charging schedule.

204J Charging schedule: examiner's recommendations

- (1) This section applies in relation to the examination, under section 204I, of a draft charging schedule.
- (2) If the examiner considers—
 - (a) that there is any respect in which the drafting requirements have not been complied with, and
 - (b) that the non-compliance with the drafting requirements cannot be remedied by the making of modifications to the draft,
 the examiner must recommend that the draft be rejected.
- (3) Subsection (4) applies if the examiner considers—
 - (a) that there is any respect in which the drafting requirements have not been complied with, and
 - (b) that the non-compliance with the drafting requirements could be remedied by the making of modifications to the draft.
- (4) The examiner must—
 - (a) specify the respects in which the drafting requirements have not been complied with,
 - (b) recommend modifications that the examiner considers sufficient and necessary to remedy that non-compliance, and
 - (c) recommend that the draft be approved with—
 - (i) those modifications, or
 - (ii) other modifications sufficient and necessary to remedy that non-compliance.
- (5) Subject to subsections (2) to (4), the examiner must recommend that the draft be approved.
- (6) If the examiner makes recommendations under subsection (4), the examiner may recommend other modifications with which the draft should be approved in the event that it is approved.
- (7) If the examiner makes recommendations under subsection (5), the examiner may recommend modifications with which the draft should be approved in the event that it is approved.

204K Charging schedule: approval

- (1) A charging authority may approve a charging schedule only if—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) the examiner makes recommendations under section 204J(4) or (5), and
 - (b) the charging authority has had regard to those recommendations and the examiner’s reasons for them.
- (2) Accordingly, a charging authority may not approve a charging schedule if, under section 204J(2), the examiner recommends rejection.
- (3) If the examiner makes recommendations under section 204J(4), the charging authority may approve the charging schedule only if it does so with modifications that are sufficient and necessary to remedy the non-compliance specified under section 204J(4)(a) (although those modifications need not be the ones recommended under section 204J(4)(b)).
- (4) If a charging authority approves a charging schedule, it may do so with all or none, or some one or more, of the modifications (if any) recommended under section 204J(6) or (7).
- (5) The modifications with which a charging schedule may be approved include only—
 - (a) modifications required by subsection (3), and
 - (b) modifications allowed by subsection (4).
- (6) A charging authority must approve a charging schedule—
 - (a) at a meeting of the authority, and
 - (b) by a majority of votes of members present.
- (7) Subsection (8) applies if—
 - (a) the examiner makes recommendations under section 204J(4), and
 - (b) the charging schedule is approved by the charging authority.
- (8) The charging authority must publish a report setting out how the charging schedule as approved remedies the non-compliance specified under section 204J(4)(a).
- (9) IL regulations may make provision about the form or contents of a report under subsection (8).
- (10) IL regulations may make provision for the correction of errors in a charging schedule after approval.
- (11) In this section “examiner” means the examiner under section 204I.

204L Charging schedule: application and effect

- (1) A charging schedule approved under section 204K may not take effect before the charging authority issues the schedule (by publishing it).
- (2) IL regulations may, subject to subsection (1), make provision about when a charging schedule may, must or may not take effect.
- (3) IL regulations may make provision about publication of a charging schedule after approval.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) The provision that may be made under subsection (3) includes provision about information or documents that must be published alongside the charging schedule.

204M Charging schedule: due date

- (1) IL regulations may make provision as to when a charging authority must issue a charging schedule.
- (2) But the regulations may not require a charging authority to issue a charging schedule before the end of the period of 12 months beginning with the day on which the Secretary of State publishes, or provides to the authority, written notice that it will be required to issue a charging schedule.
- (3) If a charging authority does not issue its charging schedule in accordance with provision made under subsection (1), the Secretary of State may appoint a person to prepare and issue it on behalf of the charging authority.
- (4) IL regulations may make provision about—
 - (a) procedures for appointing a person under subsection (3),
 - (b) conditions which must be met before such an appointment may be made,
 - (c) procedures which must be followed by the person in preparing and issuing the charging schedule,
 - (d) the appointment of assistants for the person,
 - (e) circumstances in which the person may be replaced,
 - (f) duties of a charging authority where a person is appointed to act on its behalf under subsection (3), and
 - (g) liability for costs incurred as a result of the appointment of the person.

204N Application

- (1) Subject to this section and sections 204O(1) to (3), 204P(2) and (3), and 204T(5), IL regulations must require the authority that charges IL to apply it, or cause it to be applied, to supporting the development of an area by funding the provision, improvement, replacement, operation or maintenance of infrastructure.
- (2) IL regulations may make provision about the extent to which the IL paid to a charging authority may or must be applied to funding the provision, improvement, replacement, operation or maintenance of infrastructure of a particular description.
- (3) In this section (except subsection (4)) and sections 204G, 204O(2), 204P(2), 204Q and 204Z “infrastructure” includes—
 - (a) roads and other transport facilities,
 - (b) flood defences,
 - (c) schools and other educational facilities,
 - (d) medical facilities,
 - (e) sporting and recreational facilities,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (f) open spaces,
 - (g) affordable housing,
 - (h) facilities and equipment for emergency and rescue services,
 - (i) facilities and spaces which—
 - (i) preserve or improve the natural environment, or
 - (ii) enable or facilitate enjoyment of the natural environment, and
 - (j) facilities and spaces for the mitigation of, and adaptation to, climate change.
- (4) The regulations may amend this section so as to—
 - (a) add, remove or vary an entry in the list of matters included within the meaning of “infrastructure”;
 - (b) list matters excluded from the meaning of “infrastructure”.
- (5) The regulations may make provision about circumstances in which authorities may apply a specified amount of IL, or cause a specified amount of IL to be applied, towards specified purposes which are not mentioned in subsection (1).
- (6) The regulations may specify—
 - (a) works, installations and other facilities whose provision, improvement or replacement may or is to be, or may not be, funded by IL,
 - (b) maintenance activities and operational activities (including operational activities of a promotional kind) in connection with infrastructure that may or are to be, or may not be, funded by IL,
 - (c) things within section 204O(2)(b) that may or are to be, or may not be, funded by IL passed to a person in discharge of a duty under section 204O(1),
 - (d) things within section 204P(2)(b) that may or are to be, or may not be, funded by IL to which provision under section 204P(2) relates,
 - (e) criteria for determining the areas that may benefit from funding by IL, and
 - (f) what is to be, or not to be, treated as funding.
- (7) The regulations may—
 - (a) require charging authorities to prepare and publish a list of what is to be, or may be, wholly or partly funded by IL;
 - (b) include provision about the procedure to be followed in preparing a list (which may include provision for consultation or for the appointment of an independent person or both);
 - (c) include provision about the circumstances in which a charging authority may and may not apply IL to anything not included on the list;
 - (d) permit or require the list to be prepared and published as part of an infrastructure delivery strategy (see section 204Q).
- (8) In making provision about funding the regulations may, in particular—
 - (a) permit IL to be used to reimburse expenditure already incurred;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) permit IL to be reserved for expenditure that may be incurred in the future;
 - (c) permit IL to be applied (either generally or subject to limits set by or determined in accordance with the regulations) to administrative expenses in connection with infrastructure or anything within section 204O(2)(b) or 204P(2)(b) or in connection with IL;
 - (d) include provision for the giving of loans, guarantees or indemnities;
 - (e) make provision about the application of IL where anything to which it was to be applied no longer requires funding.
- (9) The regulations may—
- (a) require a charging authority to account separately, and in accordance with the regulations, for IL received or due;
 - (b) require a charging authority to monitor the use made and to be made of IL in its area;
 - (c) require a charging authority to report on actual or expected charging, collection and application of IL;
 - (d) permit a charging authority to cause money to be applied in respect of things done outside its area;
 - (e) permit a charging authority or other body (including a collecting authority under section 204R(7)) to spend or retain money;
 - (f) permit a charging authority to pass money to another body (and in paragraphs (a) to (e) a reference to a charging authority includes a reference to a body to which a charging authority passes money in reliance on this paragraph).

204O Duty to pass receipts to other persons

- (1) IL regulations may require that IL received in respect of development in an area is to be passed by the charging authority that charged the IL to a person other than that authority.
- (2) IL regulations must contain provision to secure that money passed to a person in discharge of a duty under subsection (1) is used to support the development of the area to which the duty relates, or of any part of that area, by funding—
 - (a) the provision, improvement, replacement, operation or maintenance of infrastructure, or
 - (b) anything else that is concerned with addressing demands that development places on an area.
- (3) The regulations may make provision about circumstances in which a specified amount of the money may be used for specified purposes which are not mentioned in subsection (2).
- (4) A duty under subsection (1) may relate to—
 - (a) the whole of a charging authority's area or the whole of the combined area of two or more charging authorities, or
 - (b) part only of such an area or combined area.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (5) IL regulations may make provision about the persons to whom IL may or must, or may not, be passed in discharge of a duty under subsection (1).
- (6) A duty under subsection (1) may relate—
 - (a) to all IL (if any) received in respect of the area to which the duty relates, or
 - (b) such part of that IL as is specified in, or determined under or in accordance with, IL regulations.
- (7) IL regulations may make provision in connection with the timing of payments in discharge of a duty under subsection (1).
- (8) IL regulations may, in relation to IL passed to a person in discharge of a duty under subsection (1), make provision about—
 - (a) accounting for the IL,
 - (b) monitoring its use,
 - (c) reporting on its use,
 - (d) responsibilities of charging authorities for things done by the person in connection with the IL,
 - (e) recovery of the IL, and any income or profits accruing in respect of it or from its application, in cases where—
 - (i) anything to be funded by it has not been provided, or
 - (ii) it has been misapplied,including recovery of sums or other assets representing it or any such income or profits, and
 - (f) use of anything recovered in cases where—
 - (i) anything to be funded by the IL has not been provided, or
 - (ii) the IL has been misapplied.
- (9) This section does not limit section 204N(9)(f).

204P Use of IL in an area to which section 204P 204O(1) duty does not relate

- (1) Subsection (2) applies where—
 - (a) there is an area to which a particular duty under section 204O(1) relates, and
 - (b) there is also an area to which that duty does not relate (“the uncovered area”).
- (2) IL regulations may provide that the charging authority that charges IL received in respect of development in the uncovered area may apply the IL, or cause it to be applied, to—
 - (a) support development by funding the provision, improvement, replacement, operation or maintenance of infrastructure, or
 - (b) support development of the uncovered area, or of any part of that area, by funding anything else that is concerned with addressing demands that development places on an area.
- (3) The regulations may make provision about circumstances in which the authority may apply a specified amount of IL, or cause a specified amount

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

of IL to be applied, towards specified purposes which are not mentioned in subsection (2).

- (4) Provision under subsection (2) may relate to the whole, or part only, of the uncovered area.
- (5) Provision under subsection (2) may relate—
 - (a) to all IL (if any) received in respect of the area to which the provision relates, or
 - (b) such part of that IL as is specified in, or determined under or in accordance with, IL regulations.

204Q Infrastructure delivery strategy

- (1) A charging authority must prepare and publish an infrastructure delivery strategy for its area.
- (2) The infrastructure delivery strategy must—
 - (a) set out the strategic plans (however expressed) of the charging authority in relation to the application of IL, and
 - (b) include such other information as may be prescribed by IL regulations.
- (3) The infrastructure delivery strategy may and, if required by IL regulations, must set out the plans (however expressed) of the charging authority in relation to the provision, improvement, replacement, operation and maintenance of infrastructure in the authority's area.
- (4) The charging authority may at any time prepare and publish a revision to, or replacement of, its infrastructure delivery strategy.
- (5) The charging authority must prepare and publish a revision to, or replacement of, its infrastructure delivery strategy if it is necessary or expedient in consequence of the publication, revision or replacement of a charging schedule in relation to the charging authority's area.
- (6) IL regulations must make provision for the independent examination of—
 - (a) infrastructure delivery strategies, and
 - (b) revisions to, or replacements of, such strategies.
- (7) The regulations must make provision for the examination to be combined with—
 - (a) an examination under this Part in relation to a charging schedule, or
 - (b) an examination under Part 2 of PCPA 2004 in relation to a local plan.
- (8) The regulations may, in particular, make provision—
 - (a) about who is to carry out the examination;
 - (b) about what the examiner must, may or may not consider;
 - (c) about the procedure to be followed;
 - (d) about recommendations, or other consequences, arising from or in connection with the examination;
 - (e) about circumstances in which an examination is not required;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (f) applying, or corresponding to, any provision made by or under this Part relating to an examination in relation to a charging schedule (with or without modifications).
- (9) The charging authority must have regard to any guidance published by the Secretary of State in relation to the preparation, publication, revision or replacement of infrastructure delivery strategies.
- (10) IL regulations may provide that a public authority other than the charging authority is to exercise a function under this section in place of, or on behalf of, the charging authority.
- (11) IL regulations must make provision about—
 - (a) the form and content of infrastructure delivery strategies;
 - (b) the publication of infrastructure delivery strategies and any related documents;
 - (c) the procedures to be followed in relation to the preparation, revision or replacement of infrastructure delivery strategies;
 - (d) consultation in connection with infrastructure delivery strategies.
- (12) IL regulations may make provision about—
 - (a) the timing of any steps in connection with the preparation, publication, revision or replacement of infrastructure delivery strategies;
 - (b) the evidence required to inform the preparation of infrastructure delivery strategies;
 - (c) the preparation of joint infrastructure delivery strategies;
 - (d) the period of time for which infrastructure delivery strategies are valid.

204R Collection

- (1) IL regulations must include provision about the collection of IL.
- (2) The regulations may make provision for payment—
 - (a) on account;
 - (b) by instalments.
- (3) The regulations may make provision about repayment (with or without interest) in cases of overpayment.
- (4) The regulations may make provision about payment in forms other than money (such as providing, improving, replacing, operating or maintaining infrastructure, making land available, carrying out works or providing services), including about what provision may or must be made by a charging authority in its charging schedule or elsewhere if payment in a form other than money is to be permitted or required.
- (5) So long as affordable housing falls within the meaning of “infrastructure” given by [section 204N\(3\)](#), regulations under subsection (4) must permit charging authorities, in the circumstances and to the extent specified in the regulations, to require IL to be paid by providing affordable housing on the development site.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (6) In subsection (5) “development site” means the site on which the development in respect of which the IL is charged takes place.
- (7) The regulations may permit or require a charging authority or other public authority to collect IL charged by another authority; and section 204N(9)(a) and (c) apply to a collecting authority in respect of collection as to a charging authority.
- (8) Regulations under this section may make provision corresponding to or applying (with or without modifications) any enactment relating to the collection of a tax.
- (9) Regulations under this section may make provision about the source of payments in respect of Crown interests.

204S Enforcement

- (1) IL regulations must include provision about enforcement of IL.
- (2) The regulations must make provision about the consequences of failure to assume liability, late payment and failure to pay.
- (3) The regulations may make provision about the consequences of failure to give a notice or to comply with another procedure under IL regulations in connection with IL.
- (4) The regulations may, in particular, include provision—
 - (a) for the payment of interest;
 - (b) for the imposition of a penalty or surcharge;
 - (c) for the suspension or cancellation of a decision relating to planning permission;
 - (d) enabling an authority to prohibit development pending assumption of liability for IL or pending payment of IL;
 - (e) conferring a power of entry onto land;
 - (f) creating a criminal offence (including, in particular, offences relating to evasion or attempted evasion or to the provision of false or misleading information or failure to provide information, and offences relating to the prevention or investigation of other offences created by the regulations);
 - (g) conferring power to prosecute an offence;
 - (h) for enforcement of sums owed (whether by action on a debt, by distraint against goods or in any other way);
 - (i) conferring jurisdiction on a court to grant injunctive or other relief to enforce a provision of the regulations (including a provision included in reliance on this section);
 - (j) for enforcement in the case of death or insolvency of a person liable for IL.
- (5) IL regulations may include provision (whether or not in the context of late payment or failure to pay) about registration or notification of actual or potential liability to IL.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (6) IL regulations may make provision for the prohibition or restriction of the use or occupation of all or part of the site of, or anything created in the course of, a development pending payment of IL in respect of the development.
- (7) IL regulations may include provision—
 - (a) for the creation of local land charges;
 - (b) for the registration of local land charges;
 - (c) for enforcement of local land charges (including, in particular, for enforcement—
 - (i) against successive owners, and
 - (ii) by way of sale or other disposal with consent of a court);
 - (d) for making entries in statutory registers;
 - (e) for the cancellation of charges and entries.
- (8) Regulations under this section may make provision corresponding to or applying (with or without modifications) any enactment relating to the enforcement of a tax.
- (9) Regulations under this section may provide that any interest, penalty or surcharge payable by virtue of the regulations is to be treated for the purposes of sections 204N to 204U as if it were IL.
- (10) The regulations providing for a surcharge or penalty must ensure that no surcharge or penalty in respect of an amount of IL exceeds the higher of—
 - (a) 40% of that amount, and
 - (b) £50,000.
- (11) But the regulations may provide for more than one surcharge or penalty to be imposed in relation to an IL charge.
- (12) The regulations may not authorise entry to a private dwelling without a warrant issued by a justice of the peace.
- (13) Regulations under this section creating a criminal offence may not provide for—
 - (a) imprisonment for a term exceeding the maximum term for summary offences, on summary conviction for an offence triable summarily only,
 - (b) imprisonment for a term exceeding the general limit in a magistrates’ court, on summary conviction for an offence triable either way, or
 - (c) imprisonment for a term exceeding 2 years, on conviction on indictment.
- (14) In subsection (13)(a), “the maximum term for summary offences” means—
 - (a) in relation to an offence committed before the time when section 281(5) of the Criminal Justice Act 2003 comes into force, 6 months;
 - (b) in relation to an offence committed after that time, 51 weeks.
- (15) In this Part a reference to administrative expenses in connection with IL includes a reference to enforcement expenses.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

204T Compensation

- (1) IL regulations may require a charging authority or other public authority to pay compensation in respect of loss or damage suffered as a result of enforcement action.
- (2) In this section, “enforcement action” means action taken under regulations under section 204S, including—
 - (a) the suspension or cancellation of a decision relating to planning permission,
 - (b) the prohibition of development pending assumption of liability for IL or pending payment of IL, and
 - (c) the prohibition or restriction of the use or occupation of all or part of the site of, or anything created in the course of, a development pending payment of IL.
- (3) The regulations must not require payment of compensation—
 - (a) to a person who has failed to satisfy a liability to pay IL, or
 - (b) in other circumstances specified by the regulations.
- (4) Regulations under this section may make provision about—
 - (a) the time and manner in which a claim for compensation is to be made, and
 - (b) the sums, or the method of determining the sums, payable by way of compensation.
- (5) IL regulations may permit or require a charging authority to apply IL (either generally or subject to limits set by or determined in accordance with the regulations) for expenditure incurred under this section.
- (6) A dispute about compensation may be referred to and determined by the Upper Tribunal.
- (7) In relation to the determination of any such question, the provisions of section 4 of the Land Compensation Act 1961 apply subject to any necessary modifications and to the provisions of IL regulations.

204U Procedure

- (1) IL regulations may include provision about procedures to be followed in connection with IL.
- (2) In particular, the regulations may make provision about—
 - (a) procedures to be followed by a charging authority in relation to charging IL;
 - (b) consultation;
 - (c) valuation, including provision about—
 - (i) what factors may, must or may not be taken into account in a valuation;
 - (ii) who may carry out a valuation;
 - (iii) the procedure for a valuation;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (iv) any documentation that must be prepared in connection with a valuation;
 - (v) the payment of fees in relation to a valuation;
 - (vi) the consequences of failing to carry out a valuation, or to prepare any documentation in connection with a valuation, in accordance with the regulations;
 - (d) the resolution of disputes;
 - (e) the time by or at which anything may or must be done;
 - (f) reports (including the publication or other treatment of reports);
 - (g) methods of publication of documents;
 - (h) making documents available for inspection;
 - (i) providing copies of documents (with or without charge);
 - (j) the form and content of documents;
 - (k) giving notice;
 - (l) serving notices or other documents;
 - (m) examinations to be held in public in the course of setting or revising rates or other criteria or of preparing lists;
 - (n) the terms and conditions of appointment of independent persons;
 - (o) remuneration and expenses of independent persons (which may be required to be paid by the Secretary of State or by a charging authority);
 - (p) other costs in connection with examinations;
 - (q) reimbursement of expenditure incurred by the Secretary of State (including provision for enforcement);
 - (r) apportionment of costs;
 - (s) combining procedures in connection with IL with procedures for another purpose of a charging authority (including a purpose of that authority in another capacity);
 - (t) procedures to be followed in connection with actual or potential liability for IL.
- (3) IL regulations may make provision about the procedure to be followed in respect of an exemption from IL or a reduction of IL; in particular, the regulations may include provision—
- (a) about the procedure for determining whether any conditions are satisfied;
 - (b) requiring a charging authority or other person to notify specified persons of any exemption or reduction;
 - (c) requiring a charging authority or other person to keep a record of any exemption or reduction;
 - (d) about what provision may or must be made by a charging authority in its charging schedule or elsewhere in connection with exemptions or reductions.
- (4) A provision of this Part conferring express power to make procedural provision in a specified context includes, in particular, power to make provision about the matters specified in subsection (2).
- (5) A power in this Part to make provision about publishing something includes a power to make provision about making it available for inspection.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (6) Sections 229 to 231 do not apply to this Part (but IL regulations may make similar provision).

204V Appeals

- (1) IL regulations may make provision about appeals in connection with IL.
- (2) Regulations under this section may, in particular, make provision about—
 - (a) who may make an appeal,
 - (b) the grounds upon which an appeal may be made,
 - (c) the court, tribunal or other person who is to determine an appeal,
 - (d) the period within which a right of appeal may be exercised,
 - (e) the procedure on an appeal, and
 - (f) the payment of fees, and award of costs, in relation to an appeal.
- (3) IL regulations must provide for a right of appeal on a question of fact in relation to the application of methods for calculating IL (including any questions in relation to valuation).
- (4) In any proceedings for judicial review of a decision on an appeal, the defendant is to be such person as is specified in the regulations (and the regulations may also specify a person who is not to be the defendant for these purposes).

204W Secretary of State: guidance

The Secretary of State may give guidance to a charging authority or other public authority (including an examiner appointed under this Part) about any matter connected with IL; and the authority must have regard to the guidance.

204X Secretary of State: power to permit alteration of IL rates and thresholds

- (1) Subsections (2) to (4) apply in relation to a charging authority—
 - (a) if the Secretary of State considers that—
 - (i) the economic viability of development, or development of a particular description, in the charging authority's area is significantly impaired, or
 - (ii) there is a substantial risk that it will become significantly impaired,
 as a result of the IL which is or will be chargeable in respect of development in that area, or
 - (b) in any other circumstances that IL regulations may specify.
- (2) The Secretary of State may publish a notice which permits the charging authority, during a period specified in the notice, to—
 - (a) amend its charging schedule so as to reduce rates of IL, or increase any threshold below which IL is charged at a nil or a reduced rate—
 - (i) in accordance with the provisions of the notice, and
 - (ii) for no longer than a period specified in the notice;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) amend its charging schedule so as to cancel, or delay for no longer than a period specified in the notice—
 - (i) any increase in rates of IL, or
 - (ii) any decrease in a threshold below which IL is charged at a nil or a reduced rate,which is to take place under the authority's charging schedule;
 - (c) cancel, or delay for no longer than a period specified in the notice, the issue of the authority's charging schedule, or any revision or replacement of the authority's charging schedule, which—
 - (i) has been approved under section 204K,
 - (ii) would result in an increase in rates of IL or a decrease in a threshold below which IL is charged at a nil or a reduced rate, but
 - (iii) has not yet taken effect.
- (3) The Secretary of State may include provision in a notice under subsection (2)(a)(i) which confers a discretionary power on the charging authority—
 - (a) with regards to how it can amend its charging schedule for the purposes of subsection (2)(a), or
 - (b) to allow for the amount of any liability to IL in respect of a development, which was first permitted by planning permission prior to the publication of the notice, to be recalculated by reference to the charging schedule as amended in accordance with the provisions of the notice (notwithstanding section 204D(6)).
- (4) Section 204G(13) does not apply in relation to an amendment of a charging schedule under subsection (2).
- (5) IL regulations may specify—
 - (a) criteria which must be met, or
 - (b) procedures which must be followed,in order for a charging authority to amend its charging schedule under subsection (2).
- (6) IL regulations may restrict the exercise of the power in subsection (2), including by specifying the extent to which rates may be reduced, or thresholds may be increased, under subsection (2)(a).
- (7) IL regulations may make consequential, transitional, transitory or saving provision in connection with, or in anticipation of, permission being given under subsection (2).

204Y Secretary of State: power to require review of charging schedules

- (1) The Secretary of State may direct a charging authority to review its charging schedule—
 - (a) if the Secretary of State considers that—
 - (i) the economic viability of development, or development of a particular description, in the charging authority's area is significantly impaired, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (ii) there is a substantial risk that it will become significantly impaired,
as a result of the IL which is or will be chargeable in respect of development in that area,
 - (b) if the Secretary of State considers that a significant period of time has elapsed since the later of the time that—
 - (i) the schedule was issued,
 - (ii) the schedule was last reviewed,
 - (iii) the schedule was last revised, and
 - (iv) the schedule was last replaced, or
 - (c) in any other circumstances that IL regulations may specify.
- (2) If a charging authority is directed to review its charging schedule under subsection (1), it must—
- (a) consider whether to revise or replace the charging schedule under section 204G(12), and
 - (b) notify the Secretary of State of its decision with reasons.
- (3) If the charging authority decides to revise or replace the charging schedule, it must do so within a reasonable time.
- (4) If a charging authority has not complied with a direction given under subsection (1) within a reasonable time and to a standard which the Secretary of State considers adequate, the Secretary of State may appoint a person to do so on behalf of the charging authority.
- (5) If a person appointed under subsection (4) decides that the charging schedule should be revised or replaced, the charging authority must revise or replace the schedule accordingly within a reasonable time.
- (6) If the charging authority fails to revise or replace the charging schedule in accordance with subsection (3) or (5), the Secretary of State may appoint a person to do so on behalf of the charging authority.
- (7) IL regulations may make provision about—
- (a) procedures for appointing a person under subsection (4) or (6),
 - (b) conditions which must be met before such an appointment may be made,
 - (c) procedures which must be followed by the person in complying with a direction given under subsection (1) or revising or replacing the charging schedule under subsection (6),
 - (d) circumstances in which the person may be replaced,
 - (e) duties of a charging authority where a person is appointed to act on its behalf under subsection (4) or (6),
 - (f) liability for costs incurred as a result of the appointment of the person, and
 - (g) what constitutes a reasonable time under subsections (3) to (5).

204Z Parliamentary scrutiny: affordable housing

- (1) The Secretary of State must prepare a report which—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) provides information, in relation to each charging authority which charges IL in respect of development in its area, about the amount of affordable housing provision that has been funded by IL charged by that authority,
 - (b) assesses whether the charging of IL has resulted in more or less affordable housing being available in areas in respect of which IL is charged than would otherwise be the case, and
 - (c) sets out such other information as the Secretary of State considers appropriate in connection with the effect of IL on the provision, improvement, replacement, operation or maintenance of affordable housing or other infrastructure.
- (2) The Secretary of State must lay the report before each House of Parliament before the end of the period of 5 years beginning with the date on which the first charging schedule takes effect under this Part.
- (3) The Secretary of State must publish the report as soon as is reasonably practicable after it has been laid before each House of Parliament.

204Z1 Regulations: general

- (1) IL regulations—
 - (a) may make provision that applies generally or only to specified cases, circumstances or areas,
 - (b) may make different provision for different cases, circumstances or areas,
 - (c) may disapply any provision made by or under this Part in relation to an area, or a charging authority, specified or described in the regulations,
 - (d) may make provision requiring the provision of information in connection with IL,
 - (e) may provide, or allow a charging schedule to provide, for exceptions,
 - (f) may confer, or allow a charging schedule to confer, a discretionary power on the Secretary of State, a local authority or another specified person,
 - (g) may make provision treating CIL as if it were IL,
 - (h) may apply an enactment, with or without modifications, and
 - (i) may include provision of a kind permitted by section 232(3) (b) (and incidental, supplemental or consequential provision may include provision disapplying, modifying the effect of or amending an enactment).
- (2) IL regulations are to be made by statutory instrument.
- (3) A statutory instrument containing IL regulations may not be made unless a draft has been laid before and approved by a resolution of the House of Commons

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

204Z2 Relationship with other powers

- (1) IL regulations may include provision about how the following powers are to be used, or are not to be used—
 - (a) Part 11 (Community Infrastructure Levy) (including any power conferred by CIL regulations under that Part),
 - (b) section 70 of TCPA 1990 (planning permission),
 - (c) section 106 of TCPA 1990 (planning obligations) (including provision about obtaining sums under subsection (1)(d) of that section for use in connection with IL), and
 - (d) section 278 of the Highways Act 1980 (execution of works).
- (2) IL regulations may include provision about the exercise of any other power relating to planning or development.
- (3) IL regulations may, in particular, provide that—
 - (a) a specified matter may not, or may only, constitute a reason for granting planning permission for development in specified circumstances;
 - (b) planning permission for development may not, or may only, be granted subject to a condition which is of a specified description.
- (4) The Secretary of State may give guidance to a charging or other authority about how a power relating to planning or development is to be exercised; and authorities must have regard to the guidance.
- (5) Provision may be made under subsection (1) to (3), and guidance may be given under subsection (4), only if the Secretary of State thinks it necessary or expedient—
 - (a) in consequence of, or to supplement, provision made under section 204Z1(1)(c),
 - (b) for delivering the overall purpose of IL mentioned in section 204A(2),
 - (c) for enhancing the effectiveness, or increasing the use, of IL regulations,
 - (d) for preventing agreements, undertakings or other transactions from being used to undermine or circumvent IL regulations,
 - (e) for preventing agreements, undertakings or other transactions from being used to achieve a purpose that the Secretary of State thinks would better be achieved through the application of IL regulations, or
 - (f) for preventing or restricting the imposition of burdens, the making of agreements or the giving of undertakings, in addition to IL.
- (6) IL regulations may provide that a power to give guidance or directions may not be exercised—
 - (a) in relation to matters specified in the regulations,
 - (b) in cases or circumstances specified in the regulations,
 - (c) for a purpose specified in the regulations, or
 - (d) to an extent specified in the regulations.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I760 Sch. 12 para. 1 not in force at Royal Assent, see [s. 255\(4\)](#)

PART 2

CONSEQUENTIAL AMENDMENTS

Local Government Act 1972

- 2 In section 101 of the Local Government Act 1972 (arrangements for discharge of functions by local authorities), after subsection (6) insert—

“(6ZA) Infrastructure Levy under Part 10A of the Planning Act 2008 is not a rate for the purposes of subsection (6).”

Commencement Information

I761 Sch. 12 para. 2 not in force at Royal Assent, see [s. 255\(4\)](#)

Town and Country Planning Act 1990

- 3 In section 70(4) of the TCPA 1990 (determination of applications: general considerations), in paragraph (b) of the definition of “local finance consideration”, after “payment of” insert “Infrastructure Levy or”.

Commencement Information

I762 Sch. 12 para. 3 not in force at Royal Assent, see [s. 255\(4\)](#)

Deregulation and Contracting Out Act 1994

- 4 In section 71(3) of the Deregulation and Contracting Out Act 1994 (functions excluded from sections 69 and 70), omit the word “and” at the end of paragraph (h) and after that paragraph insert—

“(ha) sections 204R and 204S of the Planning Act 2008 (Infrastructure Levy: collection and enforcement); and”.

Commencement Information

I763 Sch. 12 para. 4 not in force at Royal Assent, see [s. 255\(4\)](#)

Planning Act 2008

- 5 The Planning Act 2008 is amended as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I764 Sch. 12 para. 5 not in force at Royal Assent, see [s. 255\(4\)](#)

- 6 In the following sections, for “Part 11”, in each place it occurs, substitute “Parts 10A and 11”—
- (a) section 32 (meaning of “development”);
 - (b) section 155(1) (when development begins);
 - (c) section 235(1) (interpretation).

Commencement Information

I765 Sch. 12 para. 6 not in force at Royal Assent, see [s. 255\(4\)](#)

- 7 In section 232(1)(d) (orders and regulations), after “Part” insert “10A or”.

Commencement Information

I766 Sch. 12 para. 7 not in force at Royal Assent, see [s. 255\(4\)](#)

Commencement Information

I764 Sch. 12 para. 5 not in force at Royal Assent, see [s. 255\(4\)](#)

I765 Sch. 12 para. 6 not in force at Royal Assent, see [s. 255\(4\)](#)

I766 Sch. 12 para. 7 not in force at Royal Assent, see [s. 255\(4\)](#)

SCHEDULE 13

Sections [90](#) and [158](#)

REGULATIONS UNDER CHAPTER 1 OF PART 3 OR PART 6: RESTRICTIONS ON DEVOLVED AUTHORITIES

No power to make provision outside devolved competence

- 1 (1) No provision may be made by a devolved authority acting alone in regulations under Chapter 1 of Part 3 or Part 6 unless the provision is within the devolved competence of the devolved authority.
- (2) See paragraphs 5 to 7 for the meaning of “devolved competence”.

Commencement Information

I767 [Sch. 13 para. 1](#) in force at 26.12.2023 for specified purposes, see [s. 255\(5\)](#)

I768 [Sch. 13 para. 1](#) in force at 31.3.2024 in so far as not already in force by [S.I. 2024/389](#), [reg. 2\(s\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Requirement for consent where it would otherwise be required

- 2
- (1) The consent of a Minister of the Crown is required before any provision is made by the Welsh Ministers acting alone in regulations under Chapter 1 of Part 3 or Part 6 so far as that provision, if contained in an Act of Senedd Cymru, would require the consent of a Minister of the Crown.
 - (2) The consent of the Secretary of State is required before any provision is made by a Northern Ireland department acting alone in regulations under Chapter 1 of Part 3 or Part 6 so far as that provision would, if contained in a Bill for an Act of the Northern Ireland Assembly, result in the Bill requiring the consent of the Secretary of State.
 - (3) Sub-paragraph (1) or (2) does not apply if—
 - (a) the provision could be contained in subordinate legislation made otherwise than under this Act by the Welsh Ministers acting alone or (as the case may be) a Northern Ireland devolved authority acting alone, and
 - (b) no such consent would be required in that case.
 - (4) The consent of a Minister of the Crown is required before any provision is made by a devolved authority acting alone in regulations under Chapter 1 of Part 3 or Part 6 so far as that provision, if contained in—
 - (a) subordinate legislation made otherwise than under this Act by the devolved authority, or
 - (b) subordinate legislation not falling within paragraph (a) and made otherwise than under this Act by a Northern Ireland devolved authority acting alone,would require the consent of a Minister of the Crown.
 - (5) Sub-paragraph (4) does not apply if—
 - (a) the provision could be contained in—
 - (i) an Act of the Scottish Parliament, an Act of Senedd Cymru or (as the case may be) an Act of the Northern Ireland Assembly, or
 - (ii) different subordinate legislation of the kind mentioned in sub-paragraph (4)(a) or (b) and of a devolved authority acting alone or (as the case may be) other person acting alone, and
 - (b) no such consent would be required in that case.

Commencement Information

I769 Sch. 13 para. 2 in force at 26.12.2023 for specified purposes, see s. 255(5)

I770 Sch. 13 para. 2 in force at 31.3.2024 in so far as not already in force by S.I. 2024/389, reg. 2(s)

Requirement for joint exercise where it would otherwise be required

- 3
- (1) No regulations may be made under Chapter 1 of Part 3 or Part 6 by the Scottish Ministers, so far as they contain provision which relates to a matter in respect of which a power to make subordinate legislation otherwise than under this Act is exercisable by the Scottish Ministers acting jointly with a Minister of the Crown, unless the regulations are, to that extent, made jointly with the Secretary of State.
 - (2) No regulations may be made under Chapter 1 of Part 3 or Part 6 by the Welsh Ministers, so far as they contain provision which relates to a matter in respect of which a power to make subordinate legislation otherwise than under this Act is

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

exercisable by the Welsh Ministers acting jointly with a Minister of the Crown, unless the regulations are, to that extent, made jointly with the Secretary of State.

- (3) No regulations may be made under Chapter 1 of Part 3 or Part 6 by a Northern Ireland department, so far as they contain provision which relates to a matter in respect of which a power to make subordinate legislation otherwise than under this Act is exercisable by—

- (a) a Northern Ireland department acting jointly with a Minister of the Crown, or
- (b) another Northern Ireland devolved authority acting jointly with a Minister of the Crown,

unless the regulations are, to that extent, made jointly with the Secretary of State.

- (4) Sub-paragraph (1), (2) or (3) does not apply if the provision could be contained in—

- (a) an Act of the Scottish Parliament, an Act of Senedd Cymru or (as the case may be) an Act of the Northern Ireland Assembly without the need for the consent of a Minister of the Crown, or
- (b) different subordinate legislation made otherwise than under this Act by—
 - (i) the Scottish Ministers acting alone,
 - (ii) the Welsh Ministers acting alone, or
 - (iii) (as the case may be), a Northern Ireland devolved authority acting alone.

Commencement Information

I771 Sch. 13 para. 3 in force at 26.12.2023 for specified purposes, see s. 255(5)

I772 Sch. 13 para. 3 in force at 31.3.2024 in so far as not already in force by S.I. 2024/389, reg. 2(s)

Requirement for consultation where it would otherwise be required

- 4 (1) No regulations may be made under Chapter 1 of Part 3 or Part 6 by the Welsh Ministers acting alone, so far as they contain provision which, if contained in an Act of Senedd Cymru, would require consultation with a Minister of the Crown, unless the regulations are, to that extent, made after consulting with the Minister of the Crown.
- (2) No regulations may be made under Chapter 1 of Part 3 or Part 6 by the Scottish Ministers acting alone, so far as they contain provision which relates to a matter in respect of which a power to make subordinate legislation otherwise than under this Act is exercisable by the Scottish Ministers after consulting with a Minister of the Crown, unless the regulations are, to that extent, made after consulting with the Minister of the Crown.
- (3) No regulations may be made under Chapter 1 of Part 3 or Part 6 by the Welsh Ministers acting alone, so far as they contain provision which relates to a matter in respect of which a power to make subordinate legislation otherwise than under this Act is exercisable by the Welsh Ministers after consulting with a Minister of the Crown, unless the regulations are, to that extent, made after consulting with the Minister of the Crown.
- (4) No regulations may be made under Chapter 1 of Part 3 or Part 6 by a Northern Ireland department acting alone, so far as they contain provision which relates to a matter in respect of which a power to make subordinate legislation otherwise than under this

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Act is exercisable by a Northern Ireland department after consulting with a Minister of the Crown, unless the regulations are, to that extent, made after consulting with the Minister of the Crown.

(5) Sub-paragraph (2), (3) or (4) does not apply if—

- (a) the provision could be contained in an Act of the Scottish Parliament, an Act of Senedd Cymru or (as the case may be) an Act of the Northern Ireland Assembly, and
- (b) there would be no requirement for the consent of a Minister of the Crown, or for consultation with a Minister of the Crown, in that case.

(6) Sub-paragraph (2), (3) or (4) does not apply if—

- (a) the provision could be contained in different subordinate legislation made otherwise than under this Act by—
 - (i) the Scottish Ministers acting alone,
 - (ii) the Welsh Ministers acting alone, or
 - (iii) (as the case may be), a Northern Ireland devolved authority acting alone, and
- (b) there would be no requirement for the consent of a Minister of the Crown, or for consultation with a Minister of the Crown, in that case.

Commencement Information

I773 Sch. 13 para. 4 in force at 26.12.2023 for specified purposes, see [s. 255\(5\)](#)

I774 Sch. 13 para. 4 in force at 31.3.2024 in so far as not already in force by [S.I. 2024/389, reg. 2\(s\)](#)

Meaning of devolved competence

5 A provision is within the devolved competence of the Scottish Ministers if—

- (a) it would be within the legislative competence of the Scottish Parliament if it were contained in an Act of that Parliament, or
- (b) it is provision which could be made in other subordinate legislation by the Scottish Ministers.

Commencement Information

I775 Sch. 13 para. 5 in force at 26.12.2023 for specified purposes, see [s. 255\(5\)](#)

I776 Sch. 13 para. 5 in force at 31.3.2024 in so far as not already in force by [S.I. 2024/389, reg. 2\(s\)](#)

6 A provision is within the devolved competence of the Welsh Ministers if—

- (a) it would be within the legislative competence of Senedd Cymru if it were contained in an Act of the Senedd (including any provision that could be made only with the consent of a Minister of the Crown), or
- (b) it is provision which could be made in other subordinate legislation by the Welsh Ministers.

Commencement Information

I777 Sch. 13 para. 6 in force at 26.12.2023 for specified purposes, see [s. 255\(5\)](#)

I778 Sch. 13 para. 6 in force at 31.3.2024 in so far as not already in force by [S.I. 2024/389, reg. 2\(s\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- 7 A provision is within the devolved competence of a Northern Ireland department if—
- (a) the provision—
 - (i) would be within the legislative competence of the Northern Ireland Assembly, if contained in an Act of that Assembly, and
 - (ii) would not, if contained in a Bill for an Act of the Northern Ireland Assembly, result in the Bill requiring the consent of the Secretary of State,
 - (b) the provision—
 - (i) amends or repeals Northern Ireland legislation, and
 - (ii) would be within the legislative competence of the Northern Ireland Assembly, if contained in an Act of that Assembly, and would, if contained in a Bill for an Act of the Northern Ireland Assembly, result in the Bill requiring the consent of the Secretary of State, or
 - (c) the provision is provision which could be made in other subordinate legislation by any Northern Ireland devolved authority.

Commencement Information

I779 Sch. 13 para. 7 in force at 26.12.2023 for specified purposes, see [s. 255\(5\)](#)

I780 Sch. 13 para. 7 in force at 31.3.2024 in so far as not already in force by [S.I. 2024/389, reg. 2\(s\)](#)

Commencement Information

I775 Sch. 13 para. 5 in force at 26.12.2023 for specified purposes, see [s. 255\(5\)](#)

I776 Sch. 13 para. 5 in force at 31.3.2024 in so far as not already in force by [S.I. 2024/389, reg. 2\(s\)](#)

I777 Sch. 13 para. 6 in force at 26.12.2023 for specified purposes, see [s. 255\(5\)](#)

I778 Sch. 13 para. 6 in force at 31.3.2024 in so far as not already in force by [S.I. 2024/389, reg. 2\(s\)](#)

I779 Sch. 13 para. 7 in force at 26.12.2023 for specified purposes, see [s. 255\(5\)](#)

I780 Sch. 13 para. 7 in force at 31.3.2024 in so far as not already in force by [S.I. 2024/389, reg. 2\(s\)](#)

Interpretation

- 8 In this Schedule—

“Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975;

“Northern Ireland devolved authority” means the First Minister and deputy First Minister in Northern Ireland acting jointly, a Northern Ireland Minister or a Northern Ireland department;

“subordinate legislation” has the meaning given in section 20(1) of the European Union (Withdrawal) Act 2018.

Commencement Information

I781 Sch. 13 para. 8 in force at 26.12.2023 for specified purposes, see [s. 255\(5\)](#)

I782 Sch. 13 para. 8 in force at 31.3.2024 in so far as not already in force by [S.I. 2024/389, reg. 2\(s\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

SCHEDULE 14

Section 167(1)

EXISTING ENVIRONMENTAL ASSESSMENT LEGISLATION

PART 1

UNITED KINGDOM AND ENGLAND AND WALES

Commencement Information

I783 [Sch. 14 Pt. 1](#) in force at 26.12.2023, see [s. 255\(5\)](#)

United Kingdom and England and Wales

- Schedule 3 to the Harbours Act 1964 (procedure for making harbour revision and empowerment orders) so far as relating to environmental impact assessments;
- Part 5A of the Highways Act 1980 (environmental impact assessments);
- Sections 13A to 13D of the Transport and Works Act 1992 (environmental impact assessments);
- The Offshore Petroleum Production and Pipe-lines (Assessment of Environmental Effects) Regulations 1999 ([S.I. 1999/360](#));
- The Public Gas Transporter Pipe-line Works (Environmental Impact Assessment) Regulations 1999 ([S.I. 1999/1672](#));
- The Environmental Impact Assessment (Land Drainage Improvement Works) Regulations 1999 ([S.I. 1999/1783](#));
- The Environmental Impact Assessment (Forestry) (England and Wales) Regulations 1999 ([S.I. 1999/2228](#));
- The Nuclear Reactors (Environmental Impact Assessment for Decommissioning) Regulations 1999 ([S.I. 1999/2892](#));
- The Pipe-line Works (Environmental Impact Assessment) Regulations 2000 ([S.I. 2000/1928](#));
- The Water Resources (Environmental Impact Assessment) (England and Wales) Regulations 2003 ([S.I. 2003/164](#));
- The Environmental Assessment of Plans and Programmes Regulations 2004 ([S.I. 2004/1633](#));
- The Transport and Works (Applications and Objections Procedure)(England and Wales) Rules 2006 ([S.I. 2006/1466](#)) so far as dealing with environmental matters;
- The Environmental Impact Assessment (Agriculture) (England) (No. 2) Regulations 2006 ([S.I. 2006/2522](#));
- The Marine Works (Environmental Impact Assessment) Regulations 2007 ([S.I. 2007/1518](#));
- The Town and Country Planning (Environmental Impact Assessment) Regulations 2017 ([S.I. 2017/571](#));
- The Infrastructure Planning (Environmental Impact Assessment) Regulations 2017 ([S.I. 2017/572](#));
- The Electricity Works (Environmental Impact Assessment) (England and Wales) Regulations 2017 ([S.I. 2017/580](#));
- The Offshore Oil and Gas Exploration, Production, Unloading and Storage (Environmental Impact Assessment) Regulations 2020 ([S.I. 2020/1497](#)).

***Status:** Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

PART 2

SCOTLAND

Commencement Information

I784 [Sch. 14 Pt. 2](#) in force at 26.12.2023, see [s. 255\(5\)](#)

Scotland

- Schedule 3 to the Harbours Act 1964 so far as relating to environmental impact assessments in Scotland;
- Sections 20A to 20G, 22A, 22B and 55A to 55D of the Roads (Scotland) Act 1984 (environmental assessment of certain road construction and improvement projects);
- The Environmental Assessment (Scotland) Act 2005;
- The Transport and Works (Scotland) Act 2007;
- The Transport and Works (Scotland) Act 2007 (Applications and Objections Procedure) Rules 2007;
- The Electricity Works (Environmental Impact Assessment) (Scotland) Regulations 2017 ([S.S.I. 2017/101](#));
- The Town and Country Planning (Environmental Impact Assessment) (Scotland) Regulations 2017 ([S.S.I. 2017/102](#));
- The Forestry (Environmental Impact Assessment) (Scotland) Regulations 2017 ([S.S.I. 2017/113](#));
- The Agriculture, Land Drainage and Irrigation Projects (Environmental Impact Assessment) (Scotland) Regulations 2017 ([S.S.I. 2017/114](#));
- The Marine Works (Environmental Impact Assessment) (Scotland) Regulations 2017 ([S.S.I. 2017/115](#)).

PART 3

WALES

Commencement Information

I785 [Sch. 14 Pt. 3](#) in force at 26.12.2023, see [s. 255\(5\)](#)

Wales

- The Environmental Assessment of Plans and Programmes (Wales) Regulations 2004 ([S.I. 2004/1656](#));
- The Town and Country Planning (Environmental Impact Assessment) (Undetermined Reviews of Old Mineral Permissions) (Wales) Regulations 2009 ([S.I. 2009/3342](#));
- The Town and Country Planning (Environmental Impact Assessment) (Wales) Regulations 2016 ([S.I. 2016/58](#));
- The Environmental Impact Assessment (Agriculture) (Wales) Regulations 2017 ([S.I. 2017/565](#));
- The Town and Country Planning (Environmental Impact Assessment) (Wales) Regulations 2017 ([S.I. 2017/567](#)).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

PART 4

NORTHERN IRELAND

Commencement Information

I786 Sch. 14 Pt. 4 in force at 26.12.2023, see s. 255(5)

Northern Ireland

- Part V of the Roads (Northern Ireland) Order 1993 (S.I. 1993/3160 (N.I. 15));
- The Planning (Environmental Impact Assessment) Regulations (Northern Ireland) 1999 (S.R. (N.I.) 1999/73);
- The Environmental Assessment of Plans and Programmes Regulations (Northern Ireland) 2004 (S.R. (N.I.) 2004/280);
- The Water Resources (Environmental Impact Assessment) Regulations (Northern Ireland) 2005 (S.R. (N.I.) 2005/32);
- The Environmental Impact Assessment (Forestry) Regulations (Northern Ireland) 2006 (S.R. (N.I.) 2006/518);
- The Environmental Impact Assessment (Agriculture) Regulations (Northern Ireland) 2007 (S.R. (N.I.) 2007/421);
- The Planning Act (Northern Ireland) 2011 (c. 25 (N.I.)).

SCHEDULE 15

Section 169

AMENDMENTS OF THE CONSERVATION OF HABITATS AND SPECIES REGULATIONS 2017: ASSUMPTIONS ABOUT NUTRIENT POLLUTION STANDARDS

PART 1

INTRODUCTORY

- 1 Part 6 of the Conservation of Habitats and Species Regulations 2017 (S.I. 2017/1012) (assessment of plans and projects) is amended as set out in this Schedule.

Commencement Information

I787 Sch. 15 para. 1 in force at 26.12.2023, see s. 255(6)

PART 2

PLANNING

- 2 Chapter 2 of Part 6 of those Regulations (assessment of plans and projects: planning) is amended as follows.

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

Commencement Information

I788 Sch. 15 para. 2 in force at 26.12.2023, see s. 255(6)

- 3 In regulation 70 (grant of planning permission), after paragraph (4) insert—
“(5) See regulation 85A for the assumptions about nutrient pollution standards to be made in certain circumstances.”

Commencement Information

I789 Sch. 15 para. 3 in force at 26.12.2023, see s. 255(6)

- 4 In regulation 71 (planning permission: duty to review), after paragraph (9) insert—
“(10) See regulation 85A for the assumptions about nutrient pollution standards to be made in certain circumstances.”

Commencement Information

I790 Sch. 15 para. 4 in force at 26.12.2023, see s. 255(6)

- 5 In regulation 77 (general development orders: approval of local planning authority), after paragraph (7) insert—
“(8) See regulation 85B for the assumptions about nutrient pollution standards to be made in certain circumstances.”

Commencement Information

I791 Sch. 15 para. 5 in force at 26.12.2023, see s. 255(6)

- 6 In regulation 79 (special development orders), after paragraph (5) insert—
“(6) See regulation 85A for the assumptions about nutrient pollution standards to be made in certain circumstances.”

Commencement Information

I792 Sch. 15 para. 6 in force at 26.12.2023, see s. 255(6)

- 7 In regulation 80 (local development orders), after paragraph (5) insert—
“(6) See regulation 85A for the assumptions about nutrient pollution standards to be made in certain circumstances.”

Commencement Information

I793 Sch. 15 para. 7 in force at 26.12.2023, see s. 255(6)

- 8 In regulation 81 (neighbourhood development orders), after paragraph (5) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“(5A) See regulation 85A for the assumptions about nutrient pollution standards to be made in certain circumstances.”

Commencement Information

I794 Sch. 15 para. 8 in force at 26.12.2023, see s. 255(6)

9 In regulation 82 (simplified planning zones), after paragraph (6) insert—

“(7) See regulation 85A for the assumptions about nutrient pollution standards to be made in certain circumstances.”

Commencement Information

I795 Sch. 15 para. 9 in force at 26.12.2023, see s. 255(6)

10 In regulation 83 (enterprise zones), after paragraph (6) insert—

“(7) See regulation 85A for the assumptions about nutrient pollution standards to be made in certain circumstances.”

Commencement Information

I796 Sch. 15 para. 10 in force at 26.12.2023, see s. 255(6)

11 After regulation 85 insert—

Assumptions to be made about nutrient pollution standards: general

“85A(1) Paragraph (2) applies where—

- (a) a competent authority makes a relevant decision,
- (b) the potential development includes development in England,
- (c) the competent authority is required to make a relevant assessment before the decision is made,
- (d) waste water from any potential development would be dealt with by a plant in England that, at the time of the decision, is—
 - (i) a nitrogen significant plant, or
 - (ii) a phosphorus significant plant, and
- (e) the decision is made—
 - (i) where the plant is a non-catchment permitting area plant, before the upgrade date, or
 - (ii) where the plant is a catchment permitting area plant, before the applicable date.

(2) In making the relevant assessment, the competent authority must assume—

- (a) in a case within paragraph (1)(d)(i) and (e)(i), that the plant will meet the nitrogen nutrient pollution standard on and after the upgrade date;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) in a case within paragraph (1)(d)(ii) and (e)(i), that the plant will meet the phosphorus nutrient pollution standard on and after the upgrade date;
 - (c) in a case within paragraph (1)(d)(i) and (e)(ii), that the plant will meet the nitrogen nutrient pollution standard on and after the applicable date;
 - (d) in a case within paragraph (1)(d)(ii) and (e)(ii), that the plant will meet the phosphorus nutrient pollution standard on and after the applicable date.
- (3) Paragraph (2)—
 - (a) is subject to regulation 85C (direction that assumptions are not to apply), and
 - (b) does not prevent the competent authority, in making a relevant assessment, from having regard to outperformance, or expected outperformance, by a plant that is a non-catchment permitting area plant.
- (4) In paragraph (1) “relevant decision” means—
 - (a) where any of the following provides that the assessment provisions apply in relation to doing a thing, the decision whether or not to do it—
 - (i) regulation 70 (grant of planning permission),
 - (ii) regulation 79 (special development orders),
 - (iii) regulation 80 (local development orders),
 - (iv) regulation 81 (neighbourhood development orders),
 - (v) regulation 82 (simplified planning zones), or
 - (vi) regulation 83 (enterprise zones), or
 - (b) where any of the following provides that the review provisions apply in relation to a matter, a decision under regulation 65(1)(b) on a review of the matter—
 - (i) regulation 71 (planning permission: duty to review),
 - (ii) regulation 79 (special development orders),
 - (iii) regulation 80 (local development orders),
 - (iv) regulation 81 (neighbourhood development orders),
 - (v) regulation 82 (simplified planning zones), or
 - (vi) regulation 83 (enterprise zones);

but this does not apply to a matter mentioned in regulation 71(4) (any review of which would be conducted in accordance with another Chapter).
- (5) In paragraph (1) “potential development”, in relation to a relevant decision, means development—
 - (a) that could be carried out by virtue of the planning permission, development order or scheme to which the decision relates, or
 - (b) to which the decision otherwise relates.
- (6) In this regulation “relevant assessment” means—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) where the assessment provisions apply and an appropriate assessment of the implications of the plan or project for a site is required by regulation 63(1), that assessment;
- (b) where the review provisions apply and an appropriate assessment is required by regulation 65(2), that assessment.

Assumptions to be made about nutrient pollution standards: general development orders

85B (1) This regulation applies where—

- (a) a local planning authority (within the meaning given by regulation 78(1)) makes a decision on an application under regulation 77 (general development orders: approval of local planning authority) for approval as mentioned in regulation 75 relating to proposed development in England,
- (b) the authority is required by regulation 77(6) to make an appropriate assessment of the implications of the proposed development,
- (c) any waste water from the proposed development would be dealt with by a plant in England that, at the time of the decision, is—
 - (i) a nitrogen significant plant, or
 - (ii) a phosphorus significant plant, and
- (d) the decision is made—
 - (i) where the plant is a non-catchment permitting area plant, before the upgrade date, or
 - (ii) where the plant is a catchment permitting area plant, before the applicable date.

(2) In making the relevant assessment the local planning authority must assume—

- (a) in a case within paragraph (1)(c)(i) and (d)(i), that the plant will meet the nitrogen nutrient pollution standard on and after the upgrade date;
- (b) in a case within paragraph (1)(c)(ii) and (d)(i), that the plant will meet the phosphorus nutrient pollution standard on and after the upgrade date;
- (c) in a case within paragraph (1)(c)(i) and (d)(ii), that the plant will meet the nitrogen nutrient pollution standard on and after the applicable date;
- (d) in a case within paragraph (1)(c)(ii) and (d)(ii), that the plant will meet the phosphorus nutrient pollution standard on and after the applicable date.

(3) Paragraph (2)—

- (a) is subject to regulation 85C (direction that assumptions are not to apply), and
- (b) does not prevent the local planning authority, in making a relevant assessment, from having regard to any outperformance, or expected outperformance, by a plant that is a non-catchment permitting area plant.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Direction that assumptions are not to apply

- 85C (1) The assumptions in regulations 85A(2) and 85B(2) do not apply in relation to a particular plant and a particular nutrient pollution standard if the Secretary of State so directs.
- (2) A direction under this regulation may be made in relation to a plant and a standard only if the Secretary of State is satisfied—
- (a) where the plant is a non-catchment permitting area plant, that the plant will not be able to meet the standard by the upgrade date;
 - (b) where the plant is a catchment permitting area plant—
 - (i) that the plant will not be able to meet the standard by the applicable date, or
 - (ii) that the first effect described in paragraph (4) will, on the applicable date, be more significant than the second effect described in that paragraph.
- (3) The Secretary of State may revoke a direction under this regulation if satisfied—
- (a) where the plant is a non-catchment permitting area plant, that the plant will meet the standard by the upgrade date;
 - (b) where the plant is a catchment permitting area plant—
 - (i) that the plant will meet the standard by the applicable date, or
 - (ii) that the first effect described in paragraph (4) will, on the applicable date, be the same or less significant than the second effect described in that paragraph.
- (4) For the purposes of paragraphs (2)(b) and (3)(b)—
- (a) the “first effect” is the overall effect on the habitats site associated with the catchment permitting area of nutrients in treated effluent discharged by all plants that discharge into the area;
 - (b) the “second effect” is the overall effect on the site of nutrients in treated effluent that would be discharged by all plants that discharge into the area if—
 - (i) the upgrade date that applied to nutrient significant plants that discharge into the area was the same as the applicable date,
 - (ii) the standard concentration (of nutrients) applied to those nutrient significant plants, and
 - (iii) those nutrient significant plants were (on that basis) meeting the nutrient pollution standard on the applicable date.
- (5) In deciding whether to make a direction under this regulation in relation to a plant and a standard, the Secretary of State may, in particular, have regard—
- (a) where the plant is a non-catchment permitting area plant, to when the plant can be expected to meet the standard;
 - (b) where the plant is a catchment permitting area plant, to when—
 - (i) the plant can be expected to meet the standard, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (ii) the sewerage undertaker for the plant can be expected to be in compliance with conditions in the environmental permit for the plant imposed in pursuance of section 96G(3)(b) of the Water Industry Act 1991.
- (6) Before making or revoking a direction under this regulation, the Secretary of State must consult—
 - (a) the Environment Agency,
 - (b) Natural England,
 - (c) the Water Services Regulation Authority,
 - (d) any local planning authority who it appears to the Secretary of State would be affected by the direction or revocation,
 - (e) the sewerage undertaker whose sewerage system includes the plant, and
 - (f) any other persons that the Secretary of State considers appropriate.
- (7) A direction or revocation under this regulation—
 - (a) is to be made in writing, and
 - (b) takes effect—
 - (i) on the day specified in the direction or revocation, or
 - (ii) if none is specified, on the day on which it is made.
- (8) As soon as practicable after making or revoking a direction under this regulation, the Secretary of State must—
 - (a) notify—
 - (i) the Environment Agency,
 - (ii) Natural England,
 - (iii) every local planning authority who appears to the Secretary of State to be affected by the direction or revocation, and
 - (iv) any other persons that the Secretary of State considers appropriate, and
 - (b) publish the direction or revocation.

Regulations 85A to 85C: interpretation

85D(1) In regulations 85A to 85C and this regulation, the following terms have the meanings given by section 96L of the Water Industry Act 1991—

- “catchment permitting area”;
- “environmental permit”;
- “habitats site”;
- “nitrogen significant plant”;
- “nitrogen nutrient pollution standard”;
- “nutrient pollution standard”;
- “nutrient significant plant”;
- “phosphorus significant plant”;
- “phosphorus nutrient pollution standard”;
- “plant”;
- “sensitive catchment area”;
- “sewerage system”, in relation to a sewerage undertaker;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“standard concentration”;

“treated effluent”;

“upgrade date”.

(2) In regulations [85A](#) to [85C](#) and this regulation—

“catchment permitting area plant” means a nutrient significant plant that discharges (or will discharge) treated effluent into a catchment permitting area;

“non-catchment permitting area plant” means a nutrient significant plant that discharges (or will discharge) treated effluent into a sensitive catchment area other than a catchment permitting area.

(3) For the purposes of regulations [85A](#) and [85B](#), “outperformance” by a plant, which is a non-catchment permitting area plant and in relation to a nutrient pollution standard, occurs where—

- (a) the plant meets the standard before the upgrade date, or
- (b) the total nitrogen concentration (in the case of a nitrogen significant plant), or total phosphorus concentration (in the case of a phosphorus significant plant), in treated effluent that it discharges is less than the concentration specified in [section 96F\(1\)\(a\)\(i\)](#) or [\(2\)\(a\)\(i\)](#), under [section 96C\(4\)\(e\)](#) or [96D\(5\)](#) or by virtue of regulations made under [section 96D\(11\)](#) (as the case may be) of the Water Industry Act 1991 that applies to the plant.

(4) For the purposes of regulations [85A](#) and [85B](#), the “applicable date”, in relation to a catchment permitting area, is to be determined in accordance with [section 96G\(6\)\(a\)](#) of the Water Industry Act 1991.

(5) For the purposes of regulation [85C\(4\)](#)—

- (a) a habitats site is “associated” with a catchment permitting area if water released into the area would drain into the site;
- (b) “nutrients”—
 - (i) in relation to an area designated under [section 96C\(1\)](#) of the Water Industry Act 1991, means nutrients comprising nitrogen or compounds of nitrogen;
 - (ii) in relation to an area designated under [section 96C\(2\)](#) of that Act, means nutrients comprising phosphorus or compounds of phosphorus.”

Commencement Information

I797 [Sch. 15 para. 11](#) in force at 26.12.2023, see [s. 255\(6\)](#)

PART 3

LAND USE PLANS

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I798 Sch. 15 para. 12 in force at 26.12.2023, see s. 255(6)

- 13 In regulation 105 (assessment of implications for European sites and European offshore marine sites), after paragraph (6) insert—

“(7) See regulation 110A for the assumptions about nutrient pollution standards to be made in certain circumstances.”

Commencement Information

I799 Sch. 15 para. 13 in force at 26.12.2023, see s. 255(6)

- 14 In regulation 106 (assessment of implications for European site: neighbourhood development plans), after paragraph (3) insert—

“(3A) See regulation 110A for the assumptions about nutrient pollution standards to be made in certain circumstances.”

Commencement Information

I800 Sch. 15 para. 14 in force at 26.12.2023, see s. 255(6)

- 15 In regulation 110 (national policy statements), in paragraph (3)(a), for “and 108” substitute “, 108 and 110A”.

Commencement Information

I801 Sch. 15 para. 15 in force at 26.12.2023, see s. 255(6)

- 16 After regulation 110 insert—

Assessments under this Chapter: required assumptions

“110A) This regulation applies where—

- (a) a plan-making authority makes a relevant decision in relation to a land use plan relating to an area in England,
- (b) the authority is required to make a relevant assessment before the decision is made,
- (c) waste water from the area to which the plan relates could be dealt with by a plant in England that, at the time of the decision, is—
 - (i) a nitrogen significant plant, or
 - (ii) a phosphorus significant plant, and
- (d) the decision is made—
 - (i) where the plant is a non-catchment permitting area plant, before the upgrade date, or
 - (ii) where the plant is a catchment permitting area plant, before the applicable date.

(2) In making the relevant assessment, the authority must assume—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) in a case within paragraph (1)(c)(i) and (d)(i), that the plant will meet the nitrogen nutrient pollution standard on and after the upgrade date;
 - (b) in a case within paragraph (1)(c)(ii) and (d)(i), that the plant will meet the phosphorus nutrient pollution standard on and after the upgrade date;
 - (c) in a case within paragraph (1)(c)(i) and (d)(ii), that the plant will meet the nitrogen nutrient pollution standard on and after the applicable date;
 - (d) in a case within paragraph (1)(c)(ii) and (d)(ii), that the plant will meet the phosphorus nutrient pollution standard on and after the applicable date.
- (3) Paragraph (2)—
- (a) is subject to regulation 110B (direction that assumptions are not to apply), and
 - (b) does not prevent the authority, in making a relevant assessment, from having regard to any outperformance, or expected outperformance, by a plant that is a non-catchment permitting area plant.
- (4) In paragraph (1) “relevant decision” means—
- (a) a decision whether to give effect to a land use plan, or
 - (b) a decision whether to modify or revoke a neighbourhood development plan.
- (5) In this regulation “relevant assessment”, in relation to a land use plan, means—
- (a) in relation to a decision within paragraph (4)(a), where an appropriate assessment of the implications for a site of the land use plan is required by regulation 105(1), that assessment;
 - (b) in relation to a decision within paragraph (4)(b), where such an assessment is required by regulation 105(1) as applied by regulation 106(3), that assessment.

Direction that assumptions are not to apply

- 110B(1) The assumptions in regulation 110A(2) do not apply in relation to a particular plant and a particular nutrient pollution standard if the Secretary of State so directs.
- (2) A direction under this regulation may be made in relation to a plant and a standard only if the Secretary of State is satisfied—
- (a) where the plant is a non-catchment permitting area plant, that the plant will not be able to meet the standard by the upgrade date;
 - (b) where the plant is a catchment permitting area plant—
 - (i) that the plant will not be able to meet the standard by the applicable date, or
 - (ii) that the first effect described in paragraph (4) will, on the applicable date, be more significant than the second effect described in that paragraph.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3) The Secretary of State may revoke a direction under this regulation if satisfied—
 - (a) where the plant is a non-catchment permitting area plant, that the plant will meet the standard by the upgrade date;
 - (b) where the plant is a catchment permitting area plant—
 - (i) that the plant will meet the standard by the applicable date, or
 - (ii) that the first effect described in paragraph (4) will, on the applicable date, be the same or less significant than the second effect described in that paragraph.
- (4) For the purposes of paragraphs (2)(b) and (3)(b)—
 - (a) the “first effect” is the overall effect on the habitats site associated with the catchment permitting area of nutrients in treated effluent discharged by all plants that discharge into the area;
 - (b) the “second effect” is the overall effect on the site of nutrients in treated effluent that would be discharged by all plants that discharge into the area if—
 - (i) the upgrade date that applied to nutrient significant plants that discharge into the area was the same as the applicable date,
 - (ii) the standard concentration (of nutrients) applied to those nutrient significant plants, and
 - (iii) those nutrient significant plants were (on that basis) meeting the nutrient pollution standard on the applicable date.
- (5) In deciding whether to make a direction under this regulation in relation to a plant and a standard, the Secretary of State may, in particular, have regard—
 - (a) where the plant is a non-catchment permitting area plant, to when the plant can be expected to meet the standard;
 - (b) where the plant is a catchment permitting area plant, to when—
 - (i) the plant can be expected to meet the standard, and
 - (ii) the sewerage undertaker for the plant can be expected to be in compliance with conditions in the environmental permit for the plant imposed in pursuance of section 96G(3)(b) of the Water Industry Act 1991.
- (6) Before making or revoking a direction under this regulation, the Secretary of State must consult—
 - (a) the Environment Agency,
 - (b) Natural England,
 - (c) the Water Services Regulation Authority,
 - (d) any plan-making authority who it appears to the Secretary of State would be affected by the direction or revocation,
 - (e) the sewerage undertaker whose sewerage system includes the plant, and
 - (f) any other persons that the Secretary of State considers appropriate.
- (7) A direction or revocation under this regulation—
 - (a) is to be made in writing, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) takes effect—
 - (i) on the day specified in the direction or revocation, or
 - (ii) if none is specified, on the day on which it is made.
- (8) As soon as practicable after making or revoking a direction under this regulation, the Secretary of State must—
 - (a) notify—
 - (i) the Environment Agency,
 - (ii) Natural England,
 - (iii) every plan-making authority who appears to the Secretary of State to be affected by the direction or revocation, and
 - (iv) any other persons that the Secretary of State considers appropriate, and
 - (b) publish the direction or revocation.

Regulations 110A and 110B: interpretation

- 110(1) In regulations 110A and 110B and this regulation, the following terms have the meanings given by section 96L of the Water Industry Act 1991—
- “catchment permitting area”;
 - “environmental permit”;
 - “habitats site”;
 - “nitrogen significant plant”;
 - “nitrogen nutrient pollution standard”;
 - “nutrient pollution standard”;
 - “nutrient significant plant”;
 - “phosphorus significant plant”;
 - “phosphorus nutrient pollution standard”;
 - “plant”;
 - “sensitive catchment area”;
 - “sewerage system”, in relation to a sewerage undertaker;
 - “standard concentration”;
 - “treated effluent”;
 - “upgrade date”.
- (2) In regulations 110A and 110B and this regulation—
- “catchment permitting area plant” means a nutrient significant plant that discharges (or will discharge) treated effluent into a catchment permitting area;
 - “non-catchment permitting area plant” means a nutrient significant plant that discharges (or will discharge) treated effluent into a sensitive catchment area other than a catchment permitting area.
- (3) For the purposes of regulation 110A, “outperformance” by a plant, which is a non-catchment permitting area plant and in relation to a nutrient pollution standard, occurs where—
- (a) the plant meets the standard before the upgrade date, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) the total nitrogen concentration (in the case of a nitrogen significant plant), or total phosphorus concentration (in the case of a phosphorus significant plant), in treated effluent that it discharges is less than the concentration specified in section 96F(1)(a)(i) or (2)(a)(i), under section 96C(6)(e) or 96D(5) or by virtue of regulations made under section 96D(11) (as the case may be) of the Water Industry Act 1991 that applies to the plant.
- (4) For the purposes of regulations [110A](#) and [110B](#), the “applicable date”, in relation to a catchment permitting area, is to be determined in accordance with section 96G(6)(a) of the Water Industry Act 1991.
- (5) For the purposes of regulation [110B\(4\)](#)—
 - (a) a habitats site is “associated” with a catchment permitting area if water released into the area would drain into the site;
 - (b) “nutrients”—
 - (i) in relation to an area designated under section 96C(2) of the Water Industry Act 1991, means nutrients comprising nitrogen or compounds of nitrogen;
 - (ii) in relation to an area designated under section 96C(3) of that Act, means nutrients comprising phosphorus or compounds of phosphorus.”

Commencement Information

I802 [Sch. 15 para. 16](#) in force at 26.12.2023, see [s. 255\(6\)](#)

PROSPECTIVE

SCHEDULE 16

Section [173](#)

LOCALLY-LED DEVELOPMENT CORPORATIONS: MINOR AND CONSEQUENTIAL AMENDMENTS

[Local Government, Planning and Land Act 1980 \(c. 65\)](#)

- 1 The Local Government, Planning and Land Act 1980 is amended as follows.

Commencement Information

I803 [Sch. 16 para. 1](#) not in force at Royal Assent, see [s. 255\(7\)](#)

- 2 (1) Section 134 (urban development areas) is amended as follows.
- (2) In subsection (1)—
- (a) for “the Secretary of State” substitute “the appropriate national authority”;
 - (b) for “he” substitute “the authority”.
- (3) In subsection (3A), for “The Secretary of State” substitute “The appropriate national authority”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) In subsection (3B), for “the Secretary of State” substitute “the appropriate national authority”.
- (5) After subsection (3B) insert—
 - “(3C) The Secretary of State may not make an order under subsection (3A) in relation to an urban development area designated under subsection (1B) except with the consent of the oversight authority.”
- (6) In subsection (4), after “(1)” insert “or (1B)”.
- (7) In subsection (4A), after “(1)” insert “or (1B)”.
- (8) In subsection (4B), omit “(by virtue of paragraph 30 of Schedule 11 to the Government of Wales Act 2006)”.
- (9) In subsection (4C), omit “(by virtue of section 53 of the Scotland Act 1998)”.
- (10) In subsection (5)—
 - (a) omit paragraph (a);
 - (b) in paragraph (b), for “the Secretary of State” substitute “the appropriate national authority”.
- (11) After subsection (5) insert—
 - “(6) An order under subsection (3A)—
 - (a) in the case of an order made by the Secretary of State, is to be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament;
 - (b) in the case of an order made by the Welsh Ministers, is to be made by statutory instrument subject to annulment in pursuance of a resolution of Senedd Cymru;
 - (c) in the case of an order made by the Scottish Ministers, is subject to the negative procedure (see Part 2 of the Interpretation and Legislative Reform (Scotland) Act 2010 (asp 10)).
 - (7) In this section, “the appropriate national authority” means—
 - (a) the Secretary of State in relation to England;
 - (b) the Welsh Ministers in relation to Wales;
 - (c) the Scottish Ministers in relation to Scotland.”

Commencement Information

1804 Sch. 16 para. 2 not in force at Royal Assent, see [s. 255\(7\)](#)

- 3 (1) Section 135 (urban development corporations) is amended as follows.
- (2) In subsection (2), after “134(1)” insert “or (1B)”.
- (3) At the end insert—
 - “(7) In this section “local authority” has the same meaning as in section 134A (see subsection (10) of that section).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I805 Sch. 16 para. 3 not in force at Royal Assent, see [s. 255\(7\)](#)

- 4 In section 140 (consultation with local authorities), in subsection (1), after “corporation” insert “, other than a locally-led urban development corporation,”.

Commencement Information

I806 Sch. 16 para. 4 not in force at Royal Assent, see [s. 255\(7\)](#)

- 5 (1) Section 171 (interpretation: general) is amended as follows.
- (2) After the definition of “the 1997 Act” insert—
- ““locally-led urban development area” means an urban development area that was designated by order under section 134([1B](#));
- “locally-led urban development corporation” means the urban development corporation for a locally-led urban development area;
- “oversight authority”, in relation to a locally-led urban development corporation or locally-led urban development area, means the local authority or local authorities designated in relation to that corporation, or the corporation for that area, under section 135([4B](#))([c](#)) (but, in relation to a particular function, means only the local authority or local authorities by whom the function is exercisable);”.
- (3) In the definition of “urban development area”, after “(1)” insert “or ([1B](#))”.

Commencement Information

I807 Sch. 16 para. 5 not in force at Royal Assent, see [s. 255\(7\)](#)

Commencement Information

I803 Sch. 16 para. 1 not in force at Royal Assent, see [s. 255\(7\)](#)

I804 Sch. 16 para. 2 not in force at Royal Assent, see [s. 255\(7\)](#)

I805 Sch. 16 para. 3 not in force at Royal Assent, see [s. 255\(7\)](#)

I806 Sch. 16 para. 4 not in force at Royal Assent, see [s. 255\(7\)](#)

I807 Sch. 16 para. 5 not in force at Royal Assent, see [s. 255\(7\)](#)

[New Towns Act 1981 \(c. 64\)](#)

- 6 The New Towns Act 1981 is amended as follows.

Commencement Information

I808 Sch. 16 para. 6 not in force at Royal Assent, see [s. 255\(7\)](#)

- 7 (1) Section 1A (local authority to oversee development of new town) is amended as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) For the heading substitute “Oversight of locally-led new town”.
- (3) Omit subsections (1), (2) and (3).
- (4) In subsection (4)—
 - (a) for “a local authority” substitute “an oversight authority”;
 - (b) after “as a” insert “locally-led”.
- (5) In subsection (5)—
 - (a) in paragraphs (a), (b) and (c), for “a local authority” substitute “an oversight authority”;
 - (b) in paragraph (d), for the words from “corporation”, in the first place it occurs, to the end substitute “locally-led development corporation”.
- (6) Omit—
 - (a) subsection (7);
 - (b) in subsection (8)—
 - (i) the definition of “local authority”;
 - (ii) paragraph (a) of the definition of “specified”.

Commencement Information

I809 Sch. 16 para. 7 not in force at Royal Assent, see [s. 255\(7\)](#)

- 8 In section 2 (reduction of designated areas), after subsection (1) insert—
- “(1A) The Secretary of State may not make an order under subsection (1) in relation to the area of a new town designated under section [1ZB](#) except with the consent of the oversight authority.”

Commencement Information

I810 Sch. 16 para. 8 not in force at Royal Assent, see [s. 255\(7\)](#)

- 9 (1) Section 80 (general interpretation provisions) is amended as follows.
- (2) In subsection (1)—
- (a) after the definition of “local highway authority” insert—

““locally-led development corporation” means a development corporation established for the purposes of a locally-led new town;
 “locally-led new town” means a new town the site of which was designated under section [1ZB](#);”;
 - (b) after the definition of “open space” insert—

““oversight authority”, in relation to a locally-led development corporation or locally-led new town, means the local authority or local authorities designated in relation to that corporation, or the corporation for that new town, under section [3\(2C\)\(c\)](#) (but, in relation to a particular function, means only the local authority or local authorities by whom the function is exercisable);”.
- (3) In subsection (2), after “section 1” insert “or [1ZB](#)”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I811 Sch. 16 para. 9 not in force at Royal Assent, see [s. 255\(7\)](#)

Commencement Information

I808 Sch. 16 para. 6 not in force at Royal Assent, see [s. 255\(7\)](#)

I809 Sch. 16 para. 7 not in force at Royal Assent, see [s. 255\(7\)](#)

I810 Sch. 16 para. 8 not in force at Royal Assent, see [s. 255\(7\)](#)

I811 Sch. 16 para. 9 not in force at Royal Assent, see [s. 255\(7\)](#)

SCHEDULE 17

Section 177

PLANNING FUNCTIONS OF DEVELOPMENT CORPORATIONS: MINOR AND CONSEQUENTIAL AMENDMENTS

New Towns Act 1981 (c. 64)

- 1 (1) The New Towns Act 1981 is amended as follows.
 - (2) In the heading of section 7 (planning control), after “control” insert “: proposals given effect by development order”.
 - (3) In section 77 (regulations and orders), after subsection (3D) (inserted by section [172](#)) insert—

“(3E) A statutory instrument, other than one to which subsection (3B) applies, containing an order under section [7A](#) is subject to annulment in pursuance of a resolution of either House of Parliament.”

Commencement Information

I812 Sch. 17 para. 1 not in force at Royal Assent, see [s. 255\(7\)](#)

I813 [Sch. 17 para. 1](#) in force at 14.4.2026 by [S.I. 2026/168](#), [reg. 2\(g\)](#)

Town and Country Planning Act 1990 (c. 8)

- 2 (1) TCPA 1990 is amended as follows.
 - (2) In section 7 (urban development corporation as local planning authority), after subsection (2) insert—

“(3) This section is subject to section 8A.”
 - (3) After section 7 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

“7ZA New towns

- (1) This section applies where an order is made under section 7A(2)(a) or (4)(a) of the New Towns Act 1981 (powers to confer functions under the planning Acts) in respect of a development corporation established under section 3 of that Act.
 - (2) If the order is made under section 7A(2)(a), the corporation is the local planning authority for the specified area, for the specified purposes and in relation to the specified kinds of development, in place of the authority which would otherwise be the local planning authority for that area.
 - (3) If the order is made under section 7A(4)(a), the corporation has the functions under the specified enactments in the specified area, in place of any authority (except the Secretary of State) which would otherwise have them in that area.
 - (4) In this section “specified” means specified in the order.
 - (5) This section is subject to section 8A.”
- (4) In section 7A (Mayoral development corporation as local planning authority), after subsection (5) insert—
- “(6) This section is subject to section 8A.”
- (5) In section 62B(5) (planning authorities that cannot be designated for the purposes of allowing direct planning applications to the Secretary of State), after paragraph (c) insert—
- “(ca) a development corporation established under section 3 of the New Towns Act 1981;”.
- (6) In section 70(4) (definitions relating to local finance considerations to be taken into account in planning decisions), in the definition of “relevant authority”, after paragraph (e) insert—
- “(ea) a development corporation established under section 3 of the New Towns Act 1981;”.
- (7) In paragraph 5 of Schedule 1 (local highway authority restrictions on grant of planning permission)—
- (a) in sub-paragraph (2), for the words from “is to be”, where they first occur, to “2011,” substitute “does not include a development corporation planning authority;”;
 - (b) in sub-paragraph (3), for the words from “an” to “local planning authority”, in the second place it occurs, substitute “a development corporation planning authority”;
 - (c) after sub-paragraph (3) insert—
- “(4) In this paragraph, “development corporation planning authority” means—
- (a) an urban development corporation which is the local planning authority by virtue of an order under section 149 of the Local Government, Planning and Land Act 1980,
 - (b) a development corporation established under section 3 of the New Towns Act 1981 which is the local planning

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- authority by virtue of an order under section 7A of that Act, or
- (c) a Mayoral development corporation which is the local planning authority by virtue of an order under section 198(2) of the Localism Act 2011.”

Commencement Information

I814 Sch. 17 para. 2 not in force at Royal Assent, see [s. 255\(7\)](#)

I815 Sch. 17 para. 2 in force at 14.4.2026 by S.I. 2026/168, [reg. 2\(g\)](#)

Planning (Listed Buildings and Conservation Areas) Act 1990 (c. 9)

- 3 In Schedule 4 to the Listed Buildings Act (authorities exercising functions under the Act)—
- (a) in paragraph 2—
- (i) after “7”, where it first occurs, insert “, [7ZA](#), 7A,”;
- (ii) after “urban development areas,” insert “new towns,”;
- (b) in paragraph 4(1), after “7” insert “, [7ZA](#), 7A,”.

Commencement Information

I816 Sch. 17 para. 3 not in force at Royal Assent, see [s. 255\(7\)](#)

I817 Sch. 17 para. 3 in force at 14.4.2026 by S.I. 2026/168, [reg. 2\(g\)](#)

Planning (Hazardous Substances) Act 1990 (c. 10)

- 4 In section 3 of the Hazardous Substances Act (hazardous substances authorities in certain special cases)—
- (a) in subsection (4)—
- (i) for “an urban development corporation or a Mayoral development corporation” substitute “a development corporation”;
- (ii) after “planning authority” insert “for all purposes of Part 3 of the principal Act”;
- (b) after subsection (4) insert—
- “(4A) In subsection (4), “development corporation” means an urban development corporation, a development corporation established under section 3 of the New Towns Act 1981 or a Mayoral development corporation.”

Commencement Information

I818 Sch. 17 para. 4 not in force at Royal Assent, see [s. 255\(7\)](#)

I819 Sch. 17 para. 4 in force at 14.4.2026 by S.I. 2026/168, [reg. 2\(g\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Localism Act 2011 (c. 20)

- 5 In section 202(5) of the Localism Act 2011 (power to apply certain modifications of planning enactments in relation to Mayoral development corporations), at the end insert “, with the further modification that any reference in that Part of that Schedule to an urban development corporation is to be read as a reference to an MDC”.

Commencement Information

I820 Sch. 17 para. 5 not in force at Royal Assent, see [s. 255\(7\)](#)

I821 Sch. 17 para. 5 in force at 14.4.2026 by [S.I. 2026/168](#), [reg. 2\(g\)](#)

SCHEDULE 18

Section 183(4)

CONDITIONAL CONFIRMATION AND MAKING OF COMPULSORY PURCHASE ORDERS: CONSEQUENTIAL AMENDMENTS

PROSPECTIVE

Land Compensation Act 1973 (c. 26)

- 1 In section 33D of the Land Compensation Act 1973 (exclusions from entitlement to loss payments), for subsection (6) substitute—
- “(6) The relevant time is the time at which any of the following occurs in respect of the compulsory purchase order relating to the person’s interest in the land—
- (a) the order is confirmed, other than conditionally, under section 13 or 13A of the Acquisition of Land Act 1981;
 - (b) the order is made, other than conditionally, under paragraph 4 or 4A of Schedule 1 to that Act;
 - (c) a decision is made under section [13BA\(2\)\(a\)](#) of the Acquisition of Land Act 1981 (decision that conditions subject to which order was confirmed have been met);
 - (d) a decision is made under paragraph [4AA\(2\)\(a\)](#) of Schedule 1 to that Act (decision that conditions subject to which order was made have been met).”

Commencement Information

I822 Sch. 18 para. 1 not in force at Royal Assent, see [s. 255\(7\)](#)

Compulsory Purchase (Vesting Declarations) Act 1981 (c. 66)

- 2 In section 5(2) of the Compulsory Purchase (Vesting Declarations) Act 1981 (vesting declaration not to be executed before purchase order operative), for “26(1)” substitute “26”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I823 Sch. 18 para. 2 not in force at Royal Assent, see [s. 255\(7\)](#)

I824 Sch. 18 para. 2 in force at 18.2.2026 for specified purposes by [S.I. 2025/1370](#), [reg. 2\(1\)\(c\)\(2\)](#)

Acquisition of Land Act 1981 (c. 67)

- 3 (1) The Acquisition of Land Act 1981 is amended as follows.
 - (2) In section 7—
 - (a) in subsection (3) (regulations subject to negative procedure)—
 - (i) after “13A” insert “or [13BA](#)”;
 - (ii) after “paragraph 4A” insert “or [4AA](#)”;
 - (b) after subsection (3) insert—

“(4) So far as anything is required or authorised to be prescribed as mentioned in subsection (2) in relation to orders that fall to be made or confirmed by the Welsh Ministers—

 - (a) the reference in that subsection to the Secretary of State is to be read as a reference to the Welsh Ministers, and
 - (b) the reference in subsection (3) to either House of Parliament is to be read as a reference to Senedd Cymru.”
 - (3) In section 26 (date of operation of orders and certificates), for subsections (1) and (2) substitute—

“(1A) A compulsory purchase order confirmed under Part 2 becomes operative—

 - (a) if it is confirmed unconditionally, on the date on which a confirmation notice in respect of the order is first published as required by section 15(3)(a);
 - (b) if it is confirmed conditionally, on the date on which a fulfilment notice in respect of the order is first published as required by section 15([4C](#))(b)(i).

(1B) A compulsory purchase order made under Schedule 1 becomes operative—

 - (a) if it is made unconditionally, on the date on which a making notice in respect of the order is first published as required by paragraph 6(3)(a) of that Schedule;
 - (b) if it is made conditionally, on the date on which a fulfilment notice in respect of the order is first published as required by paragraph 6([4C](#))(b)(i) of that Schedule.

(1C) Subsections (1A) and (1B) do not apply to an order to which the Statutory Orders (Special Procedure) Act 1945 applies.

(2A) A certificate given under Part 3 becomes operative on the date on which it is first published as required by section 22(a).

(2B) A certificate given under Schedule 3 becomes operative on the date on which it is first published as required by paragraph 9(a) of that Schedule.

(3) This section is subject to section 24.”

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
 Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in
 force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes
 that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

Commencement Information

- I825** Sch. 18 para. 3 not in force at Royal Assent, see [s. 255\(7\)](#)
I826 [Sch. 18 para. 3\(1\)\(2\)](#) in force at 2.12.2025 by [S.I. 2025/1262](#), [reg. 2\(1\)\(d\)](#)
I827 [Sch. 18 para. 3\(3\)](#) in force at 18.2.2026 for specified purposes by [S.I. 2025/1370](#), [reg. 2\(1\)\(c\)\(2\)](#) (with [reg. 6\(1\)\(2\)](#))

Housing Act 1985 (c. 68)

- 4 (1) The Housing Act 1985 is amended as follows.
- (2) In section 582 (suspension of recovery of possession of certain premises when compulsory purchase order made)—
- (a) in subsection (2), for paragraph (b) substitute—
- “(b) any earlier date on which—
- (i) the Secretary of State notifies the authority that the Secretary of State declines to confirm the order,
- (ii) the order (having been confirmed conditionally) expires by virtue of section [13BA\(2\)\(b\)](#) of the Acquisition of Land Act 1981, or
- (iii) the order is quashed by a court.”;
- (b) in subsection (6), for paragraph (a) substitute—
- “(aa) the Secretary of State notifies the authority that the Secretary of State declines to confirm the compulsory purchase order,
- (ab) the order (having been confirmed conditionally) expires by virtue of section [13BA\(2\)\(b\)](#) of the Acquisition of Land Act 1981,
- (ac) the order is quashed by a court, or”.
- (3) In paragraph 3 of Schedule 5A (termination of initial demolition notices)—
- (a) in sub-paragraph (2), after “(3)(a)” insert “or (aa)”;
- (b) in sub-paragraph (3)—
- (i) omit the “or” at the end of paragraph (a);
- (ii) after paragraph (a) insert—
- “(aa) a decision under section [13BA\(2\)\(b\)\(ii\)](#) of that Act that conditions subject to which the order was confirmed have not been met, or”;
- (c) in sub-paragraph (4), after “(3)(a)” insert “or (aa)”;
- (d) after sub-paragraph (6) insert—
- “(6A) If—
- (a) a compulsory purchase order has been made as described in sub-paragraph (2),
- (b) the order expires by virtue of section [13BA\(2\)\(b\)\(i\)](#) of the Acquisition of Land Act 1981, and
- (c) the effect of the expiry is that the landlord will not be able, by virtue of that order, to carry out the demolition of the dwelling-house,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- the notice ceases to be in force as from the date when the order expires.”;
- (e) in sub-paragraph (7), after “(2)” insert “or (6A)”.

Commencement Information

I828 Sch. 18 para. 4 not in force at Royal Assent, see [s. 255\(7\)](#)

I829 Sch. 18 para. 4 in force at 18.2.2026 for specified purposes by [S.I. 2025/1370](#), [reg. 2\(1\)\(c\)\(2\)](#)

Town and Country Planning Act 1990 (c. 8)

- 5 (1) TCPA 1990 is amended as follows.
- (2) In section 137(7)(b) (discontinuance of compulsory purchase for purpose of blight notice exception)—
- in sub-paragraph (i), after “order” insert “or the order (having been made conditionally) expires by virtue of paragraph [4AA\(2\)](#) of Schedule 1 to the Acquisition of Land Act 1981”;
 - in sub-paragraph (ii), at the end insert “or (having been confirmed conditionally) it expires by virtue of section [13BA\(2\)\(b\)](#) of the Acquisition of Land Act 1981”.
- (3) In Note (2) in paragraph 22 of Schedule 13 (land ceasing to be blighted by proposed compulsory purchase order)—
- omit the “or” at the end of paragraph (a);
 - at the end of paragraph (b) insert “; or
 - the order (having been confirmed or made conditionally) expires by virtue of section [13BA\(2\)\(b\)](#) of, or paragraph [4AA\(2\)](#) of Schedule 1 to, the Acquisition of Land Act 1981.”

Commencement Information

I830 Sch. 18 para. 5 not in force at Royal Assent, see [s. 255\(7\)](#)

I831 Sch. 18 para. 5 in force at 18.2.2026 for specified purposes by [S.I. 2025/1370](#), [reg. 2\(1\)\(c\)\(2\)](#)

Planning (Listed Buildings and Conservation Areas) Act 1990 (c. 9)

- 6 In section 48(6)(b) of the Listed Buildings Act (discontinuance of compulsory purchase for purpose of listed building purchase notice exception)—
- in sub-paragraph (i), at the end insert “or the order (having been made conditionally) expires by virtue of paragraph [4AA\(2\)](#) of Schedule 1 to the Acquisition of Land Act 1981”;
 - in sub-paragraph (ii), at the end insert “or (having been confirmed conditionally) it expires by virtue of section [13BA\(2\)\(b\)](#) of the Acquisition of Land Act 1981”.

Commencement Information

I832 Sch. 18 para. 6 not in force at Royal Assent, see [s. 255\(7\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

1833 Sch. 18 para. 6 in force at 18.2.2026 for specified purposes by S.I. 2025/1370, reg. 2(1)(c)(2)

Historic Environment (Wales) Act 2023

- 7 In section 111(8)(b) of the Historic Environment (Wales) Act 2023 (discontinuance of compulsory purchase for purpose of listed building purchase notice exception)—
- (a) in the English language text—
 - (i) in sub-paragraph (i), at the end insert “or (having been confirmed conditionally) it expires by virtue of section 13BA(2)(b) of the Acquisition of Land Act 1981”;
 - (ii) in sub-paragraph (ii), at the end insert “or the order (having been made conditionally) expires by virtue of paragraph 4AA(2) of Schedule 1 to that Act”;
 - (b) in the Welsh language text—
 - (i) in sub-paragraph (i), at the end insert “neu pan fydd (ar ôl cael ei gadarnhau’n amodol) yn dod i ben yn rhinwedd adran 13BA(2)(b) o Ddeddf Caffael Tir 1981”;
 - (ii) in sub-paragraph (ii), at the end insert “neu pan fydd y gorchymyn (ar ôl cael ei wneud yn amodol) yn dod i ben yn rhinwedd paragraff 4AA(2) o Atodlen 1 i’r Ddeddf honno”.

Commencement Information

1834 Sch. 18 para. 7 not in force at Royal Assent, see s. 255(7)

1835 Sch. 18 para. 7 in force at 18.2.2026 for specified purposes by S.I. 2025/1370, reg. 2(1)(c)(2)

SCHEDULE 19

Section 184

COMPULSORY PURCHASE: CORRESPONDING PROVISION FOR PURCHASES BY MINISTERS

Online publicity

- 1 (1) Schedule 1 to the Acquisition of Land Act 1981 (compulsory purchase by Minister) is amended as follows.
- (2) For the italic heading before paragraph 2 substitute “*Public notices*”.
- (3) In paragraph 2 (requirement to publish notice of order in newspaper)—
- (a) in sub-paragraph (1)—
 - (i) the words from “in two” to “situated” become paragraph (a);
 - (ii) at the end of that paragraph insert “, and
 - (b) for a period of at least 21 days ending with the day specified under sub-paragraph (2)(d), publish a notice in the prescribed form on an appropriate website.”;
 - (b) in sub-paragraph (2)—
 - (i) in the words before paragraph (a), for “notice” substitute “notices”;
 - (ii) omit the “and” at the end of paragraph (c);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (iii) after paragraph (c) insert—
 - “(ca) specify a website on which those copies may be viewed, and”;
 - (iv) for paragraph (d) substitute—
 - “(d) specify the final day for making objections to the draft order, and the manner in which objections can be made.”;
 - (c) after sub-paragraph (2) insert—
 - “(2A) If the appropriate authority (see paragraph 4(8)) is satisfied that, because of special circumstances, it is impracticable for the Minister to make the copies referred to in sub-paragraph (2)(c) available for inspection at an appropriate place, the appropriate authority may direct that the requirement in sub-paragraph (2)(c) (together with that in paragraph 3(1)(ba)) is not to apply.”;
 - (d) in sub-paragraph (4)(b), omit the words from “(but” to “affixed)”.
- (4) In paragraph 3(1) (requirement to serve notice on certain affected persons)—
- (a) omit the “and” at the end of paragraph (b);
 - (b) after paragraph (b) insert—
 - “(ba) (subject to paragraph 2(2A)) naming a place within the locality where a copy of the draft order and of the map referred to in it may be inspected,
 - (bb) specifying a website on which those copies may be viewed, and”;
 - (c) for paragraph (c) substitute—
 - “(c) specifying the final day for making objections to the draft order, and the manner in which objections can be made.”
- (5) After paragraph 3 insert—

“Final day for making objections

- 3A (1) For the purposes of paragraphs 2 and 3, the day specified as the final day for making objections must be the last day, or a day after the last day, of the period of 21 days beginning with the first day at the beginning of which the Minister expects that all of the following conditions will be satisfied.
- (2) The conditions are that—
- (a) a notice has been published for the first time as required by paragraph 2(1)(a),
 - (b) publication as required by paragraph 2(1)(b) has begun,
 - (c) a notice has been affixed as required by paragraph 2(3), and
 - (d) a notice has been served on every qualifying person as required by paragraph 3(1).”
- (6) In paragraph 6 (notices after making of order)—
- (a) in sub-paragraph (3)—
 - (i) the words from “in one” to “situated” become paragraph (a);
 - (ii) at the end of that paragraph insert “, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) on an appropriate website, until the end of the period of 6 weeks beginning with the day on which the Minister takes the final step needed to comply with sub-paragraph (1)(a).”;
- (b) in sub-paragraph (4), after paragraph (c) insert—
 - “(ca) specifying a website on which those copies may be viewed.”;
- (c) after sub-paragraph (4) insert—
 - “(4A) If the appropriate authority is satisfied that, because of special circumstances, it is impracticable for the Minister to make the copies referred to in sub-paragraph (4)(c) available for inspection at an appropriate place, the appropriate authority may direct that the requirement in sub-paragraph (4)(c) is not to apply.”

Commencement Information

I836 Sch. 19 para. 1 not in force at Royal Assent, see [s. 255\(7\)](#)

I837 Sch. 19 para. 1 in force at 31.1.2024 for specified purposes by [S.I. 2024/92](#), [reg. 2\(r\)](#)

I838 Sch. 19 para. 1 in force at 30.4.2024 for E. in so far as not already in force by [S.I. 2024/389](#), [reg. 3\(c\)](#) (with [reg. 4](#))

I839 Sch. 19 para. 1 in force at 2.12.2025 for specified purposes by [S.I. 2025/1262](#), [reg. 2\(1\)\(e\)\(2\)](#) (with [reg. 3](#))

Proceedings for consideration of draft order

- 2 (1) Schedule 1 to the Acquisition of Land Act 1981 (compulsory purchase by Minister) is amended as follows.
 - (2) In paragraph 4A (proceedings for contested orders), for sub-paragraphs (2) to (8) substitute—
 - “(1A) The appropriate authority must cause a public local inquiry to be held if—
 - (a) the order is subject to special parliamentary procedure, or
 - (b) in the case of an order to which section 16 applies, a certificate has been given under subsection (2) of that section.
 - (1B) If sub-paragraph (1A) does not apply, the appropriate authority must either—
 - (a) cause a public local inquiry to be held, or
 - (b) proceed under the representations procedure.
 - (1C) In deciding between those options, the appropriate authority must have regard to the scale and complexity of what is proposed by the draft order.
 - (1D) The representations procedure is a procedure to be prescribed.
 - (1E) The regulations prescribing the procedure must include provision—
 - (a) enabling each person who has made a remaining objection to make representations—
 - (i) in writing to the appropriate authority, or
 - (ii) if the person so requests, at a hearing, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) enabling the Minister, and any other person the appropriate authority thinks appropriate, to make representations—
 - (i) in writing to the appropriate authority, or
 - (ii) if applicable, at a hearing held as mentioned in paragraph (a)(ii).
- (1F) The regulations may provide for hearings to be held by the appropriate authority or by a person appointed by the appropriate authority.
- (1G) In sub-paragraph (1E), “representations” means representations as to whether the order should be made.
- (1H) Before the Minister makes the order, the appropriate authority must consider—
 - (a) each remaining objection;
 - (b) if a public local inquiry was held, the report of the person who held it;
 - (c) if the representations procedure was followed and the appropriate authority held a hearing, the representations made at the hearing;
 - (d) if the representations procedure was followed and a person appointed by the appropriate authority held a hearing, the report of that person;
 - (e) if the representations procedure was followed and written representations were made, those representations.
- (1I) The Minister may make the order with or without modifications.
- (1J) Regulations under sub-paragraph (1D) may include provision as to the giving of reasons for decisions taken by the appropriate authority in cases where the representations procedure is followed.”
- (3) In paragraph 4B (confirmation of order in stages), in sub-paragraph (3), for “4A(2) or (3)” substitute “4A(1A) or (1B)”.

Commencement Information

I840 Sch. 19 para. 2 not in force at Royal Assent, see [s. 255\(7\)](#)

I841 Sch. 19 para. 2 in force at 31.3.2024 for specified purposes by [S.I. 2024/389](#), [reg. 2\(t\)](#)

Conditional orders

- 3 (1) Schedule 1 to the Acquisition of Land Act 1981 (compulsory purchase by Minister) is amended as follows.
- (2) After paragraph 4A insert—
 - “4AA (1) The Minister may make a compulsory purchase order conditionally.
 - (2) The effect of making an order conditionally is that the order—
 - (a) does not become operative until the Minister has decided, following consideration by the appropriate authority (see paragraph 4(8)), that certain conditions have been met, and
 - (b) expires if the Minister has not decided that by a certain time.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3) The conditions and the time are to be specified by the Minister when making the order.
- (4) The procedure to be followed in connection with the consideration and decision referred to in sub-paragraph (2)(a) is to be prescribed.
- (5) The prescribed procedure must include provision for each relevant objector—
 - (a) to be given notice that the appropriate authority is to consider whether the conditions have been met (or for steps to be taken with a view to notifying them), and
 - (b) to have the opportunity to make written representations relating to that consideration;
 and may include provision as to the giving of reasons for the decision by the Minister.
- (6) In sub-paragraph (5), “relevant objector” means a person who made an objection to the draft order that—
 - (a) was a remaining objection for the purposes of paragraph 4A, and
 - (b) had not been withdrawn by the time the order was made.”
- (3) In paragraph 6 (notices after making of order)—
 - (a) in sub-paragraph (2)(b), for “date when the order becomes operative” substitute “day on which the Minister takes the final step needed to comply with sub-paragraph (1)(a)”;
 - (b) in sub-paragraph (3), at the beginning insert “Unless the order was made conditionally,”;
 - (c) in sub-paragraph (4), after paragraph (b) insert—
 - “(ba) if the order was made conditionally, stating the conditions and time specified under paragraph 4AA(3);”;
 - (d) after sub-paragraph (4A) (inserted by paragraph 1(6)) insert—
 - “(4B) If the order was made conditionally and the Minister decides under paragraph 4AA that the conditions have been met, the Minister must serve—
 - (a) a copy of the order, and
 - (b) a fulfilment notice,
 on each person on whom a notice was required to be served under paragraph 3.
 - (4C) Where sub-paragraph (4B) applies, the Minister must also—
 - (a) affix a fulfilment notice to a conspicuous object or objects on or near the land comprised in the order, and
 - (b) publish a fulfilment notice—
 - (i) in one or more local newspapers circulating in the locality in which the land comprised in the order is situated, and
 - (ii) on an appropriate website, until the end of the period of 6 weeks beginning with the day on which the Minister takes the final step needed to comply with sub-paragraph (4B).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4D) A fulfilment notice is a notice—
- (a) stating that the conditions subject to which the order was made have been met and that the order will therefore become operative, and
 - (b) annexing the information that was contained in the making notice.”;
 - (e) in sub-paragraph (5), after “notice” insert “or fulfilment notice”;
 - (f) in sub-paragraph (6)—
 - (i) after “notice” insert “, and any fulfilment notice,”;
 - (ii) for “it” substitute “each such notice”.

Commencement Information

- I842** Sch. 19 para. 3 not in force at Royal Assent, see [s. 255\(7\)](#)
I843 Sch. 19 para. 3 in force at 31.3.2024 for specified purposes by [S.I. 2024/389](#), [reg. 2\(t\)](#)
I844 Sch. 19 para. 3 in force at 18.2.2026 for specified purposes by [S.I. 2025/1370](#), [reg. 2\(1\)\(d\)\(2\)](#)

SCHEDULE 20

Section 201

GROUND OF APPEAL AGAINST FINAL LETTING NOTICE

PART 1

GROUNDS

- 1 That the vacancy condition was not met in relation to the premises on the day on which the initial letting notice was served.

Commencement Information

- I845** Sch. 20 Pt. 1 para. 1 not in force at Royal Assent, see [s. 255\(7\)](#)
I846 Sch. 20 Pt. 1 para. 1 in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 2 That the premises cannot reasonably be considered suitable for the use identified in the final letting notice as the suitable high-street use.

Commencement Information

- I847** Sch. 20 Pt. 1 para. 2 not in force at Royal Assent, see [s. 255\(7\)](#)
I848 Sch. 20 Pt. 1 para. 2 in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 3 That the local authority’s view that the local benefit condition was met in relation to the premises was one that no authority giving reasonable consideration to the matter could have reached.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I849 Sch. 20 Pt. 1 para. 3 not in force at Royal Assent, see [s. 255\(7\)](#)

I850 [Sch. 20 Pt. 1 para. 3](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 4 That the local authority failed, while the initial letting notice was in force, to give consent under section [196](#) to a proposed tenancy, licence or agreement where the authority—
- (a) was required by section [197\(1\)](#) to give consent, or
 - (b) would have been so required had it not failed to be satisfied as mentioned in section [197\(2\)\(c\)](#), when any authority giving reasonable consideration to the matter would have been so satisfied.

Commencement Information

I851 Sch. 20 Pt. 1 para. 4 not in force at Royal Assent, see [s. 255\(7\)](#)

I852 [Sch. 20 Pt. 1 para. 4](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 5 That the landlord—
- (a) intends to carry out substantial works of construction, demolition or reconstruction affecting the premises, and
 - (b) could not reasonably carry out those works without retaining possession of the premises.

Commencement Information

I853 Sch. 20 Pt. 1 para. 5 not in force at Royal Assent, see [s. 255\(7\)](#)

I854 [Sch. 20 Pt. 1 para. 5](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 6 That the landlord intends to occupy the premises for the purposes, or partly for the purposes, of a business to be carried on by the landlord in the premises.

Commencement Information

I855 Sch. 20 Pt. 1 para. 6 not in force at Royal Assent, see [s. 255\(7\)](#)

I856 [Sch. 20 Pt. 1 para. 6](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 7 That the landlord intends to occupy the premises as the landlord's residence.

Commencement Information

I857 Sch. 20 Pt. 1 para. 7 not in force at Royal Assent, see [s. 255\(7\)](#)

I858 [Sch. 20 Pt. 1 para. 7](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

PART 2

INTERPRETATION AND APPLICATION

- 1 Ground 2 is to be applied in accordance with section [192\(5\)](#).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I859 Sch. 20 Pt. 2 para. 1 not in force at Royal Assent, see [s. 255\(7\)](#)

I860 [Sch. 20 Pt. 2 para. 1](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 2 Works carried out in contravention of section [200\(1\)](#) cannot be relied on for the purposes of ground 5.

Commencement Information

I861 Sch. 20 Pt. 2 para. 2 not in force at Royal Assent, see [s. 255\(7\)](#)

I862 [Sch. 20 Pt. 2 para. 2](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 3
 - (1) Where the landlord has a controlling interest in a company, the references to the landlord in ground 6 include reference to that company.
 - (2) Where the landlord is a company and a person has a controlling interest in the company, the references to the landlord in grounds 6 and 7 include reference to that person.
 - (3) For the purposes of sub-paragraphs [\(1\)](#) and [\(2\)](#), a person has a controlling interest in a company, if, had the person been a company, the other company would have been its subsidiary.
 - (4) In this paragraph—

“company” has the meaning given by section 1(1) of the Companies Act 2006;

“subsidiary” has the meaning given by section 1159 of that Act.

Commencement Information

I863 Sch. 20 Pt. 2 para. 3 not in force at Royal Assent, see [s. 255\(7\)](#)

I864 [Sch. 20 Pt. 2 para. 3](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

SCHEDULE 21

Section 206

PROVISION TO BE INCLUDED IN TERMS OF TENANCY FURTHER TO CONTRACT UNDER SECTION [204](#)

- 1 Provision about what obligations (if any) the landlord is to have with respect to the maintenance or repair of anything outside the premises that enables or facilitates the use of the premises.

Commencement Information

I865 Sch. 21 para. 1 not in force at Royal Assent, see [s. 255\(7\)](#)

I866 [Sch. 21 para. 1](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 2 Provision about what obligations (if any) the landlord is to have with respect to the supply of water, energy or telecommunications services to the premises.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I867 Sch. 21 para. 2 not in force at Royal Assent, see [s. 255\(7\)](#)

I868 [Sch. 21 para. 2](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 3 Provision requiring the tenant to keep the premises in repair.

Commencement Information

I869 Sch. 21 para. 3 not in force at Royal Assent, see [s. 255\(7\)](#)

I870 [Sch. 21 para. 3](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 4 Provision about—
- (a) what works and alterations the tenant can or cannot carry out, with or without the consent of the landlord, and
 - (b) (if applicable) the giving or withholding of such consent by the landlord.

Commencement Information

I871 Sch. 21 para. 4 not in force at Royal Assent, see [s. 255\(7\)](#)

I872 [Sch. 21 para. 4](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 5 Provision requiring the tenant to insure the premises (if they are not otherwise insured).

Commencement Information

I873 Sch. 21 para. 5 not in force at Royal Assent, see [s. 255\(7\)](#)

I874 [Sch. 21 para. 5](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 6 Provision enabling the landlord to recover from the tenant costs reasonably incurred by or on behalf of the landlord in connection with the premises.

Commencement Information

I875 Sch. 21 para. 6 not in force at Royal Assent, see [s. 255\(7\)](#)

I876 [Sch. 21 para. 6](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 7 Provision about circumstances in which the tenant can or cannot—
- (a) assign the tenancy,
 - (b) sub-let the premises, or
 - (c) otherwise allow another person to possess or occupy the premises.

Commencement Information

I877 Sch. 21 para. 7 not in force at Royal Assent, see [s. 255\(7\)](#)

I878 [Sch. 21 para. 7](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

- 8 Provision for, and in connection with, the giving of a deposit by the tenant to secure the performance of the tenant's obligations.

***Status:** Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.*

***Changes to legislation:** Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)*

Commencement Information

I879

Sch. 21 para. 8 not in force at Royal Assent, see [s. 255\(7\)](#)

I880

[Sch. 21 para. 8](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

9

Provision about the circumstances in which the landlord can re-enter the premises following a breach of the tenant’s obligations.

Commencement Information

I881

Sch. 21 para. 9 not in force at Royal Assent, see [s. 255\(7\)](#)

I882

[Sch. 21 para. 9](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

10

Provision requiring the tenant to deliver up the premises with vacant possession at the end of the tenancy.

Commencement Information

I883

Sch. 21 para. 10 not in force at Royal Assent, see [s. 255\(7\)](#)

I884

[Sch. 21 para. 10](#) in force at 2.12.2024 by [S.I. 2024/1138](#), [reg. 2\(h\)](#)

SCHEDULE 22

Section [229](#)

PAVEMENT LICENCES

Introductory

- 1
- In this Schedule—
- (a)

“the 2020 Act” means the Business and Planning Act 2020;
- (b)

“the commencement date” means the date on which this Schedule comes into force;
- (c)

“pavement licence” means a licence under section 1 of the 2020 Act.

Commencement Information

I885

Sch. 22 para. 1 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I886

[Sch. 22 para. 1](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Making pavement licence provisions permanent

- 2
- (1)

Omit section 10 of the 2020 Act (expiry).
- (2)

In section 23 of the 2020 Act (regulations), in subsection (4), omit “10,”.

Commencement Information

I887

Sch. 22 para. 2 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

I888 Sch. 22 para. 2 in force at 31.3.2024 by S.I. 2024/389, reg. 2(u)

Applications: fees

- 3 (1) Section 2 of the 2020 Act (applications) is amended as follows.
- (2) In subsection (1)(c), for “£100” substitute “the relevant amount”.
- (3) After subsection (1) insert—
- “(1A) In subsection (1)(c), “the relevant amount” means—
- (a) £350, in the case of an application which—
 - (i) is made by a person who already holds a pavement licence, and
 - (ii) is in respect of the premises to which that existing licence relates (whether or not it is a renewal application), and
 - (b) £500, in any other case.
- (1B) The Secretary of State may by regulations amend subsection (1A)(a) or (b) so as to substitute a different amount for the amount for the time being specified there.”

Commencement Information

I889 Sch. 22 para. 3 not in force at Royal Assent, see s. 255(9)(a)

I890 Sch. 22 para. 3 in force at 31.3.2024 by S.I. 2024/389, reg. 2(u) (with reg. 5(1))

- 4 In section 23 of the 2020 Act (regulations), in subsection (3), after “section” insert “2(1B) or”.

Commencement Information

I891 Sch. 22 para. 4 not in force at Royal Assent, see s. 255(9)(a)

I892 Sch. 22 para. 4 in force at 31.3.2024 by S.I. 2024/389, reg. 2(u)

Commencement Information

I889 Sch. 22 para. 3 not in force at Royal Assent, see s. 255(9)(a)

I890 Sch. 22 para. 3 in force at 31.3.2024 by S.I. 2024/389, reg. 2(u) (with reg. 5(1))

I891 Sch. 22 para. 4 not in force at Royal Assent, see s. 255(9)(a)

I892 Sch. 22 para. 4 in force at 31.3.2024 by S.I. 2024/389, reg. 2(u)

Applications: procedure on renewals

- 5 (1) Section 2 of the 2020 Act (applications) is amended as follows.
- (2) After subsection (2) insert—
- “(2A) If the application is a renewal application—
- (a) subsection (2) does not apply, but

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) the application must contain or be accompanied by such information or material as the local authority may require.”

(3) After subsection (9) insert—

- “(10) For the purposes of this section, an application is a renewal application if—
- (a) it is made by a person who already holds a pavement licence,
 - (b) it is in respect of the premises to which the existing licence relates, and
 - (c) it is for a licence to begin on the expiry of the existing licence and on the same terms.”

Commencement Information

I893 Sch. 22 para. 5 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I894 [Sch. 22 para. 5](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Applications: periods for consultation and determination

6 In section 2 of the 2020 Act (applications), in subsection (4), for “7” substitute “14”.

Commencement Information

I895 Sch. 22 para. 6 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I896 [Sch. 22 para. 6](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#) (with [reg. 5\(1\)](#))

7 In section 3 of the 2020 Act (determination), in subsection (10), for “7” substitute “14”.

Commencement Information

I897 Sch. 22 para. 7 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I898 [Sch. 22 para. 7](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#) (with [reg. 5\(1\)](#))

Commencement Information

I895 Sch. 22 para. 6 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I896 [Sch. 22 para. 6](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#) (with [reg. 5\(1\)](#))

I897 Sch. 22 para. 7 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I898 [Sch. 22 para. 7](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#) (with [reg. 5\(1\)](#))

Duration of licences

8 (1) Section 4 of the 2020 Act (duration) is amended as follows.

(2) For subsections (1) and (2) substitute—

“(1) A pavement licence may be granted by a local authority for such period as the authority may specify in the licence.

(2) The period specified may not exceed two years.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3) In subsection (3)—
- (a) omit “, subject to subsection (4),”;
 - (b) for “a year” substitute “two years”.
- (4) Omit subsection (4).

Commencement Information

I899 Sch. 22 para. 8 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I900 [Sch. 22 para. 8](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Enforcement of licences

- 9 In section 6 of the 2020 Act (enforcement and revocation), after subsection (3) insert—
- “(4) A local authority by which a pavement licence is granted or deemed to be granted may, with the consent of the licence-holder, amend the licence if it considers that—
- (a) the condition in subsection (3)(a) or (b) is met, or
 - (b) a no-obstruction condition of the licence is not being complied with.”

Commencement Information

I901 Sch. 22 para. 9 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I902 [Sch. 22 para. 9](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Effect of licences

- 10 In section 7 of the 2020 Act (effects), omit—
- (a) subsections (4) to (6);
 - (b) subsections (8) to (10).

Commencement Information

I903 Sch. 22 para. 10 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I904 [Sch. 22 para. 10](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#) (with [reg. 5\(2\)](#))

- 11 (1) Section 115E of the Highways Act 1980 (execution of works etc by persons other than councils) is amended as follows.
- (2) In subsection (1), for “(4)” substitute “(5)”.
- (3) After subsection (4) insert—
- “(5) A council may not under this section grant a person permission to do anything which is capable of being authorised by a pavement licence under section 1 of the Business and Planning Act 2020.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

- I905** Sch. 22 para. 11 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I906 [Sch. 22 para. 11](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

- 12 In section 249 of the Town and Country Planning Act 1990 (order extinguishing right to use vehicles on highway), in subsection (7), at the end insert “or sections 1 to 9 of the Business and Planning Act 2020”.

Commencement Information

- I907** Sch. 22 para. 12 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I908 [Sch. 22 para. 12](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Commencement Information

- I903** Sch. 22 para. 10 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I904 [Sch. 22 para. 10](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#) (with [reg. 5\(2\)](#))
I905 Sch. 22 para. 11 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I906 [Sch. 22 para. 11](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)
I907 Sch. 22 para. 12 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I908 [Sch. 22 para. 12](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Enforcement

- 13 After section 7 of the 2020 Act insert—

“7A Enforcement

- (1) The following provisions of this section apply where—
- (a) a person puts removable furniture on a relevant highway for a purpose specified in subsection (2), and
 - (b) the person is not authorised to do so.
- (2) The purposes referred to in subsection (1)(a) are—
- (a) use of the furniture by the person to sell or serve food or drink supplied from, or in connection with relevant use of, premises which are adjacent to the highway and are used or proposed to be used by the person;
 - (b) use of the furniture by other persons for the purpose of consuming food or drink supplied from, or in connection with relevant use of, such premises.
- (3) The local authority may by notice require the person—
- (a) to remove the furniture before a date specified in the notice, and
 - (b) to refrain from putting furniture on the highway unless authorised to do so.
- (4) If the person leaves or puts removable furniture on the relevant highway in contravention of the notice, the local authority may—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) remove the furniture and store it,
 - (b) require the person to pay the authority’s reasonable costs in removing and storing the furniture, and
 - (c) refuse to return the furniture until those reasonable costs are paid.
- (5) If within the period of three months beginning with the day on which the notice is given the person does not pay the reasonable costs, or does not recover the furniture, the local authority may—
 - (a) dispose of the furniture by sale or in any other way it thinks fit, and
 - (b) retain any proceeds of sale for any purpose it thinks fit.
- (6) In this section “authorised” means authorised by—
 - (a) a pavement licence,
 - (b) permission under Part 7A of the Highways Act 1980, or
 - (c) permission granted under any other enactment.”

Commencement Information
I909 Sch. 22 para. 13 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I910 [Sch. 22 para. 13](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Local authority functions

14 In section 8 of the 2020 Act, omit subsection (2).

Commencement Information
I911 Sch. 22 para. 14 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I912 [Sch. 22 para. 14](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

15 In Schedule 1 to the Local Authorities (Functions and Responsibilities) (England) Regulations 2000 ([S.I. 2000/2853](#)) (functions which are not to be the responsibility of an authority’s executive), in paragraph B, after item 72 insert—

“73 Functions relating to pavement licences	Sections 1 to 7A of the Business and Planning Act 2020”.
---	--

Commencement Information
I913 Sch. 22 para. 15 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I914 [Sch. 22 para. 15](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Commencement Information
I911 Sch. 22 para. 14 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I912 [Sch. 22 para. 14](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)
I913 Sch. 22 para. 15 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I914 [Sch. 22 para. 15](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Other amendments

- 16 In section 9 of the 2020 Act (interpretation), omit subsections (2) and (3) (which are spent).

Commencement Information

- I915** Sch. 22 para. 16 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I916 [Sch. 22 para. 16](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

- 17 In section 62 of the Anti-social Behaviour, Crime and Policing Act 2014 (premises etc to which alcohol prohibition in a public spaces protection order does not apply), in subsection (1)(e), at the end insert “or by virtue of a pavement licence under section 1 of the Business and Planning Act 2020”.

Commencement Information

- I917** Sch. 22 para. 17 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I918 [Sch. 22 para. 17](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Commencement Information

- I915** Sch. 22 para. 16 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I916 [Sch. 22 para. 16](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)
I917 Sch. 22 para. 17 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I918 [Sch. 22 para. 17](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Transitional provision

- 18 (1) [This paragraph](#) applies in relation to a pavement licence which is in force immediately before the commencement date and which—
(a) was granted with no limit on its duration, or
(b) was deemed to be granted under section 3(9) of the 2020 Act.
(2) A pavement licence to which [this paragraph](#) applies expires at the end of the period of two years beginning with the commencement date.

Commencement Information

- I919** Sch. 22 para. 18 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I920 [Sch. 22 para. 18](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

- 19 The amendments made by paragraph [11](#) do not affect any permission granted by a council under section 115E of the Highways Act 1980 before the commencement date.

Commencement Information

- I921** Sch. 22 para. 19 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I922 [Sch. 22 para. 19](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information
I919 Sch. 22 para. 18 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I920 [Sch. 22 para. 18](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)
I921 Sch. 22 para. 19 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I922 [Sch. 22 para. 19](#) in force at 31.3.2024 by [S.I. 2024/389](#), [reg. 2\(u\)](#)

SCHEDULE 23

Section [237](#)

USE OF NON-DOMESTIC PREMISES FOR CHILDCARE: REGISTRATION

Introductory

1 The Childcare Act 2006 is amended as follows.

Commencement Information
I923 Sch. 23 para. 1 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I924 [Sch. 23 para. 1](#) in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

Early years provision

2 In section 32 (maintenance of the two childcare registers), after subsection (5) insert—

- “(6) In this section—
- (a) a reference to persons registered as early years childminders is to be read as a reference to persons registered as early years childminders with domestic premises and to persons registered as early years childminders without domestic premises collectively;
 - (b) a reference to persons registered as later years childminders is to be read as a reference to persons registered as later years childminders with domestic premises and to persons registered as later years childminders without domestic premises collectively;
 - (c) a reference to persons registered as childminders by the Chief Inspector for the purposes of Chapter 4 is to be read as a reference to persons so registered as childminders with domestic premises and to persons so registered as childminders without domestic premises collectively.”

Commencement Information
I925 Sch. 23 para. 2 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I926 [Sch. 23 para. 2](#) in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

3 (1) Section 33 (requirement to register: early years childminders) is amended as follows.
 (2) In the heading, at the end insert “with domestic premises”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (3) In subsection (1), in the words before paragraph (a)—
- (a) after “England” insert “, where some or all of the childminding is provided on domestic premises,”;
 - (b) after “childminder” insert “with domestic premises”.

Commencement Information

I927 Sch. 23 para. 3 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I928 [Sch. 23 para. 3](#) in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

- 4 (1) Section 34 (requirement to register: early years providers) is amended as follows.
- (2) For subsections (1) and (1ZA) substitute—
- “(1) A person may not provide early years provision on non-domestic premises in England unless—
- (a) the person is registered in the early years register as an early years provider other than a childminder (whether or not the provision is or includes early years childminding), or
 - (b) the provision is early years childminding, none of which is provided on domestic premises, and the person is registered as an early years childminder without domestic premises—
 - (i) in the early years register, or
 - (ii) with an early years childminder agency.
- (1ZA) Subsection [\(1\)\(a\)](#) does not apply to early years provision in respect of which the person providing it is required to be registered under section 33(1) or under subsection (1A).”
- (3) In subsection (1A)—
- (a) after “96(5)” insert “, and some or all of which is provided on domestic premises,”;
 - (b) after “registered” insert “as an early years provider other than a childminder”.

Commencement Information

I929 Sch. 23 para. 4 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I930 [Sch. 23 para. 4](#) in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

- 5 (1) Section 35 (applications for registration: early years childminders) is amended as follows.
- (2) In the heading, at the end insert “with domestic premises”.
- (3) In subsection (1)—
- (a) in paragraph (a), for “as an early years childminder in the early years register” substitute “in the early years register as an early years childminder with domestic premises”;
 - (b) in paragraph (b), at the end insert “with domestic premises”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (4) In subsection (5), in each of paragraphs (aa) and (ab), after “as an early years childminder” insert “with domestic premises”.

Commencement Information

I931 Sch. 23 para. 5 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I932 [Sch. 23 para. 5](#) in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

- 6 (1) Section 36 (application for registration: other early years providers) is amended as follows.
- (2) In subsection (1), for the words from “to the Chief” to the end substitute “—
- (a) in any case, to the Chief Inspector for registration as an early years provider other than a childminder, or
 - (b) if the early years provision is early years childminding—
 - (i) to the Chief Inspector for registration as an early years childminder without domestic premises, or
 - (ii) to an early years childminder agency for registration with that agency as an early years childminder without domestic premises,
 (whether or not an application is also made under paragraph (a)).”
- (3) In each of subsections (3) and (4), for “subsection (1)” substitute “subsection (1)(a) or (b)(i)”.
- (4) In subsection (4A), after “subsection” insert “(1)(b)(ii) or”.
- (5) In subsection (5), after paragraph (ab) insert—
- “(ac) prohibiting the applicant from being registered in the early years register as an early years childminder without domestic premises if the applicant is registered with a childminder agency;
 - (ad) prohibiting the applicant from being registered with an early years childminder agency as an early years childminder without domestic premises if the applicant is registered—
 - (i) with another childminder agency;
 - (ii) in the early years register or the general childcare register;”.

Commencement Information

I933 Sch. 23 para. 6 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I934 [Sch. 23 para. 6](#) in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

- 7 (1) Section 37 (entry on the register and certificates) is amended as follows.
- (2) In subsection (1)(a), after “childminder” insert “with domestic premises”.
- (3) In subsection (2)—
- (a) in the words before paragraph (a), for “36(1)” substitute “36(1)(a)”;
 - (b) in paragraph (a), after “childminder” insert “(even if, in the case of an application under section 36(1)(a), the early years provision is or includes early years childminding)”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(4) After subsection (2) insert—

“(2A) If an application under section 36(1)(b)(i) is granted, the Chief Inspector must—

- (a) register the applicant in the early years register as an early years childminder without domestic premises, and
- (b) give the applicant a certificate of registration stating that the applicant is so registered.”

(5) In subsection (3), for “or (2)” substitute “, (2) or (2A)”.

Commencement Information

I935 Sch. 23 para. 7 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I936 Sch. 23 para. 7 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

8 (1) Section 37A (early years childminder agencies: registers and certificates) is amended as follows.

(2) In subsection (1)(a), after “childminder” insert “with domestic premises”.

(3) After subsection (1) insert—

“(1A) If an application under section 36(1)(b)(ii) is granted, the early years childminder agency must—

- (a) register the applicant in the register maintained by the agency as an early years childminder without domestic premises, and
- (b) give the applicant a certificate of registration stating that the applicant is so registered.”

(4) In subsection (3), after “(1)” insert “, (1A)”.

Commencement Information

I937 Sch. 23 para. 8 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I938 Sch. 23 para. 8 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

Commencement Information

I925 Sch. 23 para. 2 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I926 Sch. 23 para. 2 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I927 Sch. 23 para. 3 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I928 Sch. 23 para. 3 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I929 Sch. 23 para. 4 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I930 Sch. 23 para. 4 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I931 Sch. 23 para. 5 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I932 Sch. 23 para. 5 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I933 Sch. 23 para. 6 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I934 Sch. 23 para. 6 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I935 Sch. 23 para. 7 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I936 Sch. 23 para. 7 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I937 Sch. 23 para. 8 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

I938 Sch. 23 para. 8 in force at 1.11.2024 by S.I. 2024/1000, reg. 2(a) (with reg. 4, Schs. 1-3)

Later years provision

- 9 (1) Section 52 (requirement to register: later years childminders for children under eight) is amended as follows.
- (2) In the heading, at the end insert “with domestic premises”.
- (3) In subsection (1), in the words before paragraph (a)—
- (a) after “eight” insert “, where some or all of the childminding is provided on domestic premises,”;
 - (b) after “childminder” insert “with domestic premises”.

Commencement Information

I939 Sch. 23 para. 9 not in force at Royal Assent, see s. 255(9)(a)

I940 Sch. 23 para. 9 in force at 1.11.2024 by S.I. 2024/1000, reg. 2(a) (with reg. 4, Schs. 1-3)

- 10 (1) Section 53 (requirement to register: other later years providers for children under eight) is amended as follows.
- (2) For subsections (1) and (1ZA) substitute—
- “(1) A person may not provide, for a child who has not attained the age of eight, later years provision on non-domestic premises in England unless—
- (a) the person is registered in Part A of the general childcare register as a later years provider other than a childminder (whether or not the provision is or includes later years childminding), or
 - (b) the provision is later years childminding, none of which is provided on domestic premises, and the person is registered as a later years childminder without domestic premises—
 - (i) in Part A of the general childcare register, or
 - (ii) with a later years childminder agency.
- (1ZA) Subsection (1)(a) does not apply to later years provision in respect of which the person providing it is required to be registered under section 52(1) or under subsection (1A).”
- (3) In subsection (1A)—
- (a) after “96(9)” insert “, and some or all of which is provided on domestic premises,”;
 - (b) after “registered” insert “as a later years provider other than a childminder”.

Commencement Information

I941 Sch. 23 para. 10 not in force at Royal Assent, see s. 255(9)(a)

I942 Sch. 23 para. 10 in force at 1.11.2024 by S.I. 2024/1000, reg. 2(a) (with reg. 4, Schs. 1-3)

- 11 (1) Section 54 (applications for registration: later years childminders) is amended as follows.
- (2) In the heading, at the end insert “with domestic premises”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(3) In subsection (1)—

- (a) in paragraph (a), for “as a later years childminder in Part A of the general childcare register” substitute “in Part A of the general childcare register as a later years childminder with domestic premises”;
- (b) in paragraph (b), at the end insert “with domestic premises”.

(4) In subsection (5), in each of paragraphs (aa) and (ab), after “as a later years childminder” insert “with domestic premises”.

Commencement Information

I943 Sch. 23 para. 11 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I944 Sch. 23 para. 11 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

12 (1) Section 55 (application for registration: other later years providers) is amended as follows.

(2) In subsection (1), for the words from “to the Chief” to the end substitute “—

- (a) in any case, to the Chief Inspector for registration as a later years provider other than a childminder, or
- (b) if the later years provision is later years childminding—
 - (i) to the Chief Inspector for registration as a later years childminder without domestic premises, or
 - (ii) to a later years childminder agency for registration with that agency as a later years childminder without domestic premises,

(whether or not an application is also made under paragraph (a)).”

(3) In each of subsections (3) and (4), for “subsection (1)” substitute “subsection (1)(a) or (b)(i)”.

(4) In subsection (4A), after “subsection” insert “(1)(b)(ii) or”.

(5) In subsection (5), after paragraph (ab) insert—

- “(ac) prohibiting the applicant from being registered in Part A of the general childcare register as a later years childminder without domestic premises if the applicant is registered with a childminder agency;
- (ad) prohibiting the applicant from being registered with a later years childminder agency as a later years childminder without domestic premises if the applicant is registered—
 - (i) with another childminder agency;
 - (ii) in the early years register or the general childcare register;”.

Commencement Information

I945 Sch. 23 para. 12 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I946 Sch. 23 para. 12 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

13 (1) Section 56 (entry on the register and certificates) is amended as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

(2) In subsection (1), in paragraph (a), after “childminder” insert “with domestic premises”.

(3) In subsection (2)—

- (a) in the words before paragraph (a), for “55(1)” substitute “55(1)(a)”;
- (b) in paragraph (a), after “childminder” insert “(even if, in the case of an application under section 55(1)(a), the later years provision is or includes later years childminding)”.

(4) After subsection (2) insert—

“(2A) If an application under section 55(1)(b)(i) is granted, the Chief Inspector must—

- (a) register the applicant in Part A of the general childcare register as a later years childminder without domestic premises, and
- (b) give the applicant a certificate of registration stating that the applicant is so registered.”

(5) In subsection (3), for “or (2)” substitute “, (2) or (2A)”.

Commencement Information

I947 Sch. 23 para. 13 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I948 Sch. 23 para. 13 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

14 (1) Section 56A (later years childminder agencies: registers and certificates) is amended as follows.

(2) In subsection (1)(a), after “childminder” insert “with domestic premises”.

(3) After subsection (1) insert—

“(1A) If an application under section 55(1)(b)(ii) is granted, the later years childminder agency must—

- (a) register the applicant in the register maintained by the agency as a later years childminder without domestic premises, and
- (b) give the applicant a certificate of registration stating that the applicant is so registered.”

(4) In subsection (3), after “(1)” insert “, (1A)”.

Commencement Information

I949 Sch. 23 para. 14 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I950 Sch. 23 para. 14 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

15 In section 57 (special procedure for providers registered in the early years register), in subsection (1)—

- (a) in the words before paragraph (a), after “childminder” insert “with or without domestic premises”;
- (b) in paragraph (a), for “as a later years childminder” substitute “—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (i) in the case of an early years childminder with domestic premises, as a later years childminder with domestic premises;
- (ii) otherwise, as a later years childminder without domestic premises”.

Commencement Information

I951 Sch. 23 para. 15 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I952 Sch. 23 para. 15 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

- 16 (1) Section 57A (special procedure for providers registered with early years childminder agencies) is amended as follows.
- (2) In subsection (1)(a), after “childminder” insert “with or without domestic premises”.
- (3) In subsection (2)(a), for “as a later years childminder” substitute “—
- (i) in the case of an early years childminder with domestic premises, as a later years childminder with domestic premises;
 - (ii) otherwise, as a later years childminder without domestic premises”.

Commencement Information

I953 Sch. 23 para. 16 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I954 Sch. 23 para. 16 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

Commencement Information

I939 Sch. 23 para. 9 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I940 Sch. 23 para. 9 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I941 Sch. 23 para. 10 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I942 Sch. 23 para. 10 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I943 Sch. 23 para. 11 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I944 Sch. 23 para. 11 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I945 Sch. 23 para. 12 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I946 Sch. 23 para. 12 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I947 Sch. 23 para. 13 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I948 Sch. 23 para. 13 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I949 Sch. 23 para. 14 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I950 Sch. 23 para. 14 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I951 Sch. 23 para. 15 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I952 Sch. 23 para. 15 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I953 Sch. 23 para. 16 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I954 Sch. 23 para. 16 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

Voluntary registration

- 17 (1) Section 62 (applications for registration on the general register: childminders) is amended as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) In the heading, at the end insert “with domestic premises”.
- (3) In subsection (1), in the words after paragraph (b)—
 - (a) before “may” insert “where some or all of the childminding is (or is to be) provided on domestic premises,”;
 - (b) at the end insert “with domestic premises”.

Commencement Information

I955 Sch. 23 para. 17 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I956 [Sch. 23 para. 17](#) in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

- 18 In section 63 (applications for registration on the general register: other childcare providers), for subsection (1) substitute—

“(A1) Subsection (1) applies to a person who provides or proposes to provide on premises in England—

- (a) later years provision for a child who has attained the age of eight, or
- (b) early years provision or later years provision for a child who has not attained that age but in respect of which the person is not required to be registered under Chapter 2 or 3,

except where it is provision in respect of which an application for registration may be made under section 62.

(1) The person may make an application to the Chief Inspector—

- (a) in any case, for registration in Part B of the general childcare register as a provider of childcare other than a childminder, or
- (b) where the provision is early years childminding or later years childminding, for registration in Part B of the general childcare register as a childminder without domestic premises (whether or not an application is also made under paragraph (a)).”

Commencement Information

I957 Sch. 23 para. 18 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I958 [Sch. 23 para. 18](#) in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

- 19 (1) Section 64 (entry on the register and certificates) is amended as follows.
- (2) In subsection (1)(a), after “childminder” insert “with domestic premises”.
 - (3) In subsection (2)—
 - (a) in the words before paragraph (a), for “63(1)” substitute “63(1)(a)”;
 - (b) in paragraph (a), after “childminder” insert “(even if the childcare to be provided is or includes early years or later years childminding)”.
 - (4) After subsection (2) insert—

“(2A) If an application under section 63(1)(b) is granted, the Chief Inspector must—

 - (a) register the applicant in Part B of the general childcare register as a childminder without domestic premises, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) give the applicant a certificate of registration stating that the applicant is so registered.”

(5) In subsection (3), for “or (2)” substitute “, (2) or (2A)”.

Commencement Information

I959 Sch. 23 para. 19 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I960 Sch. 23 para. 19 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

- 20 In section 65 (special procedure for persons already registered in a childcare register), in subsection (1)—
- (a) in the words before paragraph (a), for the words from “a childminder” to “Part A of the general childcare register” substitute “an early years childminder with or without domestic premises in the early years register, or as a later years childminder with or without domestic premises in Part A of the general childcare register,”;
- (b) in paragraph (a), after “childminder” insert “(as the case may be, with or without domestic premises)”.

Commencement Information

I961 Sch. 23 para. 20 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I962 Sch. 23 para. 20 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

- 21 (1) Section 65A (special procedure for persons already registered with a childminder agency) is amended as follows.
- (2) In subsection (1), in the words before paragraph (a)—
- (a) after the first “early years childminder” insert “with or without domestic premises”;
- (b) after the first “later years childminder” insert “with or without domestic premises”.
- (3) In subsection (2)(a), after “Chapter” insert “(as the case may be, with or without domestic premises)”.

Commencement Information

I963 Sch. 23 para. 21 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I964 Sch. 23 para. 21 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

Commencement Information

I955 Sch. 23 para. 17 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I956 Sch. 23 para. 17 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I957 Sch. 23 para. 18 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I958 Sch. 23 para. 18 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I959 Sch. 23 para. 19 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

I960 Sch. 23 para. 19 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

I961 Sch. 23 para. 20 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

I962 Sch. 23 para. 20 in force at 1.11.2024 by S.I. 2024/1000, reg. 2(a) (with reg. 4, Schs. 1-3)

I963 Sch. 23 para. 21 not in force at Royal Assent, see s. 255(9)(a)

I964 Sch. 23 para. 21 in force at 1.11.2024 by S.I. 2024/1000, reg. 2(a) (with reg. 4, Schs. 1-3)

Common provisions

- 22 (1) Section 68 (cancellation of registration in a childcare register: early years and later years providers) is amended as follows.
- (2) In subsection (3), for the words from “as an early years childminder” to the end substitute “—
- (a) as an early years childminder with domestic premises if it appears to the Chief Inspector that the person has not provided early years childminding on domestic premises in England for a period of more than three years during which the person was registered;
 - (b) as an early years childminder without domestic premises if it appears to the Chief Inspector that the person has not provided early years childminding on non-domestic premises in England for a period of more than three years during which the person was registered.”
- (3) In subsection (4), for the words from “as a later years childminder” to the end substitute “—
- (a) as a later years childminder with domestic premises if it appears to the Chief Inspector that the person has not provided later years childminding on domestic premises in England for a period of more than three years during which the person was registered;
 - (b) as a later years childminder without domestic premises if it appears to the Chief Inspector that the person has not provided later years childminding on non-domestic premises in England for a period of more than three years during which the person was registered.”
- (4) In subsection (5), for the words from “as a childminder” to the end substitute “—
- (a) as a childminder with domestic premises if it appears to the Chief Inspector that the person has provided neither early years childminding nor later years childminding on domestic premises in England for a period of more than three years during which the person was registered;
 - (b) as a childminder without domestic premises if it appears to the Chief Inspector that the person has provided neither early years childminding nor later years childminding on non-domestic premises in England for a period of more than three years during which the person was registered.”

Commencement Information

I965 Sch. 23 para. 22 not in force at Royal Assent, see s. 255(9)(a)

I966 Sch. 23 para. 22 in force at 1.11.2024 by S.I. 2024/1000, reg. 2(a) (with reg. 4, Schs. 1-3)

- 23 In section 69 (suspension of registration in a childcare register: early years and later years providers), in each of subsections (3) and (4), after “childminder” insert “with or without domestic premises”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

- I967** Sch. 23 para. 23 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I968 Sch. 23 para. 23 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

- 24 (1) Section 98 (interpretation of Part 3) is amended as follows.
- (2) In subsection (1), in the definition of “domestic premises”, at the end insert “(and references to non-domestic premises are to be construed accordingly)”.
- (3) After subsection (1A) insert—
- “(1B) In this Part, references to a person registered—
- (a) as an early years childminder with domestic premises are to a person registered as such under section 37(1)(a) or 37A(1)(a);
 - (b) as an early years childminder without domestic premises are to a person registered as such under section 37(2A) or 37A(1A);
 - (c) as a later years childminder with domestic premises are to a person registered as such under section 56(1)(a) or 56A(1)(a);
 - (d) as a later years childminder without domestic premises are to a person registered as such under section 56(2A) or 56A(1A).”

Commencement Information

- I969** Sch. 23 para. 24 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I970 Sch. 23 para. 24 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

Commencement Information

- I965** Sch. 23 para. 22 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I966 Sch. 23 para. 22 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))
I967 Sch. 23 para. 23 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I968 Sch. 23 para. 23 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))
I969 Sch. 23 para. 24 not in force at Royal Assent, see [s. 255\(9\)\(a\)](#)
I970 Sch. 23 para. 24 in force at 1.11.2024 by [S.I. 2024/1000](#), [reg. 2\(a\)](#) (with [reg. 4](#), [Schs. 1-3](#))

SCHEDULE 24

Section 252(10)

REGULATIONS UNDER CHAPTER 1 OF PART 3 OR PART 6: FORM AND SCRUTINY

PART 1

STATUTORY INSTRUMENTS AND STATUTORY RULES

- 1 (1) Any power to make regulations under [Chapter 1 of Part 3](#) or [Part 6](#)—
- (a) so far as exercisable by the Secretary of State acting alone or by the Secretary of State acting jointly with a devolved authority, is exercisable by statutory instrument,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (b) so far as exercisable by the Welsh Ministers acting alone, is exercisable by statutory instrument, and
 - (c) so far as exercisable by a Northern Ireland department acting alone, is exercisable by statutory rule for the purposes of the Statutory Rules (Northern Ireland) Order 1979 (S.I. 1979/1573 (N.I. 12)) (and not by statutory instrument).
- (2) For regulations made under [Chapter 1](#) of [Part 3](#) or [Part 6](#) by the Scottish Ministers acting alone, see also section 27 of the Interpretation and Legislative Reform (Scotland) Act 2010 ([asp 10](#)) (Scottish statutory instruments).

Commencement Information

I971 Sch. 24 para. 1 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

PART 2

SCRUTINY OF REGULATIONS

Scrutiny of regulations made by Secretary of State or devolved authority acting alone

- 2 (1) This paragraph applies to regulations made by the Secretary of State, or a devolved authority, acting alone which contain provision (whether alone or with other provision) under—
- (a) section [152](#) or [153](#);
 - (b) section [154](#) other than provision, made on the second or subsequent exercise of a power in that section, for—
 - (i) a description of consent, which is neither category 1 consent nor category 2 consent, to be either category 1 consent or category 2 consent, or
 - (ii) a description of consent which is category 2 consent to be category 1 consent;
 - (c) section [159\(2\)](#) or [160](#).
- (2) A statutory instrument containing regulations to which this paragraph applies of the Secretary of State acting alone may not be made unless a draft of the instrument has been laid before, and approved by a resolution of, each House of Parliament.
- (3) Regulations to which this paragraph applies of the Scottish Ministers acting alone are subject to the affirmative procedure (see section 29 of the Interpretation and Legislative Reform (Scotland) Act [2010 \(asp 10\)](#)).
- (4) A statutory instrument containing regulations to which this paragraph applies of the Welsh Ministers acting alone may not be made unless a draft of the instrument has been laid before, and approved by a resolution of, Senedd Cymru.
- (5) Regulations to which this paragraph applies of a Northern Ireland department acting alone may not be made unless a draft of the regulations has been laid before, and approved by a resolution of, the Northern Ireland Assembly.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Commencement Information

I972 Sch. 24 para. 2 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

- 3
- (1) This paragraph applies to regulations made by the Secretary of State, or a devolved authority, acting alone which contain provision (whether alone or with other provision) under [Chapter 1 of Part 3](#) or [Part 6](#) and which do not fall within paragraph 2.
 - (2) A statutory instrument containing regulations to which this paragraph applies of the Secretary of State acting alone is subject to annulment in pursuance of a resolution of either House of Parliament.
 - (3) Regulations to which this paragraph applies of the Scottish Ministers acting alone are subject to the negative procedure (see section 28 of the Interpretation and Legislative Reform (Scotland) Act 2010).
 - (4) A statutory instrument containing regulations to which this paragraph applies of the Welsh Ministers acting alone is subject to annulment in pursuance of a resolution of Senedd Cymru.
 - (5) Regulations to which this paragraph applies of a Northern Ireland department acting alone are subject to negative resolution within the meaning of section 41(6) of the Interpretation Act (Northern Ireland) 1954 as if they were a statutory instrument within the meaning of that Act.

Commencement Information

I973 Sch. 24 para. 3 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

- 4
- Paragraph 3 does not apply if—
- (a) a draft of the instrument has been laid before, and approved by a resolution of, each House of Parliament;
 - (b) a draft of the Scottish statutory instrument has been laid before, and approved by resolution of, the Scottish Parliament;
 - (c) a draft of the instrument has been laid before, and approved by a resolution of, Senedd Cymru; or
 - (d) a draft of the regulations has been laid before, and approved by a resolution of, the Northern Ireland Assembly.

Commencement Information

I974 Sch. 24 para. 4 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

Commencement Information

I972 Sch. 24 para. 2 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

I973 Sch. 24 para. 3 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

I974 Sch. 24 para. 4 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

Scrutiny of regulations made by the Secretary of State and devolved authority acting jointly

- 5 (1) This paragraph applies to regulations of the Secretary of State acting jointly with a devolved authority which contain provision (whether alone or with other provision) under—
- (a) section 152 or 153;
 - (b) section 154 other than provision, made on the second or subsequent exercise of a power in that section, for—
 - (i) a description of consent, which is neither category 1 consent nor category 2 consent, to be either category 1 consent or category 2 consent, or
 - (ii) a description of consent which is category 2 consent to be category 1 consent;
 - (c) section 159(2) or 160.
- (2) The procedure provided for by sub-paragraph (3) applies in relation to regulations to which this paragraph applies as well as any other procedure provided for by this paragraph which is applicable in relation to the regulations concerned.
- (3) A statutory instrument which contains regulations to which this paragraph applies may not be made unless a draft of the instrument has been laid before, and approved by a resolution of, each House of Parliament.
- (4) Regulations to which this paragraph applies which are made jointly with the Scottish Ministers are subject to the affirmative procedure.
- (5) Section 29 of the Interpretation and Legislative Reform (Scotland) Act 2010 (affirmative procedure) applies in relation to regulations to which sub-paragraph (4) applies as it applies in relation to devolved subordinate legislation (within the meaning of Part 2 of that Act) which is subject to the affirmative procedure (but as if references to a Scottish statutory instrument were references to a statutory instrument).
- (6) Section 32 of the Interpretation and Legislative Reform (Scotland) Act 2010 (laying) applies in relation to the laying before the Scottish Parliament of a statutory instrument containing regulations to which sub-paragraph (4) applies as it applies in relation to the laying before the Scottish Parliament of a Scottish statutory instrument (within the meaning of Part 2 of that Act).
- (7) A statutory instrument containing regulations to which this paragraph applies which are made jointly with the Welsh Ministers may not be made unless a draft of the instrument has been laid before, and approved by a resolution of, Senedd Cymru.
- (8) Regulations to which this paragraph applies which are made jointly with a Northern Ireland department may not be made unless a draft of the regulations has been laid before, and approved by a resolution of, the Northern Ireland Assembly.

Commencement Information

I975 Sch. 24 para. 5 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

- 6 (1) This paragraph applies to regulations of the Secretary of State acting jointly with a devolved authority which contain provision (whether alone or with other provision) under [Chapter 1](#) of [Part 3](#) or [Part 6](#) and which do not fall within paragraph 5.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (2) The procedure provided for by sub-paragraph (3) applies in relation to regulations to which this paragraph applies as well as any other procedure provided for by this paragraph which is applicable in relation to the regulations concerned.
- (3) A statutory instrument containing regulations to which this paragraph applies is subject to annulment in pursuance of a resolution of either House of Parliament.
- (4) Regulations to which this paragraph applies which are made jointly with the Scottish Ministers are subject to the negative procedure.
- (5) Sections 28(2), (3) and (8) and 31 of the Interpretation and Legislative Reform (Scotland) Act 2010 (asp 10) (negative procedure etc.) apply in relation to regulations to which sub-paragraph (4) applies and which are subject to the negative procedure as they apply in relation to devolved subordinate legislation (within the meaning of Part 2 of that Act) which is subject to the negative procedure (but as if references to a Scottish statutory instrument were references to a statutory instrument).
- (6) Section 32 of the Interpretation and Legislative Reform (Scotland) Act 2010 (laying) applies in relation to the laying before the Scottish Parliament of a statutory instrument containing regulations to which sub-paragraph (4) applies as it applies in relation to the laying before that Parliament of a Scottish statutory instrument (within the meaning of Part 2 of that Act).
- (7) A statutory instrument containing regulations to which this paragraph applies which are made jointly with the Welsh Ministers is subject to annulment in pursuance of a resolution of Senedd Cymru.
- (8) Regulations to which this paragraph applies which are made jointly with a Northern Ireland department are subject to negative resolution within the meaning of section 41(6) of the Interpretation Act (Northern Ireland) 1954 as if they were a statutory instrument within the meaning of that Act.
- (9) If in accordance with this paragraph—
 - (a) either House of Parliament resolves that an address be presented to His Majesty praying that an instrument be annulled, or
 - (b) a relevant devolved legislature resolves that an instrument be annulled,nothing further is to be done under the instrument after the date of the resolution and His Majesty may by Order in Council revoke the instrument.
- (10) In sub-paragraph (9) “relevant devolved legislature” means—
 - (a) in the case of regulations made jointly with the Scottish Ministers, the Scottish Parliament,
 - (b) in the case of regulations made jointly with the Welsh Ministers, Senedd Cymru, and
 - (c) in the case of regulations made jointly with a Northern Ireland department, the Northern Ireland Assembly.
- (11) Sub-paragraph (9) does not affect the validity of anything previously done under the instrument or prevent the making of a new instrument.
- (12) Sub-paragraphs (9) to (11) apply in place of provision made by any other enactment about the effect of such a resolution.
- (13) In this paragraph, “enactment” includes an enactment contained in, or in an instrument made under—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details)

- (a) an Act of the Scottish Parliament,
- (b) a Measure or Act of Senedd Cymru, or
- (c) Northern Ireland legislation.

Commencement Information
I976 Sch. 24 para. 6 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

7 Paragraph [6](#) does not apply if a draft of the instrument has been laid before, and approved by a resolution of, each House of Parliament.

Commencement Information
I977 Sch. 24 para. 7 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

Commencement Information
I975 Sch. 24 para. 5 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)
I976 Sch. 24 para. 6 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)
I977 Sch. 24 para. 7 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

Interpretation

8 In this Schedule “devolved authority” means—

- (a) the Scottish Ministers,
- (b) the Welsh Ministers, or
- (c) a Northern Ireland department.

Commencement Information
I978 Sch. 24 para. 8 in force at Royal Assent, see [s. 255\(10\)\(a\)](#)

Status:

Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation:

Levelling-up and Regeneration Act 2023 is up to date with all changes known to be in force on or before 10 August 2026. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations.